

The
History
of
Persecution

S. Chandler

1813

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SAMUEL CHANDLER. D.D. F.R.S. S.A.

Published by John Craggs, Hull, Jan. 1st 1813.

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THE
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PERSECUTION,

from the

PATRIARCHIAL AGE, TO THE REIGN OF GEORGE II.

BY S. CHANDLER, D.D. F.R.S. S.A.

A New Edition.

To which are added,

The Rev. Dr. Buchanan's Notices of the present State of the Inquisition at
Goa.

ALSO, AN

APPENDIX,

containing

HINTS ON THE RECENT PERSECUTIONS IN THE BRITISH EMPIRE.

SOME CIRCUMSTANCES RELATING TO

LORD VISCOUNT SIDMOUTH'S BILL;

A CIRCUMSTANTIAL DETAIL OF THE STEPS TAKEN TO OBTAIN

The New Toleration Act,

WITH THE

ACT ITSELF, AND OTHER IMPORTANT MATTER.

By CHARLES ATMORE.

“Uniformity of religious belief is not to be expected, so variously constituted are the minds of men, and consequently RELIGIOUS COERCION is not only absurd and impolitic, but for all good purposes impracticable.”

SUTTON, ARCHBISHOP OF CANTERBURY.

HULL:

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The EDITOR'S PREFACE.

It is now upwards of seventy years since this excellent treatise was first presented to the public by the author, and, considering his celebrity as a writer, (especially among the Dissenters) it is presumed no apology is necessary for sending it again into the world: especially at the present interesting crisis, when the subject of RELIGIOUS TOLERATION, is become the topic of general conversation and discussion. This work comprises every thing of importance connected with the dreadful persecutions which have disgraced human nature, both in ancient and modern times, both at home and abroad; and is designed to prove that the things for which christians have persecuted one another have generally been of small importance; that pride, ambition, and covetousness, have been the grand sources of persecution; and that the religion of Jesus Christ absolutely condemns *all* persecution for conscience sake.

In this Edition, I have wholly omitted Dr. Chandler's "Preface," which contains "Remarks on Dr. Rogers' vindication of the civil establishment of religion," and have substituted Memoirs of Dr. Chandler in its room: which I thought would be more generally acceptable to the reader. I have also omitted all his marginal notes of a controversial nature, being answers to Dr. Berriman, who had written a pamphlet entitled, "Brief remarks on Mr. Chandler's Introduction to the History of the Inquisition." These I conceived would be at present of little use. And as the republication of this volume is intended chiefly for *common* readers, I have also left out all the Greek and Latin sentences interspersed in the work, judging that they would be of no real advantage to such persons. I have however retained Dr. Chandler's authorities, so that the *learned* reader may refer to them when he thinks proper. As to the body of the work, I have neither altered the sense nor the language.

The additions I have made from that justly celebrated work, "Dr. Buchanan's Christian Researches in Asia," will, I hope, be deemed a

valuable acquisition; and I beg leave here to express my grateful acknowledgments to the Rev. Author of that work, for the very polite manner in which he honoured my request, in permitting me to insert his “Notices of the Inquisition at Goa.”

While this work was in the press, one of the most important events to Religious Liberty occurred, which has taken place since the glorious era of the Revolution, in 1688: viz. the repeal of the Persecuting laws, and the passing of the NEW TOLERATION ACT. This event is so closely connected with the subject matter of this work, and reflects so much honour on the British government and nation, that I feel highly gratified in affording the reader, a detail of the various steps which were taken to obtain that Act: which now effectually secures to every subject of the British Empire all the Religious Liberty he can expect or desire.

I willingly record this memorial, that we, and our children after us, may know how to appreciate our invaluable privileges; and that the names of those noblemen and others who boldly stood forth in the defence and support of Religious Toleration, might be handed down to posterity, that “our children may tell their children, and their children another generation.”

May that infinitely important and wished-for period soon arrive, “when every invidious distinction, and every hostile passion, shall be banished from religious society; and when all the blessings of christian liberty shall be diffused and enjoyed throughout the whole world!”

“O catch its high import ye winds as ye blow,
“O bear it ye waves as ye roll,
“From the regions that feel the sun’s vertical glow,
“To the farthest extremes of the pole!”

Charles Atmore.

HULL, FEBRUARY 15th. 1813.



ADVERTISEMENT.

When the prospectus of this work was first published, the Editor had no design of adding the Appendix, but intended to give copious biographical notes of the most eminent persons recorded in the work. The matter of the Appendix, however, afterwards appeared to him of such superior importance, that he thought himself justified in changing his plan. And he hopes the subscribers will excuse his having omitted that part of his original design, and accept of this apology for the notes, being so few, and so short, at the end of the volume.

CONTENTS.



PREFACE	Page iii
The Life of Dr. Chandler	1-23
The Introduction	27-31
BOOK I.	
Of Persecution amongst the Heathens.	
SECT. 1.	
Abraham persecuted	33-34
SECT. 2.	
Socrates persecuted amongst the Greeks	34-38
SECT. 3.	
Egyptian Persecutions	39-40
SECT. 4.	
Persecutions by Antiochus Epiphanes	40-42
SECT. 5.	
Persecutions under the Romans	42-54
SECT. 6.	
Persecutions by the Mahometans	54-55
BOOK II.	
Of the Persecutions under the Christian Emperors	56
SECT. 1.	
Of the Dispute about Easter	57-61

SECT. 2.	
Of the Persecutions under Constantine	61-76
SECT. 3.	
The Nicene Council, or first general Council	76-103
SECT. 4.	
The first Council of Constantinople; or, second general Council	103-112
SECT. 5.	
The Council of Ephesus; or, third general Council	112-114
SECT. 6.	
The Council of Calcedon; or, fourth general Council	114-128
SECT. 7.	
The second Council at Constantinople; or, fifth general Council	129-136
SECT. 8.	
The third Council of Constantinople; or, sixth general Council	136-140
SECT. 9.	
The second Nicene Council; or, seventh general Council	141-143
BOOK III.	
Of Persecutions under the Papacy, and particularly the Inquisition	144-145
SECT. 1.	
Of the Progress of the Inquisition	145-155
SECT. 2.	
Of the Officers belonging to the Inquisition	155-181
SECT. 3.	
Of the Crimes cognizable by the Inquisition, and the Punishment annexed to them	182-194
SECT. 4.	

Of the manner of proceeding before the Tribunal of the Inquisition	194-263
Of the present state of the Inquisition at Goa, extracted from Dr. Buchanans Christian Researches in Asia	263-284

BOOK IV.

Of Persecutions amongst Protestants	285
SECT. 1.	
Luther's opinion concerning Persecution	286
SECT. 2.	
Calvin's Doctrine and Practice concerning Persecution	288-300
SECT. 3.	
Persecutions at Bern, Bazil, and Zurich	300-303
SECT. 4.	
Persecutions in Holland, and by the Synod of Dort	303-311
SECT. 5.	
Persecutions in Great Britain	311-354
SECT. 6.	
Of Persecutions in New England, in America	354-360

CONCLUSION.

SECT. 1.	
Who have been the great promoters of Persecution	360-363
SECT. 2.	
The things for which Christians have persecuted one another have generally been of small importance	363-369
SECT. 3.	
Pride, Ambition, and Covetousness, the grand sources of Persecution	369-372
SECT. 4.	
The Decrees of Councils, and Synods of no Authority in matters of Faith	372-377

SECT. 5.	
The imposing Subscription to human Creeds, unreasonable and pernicious	377-387
SECT. 6.	
Adherence to the sacred Scriptures, the best security of Truth and Orthodoxy	387-390
SECT. 7.	
The Christian Religion absolutely condemns Persecution for conscience sake	390-413

APPENDIX.

I.	
Hints on the recent persecutions in the British Empire	415-416
II.	
His Majesty's most gracious interference with respect to the Religious Liberties of his subjects, and of his Royal Highness the Prince Regent's	416-419
III.	
Some circumstances relating to Lord Sidmouth's Bill	422-427
IV.	
Lord Viscount Sidmouth's proposed Bill	427-433
V.	
Meeting of the Committee of Privileges of the Societies of the late Rev. John Wesley	433-441
VI.	
Proceedings of other Committees	441-448
VII.	
Further proceedings of the Committee of Privileges, with general remarks	448-453
VIII.	
The number of petitions presented in the House of Lords against Lord Sidmouth's Bill	453-457
IX.	

Lord Sidmouth's speech on the second reading of his Bill, with those of other noble Lords	457-472
X.	
Remarks on the effects of Lord Sidmouth's Bill	472-473
XI.	
Letter of the Right Honourable Spencer Percival, Chancellor of the Exchequer, with remarks	473-475
XII.	
Steps taken to obtain the new Toleration Act	476-489
XIII.	
The New Toleration Act itself	490-498
XIV.	
Observations upon the aforesaid Act, with practical directions	498-505
XV.	
Remarks on the Edict recently issued by the Emperor of China against Christianity, with the horrible Edict itself	505-508
XVI.	
Biographical notes	509-520

THE
LIFE
OF
DR. SAMUEL CHANDLER.

The Rev. Dr. SAMUEL CHANDLER was descended from ancestors heartily engaged in the cause of Nonconformity, and great sufferers for liberty of conscience. His paternal grandfather was a respectable tradesman at Taunton, in Somersetshire. He was much injured in his fortune by the persecutions under Charles the Second, but “he took joyfully the spoiling of his goods, knowing in himself that he had in heaven a better and an enduring substance.”

The father of Dr. Chandler was a dissenting minister of considerable worth and abilities, who spent the greater part of his life in the city of Bath, where he maintained an honourable name.

Our author was born at Hungerford, in Berkshire, in the year 1693; his father being at that time the pastor of a congregation of protestant dissenters in that place. He early discovered a genius for literature, which was carefully cultivated; and being placed under proper masters, he made a very uncommon progress in classical learning, and especially in the Greek tongue. As it was intended by his friends to bring him up for the ministry, he was sent to an academy at Bridgewater, under the care of the Rev. Mr. Moore: but he was soon removed from thence to Gloucester, that he might become a pupil to Mr. Samuel Jones, a dissenting minister of great erudition and abilities, who had opened an academy in that city. This academy was soon transferred to Tewkesbury, at which place Mr. Jones presided over it for many years with very high and deserved reputation. Such was the attention of that gentleman to the morals of his pupils, and to their progress in literature, and such the skill and discernment with which he directed their

studies, that it was a singular advantage to be placed under so able and accomplished a tutor. Mr. Chandler made the proper use of so happy a situation; applying himself to his studies with great assiduity, and particularly to critical, biblical, and oriental learning. Among the pupils of Mr. Jones were Mr. Joseph Butler, afterwards Bishop of Durham, and Thomas Secker, afterwards Archbishop of Canterbury. With these eminent persons he contracted a friendship that continued to the end of their lives, notwithstanding the different views by which their conduct was afterwards directed, and the different situations in which they were placed.

Mr. Chandler, having finished his academical studies, began to preach about July, 1714; and being soon distinguished by his talents in the pulpit, he was chosen, in 1716, minister of the Presbyterian congregation at Peckham, near London, in which station he continued some years. Here he entered into the matrimonial state, and began to have an increasing family, when, by the fatal South-sea scheme of 1720, he unfortunately lost the whole fortune which he had received with his wife. His circumstances being thereby embarrassed, and his income as a minister being inadequate to his expences, he engaged in the trade of a bookseller, and kept a shop in the Poultry, London, for about two or three years, still continuing to discharge the duties of the pastoral office. It may not be improper to observe, that in the earlier part of his life, Mr. Chandler was subject to frequent and dangerous fevers; one of which confined him more than three months, and threatened by its effects to disable him for public service. He was therefore advised to confine himself to a vegetable diet, which he accordingly did, and adhered to it for twelve years. This produced so happy an alteration in his constitution, that though he afterwards returned to the usual way of living, he enjoyed an uncommon share of spirits and vigour till seventy.

While Mr. Chandler was minister of the congregation at Peckham, some gentlemen, of the several denominations of dissenters in the city, came to a resolution to set up and support a weekly evening lecture at the Old Jewry, for the winter half year. The subjects to be treated in this lecture were the evidences of natural and revealed religion, and answers to the principal objections against them. Two of the most eminent young ministers among the dissenters were appointed for the execution of this design, of which Mr. Chandler was one, and Mr. afterwards Dr. Lardner, who is so justly celebrated for his learned writings, was another. But after some time this

lecture was dropped, and another of the same kind set up, to be preached by one person only; it being judged that it might be thereby conducted with more consistency of reasoning, and uniformity of design; and Mr. Chandler was appointed for this service. In the course of this lecture, he preached some sermons on the confirmation which miracles gave to the divine mission of Christ, and the truth of his religion; and vindicated the argument against the objections of Collins, in his "Discourse of the grounds and reasons of the Christian Religion." These sermons, by the advice of a friend, he enlarged and threw into the form of a continued treatise, and published, in 8vo. in 1725, under the following title: "A Vindication of the Christian Religion, in two parts: I. A Discourse of the nature and use of miracles. II. An Answer to a late book, entitled, A Discourse of the grounds and reasons of the Christian Religion." Dr. Leland observes, that in this work our author "clearly vindicates the miracles of our Saviour, and shews, that, as they were circumstanced, they were convincing proofs of his divine mission." But though Mr. Chandler refuted the arguments of Collins against Christianity, he was not unwilling to do justice to his merit, and therefore candidly said, in the preface to his own book, "The preface to the Discourse of the grounds and reasons is, in my judgment, an excellent defence of the liberty of every one's judging for himself, and of proposing his opinions to others, and of defending them with the best reasons he can, which every one hath a right to, as a man and a Christian." Our author also zealously opposed any interference of the civil magistrate in the defence of Christianity: "Though the magistrate's sword," says he, "may very fitly be employed to prevent libertinism, or the breach of the public peace by men's vices, yet the progress of infidelity must be controuled another way, viz. by convincing men's consciences of the truth of Christianity, and fairly answering their objections against it. Is it not surprising, that men, who take their religion upon trust, and who therefore can know but little of the intrinsic worth of Christianity, or of that strong evidence that there is to support it, should be in pain for it, when they find it attacked by any new objections, or old ones placed in a somewhat different view from what they were before; or that they should call out aloud to the magistrate to prevent the making them, because they know not how otherwise to answer them? But that men of learning and great abilities, whose proper office it is to defend Christianity, by giving the reasons for their faith, and who seem to have both ability and leisure thus to stand up in the behalf of it, should

make their appeal to the civil power, and become humble suitors to the magistrate to controul the spirit of infidelity, is strangely surprising. It looks as if they suspected the strength of Christianity; otherwise, one would think they would not invite such strange and foreign aids to their assistance, when they could have more friendly ones nearer at home, that would much more effectually support and protect it; or at least, as though they had some other interest to maintain than the cause of common Christianity; though at the same time they would willingly be thought to have nothing else in view, but the service and honour of it. If the scheme of our modern deists be founded in truth, I cannot help wishing it all good success; and it would be a crime in the civil magistrate, by any methods of violence, to prevent the progress of it: but if, as I believe, Christianity is the cause of God, it will prevail by its own native excellence, and of consequence needs not the assistance of the civil power.” A second edition of this work was published in 1728. Having presented a copy of it to Archbishop Wake, his grace expressed his sense of the value of the favour in the following letter, which is too honourable a testimony to Mr. Chandler’s merit to be omitted. It appears from the letter, that the Archbishop did not then know that the author was any other than a bookseller.

“SIR,

“Though I have been hindered by business, and company extraordinary, the last week, from finishing your good book, yet I am come so near the end of it, that I may venture to pass my judgment upon it, that it is a very good one, and such as I hope will be of service to the end for which you designed it.

“I think you have set the notion of a miracle upon a clear and sure foundation; and by the true distinction of our blessed Saviour, in considering him as a Prophet sent from God, and as the Messiah promised to the Jews, have effectually proved him, by his doctrine and miracles, to be the one, and by his accomplishment of the prophecies of the Old Testament to be the other.

“I cannot but own myself to be surprised, to see so much good learning and just reasoning in a person of your profession; and do think it a pity you should not rather spend your time in writing books, than in selling them. But I am glad, since your circumstances oblige you to the latter, yet you do not wholly omit the former. As we are all, who call ourselves Christians,

obliged to you for this performance, in defence of our holy religion, so I must, in particular, return you my thanks for the benefit I have received by it; and own to you that I have, as to myself, been not only usefully entertained, but edified by it. I hope you will receive your reward from God for it. It is the hearty wish of,

“Sir, your obliged friend,

“WILLIAM CANT.”

“*Lambeth House, Feb. 14, 1725.*”

Besides gaining the archbishop’s approbation, Mr. Chandler’s performance considerably advanced his reputation in general, and contributed to his receiving an invitation, about the year 1726, to settle as a minister with the congregation in the Old Jewry, which was one of the most respectable in London. Here he continued, first as assistant, and afterwards as pastor, for the space of forty years, and discharged the duties of the ministerial office with great assiduity and ability, being much esteemed and regarded by his own congregation, and acquiring a distinguished reputation both as a preacher and a writer.

In 1727, Mr. Chandler published “Reflections on the conduct of the modern deists, in their late writings against Christianity: occasioned chiefly by two books, entitled, *A Discourse of the grounds and reasons, &c.* and the *Scheme of literal prophecy considered: with a preface, containing some Remarks on Dr. Rogers’s preface to his eight sermons.*” In this performance he exposed the unfair methods that were employed by the enemies of Christianity in their attack of it, and the disingenuity of their reasoning; and in his preface, he combated some sentiments which had been advanced by Dr. Rogers, canon residentiary of Wells, and chaplain to the Prince of Wales, to the prejudice of free inquiry, and the right of private judgment. Mr. Chandler, who considered what had been advanced by Dr. Rogers, “in favour of church power and authority,” as strongly savouring of the spirit of persecution, could not refrain from examining the Doctor’s scheme, which was to blend religion and politics together, or to make religion not a *personal* but a *state* matter. Accordingly he has offered some very spirited and judicious remarks on this subject, with a design to shew that religion, as it implies a belief of certain principles, and a peculiar method of worshipping God, said to be contained in revelation, is a purely personal matter; and that every man ought to be persuaded in his own mind, of the

nature of its proofs, and doctrines, and principles, and to dissent from the public establishment, if he finds it erroneous in any, or every, article of its belief; since no man is to be saved or damned hereafter, for the faith or practice of his superiors in church or state, and because neither nature nor revelation hath given them, nor can give them, a right or power to judge or believe for others.

In 1728, he published, “A Vindication of the antiquity and authority of Daniel’s prophecies, and their application to Jesus Christ; in answer to the objections of the author of the Scheme of literal prophecy considered.” “Among other prophecies of the Old Testament, which the author of the ‘Literal Scheme’ would not allow to have any literal reference to the Messiah, he reckoned those of Daniel; and to make out this the more clearly, he began with endeavouring to prove, that they are no prophecies at all; that the book of Daniel was not written by the famous Daniel mentioned by Ezekiel; and that it contains a manifest reference to, or rather, an history of, things done several hundred years after that Daniel’s time. This attempt to depreciate the authority and antiquity of a book, which our author esteemed a noble testimony to the truth of Christianity, induced him to try whether the ‘Literal Schematist’s’ criticisms were just, and his arguments conclusive; with which view he enters into a particular examination of the Eleven Objections, wherein Mr. Collins had comprised what he had to urge against the book; and, upon the whole, he concludes, that these objections are of no weight, and therefore do not deserve any regard from the thinking and impartial part of mankind. He then produces some distinct arguments to prove the proper antiquity of Daniel’s book; and having so far established its authority, he proceeds to the consideration of the several prophecies contained in it, in order to obviate the exceptions of Mr. Collins against the Christian interpretation of them, and at the same time to shew, that the explications which this writer would substitute in their stead, are founded on palpable mistakes, and consequently false; all which he has executed with great learning and acuteness.”

Mr. Chandler had a strong conviction of the pernicious nature, and dangerous tendency, of the Romish religion, and was desirous of exposing the persecuting spirit by which that church has been so much characterised: and it was with this view that he published, in 1731, in two volumes, 4to., a translation of “The history of the inquisition, by Philip à Limborch:” to which he prefixed, “A large introduction, concerning the rise and progress

of persecution, and the real and pretended causes of it.” In this introduction Mr. Chandler says, “I will not deny, but that the appointing persons, whose peculiar office it should be to minister in the external services of public and social worship, is, when under proper regulations, of advantage to the decency and order of divine service. But then I think it of the most pernicious consequence to the liberties of mankind, and absolutely inconsistent with the true prosperity of a nation, as well as with the interest and success of rational religion, to suffer such ministers to become the directors-general of the consciences and faith of others, or publicly to assume, and exercise such a power, as shall oblige others to submit to their determinations, without being convinced of their being wise and reasonable, and never to dispute their spiritual decrees. The very claim of such a power is the highest insolence, and an affront to the common sense and reason of mankind; and wherever it is usurped and allowed, the most abject slavery both of soul and body is almost the unavoidable consequence. For by such a submission to spiritual power, the mind and conscience is actually enslaved; and by being thus rendered passive to the priest, men are naturally prepared for a servile subjection to the prince, and for becoming slaves to the most arbitrary and tyrannical government. And I believe it hath been generally found true by experience, that the same persons who have asserted their own power over others, in matters of religion and conscience, have also asserted the absolute power of the civil magistrate, and been the avowed patrons of those admirable doctrines of passive obedience and non-resistance for the subject.” At the close of this piece our author observes, that the use of the view which he had given of the rise and progress of persecution, was, “to teach men to adhere close to the doctrines and words of Christ and his apostles, to argue for the doctrines of the gospel with meekness and charity, to introduce no new terms of salvation and Christian communion, not to trouble the Christian church with metaphysical subtilties and abstruse questions, that minister to quarrelling and strife, not to pronounce censures, judgments, and anathemas, upon such as may differ from us in speculative truths, not to exclude men from the rights of civil society, nor lay them under any negative or positive discouragements for conscience sake, or for their different usages and rites in the externals of Christian worship; but to remove those which are already laid, and which are as much a scandal to the authors and continuers of them, as they are a burden to those who labour under them.” This piece was written with great

learning and acuteness, but was attacked by Dr. Berriman, in a pamphlet, entitled, "Brief remarks on Mr. Chandler's introduction to the history of the inquisition." Our author published, in the form of a letter, an answer to these Remarks, in which he defended himself with great spirit. This engaged Dr. Berriman to write "A Review of his remarks;" to which Mr. Chandler replied, in "A second letter to William Berriman, D. D. &c. in which his Review of his remarks on the introduction to the history of the inquisition is considered, and the characters of St. Athanasius, and Martyr Laud, are farther stated and supported." This publication was soon followed by another, entitled, "A Vindication of a passage of the Right Reverend the Lord Bishop of London, in his second pastoral letter, against the misrepresentations of William Berriman, D. D. in a letter to his lordship;" and here the controversy ended. As our author had the firmest persuasion, that there was nothing in the principles of protestant dissenters which rendered them unfit to hold offices in the state, or in corporations, and that it was a manifest injustice to deprive them of the common rights of citizens, he likewise published, in 1732, in 8vo., "The dispute better adjusted about the proper time of applying for a repeal of the Corporation and Test Acts, by shewing that some time is proper; in a letter to the author of the Dispute adjusted, viz. the Right Reverend Dr. Edmund Gibson, Lord Bishop of London."

Among other learned and useful designs which Mr. Chandler had formed, he began a Commentary on the Prophets; and in 1735, he published, in 4to., "A Paraphrase and critical commentary on the prophecy of Joel;" which he dedicated to the Right Honourable Arthur Onslow, Esq. Speaker of the House of Commons. He afterwards proceeded a great way in the prophecy of Isaiah; but before he had completed it, he met with the MS. lexicon and lectures of the famous Arabic professor Schultens, who much recommends explaining the difficult words and phrases of the Hebrew language, by comparing them with the Arabic. With this light before him, Mr. Chandler determined to study the Hebrew anew, and to drop his commentary till he should thus have satisfied himself, that he had attained the genuine sense of the sacred writings. But this suspension of his design prevented the completion of it; for engagements of a different kind intervened, and he never finished any other commentary on the prophets. He continued, however, to publish a variety of learned works, and displayed a very

laudable zeal in support of religious liberty, and of the truth of divine revelation.

In 1736, he published, in 8vo., "The History of Persecution, in four parts; viz. I. Amongst the heathens. II. Under the Christian emperors. III. Under the papacy and inquisition. IV. Amongst protestants. With a preface, containing remarks on Dr. Rogers's Vindication of the civil establishment of religion." In 1741, appeared, in 8vo., "A Vindication of the history of the Old Testament; in answer to the misrepresentations and calumnies of Thomas Morgan, M. D. and Moral Philosopher." Dr. Leland observes, that in this work of our author he has clearly proved, that Morgan "hath been guilty of manifest falsehoods, and of the most gross perversions of the scripture history, even in those very instances in which he assures his reader he has kept close to the accounts given by the Hebrew historians." He likewise published, in opposition to the same writer, in 1742, "A Defence of the prime ministry and character of Joseph."

In 1744, Mr. Chandler published, in 8vo., "The witnesses of the resurrection of Jesus Christ reexamined, and their testimony proved entirely consistent." This was a very important controversy, which was at that time much agitated; and Dr. Leland, who stiles our author's piece upon the subject "a valuable treatise," observes, that, in his last chapter, "he hath summed up the evidence for the resurrection of Jesus with great clearness and judgment." In 1748, he published, in 8vo., "The case of subscription to explanatory articles of faith, as a qualification for admission into the christian ministry, calmly and impartially reviewed; in answer to, 1. A late pamphlet, entitled, The Church of England vindicated, in requiring subscription from the clergy to the Thirty-nine Articles. 2. The Rev. Mr. John White's Appendix to his third letter to a dissenting gentleman. To which is added, The speech of the Rev. John Alphonso Turretine, previous to the abolition of all subscription at Geneva, translated from a manuscript in the French." His writings having procured him a high reputation for learning and abilities, he might easily have obtained a doctor's degree in divinity, and offers of that kind were made him; but for some time he declined the acceptance of a diploma, and, as he once said, in the pleasantness of conversation, because so many blockheads had been made doctors. However, upon making a visit to Scotland, in company with his friend, the Earl of Findlater and Seafield, he, with great propriety, accepted of this honour, which was conferred upon him without solicitation, and with

every mark of respect, by the two universities of Edinburgh and Glasgow. He had, likewise, the honour of being afterwards elected a fellow of the Royal Society, and of the Society of Antiquaries.

On the death of King George the Second, in 1760, Dr. Chandler published a sermon on that event, in which he compared that prince to King David. This gave rise to a pamphlet, which was printed in the year 1761, entitled, "The history of the man after God's own heart;" wherein the author ventured to exhibit King David as an example of perfidy, lust, and cruelty, fit only to be ranked with a Nero, or a Caligula; and complained of the insult that had been offered to the memory of the late British monarch, by Dr. Chandler's parallel between him and the King of Israel. This attack occasioned Dr. Chandler to publish, in the following year, "A Review of the history of the man after God's own heart; in which the falsehoods and misrepresentations of the historian are exposed and corrected." In this performance our author, though he could not defend the character of the Jewish prince from all the accusations that were brought against him, yet sufficiently cleared him from many of them. His learning and sagacity also appeared to great advantage in this piece; and his skill in the Hebrew language, and his extensive acquaintance with biblical learning, enabled him to correct a variety of mistakes into which his opponent had fallen, from his taking many things as he found them in our common English translation, without paying any regard to criticisms, various readings of particular passages, or the opinions of expositors and commentators. It must, however, be confessed, that in this controversy Dr. Chandler expressed himself with too much warmth and asperity, which was indeed not unusual with him in his polemical writings. But this being a subject on which he was determined to enter into a full investigation, he prepared for the press a more elaborate work, which was afterwards published in two volumes, 8vo., under the following title: "A Critical history of the life of David: in which the principal events are ranged in order of time: the chief objections of Mr. Bayle, and others, against the character of this prince, and the scripture account of him, and the occurrences of his reign, are examined and refuted; and the psalms which refer to him explained." As this was the last, it was, likewise, one of the best of Dr. Chandler's productions. We may safely assert, that, in point of judgment, it is far superior to Dr. Delany's Life of King David, and that it is every way equal to it with respect to literature. The explanations of the psalms, which relate to the Jewish

monarch, are admirable; and the commentary, in particular, on the sixty-eighth psalm, is a masterpiece of criticism. The greatest part of this work was printed off at the time of our author's death, which happened on the 8th of May, 1766, in his seventy-third year. During the last year of his life, he was visited with frequent returns of a very painful disorder, which he endured with great resignation and Christian fortitude. He repeatedly declared, "that to secure the divine felicity promised by Christ, was the principal and almost the only thing that made life desirable: that to attain this he would gladly die, submitting himself entirely to God, as to the time and manner of death, whose will was most righteous and good; and being persuaded, *that all was well, which ended well* for eternity." He was interred in the burying-ground at Bunhill-fields, on the 16th of the month, and his funeral was very honourably attended by ministers, and other gentlemen. He expressly desired by his last will, that no delineation of his character might be given in his funeral sermon, which was preached by Dr. Amory. In this sermon, Dr. Amory, after observing that he was restrained from delineating Dr. Chandler's character, by his desire expressed in his last will, says, "He had indeed himself made this unnecessary; as his masterly and animated defences of the great doctrines of natural and revealed religion, had abundantly manifested the uncommon greatness and strength of his genius, the large extent and rich variety of his learning, and the solid grounds on which his faith was founded: together with his hearty attachment to the cause of rational piety and Christian liberty, and his abilities for defending them. And after he had ministered for forty years in this place, with so great reputation, it might appear superfluous to inform any present, how full of exalted sentiments of the Deity, how judicious and how spirited his public prayers were, and how instructive and animating his discourses." He had several children; two sons and a daughter who died before him, and three daughters who survived him, and both married; one of them to the Rev. Dr. Harwood.

Dr. Chandler was a man of very extensive learning, and eminent abilities; his apprehension was quick, and his judgment penetrating; he had a warm and vigorous imagination; he was a very instructive and animated preacher; and his talents in the pulpit, and as a writer, procured him very great and general esteem, not only among the dissenters, but among large numbers of the established church. He was well known, and much respected by many persons of the highest rank, and was offered considerable preferment in the

church; Dr. Amory says, that “the high reputation which he had gained, by his defences of the Christian religion, procured him from some of the governors of the established church, the offers of considerable preferment, which he nobly declined. He valued more than these the liberty and integrity of his conscience; and scorned for any worldly considerations to profess as divine truths, doctrines which he did not really believe, and to practise in religion what he did not inwardly approve.” But he steadily rejected every proposition of that kind. He was principally instrumental in the establishment of the fund for relieving the widows and orphans of poor protestant dissenting ministers: the plan of it was first formed by him; and it was by his interest and application to his friends, that many of the subscriptions for its support were procured.

In 1768, four volumes of our author’s sermons were published by Dr. Amory, according to his own directions in his last will; to which was prefixed a neat engraving of him, from an excellent portrait by Mr. Chamberlin. He also expressed a desire to have some of his principal pieces reprinted in four volumes, octavo: proposals were accordingly published for that purpose, but did not meet with sufficient encouragement. But in 1777, another work of our author was published, in one volume, 4to, under the following title: “A Paraphrase and Notes on the Epistles of St. Paul to the Galatians and Ephesians, with doctrinal and practical observations: together with a critical and practical commentary on the two Epistles of St. Paul to the Thessalonians.” This work was published from the author’s own manuscript, which was evidently intended for the press, by the Rev. Mr. Nathaniel White, who succeeded him as pastor of the congregation of protestant dissenters in the Old Jewry. That gentleman observes, in the preface to this work, that “there seems to have been something in Dr. Chandler’s genius and strength of mind, as well as in the unremitted course of his studies, which eminently fitted him to comment upon the writings of St. Paul, and to follow that deep and accurate reasoner, through his continued chain of argument, so as to preserve the whole distinct and clear; though, from the peculiar vigour of the apostle’s imagination, the fervour of his affection, the compass of his thought, and the uncommon fulness of his matter, his epistles are remarkable for sudden digressions, long parentheses, remote connections, and unexpected returns to subjects already discussed. These, added to many other circumstances common to ancient writings, must necessarily occasion a considerable degree of obscurity and difficulty,

which it is the business of the sacred expositor as much as possible to remove. In this view, the distinguishing excellence of Dr. Chandler's paraphrase seems to be, that the author adheres most closely and constantly to the spirit of the original, keeps the full idea of the inspired writer, and only that, as far as he could apprehend it, before him, and never steps aside to pick up any hints, however ornamented, which are not directly conveyed, or strongly implied by the apostle: so that, not merely in the text, but in the paraphrase, we find ourselves reading St. Paul himself, though in a language more accommodated to our own conception, and with an illustration which true learning, deep attention to the subject, and uncommon critical sagacity enabled him to afford us."——"The notes will abundantly recommend the work to the studious and judicious enquirer, who will find no difficulties artfully evaded, or slightly and superficially touched; no unnecessary parade of reading, though many striking proofs of the most extensive and liberal erudition." Dr. Chandler also left, in his interleaved Bible, a large number of critical notes, chiefly in Latin.

ACCOUNT OF DR. CHANDLER'S SISTER

We shall here add some particulars relative to MRS. MARY CHANDLER, sister to Dr. Chandler. She was born at Malmsbury, in Wiltshire, in 1687, and was carefully trained up in the principles of religion and virtue. As her father's circumstances rendered it necessary that she should apply herself to some business, she was brought up to the trade of a milliner. But as she had a propensity to literature, she employed her leisure hours in perusing the best modern writers, and as many as she could of the ancient ones, especially the poets, as far as the best translations could assist her. Among these Horace was her particular favourite, and she greatly regretted that she could not read him in the original. She was somewhat deformed in her person, in consequence of an accident in her childhood. This unfavourable circumstance she occasionally made a subject of her own pleasantry, and used to say, "that as her person would not recommend her, she must endeavour to cultivate her mind, to make herself agreeable." This she did with the greatest care, being an admirable œconomist of her time: and it is said, that she had so many excellent qualities in her, that though her first appearance could create no prejudice in her favour, yet it was impossible to know her without valuing and esteeming her. She thought the disadvantage of her shape was such, as gave her no reasonable prospect of being happy in the married state, and therefore chose to remain single. She had, however, an honourable offer from a worthy country gentleman, of considerable fortune, who, attracted merely by the goodness of her character, took a journey of an hundred miles to visit her at Bath, where she kept a milliner's shop, and where he paid her his addresses. But she declined his offers, and is said to have convinced him, that such a match could neither be for his happiness, nor her own. She published several poems, but that which she wrote upon Bath was the best received. It passed through several editions. She intended to have written a large poem upon the being and attributes of God, and did execute some parts of it, but did not live to finish it. It was irksome to her to be so much confined to her business, and the bustle of Bath was sometimes disagreeable to her. She often languished for more leisure and solitude; but the dictates of prudence, and a desire to be useful to her relations, whom she regarded with the warmest affection, brought her

to submit to the fatigues of her business for thirty-five years. She did, however, sometimes enjoy occasional retirements to the country seats of some of her most respectable acquaintance; and was then extremely delighted with the pleasures of solitude, and the contemplation of the works of nature. She was honoured with the esteem and regard of the Countess of Hertford, afterwards Duchess of Somerset, who several times visited her. Mr. Pope also visited her at Bath, and complimented her for her poem on that place. The celebrated Mrs. Rowe was one of her particular friends. She had the misfortune of a very valetudinary constitution, which was supposed to be, in some measure, owing to the irregularity of her form. By the advice of Dr. Cheyne, she entered into the vegetable diet, and adhered to it even to an extreme. She died on the 11th September, 1745, in the fifty-eighth year of her age, after about two days illness.

THE
HISTORY
OF
PERSECUTION.

THE INTRODUCTION.

Religion is a matter of the highest importance to every man, and therefore there can be nothing which deserves a more impartial inquiry, or which should be examined into with a more disinterested freedom; because as far as our acceptance with the Deity depends on the knowledge and practice of it, so far religion is, and must be, to us a purely personal thing; in which therefore we ought to be determined by nothing but the evidence of truth, and the rational convictions of our mind and conscience. Without such an examination and conviction, we shall be in danger of being imposed on by crafty and designing men, who will not fail to make their gain of the ignorance and credulity of those they can deceive, nor scruple to recommend to them the worst principles and superstitions, if they find them conducive or necessary to support their pride, ambition and avarice. The history of almost all ages and nations is an abundant proof of this assertion.

God himself, who is the object of all religious worship, to whom we owe the most absolute subjection, and whose actions are all guided by the discerned reason and fitness of things, cannot, as I apprehend, consistent with his own most perfect wisdom, require of his reasonable creatures the explicit belief of, or actual assent to any proposition which they do not, or cannot either wholly or partly understand; because it is requiring of them a real impossibility, no man being able to stretch his faith beyond his understanding, *i. e.* to see an object that was never present to his eyes, or to discern the agreement or disagreement of the different parts of a proposition, the terms of which he hath never heard of, or cannot possibly understand. Neither can it be supposed that God can demand from us a method of worship, of which we cannot discern some reason and fitness; because it would be to demand from us worship without understanding and

judgment, and without the concurrence of the heart and conscience, *i. e.* a kind of worship different from, and exclusive of that, which, in the nature of things, is the most excellent and best, viz. the exercise of those pure and rational affections, and that imitation of God by purity of heart, and the practice of the virtues of a good life, in which the power, substance, and efficacy of true religion doth consist. If therefore nothing can or ought to be believed, but under the direction of the understanding, nor any scheme of religion and worship to be received but what appears reasonable in itself, and worthy of God; the necessary consequence is, that every man is bound in interest and duty to make the best use he can of his reasonable powers, and to examine, without fear, all principles before he receives them, and all rites and means of religion and worship before he submits to and complies with them. This is the common privilege of human nature, which no man ought ever to part with himself, and of which he cannot be deprived by others, without the greatest injustice and wickedness.

It will, I doubt not, appear evident beyond contradiction, to all who impartially consider the history of past ages and nations, that where and whenever men have been abridged, or wholly deprived of this liberty, or have neglected to make the due and proper use of it, or sacrificed their own private judgments to the public conscience, or complimented the licensed spiritual guides with the direction of them, ignorance and superstition have proportionably prevailed; and that to these causes have been owing those great corruptions of religion, which have done so much dishonour to God, and, wherever they have prevailed, been destructive to the interests of true piety and virtue. So that instead of serving God with their reason and understanding, men have served their spiritual leaders without either, and have been so far from rendering themselves acceptable to their Maker, that they have the more deeply, it is to be feared, incurred his displeasure; because God cannot but dislike the “sacrifice of fools,” and therefore of such who either neglect to improve the reasonable powers he hath given them, or part with them in compliance to the proud, ambitious, and ungodly claims of others; which is one of the highest instances of folly that can possibly be mentioned.

I will not indeed deny, but that the appointing persons, whose peculiar office it should be to minister in the external services of public and social worship, is, when under proper regulations, of advantage to the decency and order of divine service. But then I think it of the most pernicious

consequence to the liberties of mankind, and absolutely inconsistent with the true prosperity of a nation, as well as with the interest and success of rational religion, to suffer such ministers to become the directors general of the consciences and faith of others; or publicly to assume and exercise such a power, as shall oblige others to submit to their determinations, without being convinced of their being wise and reasonable, and never to dispute their spiritual decrees. The very claim of such a power is the highest insolence, and an affront to the common sense and reason of mankind; and wherever it is usurped and allowed, the most abject slavery, both of soul and body, is almost the unavoidable consequence. For by such a submission to spiritual power, the mind and conscience is actually enslaved; and, by being thus rendered passive to the priest, men are naturally prepared for a servile subjection to the prince, and for becoming slaves to the most arbitrary and tyrannical government. And I believe it hath been generally found true by experience, that the same persons who have asserted their own power over others in matters of religion and conscience, have also asserted the absolute power of the civil magistrate, and been the avowed patrons of those admirable doctrines of passive obedience and non-resistance for the subject. Our own nation is sufficiently witness to the truth of this.

It is therefore but too natural to suspect, that the secret intention of all ghostly and spiritual directors and guides in decrying reason, the noblest gift of God, and without which even the Being of a God, and the method of our redemption by Jesus Christ, would be of no more significance to us, than to the brutes that perish, is in reality the advancement of their own power and authority over the faith and consciences of others, to which sound reason is, and ever will be an enemy: for though I readily allow the great expediency and need of divine revelation to assist us in our inquiries into the nature of religion, and to give us a full view of the principles and practices of it; yet a very small share of reason will suffice, if attended to, to let me know that my soul is my own, and that I ought not to put my conscience out to keeping to any person whatsoever, because no man can be answerable for it to the great God but myself; and that therefore the claim of dominion, whoever makes it, either over mine or any other's conscience, is mere imposture and cheat, that hath nothing but impudence or folly to support it; and as truly visionary and romantic as the imaginary power of persons disordered in their senses, and which would be of no more

significancy, and influence amongst mankind than theirs, did not either the views of ambitious men, or the superstition and folly of bigots encourage and support it.

On these accounts, it is highly incumbent on all nations, who enjoy the blessings of a limited government, who would preserve their constitution, and transmit it safe to posterity, to be jealous of every claim of spiritual power, and not to enlarge the authority and jurisdiction of spiritual men, beyond the bounds of reason and revelation. Let them have the freest indulgence to do good, and spread the knowledge and practice of true religion, and promote peace and good will amongst mankind. Let them be applauded and encouraged, and even rewarded, when they are patterns of virtue, and examples of real piety to their flocks. Such powers as these, God and man would readily allow them; and as to any other, I apprehend they have little right to them, and am sure they have seldom made a wise or rational use of them. On the contrary, numberless have been the confusions and mischiefs introduced into the world, and occasioned by the usurpers of spiritual authority. In the Christian church they have ever used it with insolence, and generally abused it to oppression, and the worst of cruelties. And though the history of such transactions can never be a very pleasing and grateful task, yet, I think, on many accounts, it may be useful and instructive; especially as it may tend to give men an abhorrence of all the methods of persecution, and put them upon their guard against all those ungodly pretensions, by which persecution hath been introduced and supported.

But how much soever the persecuting spirit hath prevailed amongst those who have called themselves Christians, yet certainly it is a great mistake to confine it wholly to them. We have instances of persons, who were left to the light of nature and reason, and never suspected of being perverted by any revelation, murdering and destroying each other on the account of religion; and of some judicially condemned to death for differing from the orthodox, *i. e.* the established idolatry of their country. And I doubt not, but that if we had as full and particular an account of the transactions of the different religious sects and parties amongst the Heathens, as we have of those amongst Christians, we should find a great many more instances of this kind, than it is easy or possible now to produce. However, there are some very remarkable ones, which I shall not wholly omit.

THE
HISTORY OF PERSECUTION.



BOOK I.
OF PERSECUTION AMONGST THE HEATHENS UPON
ACCOUNT OF RELIGION.



SECT. I.

Abraham persecuted.

There is a passage in the book of Judith^[1] which intimates to us, that the ancestors of the Jews themselves were persecuted upon account of their religion. Achior, captain of the sons of Ammon, gives Holofernes this account of the origin of that nation. “This people are descended of the Chaldeans; and they sojourned heretofore in Mesopotamia, because they would not follow the gods of their fathers, which were in the land of Chaldea; for they left the way of their ancestors, and worshipped the God of heaven, the God whom they knew. So they cast them out from the face of their gods, and they fled into Mesopotamia, and sojourned there many days.” St. Austin^[2] and Marsham^[3] both take notice of this tradition; which is farther confirmed by all the oriental historians, who, as the learned Dr. Hyde^[4] tells us, unanimously affirm, that Abraham suffered many persecutions upon the account of his opposition to the idolatry of his country; and that he was particularly imprisoned for it by Nimrod in Ur. Some of the eastern writers also tell us, that he was thrown into the fire, but that he was miraculously preserved from being consumed in it by God. This tradition also the Jews believed, and is particularly mentioned by Jonathan^[5] in his Targum upon Gen. xi. 28. “Nimrod threw Abraham into a furnace of fire, because he would not worship his idol; but the fire had no power to burn him.” So early doth persecution seem to have begun against the worshippers of the true God.



SECT. II.

Socrates persecuted amongst the Greeks, and others.

^[A]Socrates,^[6] who, in the judgment of an oracle, was the wisest man living, was persecuted by the Athenians on the account of his religion, and, when past seventy years of age, brought to a public trial, and condemned. His accusation was principally this: “That he did unrighteously and curiously search into the great mysteries of heaven and earth; that he corrupted the youth, and did not esteem the gods worshipped by the city to be really gods, and that he introduced new deities.” This last part of his accusation was undoubtedly owing to his inculcating upon them more rational and excellent conceptions of the Deity, than were allowed by the established creeds of his country, and to his arguing against the corruptions and superstitions which he saw universally practised by the Greeks. This was called corrupting the youth who were his scholars, and what, together with his superior wisdom, raised him many enemies amongst all sorts of people, who loaded him with reproaches, and spread reports concerning him greatly to his disadvantage, endeavouring thereby to prejudice the minds of his very judges against him. When he was brought to his trial, several of his accusers were never so much as named or discovered to him; so that, as he himself complained, he was, as it were, fighting with a shadow, when he was defending himself against his adversaries, because he knew not whom he opposed, and had no one to answer him. However, he maintained his own innocence with the noblest resolution and courage; shewed he was far from corrupting the youth, and openly declared that he believed the Being of a God. And, as the proof of this his belief, he bravely said to his judges; “that though he was very sensible of his danger from the hatred and malice of the people, yet that, as he apprehended, God himself had appointed him to teach his philosophy, so he should grievously offend him should he forsake his station through fear of death, or any other evil; and that for such a disobedience to the Deity, they might more justly accuse him, as not believing there were any gods:” adding, as though he had somewhat of the same blessed spirit that afterwards rested on the apostles of Christ, “that if they would dismiss him upon the condition of not teaching his philosophy any more, ‘I will obey God rather than you, and

teach my philosophy as long as I live’.” However, notwithstanding the goodness of his cause and defence, he was condemned for impiety and atheism, and ended his life with a draught of poison, dying a real martyr for God, and the purity of his worship. Thus we see that in the ages of natural reason and light, not to be orthodox, or to differ from the established religion, was the same thing as to be impious and atheistical; and that one of the wisest and best men that ever lived in the heathen world was put to death merely on account of his religion. The Athenians, indeed, afterwards repented of what they had done, and condemned one of his accusers, Melitus, to death, and the others to banishment.

I must add, in justice to the laity, that the judges and accusers of Socrates were not priests. Melitus was a poet, Anytus an artificer, and Lycon an orator; so that the prosecution was truly laic, and the priests do not appear to have had any share in his accusation, condemnation, and death. Nor, indeed, was there any need of the assistance of priestcraft in this affair, the prosecution of this excellent man being perfectly agreeable to the constitution and maxims of the Athenian government; which had, to use the words of a late reverend author,^[7] “incorporated or made religion a part of the laws of the civil community.” One of the Attic laws was to this effect: “Let it be a perpetual law, and binding at all times, to worship our national gods and heroes publicly, according to the laws of our ancestors.” So that no new gods, nor new doctrines about old gods, nor any new rites of worship, could be introduced by any person whatsoever, without incurring the penalty of this law, which was death. Thus Josephus tells us,^[8] that it was prohibited by law to teach new gods, and that the punishment ordained against those who should introduce any such, was death. Agreeably to this, the orator Isocrates,^[9] pleading in the grand council of Athens, puts them in mind of the custom and practice of their ancestors: “This was their principal care to abolish nothing they had received from their fathers in matters of religion, nor to make any addition to what they had established.” And therefore, in his advice to Nicocles, he exhorts him to be “of the same religion with his ancestors.” So that the civil establishment of religion in Athens was entirely exclusive, and no toleration whatsoever allowed to those who differed from it. On this account, the philosophers^[10] in general were, by a public decree, banished from Athens, as teaching heterodox opinions, and “corrupting the youth” in matters of religion; and, by a law, very much resembling the famous modern Schism Bill, prohibited from

being masters and teachers of schools, without leave of the senate and people, even under pain of death. This law, indeed, like the other, was but very short-lived, and Sophocles, the author of it, punished in a fine of five talents. Lysimachus^[11] also banished them from his kingdom. It is evident from these things, that, according to the Athenian constitution, Socrates was legally condemned for not believing in the gods of his country, and presuming to have better notions of the Deity than his superiors. In like manner, a certain woman,^[12] a priestess, was put to death, upon an accusation of her introducing new deities.

Diogenes Laertius^[13] tells us, that Anaxagoras, the philosopher, was accused of impiety, because he affirmed, that “the sun was a globe of red-hot iron;” which was certainly great heresy, because his country worshipped him as a god. Stilpo^[14] was also banished his country, as the same writer tells us, because he denied “Minerva to be a god, allowing her only to be a goddess.” A very deep and curious controversy this, and worthy the cognizance of the civil magistrate. Diagoras^[15] was also condemned to death, and a talent decreed to him that should kill him upon his escape, being accused of “deriding the mysteries of the gods.” Protagoras also would have suffered death, had he not fled his country, because he had written something about the gods, that differed from the orthodox opinions of the Athenians. Upon the same account, Theodorus, called Atheus, and Theotimus,^[16] who wrote against Epicurus, being accused by Zeno, an Epicurean, were both put to death.

The Lacedemonians^[17] constantly expelled foreigners, and would not suffer their own citizens to dwell in foreign parts, because they imagined that both the one and the other tended to corrupt and weaken their own laws; nor would they suffer the teaching of rhetoric or philosophy, because of the quarrels and disputes that attended it. The Scythians, who delighted in human blood, and were, as Josephus says,^[18] little different from beasts, yet were zealously tenacious of their own rites, and put Anacharsis, a very wise person, to death, because he seemed to be very fond of the Grecian rites and ceremonies. ^[D]Herodotus^[19] says, that he was shot through the heart with an arrow, by Saulius their king, for sacrificing to the mother of the gods after the manner of the Grecians; and that Scyles, another of their kings, was deposed by them, for sacrificing to Bacchus, and using the Grecian ceremonies of religion, and his head afterwards cut off by Octamasades, who was chosen king in his room. “So rigid were they,” says

the historian,^[20] “in maintaining their own customs, and so severe in punishing the introducers of foreign rites.” Many also amongst the Persians^[21] were put to death, on the same account. And, indeed, it was almost the practice of all nations to punish those who disbelieved or derided their national gods; as appears from Timocles, who, speaking of the gods of the Egyptians,^[22] says, “How shall the ibis, or the dog, preserve me?” And then adds, “Where is the place that doth not immediately punish those who behave impiously towards the gods, such as are confessed to be gods?”



SECT. III.
Egyptian persecutions.

Juvenal^[23] gives us a very tragical account of some disputes and quarrels about religion amongst the Egyptians, who entertained an eternal hatred and enmity against each other, and eat and devoured one another, because they did not all worship the same god.

“^[24]Ombos and Tentyr, neighbouring towns, of late,
Broke into outrage of deep fester'd hate.
Religious spite and pious spleen bred first
This quarrel, which so long the bigots nurst.
Each calls the other's god a senseless stock,
His own, divine, tho' from the self-same block.
At first both parties in reproaches jar,
And make their tongues the trumpets of the war.
Words serve but to inflame the warlike lists,
Who wanting weapons clutch their horny fists.
Yet thus make shift t' exchange such furious blows,
Scarce one escapes with more than half a nose.
Some stand their ground with half their visage gone,
But with the remnant of a face fight on.
Such transform'd spectacles of horror grow,
That not a mother her own son would know,
One eye remaining for the other spies,
Which now on earth a trampled gelly lies.”

All this religious zeal hitherto is but mere sport and childish play, and therefore they piously proceed to farther violences; to hurling of stones, and throwing of arrows, till one party routs the other, and the conquerors feast themselves on the mangled bodies of their divided captives.

“Yet hitherto both parties think the fray
But mockery of war, mere children’s play.
This whets their rage, to search for stones——
An Ombite wretch (by headlong strait betray’d,
And falling down i’t’h’ rout) is prisoner made.
Whose flesh torn off by lumps the ravenous foe
In morsels cut, to make it farther go.
His bones clean pick’d, his very bones they gnaw;
No stomach’s balk’d, because the corps is raw.
T’ had been lost time to dress him: keen desire
Supplies the want of kettle, spit, and fire.”

Plutarch^[25] also relates, that in his time some of the Egyptians who worshipped a dog, eat one of the fishes, which others of the Egyptians adored as their deity; and that upon this, the fish eaters laid hold on the other’s dogs, and sacrificed and eat them; and that this gave occasion to a bloody battle, in which a great number were destroyed on both sides.



SECT. IV.

Persecutions by Antiochus Epiphanes.

Antiochus Epiphanes, though a very wicked prince, yet was a great zealot for his religion, and endeavoured to propagate it by all the methods of the most bloody persecution. Josephus^[26] tells us, that after he had taken Jerusalem, and plundered the temple, he caused an altar to be built in it, upon which he sacrificed swine, which were an abomination to the Jews, and forbidden by their laws. Not content with this, he compelled them to forsake the worship of the true God, and to worship such as he accounted deities; building altars and temples to them in all the towns and streets, and offering swine upon them every day. He commanded them to forbear circumcising their children, grievously threatening such as should disobey his orders. He also appointed overseers, or bishops, to compel the Jews to come in, and do as he had ordered them. Such as rejected it, were continually persecuted, and put to death, with the most grievous tortures. He ordered them to be cruelly scourged, and their bodies to be tore, and, before they expired under their tortures, to be crucified. The women, and the children which they circumcised, were, by his command, hanged; the children hanging from the necks of their crucified parents. Wherever he found any of the sacred books, or of the law, he destroyed them, undoubtedly to prevent the propagation of heretical opinions, and punished with death such as kept them. The same author tells us also, in his History of the Maccabees, that Antiochus put forth an edict, whereby he made it death for any to observe the Jewish religion, and compelled them, by tortures, to abjure it. The inhuman barbarities he exercised upon Eleazar and the Maccabees, because they would not renounce their religion, and sacrifice to his Grecian gods, are not, in some circumstances, to be paralleled by any histories of persecution extant; and will ever render the name and memory of that illustrious tyrant execrable and infamous. It was on the same religious account that he banished the philosophers^[27] from all parts of his kingdom; the charge against them being, “their corrupting the youth,” *i. e.* teaching them notions of the gods, different from the common orthodox opinions which were established by law; and commanded Phantias, that such youths as conversed with them should be hanged.

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SECT. V.

Persecutions under the Romans.

The very civil constitution of Rome was founded upon persecuting principles. ^[B]Tertullian^[28] tells us, “that it was an ancient decree that no emperor should consecrate a new god, unless he was approved by the senate;” and one of the standing laws of the republic was to this effect, as Cicero^[29] gives it: “that no one should have separately new gods, no nor worship privately foreign gods, unless admitted by the commonwealth.” This law he endeavours to vindicate by reason and the light of nature, by adding, ^[30] “that for persons to worship their own, or new, or foreign gods, would be to introduce confusion and strange ceremonies in religion.” So true a friend was this eminent Roman, and great master of reason, to uniformity of worship; and so little did he see the equity, and indeed necessity of an universal toleration in matters of religion. Upon this principle, after he had reasoned well against the false notions of God that had obtained amongst his countrymen, and the public superstitions of religion, he concludes with what was enough to destroy the force of all his arguments:^[31] “It is the part of a wise man to defend the customs of his ancestors, by retaining their sacred rites and ceremonies.” Thus narrow was the foundation of the Roman religion, and thus inconsistent the sentiments of the wisest heathens with all the principles of toleration and universal liberty.

And agreeable to this settlement they constantly acted. A remarkable instance of which we have in Livy, the Roman historian; he tells us, ^[32] “that such a foreign religion spread itself over the city, that either men or the gods seemed entirely changed; that the Roman rites were not only forsaken in private, and within the houses, but that even publicly, in the forum and capitol, great numbers of women flocked together, who neither sacrificed nor prayed to the gods, according to the manner of their ancestors.—This first excited the private indignation of good men, till at length it reached the fathers, and became a public complaint. The senate greatly blamed the Ædiles and capital Triumvirs, that they did not prohibit them; and when they endeavoured to drive away the multitude from the forum, and to throw down the things they had provided for performing their sacred rites, they

were like to be torn in pieces. And when the evil grew too great to be cured by inferior magistrates, the senate ordered M. Atilius, the prætor of the city, to prevent the people's using these religions." He accordingly published this decree of the senate, that "whoever had any fortune-telling books, or prayers, or ceremonies about sacrifices written down, they should bring all such books and writings to him, before the calends of April; and that no one should use any new or foreign rite of sacrificing in any public or sacred place."

Mecenas,^[33] in his Advice to Augustus, says to him: "Perform divine worship in all things exactly according to the custom of your ancestors, and compel others to do so also; and as to those who make any innovations in religion, hate and punish them; and that not only for the sake of the gods, but because those who introduce new deities, excite others to make changes in civil affairs. Hence conspiracies, seditions, and riots, things very dangerous to government." Accordingly Suetonius, in his life of this prince,^[34] gives him this character: "that though he religiously observed the ancient prescribed ceremonies, yet he contemned all other foreign ones; and commended Caius, for that passing by Judea, he would not pay his devotions at Jerusalem." He also, as the same author tells us,^[35] made a law, very much resembling our test act, by which he commanded, "that before any of the senators should take their places in council, they should offer frankincense and wine upon the altar of that god in whose temple they met." It was no wonder therefore that Christianity, which was so perfectly contrary to the whole system of pagan theology, should be looked upon with an evil eye; or that when the number of Christians increased, they should incur the displeasure of the civil magistrate, and the censure of the penal laws that were in force against them.

The first public persecution of them by the Romans was begun by that monster of mankind, Nero; who to clear himself of the charge of burning Rome, endeavoured to fix the crime on the Christians; and having thus falsely and tyrannically made them guilty, he put them to death by various methods of exquisite cruelty. But though this was the pretence for this barbarity towards them, yet it evidently appears from undoubted testimonies, that they were before hated upon account of their religion, and were therefore fitter objects to fall a sacrifice to the resentment and fury of the tyrant. For ^[C]Tacitus tells us,^[36] "that they were hated for their crimes." And what these were, he elsewhere sufficiently informs us, by calling their

religion “an execrable superstition.” In like manner Suetonius, in his life of Nero, speaking of the Christians, says, “they were a set of men who had embraced a new and accursed superstition.” And therefore Tacitus farther informs us,^[37] that those who confessed themselves Christians, “were condemned, not so much for the crime of burning the city, as for their being hated by all mankind.” So that it is evident from these accounts, that it was through popular hatred of them for their religion, that they were thus sacrificed to the malice and fury of Nero. Many of them he dressed up in the skins of wild beasts, that they might be devoured by dogs. Others he crucified. Some he cloathed in garments of pitch and burnt them, that by their flames he might supply the absence of the day-light.

The persecution begun by Nero was revived, and carried on by Domitian, who put some to death, and banished others upon account of their religion. Eusebius mentions Flavia Domitilla,^[38] neice to Flavius Clemens, then consul, as banished for this reason to the island Pontia. Dion the historian’s account of this affair is somewhat different. He tells us,^[39] “that Fabius Clemens, the consul, Domitian’s cousin, who had married Flavia Domitilla, a near relation of Domitian, was put to death by him, and Domitilla banished to Pandataria, being both accused of atheism; and that on the same account many who had embraced the Jewish rites were likewise condemned, some of whom were put to death, and others had their estates confiscated.” I think this account can belong to no other but the Christians, whom Dion seems to have confounded with the Jews; a mistake into which he and others might naturally fall, because the first Christians were Jews, and came from the land of Judea. The crime with which these persons were charged, was atheism; the crime commonly imputed to Christians, because they refused to worship the Roman deities. And as there are no proofs, that Domitian ever persecuted the Jews upon account of their religion, nor any intimation of this nature in Josephus, who finished his Antiquities towards the latter end of Domitian’s reign; I think the account of Eusebius, which he declares he took from writers, who were far from being friends to Christianity, is preferable to that of Dion’s; and that therefore these persecutions by Domitian were upon account of Christianity. However, they did not last long; for as Eusebius tells us,^[40] he put a stop to them by an edict in their favour. Tertullian^[41] also affirms the same; and adds, that he recalled those whom he had banished. So that though this is reckoned by ecclesiastical writers as the second persecution, it doth not appear to have

been general, or very severe. Domitian^[42] also expelled all the philosophers from Rome and Italy.

Under Trajan, otherwise a most excellent prince, began the third persecution, in the 14th year of his reign. In answer to a letter of Pliny, he ordered: “that the Christians should not be sought after, but that if they were accused and convicted of being Christians they should be punished; such only excepted as should deny themselves to be Christians, and give an evident proof of it by worshipping his gods.” These were to receive pardon upon their repentance, how much soever they might have been suspected before. From this imperial rescript it is abundantly evident, that this persecution of the Christians by Trajan was purely on the score of their religion, because he orders, that whosoever was accused and convicted of being a Christian should be punished with death, unless he renounced his profession, and sacrificed to the gods. All that was required, says Tertullian,^[43] was “merely to confess the name, without any cognizance being taken of any crime.” Pliny himself, in his letter to the emperor, acquits them of every thing of this nature, and tells him, “that all they acknowledged was, that their whole crime or error consisted in this, that at stated times they were used to meet before day-light, and to sing an hymn to Christ as God; and that they bound themselves by an oath not to commit any wickedness, such as thefts, robberies, adulteries, and the like.” And to be assured of the truth of this, he put two maids to the torture, and after examining them, found them guilty of nothing but “a wicked and unreasonable superstition.” This is the noblest vindication of the purity and innocency of the Christian assemblies, and abundantly justifies the account of Eusebius,^[44] from Hegesippus: “that the church continued until these times as a virgin pure and uncorrupted;” and proves beyond all contradiction, that the persecution raised against them was purely on a religious account, and not for any immoralities and crimes against the laws, that could be proved against the Christians; though their enemies slandered them with the vilest, and hereby endeavoured to render them hateful to the whole world. “Why,” says Tertullian,^[45] “doth a Christian suffer, but for being of their number? Hath any one proved incest, or cruelty upon us, during this long space of time? No; it is for our innocence, probity, justice, chastity, faith, veracity, and for the living God that we are burnt alive.” Pliny was forced to acquit them from every thing but “an unreasonable superstition,” *i. e.* their resolute adherence to the faith of Christ. And yet, though innocent in all other

respects, when they were brought before his tribunal, he treated them in this unrighteous manner: he only asked them, whether they were Christians? If they confessed it, he asked them the same question again and again, adding threatenings to his questions. If they persevered in their confession, he condemned them to death, because whatever their confession might be, he was very sure, “that their stubbornness and inflexible obstinacy deserved punishment.” So that without being convicted of any crime, but that of constancy in their religion, this equitable heathen, this rational philosopher, this righteous judge, condemns them to a cruel death. And for this conduct the emperor, his master, commends him. For in answer to Pliny’s question, “Whether he should go on to punish the name itself, though chargeable with no crimes, or the crimes only which attended the name?” Trajan in his rescript, after commending Pliny, orders, “that if they were accused and convicted of being Christians, they should be put to death, unless they renounced that name, and sacrificed to his gods.” Tertullian and Athenagoras, in their Apologies, very justly inveigh with great warmth against this imperial rescript; and indeed, a more shameful piece of iniquity was never practised in the darkest times of popery. I hope also my reader will observe, that this was lay-persecution, and owed its rise to the religious zeal of one of the best of the Roman emperors, and not only to the contrivances of cruel and designing priests; that it was justified and carried on by a very famous and learned philosopher, whose reason taught him, that what he accounted superstition, if incurable, was to be punished with death; and that it was managed with great fury and barbarity, multitudes of persons in the several provinces being destroyed merely on account of the Christian name, by various and exquisite methods of cruelty.

The rescript of Adrian, his successor, to Minutius Fundanus, pro-consul of Asia, seems to have somewhat abated the fury of this persecution, though not wholly to have put an end to it. Tertullian tells us^[46] that Arrius Antoninus, afterwards emperor, then pro-consul of Asia, when the Christians came in a body before his tribunal, ordered some of them to be put to death; and said to others: “You wretches! If you will die, ye have precipices and halters.” He also says, that several other governors of provinces punished some few Christians, and dismissed the rest; so that the persecution was not so general, nor severe as under Trajan.

Under Antoninus Pius the Christians were very cruelly treated in some of the provinces of Asia, which occasioned Justin Martyr to write his first

Apology. It doth not, however, appear to have been done, either by the order or consent of this emperor. On the contrary, he wrote letters to the cities of Asia, and particularly to those of Larissa, Thessalonica, Athens, and all the Greeks, that they should create no new troubles to them. It is probable, that the Asiatic cities persecuted them by virtue of some former imperial edicts, which do not appear ever to have been recalled; and, perhaps, with the connivance of Antoninus Philosophus, the colleague and successor of Pius in the empire.

Under him began, as it is generally accounted, the fourth persecution, upon which Justin Martyr wrote his second Apology, Meliton his, and Athenagoras his Legation or Embassy for the Christians. Meliton, as Eusebius relates it,^[47] complains of it as “an almost unheard of thing, that pious men were now persecuted, and greatly distressed by new decrees throughout Asia; that most impudent informers, who were greedy of other persons’ substance, took occasion from the imperial edicts, to plunder others who were entirely innocent.” After this he humbly beseeches the emperor, that he would not suffer the Christians to be any longer used in so cruel and unrighteous a manner. ^[E]Justin Martyr,^[48] in the account he gives of the martyrdom of Ptolemæus, assures us, that the only question asked him was, “whether he was a Christian?” And upon his confession that he was, he was immediately ordered to the slaughter. Lucius was also put to death for making the same confession, and asking Urbicus the prefect, why he condemned Ptolemy, who was neither convicted of adultery, rape, murder, theft, robbery, nor of any other crime, but only for owning himself to be a Christian. From these accounts it is abundantly evident, that it was still the very name of a Christian that was made capital; and that these cruelties were committed by an emperor who was a great master of reason and philosophy; not as punishments upon offenders against the laws and public peace, but purely for the sake of religion and conscience; committed, to maintain and propagate idolatry, which is contrary to all the principles of reason and philosophy, and upon persons of great integrity and virtue in heart and life, for their adherence to the worship of one God, which is the foundation of all true religion, and one of the plainest and most important articles of it. The tortures which the persecutors of the Christians applied, and the cruelties they exercised on them, enough, one would think, to have overcome the firmest human resolution and patience, could never extort from them a confession of that guilt their enemies would gladly have fixed

on them. And yet innocent as they were in all respects, they were treated with the utmost indignity, and destroyed by such inventions of cruelty, as were abhorrent to all the principles of humanity and goodness. They were, indeed, accused of atheism, *i. e.* for not believing in, and worshipping the fictitious gods of the heathens. This was the cry of the multitude against [F]Polycarp:^[49] “This is the doctor of Asia, the father of the Christians, the subverter of our gods, who teaches many that they must not perform the sacred rites, nor worship our deities.” This was the reason of the tumultuous cry against him, “away with these atheists.” But would not one have imagined that reason and philosophy should have informed the emperor, that this kind of atheism was a real virtue, and deserved to be encouraged and propagated amongst mankind? No: reason and philosophy here failed him, and his blind attachment to his country’s gods caused him to shed much innocent blood, and to become the destroyer of “the saints of the living God.”^[50] At last, indeed, the emperor seems to have been sensible of the great injustice of this persecution, and by an edict ordered they should be no longer punished for being Christians.

I shall not trouble my reader with an account of this persecution as carried on by Severus, Decius, Gallus, Valerianus, Dioclesian, and others of the Roman emperors; but only observe in general, that the most excessive and outrageous barbarities were made use of upon all who would not blaspheme Christ, and offer incense to the imperial gods: they were publicly whipped; drawn by the heels through the streets of cities; racked till every bone of their bodies was disjointed; had their teeth beat out; their noses, hands and ears cut off; sharp pointed spears ran under their nails; were tortured with melted lead thrown on their naked bodies; had their eyes dug out; their limbs cut off; were condemned to the mines; ground between stones; stoned to death; burnt alive; thrown headlong from high buildings; beheaded; smothered in burning lime-kilns; ran through the body with sharp spears; destroyed with hunger, thirst, and cold; thrown to the wild beasts; broiled on gridirons with slow fires; cast by heaps into the sea; crucified; scraped to death with sharp shells; torn in pieces by the boughs of trees; and, in a word, destroyed by all the various methods that the most diabolical subtlety and malice could devise.

It must indeed be confessed, that under the latter emperors who persecuted the Christians, the simplicity and purity of the Christian religion were greatly corrupted, and that ambition, pride and luxury, had too

generally prevailed both amongst the pastors and people. ^[G]Cyprian, who lived under the Decian persecution, writing concerning it to the presbyters and deacons, ^[51] says: “It must be owned and confessed, that this outrageous and heavy calamity, which hath almost devoured our flock, and continues to devour it to this day, hath happened to us because of our sins, since we keep not the way of the Lord, nor observe his heavenly commands given to us for our salvation. Though our Lord did the will of his Father, yet we do not the will of the Lord. Our principal study is to get money and estates; we follow after pride; we are at leisure for nothing but emulation and quarrelling; and have neglected the simplicity of the faith. We have renounced this world in words only, and not in deed. Every one studies to please himself, and to displease others.” After Cyprian, Eusebius the historian gives a sad account of the degeneracy of Christians, about the time of the Dioclesian persecution: he tells us, ^[52] “That through too much liberty they grew negligent and slothful, envying and reproaching one another; waging, as it were, civil wars between themselves, bishops quarrelling with bishops, and the people divided into parties: that hypocrisy and deceit were grown to the highest pitch of wickedness; that they were become so insensible, as not so much as to think of appeasing the divine anger, but that, like atheists, they thought the world destitute of any providential government and care, and thus added one crime to another; that the bishops themselves had thrown off all care of religion, were perpetually contending with one another, and did nothing but quarrel with, and threaten, and envy, and hate one another; were full of ambition, and tyrannically used their power.” This was the deplorable state of the Christian church, which God, as Eusebius well observes, first punished with a gentle hand; but when they grew hardened and incurable in their vices, he was pleased to let in the most grievous persecution upon them, under Dioclesian, which exceeded in severity and length all that had been before.

From these accounts it evidently appears, that the Christian world alone is not chargeable with the guilt of persecution on the score of religion. It was practised long before Christianity was in being, and first taught the Christians by the persecuting heathens. The most eminent philosophers espoused and vindicated persecuting principles; and emperors, otherwise excellent and good, made no scruple of destroying multitudes on a religious account, such as Trajan, and Aurelius Verus. And I think I may farther add, that the method of propagating religion by cruelty and death, owes its

invention to lay policy and craft; and that how servilely soever the priesthood hath thought fit to imitate them, yet that they have never exceeded them in rigour and severity. I can trace out the footsteps but of very few priests in the foregoing accounts; nor have I ever heard of more excessive cruelties than those practised by Antiochus, the Egyptian heretic eaters, and the Roman emperors. I may farther add on this important article, that it is the laity who have put it in the power of the priests to persecute, and rendered it worth their while to do it; they have done it by the authority of the civil laws, as well as employed lay hands to execute the drudgery of it. The emoluments of honours and riches that have been annexed to the favourite religion and priesthood is the establishment of civil society, whereby religion hath been made extremely profitable, and the “gains of godliness” worth contending for. Had the laity been more sparing in their grants, and their civil constitutions formed upon the generous and equitable principle of an universal toleration, persecution had never been heard of amongst men. The priests would have wanted not only the power, but the inclination to persecute; since few persons have such an attachment either to what they account religion or truth, as to torment and destroy others for the sake of it, unless tempted with the views of worldly ambition, power and grandeur. These views will have the same influence upon all bad minds, whether of the priesthood or laity, who, when they are determined at all hazards to pursue them, will use all methods, right or wrong, to accomplish and secure them.

As, therefore, the truth of history obliges me to compliment the laity with the honour of this excellent invention, for the support and propagation of religion; and as its continuance in the world to this day is owing to the protection and authority of their laws, and to certain political ends and purposes they have to serve thereby; the loading the priesthood only, or principally, with the infamy and guilt of it, is a mean and groundless scandal; and to be perpetually objecting the cruelties that have been practised by some who have called themselves Christians, on others for conscience-sake, as an argument against the excellency of the Christian religion, or with a view to prejudice others against it, is an artifice unworthy a person of common understanding and honesty. Let all equally share the guilt, who are equally chargeable with it; and let principles be judged of by what they are in themselves, and not by the abuses which bad men may make of them. If any argument can be drawn from these, we may as well

argue against the truth and excellency of philosophy, because Cicero espoused the principles of persecution, and Antoninus the philosopher authorized all the cruelties attending it. But the question in these cases is not, what one who calls himself a philosopher or a Christian doth, but what true philosophy and genuine Christianity lead to and teach; and if persecution be the natural effect of either of them, it is neither in my inclination or intention to defend them.



SECT. VI.
Persecutions by the Mahometans.

It may be thought needless to bring the Mahometans into this reckoning, it being well known that their avowed method of propagating religion is by the sword; and that it was a maxim of Mahomet, “not to suffer two religions to be in Arabia.” But this is not all; as they are enemies to all other religions but their own, so they are against toleration of heretics amongst themselves, and have oftentimes punished them with death. ^[H]Hottinger^[53] gives us an account of a famous dispute amongst them concerning the Coran, whether it was “the created” or “uncreated word of God?” Many of their califfs were of opinion that it was created, and issued their orders that the Musselmen should be compelled to believe it.^[54] And as for those who denied it, many were whipped; others put in chains; and others murdered. Many, also, were slain, for not praying in a right posture towards the temple at Mecca.^[55] The same author farther tells us, that there are some heretics, who, whenever they are found, are burnt to death. The enmity between the Persians and Turks,^[56] upon account of their religious difference, is irreconcilable and mortal; so that they would, each of them, rather tolerate a Christian than one another. But I pass from these things to the history of Christian persecution.

1. Cap. 5. v. 6, &c.

2. De civit. Dei, l. 16. c. 13.

3. Marsh. Cron. § 5..fn-

4. De Relig. Pers. c. 2.

5. Hotting. Smeg. Orient. p. 290, &c.

A. See note [A] at the end of the volume.

6. Plat. in Apolog. pro Socrate. Diog. Laert. in vit. Soc.

7. Dr. Rogers's Vindication of the Civil Establishment, &c.
8. Cont. Apion. l. 2. c. 37. Edit. Havere.
9. Isoc. Areop.
10. Athen. p. 610. Edit. Casaub. Diog. Laert. l. 5. Segm. 38.
11. Athen. p. 610.
12. Jos. ibid.
13. In vit. Anax.
14. l. 5. c. 38.
15. Joseph. ibid. Athen. p. 611.
16. Athen. ibid.
17. Joseph. ibid. § 36. Athen. ibid.
18. Joseph. § 37.
- D. See note [D] at the end of the volume.
19. Herodot. Melpom. p. 246. Edit. Gronov.
20. Id. p. 248.
21. Joseph. ibid.
22. Athen. p. 300.
23. Satyr. 15. See also Joseph. cont. Ap. l. 2. § 6.
24. Englished by Mr. Dryden, &c.
25. De Isid. et Osir. p. 380. Edit. Franc.

26. Antiq. Jud. l. 12. c. 5.

27. Athen. l. 12. c. 12.

B. See note [B] at the end of the volume.

28. Apol. c. 2.

29. De Leg. l. 2.

30. De Leg. l. 2. c. 10.

31. De Divin. l. 2. fin.

32. Lib. 25 c. 1

33. Apud Dion. Cassium, l. 52.

34. Vit. Aug. c. 93.

35. Ibid. c. 35.

C. See note [C] at the end of the volume.

36. Annal. l. 15. c. 44. Ibid. cap. 16.

37. Annal. l. 15. c. 44.

38. E. H. l. 3. c. 17, 18.

39. l. 67, in Domit.

40. E. H. l. 3. c. 20.

41. Apol. c. 5.

42. Suet. in vit. Domit. c. 10.

43. Apol. c. 2.

44. E. H. l. 3. c. 32.

45. Ad Scapul.

46. Ad Scap.

47. E. H. l. 4. C. 26.

E. See note [E] at the end of the volume.

48. Apol. 2^{da}. c. 42. Edit. Thirlb.

F. See note [F] at the end of the volume.

49. Euseb. E. H. l. 4. c. 15.

50. Id. l. 4. c. 18.

G. See note [G] at the end of the volume.

51. Epist. xi. Ed. Fell.

52. E. H. l. 8. c. 1.

H. See note [H] at the end of the volume.

53. Histor. Orient. p. 252.

54. Pag. 362.

55. Pag. 366.

56. Ibid.

BOOK II. OF THE PERSECUTIONS UNDER THE CHRISTIAN EMPERORS.

If any person was to judge of the nature and spirit of the Christian religion, by the spirit and conduct only of too many who have professed to believe it in all nations, and almost throughout all ages of the Christian church, he could scarce fail to censure it as an institution unworthy the God of order and peace, subversive of the welfare and happiness of societies, and designed to enrich and aggrandize a few only, at the expence of the liberty, reason, consciences, substance, and lives of others. For what confusions and calamities, what ruins and desolations, what rapines and murders, have been introduced into the world, under the “pretended authority” of Jesus Christ, and supporting and propagating Christianity? What is the best part of our ecclesiastical history, better than an history of the pride and ambition, the avarice and tyranny, the treachery and cruelty of some, and of the persecutions and dreadful miseries of others? And what could an unprejudiced person, acquainted with this melancholy truth, and who had never seen the sacred records, nor informed himself from thence of the genuine nature of Christianity, think, but that it was one of the worst religions in the world, as tending to destroy all natural sentiments of humanity and compassion, and inspiring its votaries with that “wisdom which is from beneath,” and which is “earthly, sensual, and devilish!” If this charge could be justly fixed upon the religion of Christ, it would be unworthy the regard of every wise and good man, and render it both the interest and duty of every nation in the world to reject it.



SECT. I.
Of the dispute concerning Easter.

It must be allowed by all who know any thing of the progress of the Christian religion, that the first preachers and propagators of it, used none of the vile methods of persecution and cruelty to support and spread it. Both their doctrines and lives destroy every suspicion of this nature; and yet in their times the beginnings of this spirit appeared: “Diotrephes loved the pre-eminence,” and, therefore, would not own and receive the inspired apostle. We also read, that there were great divisions and schisms in the church of Corinth, and that many grievous disorders were caused therein, by their ranking themselves under different leaders and heads of parties, one being for Paul, another for Apollos, and others for Cephas. These animosities were with difficulty healed by the apostolic authority; but do not, however, appear to have broken out into mutual hatreds, to the open disgrace of the Christian name and profession. The primitive Christians seem for many years generally to have maintained the warmest affection for each other, and to have distinguished themselves by their mutual love, the great characteristic of the disciples of Christ. The gospels, and the epistles of the apostles, all breathe with this amiable spirit, and abound with exhortations to cultivate this God-like disposition. It is reported of St. John,^[57] that in his extreme old age at Ephesus, being carried into the church by the disciples, upon account of his great weakness, he used to say nothing else, every time he was brought there, but this remarkable sentence, “Little children, love one another.” And when some of the brethren were tired with hearing so often the same thing, and asked him, “Sir, why do you always repeat this sentence?” he answered, with a spirit worthy an apostle, “It is the command of the Lord, and the fulfilling of the law.” Precepts of this kind so frequently inculcated, could not but have a very good influence in keeping alive the spirit of charity and mutual love. And, indeed, the primitive Christians were so very remarkable for this temper, that they were taken notice of on this very account, and recommended even by their enemies as patterns of beneficence and kindness.

But at length, in the second century, the spirit of pride and domination appeared publicly, and created great disorders and schisms amongst

Christians. There had been a controversy of some standing, on what day Easter should be celebrated. The Asiatic churches thought that it ought to be kept on the same day on which the Jews held the passover, the fourteenth day of Nisan, their first month, on whatsoever day of the week it should fall out. The custom of other churches was different, who kept the festival of Easter only on that Lord's day which was next after the fourteenth of the moon. This controversy appears at first view to be of no manner of importance, as there is no command in the sacred writings to keep this festival at all, much less specifying the particular day on which it should be celebrated. Eusebius tells us^[58] from Irenæus, that Polycarp, bishop of Smyrna, came to Anicetus, bishop of Rome, on account of this very controversy; and that though they differed from one another in this and some other lesser things, yet they embraced one another with a kiss of peace; Polycarp neither persuading Anicetus to conform to his custom, nor Anicetus breaking off communion with Polycarp, for not complying with his. This was a spirit and conduct worthy these Christian bishops: but Victor, the Roman prelate, acted a more haughty and violent part; for after he had received the letters of the Asiatic bishops, giving their reasons for their own practice, he immediately excommunicated all the churches of Asia, and those of the neighbouring provinces, for heterodoxy; and by his letters declared all the brethren unworthy of communion. This conduct was greatly displeasing to some other of the bishops, who exhorted him to mind the things that made for peace, unity, and Christian love. ^[1]Irenæus especially, in the name of all his brethren, the bishops of France, blamed him for thus censuring whole churches of Christ, and puts him in mind of the peaceable spirit of several of his predecessors, who did not break off communion with their brethren upon account of such lesser differences as these. Indeed, this action of pope Victor was a very insolent abuse of excommunication; and is an abundant proof that the simplicity of the Christian faith was greatly departed from; in that, heterodoxy and orthodoxy were made to depend on conformity or non-conformity to the modes and circumstances of certain things, when there was no shadow of any order for the things themselves in the sacred writings; and that the lust of power, and the spirit of pride, had too much possessed some of the bishops of the Christian church. The same Victor also excommunicated one Theodosius, for being unsound in the doctrine of the Trinity.^[59]

However, it must be owned, in justice to some of the primitive fathers, that they were not of Victor's violent and persecuting spirit. Tertullian, who flourished under Severus, in his book to Scapula, tells us, "Every one hath a natural right to worship according to his own persuasion; for no man's religion can be hurtful or profitable to his neighbour; nor can it be a part of religion to compel men to religion, which ought to be voluntarily embraced, and not through constraint." Cyprian, also, agrees with Tertullian his master. In his letter to Maximus^[60] the presbyter, he says, "It is the sole prerogative of the Lord, to whom the iron rod is committed, to break the earthen vessels. The servant cannot be greater than his lord; nor should any one arrogate to himself, what the Father hath committed to the Son only, viz. to winnow and purge the floor, and separate, by any human judgment, the chaff from the wheat. This is proud obstinacy and sacrilegious presumption, and proceeds from wicked madness. And, whilst some are always assuming to themselves more dominion than is consistent with justice, they perish from the church; and whilst they insolently extol themselves, they lose the light of truth, being blinded by their own haughtiness." To these I shall add Lactantius,^[61] though forty years later than Cyprian. "They are convinced," says he, "that there is nothing more excellent than religion, and therefore think that it ought to be defended with force. But they are mistaken, both in the nature of religion, and in the proper methods to support it: for religion is to be defended, not by murder, but persuasion; not by cruelty, but patience; not by wickedness, but faith. Those are the methods of bad men; these of good. If you attempt to defend religion by blood, and torments, and evil, this is not to defend, but to violate and pollute it: for there is nothing should be more free than the choice of our religion; in which, if the consent of the worshipper be wanting, it becomes entirely void and ineffectual. The true way, therefore, of defending religion, is by faith, a patient suffering and dying for it: this renders it acceptable to God, and strengthens its authority and influence." This was the persuasion of some of the primitive fathers: but of how different a spirit were others!

As the primitive Christians had any intervals from persecution, they became more profligate in their morals, and more quarrelsome in their tempers. As the revenues of the several bishops increased, they grew more ambitious, less capable of contradiction, more haughty and arrogant in their behaviour, more envious and revengeful in every part of their conduct, and more regardless of the simplicity and gravity of their profession and

character. The accounts I have before given of them from Cyprian and Eusebius before the Dioclesian persecution, to which I might add the latter one of St. Jerom,^[62] are very melancholy and affecting, and shew how vastly they were degenerated from the piety and peaceable spirit of many of their predecessors, and how ready they were to enter into the worst measures of persecution, could they but have got the opportunity and power.



SECT. II.

Of the persecutions begun by Constantine.

Under Constantine the emperor, when the Christians were restored to full liberty, their churches rebuilt, and the imperial edicts every where published in their favour, they immediately began to discover what spirit they were of; as soon as ever they had the temptations of honour and large revenues before them. Constantine's letters are full proof of the jealousies and animosities that reigned amongst them.^[63] In his letters to Miltiades, bishop of Rome, he tells him, that he had been informed that Cæcilianus, bishop of Carthage, had been accused of many crimes by some of his colleagues, bishops of Africa; and that it was very grievous to him to see so great a number of people divided into parties, and the bishops disagreeing amongst themselves.^[64] And though the emperor was willing to reconcile them by a friendly reference of the controversy to Miltiades and others; yet, in spite of all his endeavours, they maintained their quarrels and factious opposition to each other, and through secret grudges and hatred would not acquiesce in the sentence of those he had appointed to determine the affair. So that, as he complained to Chrestus bishop of Syracuse, those who ought to have maintained a brotherly affection and peaceable disposition towards each other, did in a scandalous and detestable manner separate from one another, and gave occasion to the common enemies of Christianity to deride and scoff at them. For this reason, he summoned a council to meet at Arles in France, that after an impartial hearing of the several parties, this controversy, which had been carried on for a long while in a very intemperate manner, might be brought to a friendly and Christian compromise. ^[J]Eusebius^[65] farther adds, that he not only called together councils in the several provinces upon account of the quarrels that arose amongst the bishops, but that he himself was present in them, and did all he could to promote peace amongst them. However, all he could do had but little effect; and it must be owned that he himself greatly contributed to prevent it, by his large endowment of churches, by the riches and honours which he conferred on the bishops, and especially by his authorizing them to sit as judges upon the consciences and faith of others; by which he confirmed them in a worldly spirit, the spirit of domination, ambition, pride,

and avarice, which hath in all ages proved fatal to the peace and true interest of the Christian church.

In the first edict, given us at large by Eusebius,^[66] published in favour of the Christians, he acted the part of a wise, good, and impartial governor; in which, without mentioning any particular sects, he gave full liberty to all Christians, and to all other persons whatsoever, of following that religion which they thought best. But this liberty was of no long duration, and soon abridged in reference both to the Christians and heathens. For although in this first mentioned edict he orders the churches and effects of the Christians in general to be restored to them, yet in one immediately following he confines this grant to the Catholic church. After this, in a letter to Miltiades bishop of Rome, complaining of the differences fomented by the African bishops, he lets him know, that he had so great a reverence for the Catholic church, that he would not have him suffer in any place any schism or difference whatsoever. In another to Cæcilianus bishop of Carthage,^[67] after giving him to understand, that he had ordered Ursus to pay his reverence three thousand pieces, and Heraclides to disburse to him whatever other sums his reverence should have occasion for; he orders him to complain of all persons who should go on to corrupt the people of the most holy Catholic church by any evil and false doctrine, to Anulinus the pro-consul, and Patricius, to whom he had given instructions on this affair, that if they persevered in such madness they might be punished according to his orders. It is easy to guess what the Catholic faith and church meant, viz. that which was approved by the bishops, who had the greatest interest in his favour.

As to the Heathens,^[68] soon after the settlement of the whole empire under his government, he sent into all the provinces Christian presidents, forbidding them, and all other officers of superior dignity, to sacrifice, and confining to such of them as were Christians the honours due to their characters and stations; hereby endeavouring to support the kingdom of Christ, which is not of this world, by motives purely worldly, viz. the prospects of temporal preferments and honours; and notwithstanding the excellent law he had before published, that every one should have free exercise of his own religion, and worship such gods as they thought proper, he soon after prohibited the old religion,^[69] viz. the worship of idols in cities and country; commanding that no statues of the gods should be erected, nor any sacrifices offered upon their altars. And yet, notwithstanding this

abridgment of the liberty of religion, he declares in his letters afterwards, written to all the several governors of his provinces,^[70] that though he wished the ceremonies of the temples, and the power of darkness were wholly removed, he would force none, but that every one should have the liberty of acting in religion as he pleased.

It is not to be wondered at, that the persons who advised these edicts to suppress the ancient religion of the heathens, should be against tolerating any other amongst themselves, who should presume to differ from them in any articles of the Christian religion they had espoused; because if erroneous and false opinions in religion, as such, are to be prohibited or punished by the civil power, there is equal reason for persecuting a Christian, whose belief is wrong, and whose practice is erroneous, as for persecuting persons of any other false religion whatsoever; and the same temper and principles that lead to the latter, will also lead to and justify the former. And as the civil magistrate, under the direction of his priests, must always judge for himself what is truth and error in religion, his laws for supporting the one, and punishing the other, must always be in consequence of this judgment. And therefore if Constantine and his bishops were right in prohibiting heathenism by civil laws, because they believed it erroneous and false, Dioclesian and Licinius, and their priests, were equally right in prohibiting Christianity by civil laws, because they believed it not only erroneous and false, but the highest impiety and blasphemy against their gods, and even a proof of atheism itself. And by the same rule every Christian, that hath power, is in the right to persecute his Christian brother, whenever he believes him to be in the wrong. And in truth, they seem generally to have acted upon this principle; for which party soever of them could get uppermost, was against all toleration and liberty for those who differed from them, and endeavoured by all methods to oppress and destroy them.

The sentiments of the primitive Christians, at least for near three centuries, in reference to the Deity of our Lord Jesus Christ, were, generally speaking, pretty uniform; nor do there appear to have been any public quarrels about this article of the Christian faith.^[71] Some few persons, indeed, differed from the commonly received opinion. One Theodotus a tanner, under the reign of Commodus, asserted Christ was a mere man, and on this account was excommunicated, with other of his followers, by pope Victor, who appears to have been very liberal in his censures against others.

Artemon propagated the same erroneous opinion under Severus. Beryllus^[72] also, an Arabian bishop under Gordian, taught, “that our Saviour had no proper personal subsistence before his becoming man, nor any proper godhead of his own, but only the Father’s godhead residing in him;” but afterwards altered his opinion, being convinced of his error by the arguments of Origen. ^[K]Sabellius^[73] also propagated much the same doctrine, denying also the real personality of the Holy Ghost. After him Paulus Samosatenus,^[74] bishop of Antioch, and many of his clergy, publicly avowed the same principles concerning Christ, and were excommunicated by a large council of bishops. But though these excommunications, upon account of differences in opinion, prove that the bishops had set up for judges of the faith, and assumed a power and dominion over the consciences of others, yet as they had no civil effects, and were not enforced by any penal laws, they were not attended with any public confusions, to the open reproach of the Christian church.

But when once Christianity was settled by the laws of the empire, and the bishops free to act as they pleased, without any fear of public enemies to disturb and oppress them, they fell into more shameful and violent quarrels, upon account of their differences concerning the nature and dignity of Christ.^[75] The controversy first began between Alexander bishop of Alexandria, and ^[L]Arius,^[76] one of his presbyters, and soon spread itself into other churches, enflaming bishops against bishops, who out of a pretence to support divine truth excited tumults, and entertained irreconcilable hatreds towards one another. These divisions of the prelates set the Christian people together by the ears, as they happened to favour their different leaders and heads of parties; and the dispute was managed with such violence, that it soon reached the whole Christian world, and gave occasion to the heathens in several places to ridicule the Christian religion upon their public theatres.^[77] How different were the tempers of the bishops and clergy of these times from the excellent spirit of Dionysius bishop of Alexandria, in the reign of Decius, who writing to Novatus upon account of the disturbance he had raised in the church of Rome, by the severity of his doctrine, in not admitting those who lapsed into idolatry in times of persecution ever more to communion, though they gave all the marks of a true repentance and conversion, tells him, “one ought to suffer any thing in the world rather than divide the church of God.”

The occasion of the Arian controversy^[78] was this.^[79] Alexander, bishop of Alexandria, speaking in a very warm manner concerning the Trinity before the presbyters and clergy of his church, affirmed there was “an Unity in the Trinity,” and particularly that “the Son was co-eternal and consubstantial, and of the same dignity with the Father.” Arius, one of his presbyters, thought that the bishop, by this doctrine, was introducing the Sabellian heresy, and therefore opposed him, arguing in this manner: “If the Father begot the Son, he who was begotten must have a beginning of his existence; and from hence,” says he, “it is manifest, that there was a time when he was not; the necessary consequence of which” he affirmed was this,^[80] “that he had his subsistence out of things not existing.” Sozomen adds farther, that he asserted, “that by virtue of his free-will the Son was capable of vice as well as virtue; and that he was the mere creature and work of God.” The bishop being greatly disturbed by these expressions of Arius, upon account of the novelty of them, and not able to bear such an opposition from one of his presbyters to his own principles, commanded (“admonished, as president of the council, to whom it belonged to enjoin silence, and put an end to the dispute”) Arius to forbear the use of them, and to embrace the doctrine of the consubstantiality and co-eternity of the Father and the Son. But Arius was not thus to be convinced, especially as a great number of the bishops and clergy were of his opinion, and supported him; and for this reason himself and the clergy of his party were excommunicated, and expelled the church, in a council of near an hundred of the Egyptian and Lybian bishops met together for that purpose, by the bishop, who in this case was both party and judge, the enemy and condemner of Arius. Upon this treatment Arius and his friends sent circular letters to the several bishops of the church, giving them an account of their faith, and desiring that if they found their sentiments orthodox, they would write to Alexander in their favour; if they judged them wrong, they would give them instructions how to believe. Thus was the dispute carried into the Christian church, and the bishops being divided in their opinions, some of them wrote to Alexander not to admit Arius and his party into communion without renouncing their principles, whilst others of them persuaded him to act a different part. The bishop not only followed the advice of the former, but wrote letters to the several bishops not to communicate with any of them, nor to receive them if they should come to them, nor to credit Eusebius,^[81] nor any other person that should write to them in their behalf,

but to avoid them as the enemies of God, and the corrupters of the souls of men; and not so much as to salute them, or to have any communion with them in their crimes. Eusebius,^[82] who was bishop of Nicomedia, sent several letters to Alexander, exhorting him to let the controversy peaceably drop, and to receive Arius into communion; but finding him inflexible to all his repeated entreaties, he got a synod to meet in Bithynia, from whence they wrote letters to the other bishops, to engage them to receive the Arians to their communion, and to persuade Alexander to do the same. But all their endeavours proved ineffectual, and by these unfriendly dealings the parties grew more enraged against each other, and the quarrel became incurable.

It is, I confess, not a little surprising, that the whole Christian world should be put into such a flame upon account of a dispute of so very abstruse and metaphysical a nature, as this really was in the course and management of it. Alexander's doctrine, as Arius represents it in his letter to Eusebius of Nicomedia,^[83] was this: "God is always, and the Son always. The same time the Father, the same time the Son. The Son co-exists with God unbegottenly, being ever begotten, being unbegottenly begotten. That God was not before the Son, no not in conception, or the least point of time, he being ever God, ever a Son: for the Son is out of God himself." Nothing could be more inexcusable, than the tearing the churches in pieces upon account of such high and subtle points as these, except the conduct of Arius, who on the other hand asserted, as Alexander, his bishop, in his letter to the bishop of Constantinople,^[84] tells us, "that there was a time when there was no Son of God, and that he who before was not, afterwards existed; being made, whensoever he was made, just as any man whatsoever; and that therefore he was of a mutable nature, and equally receptive of vice and virtue," and other things of the like kind. If these were the things taught, and publicly avowed by Alexander and Arius, as each represents the other's principles, I persuade myself, that every sober man will think they both deserved censure, for thus leaving the plain account of scripture, introducing terms of their own invention into a doctrine of pure revelation, and at last censuring and writing one against another, and dividing the whole church of Christ upon account of them.

But it is no uncommon thing for warm disputants to mistake and misrepresent each other; and that this was partly the case in the present controversy, is, I think, evident beyond dispute; Alexander describing the opinions of Arius, not as he held them himself, but according to the

consequences he imagined to follow from them. Thus Arius asserted, “the Son hath a beginning, and is from none of the things that do exist;” not meaning that he was not from everlasting, before ever the creation, time, and ages had a being, or that he was created like other beings, or that like the rest of the creation he was mutable in his nature. Arius expressly declares the contrary, before his condemnation by the council of Nice, in his letter to Eusebius, his intimate friend, from whom he had no reason to conceal his most secret sentiments, and says,^[85] “This is what we have and do profess, that the Son is not unbegotten, nor in any manner a part of the unbegotten God, nor from any part of the material world, but that by the will and council of the Father he existed before all times and ages, perfect God, the only begotten and unchangeable, and that therefore before he was begotten or formed he was not,” i. e. as he explains himself, “there never was a time when he was unbegotten.” His affirming therefore that the Son had a beginning, was only saying, that he was in the whole of his existence from the Father, as the origin and fountain of his being and deity, and not any denial of his being from before all times and ages; and his saying that he was no part of God, nor derived from things that do exist, was not denying his generation from God before all ages, or his being completely God himself, or his being produced after a more excellent manner than the creatures; but that as he was always from God, so he was different both from him, and all other beings, and a sort of middle nature between God and his creatures; whose beginning, as Eusebius of Nicomedia writes to Paulinus,^[86] bishop of Tyre, was “not only inexplicable by words, but unconceivable by the understanding of men, and by all other beings superior to men, and who was formed after the most perfect likeness to the nature and power of God.” This is the strongest evidence that neither Arius nor his first friends put the Son upon a level with the creatures, but that they were in many respects of the same sentiments with those who condemned them. Thus Alexander declares the Son to be “before all ages.” Arius expressly says the same, that he was “before all times and ages.” Alexander, that “he was begotten, not out of nothing, but from the Father who was.” Arius, that “he was the begotten God, the Word from the Father.” Alexander says, “the Father, only, is unbegotten.” Arius, that “there never was a time when the Son was not begotten.” Alexander, that “the subsistence of the Son is inexplicable even by angels.” Eusebius, that “his beginning is inconceivable and inexplicable by men and angels.” Alexander, that “the

Father was always a Father because of the Son.” Arius, that “the Son was not before he was begotten;” and, that “he was, from before all ages, the begotten Son of God.” Alexander, that “he was of an unchangeable nature.” Arius, that “he was unchangeable.” Alexander, that “he was the unchangeable image of his Father.” Eusebius, that “he was made after the perfect likeness of the disposition and power of him that made him.” Alexander, that “all things have received their essence from the Father through the Son.” Arius, that “God made by the Word all things in heaven and earth.” Alexander, that “the Word, who made all things, could not be of the same nature with the things he made.” Arius, that “he was the perfect creature or production of God, but not as one of the creatures.”^[87] Arius, again, that “the Son was no part of God, nor from any thing that did exist.” Alexander, that “the only begotten nature was a middle nature, between the unbegotten Father, and the things created by him out of nothing.” And yet, notwithstanding all these things, when Alexander gives an account of the principles of Arius to the bishops, he represents them in all the consequences he thought fit to draw from them, and charges him with holding, that the Son was made like every other creature, absolutely out of nothing, and that therefore his nature was mutable, and susceptible equally of virtue and vice; with many other invidious and unscriptural doctrines, which Arius plainly appears not to have maintained or taught.

I do not, however, imagine that Alexander and Arius were of one mind in all the parts of this controversy. They seemed to differ in the following things. Particularly about the strict eternity of the generation of the Son. Alexander affirmed, that it was “absolutely without beginning;” and, that there was no imaginary point of time in which the Father was prior to the Son; and, that the soul could not conceive or think of any distance between them. Arius, on the other hand, maintained, “The Son hath a beginning, there was a time when he was not;” by which he did not mean, that he was not before all times and ages, or the creation of the worlds visible and invisible; but that the very notion of begetting and begotten doth necessarily, in the very nature of things, imply, that the begetter must be some point of time, at least in our conception, prior to what is begotten. And this is agreeable to the ancient doctrine of the primitive fathers. They held, indeed, many of them,^[88] such as Justin Martyr, Tatian, Athenagoras, Tertullian, Novatian, Lactantius, &c. that Logos, i. e. power, wisdom, and reason, existed in God the Father strictly from eternity, but without any

proper hypostasis or personality of its own. But that before the creation of the worlds, God the Father did emit, or produce, or generate this Logos, reason or wisdom; whereby, what was before the internal Logos, or wisdom of the Father, existing eternally in and inseparably from him, had now its proper hypostasis, subsistence, or personality. Not that the Father hereby became “destitute of reason,” but that this production proceeded after an ineffable and inexplicable manner. And this production of the Word some of them never scrupled to affirm was posterior to the Father, and that the Father was prior to the Son as thus begotten. They considered the Son under a twofold character, as the reason, and as the word of God. As “the reason of God,” he was eternally in the Father, “unoriginated, unbegotten, underived.” As “the word of God,” he was Missus, Creatus, Genitus, Prolatus, and received his distinct subsistence and personality then, when God said, “Let there be light;” and on this account the Father was, as Novatian speaks, “as a Father prior to the Son.” And, as Tertullian says, “God is a Father and a Judge. But it doth not thence follow that he was always a Father and always a Judge, because always God: for he could not be a Father before the Son, nor a Judge before the offence. But there was a time when there was no offence, and when the Son was not, by which God became a Judge and Father.”

Another thing in which Alexander and Arius differed, was in the use of certain words, describing the production and generation of the Son of God. Alexander denied that he was made or created, and would not apply to him any word by which the production of the creatures was denoted. Whereas Arius, and Eusebius of Nicomedia, did not scruple to affirm that he was created, founded, and the like. And for this they quoted that passage, Prov. vii. 22, &c. as rendered by the LXX. “The Lord created me the beginning of his way, he founded me before the age, and begat me before all the hills.” They did not, however, hereby put him upon a level with the creatures. For though Arius says, he was the “perfect creature of God,” yet he immediately subjoins, “yet not as one of the creatures;” and affirms that he was “begotten not in time,” or “before all time,” which could not be affirmed of the creatures. And his friend Eusebius says, that he was “created, founded, and begotten with an unchangeable and ineffable nature.” Nor were the primitive fathers afraid to use such-like words. Justin Martyr says, he was “the first production of God,” Apol. I. c. 66. Tatian, that he was “the first born work of the Father.” Tertullian, that Sophia was “formed the second

person.” And indeed most of the primitive fathers expounded the before-mentioned passage of the Proverbs of the eternal generation of the Son, and thereby allowed him to be “created and founded.”

Another thing in which Alexander and Arius seemed to differ, was about the voluntary generation of the Son of God. Alexander doth not, I think, expressly deny this, but seems to intimate, that the generation of the Son was necessary. Thus he says of the Son, “He is like to the Father, and inferior only in this, that he is not unbegotten,” or “that the Father only is unbegotten;” the consequence of which seems to be, that he apprehended his generation as necessary as the essence of the Father. Arius on the contrary, and his friends, affirmed, that “he was begotten by the will of the Father;” a doctrine not new nor strange in the primitive church. Justin Martyr, speaking of the Word, says,^[89] “this virtue was begotten by the Father by his power and will.” And again, explaining the scripture Gen. xix. 24. “The Lord rained down fire from the Lord from heaven,” he says, “There was one Lord on earth, and another in heaven, who was the Lord of that Lord who appeared on earth;^[90] as his Father and God, and the author or cause to him of being powerful, and Lord, and God,” Cont. Tryph. Pars secund. And again, he expressly affirms him “to be begotten by the will of his Father.” In like manner Tatian, “that he did come forth by the pure will of the Father.” And Tertullian, Cont. Prax. “He then first produced the Word, when it first pleased him.” I do not take upon me to defend any of these opinions, but only to represent them as I find them; and I think the three particulars I have mentioned were the most material differences between the contending parties.

I know the enemies of Arius charged him with many other principles; but as it is the common fate of religious disputes to be managed with an intemperate heat, it is no wonder his opponents should either mistake or misrepresent him, and, in their warmth, charge him with consequences which either he did not see, or expressly denied. And as this appears to be the case, no wonder the controversy was never fairly managed, nor brought to a friendly and peaceable issue. Many methods were tried, but all in vain, to bring Alexander and Arius to a reconciliation, the emperor himself condescending to become a mediator between them.

The first step he took to heal this breach was right and prudent: he sent his letters to Alexandria,^[91] exhorting Alexander and Arius to lay aside their differences, and become reconciled to each other. He tells them, that “after

he had diligently examined the rise and foundation of this affair, he found the occasion of the difference to be very trifling, and not worthy such furious contentions; and that therefore he promised himself that his mediation between them for peace, would have the desired effect.” He tells Alexander, “that he required from his presbyter a declaration of their sentiments concerning a silly, empty question.” And Arius, “that he had imprudently uttered what he should not have even thought of, or what at least he ought to have kept secret in his own breast; and that therefore questions about such things should not have been asked; or if they had, should not have been answered; that they proceeded from an idle itch of disputation, and were in themselves of so high and difficult a nature, as that they could not be exactly comprehended, or suitably explained;” and that to insist on such points too much before the people, could produce no other effect, than to make some of them talk blasphemy, and others turn schismatics; and that therefore, “as they did not contend about any essential doctrine of the gospel, nor introduce any new heresy concerning the worship of God,” they should again communicate with each other; and finally, that notwithstanding their sentiments in these unnecessary and trifling matters were different from each other, they should acknowledge one another as brethren, and, laying aside their hatreds, return to a firmer friendship and affection than before.

But religious hatreds are not so easily removed, and the ecclesiastical combatants were too warmly engaged to follow this kind and wholesome advice. The bishops of each side had already interested the people in their quarrel,^[92] and heated them into such a rage that they attacked and fought with, wounded and destroyed each other, and acted with such madness as to commit the greatest impieties for the sake of orthodoxy; and arrived to that pitch of insolence, as to offer great indignities to the imperial images. The old controversy about the time of celebrating Easter being now revived, added fuel to the flames, and rendered their animosities too furious to be appeased.



SECT. III.

The Nicene Council.

^[M]Constantine being greatly disturbed upon this account, sent letters to the bishops of the several provinces of the empire to assemble together at Nice in Bithynia, and accordingly great numbers of them came, A. C. 325, ^[93] some through hopes of profit, and others out of curiosity to see such a miracle of an emperor, and many of them upon much worse accounts. The number of them was 318, besides vast numbers of presbyters, deacons, Acolythists, and others. The ecclesiastical historians tell us, that in this vast collection of bishops some “were remarkable for their gravity, patience under sufferings, modesty, integrity, eloquence, courteous behaviour,” and the like virtues; that “some were venerable for their age, and others excelled in their youthful vigour, both of body and mind.” They are called “an army of God, mustered against the devil: a great crown or garland of priests, composed and adorned with the fairest flowers; confessors: a crowd of martyrs; a divine and memorable assembly; a divine choir,” &c. But yet they all agree that there were others of very different characters. Eusebius tells us, that after the emperor had ended his speech, exhorting them to peace, “some of them began to accuse their neighbours, others to vindicate themselves, and recriminate; that many things of this nature were urged on both sides, and many quarrels or debates arose in the beginning;” and that some came to the council with worldly views of gain. Theodorit says, ^[94] that those of the Arian party “were subtle and crafty, and like shelves under water concealed their wickedness;” that amongst the orthodox some of them “were of a quarrelling malicious temper, and accused several of the bishops, and that they presented their accusatory libels to the emperor.” Socrates says that “very many of them, the major part of them, accused one another; and that many of them the day before the emperor came to the council, had delivered in to him libels of accusations, or petitions against their enemies.” Sozomen goes farther, and tells us, “that as it usually comes to pass, many of the priests came together, that they might contend earnestly about their own affairs, thinking they had now a fit opportunity to redress their grievances; and, that every one presented a libel to the emperor, of the matters of which he accused others, enumerating his

particular grievances. And that this happened almost every day.” Gelasius Cyzicenus’s account of them is,^[95] “that when all the bishops were gathered together, according to custom, there happened many debates and contentions amongst the bishops, each one having matters of accusation against the other. Upon this they gave in libels of accusation to the emperor, who received them; and when he saw the quarrels of such bishops with one another, he said, &c. and endeavoured to conceal the wicked attempts of such bishops from the knowledge of those without doors.” So that, notwithstanding the encomiums of this council, the evil spirit had plainly got amongst them; for after the emperor had exhorted them to lay aside all their differences, and to enter into measures of union and peace, instead of applying themselves to the work for which they were convened, they began shamefully to accuse each other, and raised great disturbances in the council by their mutual charges and reproaches. Sabinus also saith,^[96] they were generally a set of very ignorant men, and destitute of knowledge and learning. But as Sabinus was an heretic of the Macedonian sect, probably his testimony may be thought exceptionable; and even supposing his charge to be true, yet ^[N]Socrates brings them off by telling us, that they were enlightened by God, and the grace of his holy spirit, and so could not possibly err from the truth. But as some men may possibly question the truth of their inspiration, so I think it appears but too plain, that an assembly of men, who met together with such different views, were so greatly prejudiced and inflamed against other, and are supposed, many of them, to be ignorant, till they received miraculous illuminations from God, did not seem very likely to heal the differences of the church, or to examine with that wisdom, care, and impartiality, or to enter into those measures of condescension and forbearance that were necessary to lay a solid foundation for peace and unity.

However, the emperor brought them at last to some temper, so that they fell in good earnest to creed-making, and drew up, and subscribed that, which, from the place where they were assembled, was called the Nicene. By the accounts of the transactions in this assembly, given by ^[O]Athanasius himself, in his letter to the African bishops,^[97] it appears, that they were determined to insert into the creed such words as were most obnoxious to the Arians, and thus to force them to a public separation from the church. For when they resolved to condemn some expressions which the Arians were charged with making use of, such as, “the Son was a creature; there

was a time when he was not,” and the like; and to establish the use of others in their room, such as, “the Son was the only begotten of God by nature, the Word, the Power, the only Wisdom of the Father, and true God;” the Arians immediately agreed to it: upon this the fathers made an alteration, and explained the words, “from God,” by the Son’s “being of the substance of God.” And when the Arians consented also to this, the bishops farther added, to render the creed more exceptionable, that “he was consubstantial, or of the same substance with the Father.” And when the Arians objected, that this expression was wholly unscriptural, the Orthodox urged, that though it was so, yet the bishops that lived an hundred and thirty years before them, made use of it. At last, however, all the council subscribed the creed thus altered and amended, except five bishops, who were displeased with the word “consubstantial,” and made many objections against it: and of these five, three, viz. Eusebius, Theognis, and Maris, seem afterwards to have complied with the rest, excepting only, that they refused to subscribe to the condemnation of Arius.

Eusebius,^[98] bishop of Cæsarea, was also in doubt for a considerable time, whether he should set his hand to it, and refused to do it, till the exceptionable words had been fully debated amongst them, and he had obtained an explication of them suitable to his own sentiments. Thus when it was asserted by the creed, that “the Son was of the Father’s substance,” the negative explication agreed to by the bishops was exactly the same thing that was asserted by Arius, viz. that “he was not a part of the Father’s substance.” Again, as the words “begotten, not made,” were applied to the Son, they determined the meaning to be, that “the Son was produced after a different manner than the creatures which he made,” and was therefore of a more excellent nature than any of the creatures, and that the manner of his generation could not be understood. This was the very doctrine of Arius, and Eusebius of Nicomedia, who declared, that “as the Son was no part of God, so neither was he from any thing created, and that the manner of his generation was not to be described.” And as to the word “consubstantial” to the Father, it was agreed by the council to mean no more, than that “the Son had no likeness with any created Beings, but was in all things like to him that begot him, and that he was not from any other hypostasis, or substance, but the Father’s.” Of this sentiment also were Arius, and Eusebius his friend, who maintained not only his being of a more excellent original than the creatures, but that he was formed “of an immutable and ineffable

substance and nature, and after the most perfect likeness of the nature and power of him that formed him.” These were the explications of these terms agreed to by the council, upon which Eusebius, of Cæsarea, subscribed them in the creed; and though some few of the Arian bishops refused to do it, yet it doth not appear to me, that it proceeded from their not agreeing in the sense of these explications, but because they apprehended that the words were very improper, and implied a great deal more than was pretended to be meant by them; and especially, because an anathema was added upon all who should presume not to believe in them and use them. Eusebius, of Cæsarea, gives a very extraordinary reason for his subscribing this anathema, viz. because “it forbids the use of unscriptural words, the introducing which he assigns as the occasion of all the differences and disturbances which had troubled the church.” But had he been consistent with himself, he ought never to have subscribed this creed, for the very reason he alledges why he did it; because the anathema forbids only the unscriptural words of Arius, such as, “He was made out of nothing; there was a time when he was not,” and the like; but allowed and made sacred the unscriptural expressions of the orthodox, viz. “Of the Father’s substance, and consubstantial,” and cut off from Christian communion those who would not agree to them, though they were highly exceptionable to the Arian party, and afterwards proved the occasions of many cruel persecutions and evils.

In this public manner did the bishops assert a dominion over the faith and consciences of others, and assume a power, not only to dictate to them what they should believe, but even to anathematize, and expel from the Christian church, all who refused to submit to their decisions, and own their authority. ^[99] For after they had carried their creed, they proceeded to excommunicate Arius and his followers, and banished Arius from Alexandria. They also condemned his explication of his own doctrine, and a certain book, called Thalia, which he had written concerning it. After this they sent letters to Alexandria, and to the brethren in Egypt, Lybia, and Pentapolis, to acquaint them with their decrees, and to inform them, that the holy synod had condemned the opinions of Arius, and were so zealous in this affair, that they had not patience so much as to hear his ungodly doctrine and blasphemous words, and that they had fully determined the time for the celebration of Easter. Finally, they exhort them to rejoice, for the good deeds they had done, and for that they had cut off all manner of heresy, and

to pray, that their right transactions might be established by Almighty God and our Lord Jesus Christ. When these things were over, Constantine^[100] splendidly treated the bishops, filled their pockets, and sent them honourably home; advising them at parting to maintain peace amongst themselves, and that none of them should envy another who might excel the rest in wisdom and eloquence, and that such should not carry themselves haughtily towards their inferiors, but condescend to, and bear with their weakness. A plain demonstration that he saw into their tempers, and was no stranger to the pride and haughtiness that influenced some, and the envy and hatred that actuated others. After he had thus dismissed them he sent several letters, recommending and enjoining an universal conformity to the council's decrees both in ceremony and doctrine, using, among other things, this argument for it,^[101] "That what they had decreed was the will of God, and that the agreement of so great a number of such bishops, was by inspiration of the Holy Ghost."

It is natural here to observe, that the anathemas and depositions agreed on by this council, and confirmed by the imperial authority, were the beginning of all those persecutions that afterwards raged against each party in their turns. As the civil power had now taken part in the controversies about religion, by authorising the dominion of the bishops over the consciences of others, enforcing their ecclesiastical constitutions, and commanding the universal reception of that faith they had decreed to be orthodox; it was easy to foresee, that those who opposed them would employ the same arts and authority to establish their own faith and power, and to oppress their enemies, the first favourable opportunity that presented: and this the event abundantly made good. And, indeed, how should it be otherwise? For doctrines that are determined merely by dint of numbers, and the awes of worldly power, carry no manner of conviction in them, and are not likely therefore to be believed on these accounts by those who have once opposed them. And as such methods of deciding controversies equally suit all principles, the introducing them by any party, gives but too plausible a pretence to every party, when uppermost, to use them in their turn; and though they may agree well enough with the views of spiritual ambition, yet they can be of no service in the world to the interest of true religion, because they are directly contrary to the nature and spirit of it; and because arguments, which equally prove the truth and excellency of all principles, cannot in the least prove the truth of any.

If one may form a judgment of the persons who composed this council, from the small accounts we have left of them, they do not, I think, appear to have met so much with a design impartially to debate on the subjects in controversy, as to establish their own authority and opinions, and oppress their enemies. For besides what hath been already observed concerning their temper and qualifications, ^[P]Theodorit informs us, ^[102] that when those of the Arian party proposed in writing, to the synod, the form of faith they had drawn up, the bishops of the orthodox side no sooner read it, but they gravely tore it in pieces, and called it a spurious and false confession; and after they had filled the place with noise and confusion, universally accused them of betraying the doctrine according to godliness. Doth such a method of proceeding suit very well with the character of a synod inspired, as the good emperor declared, by the Holy Ghost? Is truth and error to be decided by noise and tumult? Was this the way to convince gainsayers, and reconcile them to the unity of the faith? Or could it be imagined, that the dissatisfied part of this venerable assembly would acquiesce in the tyrannical determination of such a majority, and patiently submit to excommunication, deposition, and the condemnation of their opinions, almost unheard, and altogether unexamined? How just is the censure passed by ^[Q]Gregory Nazianzen ^[103] upon councils in general? “If,” says he, “I must speak the truth, this is my resolution, to avoid all councils of the bishops, for I have not seen any good end answered by any synod whatsoever; for their love of contention, and their lust of power, are too great even for words to express.” The emperor’s conduct to the bishops met at Nice ^[104] is full proof of the former; for when they were met in council, they immediately fell to wrangling and quarrelling, and were not to be appeased and brought to temper, till Constantine interposed, artfully persuading some, shaming others into silence, and heaping commendations on those fathers that spoke agreeable to his sentiments. The decisions they made concerning the faith, and their excommunications and depositions of those who differed from them, demonstrate also their affectation of power and dominion. But as they had great reason to believe, that their own decrees would be wholly insignificant, without the interposition of the imperial authority to enforce them, they soon obtained their desires; and prevailed with the emperor to confirm all they had determined, and to enjoin all Christians to submit themselves to their decisions.

His first letters to this purpose were mild and gentle,^[105] but he was soon persuaded by his clergy into more violent measures; for out of his great zeal to extinguish heresy, he put forth public edicts, against the authors and maintainers of it; and particularly against the Novatians, Valentinians, Marcionists, and others, whom after reproaching “with being enemies of truth, destructive counsellors, and with holding opinions suitable to their crimes,” he deprives of the liberty of meeting together for worship, either in public or private places, and gives all their oratories to the orthodox church. And with respect to the Arians,^[106] he banished Arius himself,^[107] ordered all his followers, as absolute enemies of Christ, to be called Porphyrians, from ^[R]Porphyrius, an heathen, who wrote against Christianity; ordained that the books written by them should be burnt, that there might be no remains of their doctrine left to posterity; and most cruelly commanded, that if ever any one should dare to keep in his possession any book written by Arius, and should not immediately burn it, he should be no sooner convicted of the crime but he should suffer death. He afterwards put forth a fresh edict against the recusants, by which he took from them their places of worship, and prohibited not only their meeting in public, but even in any private houses whatsoever.

Thus the orthodox first brought in the punishment of heresy with death,^[108] and persuaded the emperor to destroy those whom they could not easily convert. The scriptures were now no longer the rule and standard of the Christian faith. Orthodoxy and heresy were from henceforward to be determined by the decisions of councils and fathers, and religion to be propagated no longer by the apostolic methods of persuasion, forbearance, and the virtues of an holy life, but by imperial edicts and decrees; and heretical gainsayers not to be convinced, that they might be brought to the acknowledgment of the truth and be saved, but to be persecuted and destroyed. It is no wonder, that after this there should be a continual fluctuation of the public faith, just as the prevailing parties had the imperial authority to support them, or that we should meet with little else in ecclesiastical history but violence and cruelties committed by men who had left the simplicity of the Christian faith and profession, enslaved themselves to ambition and avarice, and had before them the ensnaring views of temporal grandeur, high preferments, and large revenues. “Since the time that avarice hath encreased in the churches,” says ^[S]St. Jerome,^[109] “the law is perished from the priest, and the vision from the prophet. Whilst all

contend for the episcopal power, which they unlawfully seize on without the church's leave, they apply to their own uses all that belongs to the Levites. The miserable priest begs in the streets—they die with hunger who are commanded to bury others. They ask for mercy who are commanded to have mercy on others—the priests' only care is to get money—hence hatreds arise through the avarice of the priests; hence the bishops are accused by their clergy; hence the quarrels of the prelates; hence the causes of desolations; hence the rise of their wickedness.” Religion and Christianity seem indeed to be the least thing that either the contending parties had at heart, by the infamous methods they took to establish themselves and ruin their adversaries.

If one reads the complaints of the orthodox writers against the Arians, one would think the Arians the most execrable set of men that ever lived, they being loaded with all the crimes that can possibly be committed, and represented as bad, or even worse, than the devil himself. But no wise man will easily credit these accounts, which the orthodox give of their enemies, because, as Socrates tells us,^[110] “This was the practice of the bishops towards all they deposed, to accuse and pronounce them impious, but not to tell others the reasons why they accused them as such.” It was enough for their purpose to expose them to the public odium, and make them appear impious to the multitude, that so they might get them expelled from their rich sees, and be translated to them in their room. And this they did as frequently as they could, to the introducing infinite calamities and confusions into the Christian church. And if the writings of the Arians had not been prudently destroyed, I doubt not but we should have found as many charges laid by them, with equal justice, against the orthodox, as the orthodox have produced against them; their very suppression of the Arian writings being a very strong presumption against them, and the many imperial edicts of Constantine, Theodosius, Valentinian, Martian, and others, against heretics, being an abundant demonstration that they had a deep share in the guilt of persecution.

Alexander, bishop of Alexandria, in his letter to the bishop of Constantinople,^[111] complains that Arius and others, desirous of power and riches, did day and night invent calumnies, and were continually exciting seditions and persecutions against him; and Arius in his turn, in his letter to Eusebius, of Nicomedia, with too much justice charges pope Alexander with violently persecuting and oppressing him upon account of what he

called the truth, and using every method to ruin him, driving him out of the city as an atheistical person, for not agreeing with him in his sentiments about the Trinity. Athanasius also bitterly exclaims against the cruelty of the Arians, in his Apology for his flight.^[112] “Whom have they not,” says he, “used with the greatest indignity that they have been able to lay hold of? Who hath ever fallen into their hands, that they have had any spite against, whom they have not so cruelly treated, as either to murder or to maim him? What place is there where they have not left the monuments of their barbarity? What church is there which doth not lament their treachery against their bishops?” After this passionate exclamation he mentions several bishops they had banished or put to death, and the cruelties they made use of to force the orthodox to renounce the faith, and to subscribe to the truth of the Arian doctrines. But might it not have been asked, who was it that first brought in excommunications, depositions, banishments, and death, as the punishments of heresy? Could not the Arians recriminate with justice? Were they not reproached as atheists, anathematized, expelled their churches, exiled, and made liable to the punishment of death by the orthodox? Did not even they who complained of the cruelty of the Arians in the most moving terms, create numberless confusions and slaughters by their violent intrusions into the sees of their adversaries? Was not Athanasius himself also accused to the emperor, by many bishops and clergymen, who declared themselves orthodox, of being the author of all the seditions and disturbances in the church,^[113] by excluding great multitudes from the public services of it; of murdering some, putting others in chains, punishing others with stripes and whippings, and of burning churches? And if the enemies of Athanasius^[114] endeavoured to ruin him by suborned witnesses and false accusations, Athanasius himself used the same practices to destroy his adversaries; and particularly Eusebius of Nicomedia, by spiriting up a woman to charge Eusebius with illicit connections, the falsehood of which was detected at the council of Tyre. His very ordination also to the bishopric of Alexandria, was censured as clandestine and illegal. These things being reported to Constantine,^[115] he ordered a synod to meet at Cæsarea in Palestine, of which place Eusebius Pamphilus was bishop, before whom Athanasius refused to appear. But after the council was removed to Tyre, he was obliged by force to come thither, and commanded to answer to the several crimes objected against him. Some of them he cleared himself of, and as to others he desired more time for his vindication.

At length, after many sessions, both his accusers, and the multitude who were present in the council, demanded his deposition as an impostor, a violent man, and unworthy the priesthood. Upon this, Athanasius fled from the synod; after which they condemned him, and deprived him of his bishopric, and ordered he should never more enter Alexandria, to prevent his exciting tumults and seditions. They also wrote to all the bishops to have no communion with him, as one convicted of many crimes, and as having convicted himself by his flight of many others, to which he had not answered. And for this their procedure they assigned these reasons; that he despised the emperor's orders, by not coming to Cæsarea; that he came with a great number of persons to Tyre, and excited tumults and disturbances in the council, sometimes refusing to answer to the crimes objected against him, at other times reviling all the bishops; sometimes not obeying their summons, and at others refusing to submit to their judgment; that he was fully and evidently convicted of breaking in pieces the sacred cup, by six bishops who had been sent into Egypt to inquire out the truth. Athanasius, however, appealed to Constantine,^[116] and prayed him, that he might have the liberty of making his complaints in the presence of his judges. Accordingly Eusebius of Nicomedia, and other bishops came to Constantinople, where Athanasius was; and in an hearing before the emperor, they affirmed that the council of Tyre had done justly in the cause of Athanasius, produced their witnesses as to the breaking of the sacred cup, and laid many other crimes to his charge. And though Athanasius seems to have had the liberty he desired of confronting his accusers, yet he could not make his innocence appear: for notwithstanding he had endeavoured to prejudice the emperor against what they had done, yet he confirmed their transactions, commended them as a set of wise and good bishops, censured Athanasius as a seditious, insolent, injurious person, and banished him to Treves, in France. And when the people of Alexandria, of Athanasius's party, tumultuously cried out for his return, Antony the Great, a monk, wrote often to the emperor in his favour. The emperor in return wrote to the Alexandrians, and charged them with madness and sedition, and commanded the clergy and nuns to be quiet; affirming he could not alter his opinion, nor recall Athanasius, "being condemned by an ecclesiastical judgment as an exciter of sedition." He also wrote to the monk, telling him it was impossible "he should disregard the sentence of the council," because that though a few might pass judgment through hatred or affection, yet it

was not probable that such a large number of famous and good bishops should be of such a sentiment and disposition; for that Athanasius was an injurious and insolent man, and the cause of discord and sedition.

Indeed Athanasius, notwithstanding his sad complaints under persecution, and his expressly calling it a diabolical invention,^[117] yet seems to be against it only when he and his own party were persecuted, but not against persecuting the enemies of orthodoxy. In his letter to Epictetus, bishop of Corinth, he saith,^[118] “I wonder that your piety hath suffered these things,” (viz. the heresies he had before mentioned) “and that you did not immediately put those heretics under restraint, and propose the true faith to them; that if they would not forbear to contradict they might be declared heretics; for it is not to be endured that these things should be either said or heard amongst Christians.” And in another place^[119] he says “that they ought to be had in universal hatred for opposing the truth;” and comforts himself, that the emperor, upon due information, would put a stop to their wickedness, and that they would not be long lived. And to mention no more, “I therefore exhort you,” says he,^[120] “let no one be deceived; but as though the Jewish impiety was prevailing over the faith of Christ, be ye all zealous in the Lord.”^[121] And let every one hold fast the faith he hath received from the fathers, which also the fathers met together at Nice declared in writing, and endure none of those who may attempt to make any innovations therein.” It is needless to produce more instances of this kind; whosoever gives himself the trouble of looking over any of the writings of this father, will find in them the most furious invectives against the Arians, and that he studiously endeavours to represent them in such colours, as might render them the abhorrence of mankind, and excite the world to their utter extirpation.

I write not these things out of any aversion to the memory, or peculiar principles of Athanasius. Whether I agree with him, or differ from him in opinion, I think myself equally obliged to give impartially the true account of him. And as this which I have given of him is drawn partly from history, and partly from his own writings, I think I cannot be justly charged with misrepresenting him. To speak plainly, I think that Athanasius was a man of a haughty and inflexible temper, and more concerned for victory and power, than for truth, religion, or peace. The word “consubstantial,” that was inserted into the Nicene creed,^[122] and the anathema denounced against all who would or could not believe in it, furnished matter for endless debates.

Those who were against it, censured as blasphemers those who used it; and as denying the proper subsistence of the Son, and as falling into the Sabellian heresy. The consubstantialists, on the other side, reproached their adversaries as heathens, and with bringing in the polytheism of the Gentiles. And though they equally denied the consequences which their respective principles were charged with, yet as the orthodox would not part with the word “consubstantial,” and the Arians could not agree to the use of it, they continued their unchristian reproaches and accusations of each other. Athanasius would yield to no terms of peace, nor receive any into communion, who would not absolutely submit to the decisions of the fathers of Nice. In his letter to Johannes and Antiochus^[123] he exhorts them to hold fast the confession of those fathers, and “to reject all who should speak more or less than was contained in it.” And in his first oration against the Arians he declares in plain terms,^[124] “That the expressing a person’s sentiments in the words of scripture was no sufficient proof of orthodoxy, because the devil himself used scripture words to cover his wicked designs upon our Saviour; and even farther, that heretics were not to be received, though they made use of the very expressions of orthodoxy itself.” With one of so suspicious and jealous a nature there could scarce be any possible terms of peace; it being extremely unlikely, that without some kind allowances, and mutual abatements, so wide a breach could ever be compromised. Even the attempts of Constantine himself to soften Athanasius, and reconcile him to his brethren, had no other influence upon him, than to render him more imperious and obstinate; for after Arius had given in such a confession of his faith as satisfied the emperor,^[125] and expressly denied many of the principles he had been charged with, and thereupon humbly desired the emperor’s interposition, that he might be restored to the communion of the church; Athanasius, out of hatred to his enemy, flatly denied the emperor’s request, and told him, that it was impossible for those who had once rejected the faith, and were anathematized, ever to be wholly restored. This so provoked the emperor that he threatened to depose and banish him, unless he submitted to his order;^[126] which he shortly after did, by sending him into France, upon an accusation of several bishops, who, as Socrates intimates, were worthy of credit, that he had said he would stop the corn that was yearly sent to Constantinople from the city of Alexandria. To such an height of pride was this bishop now arrived, as even to threaten the sequestration of the

revenues of the empire. Constantine also apprehended, that this step was necessary to the peace of the church, because Athanasius absolutely refused to communicate with Arius and his followers.

Soon after these transactions Arius died,^[127] and the manner of his death, as it was reported by the orthodox, Athanasius thinks of itself sufficient fully to condemn the Arian heresy, and an evident proof that it was hateful to God. Nor did Constantine himself long survive him; he was succeeded by his three sons, Constantine, Constantius, and Constans. Constantine the eldest recalled Athanasius from banishment,^[128] and restored him to his bishopric; upon which account^[129] there arose most grievous quarrels and seditions, many being killed, and many publicly whipped by Athanasius's order, according to the accusations of his enemies. Constantius, after his elder brother's death, convened a synod at Antioch in Syria, where Athanasius was again deposed for these crimes, and Gregory put into the see of Alexandria. In this council a new creed was drawn up,^[130] in which the word "consubstantial" was wholly omitted,^[131] and the expressions made use of so general, as that they might have been equally agreed to by the orthodox and Arians. In the close of it several anathemas were added, and particularly upon all who should teach or preach otherwise than what this council had received, because, as they themselves say, "they did really believe and follow all things delivered by the holy scriptures, both prophets and apostles." So that now the whole Christian world was under a synodical curse, the opposite councils having damned one another, and all that differed from them. And if councils, as such, have any authority to anathematize all who will not submit to them, this authority equally belongs to every council; and therefore it was but a natural piece of revenge, that as the council of Nice had sent all the Arians to the devil, the Arians, in their turn, should take the orthodox along with them for company, and thus repay one anathema with another.

Constantius himself was warmly on the Arian side, and favoured the bishops of that party only, and ejected Paul the orthodox bishop from the see of Constantinople, as a person altogether unworthy of it, Macedonius being substituted in his room.^[132] Macedonius was in a different scheme, or at least expressed himself in different words both from the orthodox and Arians,^[133] and asserted, that the Son was not consubstantial, but ὁμοιουσιος, not of the same, but a like substance with the Father; and openly propagated his opinion, after he had thrust himself into the bishopric

of Paul.^[134] This the orthodox party highly resented, opposing Hermogenes, whom Constantius had sent to introduce him; and in their rage burnt down his house, and drew him round the streets by his feet till they had murdered him. But notwithstanding the emperor's orders were thus opposed, and his officers killed by the orthodox party, he treated them with great lenity, and in this instance punished them much less than their insolence and fury deserved. Soon after this, Athanasius and Paul^[135] were restored again to their respective sees; and upon Athanasius's entering Alexandria great disturbances arose, which were attended with the destruction of many persons, and Athanasius accused of being the author of all those evils. Soon after Paul's return to Constantinople he was banished from thence again by the emperor's order, and Macedonius re-entered into possession of that see, upon which occasion 3150 persons were murdered, some by the soldiers, and others by being pressed to death by the croud. Athanasius,^[136] also, soon followed him into banishment, being accused of selling the corn which Constantine the Great had given for the support of the poor of the church of Alexandria, and putting the money in his own pocket; and being therefore threatened by Constantius with death. But they were both, a little while after, recalled by Constans, then banished again by Constantius; and Paul, as some say, murdered by his enemies the Arians, as he was carrying into exile; though, as Athanasius himself owns,^[137] the Arians expressly denied it, and said that he died of some distemper. Macedonius having thus gotten quiet possession of the see of Constantinople, prevailed with the emperor to publish a law,^[138] by which those of the consubstantial, or orthodox party, were driven, not only out of the churches but cities too, and many of them compelled to communicate with the Arians by stripes and torments, by proscriptions and banishments, and other violent methods of severity. Upon the banishment of Athanasius,^[139] whom Constantius, in his letter to the citizens of Alexandria, calls "an impostor, a corrupter of men's souls, a disturber of the city, a pernicious fellow, one convicted of the worst crimes, not to be expiated by his suffering death ten times;" George was put into the see of Alexandria, whom the emperor, in the same letter, stiles "a most venerable person,^[140] and the most capable of all men to instruct them in heavenly things;" though Athanasius, in his usual style, calls him "an idolater and hangman, and one capable of all violences, rapines, and murders;" and whom he actually charges with committing the most impious actions and outrageous cruelties. Thus, as Socrates observes,^[141] was the

church torn in pieces by a civil war for the sake of Athanasius and the word “consubstantial.”

The truth is, that the Christian clergy were now become the chief incendiaries and disturbers of the empire, and the pride of the bishops, and the fury of the people on each side were grown to such an height, as that there scarce ever was an election or restoration of a bishop in the larger cities, but it was attended with slaughter and blood. Athanasius was several times banished and restored, at the expense of blood; the orthodox were deposed, and the Arians substituted in their room, with the murder of thousands; and as the controversy was now no longer about the plain doctrines of uncorrupted Christianity, but about power and dominion, high preferments, large revenues, and secular honours; agreeably hereto, the bishops were introduced into their churches,^[142] and placed on their thrones, by armed soldiers, and paid no regard to the ecclesiastical rules, or the lives of their flocks, so they could get possession, and keep out their adversaries: and when once they were in, they treated those who differed from them without moderation or mercy, turning them out of their churches, denying them the liberty of worship, putting them under an anathema, and persecuting them with innumerable methods of cruelty; as is evident from the accounts given by the ecclesiastical historians, of Athanasius, Macedonius, George, and others, which may be read at large, in the forementioned places. In a word, they seemed to treat one another with the same implacable bitterness and severity, as ever their common enemies, the heathens, treated them; as though they thought that persecution for conscience sake had been the distinguishing precept of the Christian religion; and that they could not more effectually recommend and distinguish themselves as the disciples of Christ, than by tearing and devouring one another. This made Julian,^[143] the emperor, say of them, “that he found by experience, that even beasts are not so cruel to men, as the generality of Christians were to one another.”

This was the unhappy state of the church in the reign of Constantius, which affords us little more than the history of councils and creeds, differing from, and contrary to each other; bishops deposing, censuring, and anathematizing their adversaries, and the Christian people divided into factions under their respective leaders, for the sake of words they understood nothing of the sense of, and striving for victory even to bloodshed and death. Upon the succession of Julian to the empire, though

the contending-parties could not unite against the common enemy, yet they were by the emperor's clemency and wisdom kept in tolerable peace and order.^[144] The bishops, which had been banished by Constantius his predecessor, he immediately recalled, ordered their effects, which had been confiscated, to be restored to them, and commanded that no one should injure or hurt any Christian whatsoever. And as Ammianus Marcellinus,^[145] an heathen writer of those times, tells us, he caused the Christian bishops and people, who were at variance with each other, to come into his palace, and there admonished them, that they should every one profess their own religion, without hindrance or fear, provided they did not disturb the public peace by their divisions. This was an instance of great moderation and generosity, and a pattern worthy the imitation of all his successors.

In the beginning of Julian's reign^[146] some of the inhabitants of Alexandria, and, as was reported, the friends of Athanasius, by his advice, raised a great tumult in the city, and murdered George, the bishop of the place, by tearing him in pieces, and burning his body; upon which Athanasius returned immediately from his banishment, and took possession of his see, turning out the Arians from their churches, and forcing them to hold their assemblies in private and mean places. ^[T]Julian, with great equity, severely reprov'd the Alexandrians for this their violence and cruelty, telling them, that though George might have greatly injured them, yet they ought not to have revenged themselves on him, but to have left him to the justice of the laws. Athanasius, upon his restoration, immediately convened a synod at Alexandria, in which was first asserted the divinity of the Holy Spirit, and his consubstantiality with the Father and the Son.^[147] But his power there was but short; for being accused to Julian as the destroyer of that city, and all Egypt, he saved himself by flight,^[148] but soon after secretly returned to Alexandria, where he lived in great privacy till the storm blown over by Julian's death, and the succession of Jovian to the empire, who restored him to his see, in which he continued undisturbed to his death.

Although Julian behaved himself with great moderation, upon his first accession to the imperial dignity, towards the Christians, as well as others, yet his hatred to Christianity soon appeared in many instances.^[149] For though he did not, like the rest of the heathen emperors, proceed to sanguinary laws, yet he commanded, that the children of Christians should not be instructed in the Grecian language and learning. By another edict he ordained, that no Christian should bear any office in the army, nor have any

concern in the distribution and management of the public revenues.^[150] He taxed very heavily, and demanded contributions from all who would not sacrifice, to support the vast expences he was at, in his eastern expeditions. And when the governors of the provinces took occasion from hence to oppress and plunder them, he dismissed those who complained with this scornful answer, “your God hath commanded you to suffer persecution!” He also deprived the clergy of all their immunities, honours, and revenues, granted them by Constantine; abrogated the laws made in their favour, and ordered they should be listed amongst the number of soldiers. He destroyed several of their churches, and stripped them of their treasure and sacred vessels. Some he punished with banishment, and others with death, under pretence of their having pulled down some of the pagan temples, and insulted himself.

The truth is, that the Christian bishops and people shewed such a turbulent and seditious spirit, that it was no wonder that Julian should keep a jealous eye over them; and, though otherwise a man of great moderation, connive at the severities his officers sometimes practised on them. Whether he would have proceeded to any farther extremities against them, had he returned victorious from his Persian expedition, as Theodorit^[151] affirms he would, cannot, I think, be determined. He was certainly a person of great humanity in his natural temper; but how far his own superstition, and the imprudencies of the Christians, might have altered this disposition, it is impossible to say. Thus much is certain, that the behaviour of the Christians towards him, was, in many instances, very blameable, and such as tended to irritate his spirit, and awaken his resentment. But whatever his intentions were, he did not live to execute them, being slain in his Persian expedition.

He was succeeded by Jovian,^[152] who was a Christian by principle and profession. Upon his return from Persia the troubles of the church immediately revived, the bishops and heads of parties crowding about him, each hoping that he would list on their side, and grant them authority to oppress their adversaries. Athanasius,^[153] amongst others, writes to him in favour of the Nicene creed, and warns him against the blasphemies of the Arians; and though he doth not directly urge him to persecute them, yet he tells him, that it is necessary to adhere to the decisions of that council concerning the faith, and that their creed was divine and apostolical; and that no man ought to reason or dispute against it, as the Arians did. A synod also of certain bishops met at Antioch in Syria; and though several of them

had been opposers of the Nicene doctrine before, yet finding that this was the faith espoused by Jovian, they with great obsequiousness readily confirmed it, and subscribed it, and in a flattering letter sent it to him, representing that this true and orthodox faith was the great centre of unity. The followers also of Macedonius, who rejected the word “consubstantial,” and held the Son to be only “like to the Father,” most humbly besought him, that such who asserted the Son to be unlike the Father might be driven from their churches, and that they themselves might be put into them in their room; with the bishops names subscribed to the petition. But Jovian, though himself in the orthodox doctrine, did not suffer himself to be drawn into measures of persecution by the arts of these temporizing prelates, but dismissed them civilly with this answer: “I hate contention, and love those only that study peace;” declaring, that “he would trouble none upon account of their faith, whatever it was; and that he would favour and esteem such only, who should shew themselves leaders in restoring the peace of the church.” Themistius the philosopher, in his oration upon Jovian’s consulate, commends him very justly on this account, that he gave free liberty to every one to worship God as he would, and despised the flattering insinuations of those who would have persuaded him to the use of violent methods; concerning whom he pleasantly, but with too much truth, said, “that he found, by experience, that they worship not God, but the purple.”

The two emperors, Valentinianus and Valens, who succeeded Jovian, were of very different tempers, and embraced different parties in religion. The former was of the orthodox side;^[154] and though he favoured those most who were of his own sentiments, yet he gave no disturbance to the Arians. On the contrary, Valens, his brother, was of a rigid and sanguinary disposition, and severely persecuted all who differed from him. In the beginning of their reign^[155] a synod met in Illyricum, who again decreed the consubstantiality of Father, Son, and Holy Ghost.^[156] This the two emperors declared in a letter their assent to, and ordered that this doctrine should be preached. However, they both published laws for the toleration of all religions, even the heathen and Arian.^[157] But Valens was soon prevailed on by the arts of Eudoxius,^[158] bishop of Constantinople, to forsake both his principles of religion and moderation, and embracing the Arian opinions, he cruelly persecuted all those who were of the orthodox party. The conduct of the orthodox synod met at Lampsacus was the first thing that enraged him; for having obtained of him leave to meet, for the amendment and settlement

of the faith, after two months consultation they decreed the doctrine of the Son's being like the Father as to his essence, to be orthodox, and deposed all the bishops of the Arian party. This highly exasperated Valens, who, thereupon, called a council of Arian bishops, and commanded the bishops that composed the council at Lampsacus to embrace the opinions of Eudoxius the Arian; and upon their refusal immediately sent them into banishment, and gave their churches to their enemies, sparing only Paulinus, for the remarkable sanctity of his life. After this he entered into more violent measures, and caused the orthodox, some of them to be whipped, others to be disgraced, others to be imprisoned, and others to be fined.^[159] He also put great numbers to death, and particularly caused eighty of them at once to be put on board a ship, and the ship to be fired when it was sailed out of the harbour, where they miserably perished by the water and the flames. These persecutions he continued to the end of his reign, and was greatly assisted in them by the bishops of the Arian party.

In the mean time great disturbances happened at Rome.^[160] Liberius, bishop of that city, being dead, Ursinus, a deacon of that church, and Damasus, were both nominated to succeed him. The party of Damasus prevailed, and got him chosen and ordained. Ursinus being enraged that Damasus was preferred before him, set up separate meetings, and at last procured himself to be privately ordained by certain obscure bishops. This occasioned great disputes amongst the citizens, which should obtain the episcopal dignity; and the matter was carried to such an height, that great numbers were murdered in the quarrel on both sides, no less than one hundred and thirty-seven persons being destroyed in the church itself, according to Ammianus,^[161] who adds, "that it was no wonder to see those who were ambitious of human greatness, contending with so much heat and animosity for that dignity, because, when they had obtained it, they were sure to be enriched by the offerings of the matrons, of appearing abroad in great splendor, of being admired for their costly coaches, sumptuous in their feasts, out-doing sovereign princes in the expenses of their tables." For which reason Prætextatus, an heathen, who was prefect of the city the following year, said, "Make me bishop of Rome, and I'll be a Christian too."

Gratian, the son of Valentinian, his partner and successor in the empire, was of the orthodox party, and after the death of his uncle Valens recalled those whom he had banished, and restored them to their sees. But as to the

Arians,^[162] he sent Sapores, one of his captains, to drive them, as wild beasts, out of all their churches. Socrates and Sozomen tell us, however, that by a law he ordained, that persons of all religions should meet, without fear, in their several churches, and worship according to their own way, the Eunomians, Photinians, and Manichees excepted.



SECT. IV.

The first council of Constantinople; or second general council.

Theodosius, soon after his advancement by Gratian to the empire, discovered a very warm zeal for the orthodox opinions;^[163] for observing that the city of Constantinople was divided into different sects, he wrote a letter to them from Thessalonica, wherein he tells them, “that it was his pleasure, that all his subjects should be of the same religion with Damasus bishop of Rome, and Peter bishop of Alexandria; and that their church, only, should be called catholic, who worshipped the divine Trinity as equal in honour; and that those who were of another opinion should be called heretics, become infamous, and be subject to other punishments.” He also forbid assemblies and disputations in the Forum, and made a law for the punishment of those that should presume to argue about the essence and nature of God. Upon his first coming to Constantinople,^[164] being very solicitous for the peace and increase of the church, he sent for Demophilus the Arian bishop, and asked him whether he would consent to the Nicene faith, and thus accept the peace he offered him: adding this strong argument, “if you refuse to do it, I will drive you from your churches.” And upon Demophilus’s refusal, the emperor was as good as his word; and turned him and all the Arians out of the city, after they had been in possession of the churches there for forty years.^[165] But being willing more effectually to extinguish heresy, he summoned a council of bishops of his own persuasion, A. C. 381, to meet together at Constantinople, in order to confirm the Nicene faith: the number of them were one hundred and fifty; to these, for form’s sake, were added thirty-six of the Macedonian party. And accordingly this council,^[166] which is reckoned the second oecumenical or general one, all of them, except the Macedonians, did decree that the Nicene faith should be the standard of orthodoxy; and that all heresies should be condemned. They also made an addition to that creed, explaining the orthodox doctrine of the Spirit against Macedonius, viz. after the words Holy Ghost, they inserted, “the Lord, the Quickner, proceeding from the Father, whom with the Father and the Son we worship and glorify, and who spake by the prophets.” When the council was ended,^[167] the emperor put forth two edicts against heretics; by the first prohibiting them from holding

any assemblies; and by the second, forbidding them to meet in fields or villages, ordering the houses where they met to be confiscated, and commanding that such who went to other places to teach their opinions, or perform their religious worship, should be forced to return to the places where they dwelt, condemning all those officers and magistrates of cities who should not prevent such assemblies. A little while after the conclusion of this council,^[168] finding that many disorders were still occasioned through the opposition of the several parties to one another, he convened the principal persons of each, and ordered them to deliver into his hand a written form of their belief; which after he had received, he retired by himself, and earnestly prayed to God, that he would enable him to make choice of the truth. And when after this he had perused the several papers delivered to him, he tore them all in pieces, except that which contained the doctrine of the indivisible Trinity, to which he intirely adhered. After this he published a law, by which he forbid heretics to worship or preach, or to ordain bishops or others, commanding some to be banished, others to be rendered infamous, and to be deprived of the common privileges of citizens, with other grievous penalties of the like nature. ^[U]Sozomen, however, tells us, that he did not put these laws in execution, because his intention was not to punish his subjects, but to terrify them into the same opinions of God with himself, praising at the same time those who voluntarily embraced them. Socrates also confirms the same, telling us,^[169] that he only banished Eunomius from Constantinople for holding private assemblies, and reading his books to them, and thereby corrupting many with his doctrine. But that as to others he gave them no disturbance, nor forced them to communicate with him, but allowed them all their several meetings, and to enjoy their own opinions as to the Christian faith. Some he permitted to build churches without the cities, and the Novatians to retain their churches within, because they held the same doctrines with himself.

Arcadius and Honorius,^[170] the sons and successors of Theodosius, embraced the orthodox religion and party, and confirmed all the decrees of the foregoing emperors in their favour. Soon after their accession to the imperial dignity, Nectarius bishop of Constantinople died, and John, called for his eloquence Chrysostom, was ordained in his room: he was a person of a very rigid and severe temper, an enemy to heretics, and against allowing them any toleration. Gaina, one of the principal officers of Arcadius, and who was a Christian of the Arian persuasion, desired of the

emperor one church for himself, and those of his opinion, within the city. Chrysostom being informed of it, immediately went to the palace, taking with him all the bishops he could find at Constantinople; and in the presence of the emperor bitterly inveighed against Gaina, who was himself at the audience, and reproached him for his former poverty, as also with insolence and ingratitude. Then he produced the law that was made by Theodosius, by which heretics were forbidden to hold assemblies within the walls of the city; and turning to the emperor, persuaded him to keep in force all the laws against heretics; adding, that it was better voluntarily to quit the empire, than to be guilty of the impiety of betraying the house of God. Chrysostom carried his point, and the consequence of it was an insurrection of the Goths, in the city of Constantinople; which had like to have ended in the burning the imperial palace, and the murder of the emperor, and did actually end in the cutting off all the Gothic soldiers, and the burning of their church, with great numbers of persons in it, who fled thither, for safety, and were locked in to prevent their escape. His violent treatment of several bishops,^[171] and the arbitrary manner of his deposing them, and substituting others in their room, contrary to the desires and prayers of the people, is but too full a proof of his imperious temper, and love of power. Not content with this, he turned his eloquence against the empress Eudoxia, and in a set oration inveighing against bad women, he expressed himself in such a manner, as that both his friends and enemies believed that the invective was chiefly levelled against her. This so enraged her that she soon procured his deposition and banishment. Being soon after restored, he added new provocations to the former, by rebuking the people for certain diversions they took at a place where the statue of the empress was erected. This she took for an insult on her person, and when Chrysostom knew her displeasure on this account, he used more severe expressions against her than before, saying, "Herodias is enraged again; she raises fresh disturbances, and again desires the head of John in a charger." On this and other accounts he was deposed and banished by a synod convened for that purpose, bishops being always to be had in those days easily, to do what was desired or demanded of them by the emperors. ^[V]Chrysostom died in his banishment, according to the Christian wish of Epiphanius,^[172] "I hope you will not die bishop of Constantinople;" which Chrysostom returned with a wish of the same good temper, "I hope you will not live to return to your own city;" so deadly was the hatred of these saints and fathers against

each other. After Chrysostom's death, his favourers and friends were treated with great severity, not indeed on the account of religion, but for other crimes of sedition they were charged with; and particularly, for burning down one of the churches in the city,^[173] the flames of which spread themselves to the senate house, and entirely consumed it.

Under the same emperors the Donatists^[174] gave sad specimens of their cruelty in Africa towards the orthodox, as St. Austin informs us. They seized on Maximianus, one of the African bishops, as he was standing at the altar, beat him unmercifully, and ran a sword into his body, leaving him for dead. And a little after he adds, that it would be tedious to recount the many horrible things they made the bishops and clergy suffer; some had their eyes put out; one bishop had his hands and tongue cut off, and others were cruelly destroyed. I forbear, says Austin, to mention their barbarous murders, and demolishing of houses, not private ones only, but the very churches themselves. Honorius^[175] published very severe edicts against them, ordaining, that if they did not, both clergy and laity, return to the catholics by such a day, they should be heavily fined, their estates should be confiscated, the clergy banished, and their churches all given to the catholics. These laws Austin commends as rightly and piously ordained, maintaining the lawfulness of persecuting heretics by all manner of ways, death only excepted.

Under the reign of Theodosius, Arcadius's son, those who were called heretics were grievously persecuted by the orthodox. Theodosius,^[176] bishop of Synnada in Phrygia, expelled great numbers of the followers of Macedonius from the city and country round about, "not from any zeal for the true faith," as Socrates says, "but through covetousness, and a design to extort money from them." On this account he used all his endeavours to oppress them, and particularly Agapetus, their bishop; armed his clergy against them, and accused them before the tribunal of the judges. And because he did not think the governors of the provinces sufficient to carry on this good work of persecution, he went to Constantinople to procure fresh edicts against them; but by this means he lost his bishopric, the people refusing him admission into the church upon his return, and choosing Agapetus, whom he had persecuted, in his room.

Theophilus,^[177] bishop of Alexandria, the great enemy of Chrysostom, being dead, Cyrill was enthroned in his room, not without great disturbance and opposition from the people, and used his power for the oppression of

heretics; for immediately upon his advancement he shut up all the churches of the Novatians in that city, took away all their sacred treasures, and stripped Theopemptus their bishop of every thing that he had. Nor was this much to be wondered at, since, as Socrates observes,^[178] from the time of Theophilus, Cyrill's predecessor, "the bishop of Alexandria began to assume an authority and power above what belonged to the sacerdotal order." On this account the great men hated the bishops, because they usurped to themselves a good part of that power which belonged to the imperial governors of provinces; and particularly Cyrill was hated by Orestes, prefect of Alexandria, not only for this reason, but because he was a continual spy upon his actions. At length their hatred to each other publicly appeared. Cyrill took on him, without acquainting the governor, or contrary to his leave, to deprive the Jews of all their synagogues, and banished them from the city, and encouraged the mob to plunder them of their effects. This the prefect highly resented, and refused the bishop's offers of peace and friendship. Upon this, about fifty monks came into the city for Cyrill's defence, and meeting the prefect in his chariot, publicly insulted him, calling him sacrificer and pagan; adding many other injurious reproaches. One of them, called Ammonius, wounded him in the head with a stone, which he flung at him with great violence, and covered him all over with blood; and being, according to the laws, put by Orestes publicly to the torture, he died through the severity of it. St. Cyrill honourably received the body into the church, gave him the new name of Thaumasius, or, the Wonderful; ordered him to be looked on as a martyr, and lavishly extolled him in the church, as a person murdered for his religion. This scandalous procedure of Cyrill's the Christians themselves were ashamed of, because it was publicly known that the monk was punished for his insolence; and even St. Cyrill himself had the modesty at last to use his endeavours that the whole affair might be entirely forgotten. The murder also of Hypatia,^[179] by Cyrill's friends and clergy, merely out of envy to her superior skill in philosophy, brought him and his church of Alexandria under great infamy; for as she was returning home from a visit, one Peter, a clergyman, with some other murderers, seized on her, dragged her out of her chariot, carried her to one of the churches, stripped her naked, scraped her to death with shells, then tore her in pieces, and burnt her body to ashes.

Innocent^[180] also, bishop of Rome, grievously persecuted the Novatians, and took from them many churches; and, as Socrates observes, was the first

bishop of that see who disturbed them. Celestine also, one of his successors, imitated this injustice, and took from the Novatians the remainder of their churches, and forced them to hold their assemblies in private;^[181] “for the bishops of Rome, as well as those of Alexandria, had usurped a tyrannical power, which, as priests, they had no right to;” and would not suffer those who agreed with them in the faith, as the Novatians did, to hold public assemblies, but drove them out of their oratories, and plundered them of all their substance.

Nestorius bishop of Constantinople, immediately upon his advancement, shewed himself a valiant persecutor; for as soon as ever he was ordained, he addressed himself to the emperor before the whole congregation,^[182] and said, “Purge me, O emperor, the earth from heretics, and I will give thee in recompence the kingdom of heaven. Conquer with me the heretics, and I with thee will subdue the Persians.” And, agreeable to his bloody wishes, the fifth day after his consecration, he endeavoured to demolish the church of the Arians, in which they were privately assembled for prayer. The Arians, in their rage, seeing the destruction of it determined, set fire to it themselves, and occasioned the burning down the neighbouring houses; and for this reason, not only the heretics, but those of his own persuasion, distinguished him by the name of Incendiary. But he did not rest here, but tried all tricks and methods to destroy heretics; and, by these means, endangered the subversion of Constantinople itself. He persecuted the Novatians, through hatred of Paul their bishop for his eminent piety. He grievously oppressed those who were not orthodox, as to the day of keeping Easter, in Asia, Lydia, and Caria, and occasioned the murders of great numbers on this account at Miletus and Sardis.

Few indeed of the bishops were free from this wicked spirit. Socrates, however, tells us,^[183] that Atticus, bishop of Constantinople, was a person of great piety and prudence, and that he did not offer violence to any of the heretics, but, that after he had once attempted to terrify them, he behaved more mildly and gently to them afterwards. Proclus^[184] also, bishop of the same city, who had been brought up under Atticus, was a careful imitator of his piety and virtue, and exercised rather greater moderation than his master, being gentle towards all men, from a persuasion that this was a much more proper method than violence, to reduce heretics to the true faith, and therefore he never made use of the imperial power for this purpose. And in this he imitated Theodosius the emperor, who was not at all

concerned or displeased that any should think differently of God from himself. However, the number of bishops of this temper was but small. Nothing pleased the generality of them but methods of severity, and the utter ruin and extirpation of their adversaries.

Under the reign of this emperor, the Arians also, in their turn, used the orthodox with no greater moderation than the orthodox had used them. The Vandals, who were partly pagans, and partly Arians, had seized on Spain and Africa, and exercised innumerable cruelties on those who were not of the same religion with themselves. Trasimond, their general in Spain, and Genseric, in Africa, used all possible endeavours to propagate Arianism throughout all their provinces. And, the more effectually to accomplish this design, they filled all places with slaughter and blood; by the advice of the bishops of their party, burning down churches, and putting the orthodox clergy to the most grievous and unheard of tortures, to make them discover the gold and silver of their churches, repeating these kind of tortures several times, so that many actually died under them. Genseric seized on all the sacred books he could find, that they might be deprived of the means of defending their opinions. By the counsel of his bishops, he ordered that none but Arians should be admitted to court, or employed in any offices about his children, or so much as enjoy the benefit of a toleration. Armogestes, Masculon, and Saturus, three officers of his court, were inhumanly tortured to make them embrace Arianism; and, upon their refusal, they were stripped of their honours and estates, and forced to protract a miserable life in the utmost poverty and want. These and many more instances of Genseric's cruelty towards the orthodox, during a long reign of thirty-eight years, are related by Victor, l. 1. *in fine*.



SECT. V.

The council of Ephesus; or third general council.

During these transactions, a new controversy, of a very extraordinary and important nature, arose in the church, which, as the other had done before, occasioned many disorders and murders, and gave birth to the third general council. Nestorius,^[185] the persecuting bishop of Constantinople, although tolerably sound in the doctrine of the real deity of the Logos, yet excepted against the Virgin Mary's being called "mother of God," because, as he argued, "Mary was a woman, and that, therefore, God could not be born of her;" adding, "I cannot call him God, who once was not above two or three months old;" and, therefore, he substituted another word in the room of it, calling her "mother of Christ." By this means he seemed to maintain not only the distinction of the two natures of Christ, for he allowed the proper personality and subsistence of the Logos, but that there were also two distinct persons in Christ; the one a mere man, absolutely distinct from the word, and the other God, as absolutely distinct from the human nature. This caused great disturbances in the city of Constantinople, and the dispute was thought of such consequence, as to need a council to settle it. Accordingly, Theodosius convened one at Ephesus,^[186] A. C. 431. of which Cyrill was president; and as he hated Nestorius, he persuaded the bishops of his own party to decree, that the Virgin was, and should be, the mother of God, and to anathematize all who should not confess her in this character, nor own that the word of God the Father was united substantially to the flesh, making one Christ of two natures, both God and man together; or who should ascribe what the scriptures say of Christ to two persons or subsistences, interpreting some of the man, exclusive of the word; and others of the word, exclusive of the human nature; or who should presume to call the man Christ, "the bearer, or the receptacle of God," instead of God; and hastily to depose Nestorius five days before the coming of John, bishop of Antioch, with his suffragan bishops. John, upon his arrival at Ephesus, deposed Cyrill, in a council of bishops held for that purpose, and accused him of being the author of all the disorders occasioned by this affair, and of having rashly proceeded to the desposition of Nestorius. Cyrill was soon absolved by his own council, and, in revenge, deposed John of

Antioch, and all the bishops of his party. But they were both reconciled by the emperor, and restored each other to their respective sees, and, as the effect of their reconciliation, both subscribed to the condemnation of Nestorius, who was sent into banishment, where, after suffering great hardships, he died miserably; being thus made to taste those sweets of persecution he had so liberally given to others, in the time of his power and prosperity. The emperor himself,^[187] though at first he disapproved of this council's conduct, yet afterwards was persuaded to ratify their decrees, and published a law, by which all who embraced the opinions of Nestorius, were, if bishops or clergymen, ordered to be expelled the churches; or, if laymen, to be anathematized. This occasioned irreconcilable hatreds amongst the bishops and people,^[188] who were so enraged against each other, that there was no passing with any safety from one province or city to another, because every one pursued his neighbour as his enemy, and, without any fear of God, revenged themselves on one another, under a pretence of ecclesiastical zeal.



SECT. VI

The council of Chalcedon; or fourth general council.

Marcian,^[189] the successor of Theodosius in the empire, embraced the orthodox party and opinions, and was very desirous to bring about an entire uniformity in the worship of God, and to establish the same form of doxologies amongst all Christians whatsoever.^[190] Agreeably to this his temper, Eusebius, bishop of Nicomedia, addressed him soon after his promotion, in these words: “God hath justly given you the empire, that you should govern all for the universal welfare, and for the peace of his holy church: and, therefore, before and in all things, take care of the principles of the orthodox and most holy faith, and extinguish the roarings of the heretics, and bring to light the doctrines of piety.” The legates also of Leo, bishop of Rome, presented him their accusations against Dioscorus, bishop of Alexandria; as did also Eusebius, bishop of Dorylæum, beseeching the emperor that these things might be judged and determined by a synod. Marcian consented, and ordered the bishops to meet first at Nice, and afterwards at Chalcedon, 451. This was the fourth oecumenical or general council, consisting of near six hundred prelates. The principal cause of their assembling was the Eutychian heresy. Eutyches, a presbyter of Constantinople, had asserted, in the reign of Theodosius, jun.^[191] that “Jesus Christ consisted of two natures before his union or incarnation, but that after this he had one nature only.” He also denied that “the body of Christ was of the same substance with ours.” On this account, he was deposed in a particular council at Constantinople, by Flavian, bishop of that place; but, upon his complaining to the emperor that the acts of that council were falsified by his enemies, a second synod of the neighbouring bishops met in the same city, who, after examining those acts, found them to be genuine, and confirmed the sentence against Eutyches. But Dioscorus, bishop of Alexandria, who was at enmity with Flavian of Constantinople, obtained, from Theodosius, that a third council should be held on this affair; which accordingly met at Ephesus, which the orthodox stigmatized by the name of the thieving council, or Council of Thieves. Dioscorus was president of it, and, after an examination of the affair of Eutyches, his sentence of excommunication and deposition was taken off, and himself restored to his

office and dignity; the bishops of Constantinople, Antioch, and others, being deposed in his stead. But the condemned bishops, and the legates from Rome, appealed from this sentence to another council, and prevailed with Theodosius to issue his letters for the assembling one: but as he died before they could meet,^[192] the honour of determining this affair was reserved for his successor, Marcian; and when the fathers, in obedience to his summons, were convened at Chalcedon, the emperor favoured them with his presence; and, in a speech to them, told them, “that he had nothing more at heart than to preserve the true and orthodox Christian faith, safe and uncorrupted, and that, therefore, he proposed to them a law, that no one should dare to dispute of the person of Christ, otherwise than as it had been determined by the council of Nice.” After this address of the emperor, the fathers proceeded to their synodical business, and, notwithstanding the synod was divided, some of the fathers piously crying out, “Damn Dioscorus, banish Dioscorus, banish the Egyptian, banish the heretic, Christ hath deposed Dioscorus;” others, on the contrary, “Restore Dioscorus to the council, restore Dioscorus to his churches;” yet, through the authority of the legates of Rome, Dioscorus was deposed for his contempt of the sacred canons, and for his contumacy towards the holy universal synod. After this, they proceeded to settle the faith according to the Nicene creed, the opinions of the fathers, and the doctrine of Athanasius, Cyrill, Cælestine, Hilarius, Basil, Gregory, and Leo; and decreed, that “Christ was truly God, and truly man, consubstantial to the Father as to his deity, and consubstantial to us as to his humanity; and that he was to be confessed as consisting of two natures without mixture, conversion of one into the other, and without division or separation; and that it should not be lawful for any person to utter, or write, or compose, or think, or teach any other faith whatsoever;” and that if any should presume to do it, they should, if bishops or clergymen, be deposed; and if monks or laicks, be anathematized. This procured a loud acclamation: “God bless the emperor, God bless the empress. We believe as pope Leo doth. Damn the dividers and the confounders. We believe as Cyrill did: immortal be the name of Cyrill. Thus the orthodox believe; and cursed be every one that doth not believe so too.” Marcian ratified their decrees,^[193] and banished Dioscorus, and put forth an edict, containing very severe penalties against the Eutychians and Apollinarists. By this law the emperor ordained, “that they should not have power of disposing their estates, and making a will, nor of inheriting what

others should leave them by will. Neither let them receive advantage by any deed of gift, but let whatsoever is given them, either by the bounty of the living, or the will of the dead, be immediately forfeited to our treasury; nor let them have the power, by any title or deed of gift, to transfer any part of their own estates to others. Neither shall it be lawful for them to have or ordain bishops or presbyters, or any other of the clergy whatsoever; as knowing that the Eutychians and Apollinarists, who shall presume to confer the names of bishop or presbyter, or any other sacred office upon any one, as well as those who shall dare to retain them, shall be condemned to banishment, and the forfeiture of their goods. And as to those who have been formerly ministers in the Catholic church, or monks of the orthodox faith, and forsaking the true and orthodox worship of the Almighty God, have or shall embrace the heresies and abominable opinions of Apollinarius or Eutyches, let them be subject to all the penalties ordained by this, or any foregoing laws whatsoever, against heretics, and banished from the Roman dominions, according as former laws have decreed against the Manicheans. Farther, let not any of the Apollinarists, or Eutychians, build churches or monasteries, or have assemblies and conventicles either by day or night; nor let the followers of this accursed sect meet in any one's house or tenement, or in a monastery, nor in any other place whatsoever: but if they do, and it shall appear to be with the consent of the owners of such places, after a due examination, let such place or tenement in which they meet be immediately forfeited to us; or if it be a monastery, let it be given to the orthodox church of that city in whose territory it is. But if so be they hold these unlawful assemblies and conventicles without the knowledge of the owner, but with the privity of him who receives the rents of it, the tenant, agent, or steward of the estate, let such tenant, agent, or steward, or whoever shall receive them into any house or tenement, or monastery, and suffer them to hold such unlawful assemblies and conventicles, if he be of low and mean condition, be publicly bastinadoed as a punishment to himself, and as a warning to others; but if they are persons of repute, let them forfeit ten pounds of gold to our treasury. Farther, let no Apollinarist or Eutychian ever hope for any military preferment, except to be listed in the foot soldiers, or garrisons: but if any of them shall be found in any other military service, let them be immediately broke, and forbid all access to the palace, and not suffered to dwell in any other city, town or country, but that wherein they were born."

“But if any of them are born in this august city, let them be banished from this most sacred society, and from every metropolitan city of our provinces. Farther, let no Apollinarist or Eutychian have the power of calling assemblies, public or private, or gathering together any companies, or disputing in any heretical manner; or of defending their perverse and wicked opinions; nor let it be lawful for any one to speak or write, or publish any thing of their own, or the writings of any others, contrary to the decrees of the venerable synod of Chalcedon. Let no one have any such books, nor dare to keep any of the impious performances of such writers. And if any are found guilty of these crimes, let them be condemned to perpetual banishment; and, as for those, who through a desire of learning shall hear others disputing of this wretched heresy, it is our pleasure that they forfeit ten pounds of gold to our treasury, and let the teacher of these unlawful tenets be punished with death. Let all such books and papers as contain any of the damnable opinions of Eutyches or Apollinarius be burnt, that all the remains of their impious perverseness may perish with the flames; for it is but just that there should be a proportionable punishment to deter men from these most outrageous impieties. And let all the governors of our provinces, and their deputies, and the magistrates of our cities, know, that if, through neglect or presumption, they shall suffer any part of this most religious edict to be violated, they shall be condemned to a fine of ten pounds of gold, to be paid into our treasury; and shall incur the farther penalty of being declared infamous.” For this law, pope Leo returns him thanks,^[194] and exhorts him farther, that he would reform the see of Alexandria, and not only depose the heretical clergy of Constantinople from their clerical orders, but expel them from the city itself.

At the same time that they published these cruel laws, the authors of them, as Mr. Limborch^[195] well observes, would willingly be thought to offer no violence to conscience. Marcian himself, in a letter to the Archimandrites of Jerusalem, says, Such is our clemency, that we use no force with any, to compel him to subscribe, or agree with us, if he be unwilling; for we would not by terrors and violence drive men into the paths of truth. Who would not wonder at this hypocrisy, and at such attempts to cover over their cruelties? They forbid men to learn or teach, under the severest penalties, doctrines which they who teach them are fully persuaded of the truth of, and think themselves obliged to propagate; and yet the author of such penalties would fain be thought to offer no violence

to conscience. But for what end are all these penalties against heretics ordained? For no other, unquestionably, but that men may be deterred, by the fear of them, from openly professing themselves, or teaching others, principles they think themselves bound in conscience to believe and teach; that being at length quite tired out by these hardships, they may join themselves to the established churches, and at least profess to believe their opinions. But this is offering violence to conscience, and persecution in the highest degree. But to proceed:

Proterius^[196] was substituted by this council bishop of Alexandria, in the room of Dioscorus; and upon his taking possession of his bishopric, the whole city was put into the utmost confusion, being divided, some for Dioscorus, some for Proterius. The mob assaulted with great violence their magistrates,^[197] and being opposed by the soldiers, they put them to flight by a shower of stones; and as they betook themselves to one of the churches for sanctuary, the mob besieged it, and burnt it to the ground, with the soldiers in it. The emperor sent two thousand other soldiers to quell this disturbance, who increased the miseries of the poor citizens, by offering the highest indignities to their wives and daughters. And though they were for some time kept in awe,^[198] yet, upon Marcian's death, they broke out into greater fury, ordained Timotheus bishop of the city, and murdered Proterius, by running him through with a sword. After this, they hung him by a rope, in a public place, by way of derision, and then, after they had ignominiously drawn him round the whole city, they burnt him to ashes, and even fed on his very bowels in the fury of their revenge. The orthodox charged these outrages upon the Eutychians; but Zacharias, the historian, mentioned by Evagrius, says, Proterius himself was the cause of them, and that he raised the greatest disturbances in the city: and, indeed, the clergy of Alexandria, in their letter to Leo, the emperor, concerning this affair, acknowledge, that Proterius had deposed Timotheus, with four or five bishops, and several monks, for heresy, and obtained of the emperor their actual banishment. Great disturbances happened also in Palestine^[199] on the same account; the monks who opposed the council forcing Juvenal, bishop of Jerusalem, to quit his see, and getting one Theodosius ordained in his room. But the emperor soon restored Juvenal, after whose arrival the tumults and miseries of the city greatly increased, the different parties acting by one another just as their fury and revenge inspired them.

Leo succeeded Marcian,^[200] and sent circular letters to the several bishops, to make inquiries concerning the affairs of Alexandria, and the council of Chalcedon. Most of the bishops adhered to the decrees of those fathers, and agreed to depose Timotheus, who was sent to bear Dioscorus company in banishment.

Under Zeno, the son-in-law and successor of Leo, Hunnerick the Vandal grievously persecuted the orthodox in Africa. In the beginning of his reign he made a very equitable proposal, that he would allow them the liberty of choosing a bishop, and worshipping according to their own way, provided the emperor would grant the Arians the same liberty in Constantinople, and other places. This the orthodox would not agree to, choosing rather to have their own brethren persecuted, than to allow toleration to such as differed from them. Hunnerick was greatly enraged by this refusal, and exercised great severity towards all who would not profess the Arian faith, being excited hereto by Cyrill, one of his bishops, who was perpetually suggesting to him, that the peace and safety of his kingdom could not be maintained, unless he extirpated all who differed from him as public nuisances. This cruel ecclesiastical advice was agreeable to the king's temper, who immediately put forth the most severe edicts against those who held the doctrine of the consubstantiality, and turned all those laws which had been made against the Arians, and other heretics, against the orthodox themselves; it being, as Hunnerick observes in his edict, "an instance of virtue in a king, to turn evil counsels against those who were the authors of them." But though the persecution carried on by the orthodox was no vindication of Hunnerick's cruelty towards them, yet I think they ought to have observed the justice of divine Providence, in suffering a wicked prince to turn all those unrighteous laws upon themselves, which, when they had power on their side, they had procured for the punishment and destruction of others. A particular account of the cruelties exercised by this prince may be read at large in Victor de Vandal. Persec. l. 3.

Zeno, though perfectly orthodox in his principles, yet was a very wicked and profligate prince, and rendered himself so extremely hateful to his own family, by his vices and debaucheries, that Basiliscus, brother of Verina, mother of Zeno's empress, expelled him the empire, and reigned in his stead;^[201] and having found by experience, that the decrees of the council of Chalcedon had occasioned many disturbances, he by an edict ordained, that the Nicene creed alone should be used in all churches, as being the only rule

of the pure faith, and sufficient to remove every heresy, and perfectly to unite all the churches; confirming at the same time the decrees of the councils of Constantinople and Ephesus. But as to those of the council of Chalcedon, he ordered, that as they had destroyed the unity and good order of the churches, and the peace of the whole world, they should be anathematized by all the bishops; and that wherever any copies of those articles should be found they should be immediately burnt. And that whosoever after this should attempt, either by dispute or writing, or teaching, at any time, manner or place, to utter, or so much as name the novelties that had been agreed on at Chalcedon contrary to the faith, should, as the authors of tumults and seditions in the churches of God, and as enemies to God and himself, be subject to all the penalties of the laws, and be deposed, if bishops or clergymen; and if monks or laicks, be punished with banishment, and confiscation of their effects, and even with death itself.^[202] Most of the eastern bishops subscribed these letters of Basiliscus; and being afterwards met in council at Ephesus, they deposed Acacius, the orthodox bishop of Constantinople, and many other bishops that agreed with him. They also wrote to the emperor to inform him, that “they had voluntarily subscribed his letters,” and to persuade him to adhere to them, or that otherwise “the whole world would be subverted, if the decrees of the synod of Chalcedon should be re-established, which had already produced innumerable slaughters, and occasioned the shedding of the blood of the orthodox Christians.” But Acacius, bishop of Constantinople, soon forced Basiliscus to alter his measures, by raising up the monks and mob of the city against him; so that he recalled his former letters, and ordered Nestorius and Eutyches, with all their followers, to be anathematized, and soon after he quitted the empire to Zeno.^[203] Upon his restoration he immediately rescinded the acts of Basiliscus, and expelled those bishops from their sees, which had been ordained during his abdication. In the mean time the Asiatic bishops, who in their letter to Basiliscus had declared, that the report of their “subscribing involuntarily, and by force, was a slander and a lie;” yet, upon this turn of affairs, in order to excuse themselves to Acacius, and to ingratiate themselves with Zeno, affirm, “that they did it not voluntarily, but by force, swearing that they had always, and did now believe the faith of the synod of Chalcedon.” Evagrius leaves it in doubt, whether Zacharias defamed them, or whether the bishops lied, when they affirmed that they subscribed involuntarily, and against their consciences.

Zeno^[204] observing the disputes that had arisen through the decrees of the last council, published his Henoticon, or his “uniting and pacific edict,”^[205] in which he confirmed the Nicene, Constantinopolitan, and Ephesine councils, ordained that the Nicene creed should be the standard of orthodoxy, declared that neither himself nor the churches have, or had, or would have any other symbol or doctrine but that, condemned Nestorius and Eutyches, and their followers; and ordered, that whosoever had, or did think otherwise, either now or formerly, whether at Chalcedon or any other synod, should be anathematized. The intention of the emperor by this edict, was plainly to reconcile the friends and opposers of the synod of Chalcedon; for he condemned Nestorius and Eutyches, as that council had done, but did not anathematize those who would not receive their decrees, nor submit to them as of equal authority with those of the three former councils: but this compromise was far from having the desired effect.

During these things several changes happened in the bishopric of Alexandria.^[206] Timothy, bishop of that place, being dead, one Peter Mongus was elected by the bishops suffragans of that see, which so enraged Zeno, that he intended to have put him to death; but changed it for banishment, and Timothy, successor of Proterius, was substituted in his room. Upon Timothy’s death, John, a presbyter of that church, obtained the bishopric by simony, and in defiance of an oath he had taken to Zeno, that he would never procure himself to be elected into that see. Upon this he was expelled, and Mongus restored by the emperor’s order. Mongus immediately consented, and subscribed to the pacific edict, and received into communion those who had formerly been of a different party. Soon after this he was accused by Calendio,^[207] bishop of Antioch, for adultery, and for having publicly anathematized the synod of Chalcedon at Alexandria; and though this latter charge was true, yet he solemnly denied it in a letter to Acacius,^[208] bishop of Constantinople, turning with the time, condemning and receiving it, just as it suited his views, and served his interest. But being at last accused before Felix,^[209] bishop of Rome, he was pronounced an heretic, excommunicated, and anathematized.

Anastasius,^[210] who succeeded Zeno, was himself a great lover of peace, and endeavoured to promote it, both amongst the clergy and laity, and therefore ordered, that there should be no innovations in the church whatsoever. But this moderation was by no means pleasing to the monks and bishops. Some of them were great sticklers for the council of

Chalcedon, and would not allow so much as a syllable or a letter of their decrees to be altered, nor communicate with those who did not receive them. Others were so far from submitting to this synod, and their determinations, that they anathematized it; whilst others adhered to Zeno's Henoticon, and maintained peace with one another, even though they were of different judgments concerning the nature of Christ. Hence the church was divided into factions, so that the bishops would not communicate with each other. Not only the eastern bishops separated from the western, but those of the same provinces had schisms amongst themselves. The emperor, to prevent as much as possible these quarrels, banished those who were most remarkably troublesome from their sees, and particularly the bishops of Constantinople and Antioch, forbidding all persons to preach either for or against the council of Chalcedon, in any places where it had not been usual to do it before; that by allowing all churches their several customs, he might prevent any disturbances upon account of innovations.^[211] But the monks and bishops prevented all these attempts for peace, by forcing one another to make new confessions and subscriptions, and by anathematizing all who differed from them as heretics; so that by their seditious and obstinate behaviour they occasioned innumerable quarrels and murders in the empire. They also treated the emperor himself with great insolence, and excommunicated him as an enemy to the synod of Chalcedon. Macedonius,^[212] bishop of Constantinople, and his clergy raised the mob of that city against him, only for adding to one of their hymns these words, "who was crucified for us." And when for this reason Macedonius was expelled his bishopric, they urged on the people to such an height of fury as endangered the utter destruction of the city; for in their rage they set fire to several places in it, cut off the head of a monk, crying out, he was "an enemy of the Trinity;" and were not to be appeased till the emperor himself went amongst them without his imperial diadem, and brought them to temper by proper submissions and persuasions.^[213] And though he had great reason to be offended with the bishops for such usage, yet he was of so humane and tender a disposition, that though he ordered several of them to be deposed for various offences, yet apprehending that it could not be effected without bloodshed, he wrote to the prefect of Asia, "not to do any thing in the affair, if it would occasion the shedding a single drop of blood."

Under this emperor, Symmachus,^[214] bishop of Rome, expelled the Manichees from the city, and ordered their books to be publicly burnt

before the doors of the church.

Justin^[215] was more zealous for orthodoxy than his predecessor Anastasias, and in the first year of his reign gave a very signal proof of it. Severus, bishop of Antioch, was warm against the council of Chalcedon, and continually anathematizing it in the letters he wrote to several bishops; and because the people quarrelled on this account, and divided into several parties, Justin ordered the bishop to be apprehended, and his tongue to be cut out; and commanded that the synod of Chalcedon should be preached up through all the churches of the empire. Platina also tells us,^[216] that he banished the Arians, and gave their churches to the orthodox. Hormisda also, bishop of Rome, in imitation of his predecessor Symmachus, banished the remainder of the Manichees, and caused their writings to be burnt.

Justinian,^[217] his successor in the empire, succeeded him also in his zeal for the council of Chalcedon, and banished the bishops of Constantinople and Antioch, because they would not obey his orders, and receive the decrees of that synod. He also published a constitution, by which he anathematized them and all their followers; and ordered, that whosoever should preach their opinions should be subject to the most grievous punishments. By this means nothing was openly preached in any of the churches but this council; nor did any one dare to anathematize it. And whosoever were of a contrary opinion, they were compelled by innumerable methods to come into the orthodox faith. In the third year of his reign^[218] he published a law, ordering that there should be no pagans, nor heretics, but orthodox Christians only, allowing to heretics three months only for their conversion. By another he deprived heretics of the right of succession.^[219] By another he rendered them incapable of being witnesses in any trial against Christians. He prohibited them also from baptizing any persons, and from transcribing heretical books, under the penalty of having the hand cut off. These laws were principally owing to the persuasions of the bishops. Thus Agapetus, bishop of Rome, who had condemned Anthimus, and deposed him from his see of Constantinople, persuaded Justinian to banish all those whom he had condemned for heresy. Pelagius also desired,^[220] that heretics and schismatics might be punished by the secular power, if they would not be converted. The emperor was too ready to comply with this advice. But notwithstanding all this zeal for orthodoxy, and the cruel edicts published by him for the extirpation of heresy, he was infamously covetous,^[221] sold the provinces of the empire to plunderers and oppressors, stripped

the wealthy of their estates upon false accusations and forged crimes, and went partners with common whores in their gains of prostitution; and what is worse, in the estates of those whom those wretches falsely accused of rapes and adulteries. And yet, that he might appear as pious as he was orthodox, he built out of these rapines and plunders many stately and magnificent churches; many religious houses for monks and nuns, and hospitals for the relief of the aged and infirm. Evagrius^[222] also charges him with more than bestial cruelty in the case of the Venetians, whom he not only allowed, but even by rewards encouraged to murder their enemies at noon-day, in the very heart of the city, to break open houses, and plunder the possessors of their riches, forcing them to redeem their lives at the expence of all they had. And if any of his officers punished them for these violences, they were sure to be punished themselves with infamy or death. And that each side might taste of his severities, he afterwards turned his laws against the Venetians, putting great numbers of them to death, for those very murders and violences he had before encouraged and supported.

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SECT. VII.

The second council at Constantinople; or fifth general council.

During his reign, in the 24th year of it, was held the fifth general council at Constantinople, A. C. 553, consisting of about 165 fathers. The occasion of their meeting was the opposition that was made to the four former general councils, and particularly the writings of Origen, which Eustachius, bishop of Jerusalem, accused, as full of many dangerous errors.^[223] In the first sessions it was debated, whether “those who were dead were to be anathematized?” One Eutychius looked with contempt on the fathers for their hesitation in so plain a matter, and told them, that there needed no deliberation about it; for that king Josias formerly did not only destroy the idolatrous priests who were living, but dug also those who had been dead long before out of their graves. So clear a determination of the point, who could resist? The fathers immediately were convinced, and Justinian caused him to be consecrated bishop of Constantinople, in the room of Menas, just deceased, for this his skill in scripture and casuistry. The consequence was, that the decrees of the four preceding councils were all confirmed; those who were condemned by them re-condemned and anathematized, particularly Theodorus bishop of Mopsuestia, and Ibas, with their writings, as favouring the impieties of Nestorius: and finally, Origen, with all his detestable and execrable principles, and all persons whatsoever who should think, or speak of them, or dare to defend them. After these transactions the synod sent an account of them to Justinian,^[224] whom they complimented with the title of “the most Christian king, and with having a soul partaker of the heavenly nobility.” And yet soon after these flatteries his most Christian majesty turned heretic himself, and endeavoured with as much zeal to propagate heresy, as he had done orthodoxy before; he published an edict, by which he ordained, that “the body of Christ was incorruptible, and incapable even of natural and innocent passions; that before his death he eat in the same manner as he did after his resurrection, receiving no conversion or change from his very formation in the womb, neither in his voluntary or natural affections, nor after his resurrection.” But as he was endeavouring to force the bishops to receive his creed, God was pleased, as Evagrius observes,^[225] to cut him off; and notwithstanding “the heavenly nobility of

his soul, he went,” as the same author charitably supposes,^[226] “to the devil.”

Hunnerick,^[227] the Arian king of the Vandals, treated the orthodox in this emperor’s reign with great cruelty in Africa, because they would not embrace the principles of Arius; some he burnt, and others he destroyed by different kinds of death; he ordered the tongues of several of them to be cut out, who afterwards made their escape to Constantinople; where Procopius, if you will believe him, affirms he heard them speak as distinctly as if their tongues had remained in their heads. Justinian himself mentions them in one of his constitutions. Two of them, however, who happened to be whore-masters, lost afterwards the use of their speech for this reason, and the honour and grace of martyrdom.

Justin the younger,^[228] who succeeded Justinian, published an edict soon after his advancement, by which he sent all bishops to their respective sees, and to perform divine worship according to the usual manner of their churches, without making any innovations concerning the faith. As to his personal character, he was extremely dissolute and debauched, and addicted to the most vile and criminal pleasures. He was also sordidly covetous, and sold the very bishoprics to the best bidders, putting them up to public auction. Nor was he less remarkable for his cruelty;^[229] he had a near relation of his own name, whom he treacherously murdered; and of whom he was so jealous, that he could not be content till he and his empress had trampled his head under their feet.^[230] However, he was very orthodox, and published a new explication of the faith, which for clearness and subtlety exceeded all that went before it. In this he professes, that “he believed in Father, Son, and Holy Spirit, the consubstantial Trinity, one deity, or nature, or essence, and one virtue, power and energy, in three hypostases or persons; and that he adored the Unity in Trinity, and the Trinity in Unity, having a most admirable division and union; the Unity according to the essence or deity; the Trinity according to the properties, hypostases or persons; for they are divided indivisibly; or, if I may so speak, they are joined together separately. The godhead in the three is one, and the three are one, the deity being in them; or to speak more accurately, which three are the deity. It is God the Father, God the Son, and God the Holy Ghost, when each person is considered by itself, the mind thus separating things inseparable; but the three are God, when considered together, being one in operation and nature. We believe also in one only begotten Son of God, God

the Word—for the holy Trinity received no addition of a fourth person, even after the incarnation of God the Word, one of the holy Trinity. But our Lord Jesus Christ is one and the same, consubstantial to God, even the Father, according to his deity, and consubstantial to us according to his manhood; liable to suffering in the flesh, but impassible in the deity. For we do not own that God the Word, who wrought the miracles, was one, and he that suffered another; but we confess that our Lord Jesus Christ, the Word of God, was one and the same, who was made flesh and became perfect man; and that the miracles and sufferings were of one and the same: for it was not any man that gave himself for us, but God the Word himself, being made man without change; so that when we confess our Lord Jesus Christ to be one and the same, compounded of each nature, of the godhead and manhood, we do not introduce any confusion or mixture by the union—for as God remains in the manhood, so also nevertheless doth the man, being in the excellency of the deity, Emanuel being both in one and the same, even one God and also man. And when we confess him to be perfect in the godhead, and perfect in the manhood, of which he is compounded, we do not introduce a division in part, or section to his one compounded person, but only signify the difference of the natures, which is not taken away by the union; for the divine nature is not converted into the human, nor the human nature changed into the divine. But we say, that each being considered, or rather actually existing in the very definition or reason of its proper nature, constitutes the oneness in person. Now this oneness as to person signifies that God the Word, i. e. one person of the three persons of the godhead, was not united to a pre-existent man, but that he formed to himself in the womb of our holy Lady Mary, glorious mother of God, and ever a virgin, and out of her, in his own person, flesh consubstantial to us, and liable to all the same passions, without sin, animated with a reasonable and intellectual soul.—For considering his inexplicable oneness, we orthodoxly confess one nature of God the Word made flesh, and yet conceiving in our minds the difference of the natures, we say they are two, not introducing any manner of division. For each nature is in him; so that we confess him to be one and the same Christ, one Son, one person, one hypostasis, God and man together. Moreover, we anathematize all who have, or do think otherwise, and judge them as cut off from the holy Catholic, and apostolic church of God.” To this extraordinary edict, all, says

the historian, gave their consent, esteeming it to be very orthodox, though they were not more united amongst themselves than before.

Under Mauritius,^[231] John bishop of Constantinople, in a council held at that city, stiled himself oecumenical bishop, by the consent of the fathers there assembled; and the emperor himself ordered Gregory to acknowledge him in that character. Gregory absolutely refused it, and replied, that the power of binding and loosing was delivered to Peter and his successors, and not to the bishops of Constantinople; admonishing him to take care, that he did not provoke the anger of God against himself, by raising tumults in his church. This pope was the first who stiled himself, *Servus Servorum Dei*,^[232] servant of the servants of God; and had such an abhorrence of the title of universal bishop, that he said, “I confidently affirm, that whosoever calls himself universal priest is the forerunner of Antichrist, by thus proudly exalting himself above others.”

But, how ever modest Gregory was in refusing and condemning this arrogant title, Boniface III.^[233] thought better of the matter, and after great struggles, prevailed with Phocas, who murdered Mauritius the emperor, to declare that the see of the blessed apostle Peter, which is the head of all churches, should be so called and accounted by all, and the bishop of it oecumenical or universal bishop. The church of Constantinople had claimed this precedence and dignity, and was sometimes favoured herein by the emperors, who declared, that the first see ought to be in that place which was the head of the empire. The Roman pontiffs, on the other hand, affirmed, that Rome, of which Constantinople was but a colony, ought to be esteemed the head of the empire, because the Greeks themselves, in their writings, stile the emperor Roman emperor, and the inhabitants of Constantinople are called Romans, and not Greeks; not to mention that Peter, the prince of the apostles, gave the keys of the kingdom of heaven to his successors, the popes of Rome. On this foundation was the superiority of the church of Rome to that of all other churches built; and Phocas, who was guilty of all villanies, was one of the fittest persons that could be found to gratify Boniface in this request. Boniface, also, called a council at Rome, where this supremacy was confirmed, and by whom it was decreed, that bishops should be chosen by the clergy and people, approved by the prince of the city, and ratified by the pope with these words, “*Volumus & jubemus*,” for this is our will and command. To reward Phocas for the grant of the primacy, he approved the murder of Mauritius, and very honourably

received his images, which he sent to Rome. And having thus wickedly possessed themselves of this unrighteous power, the popes as wickedly used it, soon brought almost the whole Christian world into subjection to them, and became the persecutors general of the church of God; proceeding from one usurpation to another, till at last they brought emperors, kings and princes into subjection, forcing them to ratify their unrighteous decrees, and to punish, in the severest manner, all that should presume to oppose and contradict them, till she became “drunken with the blood of the saints, and with the blood of the martyrs of Jesus, Babylon the great, the mother of harlots, and abominations of the earth.”

The inquisition is the master-piece of their policy and cruelty; and such an invention for the suppression of religion and truth, liberty and knowledge, innocence and virtue, as could proceed from no other wisdom but that which is “earthly, sensual, and devilish.” And as the history of it, which I now present my reader with a faithful abstract of, gives the most perfect account of the laws and practices of this accursed tribunal, I shall not enter into the detail of popish persecutions, especially as we have a full account of those practised amongst ourselves in Fox and other writers, who have done justice to this subject. I shall only add a few things relating to the two other general councils, as they are stiled by ecclesiastical historians.

Under Heraclius,^[234] the successor of Phocas, great disturbances were raised upon account of what they called the heresy of the Monothelites, i. e. those who held there were not two wills, the divine and human, in Christ, but only one single will or operation. The emperor himself was of this opinion, being persuaded into it by Pyrrhus patriarch of Constantinople, and Cyrus bishop of Alexandria. And though he afterwards seems to have changed his mind in this point, yet in order to promote peace, he put forth an edict, forbidding disputes or quarrels, on either side the question. Constans, his grandson, was of the same sentiment, and at the instigation of Paul bishop of Constantinople, grievously persecuted those who would not agree with him. Martyn,^[235] pope of Rome, sent his legates to the emperor and patriarch to forsake their errors, and embrace the truth; but his holiness was but little regarded, and after his legates were imprisoned and whipped, they were sent into banishment. This greatly enraged Martyn, who convened a synod at Rome of 150 bishops, who decreed, that whosoever should “not confess two wills, and two operations united, the divine and the human, in one and the same Christ, should be anathema,” and that Paul

bishop of Constantinople should be condemned and deposed. The emperor highly resented this conduct, and sent Olympius hexarch into Italy to propagate the Monothelite doctrine; and either to kill Martyn, or send him prisoner to Constantinople. Olympius not being able to execute either design, Theodorus was sent in his room, who apprehended the pope, put him in chains, and got him conveyed to the emperor, who after ignominiously treating him, banished him to Pontus, where he died in great misery and want. The bishops of Constans's party^[236] were greatly assistant to him in this work of persecution, and shewed more rage against their fellow-Christians, than they did against the very barbarians themselves.



SECT. VIII.

The third council at Constantinople; or sixth general council.

Constantine, the eldest son of Constans, cut off his two younger brothers' noses, that they might not share the empire with him; but, however, happened to be more orthodox than his predecessors; and by the persuasion of Agatho,^[237] pope of Rome, convened the sixth general council at Constantinople, A. D. 680, in which were present 289 bishops. The fathers of this holy synod complimented the emperor with being "another David, raised up by Christ, their God, a man after his own heart; who had not given sleep to his eyes, nor slumber to his eye-lids, till he had gathered them together, to find out the perfect rule of faith." After this they condemned the heresy of one will in Christ, and declared, "that they glorified two natural wills and operations, indivisibly, inconvertibly, without confusion, and inseparably in the same Lord Jesus Christ, our true God, i. e. the divine operation, and the human operation." So that now the orthodox faith, in reference to Christ, was this; that "he had two natures, the divine and human; that these two natures were united, without confusion, into one single person; and that in this one single person, there were two distinct wills and operations, the human and divine." Thus, at last, 680 years after Christ, was the orthodox faith, relating to his deity, humanity, nature and wills, decided and settled by this synod; who, after having pronounced anathemas against the living and dead, ordered the burning of heretical books, and deprived several bishops of their sees; procured an edict from the emperor, commanding all to receive their confession of faith, and denouncing not only eternal, but corporal punishments to all recusants; viz. if they were bishops, or clergymen, or monks, they were to be banished; if laymen, of any rank and figure, they were to forfeit their estates, and lose their honours; if of the common people, they were to be expelled the royal city. These their definitive sentences were concluded with the usual exclamation, of, "God save the emperor, long live the orthodox emperor; down with the heretics; cursed be Eutyches, Macarius, &c. The Trinity hath deposed them."

The next controversy of importance was relating to the worship of images. The respect due to the memories of the apostles and martyrs of the

Christian church, was gradually carried into great superstition, and at length degenerated into downright idolatry. Not only churches were dedicated to them, but their images placed in them, and religious adoration paid to them. Platina tells us, that amongst many other ceremonies introduced by pope Sixtus III. in the fifth century, he persuaded Valentinian the younger, emperor of the West, to beautify and adorn the churches, and to place upon the altar of St. Peter, a golden image of our Saviour, enriched with jewels. In the next century the images of the saints were brought in, and religious worship paid to them. This appears from a letter of pope Gregory's, to the bishop of Marseilles, who broke in pieces certain images, because they had been superstitiously adored. Gregory tells him,^[238] "I commend you, that through a pious zeal, you would not suffer that which is made with hands to be adored; but I blame you for breaking the images in pieces: for it is one thing to adore a picture, and another to learn by the history of the picture what is to be adored." And elsewhere he declares,^[239] that "images and pictures in churches, were very useful for the instruction of the ignorant, who could not read." Sergius, after this, repaired the images of the apostles. John VII. adorned a great many churches with the pictures and images of the saints. And at length, in the reign of Philippicus, Constantine the pope, in a synod held at Rome, decreed, that images should be fixed up in the churches, and have great adoration paid them. He also condemned and excommunicated the emperor himself for heresy; because he erased the pictures of the fathers, which had been painted on the walls of the church of St. Sophia, at Constantinople; and commanded that his images should not be received into the church; that his name should not be used in any public or private writings, nor his effigies stamped upon any kind of money whatsoever.

This superstition of bringing images into churches was warmly opposed, and gave occasion to many disturbances and murders. The emperor Leo Isaurus greatly disapproved this practice, and published an edict, by which he commanded all the subjects of the Roman empire to deface all the pictures, and to take away all the statues of the martyrs and angels out of the churches, in order to prevent idolatry, threatening to punish those who did not, as public enemies. Pope Gregory II.^[240] opposed this edict, and admonished all Catholics, in no manner to obey it. This occasioned such a tumult at Ravenna in Italy, between the partisans of the emperor and the pope, as ended in the murder of Paul, exarch of Italy, and his son; which

enraged the emperor in an high degree; so that he ordered all persons to bring to him all their images of wood, brass, and marble, which he publicly burnt; punishing with death all such as were found to conceal them. He also convened a synod at Constantinople; where, after a careful and full examination, it was unanimously agreed, that the intercession of the saints was a mere fable; and the worship of images and relicts was downright idolatry, and contrary to the word of God. And as Germanus, patriarch of Constantinople, favoured images, the emperor banished him, and substituted Anastasius, who was of his own sentiments, in his room. Gregory III.^[241] in the beginning of his pontificate, assembled his clergy, and by their unanimous consent, deposed him on this account from the empire, and put him under excommunication; and was the first who withdrew the Italians from their obedience to the emperors of Constantinople, calling in the assistance of Charles king of France. After this, he placed the images of Christ and his apostles in a more sumptuous manner than they were before upon the altar of St. Peter, and at his own expence made a golden image of the Virgin Mary, holding Christ in her arms, for the church of St. Mary ad Præsepe.

Constantine Copronymus, Leo's son and successor in the empire, inherited his father's zeal against the worship of images, and called a synod at Constantinople to determine the controversy. The fathers being met together, to the number of 330, after considering the doctrine of scripture, and the opinions of the fathers, decreed, "that every image, of whatsoever materials made and formed by the artist, should be cast out of the Christian church as a strange and abominable thing; adding an anathema upon all who should make images or pictures, or representations of God, or of Christ, or of the Virgin Mary, or of any of the saints, condemning it as a vain and diabolical invention; deposing all bishops, and subjecting the monks and laity, who should set up any of them in public or private, to all the penalties of the imperial constitutions." They also deposed Constantine, patriarch of Constantinople, for opposing this decree; and the emperor first banished him, and afterwards put him to death; and commanded, that this council should be esteemed and received as the seventh oecumenical, or universal one. Paul I.^[242] pope of Rome, sent his legate to Constantinople, to admonish the emperor to restore the sacred images and statues which he had destroyed; and threatened him with excommunication upon his refusal.

But Copronymus slighted the message, and treated the legates with great contempt, and used the image worshippers with a great deal of severity.

Constantine, bishop of Rome, the successor of Paul, seems also to have been an enemy to images, and was there tumultuously deposed; and Stephen III.^[243] substituted in his room, who was a warm and furious defender of them. He immediately assembled a council in the Lateran church, where the holy fathers abrogated all Constantine's decrees; deposed all who had been ordained by him bishops; made void all his baptisms and chrisms; and, as some historians relate, after having beat him, and used him with great indignity, made a fire in the church, and burnt him therein. After this, they annulled all the decrees of the synod of Constantinople, ordered the restoration of statues and images, and anathematized that execrable and pernicious synod, giving this excellent reason for the use of images; "that if it was lawful for emperors, and those who had deserved well of the commonwealth, to have their images erected, but not lawful to set up those of God, the condition of the immortal God would be worse than that of men." After this the pope published the acts of the council, and pronounced an anathema against all those who should oppose it.



SECT. IX.

The second Nicene council; or seventh general council.

Thus the mystery of this iniquity worked, till at length, under the reign of Irene and Constantine her son, a synod was packed up of such bishops as were ready to make any decrees that should be agreeable to the Roman pontiff, and the empress. They met at Nice, An. 787, to the number of about 350. In this venerable assembly it was decreed, “that holy images of the cross should be consecrated, and put on the sacred vessels and vestments, and upon walls and boards, in private houses and public ways; and especially that there should be erected images of the Lord our God, our Saviour Jesus Christ, of our blessed Lady, the mother of God, of the venerable angels, and of all the saints. And that whosoever should presume to think or teach otherwise, or to throw away any painted books, or the figure of the cross, or any image or picture, or any genuine relicts of the martyrs, they should, if bishops or clergymen, be deposed; or if monks or laymen, be excommunicated.” Then they pronounced anathemas upon all who should not receive images, or who should call them idols, or who should wilfully communicate with those who rejected and despised them; adding, according to custom, “Long live Constantine and Irene his mother. Damnation to all heretics. Damnation on the council that roared against venerable images: the holy Trinity hath deposed them.”

Irene and Constantine approved and subscribed these decrees, and the consequence was, that idols and images were erected in all the churches; and those who were against them, treated with great severity. This council was held under the popedom of Hadrian I. and thus, by the intrigues of the popes of Rome, iniquity was established by a law, and the worship of idols authorized and established in the Christian church, though contrary to all the principles of natural religion, and the nature and design of the Christian revelation.

It is true, that this decision of the council did not put an entire end to the controversy. Platina tells us,^[244] that Constantine himself, not long after, annulled their decrees, and removed his mother from all share in the government. The synod also of Francfort, held about six years after, decreed that the worship and adoration of images was impious; condemned the

synod of Nice, which had established it, and ordered that it should not be called either the seventh, or an universal council. But as the Roman pontiffs had engrossed almost all power into their own hands, all opposition to image worship became ineffectual; especially as they supported their decrees by the civil power, and caused great cruelties to be exercised towards all those who should dare dispute or contradict them.

For many years the world groaned under this antichristian yoke; nor were any methods of fraud, imposture and barbarity, left unpractised to support and perpetuate it. As the clergy rid lords of the universe, they grew wanton and insolent in their power; and as they drained the nations of their wealth to support their own grandeur and luxury, they degenerated into the worst and vilest set of men that ever burdened the earth. They were shamefully ignorant, and scandalously vicious; well versed in the most exquisite arts of torture and cruelty, and absolutely divested of all bowels of mercy and compassion towards those, who even in the smallest matters differed from the dictates of their superstition and impiety. The infamous practices of that accursed tribunal, the inquisition, the wars against heretics in the earldom of Tholouse, the massacres of Paris and Ireland, the many sacrifices they have made in Great Britain, the fires they have kindled, and the flames they have lighted up in all nations, where their power hath been acknowledged, witness against them, and demonstrate them to be very monsters of mankind. So that one would really wonder, that the whole world hath not entered into a combination, and risen in arms against so execrable a set of men, and extirpated them as savage beasts, from the face of the whole earth; who, out of a pretence of religion, have defiled it with the blood of innumerable saints and martyrs, and made use of the name of the most holy Jesus, to countenance and sanctify the most abominable impieties.

But as the inquisition is their master piece of hellish policy and cruelty, I shall give a more particular account of it in the following book.

57. Hieron. in Gal. c. 6.

58. Euseb. l. 5. c. 24.

I. See note [I] at the end of the volume.

59. Euseb. l. 5. c. 28.

60. Epist. 54. Ed. Fell.

61. Lib. 5. c. 20.

62. Epist. 13.

63. E. H. l. 10. c. 5.

64. Ibid.

J. See note [J] at the end of the volume.

65. De Vit. Con. l. 1. c. 44.

66. E. H. l. 10. c. 5.

67. E. H. l. 10. c. 6.

68. De vit. Const. l. 2.

69. Ibid. c. 45.

70. Ibid. c. 56.

71. Euseb. E. H. l. 5. c. 28.

72. Ibid. l. 6. c. 33.

K. See note [K] at the end of the volume.

73. Ibid. l. 7. c. 27.

74. Ibid. l. 7. c. 28, 29.

75. De vit. Const. l. 2. c. 61.

L. See note [L] at the end of the volume.

76. Soc. E. H. l. 1. c. 6.

77. Euseb. l. 6. c. 45.

78. Soc. E. H. l. 1. c. 15.

79. Theodoret^[79a] indeed gives another account of this matter, viz. That Arius was disappointed of the bishopric of Alexandria by the promotion of Alexander, and that this provoked him to oppose the doctrine of the bishop.^[79b] But it should be considered that Theodoret lived an hundred years after Arius, and appears to have had the highest hatred of his name and memory. He tells us, “he was employed by the devil; that he was an impious wretch, and damned in the other world.” The accusations of such a one deserve but little credit, especially as there are no concurrent testimonies to support them. Bishop Alexander never mentions it amongst those other charges which he throws upon him, in his letter to the bishop of Constantinople. Constantine expressly ascribes the rise of the controversy to Alexander’s inquisitory temper, and to Arius’s speaking of things he ought never to have thought of. Socrates assures us it was owing to this, that Arius apprehended the bishop taught the doctrine of Sabellius. Sozomen^[79c] imputes their quarrel only to their diversity of sentiments. Bishop Alexander says he opposed Arius, because he taught impious doctrines concerning the Son; and Arius affirms he opposed Alexander on the same account. Now whether Theodoret’s single unsupported testimony is to be preferred to these other accounts, I leave every one that is a judge of common sense to determine. Nay, I think it is evident it must be a slander, because the bishop himself had an esteem for Arius, after his advancement to the bishopric of Alexandria, and, as Gelasius Cyzicenus tells us,^[79d] “made him the presbyter next in dignity to himself;” which it is not probable he would have done, if he had seen in him any tokens of enmity because of his promotion.

79a. Theod. l. 1. c. 2.

79b. c. 7, 14.

79c. Soz. p. 426.

79d. l. 2. c. 1.

80. E. H. l. 1. c. 15.

81. Soc. E. H. l. 1. c. 6.
82. Soz. l. 1. c. 15.
83. Theod. E. H. l. 1. c. 5.
84. Id. l. 1. c. 4.
85. Theod. E. H. l. 1. c. 5.
86. Id. Ibid. c. 6.
87. Theod. E. H. l. i. c. 4.
88. Dial. p. 112. 413. p. 20, &c. De Reg. fid. p. 240. De ver. Sap. p. 371.
89. Dialog. p. 413. Ed. Thirl.
90. Ibid. p. 413.
91. Euseb. Vit. Const. l. 1, c. 63, &c.
92. Euseb. Vit. Const. l. 3. c. 4, 5. 325. Id. Ibid. c. 6. Soc. E. H. l. 1.
- M. See note [M] at the end of the volume.
93. The first general council, A. C. c. 17.
94. Theod. E. H. l. 1. c. 7, 11.
95. l. 2. c. 8.
96. Soz. E.H. l. 1. c. 9.
- N. See note [N] at the end of the volume.
- O. See note [O] at the end of the volume.
97. Theod. E. H. l. 1. c. 3.
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98. Theod. l. 1. c. 12.

99. Soc. l. 1. c. 9.

100. Euseb. de Vit. Const. l. 3. c. 20.

101. Soc. E. H. l. 1. c. 9.

P. See note [P] at the end of the volume.

102. E. H. l. 1. c. 7.

Q. See note [Q] at the end of the volume.

103. Vol. I. Epist. lv. Edict. Col.

104. Euseb. de Vit. Const. l. 3. c. 13.

105. Ibid. c. 65.

106. Soz. l. 1. c. 21.

107. Soc. l. 1. c. 9.

R. See note [R] at the end of the volume.

108.

The Edict of Constantine to the bishops and people.

“Since Arius hath imitated wicked and ungodly men, it is just that he should undergo the same infamy with them. As therefore Porphyrius, an enemy of godliness, for his having composed wicked books against Christianity, hath found a suitable recompense, so as to be infamous for the time to come, and to be loaded with great reproach, and to have all his impious writings quite destroyed; so also it is now my pleasure, that Arius, and those of Arius’s sentiments, shall be called Porphyrians, so that they may have the appellation of those, whose manners they have imitated. Moreover, if any book composed by Arius shall be found, it shall be

delivered to the fire; that “not only his evil doctrine may be destroyed, but that there may not be the least remembrance of it left.” This also I enjoin, that if any one shall be found to have concealed “any writing” composed by Arius, and shall not immediately bring it and consume it in the fire, death shall be his punishment; for as soon as ever he is taken in this crime, he shall suffer a capital punishment. God preserve you.”

[S](#). See note [[S](#)] at the end of the volume.

[109](#). Epist. xiii.

[110](#). E. H. l. 1. c. 24.

[111](#). Theod. l. 1. c. 4, 5.

[112](#). Vol. I, p. 702.

[113](#). The whole account, as given by Sozomen, is this: Eusebius of Nicomedia and Theognis accused Athanasius to Constantine, as the author of seditions and disturbances in the church, and as excluding many who were willing to enter into it; whereas all would agree, if this one thing was granted. Many bishops and clergymen affirmed these accusations against him were true; and going frequently to the emperor, and affirming themselves to be orthodox, accused Athanasius and the bishops of his party of being guilty of murders, of putting some in chains, of whipping others, and burning of churches. Upon this Athanasius wrote to Constantine, and signified to him that his accusers were illegally ordained, made innovations upon the decrees of the council of Nice, and were guilty of seditions and injuries towards the orthodox. Upon this Constantine was at a loss which to believe; but as they thus accused one another, and the number of the accusers on each side grew troublesome to him; out of his love of peace, he wrote to Athanasius that he should hinder nobody from the communion of the church; and that if he should have any future complaints of this nature against him, he would immediately drive him out of Alexandria. The reader will observe, that the charge against Athanasius brought by Eusebius and Theognis, was confirmed by many orthodox bishops, in the very presence of the emperor; and that Athanasius, instead of denying it, objects to the ordination and orthodoxy of his accusers, and charges them with a bad

treatment of the orthodox; and that the evidence on both sides appeared so strong, that the emperor knew not which to believe; but that, however, he was at last so far convinced of the factious, turbulent spirit of Athanasius, that he ordered him to open the doors of the church, under pain of banishment.

[114.](#) Philostorg. Compen. E. H. l. 8. c. 11.

[115.](#) Soz. l. 2. c. 25, 28.

[116.](#) Soz. E. H. p. 488, 491, 492.

[117.](#) Ad Imp. I. Const. Apol. p. 716.

[118.](#) Vol. I. p. 584.

[119.](#) Orat. 1. cont. Ar. p. 304.

[120.](#) Vol. I. p. 291.

[121.](#) p. 292.

[122.](#) Soz. l. 2. c. 18.

[123.](#) Vol. I. p. 951.

[124.](#) p. 291.

[125.](#) Soc. l. 1. c. 27.

[126.](#) Id. ibid. c. 35.

[127.](#) Ad Solit. Vit. Agen. Epist. p. 809, 810.

[128.](#) Soc. l. 2. c. 8.

[129.](#) Soz. l. 3. c. 5.

[130.](#) Soz. l. 3. c. 5.

- [131.](#) Soc. l. 2. c. 10.
- [132.](#) Soc. l. 3. c. 4.
- [133.](#) Athanas. de Sanct. Trin. V. 2. p. 210.
- [134.](#) Soc. l. 2. c. 18.
- [135.](#) Soc. l. 2. c. 15.
- [136.](#) c. 17.
- [137.](#) Ad Sol. Vit. Ag. p. 813.
- [138.](#) Soc. l. 2. c. 27.
- [139.](#) Ad Const. Apol. p. 695.
- [140.](#) Cont. Ar. Orat. 1. p. 290.
- [141.](#) l. 2. c. 25.
- [142.](#) Soc. l. 2. c. 15, 16.
- [143.](#) Am. Mar. l. 22. c. 5.
- [144.](#) Soc. l. 3. c. 1.
- [145.](#) l. 22. c. 5.
- [146.](#) Soc. l. 3. c. 2, 3, 4. Philost. l. 7. c. 2.
- [T.](#) See note [[T](#)] at the end of the volume.
- [147.](#) Philost. l. 7. c. 13.
- [148.](#) Theod. l. 4. c. 2.
- [149.](#) Soc. l. 3. c. 14, &c.

- 150. Theod. l. 3. c. 6, &c.
- 151. Ibid. l. 3. c. 21.
- 152. Soc. l. 3. c. 24, 25.
- 153. Theod. l. 4. c. 4.
- 154. Soc. l. 4. c. 1.
- 155. Theod. l. 4. c. 8.
- 156. Cod. Theod. tit. 16. l. 9.
- 157. Soc. l. 4. c. 6.
- 158. Soz. l. 6. c. 7.
- 159. Soc. ibid. c. 15, 16. Theod. l. 4. c. 22.
- 160. Soc. l. 4. c. 29.
- 161. Soc. l. 27. c. 3.
- 162. Theod. l. 5. c. 2.
- 163. Soz. l. 7. c. 4, 6.
- 164. Soc. l. 5. c. 7.
- 165. c. 8.
- 166. The second general council, A. C. 381.
- 167. Cod. Theod. l. 11, 12.
- 168. Soz. l. 7. c. 12.
- U. See note [U] at the end of the volume.

169. l. 5. c. 20.

170. Soz. l. 8. c. 1, 2, 4.

171. Soz. l. 8. c. 6.

V. See note [V] at the end of the volume.

172. Soz. l. 8. c. 16.

173. Soc. l. 6. c. 18.

174. Epist. 50. ad Bon. & Epist. 68. ad Januar.

175. Cod. Theod. l. 52.

176. Soc. l. 7. c. S

177. Soc. l. 7. c. 7.

178. l. 7. c. 13, 14.

179. Soc. l. 7. c. 15.

180. Id. ibid. c. 9.

181. Soc. l. 7. c. 11.

182. c. 29.

183. Soz. l. 7. c. 2.

184. Soc. l. 7. c. 41.

185. Evag. E. H. l. 1. c. 2. Soc. l. 7. c. 32, 34.

186. Soc. ibid. Evag. l. 1. c. 5.

187. Evag. l. 1. c. 12.

188. Chal. Concil. Act. 10. Frag. Epist. Edes. Epic.

189. Evag. l. 2. c. 1.

190. Concil. Chalced. Act. 13.

191. Evag. l. 1. c. 9, 10.

192. Evag. l. 2. c. 4, 18.

193. Evag. l. 2. c. 5.

194. August. Epist. 75.

195. Hist. Inqu. l. 1. c. 4.

196. Evag. l. 2. c. 5.

197. Niceph. l. 15. c. 8.

198. Evag. l. 2. c. 8.

199. Evag. l. 2. c. 5.

200. c. 9, 10.

201. Evag. l. 3. c. 4.

202. Evag. l. 3. c. 5.

203. l. 3. c. 8, 9.

204. Evag. c. 13.

205. c. 14.

206. Evag. l. 3. c. 11, 12.

207. c. 16.

- [208.](#) Evag. c. 17.
- [209.](#) c. 20, 21.
- [210.](#) Evag. l. 3. c. 30.
- [211.](#) l. 3. c. 31, 32.
- [212.](#) Evag. l. 3. c. 44.
- [213.](#) c. 34.
- [214.](#) Platin.
- [215.](#) Evag. l. 3. c. 4, 9.
- [216.](#) In vit. Johan. 1. Platin.
- [217.](#) Evag. l. 3. c. 11.
- [218.](#) Paul. Diacon. c. 16.
- [219.](#) Cod. de Hæret. Novel. 42. c. 1.
- [220.](#) Platin.
- [221.](#) Evag. l. 4. c. 30.
- [222.](#) c. 32.
- [223.](#) Evag. l. 4. c. 38.
- [224.](#) l. 4. c. 39.
- [225.](#) Evag. l. 4. c. 41.
- [226.](#) l. 5. c. 1.
- [227.](#) Evag. l. 4. c. 14.

[228.](#) l. 5. c. 1.

[229.](#) Evag. l. 5. c. 2.

[230.](#) Evag. l. 5. c. 3.

[231.](#) Platin in vit. Greg. I.

[232.](#) l. 6. Epist. 194.

[233.](#) Platin in vit. Bonif. III.

[234.](#) Plat. in vit. Honorii I.

[235.](#) Plat. in vit. Mart.

[236.](#) Act. 15, 6. Constant. Tom. Concil. 2.

[237.](#) Plat. in vit. Agath.

[238.](#) l. 9. Ind. 2. Ep. 2.

[239.](#) l. 7. Ind. 2. Ep. 109. Platin.

[240.](#) Plat. in vit. Gregor. II.

[241.](#) Platin.

[242.](#) Platin. in vit. Paul. I.

[243.](#) Id. in vit. Stephani.

[244.](#) In vit. Hadrian I.

BOOK III.

OF PERSECUTIONS UNDER THE PAPACY, AND PARTICULARLY OF THE INQUISITION.

For several ages the method of proceeding against heretics was committed to the bishops, with whom the government and care of the churches were entrusted, according to the received decrees of the church of Rome. But as their number did not seem sufficient to the court, or because they did not proceed with that fury against heretics, as the pope would have them; therefore, that he might put a stop to the increasing progress of heresy, and effectually extinguish it, about the year of our Lord 1200, he founded the order of the Dominicans and Franciscans. ^[w]Dominick and his followers were sent into the country of Tholouse, where he preached with great vehemence against the heretics of those parts; from whence his order have obtained the name of Predicants. Father Francis, with his disciples, battled it with the heretics of Italy. They were both commanded by the pope to excite the Catholic princes and people to extirpate heretics, and in all places to inquire out their number and quality; and also the zeal of the Catholics and bishops in their extirpation, and to transmit a faithful account to Rome: hence they are called inquisitors.

Dominick being sent into the country of Tholouse, was confirmed in the office of inquisitor by the papal authority; after which, upon a certain day, in the midst of a great concourse of people, he declared openly in his sermon, in the church of St. Prullian, “that he was raised to a new office by the pope;” adding, that “he was resolved to defend, with his utmost vigour, the doctrines of the faith; and that if the spiritual arm was not sufficient for

this end, it was his fixed purpose to call in the assistance of the secular one, and to excite and compel the Catholic princes to take arms against heretics, that the very memory of them might be intirely destroyed.” It evidently appears that he was a very bloody and cruel man. He was born in Spain, in the village of Calaroga, in the diocese of Osma. His mother, before she conceived him, dreamt that “she was with child of a whelp, carrying in his mouth a lighted torch; and that after he was born, he put the world in an uproar by his fierce barkings, and set it on fire by the torch which he carried in his mouth.” His followers interpret this dream of his doctrine, by which he enlightened the whole world; but others, with more reason, think that the torch was an emblem of that fire and faggot, by which an infinite number of persons were consumed to ashes.



SECT. I.
Of the progress of the Inquisition.

Dominick being settled in the country of Tholouse, sent a great number of persons, wearing crosses, to destroy the Albigenses in those parts; and caused the friars of his order to promise plenary indulgences to all who would engage in the pious work of murdering heretics. He also caused Raymond earl of Tholouse to be excommunicated, as a defender of heretics, and his subjects to be absolved from their oaths of allegiance. The cross-bearers, being thus sent by Dominick, filled all places with slaughter and blood, and burnt many whom they had taken prisoners. In the year 1209, Biterre was taken by them; and the inhabitants, without any regard of age, were cruelly put to the sword, and the city itself destroyed by the flames; and though there were several Catholics in it, yet, lest any heretics should escape, Arnold, abbot of Cisteaux, cried out, "Slay them all, for the Lord knows who are his;" upon which they were all slain, without exception. Carcassone also was destroyed, Alby and La Vaur taken by force; in which last place they hanged Aymeric, the governor of the city, who was of a noble family, beheaded eighty of lower degree, and threw Girarda, Aymeric's sister, into an open pit, and covered her with stones. Afterwards they conquered Carcum, where they murdered sixty men. They seized on Villeneuve, a large city near Tholouse, and burnt in it 400 Albigenses, and hanged fifty more. They also took Castres de Termis, and in it Raymond, lord of the place, whom they put in jail, where he died; and burnt in one large fire, his wife, sister, and virgin daughter, because they would not embrace the faith of the church of Rome. They also took Avignon by treachery, and, in despite of their oaths, plundered the city, and killed great numbers of the inhabitants; and, at last, forced the brave earl to surrender Tholouse itself, and then stripped him of his dominions, and would not absolve him from his excommunication, without walking in penance to the high altar, in his shirt and breeches, and with naked feet. Upon this conquest and destruction of the Albigenses, the inquisition proceeded with vigour, and was established by several councils at Tholouse and Narbonne.

In the year 1232, the inquisition was brought into Aragon, and pope Gregory gave commission to the archbishop of Tarracone, and his

suffragans, to proceed against all persons infected with heretical pravity; and accordingly the inquisition was there carried on with the greatest rigour.

In 1251, pope Innocent IV. created inquisitors in Italy: and the office was committed to the Friars Minors and Predicants. The Friars Minors were appointed in the city of Rome, the patrimony of St. Peter, Tuscany, the dutchy of Spoleto, Campania, Marettimo, and Romania. To the Predicants he assigned Lombardy, Romaniola, the Marquisate of Tarvesano, and Genoa; and gave them certain articles to be prescribed to the magistrates and people subject to their jurisdiction, with power to excommunicate all who refused to observe them; and in process of time tribunals of the inquisition were erected in Germany, Austria, Hungary, Bohemia, Poland, Dalmatia, Bosnia, Ragusia, and in all places where the power of the pope could extend itself. Innumerable cruelties were practised upon those whom the judges condemned for heresy; some were burnt alive, others thrown into rivers, tied hand and foot, and so drowned; and others destroyed by different methods of barbarity.

Ferdinand and Isabella having united the several kingdoms of Spain by their inter-marriage, introduced, in the year 1478, the inquisition into all their kingdoms, with greater pomp, magnificence and power, than it had ever yet appeared in. The Jews were the first who felt the fury of it. A set time was appointed by the inquisitors for them to come in and make confession of their errors, in the year 1481. Accordingly about 1700 of both sexes appeared, who had their lives granted them. Many, however, refused to obey, and persisted in their heresy. On this they were immediately seized; and through the violence of their torments great numbers confessed their crimes, and were thrown into the fire; some acknowledging Christ, and others calling on the name of Moses. Within a few years, two thousand of them of both sexes were burnt. Others professing repentance, were condemned to perpetual imprisonment, and to wear crosses. The bones of others who were dead were taken out of their graves, and burnt to ashes; their effects confiscated, and their children deprived of their honours and offices. The Jews being terrified by this cruelty, fled, some into Portugal, others into Italy, and France; and left all their effects behind them, which were immediately seized on for the king's use. At length, in 1494, to purge their kingdoms intirely from Jewish superstition, Ferdinand and Isabel by a law ordered them to depart all their dominions within four years; forbidding them ever to return to Spain, under the punishment of immediate death.

Most writers affirm that there were 170,000 families who departed; others say there were 800,000 persons; a prodigious number, almost exceeding belief.

In the year 1500, the archbishop of Toledo took great pains to convert the Moors of Granada to Christianity. He first of all gained over some of their chief priests by gifts and favours. Others, who refused to become Christians, he put in irons in jail, and ordered them to be used with great cruelty; and by these methods gained many converts. Ferdinand at last published an edict against them, commanding them in general to become Christians, or depart his dominions within a certain day.

This tribunal, first erected to discover Jews and Moors, soon began to proceed against heretics, and to exercise the same cruelties against these as they had against the others. Charles V. king of Spain, who with great difficulty had brought the inquisition into the Netherlands, against the Lutherans and reformed, recommended it to his son Philip in his will; and Philip gave full proof of his zeal to execute his father's commands. For when he was requested by many to grant liberty of religion in the Low Countries, he prostrated himself before a crucifix, and uttered these words: "I beseech the divine majesty, that I may always continue in this mind; that I may never suffer myself to be, or to be called the lord of those any where, who deny thee the Lord." Nor is this any wonder; for the popish divines endeavoured to persuade the kings of Spain that the inquisition was the only security of their kingdom. No one can wonder, that under this persuasion, the Spanish kings have been violent promoters of the inquisition; and that they have inflicted the most cruel punishments upon the miserable heretics. Philip II. not only in the Low Countries, but also in Spain, shewed himself the patron of it; and that the most outrageous cruelty was acceptable to him. He gave some horrid specimens of it in the year 1559, in two cities of Spain, when he came thither from the Low Countries; ^[245] "Immediately on his arrival," as Thuanus relates, "he began to chastise the sectaries. And whereas, before this, one or more, just as it happened, were delivered to the executioner, after condemnation for heresy; all that were condemned throughout the whole kingdom were kept against his coming, and carried together to Seville, and Valladolid, where they were brought forth in public pomp to their punishment. The first act of faith was at Seville, the 8th of the calends of October; in which John Ponce de Leon, son of Rhoderic Ponce Comte de Baylen, was led before the others, as in triumph, and burnt for an

obstinate heretical Lutheran. John Consalvus, a preacher, as he had been his companion in life, was forced to bear him company in his death; after whom followed Isabella Venia, Maria Viroes, Cornelia, and Bohorchés; a spectacle full of pity and indignation, which was encreased, because Bohorchés, the youngest of all of them, being scarce twenty, suffered death with the greatest constancy. And because the heretical assemblies had prayed in the house of Venia, it was concluded in her sentence, and ordered to be levelled with the ground. After these, came forth Ferdinand San Juan, and Julian Hernandez, commonly called the Little, from his small stature, and John of Leon, who had been a shoemaker at Mexico in New Spain, and was afterwards admitted into the college of St. Isidore; in which his companions studied, as they boasted, the purer doctrine privately. Their number was encreased by Frances Chaves, a nun of the convent of St. Elizabeth, who had been instructed by John Ægidius, a preacher at Seville, and suffered death with great constancy. From the same school, came out Christopher Losada, a physician, and Christopher de Arellanio, a monk of St. Isidore, and Garsias Arias; who first kindled those sparks of the same religion amongst the friars of St. Isidore, by his constant admonitions and sermons, by which the great pile was afterwards set on fire, and the convent itself, and good part of that most opulent city almost consumed. He was a man of uncommon learning, but of an inconstant, wavering temper; and, being exceeding subtle in disputing, he refuted the very doctrines he had persuaded his followers to receive, though he brought them into danger on that account from the inquisitors. Having, by these arts, exposed many whom he had deceived to evident hazard, and rendered himself guilty of the detestable crime of breach of faith; he was admonished by John Ægidius, Constantine Ponce, and Varquius, that he had not dealt sincerely with his friends, and those who were in the same sentiments with himself; to which he replied, that he foresaw, that in a little time they would be forced to behold the bulls brought forth for a lofty spectacle; meaning thereby, the theatre of the inquisitors. Constantine answered, You, if it please God, shall not behold the games from on high, but be yourself amongst the combatants. Nor was Constantine deceived in his prediction: for afterwards, Arias was called on; and whether age had made him bolder, or whether, by a sudden alteration, his timorousness changed into courage, he severely rebuked the assessors of the inquisitory tribunal; affirming, they were more fit for the vile office of mule keepers, than impudently to take upon

themselves to judge concerning the faith, which they were scandalously ignorant of. He farther declared, that he bitterly repented that he had knowingly and willingly opposed, in their presence, that truth he now maintained, against the pious defenders of it; and that from his soul he should repent of it whilst he lived. So at last, being led in triumph, he was burnt alive, and confirmed Constantine's prophecy. There remained Ægidius and Constantine, who closed the scene; but death prevented their being alive at the shew. Ægidius having been designed by the emperor, Philip's father, for bishop of Tortona, upon the fame of his piety and learning, being summoned, publicly recanted his errors, wrought on either by craft, or the persuasion of Sotus, a Dominican; and hereupon was suspended for a while from preaching, and the sacred office, and died some time before this act. The inquisitors thought he had been too gently dealt with, and therefore proceeded against his body, and condemned him dead to death, and placed his effigies in straw on high for a spectacle. Constantine, who had been a long while the emperor's confessor, and had always accompanied him in his retirement, after his abdication from his empire and kingdoms, and was present with him at his death, was brought before this tribunal, and died a little before the act, in a nasty prison. But, that the theatre might not want him, his effigies was carried about in a preaching posture. And thus this shew, terrible in itself, which drew tears from most who were present, when these images were brought on the scene, excited laughter in many, and at length indignation. They proceeded with the same severity, the following October, at Valladolid, against others condemned for the same crime; where king Philip himself being present, twenty-eight of the chief nobility of the country were tied to stakes and burnt." Bartholomew Caranza, archbishop of Toledo, was also accused; who for his learning, probity of life, and most holy conversation, was highly worthy of that dignity. He was cast into prison, and stripped of all his large revenues. His cause was brought before Pius V. at Rome, and Gregory XIII. pronounced sentence in it.

Philip, not content to exercise his cruelty by land, established the inquisition also in the ships. For in the year 1571, a large fleet was drawn together under the command of John of Austria, and manned with soldiers listed out of various nations. King Philip, to prevent any corruption of the faith, by such a mixture of various nations and religions, after having consulted pope Pius V. deputed one of the inquisitors of Spain, fixed on by

the inquisitor general, to discharge the office of inquisitor; giving him power to preside in all tribunals, and to celebrate acts of faith, in all places and cities they sailed to. This erection of the inquisition by sea, Pius V. confirmed by a bull sent to the general inquisitor of Spain, beginning, "Our late most dear son in Christ." Jerome Manrique exercised the jurisdiction granted him, and held a public act of faith in the city of Messina, in which many underwent divers punishments.

He also established it beyond Europe, not only in the Canary islands, but in the new world of America; constituting two tribunals of it, one in the city of Lima, in the province of Peru; the other in the province and city of Mexico. The inquisition at Mexico was erected in the year 1571, and in a short space gave large proofs of its cruelty. Paramus relates, that in the year 1574, the third after its erection, the first act of faith was celebrated with a new and admirable pomp, in the Marquisses, market-place, where they built a large theatre, which covered almost the whole area of the market-place, and was close to the great church; where were present the viceroy, the senate, the chapter, and the religious. The viceroy, the senate, and a vast number of others, went with a large guard, in solemn procession, to the market-place, where were about eighty penitents; and the act lasted from six in the morning to five in the evening. Two heretics, one an Englishman, the other a Frenchman, were released. Some for judaizing, some for polygamy, and others for sorceries, were reconciled. The solemnity of this act was such, that they who had seen that stately one at Valladolid, held in the year 1559, declared, that this was nothing inferior to it in majesty, excepting only that they wanted those royal personages here, which were present there. From this time they celebrated yearly solemn acts of the faith, where they brought Portuguese Jews, persons guilty of incestuous and wicked marriages, and many convicted of sorcery and witchcraft.

The method of the tribunal of the inquisition, as now in use in Spain, is this. The king proposes to the pope the supreme inquisitor of all his kingdoms, whom the pope confirms in his office. The inquisitor thus confirmed by the pope, is head and chief of the inquisition in the whole kingdom, and hath given him by his holiness full power in all cases relating to heresy. It belongs to his office to name particular inquisitors, in every place where there is any tribunal of the inquisition, who nevertheless cannot act unless approved by the king; to send visitors to the provinces of the inquisitors, to grant dispensations to penitents and their children, and to

deliberate concerning other very weighty affairs. In the royal city the king appoints the supreme council of the inquisition, over which the supreme inquisitor of the kingdom presides. He hath joined with him five counsellors, who have the title of apostolical inquisitors, who are chosen by the inquisitor general upon the king's nomination. One of these must always be a Dominican. The supreme authority is in this council of the inquisition. They deliberate upon all affairs with the inquisitor general, determine the greater causes, make new laws according to the exigency of affairs, determine differences amongst particular inquisitors, punish the offences of the servants, receive appeals from inferior tribunals, and from them there is no appeal but to the king. In other tribunals there are two or three inquisitors: they have particular places assigned them, Toledo, Cuenca, Valladolid, Calahorre, Seville, Cordoue, Granada, Ellerenia; and in the Aragons, Valencia, Saragossa, and Barcelona.

These are called provincial inquisitors. They cannot imprison any priest, knight, or nobleman, nor hold any public acts of faith, without consulting the supreme council of the inquisition. Sometimes this supreme council deposes one of their own counsellors to them, in order to give the greater solemnity to the acts of faith.

These provincial inquisitors give all of them an account of their provincial tribunal once every year to the supreme council; and especially of the causes that have been determined within that year, and of the state and number of their prisoners in actual custody. They give also every month an account of all monies which they have received, either from the revenues of the holy office, or pecuniary punishments and fines.

This council meets every day, except holy-days, in the palace-royal, on Mondays, Wednesdays, and Fridays in the morning; and on Tuesdays, Thursdays, and Saturdays after vespers; in these three last days two counsellors of the supreme council of Castile meet with them, who are also counsellors of the supreme council of the inquisition.

This tribunal is now arisen to such an height in Spain, that the king of Castile, before his coronation, subjects himself and all his dominions, by a special oath, to the most holy tribunal of this most severe inquisition.

In the year 1557, John III. king of Portugal, erected the tribunal of the inquisition in his kingdom, after the model of that in Spain. It was chiefly levelled against the Jews, who groan under the cruel yoke of it to this day, without any mitigation of their punishment, being liable to all the penalties

ordained against heretics. And because the Jewish wickedness spread every day more and more in the parts of the East Indies, subject to the kingdom of Portugal, Cardinal Henry, inquisitor general in the kingdom of Portugal, erected, anno 1560, the tribunal of the inquisition in the city of Goa, the metropolis of that province; where it is carried on at this time with great magnificence and solemnity.

And that the inquisition might proceed every where without any impediment, pope Paul III. anno 1542, deputed six cardinals to be inquisitors general of heretical pravity, in all Christian nations whatsoever; and gave them authority to proceed without the bishops against all heretics, and persons suspected of heresy, and their accomplices and abettors, of whatsoever state, degree, order, condition and pre-eminence; and to punish them, and confiscate their goods; to degrade, and deliver over to the secular court the secular and regular clergy in holy orders; and to do every thing else that should be necessary in this affair. Pius IV. enlarged their power; and in 1564, gave them authority to proceed against all manner of persons, whether bishops, archbishops, patriarchs or cardinals, who were heretics, or suspected of heresy. At length Sixtus V. anno 1588, appointed fifteen congregations of the cardinals, and assigned to each of them their proper business. To these were added a commissary, and an assessor general. Whatever the majority of these cardinals agree, is looked on as the decree of the whole congregation. They meet twice a week; on Wednesdays in St. Mary's church, *supra Minervam*; and on Thursdays in the pope's presence. In this congregation his holiness decides or confirms the votes of the counsellors and cardinals, and makes a prayer when the congregation comes in.



SECT. II.

Of the Officers belonging to the Inquisition.

These are the inquisitors; the judge of the forfeited effects, the executor, the notaries, the jail-keeper, the messenger, the door-keeper, the physician, the assessors, the counsellors, the familiars, the promoter fiscal, the receiver of the forfeited effects, and the visitors of the inquisitors.

The inquisitors are persons delegated by the pope to enquire concerning all heresies, and to judge and punish heretics. Generally speaking, no one can be deputed to this office who is not forty years old. But if a person is remarkable for knowledge and prudence, he may, in Spain and Portugal, be created inquisitor sooner. This office is accounted of so great dignity in the church of Rome, that the title of “most reverend” is given to the inquisitors as well as the bishops.

Their privileges are many and great. They can excommunicate, suspend, and interdict. None excommunicated by them can be absolved, without command of the pope, except in the article of death. They may apprehend heretics, though they take sanctuary in churches; and make statutes, and encrease the punishments against them. They can grant indulgences of twenty or forty days, and give full pardon of sins to all their officers who died in their service; and have themselves granted a plenary indulgence in life and death. Whosoever shall damage the effects of the inquisitor, or his officer, or shall kill, strike or beat any one of them, is to be immediately delivered over to the secular court. They are freed from serving of all offices. They are to have lodgings, provisions, and other necessities provided for them. They may proceed against all persons whatsoever, few excepted; against bishops, priests, and friars; and all laicks whatsoever, even princes and kings. They may cite persons of any sex or condition for witnesses: a famous instance of which there is in Joan, daughter of the emperor Charles V. whom they cited before their tribunal to interrogate her concerning a certain person, in some matters relating to the faith. The emperor himself had such an awe of them, that he commanded his daughter without delay to make her deposition, to avoid the sentence of excommunication. Upon which, she actually appeared before the archbishop of Seville, inquisitor general, and gave in her evidence. In Spain

also the inquisitors pretend to have a jurisdiction over the subjects of other kings. Of this, we have an instance in Thomas Maynard, consul of the English nation at Lisbon, who was thrown into the prison of the inquisition, under pretence that he had said or done something against the Roman religion. M. Meadows, who was then resident, and took care of the English affairs at Lisbon, advised Cromwell of the affair; and, after having received an express from him, went to the king of Portugal, and in the name of Cromwell demanded the liberty of consul Maynard. The king told him, it was not in his power; that the consul was detained by the inquisition, over which he had no authority. The resident sent this answer to Cromwell; and having soon after received new instructions from him, had again audience of the king, and told him, that since his majesty had declared he had no power over the inquisition, he was commanded by Cromwell immediately to declare war against it. This unexpected declaration so terrified the king and the inquisition, that they immediately determined to free the consul from prison; and immediately opened the prison doors, and gave him leave to go out. The consul refused to accept a private dismissal; but in order to repair the honour of his character, demanded to be honourably brought forth by the inquisition. The same Maynard continued many years after under the same character, in the reigns of Charles and James II. and lived at Lisbon till he was about eighty years old, without any molestation from the inquisition. This story was well known to all foreign merchants, who lived at that time, and many years after, at Lisbon.

The inquisitors may also compel the governors of cities to swear that they will defend the church against heretics; and to extirpate with all their power, from their governments, all who are noted for heretics by the church. They may also command all secular magistrates to seize and keep in custody all heretics, and to carry them wheresoever they order. And for the better apprehending of heretics, the inquisitors may go with an armed attendance, and bear arms themselves. They may compel witnesses to give evidence by fines, pledges, excommunication, or torture. They have also power to excommunicate all lay persons disputing about the faith, publicly or privately; and those who do not discover heretics, by themselves or other persons. And finally, they may condemn and prohibit all heretical books, and suspected of heresy, or containing propositions erroneous, or differing from the Catholic faith.

If the inquisitors are negligent or remiss in their office, they are prohibited from entering the church for four years; or if they offend by unjustly extorting money, they are punished by the prelates of their order; but in such a manner, however, as not to lessen men's opinion of the dignity and authority of the holy office. From this precaution it is, however, very plain, that the tribunal of the inquisition is not so very holy and blameless, as they would have them believe in Spain and Portugal; but that the inquisitors punish innocent men sometimes very unjustly, throwing them into prison, and treating them in a very barbarous and unworthy manner. Of this we have a fresh instance in the inquisition at Goa, in relation to father Ephraim, a Capucine; whom, out of mere hatred and revenge, they seized by craft and subtlety, and carried away to Goa, and there shut him up in the prison of the inquisition. The story is this: Father Ephraim having had an invitation from some English merchants, built a church in the city of Madrespatan, which was near to the city of St. Thomas. To this place, several of the Portuguese came from St. Thomas's, to have the benefit of Ephraim's instruction. By this, he incurred the hatred of the Portuguese; and, upon some disturbance that was raised, father Ephraim was called to St. Thomas to appease it; where he was seized by the officers of the inquisition, and carried to Goa, bound hands and feet, and at night coming from on board the ship, hurried into the prison of the inquisition. All men wondered that this Capucine should be brought prisoner before the tribunal of the inquisition as an heretic, who was known to be a person of great probity and zeal for the Roman religion. Many were concerned for his delivery; and especially friar Zenon, of the same order, who tried every method to effect it. When the news of his imprisonment came to Europe, persons were very differently affected. His brother, the lord Chateau des Bois, solicited the Portugal ambassador at Paris, till he prevailed with him to send letters to his Portuguese majesty, to desire his peremptory orders to the inquisitors at Goa, to dismiss Ephraim from his prison. The pope also himself sent letters to Goa, commanding him to be set free, under the penalty of excommunication. The king also of Golconda, who had a friendship for him, because he had given him some knowledge of the mathematics, commanded the city of St. Thomas to be besieged, and to be put to fire and sword, unless Ephraim was immediately restored to his liberty. The inquisitors not being able to surmount all these difficulties, sent him word that the prison gates were open, and that he might have his liberty

when he pleased. But he would not leave his jail, till he was brought out by a solemn procession of the ecclesiastics of Goa. And although there are many instances of the like injustice, yet they very seldom publicly punish the injustice and cruelty of the inquisitors, lest their authority, which they would have always accounted sacred, should be contemned. The inquisitor may also appoint a vicar general over his whole province, with a power of proceeding to a definitive sentence on the impenitent and relapsed, and of receiving informations and accusations against any persons, and of citing, arresting, and putting in irons witnesses and criminals, and of putting them to the question or torture; and in general, of doing every thing which the inquisitor himself, if present, could do.

The counsellors or assessors of the inquisition are skilful persons, such as divines, canonists, and lawyers, whom the inquisitors call in, in difficult cases, to assist them with their advice. When any questions happen in the trials of the causes of heresy, relating to the quality, *i. e.* the nature and degree of guilt in any propositions spoken by heretics, or persons suspected of heresy, the decision in such affairs belongs to the divines, who are thence called qualificators; who are to determine whether it be heretical, or favours of heresy, or erroneous, or such as offends pious ears, or rash, or scandalous, or schismatical, or seditious, or blasphemous, or injurious. The lawyers are consulted about the punishment or absolution of offenders, and other the like merits of causes. However, the inquisitors are not bound necessarily to follow the advice of these counsellors; but after they have heard their opinions, are free to determine and act what they think proper. These counsellors are sworn to secrecy, and are not acquainted with the names of the criminals or witnesses.

The promoter fiscal is that officer of the inquisition, who acts the part of accuser. It belongs to him to examine the depositions of the witnesses, and give information of criminals to the inquisitors; to demand their apprehension and imprisonment, and, when apprehended or admonished, to accuse them.

The notaries, registers, or secretaries of the inquisition, write down the injunctions, accusations, and all the pleadings of the causes; the depositions of the witnesses, and answers of the criminals; and whether the colour of their face changes; whether they tremble or hesitate in speaking, whether they frequently interrupt the interrogatories by hawking or spitting, or whether their voice trembles; that by these circumstances, they may know

when to put the criminals to the torture. These notaries may be chosen either of the laity, or from the monks and clergy. They swear them faithfully to execute that office, and to keep the strictest secrecy.

The judge and receiver of the forfeited effects, is the attorney belonging to the treasury of the inquisition; who demands, defends, and sells, the confiscated goods of heretics, and pays the salaries and other expences of the holy office.

The executors are they who execute and perform the commands of the inquisitors. They apprehend and keep in custody criminals, and pursue them in any places to which they may have escaped; and may, when needful, put them in irons. All persons, whether magistrates or others, are obliged to assist them, when they are endeavouring to apprehend any person, or seize his effects, upon penalty of a large fine, and being put under the ban.

The familiars are the bailiffs of the inquisition, which, though a vile office in all other criminal courts, is esteemed so honourable in this of the inquisition, that there is not a nobleman in the kingdom of Portugal who is not in it; and these are commonly employed by the inquisitors to take persons up. If several persons are to be taken up at the same time, the familiars must so order things, that they may know nothing of each other's being apprehended. And at this the familiars are so expert, that a father and his three sons and three daughters, who lived together at the same house, were all carried prisoners to the inquisition, without knowing any thing of one another's being there till seven years afterwards, when they of them who were alive, came forth in an act of faith.

There is a particular kind of these familiars, who wear crosses, instituted by Dominic; who vow upon oath, before the inquisitors, that they will defend the catholic faith, though with the loss of fortune and life. The inquisitors give them red crosses, which they have blessed, and may compel them to perform their vow.

The visitor of the inquisition is one who goes into all the provinces where the inquisitors are, and reports to the inquisitor general and council whatever he thinks proper to be amended; and whether the several inquisitors have observed the several orders and rules prescribed to them, that in case of any offences, they may be duly punished.

The civil magistrate is under great subjection to these inquisitors and their officers. He swears to defend the catholic faith, and to cause all the constitutions relating to the inquisition to be observed, and that he will

study to exterminate all persons marked out for heretics by the church. And if any temporal lord shall, after admonition by the church, neglect to purge his dominions from heretical pravity, for the space of a year after such admonition, his country is ordered to be seized, and the person seizing it allowed to possess it without contradiction. When any persons are condemned for heresy by the inquisitors, the civil magistrate is obliged to receive them as soon as delivered to him, and to punish them with the deserved punishment; without presuming directly or indirectly to hinder any judgment, sentence, or process of the inquisitors.

The office of the jail-keepers is not to be described; though some account of their jail will not be amiss.

All criminals have not alike places of imprisonment, their cells being either more terrible and dark, or more easy and chearful, according to the quality of the persons and their offences. In reality, there is no place in the prison of the inquisition that can be called pleasant or chearful, the whole jail is so horrible and nasty.

These jails are called in Spain and Portugal “Santa Casa,” i. e. the holy house. Every thing it seems in this office must be holy. The prisons are so built, as the author of the History of the Inquisition at Goa describes them, that they will hold a great number of persons. They consist of several porticoes; every one of which is divided into several small cells of a square form, each side being about ten feet. There are two rows of them, one being built over the other, and all of them vaulted. The upper ones are enlightened by iron grates, placed above the height of a tall man. The lower ones are under ground, dark, without any window, and narrower than the upper ones. The walls are five feet thick. Each cell is fastened with two doors; the inner one thick, and covered over with iron, and in the lower part of it there is a little small window, through which they reach to the prisoner his meat, linen, and other necessities, which is shut with two iron bolts. The outer door is entire, without any opening at all. They generally open it in the morning, from six o’clock till eleven, in order to refresh the air of the prison.

In Portugal all the prisoners, men and women, without any regard to birth or dignity, are shaved the first or second day of their imprisonment. Every prisoner hath two pots of water every day, one to wash, and the other to drink; and a besom to cleanse his cell, and a mat made of rushes to lie upon, and a larger vessel to ease nature, with a cover to put over it, which is

changed once every four days. The provisions which are given to the prisoners, are rated according to the season, and the dearness or plenty of eatables. But if any rich person is imprisoned, and will live and eat beyond the ordinary rate of provisions, and according to his own manner, he may be indulged, and have what is decent and fit for him, and his servant, or servants, if he hath any, with him in the jail. If there are any provisions left, the jail-keeper, and no other, must take them, and give them to the poor. But Reginald Gonsalvius observes, p. 106. that this indulgence is not allowed to prisoners of all sorts, but to such only as are taken up for small offences, who are to be condemned to a fine. But if they find by the very accusation that any persons are to be punished with forfeiture of all their effects, they do not suffer them to live so plentifully, but order them a small pension for their subsistence, viz. about thirty maravedis, of the value of ten Dutch stivers. This agrees with the account of Isaac Orobio, who had a plentiful fortune at Seville, and was nevertheless used very hardly in the prison of the inquisition there. Although his estate was very large, yet he was allowed a very small pension to provide himself provision. This was flesh, which they made him sometimes dress and prepare for himself, without allowing him the help of any servant. In this manner are the richer prisoners treated. As to the poorer, and such who have not enough to supply themselves in jail, their allowance is fixed by the king, viz. the half of a silver piece of money, called a real,^[246] every day; and out of this small sum, the buyer of their provision, whom they call the dispenser, and their washer, must be paid, and all other expences that are necessary for the common supports of life. Besides, this very royal allowance for the prisoners doth not come to them but through the hands of several persons, and those none of the most honest; first by the receiver, then the dispenser, then the cook, then the jail-keeper, who, according to his office, distributes the provisions amongst the prisoners. Gonsalvius adds, that he gave this particular account of this matter, because all these persons live, and have their certain profits out of this small allowance of the king to the prisoners; which coming to them through the crooked hands of these harpies, they cannot receive it till every one of them hath taken out more than a tenth part of it.

The author of the History of the Inquisition at Goa tells us, this order is observed in distributing the provisions. The prisoners have meat given them three times every day; and even those who have the misfortune to be in this case, though they have money, are not treated much better than others,

because their riches are employed to make provision for the poorer. I was informed by Isaac Orobio, that in Spain they sometimes give the prisoners coals, which they must light, and then dress their own food. Sometimes they allow them a candle. Those who are confined in the lower cells generally sit in darkness, and are sometimes kept there for several years, without any one's being suffered to go or speak to them, except their keepers; and they only at certain hours, when they give them their provision. They are not allowed any books of devotion, but are shut up in darkness and solitude, that they may be broke with the horrors of so dreadful a confinement, and by the miseries of it forced to confess things which oftentimes they have never done.

And how dreadful the miseries of this prison are, we have a famous instance given us by Reginald Gonsalvius Montanus.^[247] In the age before the last, a certain English ship put in at the port of Cadiz, which the familiars of the inquisition, according to custom, searched upon the account of religion, before they suffered any person to come ashore. They seized on several English persons who were on board, observing in them certain marks of evangelical piety, and of their having received the best instruction, and threw them into jail. In that ship there was a child, ten or twelve years, at most, old, the son of a very rich English gentleman, to whom, as was reported, the ship and principal part of her loading belonged. Amongst others, they took up also this child. The pretence was, that he had in his hands the psalms of David in English. But, as Gonsalvius tells us, those who knew their avarice and cursed arts, may well believe, without doing any injury to the holy inquisition, that they had got the scent of his father's wealth, and that this was the true cause of the child's imprisonment, and of all that calamity that followed after it. However, the ship with all its cargo was confiscated; and the child, with the other prisoners, were carried to the jail of the inquisition at Seville, where he lay six or eight months. Being kept in so strait confinement for so long a while, the child, who had been brought up tenderly at home, fell into a very dangerous illness, through the dampness of the prison, and the badness of his diet. When the lords inquisitors were informed of this, they ordered him to be taken out of the jail, and carried, for the recovery of his health, to the hospital, which they call the Cardinal. Here they generally bring all who happen to fall ill in the prison of the inquisition; where, besides the medicines, of which, according to the pious institution of the hospital, there is plenty, and a little better care,

upon account of the distemper, nothing is abated of the severity of the former jail; no person besides the physician, and the servants of the hospital, being allowed to visit the sick person; and as soon as ever he begins to grow better, before he is fully recovered, he is put again into his former jail. The child, who had contracted a very grievous illness from that long and barbarous confinement, was carried into the hospital, where he lost the use of both his legs: nor was it ever known what became of him afterwards. In the mean while it was wonderful, that the child, in so tender an age, gave noble proofs how firmly the doctrine of piety was rooted in his mind; oftentimes, but especially morning and evening, lifting up his eyes to heaven, and praying to him, from whom he had been instructed by his parents, to desire and hope for certain help; which the jailkeeper having often observed, said, he was already grown a great little heretic.

About the same time^[248] a certain person was taken up and thrown into the same jail, who had voluntarily abjured the Mahometan impiety, and came but a little before from Morocco, a famous city of Mauritania, and capital of the kingdom, into that part of Spain which lies directly over against it, with a design to turn Christian. When he had observed that the Christians were more vicious and corrupt than the Moors he had left, he happened to say, that the Mahometan law seemed to him better than the Christian. For this the good fathers of the faith laid hold of him, thrust him into jail, and used him so cruelly, that he said publicly, even when in confinement, that he never repented of his Christianity, from the day he was baptized, till after his having been in the inquisition, where he was forced against his will to behold all manner of violences and injuries whatsoever.

The complaint of Constantine, the preacher of Seville, was not less grievous concerning the barbarities of this prison;^[249] who, although he had not as yet tasted of the tortures, yet often bewailed his misery in this jail, and cried out: “O my God, were there no Scythians in the world, no cannibals more fierce and cruel than Scythians, into whose hands thou couldst carry me, so that I might but escape the paws of these wretches?” Olmedus also, another person famous for piety and learning, fell into the inquisitors hands at Seville; and through the inhumanity of his treatment, which had also proved fatal to Constantine, contracted a grievous illness, and at last died in the midst of the nastiness and stench. He was used to say, “Throw me any where, O my God, so that I may but escape the hands of these wretches.”

The author of the History of Goa agrees in this account,^[250] who frankly owns, that through the cruelty and length of his imprisonment he fell into despair, and thereby often attempted to destroy himself; first by starving himself; and because that did not succeed, he feigned himself sick; and when the physician of the inquisition found his pulse unequal, and that he was feverish, he ordered him to be let blood, which was done again five days after. When the doctor was gone, he unbound his arm every day, that so by the large effusion of blood, he might continually grow weaker and weaker. In the mean while he eat very little, that by hunger, and loss of blood, he might put an end to his miserable life. Whilst he was in this sad condition, he had sent him a confessor of the Franciscan order, who, by various arguments of comfort, endeavoured to recover him from his despair. They also gave him a companion in his jail, which was some comfort to him in his confinement. But growing well again after about five months, they took his companion from him. The lonesomeness of his jail brought on again his melancholy and despair, which made him invent another method to destroy himself. He had a piece of gold money, which he had concealed in his clothes, which he broke into two parts; and making it sharp, he opened with it a vein in each arm, and lost so much blood, that he fell into a swoon, the blood running about the jail. But some of the servants happening to come before the usual time to bring him something, found him in this condition. The inquisitor hereupon ordered him to be loaded with irons upon his arms and hands, and strictly watched. This cruelty provoked him to that degree, that he endeavoured to beat his brains out against the pavement and the walls; and undoubtedly the ligaments upon his arms would have been torn off, had he continued any longer in that state. Upon this they took off his chains, gave him good words, encouraged him, and sent him a companion, by whose conversation he was refreshed, and bore his misery with a little more easiness of mind. But after two months they took him from him again, so that the solitude of his jail was more distressing to him than before.

The prisoners,^[251] as soon as ever they are thrown into jail, are commanded to give an account of their name and business. Then they inquire after their wealth; and to induce them to give in an exact account, the inquisition promises them, that if they are innocent, all that they discover to them shall be faithfully kept for, and restored to them; but that if they conceal any thing, it shall be confiscated, though they should be found

not guilty. And as in Spain and Portugal most persons are fully persuaded of the sanctity and sincerity of this tribunal, they willingly discover all their possessions, even the most concealed things of their houses, being certainly persuaded, that when their innocence shall appear, they shall soon recover their liberty and effects together. But these miserable creatures are deceived; for he that once falls into the hands of these judges, is stripped at once of all he was possessed of. For if any one denies his crime, and is convicted by a sufficient number of witnesses, he is condemned as a negative convict, and all his effects confiscated. If to escape the jail he confesses his crime, he is guilty by his own confession, and in the judgment of all justly stripped of his effects. When he is dismissed from prison as a convert and penitent, he dares not defend his innocence, unless he desires to be thrown again into jail, and condemned; and, as a feigned penitent, to be delivered over to the secular arm.

When the prisoner is brought before his judge,^[252] he appears with his head and arms, and feet naked. In this condition he is brought out of jail by the warder. When he comes to the room of audience, the warder goes a little forward, and makes a profound reverence, then withdraws, and the prisoner enters by himself. At the farther end of the audience room there is placed a crucifix, that reaches almost to the ceiling. In the middle of the hall is a table about five feet long, and four broad, with seats all placed round it. At one end of the table, that which is next to the crucifix, sits the notary of the inquisition; at the other end the inquisitor, and at his left hand the prisoner sitting upon a bench. Upon the table is a missal, upon which the prisoner is commanded to lay his hand, and to swear that he will speak the truth, and keep every thing secret. After they have sufficiently interrogated him, the inquisitors ring a bell for the warder, who is commanded to carry back his prisoner to jail.

No one in the prison must so much as mutter, or make any noise, but must keep profound silence. If any one bemoans himself, or bewails his misfortune, or prays to God with an audible voice, or sings a psalm or sacred hymn, the jail-keepers, who continually watch in the porches, and can hear even the least sound, immediately come to him, and admonish him that silence must be preserved in this house. If the prisoner doth not obey, the keepers admonish him again. If after this the prisoner persists, the keeper opens the door, and prevents his noise, by severely beating him with a stick; not only to chastise him, but to deter others, who, because the cells

are contiguous, and deep silence is kept, can very easily hear the outcries and sound of the blows. I will add here a short story that I had from several persons; which, if true, shews us with what severity they keep this silence. A prisoner in the inquisition coughed. The jailors came to him, and admonished him to forbear coughing, because it was unlawful to make any noise in that house. He answered, it was not in his power. However, they admonished him a second time to forbear it; and because he did not, they stripped him naked, and cruelly beat him. This increased his cough; for which they beat him so often, that at last he died through the pain and anguish of the stripes.

They insist so severely on keeping this silence, that they may cut off every degree of comfort from the afflicted; and especially for this reason, that the prisoners may not know one another, either by singing, or any loud voice. For it oftentimes happens, that after two or three years confinement in the jail of the inquisition, a man doth not know that his friend, nor a father that his children and wife are in the same prison, till they all see each other in the act of faith. And finally, that the prisoners in the several cells may not talk with one another; which, if ever found out, their cells are immediately changed.

If any one falls ill in the prison, they send to him a surgeon and physician, who administer all proper remedies to him to recover him to health. If there be any danger of his dying, they send him a confessor, if he desires it. If the criminal doth not ask for a confessor, and the physician believes the distemper to be dangerous, he must be persuaded by all means to confess; and if he judicially satisfies the inquisitors, he is to be reconciled to the church before he dies; and being absolved in judgment, the confessor must absolve him sacramentally.

If he is well, and desires a confessor, some are of opinion he may not have one granted him, unless he hath confessed judicially. Others think he may; and in this case the confessor's business is to exhort him to confess his errors, and to declare the whole truth, as well of himself as of others, as he is bound *de jure* to do. However, he must add, that he must not accuse himself or others falsely, through weariness of his imprisonment, the hope of a more speedy deliverance, or fear of torments. Such a criminal the confessor cannot absolve, before his excommunication is first taken off, and he is reconciled to the church. But in Italy the prisoners are more easily allowed a confessor than in Spain.

They are particularly careful not to put two or more in the same cell, unless the inquisitor for any special reason shall so order, that they may not concert with one another to conceal the truth, to make their escape, or to evade their interrogatories. The principal reason, indeed, seems to be, that through the irksomeness of their imprisonment, they may confess whatsoever the inquisitors would have them. But if an husband and his wife are both imprisoned for the same offence, and there be no fear that one should prevent the other from making a free confession of the crime, they may be put in the same cell.

The inquisitors^[253] are obliged to visit the prisoners twice every month, and to enquire whether they have necessities allowed them, and whether they are well or not. In this visit they usually ask him in these very words; How he is? How he hath his health? Whether he wants any thing? Whether his warder is civil to him? i. e. Whether he speaks to him in a reproachful and severe manner? Whether he gives him his appointed provision, and clean linen? and the like.^[254] These are exactly the sentences and words they use in these visits, to which they neither add any thing, nor act agreeable; for they use them only for form's sake, and when the inquisitor hath spoken them he immediately goes away, scarce staying for an answer. And although any one of the prisoners complains that he is not well used, it is of no advantage to him, nor is he better treated for the future. If there be occasion or necessity, it will be convenient for them to visit the prisoners three or four times every month, yea, as often as they think proper; viz. when the criminal bears with impatience the misfortune and infamy of his imprisonment, in such case the inquisitor must endeavour to comfort him very often, not only by himself, but by others; and to tell him, that if he makes a free confession, his whole affair shall be quickly and kindly ended.

The inquisitors must take care not to talk with the criminals, when they are examined or visited, upon any other affairs but such as relate to their business. Nor must the inquisitor be alone when he visits, or otherwise gives them audience; but must have with him his colleague, or at least a notary, or some other faithful servant of the holy office.

This also they are particularly careful of, that the criminals may not be removed from one cell to another, nor associate with any other. If any prisoners have been shut up together at once in the same cell, when they are removed they must be removed together, that hereby they may be prevented from communicating any thing that hath been transacted in the prison. This

is more especially to be observed, in case any of them recall their confession, after they have been removed from one cell and company to another. But if a criminal confesses, and is truly converted, he may more easily be removed from one cell to another, because the inquisitor is in no pain for fear of his retracting, but may oftentimes make use of him to draw out the truth from other prisoners.

If women are imprisoned, they must each of them have, according to their quality, one honest woman at least for a companion, who must never be absent from her, to prevent all suspicion of evil. This companion must be ancient, of a good life, pious and faithful. Sometimes when women are to be imprisoned, they do not carry them to the jail of the inquisitors, especially if they are regulars, if the jails be within the walls of the monasteries, but to the convents of the nuns. When this happens, they command the abbess or prioress to admit nobody to discourse with the prisoner without express leave of the inquisitor, but diligently to observe the order given her. But when the cause is of importance, and full of danger, and such they esteem all that relate to the faith, they think it safer that women should be imprisoned in the jails of the inquisitors. But the cardinals inquisitors general are to be consulted in this affair, who, after mature consideration, are to determine whether it be most expedient that such criminals should be kept in the jails of the bishops, or inquisitors regulars; especially if they are young and handsome, as is often the case of those who are taken up for telling people's fortunes about their sweethearts.

It is farther the custom and received use of this holy tribunal, that such who are imprisoned for heresy are not admitted to hear mass, and other prayers which are said within the jail, till their cause is determined. Their principal pretence for this custom is, that it may possibly happen, when there is a great number of criminals, that the several accomplices, companions and partakers of the crime, may at least by nods and signs discover to one another how they may escape judgment, or conceal the truth.

But the true and genuine reason is, that the prisoner may have nothing to contemplate besides his present misfortune; that so being broken with the miseries of his confinement, he may confess whatsoever the inquisitors would have him. For this reason they deny them books, and all other things that would be any relief to them in their tedious imprisonment. If any one of the prisoners whatsoever prays the inquisitor when he visits him, that he

may have some good book, or the holy Bible, he is answered, that the true book is to discover the truth, and to exonerate his conscience before that holy tribunal; and that this is the book which he must diligently study, viz. to recover the remembrance of every thing faithfully, and declare it to their lordships, who will immediately prescribe a remedy to his languishing soul. If the prisoner in the same or next visit is importunate about it, he will be commanded silence; because if he asks to please himself, they may grant or deny him according to their pleasure.

The keeping the jail anciently belonged to the executor's office; and as often as he was absent, he was obliged to provide another keeper at his own charge. But now the jail-keeper is created by the inquisitor-general, and is different from the executor.

Those who keep the jails for the crime of heresy, must swear before the bishop and inquisitor that they will faithfully keep their prisoners, and observe all other things prescribed them.

Formerly there were two keepers to every jail, but now there is only one jail-keeper appointed in every province, chosen by the inquisitor general, who is not allowed to give the prisoners their food. But the inquisitors choose some proper person to this office, who is commonly called the dispenser. The provisions they give the criminals are generally prepared and dressed in the house of the inquisition; because if they were to be prepared in the houses of the criminals themselves, or any where else, something might easily be hid under them, that might furnish them with the means to conceal the truth, or to elude or escape judgment. This however is to be left to the prudence and pleasure of the inquisitors, whether and when the criminals may without danger prepare their provision in their own houses. But upon account of the hazard attending it, the inquisitors but seldom, and not without exquisite care, gratify them in this particular. If any things are sent them by their friends or relations, or domestics, the jail-keeper and dispenser never suffer them to have them, without first consulting the inquisitors.

As these keepers have it in their power greatly to injure or serve their prisoners, they must promise by an oath, before the bishop and inquisitors, that they will exercise a faithful care and concern in keeping them; and that neither of them will speak to any of them but in presence of the other, and that they will not defraud them of their provision, nor of those things which are brought to them. Their servants also are obliged to take this oath.

But notwithstanding this law, a great part of the provision appointed for the prisoners is withheld from them by their covetous keepers; and if they are accused for this to the inquisitors, they are much more gently punished, than if they had used any mercy towards them. Reginald Gonsalve relates, ^[255] that in his time Gaspar Bennavidius was keeper of a jail. “He was a man of monstrous covetousness and cruelty, who defrauded his miserable prisoners of a great part of their provisions, which were ill dressed, and scarce the tenth part of what was allowed them, and sold it secretly, for no great price, at the Triana. Besides, he wholly kept from them the little money allowed them to pay for the washing of their linen; thus suffering them to abide many days together in a nasty condition, deceiving the inquisitor and treasurer, who put that money to the keepers account, as though it had been expended every week for the use of the prisoners, for whom it was appointed. Neither was it very difficult to deceive them, because they took but little pains to inquire out the truth. If any one of the prisoners complained, muttered, or opened his mouth upon account of this intolerable usage, the cruel wretch, who had divested himself of all humanity, had a remedy at hand. He brought the prisoner immediately out of his apartment, and put him down into a place they call Mazmorra, a deep cistern that had no water in it. There he left him for several days together, without any thing to lie on, not so much as straw. His provision there was so very rotten, that it was more proper to destroy his health by sickness, than to preserve it, or support him in life. All this he did without ever consulting the inquisitors, and yet fraudulently and villanously pretended their command to his prisoner. If any one besought him to complain to the inquisitors for so injurious a treatment, for they could not do it by any other person, and to desire an audience, the cunning wretch, knowing that the whole blame must lie upon himself, pretended that he had asked, but could not obtain it. By such forged answers he kept the miserable prisoner in that deep pit twelve or fifteen days, more or less, till he had fully gratified his anger and cruelty. After this he brought him out, and threw him into his former jail; persuading him that this favour was owing to his humanity and care, having made intercession for him with their lordships. In short, his thefts and injuries with which he plagued his prisoners, who were otherwise miserable enough, were so numerous, that some persons of interest with the inquisitors at length accused him before them. Upon this he was imprisoned himself; and being found guilty of many false accusations, he received this

sentence: that he should come out at a public act of the faith, carrying a wax candle in his hand, be banished five years from the city, and forfeit the whole sum of money, which by virtue of his office he was to have received from the holy tribunal.”

“This very man,^[256] whilst he was keeper, had in his family an ancient servant maid, who observing the distress of the prisoners, labouring under intolerable hunger and nastiness, through the wickedness and barbarity of her master, was so moved with pity towards them, being herself well inclined to the evangelical piety, that she often spoke to them through the doors of their cells, comforted them, and as well as she could exhorted them to patience, many times putting them in meat under their doors, in proportion to the mean and low abilities of her condition. And when she had nothing of her own, by which to shew her liberality to the prisoners of Christ, she stole good part of that provision from the wicked thief her master, which he had stolen from the prisoners, and restored it to them. And that we may the more wonder at the providence of God, who so orders it that the worst of parents shall not have always the worst of children, but sometimes even the best, a little daughter of the keeper himself was greatly assisting to the maid in these pious thefts. By means of this servant the prisoners had information of the state of the affairs of their brethren and fellow prisoners, which much comforted them, and was oftentimes of great service to their cause. But at length the matter was discovered by the lords inquisitors, by whom she was thrown into prison for a year, and underwent the same fate with the other prisoners, and condemned to walk in the public procession with a yellow garment, and to receive two hundred stripes; which was executed upon her the following day, through the streets of the city, with the usual pomp and cruelty. To all this was added banishment from the city and its territories, for ten years. Her title was, “The favouress and aidress of heretics.” What excited the implacable indignation of the lords, the fathers of the faith, against her, was, that they discovered in her examination, that she had revealed the secrets of the most holy tribunal to some of the inhabitants of the city, particularly relating to the provision allotted to the prisoners. From both these examples, and from their different and unequal punishment, any one may see how much safer it is to add to the affliction of the prisoners in their jail, than to comfort them by any act of humanity and mercy whatsoever.”

And in order that the jail of heretics may be kept secret, no one of the officials, no not the judge himself, can enter it alone, or speak with the prisoners but before another of the officials, nor without the previous order of the inquisitors. All are obliged to swear that they will observe this, that no one may see or speak to the prisoners besides the person who gives them their necessities; who must be a faithful, honest person, and is obliged to swear that he will not discover the secrets, and must be searched to prevent his carrying any orders or letters to the prisoners.

This command they will have observed as most sacred, because, as they say, secrecy is the strength of the inquisition, which might easily be violated, unless this order be punctually kept; and therefore they always most severely punish those who transgress it. Gonsalvius Montanus^[257] gives us a very remarkable instance of this. "One Peter ab Herera, a man not altogether vile, but of some humanity, and not very old, was appointed keeper of the tower of Triana, which is the prison of the inquisition. It happened, as it often doth in such numerous and promiscuous imprisonments, that amongst other prisoners committed to his custody, there was a certain good matron, with her two daughters, who were put in different cells, and earnestly desired the liberty of seeing one another, and comforting each other in so great a calamity. They therefore earnestly entreated the keeper, that he would suffer them to be together for one quarter of an hour, that they might have the satisfaction of embracing each other. He being moved with humanity and compassion, allowed them to be together, and talk with one another for half an hour; and after they had indulged their mutual affections, he put them, as they were before, in their separate prisons. A few days after this they were put with great cruelty to the torture; and the keeper being afraid, that through the severity of their torments, they should discover to the lords, the fathers inquisitors, his small humanity in suffering them to converse together for half an hour without the inquisitors leave; through terror, went himself to the holy tribunal, of his own accord confessed his sin, and prayed for pardon; foolishly believing, that by such his confession he should prevent the punishment that threatened him for this action. But the lords inquisitors judged this to be so heinous a crime, that they ordered him immediately to be thrown into jail; and such was the cruelty of his treatment, and the disorder of mind that followed on it, that he soon grew distracted. However, his disorder and madness did not save him from a more grievous punishment. For after he

had lain a full year in that cursed prison, they brought him out in the public procession, cloathed with the yellow garment, and an halter round his neck, as though he had been a common thief; and condemned him first to receive two hundred lashes through the streets of the city, and then to the gallies for six years. The day after the procession, as he was carried from the Triana to be whipped with the usual solemnity, his madness, which usually seized him every other hour, came on him; and throwing himself from the ass, on which, for the greater shame, he was carried, he flew upon the inquisitory Alguazile,^[258] and snatching from him a sword, had certainly killed him, had he not been prevented by the mob who attended him, and set him again upon the ass, and guarded him till he had received the two hundred lashes according to his sentence. After this the lords inquisitors ordered, that as he had behaved himself indecently towards the Alguazile, four years more should be added to the six for which he was at first condemned to the gallies.”

These keepers are answerable for the smallest fault, for they are to use the same care in the custody of their prisoners, as fathers ought to do in governing their families; so that if they suffer any one to escape from jail, they are to be punished according to the nature of their offence. It is therefore their business frequently to visit and search the cells of their prisoners, to prevent any thing from being clandestinely carried in, by which they may destroy themselves, dig through the walls, and so escape. Their care of the women is to be peculiarly strict; since the sex is naturally frail, and more subject than men to yield to passion and despair, and so are more likely to seek an occasion of destroying themselves. They must, above all other things, take care that they do not behave themselves indecently towards their women prisoners. Thus the congregation of cardinals inquisitors general condemned a jail-keeper to the gallies for seven years, and to perpetual banishment from the place where he committed his offence, for having carnal knowledge of a woman that was prisoner in the holy office.

If the inquisitor thinks it necessary to prevent the escape of any prisoners, he may lay them in irons. If the poverty of the inquisitors is so great, or their jails so defective, as that they are not fit to hold in safe custody, either for the thinness of the walls, or for want of iron bars to the windows, or sufficient bolts for the doors, if the magistrate be required by the inquisitor, he must take care of the safe custody of the prisoners.

What the several duties of the messenger, door-keeper, and physician are, is plain enough from their very names. They must be honest men, and not suspected, and born of old christians.

The salaries of the inquisitors and officers are differently paid in different countries.

In Spain there are fixed salaries for the inquisitors, and other ministers of the holy office, which are paid them at stated times out of the forfeited effects.

“Every inquisitor hath annually allowed him 60,000, which is now increased to an hundred thousand pieces, every one of which is worth two of those brass pieces of money, which they commonly call Albi. The judges of the forfeited effects have each of them 30,000. The promoter fiscal as many. The scribe or notary the same. The executor 60,000. The receiver as many. The messenger 20,000. The door-keeper 10,000. The physician 5,000. These salaries may be increased at the pleasure of the inquisitor general, and are to be paid by the receiver at the fixed times; which if he neglects to do, he may be deprived of his office by the inquisitors.

“The assessors and counsellors have no stipend, but must give their advice gratis, when the inquisitors desire it, as some lawyers affirm; and though they may receive a salary freely offered them, yet they cannot demand it, because all Christians are bound to support and defend the affair of the Catholic faith. However, these assessors, who are the eyes of the judges in every cause, even though it be spiritual, justly receive a salary for their service and labour: for many things are justly received, which it would be injustice to demand.

“Those advocates who defend the causes of the poor, have a stipend out of the treasury, which is usually very small, though honourable. But if the criminals are not poor, the advocates are paid out of their effects.”

It is also provided in Spain, by many constitutions, that inquisitors, who receive gifts, incur the sentence of excommunication, and are deprived of their office, and fined double the value of what they take. However, as the author of the History of the Inquisition at Goa informs us, the inquisitors know how to amass vast riches, by two methods. When the effects of the prisoners, after confiscation, are sold by the cryer, the inquisitors, notwithstanding the interdict to the contrary, usually send one of their domestics, who bids a low price for such things as his master wants, being pretty secure that nobody else will out-bid them; and by this means they

buy very valuable things for half price, or less. Besides this, the inquisitors have a right to demand the payment of the expences, and other necessary charges they have been at, when, and in what sums they please, whenever the money arising from the confiscations is carried into the royal treasury; without ever giving any reason, or any one's daring to ask them for what purposes they employ it.

Gonsalvius Montanus also tells us, in his Arts of the Spanish Inquisition, cap. 10. that the inquisitors are sometimes prevailed with to use their prisoners a little more kindly, by some pretty presents made by their friends and relations. But this matter must be dextrously managed, that so the inquisitor may not refuse the offer. The first thing, therefore, is, to bribe one of his servants; in which there is no difficulty, provided it be done privately. When the inquisitors themselves are tampered with, they generally answer, that holy tribunal is incorrupt, and suffers no manner of gifts whatsoever to be received. But they have generally, amongst their attendance, some child of their brother or sister; or, at least, a servant that they greatly esteem, and who is to be highly respected, and who only sees the inquisitor refuse the presents offered to him. This servant comes to the prisoner's friend, and privately points out to him the relation of the lord inquisitor. This is giving him to understand, unless the person be a stock, that though before he in vain attempted to corrupt the integrity of this holy tribunal, he may by this conveyance prevail upon the inquisitor, though he would refuse to accept the same present when more openly offered him.



SECT. III.

Of the crimes cognizable by the Inquisition, and the punishment annexed to them.

The first and principal crime is heresy. Three things are required to make any one properly an heretic. 1. That he hath been baptized. 2. That he err in his understanding in matters relating to the faith, i. e. differ in those points which are determined by a general council, or the pope, as necessary to be believed, or enjoined as an apostolic tradition. 3. Obstinacy of will; as when any one persists in his error, after being informed by a judge of the faith that the opinion he holds is contrary to the determination of the church, and will not renounce it at the command of such a judge, by abjuring it, and giving suitable satisfaction. This crime is so widely extended by the doctors of the Romish church, that they esteem every thing as heresy, that is contrary to any received opinion in the church, though it be merely philosophical, and hath no manner of foundation in the scripture.

The punishments ordained against heretics are many, and most grievous. The first is excommunication; by which heretics are driven from the church, and expelled the company of all Christians. The ceremony of it is thus: when the bishop pronounces the anathema, twelve priests stand round him, and hold lighted torches in their hands, which they throw down on the ground, and tread under foot at the conclusion of the excommunication; after which a letter is sent to the proper parishes, containing the names of the excommunicated persons, and the reason of their sentence. Persons thus excommunicated, are deprived of all ecclesiastical benefices and dignities, and are not to receive Christian burial.

Being excommunicated, all their effects are forfeited, all donations by them are null and void, and even portions paid to children must be revoked, and all legacies to wives forfeited. The treasury of the inquisition devours all. The consequence of this is, that the children of heretics are absolutely disinherited; excepting only when a child accuses his heretical parents. Heretics are also deprived of their natural power over their children, and of that civil power they have over their servants; so that slaves and servants are, ipso facto, freed from servitude the moment their masters fall into heresy. Subjects are also freed from obedience to heretical princes and

magistrates, and absolved from their oaths of allegiance. In a word, heretics lose all right and property in every thing that they have. Hence proceeds the maxim, “that faith is not to be kept with heretics,” because it ought never to be given them; and because the keeping it is against the public good, the salvation of souls, and contrary, as they say, to the laws of God and man. Farther, all places of refuge, which are open to malefactors, and the worst of villains, are denied to heretics. Another punishment is imprisonment; or if they cannot be apprehended, they are put under the ban; so that any one, by his own private authority, may seize, plunder, and kill him as an enemy, or robber. The last penalty is death, the most terrible one that can be inflicted, viz. the being burnt to death. Such as are obstinate and impenitent, are to be burnt alive; others are to be first strangled, and then burnt.

Heretics are distinguished into open and secret. Open heretics are such, who publicly avow somewhat contrary to the Catholic faith, or which is condemned as such by the sentence of the inquisitors. Secret heretics are such who err in their mind, but have not shewn it outwardly by word or deed; and these are excommunicated *ipso jure*; or who by word or writing have discovered the heresy of their heart with secrecy and craft; and such are liable to all the punishments of heretics.

Again, heretics are either affirmative or negative. Affirmative heretics are such who err in their minds as to matters of faith; and who by word or deed shew that they are obstinate in their wills, and openly confess it before the inquisitor. Negative heretics are such, who being according to the laws of the inquisition convicted of some heresy before an inquisitor, yet will not confess it; constantly declaring that they profess the Catholic faith, and detest heretical pravity; or who owning heretical words or actions, deny the heretical intention; or who refuse to discover all their accomplices. Such are generally put to the torture.

Again, heretics are either impenitent or penitent. An impenitent is one who, being convicted of heresy, or having confessed it before an inquisitor, will not obey his judge, when he commands him to forsake his heresy and abjure it, but obstinately perseveres in his error; or who having confessed through fear of punishment, yet afterwards asserts his innocence, or doth not observe the penance enjoined him. Penitents are those who, being admonished by the inquisitor, abjure their error, and give suitable satisfaction, as the bishop or inquisitor enjoins them; either of their own accord, or upon any particular inquisition made after them. Such who return

of their own accord, are treated with greater mildness; but the other enjoined a very severe penance. But they will by no means receive such who do not return till after frequent admonition, or till fear of death; or who endeavour any ways to persuade others to heresy, especially kings and queens, or the sons and daughters of princes.

Next to heretics are the believers of heretics, and such who receive, defend, and favour them; who by word or deed declare their belief of an heretic's error, who knowingly take them into their houses and other places, and thus conceal them from the hands of the church, or give them notice to make their escape, or vindicate them on their trial, or hinder the procedure of the office of the inquisition; or who, being magistrates, refuse to extirpate them, or to apprehend and keep them in custody, or to punish them when given over to them by the inquisitors; or who being prelates or inquisitors, neglect to have safe prisons, and faithful jailkeepers, or to apprehend, torture, or punish heretics. These, ipso facto, incur excommunication; and if they remain under it a year, are to be punished as heretics. And finally, such who visit them privately, whilst in custody, and whisper with them, and give them food; or who lament their apprehension or death, or who complain they are unjustly condemned, or who look with a bitter countenance on their prosecutors, or who gather up the bones of heretics after they are burnt; these are all favourers of heresy, and are ipso jure excommunicated.

Such also who hinder the office of the inquisition are subject to this tribunal. This may be done by rescuing persons taken up for heresy from prison, or by wounding any of the witnesses against them; or by using threatenings, and terrifying words; or by hindering process, judgment, or sentence; or if a temporal lord ordains that no one shall take cognizance of heresy but himself, and that no one shall be accused but before his tribunal, nor any bear arms but those of his own household. The punishment of this is excommunication; which, if they continue under a year, they must either abjure, or be delivered over as heretics to the secular arm. Sometimes their whole dominions are put under interdict, and given to him who can first conquer them.

Yea, they extend this affair sometimes so far, that all manner of offences committed against any one that belongs to the inquisitors, though they have no relation to the faith, are punished in the same manner as though the office of the inquisition had been hindered by them, or the inquisitor himself had received some grievous injury. Reginald Gonsalvius^[259] gives

us a remarkable instance of this, which happened in the former age at Seville. The bishop of Terragone, chief inquisitor at Seville, went one summer for his diversion to some pleasant gardens situate by the sea side, with all his inquisitory family, and walked out, according to his custom, with his episcopal attendance. A child of the gardener, two or three years old at most, accidentally sat playing upon the side of a pond in the garden, where my lord bishop was taking his pleasure. One of the boys that attended his lordship, snatched out of the hand of the gardener's child a reed, with which he was playing, and made him cry. The gardener hearing his child, comes to the place; and when he found out the occasion of his crying, was angry, and bad the inquisitor's servant restore the reed to him. And upon his refusal, and insolently contemning the countryman, he snatched it away; and as the boy held it fast, the gardener slightly hurt his hand by the sharp husk of the reed, in pulling it from him. The wound was far from being mortal, or from endangering the loss of any part, and so could not deserve a severe punishment. It was no more than a scratch of the skin, a mere childish wound, as one may imagine by the cause of it. However, the inquisitor's boy came to his master, who was walking near the place, to complain about his wound; upon which the inquisitor orders the gardener to be taken up, and thrown into the inquisitory jail, and kept him there for nine months in very heavy irons; by which he received such damage in his circumstances, which were at best but mean, as the poor man could not easily recover; his children and wife, in the mean while, being ready to perish for hunger; and all because he did not pay deference enough to the inquisitor's boy, as a member of the holy tribunal. At nine months end they dismissed him from jail, and would have persuaded him that they dealt much more mercifully with him than his crime deserved.

Again, there are other persons who are only suspected of heresy. This suspicion is threefold; light, vehement, or violent. A light suspicion arises from a person's frequenting conventicles, and in his behaviour differing from the common conversation of the faithful. A vehement suspicion of heresy, is a person's not appearing when called to answer upon any article of the faith; hindering the inquisition, giving council or assistance to heretics; or advising them to conceal the truth, or who knowingly accompany, visit, or receive them; or who are convicted of perjury or lying, in a cause of the faith; or who give ecclesiastical burial to heretics, or their favourers, or bury them in church yards with psalms and prayers; or who

preserve the ashes, bones, garments, and the like, of buried heretics; or who think ill of some doctrine or order of the church, such as the power of the pope, the religion of the monks, the rites of the sacrament, and the like; or who persist in their excommunication for two years; such persons give such suspicions as are sufficient to put them to the torture. A violent suspicion arises from such external words and actions by which it may be effectually, and almost always concluded, that he who says or doth them is an heretic; such as the receiving the communion from heretics, and the like. Of these different kinds of suspicions the punishment is different. A person lightly suspected is enjoined canonical purgation, or may be made to abjure. One vehemently suspected may be commanded a general abjuration of all heresies; after which, if he relapses into his former heresy, or associates with, and favours heretics, he is delivered over to the secular power as a relapse. One violently suspected, is to be condemned as an heretic. If he confesses and abjures, he may be admitted to penance; but if he doth not confess, and will not abjure, he is to be delivered over to the secular court, and burnt.

And as some persons are suspected, others are defamed for heresy; such who are spoken against by common report, or such against whom there is legal proof before a bishop that they are spoken against upon account of heresy. And to this two witnesses suffice, though they have had their information from different persons, and though they do not agree as to time and place, and the causes of their knowledge; and though the person accused as defamed, can prove himself to be of good reputation. The punishment of one thus defamed is canonical purgation, and some other ordinary penalty.

Again, other persons are relapsed; such who after having been convicted, either by the evidence of the fact, or their own confession, or legal witnesses, have publicly abjured their heresy, and are convicted of falling into the same again, or into any different heresy, or into a violent suspicion of heresy, and who accompany, visit, and favour heretics; or who are found to be perjured after abjuration, or who after abjuration and purgation do not perform the penance enjoined them. But there is this difference between the last, and the former relapsed persons; that the former are left without mercy to the secular arm; whereas it is in the inquisitor's pleasure to deliver the latter to secular judgment, or not.

Those also who read and keep prohibited books are subject to the tribunal of the inquisition. Pope Pius V. by a bull excommunicated, amongst others, all who should knowingly read, keep in their houses, print, or in any wise defend, for any cause, publicly or privately, under any pretence or colour, prohibited books, without the authority of the apostolic see. If any one brings heretical books into any Catholic countries, he is not only excommunicated, but his goods confiscated, and himself whipped, if he be of mean condition; but if he is of the better sort, he is banished at the pleasure of the inquisitor. If there arises any vehement suspicion of heresy, from any one's reading, keeping, defending, or printing the books of heretics, he may be put to the torture to discover the truth. If any of the clergy read or keep prohibited books, they are vehemently suspected; and may be deprived of the active and passive voice, suspended from divine services, deprived of the offices of reading, preaching, &c. and be enjoined fastings, pilgrimages, and the like.

The inquisitors also take cognizance of those who marry several wives at once, because they are presumed to think wrong of the sacrament of matrimony. If upon examination any one affirms it lawful for a christian man to have several wives at once, he is taken for a formal heretic, and is to be punished as such. If he denies any heretical intention, he must be put to the torture; that the inquisitors may know what his mind is, and whether he married two wives out of any erroneous opinion concerning the sacrament of matrimony, or through lust, or carnal concupiscence. All such persons are suspected of heresy, and must abjure as such, and may be condemned to the gallies.

If any one celebrates mass, or hears confession, and gives absolution, not being in priest's orders, he is vehemently suspected of heresy; and must abjure as such, and then be delivered over to the secular arm, to be punished with death. Raynald gives us an instance of one who said he was a bishop, though he had not the pope's bull, and as such consecrated priests. The story is this: "James the priest, a false Minorite, born in the dutchy of Juliers, forged the pope's bull, and declared in the Netherlands that he was a bishop; and although he had not been ordained a bishop, he consecrated priests by a false ceremony in several dioceses of Germany and the Low Countries. At length he was convicted of his wickedness, and the magistrates of Utrecht thought fit, not to condemn him to the flames, that he might be quickly consumed, but to be gradually burnt by boiling water, that

so they might conquer his obstinacy, because he most impudently refused to acknowledge his crime. But being gradually let down into the boiling cauldron, and overcome with the extremity of the pain, he detested his wickedness, and prayed that he might receive a milder punishment. His judges being moved with compassion, ordered him to be taken out of the boiling cauldron, and then to be beheaded.”

Those also who solicit women or boys to dishonourable actions in the sacramental confession, are subject to this tribunal. Pius IV. published a bull against them; and when this bull was first brought into Spain, all persons were commanded by a public edict, solemnly published throughout all the churches of the archbishopric of Seville, that whosoever knew or had heard of any monks or clergymen who had abused the sacrament of confession to these crimes, or had in any manner acted in this vile manner at confession with their wives or daughters, they should discover them within thirty days to the holy tribunal; and very grievous censures were annexed to such as should neglect or condemn it. When the decree was published, so large a number of women went to the palace of the inquisitors in the city of Seville only, to make their discoveries of these most wicked confessors, that twenty secretaries, with as many inquisitors, were not sufficient to take the depositions of the witnesses. The lords inquisitors being thus overwhelmed with the multitude of affairs, assigned another thirty days for the witnesses; and when this was not sufficient, they were forced to appoint the same number a third and a fourth time. For as to women of reputation, and others of higher condition, every time was not proper for them to apply to the inquisitors. On one hand, their conscience forced them to a discovery through a superstitious fear of the censures and excommunication; and on the other hand, their regard to their husbands, whom they were afraid to offend, by giving them any ill suspicion of their chastity, kept them at home; and therefore veiling their faces, after the Spanish custom, they went to the lords inquisitors, when, and as privately as they could. Very few, however, with all their prudence and craft, could escape the diligent observation of their husbands at the time of discovery, and hereby possessed their minds with the deepest jealousy. However, after so many had been informed against before the inquisitors, that holy tribunal, contrary to all men’s expectations, put a stop to the affair, and commanded all those crimes which were proved by legal evidence, to be buried in eternal oblivion.

It is required that this solicitation be made in the act of sacramental confession; and such confessors are vehemently suspected, and must abjure as such, and be enjoined fastings and prayers, and may be condemned to the gallies, or perpetual imprisonment; must be suspended from hearing confessions, and deprived of their benefices, dignities and the like.

Yea, sometimes, according to the heinousness of the offence, a more grievous punishment is inflicted. "The Venetians ordered one of them to be burnt alive, by command of the pope. He had been father confessor to some nuns in the dominions of Venice, and had got twelve of them with child; amongst whom the abbess and two others had children in one year. As he was confessing them, he agreed with them about the place, manner, and time of lying with them. All were filled with admiration and astonishment, taking the man for a perfect saint, he had so great a shew of sanctity in his very face." Epist. ad Belgas, Cent. 1. Ep. 66. p. 345. & Ep. 63. p. 316.

In Portugal also the crime of sodomy belongs to the tribunal of the inquisition. By the laws of that kingdom sodomites are punished with death, and confiscation of all their effects; and their children and grandchildren become infamous. After the natural death of a sodomite, if the crime hath not been proved, they cannot proceed against him, neither as to the crime, nor confiscation of effects, although the crime can be proved by legal witnesses; because crimes, which are not particularly excepted, of which sodomy is one, are extinguished by the death of the delinquent. Nor do they proceed against a dead sodomite, nor confiscate his effects, although he hath been convicted, or confessed when he was alive. If such a one takes sanctuary in a church, he cannot be taken out of it.

If we compare these things with the punishments of heretics, it will appear that the crime of sodomy in the kingdom of Portugal is esteemed a much smaller one than that of heresy, because sodomites enjoy privileges which are denied to heretics. And yet it may happen, that a truly pious man, who fears God, and is most careful of his eternal salvation, may be accounted an heretic by the Portuguese inquisitors; whereas, a sodomite cannot but be the vilest of men. But it is not at all strange, that by the laws of that tribunal Barabbas should be released, and Christ crucified.

Blasphemers also, who deny God, or their belief in him, or the virginity of our Lady, are subject to the inquisitors, and punished in the following manner. If the blasphemy be very heinous, and the blasphemer a mean person, he is made to wear an infamous mitre, hath his tongue tied, and

pinched with an iron or wooden gag, is carried forth as a public spectacle without his cloak, whipped with scourges, and banished. But if he be a person of better condition, or noble, he is brought forth without the mitre, thrust for a time into a monastery, and punished with a fine. In smaller blasphemies they are dealt with more gently, at the pleasure of the inquisitors, viz. the blasphemer is condemned to stand, during divine service, upon some holiday or other, with his head naked, without his cloak and shoes, his feet naked, a cord tied round him, and holding a burning wax-taper in his hands. Sometimes also they squeeze his tongue with a piece of wood. After divine service is over his sentence is read, by which he is enjoined fastings, and a fine.

This punishment, however, doth not take place as to a clergyman. For if a clergyman was to appear without his shoes, and with an halter about his neck, and thus stand at the gates of the church before the people, the clerical order, and the ministry of the clergy would suffer disgrace; and it would become a wonder, and evil example to the laity, if the blaspheming clergy were thus exposed.

In these cases the inquisitors mostly act according to their own pleasure, who have an ample power of judging according to the nature and heinousness of the crimes. A certain person who had a quarrel with a clergyman of Ecya, a city in Spain, accidentally said, in the hearing of others, that he could not believe that God would come down into the hands of so profligate an adulterer. The vicar of the ordinary fined him for the speech. But the clergyman, not contented with this revenge, afterwards accused him of blasphemy at the tribunal of the inquisitors at Seville. Nor did the fine to which he was before condemned by the ordinary, prevent his being taken up by command of the inquisitors, imprisoned for a whole year, brought out in triumph without cloak or hat, carrying a wax candle in his hand, his tongue gagged with a wooden gag, thus to punish his blasphemy; and being forced to abjure, as lightly suspected, he was fined a second time.

Fortune-tellers, who look into the palms of the hands, such who exercise divination by lots, and use candles and holy water to discover stolen goods, if they deny any heretical intention, may be tortured to discover it; and if found guilty, are excommunicated, whipped, banished, and subject to other punishments. If any pretend to foretel the mysteries of faith by the stars, or the life or death of the pope, or his kindred, they may be punished with death, and confiscation of goods. With these fortune-tellers are joined

witches; who are reported to deny the faith, and make a compact with the devil. These poor wretches are miserably tortured to force them to confess, and then burnt. The inquisitors, within the space of 150 years, burnt 30,000 of them.

Finally, the Jews are also severely handled by this tribunal. The inquisition, indeed, is not designed to compel the Jews to turn Christians, but is introduced against those who, being converted from Judaism to Christianity, return again to the principles they have forsaken; or who deny matters of faith common to them and Christians; or if they invoke devils, or sacrifice to them; or if they speak heretical blasphemies, or pervert a Christian from the faith, or hinder infidels from being converted; or knowingly receive an heretic, or keep heretical books, or deride the host or the cross; or keep Christian nurses, and the like. But the inquisition is levelled principally against those, who having professed Christianity, and been baptized, turn again to Judaism. When suspected they are liable to the torture, may be compelled to abjure, fined, imprisoned, whipped, or burnt, according to the nature of their errors, or heretical actions.



SECT. IV.

Of the manner of proceeding before the tribunal of the Inquisition.

It now remains that I give some account of what relates to the execution of the inquisitorial office.

When the inquisitor is first constituted by the pope, he must present himself to the king, or other temporal lord of those territories in which he is to act, and deliver his apostolic commission, and demand full protection for himself and officers, in all matters belonging to their office. He must also shew his commission to the archbishops and bishops of the dioceses in which he is sent. Finally, he takes an oath from the civil officers, that they will defend the faith, and obey the inquisitor with all their might; and this oath they may compel them to take, under pain of excommunication, and all the punishments which attend it.

After this, the inquisitor appoints a sermon to be preached on a certain day, all other sermons being suspended; at which, four of each religion must be present, and in which he commends the Catholic faith, and exhorts the people to extirpate heretical pravity. When the sermon is ended, he admonishes them to discover to himself all persons who are erroneous, and have said or done any thing against the faith; and then orders monitory letters to be read from the pulpit, by which all persons, of whatsoever condition, clergy or laity, are commanded, under pain of excommunication, to discover to the inquisitors within six or twelve days following any heretic, or person suspected of heresy, which they know. These monitory letters are called, "An edict of the faith." When these letters are read, he promises, in the pope's name, indulgencies for three years to all who assist him in reducing heretics, or who discover to him any such; or person defamed, and suspected of heresy; or who, in any other case, bear true witness before him in an act of faith. And finally, he assigns a time of grace to all heretics, &c. viz. the month following; promising them, that if within that space they come freely to him, before they are accused or apprehended, and voluntarily discover their guilt, and ask pardon, they shall obtain pardon and mercy; viz. freedom from death, imprisonment, banishment, and confiscation of effects.

From this obligation to accuse heretics, no persons, of whatsoever dignity or degree, are exempted; brother must accuse brother, the wife her husband, the husband his wife, the son his father, when heretical, or suspected of heresy; the edict obliges all; and neither kings nor princes, nor nearest relations are exempted.

Joan, the daughter of the emperor Charles V. was cited by the inquisitors to be interrogated before them, against a certain person, concerning some things relating to the faith. She consulted her father, who advised her to make her deposition without any delay (lest she should incur excommunication) not only against others, but even against himself, if she knew him to be blameable in the least matter. Joan obeyed this command of her father, and immediately deposed before Ferdinand Valdez, archbishop of Seville, at that time bishop and inquisitor general.

Lewis de Carvajal, although governor and captain general of the province of Tampico and Pamico, was forced to walk out in public penance, because he did not denounce four women, who were secretly Jews, and to whom he was uncle; and though a little before he had the honourable title of president, he was forced to hear his ignominious sentence publicly, was for ever deprived of all offices under the king, reduced to the lowest misery, and through grief and weariness of his life, soon went the way of all flesh.

If any person comes in within the appointed time to accuse himself, he is asked, how long he hath continued in his errors, and from whom he learnt them? whether he hath had, and read any heretical or suspected books? what they were, from whom he had them, and what he hath done with them? Other questions are added concerning his accomplices in heresies, that he may tell the names of all those heretics, or persons suspected of heresy, whom he knows. He is farther asked, whether he hath ever been inquisited, processed, or accused or denounced in any tribunal, or before any judge, on account of the aforesaid errors, or other things relating to heresy? He is also admonished simply to tell the whole truth which he knows, as well of himself as of others; because, if he is afterwards found deceitfully to have concealed any thing, he is judged as one whose confession is imperfect, and as impenitent, and feignedly converted. Finally, he is interrogated, whether he repents of these errors and heresies into which he hath fallen? and whether he is ready to abjure, curse, and detest them, and all other heresies whatsoever, that exalt themselves against the holy apostolic and Roman church, and to live for the future catholicly,

according to the faith of the church of Rome, and devoutly to fulfil the salutary penance enjoined him?

However, such as come thus voluntarily, are far from escaping all punishment, but are either treated kindly at the pleasure of the inquisitor, according to the quality of their persons and crimes, or else condemned to pay a fine, or give alms, or some such works of charity. But if they wait till they are accused, denounced, cited or apprehended, or suffer the time of grace to slip over, they are pronounced unworthy of such favours.

And in this case many foolishly deceive themselves with a false opinion, believing, that because favour is promised to such who appear voluntarily, they shall be free from all punishment; because they are only saved from the more terrible ones, it being left to the pleasure of the inquisitors to inflict some penitential punishment on them, according to the nature of their crime, as will appear from the following instance. “There was at the city of Cadiz a certain foreigner, who yet had lived in Spain for twenty years; who, according to a common superstition, dwelt in a desert in a certain chapel, upon the account of religion. Hearing in his chapel of the great number of those who were taken up every day at Seville by the inquisitors, for what they call the Lutheran heresies; having heard also of the decree of the inquisitors, by which he was commanded, under the terrors of excommunication, immediately to discover to the inquisition whatsoever he knew of those things, either as to others or himself; the poor stupid hermit comes to Seville, goes to the inquisitors and accuses himself, because he thought the said inquisitors would use singular clemency towards those who thus betrayed themselves. His crime was, that whereas being about twenty years before this at Genoa, and hearing a certain brother of his disputing about a man’s justification by faith in Christ, of purgatory, and other things of the like nature, he did not wholly condemn them, though he never thought of them afterwards. He therefore acknowledged his crime, and came to ask mercy. When the lords inquisitors had received his confession, they commanded the poor hermit to jail; where, after a long confinement, he was brought out in public procession, and was sentenced to wear the sanbenito, to three years imprisonment, and the forfeiture of his effects.”

Sometimes also they use a certain stratagem to draw persons to a voluntary appearance before the inquisitors. “When they have apprehended any remarkable person, who hath been the teacher of others, or who they know hath been resorted to by many others, upon account of his doctrine

and learning, as being a teacher and preacher of great repute; it is usual with them to cause a report to be spread amongst the people, by their familiars, that being grievously tortured, he had discovered several of those that had adhered to him, suborning some persons out of the neighbouring prisons to assert that they heard his cries amidst his tortures, in order to give the greater credit to the report. These reports are spread for this reason, that such who have attended on his instructions, or have been any ways familiar with him, may in time go to the holy tribunal, confess their fault, and implore mercy, before they are sent for, or apprehended. By this means they impose on many, who, if they had waited for their summons, had never been summoned at all. Or if it should have happened that they had been summoned, would not have been dealt with more severely than they generally are, who trust to the inquisitors promises.”

If any person is accused by another, the accuser is interrogated, “How long he hath known N. against whom he denounces? likewise, how he came to know him? Again, whether he observed that the aforesaid N. was suspected of matters relating to the faith from his words, or his actions? Likewise, how often he had seen the said N. do or say those things for which he thought him an heretic, or suspected of heresy? Likewise, at what time, and in the presence of whom the aforesaid N. did or said those things of which he is denounced? Likewise, whether the aforesaid N. hath had any accomplices in the aforesaid crimes, or any writings belonging to the offences denounced? Likewise, to what end and purpose the aforesaid things were done or said by the aforesaid N. whether seriously, or in jest? If it appears that there was a long interval of time between the commission of the crimes denounced, and the making the denunciation, the inquisitor interrogates the denouncer, why he deferred so long to come to the holy office, and did not depose before, especially if he knew that he incurred the penalty of excommunication by such omission?” He is moreover asked, “Whether he knows any thing farther of N. which concerns the holy office, or of any other person? Likewise, whether he hath at any time had any cause of hatred or enmity with the aforesaid N. and whence it proceeded? With what zeal, and with what intention he comes to the holy office, and to make denunciation? Whether he hath denounced through any passion of mind, ill will, hatred, or subornation? And he is admonished ingenuously to tell the truth.” He is especially interrogated how he came by his knowledge, because on that principally the truth and weight of the testimony depends.

When the denunciation is received; first, it must be read over to the denouncer, that he may add, take away, or alter as he pleases. Secondly, he must subscribe to his deposition; or if he cannot write, he must at least put under it the sign of the cross. Thirdly, he must take an oath of secrecy.

After this, the witnesses are called on. And in this affair all persons, even such as are not allowed in other tribunals, are admitted. Persons excommunicated, heretics, Jews, and infidels, wives, sons and daughters, and domestics, are allowed as witnesses against those accused of heresy, but never for them: those who are perjured and infamous, whores, bawds, those under the ban, usurers, bastards, common blasphemers, gamesters, persons actually drunk, stage-players, prize-fighters, apostates, traitors, even all without exception, besides mortal enemies.

When the witnesses are summoned, first they take an oath upon the scriptures to speak the truth. After this he is asked by the inquisitor, whether he knows, or can guess the cause of his citation and present examination? If he says yes, he is interrogated how he knew it? If he says no, he is interrogated, whether he hath known, or doth know now any one or more heretics, or persons suspected of heresy, or at least is able to name any such? Whether he knows N.? What was the occasion of his acquaintance with him? How long he hath known him? Whether he hath been used to converse with him? Whether he hath heard at any time any thing from the said N. concerning the Catholic religion? Whether ever he was in such a place with the said N. and whether the said N. did or said there such and such heretical things, or favouring of heresy? Who were present when N. did or said the aforesaid things? How often he saw them said or done, and on what occasion, and how? Whether the said N. spoke the aforesaid things in jest, or without thinking, or through a slip of his tongue, or as relating the heresies of some other person or persons? Whether he said any thing which ought not to have been said, through hatred or love, or omitted and concealed somewhat that ought to have been explained? He is farther admonished to tell the single truth, because, if he is detected of speaking falsely, he will be made to suffer the penalties, not only of perjury, but of favouring heresy.

After this, one of the proctors of the court demands that the criminal be taken up, and the inquisitor subscribes an order for this purpose. When he is apprehended, he must be well guarded, put in irons, and delivered to the jailkeeper of the inquisition.

When the criminal is put in jail, he is brought before the inquisitor. The place where he appears before the inquisitor, is called by the Portuguese the table of the holy office. At the farther end of it there is placed a crucifix, raised up almost as high as the ceiling. In the middle of the room there is a table. At that end which is nearest the crucifix, sits the secretary or notary of the inquisition. The criminal is brought in by the beadle, with his head, arms and feet naked, and is followed by one of the keepers. When they come to the chamber of audience, the beadle enters first, makes a profound reverence before the inquisitor, and then withdraws. After this, the criminal enters alone, who is ordered to sit down on a bench at the other end of the table, over against the secretary. The inquisitor sits on his right hand. On the table near the criminal lies a missal, or book of the gospels; and he is ordered to lay his hand on one of them, and to swear that he will declare the truth, and keep secrecy.

After taking this oath, of declaring the truth both of himself and others, the inquisitor interrogates him of divers matters. As, whether he knows why he was taken up, or hath been informed of it by any one or more persons? Where, when, and how he was apprehended? If he says that he knows nothing of it, he is asked, whether he cannot guess at the reason? whether he knows in what prisons he is detained? and upon what account men are imprisoned there? If he says he cannot guess at the cause of his imprisonment, but knows that he is in the prisons of the holy office, where heretics and persons suspected of heresy are confined, he is told, that since he knows persons are confined there for their profanation of religion, he ought to conclude that he also is confined for the same reason; and must therefore declare what he believes to be the cause of his own apprehension and confinement in the prisons of the holy office. If he says he cannot imagine what it should be, before he is asked any other questions, he receives a gentle admonition, and is put in mind of the lenity of the holy office towards those who confess without forcing, and of the rigour of justice used towards those who are obstinate. They also compare other tribunals with the holy office, and remind him, that in others the confession of the crime draws after it immediate execution and punishment; but that in the court of the inquisition, those who confess and are penitent, are treated with greater gentleness. After this, he is admonished in writing, and told, that the ministers of the holy office never take up any one, or are used to apprehend any one without a just cause; and that therefore they earnestly

beseech him, and command and enjoin him, exactly to recollect and diligently to consider his actions, to examine his conscience, and purge it from all those offences and errors it labours under, and for which he is informed against.

After this he is asked, what race he comes of? Who were his parents and ancestors? that hereby he may declare all his family. Whether any one of them was at any time taken up by the holy office, and enjoined penance? This they are especially asked, who descend from Jews, Mahometans, and sectaries. Where he was brought up? In what places he hath dwelt? Whether he ever changed his country? Why he did so, and went into another place? With whom he conversed in the aforesaid places; who were his friends, and with whom he was intimate? Whether he ever conversed with any of his acquaintance about matters of religion, or heard them speak about religion? In what place, and when, and how often, and of what things or matters they conversed?

He is moreover asked, of what profession he is, and what employment of life he follows? Whether he be rich or poor? What returns he hath, and what the expences of his living? Then he is commanded to give an account of his life, and to declare what he hath done from his childhood, even to this time. And that he may declare all this, he is asked, in what places or cities he studied, and what studies he followed? Who were his masters? whose names he must tell. What arts he learnt? What books he hath had and read? and whether he hath now any books treating of religion, and what? Whether ever he hath been examined and cited, or sued, or processed before any other tribunal, or the tribunal of the holy inquisition, and for what causes; and whether he was absolved or condemned, by what judge, and in what year? Whether ever he was excommunicated, and for what cause? Whether he was afterwards absolved or condemned, and for what reason? Whether he hath every year sacramentally confessed his sins, how often, and in what church? Then he is commanded to give the names of his confessors, and of those from whom he hath received the eucharist; and especially for the ten years last past, and more. What orations or holy prayers he recites? Whether he hath any enemies? whose names he must tell, and the reasons of their enmity.

If the criminal is persuaded by these, or by more or less such interrogatories, openly to confess the truth, his cause is finished, because it is immediately known what will be the issue of it.

But if after all these interrogatories the prisoner persists in the negative, and says he doth not know why he is cited or sent to prison, the inquisitor replies, that since it appears from his own words, that he will not discover the truth, and that there is no proof of his having such enmities with any person, or that there are no such causes of hatred as he alledges, by which others could, or ought to be induced slanderously, and falsely to inform against him, that therefore there arises the stronger suspicion, that the depositions against him in the holy office are true. And therefore he is beseeched and abjured, by the bowels of mercy of Christ Jesus, to consider better and better, and ingenuously to confess the truth, and to declare whether he hath erred in words or deeds, in the aforesaid matter relating to the faith, and the holy office, or rendered himself suspected to others.

If by such general interrogatories the inquisitor cannot draw from the prisoner a confession of the crime of which he is accused, he comes to particular interrogatories, which relate to the matter itself, or the crimes or heresies for which the criminal was denounced. For instance, if he was accused for denying purgatory, then one, two, or three days after his first examination, he is again interrogated by the inquisitor, whether he hath any thing, and what to say, besides what he said in his other examination? Whether he hath thought better of the matter, and can recollect the cause of his imprisonment, and former examination, or hath at least any suspicion who could accuse him to the holy office, and of what matters? Whether he hath heard any one discoursing of paradise, purgatory, and hell? What he heard concerning that matter? Who they were, that he heard speaking, or disputing of those things? Whether he ever discoursed of them? What he hath believed, and doth now believe about purgatory? If he answers, that his faith concerning it hath been right, and denies any ill belief, but that he believes as holy mother church believes and teaches, he is ordered to say what the holy Roman mother church doth think and believe concerning this article.

If the prisoner knows the reason of his being apprehended, and openly confesses every thing of which he hath been accused to the inquisitor, he is commended, and encouraged to hope for a speedy deliverance. If he confesses some things, but cannot guess at others, he is commended for taking up the purpose of accusing himself, and exhorted by the bowels of mercy of Jesus Christ to proceed, and ingenuously to confess every thing else of which he is accused; that so he may experience that kindness and

mercy, which this tribunal uses towards those who manifest a real repentance of their crimes by a sincere and voluntary confession.

In these examinations the inquisitors use the greatest artifice, to draw from the prisoners confessions of those crimes of which they are accused; promising them favour, if they will confess the truth. And by these flattering assurances they sometimes overcome the minds of more unwary persons; and when they have obtained the designed end, immediately forget them all. Of this Gonsalvius^[260] gives us a remarkable instance. “In the first fire that was blown up at Seville, anno 1558, or 1559, amongst many others who were taken up, there was a certain pious matron with her two virgin daughters, and her niece by her sister, who was married. As they endured those tortures of all kinds, with a truly manlike constancy, by which they endeavoured to make them perfidiously betray their brethren in Christ, and especially to accuse one another, the inquisitor at length commanded one of the daughters to be sent for to audience. There he discoursed with her alone for a considerable time, in order to comfort her, as indeed she needed it. When the discourse was ended, the girl was remanded to her prison. Some days after he acted the same part again, causing her to be brought before him several days towards the evening, detaining her for a considerable while; sometimes telling her how much he was grieved for her afflictions, and then intermixing familiarly enough other pleasant and agreeable things. All this, as the event shewed, had only this tendency, that after he had persuaded the poor simple girl, that he was really, and with a fatherly affection concerned for her calamity, and would consult as a father what might be for her benefit and salvation, and that of her mother and sisters, she might wholly throw herself into his protection. After some days spent in such familiar discourses, during which he pretended to mourn with her over her calamity, and to shew himself affected with her miseries, and to give her all the proof of his good will, in order, as far as he could, to remove them; when he knew he had deceived the girl, he begins to persuade her to discover what she knew of herself, her mother, sisters, and aunts who were not yet apprehended, promising upon oath, that if she would faithfully discover to him all that she knew of that affair, he would find out a method to relieve her from all her misfortunes, and to send them all back again to their houses. The girl, who had no very great penetration, being thus allured by the promises and persuasions of the father of the faith, begins to tell him some things relating to the holy doctrine she had been taught, and about

which they used to confer with one another. When the inquisitor had now got hold of the thread, he dextrously endeavoured to find his way throughout the whole labyrinth; oftentimes calling the girl to audience, that what she had deposed might be taken down in a legal manner; always persuading her, this would be the only just means to put an end to all her evils. In the last audience he renews to her all his promises, by which he had before assured her of her liberty, and the like. But when the poor girl expected the performance of them, the said inquisitor, with his followers, finding the success of his craftiness, by which he had in part drawn out of the girl, what before they could not extort from her by torments, determined to put her to the torture again, to force out of her what they thought she had yet concealed. Accordingly she was made to suffer the most cruel part of it, even the rack, and the torture by water; till at last they had squeezed out of her, as with a press, both the heresies and accusations of persons they had been hunting after. For, through the extremity of her torture, she accused her mother and sisters, and several others, who were afterwards taken up and tortured, and burnt alive in the same fire with the girl."

But if they do not succeed neither with this way, the inquisitor permits some person or other, who is not unacceptable to the prisoner, to go to him, and converse with him; and if it be needful to feign himself still one of his own sect, but that he abjured through fear, and discovered the truth to the inquisitor. When he finds that the prisoner confides in him, he comes to him again late in the evening, keeps on a discourse with him, at length pretending it is too late to go away, and that therefore he will stay with him all night in the prison, that they may converse together, and the prisoner may be persuaded by the other's discourse to confess to one another what they have committed. In the mean while there are persons standing at a proper place without the jail, to hear and to take notice of their words; who, when there is need, are attended by a notary.

Or else the person who thus treacherously draws out any thing, according to his desire, from his fellow-prisoners, prays the jail-keeper, when according to custom he is visiting his prisoners, to desire that he may have an audience. And when he goes out of his jail to give an account of his office, he discovers not only what he heard from any of the prisoners, but also how they received the doctrine proposed to them; whether with a chearful or angry countenance, and the like; if they refused to give them an answer, and what they themselves think of them. And the accusations of

such a wretch they look on as the best and most unexceptionable evidence, although the person be otherwise one of no manner of worth, credit, or regard.

They who have been lately in the prison of the inquisition in Spain and Portugal, tell us of another method they make use of to draw a confession from the prisoners, viz. The inquisitor suborns a certain person to go and speak to the prisoner, and to tell him he comes of himself, and of his own accord, and to exhort him to tell the inquisitor the truth, because he is a merciful man, and such fine tales. This is now particularly the custom in Spain and Portugal, as to those they call the new Christians. If the prisoner affirms himself to be a Catholic, and denies that he is a Jew, and is not convicted by a sufficient number of witnesses, they suborn one to persuade him to confess. If he protests himself innocent, the other replies, that he also hath been in jail, and that his protesting his innocence signified nothing. What, had you rather dwell for ever in jail, and render your life miserable, by being ever parted from your wife and children, than redeem your freedom, by confessing the crime? By this, and other like things, the prisoners are oftentimes persuaded to confess not only real, but fictitious crimes. And when their constancy is thus almost overcome, the inquisitor commands them to be brought before him, that they may make him a confession of their faults.

After these examinations, if the prisoner persists in the negative, he is admitted to his defence, and hath an advocate or proctor appointed him, but such only as the inquisitors allow him; and who, as soon as ever they know the prisoners are criminal, bind themselves by oath to throw up their defence. A copy of the accusation is usually given to the prisoner, to which he must answer article by article; and likewise a copy of the proofs, but not of the names of the witnesses, nor any circumstances by which they may discover who they are, for fear the witnesses should be in danger if known.

After the process is thus carried on, it is finished in this manner: Either by absolution, if the prisoner be found really innocent, or the accusation against him not fully proved. Not that they pronounce such person free from heresy, but only declare that nothing is legally proved against him, on account of which he ought to be pronounced an heretic, or suspected of heresy; and that therefore he is wholly released from his present trial and inquisition. But if, notwithstanding this, he should afterwards be accused of

the same crime, he may be again judged and condemned for it; and this absolution will stand him in no stead.

If the party accused is found to be only defamed for heresy, and not convicted of heresy by any legal proofs, he is not absolved, but enjoined canonical purgation. The manner of the purgation is this: the party accused must produce several witnesses, good and Catholic men, who must swear by God, and the four holy gospels of God, that they firmly believe he hath not been an heretic, or believer of their errors; and that he hath sworn the truth, in denying it upon oath. If he fails in his purgation, i. e. cannot procure such a number of purgers as he is enjoined, he is esteemed as convict, and condemned as an heretic.

If the person accused is not found guilty by his own confession, or proper witnesses; yet if he cannot make his innocence appear plainly to the inquisitor, or if he is caught contradicting himself, or faltering, or trembling, or sweating, or pale, or crying; or if there be half proof of his crime, he is put to the question or torture. And this liberty the inquisitors sometimes shamefully abuse, by torturing the most innocent persons; as appears by the following instance.

“^[261]A noble lady, Joan Bohorquia, the wife of Francis Varquius, a very eminent man, and lord of Higuera, and daughter of Peter Garsia Xeresius, a wealthy citizen of Seville, was apprehended, and put into the inquisition at Seville. The occasion of her imprisonment was, that her sister, Mary Bohorquia, a young lady of eminent piety, who was afterwards burnt for her pious confession, had declared in her torture that she had several times conversed with her sister concerning her own doctrine. When she was first imprisoned, she was about six months gone with child; upon which account she was not so straitly confined, nor used with that cruelty which the other prisoners were treated with, out of regard to the infant she carried in her. Eight days after her delivery they took the child from her, and on the fifteenth shut her close up, and made her undergo the fate of the other prisoners, and began to manage her cause with their usual arts and rigour. In so dreadful a calamity she had only this comfort, that a certain pious young woman, who was afterwards burnt for her religion by the inquisitors, was allowed her for her companion. This young creature was, on a certain day, carried out to her torture, and being returned from it into her jail, she was so shaken, and had all her limbs so miserably disjointed, that when she laid upon her bed of rushes, it rather encreased her misery than gave her rest, so

that she could not turn herself without the most excessive pain. In this condition, as Bohorquia had it not in her power to shew her any, or but very little outward kindness, she endeavoured to comfort her mind with great tenderness. The girl had scarce began to recover from her torture, when Bohorquia was carried out to the same exercise, and was tortured with such diabolical cruelty upon the rack, that the rope pierced and cut into the very bones of her arms, thighs, and legs; and in this manner she was brought back to prison, just ready to expire, the blood immediately running out of her mouth in great plenty. Undoubtedly they had burst her bowels, insomuch that the eighth day after her torture she died. And when after all they could not procure sufficient evidence to condemn her, though sought after and procured by all their inquisitorial arts; yet, as the accused person was born in that place, where they were obliged to give some account of the affair to the people, and indeed could not by any means dissemble it; in the first act of triumph appointed after her death, they commanded her sentence to be pronounced in these words: because this lady died in prison (without doubt suppressing the causes of it) and was found to be innocent upon inspecting and diligently examining her cause, therefore the holy tribunal pronounces her free from all charges brought against her by the fiscal, and absolving her from any farther process, doth restore her both as to her innocence and reputation; and commands all her effects, which had been confiscated to be restored to those to whom they of right belonged, &c. And thus, after they had murdered her by torture, with savage cruelty, they pronounced her innocent.”

After the sentence of torture is pronounced, the officers prepare themselves to inflict it. “[262]The place of torture in the Spanish inquisition is generally an under-ground and very dark room, to which one enters through several doors. There is a tribunal erected in it, in which the inquisitor, inspector, and secretary sit. When the candles are lighted, and the person to be tortured brought in, the executioner, who was waiting for him, makes a very astonishing and dreadful appearance. He is covered all over with a black linen garment down to his feet, and tied close to his body. His head and face are all hid with a long black cowl, only two little holes being left in it for him to see through. All this is intended to strike the miserable wretch with greater terror in mind and body, when he sees himself going to be tortured by the hands of one who thus looks like the very devil.”

The degrees of torture formerly used, were principally three: first, by stripping and binding. Secondly, by being hoisted on the rack. Thirdly, squassation.

This stripping is performed without any regard to humanity or honour, not only to men, but to women and virgins, though the most virtuous and chaste, of whom they have sometimes many in their prisons. For they cause them to be stripped, even to their very shifts; which they afterwards take off, and then put on them straight linen drawers, and then make their arms naked quite up to their shoulders. As to squassation, it is thus performed: the prisoner hath his hands bound behind his back, and weights tied to his feet, and then he is drawn up on high, till his head reaches the very pulley. He is kept hanging in this manner for some time, that by the greatness of the weight hanging at his feet, all his joints and limbs may be dreadfully stretched; and on a sudden he is let down with a jirk, by the slacking the rope, but kept from coming quite to the ground; by which terrible shake his arms and legs are all disjoined, whereby he is put to the most exquisite pain; the shock which he receives by the sudden stop of his fall, and the weight at his feet, stretching his whole body more intensely and cruelly.

The author of the History of the Inquisition at Goa tells us,^[263] that the torture now practised in the Portuguese inquisition is exceeding cruel. “In the months of November and December, I heard every day in the morning the cries and groans of those who were put to the question, which is so very cruel, that I have seen several of both sexes who have been ever after lame. In this tribunal they regard neither age nor sex, nor condition of persons, but all without distinction are tortured, when it is for the interest of this tribunal.”

The method of torturing, and the degree of tortures now used in the Spanish inquisition, will be well understood from the history of Isaac Orobio, a Jew, and doctor of physic, who was accused to the inquisition as a Jew, by a certain Moor his servant, who had by his order before this been whipped for thieving; and four years after this he was again accused by a certain enemy of his for another fact, which would have proved him a Jew. But Orobio obstinately denied that he was one. I will here give the account of his torture, as I had it from his own mouth. After three whole years which he had been in jail, and several examinations, and the discovery of the crimes to him of which he was accused, in order to his confession, and his constant denial of them, he was at length carried out of his jail, and through

several turnings brought to the place of torture. This was towards the evening. It was a large under-ground room, arched, and the walls covered with black hangings. The candlesticks were fastened to the wall, and the whole room enlightened with candles placed in them. At one end of it there was an inclosed place like a closet, where the inquisitor and notary sat at a table; so that the place seemed to him as the very mansion of death, every thing appearing so terrible and awful. Here the inquisitor again admonished him to confess the truth, before his torments began. When he answered he had told the truth, the inquisitor gravely protested, that since he was so obstinate as to suffer the torture, the holy office would be innocent, if he should shed his blood, or even expire in his torments. When he had said this, they put a linen garment over his body, and drew it so very close on each side, as almost squeezed him to death. When he was almost dying, they slackened at once the sides of the garment; and after he began to breathe again, the sudden alteration put him to the most grievous anguish and pain. When he had overcome this torture, the same admonition was repeated, that he would confess the truth, in order to prevent farther torment. And as he persisted in his denial, they tied his thumbs so very tight with small cords, as made the extremities of them greatly swell, and caused the blood to spurt out from under his nails. After this he was placed with his back against a wall, and fixed upon a little bench. Into the wall were fastened little iron pullies, through which there were ropes drawn, and tied round his body in several places, and especially his arms and legs. The executioner drawing these ropes with great violence, fastened his body with them to the wall; so that his hands and feet, and especially his fingers and toes being bound so straitly with them, put him to the most exquisite pain, and seemed to him just as though he had been dissolving in flames. In the midst of these torments, the torturer, of a sudden, drew the bench from under him, so that the miserable wretch hung by the cords without any thing to support him, and by the weight of his body drew the knots yet much closer. After this a new kind of torture succeeded. There was an instrument like a small ladder, made of two upright pieces of wood, and five cross ones sharpened before. This the torturer placed over against him, and by a certain proper motion struck it with great violence against both his shins; so that he received upon each of them at once five violent strokes, which put him to such intolerable anguish that he fainted away. After he came to himself, they inflicted on him the last torture. The torturer tied ropes about Orobio's

wrists, and then put those ropes about his own back, which was covered with leather to prevent his hurting himself. Then falling backwards, and putting his feet up against the wall, he drew them with all his might, till they cut through Orobio's flesh even to the very bones; and this torture was repeated thrice, the ropes being tied about his arms about the distance of two fingers breadth from the former wound, and drawn with the same violence. But it happened, that as the ropes were drawing the second time, they slid into the first wound; which caused so great an effusion of blood, that he seemed to be dying. Upon this the physician and surgeon, who are always ready, were sent for out of a neighbouring apartment, to ask their advice, whether the torture could be continued without danger of death, lest the ecclesiastical judges should be guilty of an irregularity, if the criminal should die in his torments. They, who were far from being enemies to Orobio, answered that he had strength enough to endure the rest of the torture, and hereby preserved him from having the tortures he had already endured repeated on him, because his sentence was, that he should suffer them all at one time, one after another. So that if at any time they are forced to leave off through fear of death, all the tortures, even those already suffered, must be successively inflicted to satisfy the sentence. Upon this the torture was repeated the third time, and then it ended. After this he was bound up in his own clothes, and carried back to his prison, and was scarce healed of his wounds in seventy days. And inasmuch as he made no confession under his torture, he was condemned, not as one convicted, but suspected of Judaism, to wear for two whole years the infamous habit called *Sambenito*, and after that term to perpetual banishment from the kingdom of Seville.

Ernestus Eremundus Frisius,^[264] in his *History of the Low Country Disturbances*, gives us an account from Gonsalvius, of another kind of torture. There is a wooden bench, which they call the wooden horse, made hollow like a trough, so as to contain a man lying on his back at full length; about the middle of which there is a round bar laid across, upon which the back of the person is placed, so that he lies upon the bar instead of being let into the bottom of the trough, with his feet much higher than his head. As he is lying in this posture, his arms, thighs, and shins are tied round with small cords or strings, which being drawn with screws at proper distances from each other, cut into the very bones, so as to be no longer discerned.^[265] Besides this,^[266] the torturer throws over his mouth and nostrils a thin cloth,

so that he is scarce able to breathe through them; and in the mean while a small stream of water like a thread, not drop by drop, falls from on high, upon the mouth of the person lying in this miserable condition, and so easily sinks down the thin cloth to the bottom of his throat; so that there is no possibility of breathing, his mouth being stopped with water, and his nostrils with the cloth; so that the poor wretch is in the same agony as persons ready to die, and breathing out their last. When this cloth is drawn out of his throat, as it often is, that he may answer to the questions, it is all wet with water and blood, and is like pulling his bowels through his mouth. There is also another kind of torture peculiar to this tribunal, which they call the fire. They order a large iron chafin-dish full of lighted charcoal to be brought in, and held close to the soles of the tortured person's feet, greased over with lard, so that the heat of the fire may more quickly pierce through them.

This is inquisition by torture, when there is only half full proof of their crime. However, at other times torments are sometimes inflicted upon persons condemned to death, as a punishment preceding that of death. Of this we have a remarkable instance in William Lithgow, an Englishman, who, as he tells us in his travels, was taken up as a spy in Mallagom, a city of Spain, and was exposed to the most cruel torments upon the wooden horse. But when nothing could be extorted from him, he was delivered to the inquisition as an heretic, because his journal abounded with blasphemies against the pope and the Virgin Mary. When he confessed himself a Protestant before the inquisitor, he was admonished to convert himself to the Roman church, and was allowed eight days to deliberate on it. In the mean while the inquisitor and Jesuits came to him often, sometimes wheedling him, sometimes threatening and reproaching him, and sometimes arguing with him. At length they endeavoured to overcome his constancy by kind assurances and promises; but all in vain. And therefore as he was immoveably fixed, he was condemned, in the beginning of Lent, to sutler the night following eleven most cruel torments; and after Easter to be carried privately to Granada, there to be burnt at midnight, and his ashes to be scattered into the air. When night came on his fetters were taken off, then he was stripped naked, put upon his knees, and his hands lifted up by force; after which opening his mouth with iron instruments, they filled his belly with water till it came out of his jaws. Then they tied a rope hard about his neck, and in this condition rolled him seven times the whole length of the

room, till he was almost quite strangled. After this they tied a small cord about both his great toes, and hung him up thereby with his head towards the ground, and then cut the rope about his neck, letting him remain in this condition till all the water discharged itself out of his mouth; so that he was laid on the ground as just dead, and had his irons put on him again. But beyond all expectation, and by a very singular accident, he was delivered out of jail, escaped death, and fortunately sailed home to England. But this method of torturing doth not belong to this place, where we are treating only of the inquisition of a crime not yet fully proved.

If when the person is decently tortured he confesses nothing, he is allowed to go away free; and if he demands of his judges that he be cleared by sentence, they cannot deny it him; and they pronounce, that having diligently examined the merits of the process, they find nothing of the crime of which he was accused legally proved against him.

But if, when under the question, he confesses, it is written in the process; after which he is carried to another place, where he hath no view of the tortures, and there his confession made during his torments is read over to him, and he is interrogated several times, till the confession be made. But here Gonsalvius observes,^[267] that when the prisoner is carried to audience, they make him pass by the door of the room where the torture is inflicted, where the executioner shews himself on the purpose to be seen in that shape of a devil I have described before; that as he passes by, he may, by seeing him, be forced to feel, as it were over again, his past torments.

If there be very strong evidence against the criminal, if new proofs arise, if the crime objected to him be very heinous, and the discoveries against him undoubted; if he was not sufficiently tortured before, he may be tortured again, but then only “when his mind and body are able to endure it.”

If he doth not persist in his first confession, and is not sufficiently tortured, he may be put to the torture again; not by way of repetition, but continuation of it.

But if he persists in his confession, owns his fault, and asks pardon of the church, he is condemned as guilty of heresy by his own confession, but as penitent. But if he obstinately persists in heresy, he is condemned, and delivered over to the secular arm to be punished with death. If he confesses any thing by torture, he must be forced to abjure it.

When a person accused of heresy is found to be only slightly suspected of it, he is considered either as suspected publicly or privately. If he is publicly suspected, this was formerly the manner of his abjuration. On the preceding Lord's day the inquisitor proclaims, that on such a day he will make a sermon concerning the faith, commanding all to be present at it. When the day comes, the person to abjure is brought to the church, in which the council hath determined that he shall make his abjuration. There he is placed upon a scaffold, erected near the altar, in the midst of the people, and is not allowed to sit, but stands on it, that all may see him, bare-headed, and with the keepers standing round him. The sermon being made on the mass, to the people and clergy there present, the inquisitor says publicly, that the person there placed on the scaffold is suspected from such and such appearances and actions, of the heresy that hath been refuted in the public sermon; and that therefore it is fit that he should purge himself from it, by abjuring it, as one slightly suspected. Having said this, a book of the gospels is placed before him, on which laying his hands, he abjures his heresy. In this oath he not only swears that he holds that faith which the Roman church believes, but also that he abjures every heresy that extols itself against the holy Roman and apostolic church: and particularly the heresy of which he was slightly suspected, naming that heresy: and that if he shall do any of the aforesaid things for the future, he willingly submits to the penalties appointed by law to one who thus abjures, and is ready to undergo every penance, as well for the things he hath said and done, as for those concerning which he is deservedly suspected of heresy, which they shall lay on him; and that with all his power he will endeavour to fulfil it.

If he hath not been publicly suspected, he abjures privately after the same manner in the episcopal palace, or inquisitor's hall.

If he is vehemently suspected, he is placed in like manner upon a scaffold; and after he hath taken his oath upon the gospels, his abjuration is delivered him in writing, to read before all the people, if he can. If he cannot read, the notary, or some religious, or clergyman reads it by sentences, pausing between each till the other hath repeated it after him; and so on, till the whole abjuration is gone through. In this abjuration he submits himself to the punishments due to relapses, if he ever after falls into the heresy he hath abjured. After the abjuration is made, the bishop admonishes him, that if ever hereafter he doth, or says any thing by which it can be proved, that he hath fallen into the heresy he hath abjured, he will be

delivered over to the secular court without mercy. Then he enjoins him penance, and commands him to observe it; adding this threatening, that otherwise he will become a relapse, and may, and ought to be judged as an impenitent. However, suspected persons, whether it be slightly or vehemently, are not condemned to wear crosses, nor to perpetual imprisonment, because these are the punishments of penitent heretics; though sometimes they are ordered to wear for a while the Sambenito, according to the nature of their offence. Ordinarily they are enjoined to stand on certain holy days in the gates of such and such churches, holding a burning taper of such a weight in their hands, and to go a certain pilgrimage; sometimes also they are imprisoned for a while, and afterwards disposed of as is thought proper.

Gonsalvius gives us some instances of these punishments.^[268] “There was at Seville a certain poor man, who daily maintained himself and his family by the sweat of his brow. A certain parson detained his wife from him by violence, neither the inquisition nor any other tribunal punishing this heinous injury. As the poor man was one day talking about purgatory, with some other persons of his own circumstances, he happened to say, rather out of rustic simplicity than any certain design, that he truly had enough of purgatory already, by the rascally parson’s violently detaining from him his wife. This speech was reported to the good parson, and gave him a handle to double the poor man’s injury, by accusing him to the inquisitors, as having a false opinion concerning purgatory. And this the holy tribunal thought more worthy of punishment than the parson’s wickedness. The poor wretch was taken up for this trifling speech, kept in the inquisitor’s jail for two whole years, and at length being brought in procession, was condemned to wear the Sambenito for three years in a private jail; and when they were expired, to be dismissed, or kept longer in prison, as the lords inquisitors should think fit. Neither did they spare the poor creature any thing of his little substance, though they did his wife to the parson, but adjudged all the remains of what he had after his long imprisonment to the exchequer of the inquisition.

“^[269]In the same procession there was also brought forth a reputable citizen of Seville, as being suspected of Lutheranism, without his cloak and his hat, and carrying a wax taper in his hand, after having exhausted his purse of 100 ducats towards the expences of the holy tribunal, and a year’s imprisonment in the jail of the inquisition, and having abjured as one

vehemently suspected; only because he was found to have said, that those immoderate expences (and on these accounts the Spaniards are prodigiously extravagant) which were laid out in erecting those large paper or linen buildings, which the common people corruptly call monuments, to the honour of Christ now in heaven, upon Holy Thursday; and also those which were expended on the festival of Corpus Christi, would be more acceptable to God, if they were laid out upon poor persons, or in placing out to good persons poor orphan girls. Two young students^[270] added to the number in that procession. One because he had written in his pocketbook some verses made by a nameless author, so artificially, as that the same words might be interpreted so as to contain the highest commendation of, or reflection upon Luther. Upon this account only, after two year's imprisonment, he was brought forth in procession, without his hat and cloak, carrying a wax taper; after which he was banished for three years from the whole country of Seville, made to abjure as lightly suspected, and punished with a fine. The other underwent the same censure, only for transcribing the verses for their artful composition, excepting only that he commuted his banishment for 100 ducats towards the expences of the holy tribunal."

If any one informed against, confesses on oath his heresy, but declares that he will abjure and return to the church, he must publicly abjure in the church before all the people. There is placed before him the book of the gospels; he puts off his hat, falls on his knees, and putting his hand on the book, reads his abjuration. And from this none, though otherwise privileged, are excepted. After this abjuration they are absolved from excommunication, and reconciled to the church; but are enjoined various punishments, or wholesome penances by the inquisitors at pleasure. What the punishments of religious persons are, may be seen from the two following instances.

Friar Marcellus de Pratis, a religious of the order of the Minors, was condemned in Sicily by the inquisition (because he had rashly feigned himself a saint, impeccable, confirmed in grace, and had pronounced other scandalous and rash propositions) to the galleys for three years, to be banished for two more into such a convent of his own religion as should be assigned him, with this addition; that he should fast every Friday on bread and water, eat upon the ground in the refectory, walk without his hat, and sit in the lowest place in the choir and refectory, and be perpetually deprived of

his active and passive vote, and of the faculty of hearing any persons confessions whatsoever.

One Mary of the Annunciation, prioress of the monastery of the Annunciation at Lisbon, a maid of thirty-two years old, had pretended that the wounds of Christ, by the special grace and privilege of God were imprinted on her, and shewed thirty-two wounds made on her head, representing the marks of those which were made by our Saviour's crown of thorns, and blood sprinkled on her hands like a rose, the middle of which was like a triangle, and shewed the holes of the nails narrower on one side than the other. The same were to be seen in her feet. Her side appeared as though it had been laid open by the blow of a lance. When all these things were openly shewn, it was wonderful to see how they raised the admiration and devotion of serious and holy men, and withal surprized and deceived them; for she did not suffer those pretended wounds to be seen otherwise than by command of her confessor. And that absent persons might have a great veneration for her, she affirmed, that on Thursdays she put into the wounds a small cloth, which received the impression of five wounds in form of a cross, that in the middle being the largest. Upon which these cloths were sent, with the greatest veneration, through the infinite devotion of the faithful, to the pope, and to almost all the most venerable and religious persons of the whole world. And as Paramus then had the administration of the causes of faith in the kingdom of Sicily, he saw several of those cloths, and the picture of that woman drawn to the life; and a book written by a person of great authority concerning her life, sanctity, and miracles. Yea, Pope Gregory XIII. himself determined to write letters to that wretched creature, to exhort her thereby to persist with constancy in her course, and to perfect what she had begun. At last the imposture was found out, that the marks of the wounds were not real, but made with red lead; and that the woman's design was, when she had gained authority and credit enough, by her pretended sanctity, to recover the kingdom of Portugal to its former state, which had legally fallen under the power of Philip II. Upon this the following sentence was pronounced against her by the inquisitors of Lisbon, December 8, anno 1588. First, she was commanded to pass the rest of her life shut up in a convent of another order, that was assigned to her without the city of Lisbon. Likewise, that from the day of pronouncing the sentence, she should not receive the sacrament of the eucharist for the space of five years, three Easters, and the hour of death excepted; or unless it

were necessary to obtain any jubilee, that should in the mean while be granted by the pope. Likewise, that on all Wednesdays and Fridays of the whole year, when the religious women of that convent held a chapter, she should be whipped, whilst the psalm, "Have mercy on me O God," was reciting. Likewise, that she should not sit down at table at the time of refreshment, but should eat publicly on the pavement, all being forbidden to eat any thing she left. She was also obliged to throw herself down at the door of the refectory, that the nuns might tread on her as they came in and went out. Likewise, that she should perpetually observe the ecclesiastical fast, and never more be created an abbess, nor be chosen to any other office in the convent where she had dwelt, and that she should be always subject to the lowest of them all. Likewise, that she should never be allowed to converse with any nun without leave of the abbess. Likewise, that all the rags marked with drops of blood, which she had given out, her spurious relics, and her effigies describing her, should be every where delivered to the holy inquisition; or if in any place there was no tribunal of the inquisition, to the prelate, or any other person appointed. Likewise, that she should never cover her head with the sacred veil; and that every Wednesday and Friday of the whole year she should abstain from meat, and live only on bread and water; and that as often as she came into the refectory, she should pronounce her crime with a loud voice in the presence of all the nuns.

Michael Piedrola also took upon himself for many years the name of a prophet, boasted of dreams and revelations, and affirmed they were revealed to him by a divine voice. Being convicted of so great a crime, he abjured de levi, was for ever forbid the reading of the Bible, and other holy books, deprived of paper and ink, prohibited from writing or receiving letters, unless such only as related to his private affairs; denied the liberty of disputing about the holy Scripture, as well in writing as in discourse; and finally, commanded to be thrown into jail, and there pass the remainder of his life.

Another punishment of heretics who abjure, is the confiscation of all their effects. And this confiscation is made with such rigour, that the inquisition orders the exchequer to seize on not only the effects of the persons condemned, but also all others administered by them, although it evidently appears that they belong to others. The inquisition at Seville gives a remarkable instance of this kind.

“Nicholas Burton, an Englishman, a person remarkable for his piety, was apprehended by the inquisition of Seville, and afterwards burnt for his immoveable perseverance in the confession of his faith, and detestation of their impiety. When he was first seized, all his effects and merchandizes, upon account of which he came to Spain, were, according to the custom of the inquisition, sequestered. Amongst these were many other merchandizes, which were consigned to him as factor, according to the custom of merchants, by another English merchant dwelling in London. This merchant, upon hearing that his factor was imprisoned, and his effects seized on, sent one John Frontom, as his attorney into Spain, with proper instruments to recover his goods. His attorney accordingly went to Seville; and having laid before the holy tribunal the instruments, and all other necessary writings, demanded, that the goods should be delivered to him. The lords answered that the affair must be managed in writing, and that he must choose himself an advocate (undoubtedly to prolong the suit) and out of their great goodness appointed him one, to draw up for him his petitions, and all other instruments which were to be offered to the holy tribunal; for every one of which they exorbitantly took from him eight reals, although he received no more advantage from them, than if they had never been drawn at all. Frontom waited for three or four whole months, twice every day, viz. in the morning, and after dinner, at the gates of the inquisitor’s palace, praying and beseeching, on his bended knees, the lords inquisitors, that his affair might be expedited; and especially the Lord Bishop of Tarraco, who was then chief inquisitor at Seville, that he, in virtue of his supreme authority, would command his effects to be restored to him. But the prey was too large and rich to be easily recovered. After he had spent four whole months in fruitless prayers and intreaties, he was answered, that there was need of some other writings from England, more ample than those he had brought before, in order to the recovery of the effects. Upon this the Englishman immediately returns to London, and procures the instruments of fuller credit which they demanded, comes back with them to Seville, and laid them before the holy tribunal. The lords put off his answer, pretending they were hindered by more important affairs. They repeated this answer to him every day, and so put him off for four whole months longer. When his money was almost spent, and he still continued earnestly to press the dispatch of his affair, they referred him to the bishop. The bishop, when consulted, said he was but one, and that the expediting the matter belonged

also to the other inquisitors; and by thus shifting the fault from one to the other, there was no appearance of an end of the suit. But at length being overcome by his importunity, they fixed on a certain day to dispatch him. And the dispatch was this: the licentiate Gascus, one of the inquisitors, a man well skilled in the frauds of the inquisition, commands him to come to him after dinner. The Englishman was pleased with this message, and went to him about evening, believing that they began to think in good earnest of restoring him his effects, and carrying him to Mr. Burton the prisoner, in order to make up the account; having heard the inquisitors often say, though he did not know their real meaning, that it was necessary that he and the prisoner should confer together. When he came, they commanded the jail-keeper to clap him up in such a particular prison, which they named to him. The poor Englishman believed at first that he was to be brought to Burton to settle the account; but soon found himself a prisoner in a dark dungeon, contrary to his expectation, and that he had quite mistaken the matter. After three or four days they brought him to an audience; and when the Englishman demanded that the inquisitors should restore his effects to him, they well knowing that it would agree perfectly with their usual arts, without any other preface, command him to recite his Ave Mary. He simply repeated it after this manner: ‘Hail, Mary, full of grace, the Lord is with thee; blessed art thou amongst women, and blessed is Jesus the fruit of thy womb. Amen.’ All was taken down in writing, and without mentioning a word about the restoring his effects (for there was no need of it) they commanded him back to his jail, and commenced an action against him for an heretic, because he had not repeated the Ave Mary according to the manner of the church of Rome, and had left off in a suspected place, and ought to have added, ‘Holy Mary, mother of God, pray for us sinners;’ by omitting which conclusion, he plainly discovered that he did not approve the intercession of the saints. And thus at last, upon this righteous pretence, he was detained a prisoner many days. After this he was brought forth in procession, wearing an habit; all his principal’s goods for which he had been suing being confiscated, and he himself condemned to a year’s imprisonment.”

Besides this confiscation of effects, they enjoin them wholesome penances; such as fastings, prayers, alms, the frequent use of the sacraments of penance, and the eucharist; and, finally, pilgrimages to certain places.

Some penances are honorary, attended with infamy to those who do them. Such are, walking in procession without shoes, in their breeches and shirt, and to receive therein public discipline by the bishop or priest; to be expelled the church, and to stand before the gates of the great church upon solemn days, in the time of mass, with naked feet, and wearing upon their cloak an halter about their neck. At this time they only stand before the gates of the church, with a lighted candle in their hand, during the time of solemn mass on some holy day, as the bell is ringing to church.

Besides these, they now use the punishment of banishment, of beating, and whipping with scourges or rods. Sometimes they are condemned to fines, excluded as infamous from all public offices, prohibited from wearing silver or gold, precious garments and ornaments, and from riding on horses or mules with trappings, as nobles do.

But the most usual punishment of all, is their wearing crosses upon their penitential garments, which is now frequently enjoined penitents in Spain and Portugal. And this is far from being a small punishment; because such persons are exposed to the scoffs and insults of all, which they are obliged to swallow, though the most cruel in themselves, and offered by the vilest of mankind; for by these crosses they are marked to all persons for heresy, or, as it is now in Spain and Portugal, for Judaism: and being thus marked, they are avoided by all, and are almost excluded from all human society.

This garment was formerly of a black and bluish colour, like a monk's cloak, made without a cowl; and the crosses put on them were strait, having one arm long, and the other across, after this manner †. Sometimes, according to the heinousness of the offence, there were two arms across, after this manner ‡. But now in Spain this garment is of a yellow colour, and the crosses put on it are oblique, after the manner of St. Andrew's cross, in this form X, and are of a red colour. This cloak the Italians call "Abitello," the Spaniards "Sant Benito," as though it was "Sacco Benito," i. e. the blessed sackcloth, because it is fit for penance, by which we are blessed and saved. But Simancas says it is the habit of St. Benedict.

Finally, the most grievous punishment is the being condemned to perpetual imprisonment, there to do wholesome penance with the bread of grief and the water of affliction. This is usually enjoined on the believers of heretics, and such as are difficultly brought to repentance; or who have a long while denied the truth during the trial, or have perjured themselves.

Besides this condemnation to perpetual imprisonment, such persons are also enjoined other penances, viz. sometimes to stand in the habit marked with the cross at the door of such a church, such a time, and so long, viz. on the four principal festivals of the glorious Virgin Mary, of such a church; or on such and such festivals, at the gates of such and such churches. Sometimes before they are shut up in prison they are publicly exposed, viz. being clothed with the habit of the crosses, they are placed upon an high ladder in the gate of some church, that they may be plainly seen by all; where they must stand till dinner time; after which they must be carried, clothed in the same habit, to the same place, at the first ringing to vespers, and there stand till sun-set; and these spectacles are usually repeated on several Sundays and festivals in several churches, which are particularly specified in their sentence. But if they break prison, or do not otherwise fulfil the penances enjoined them, they are condemned as impenitents, and as under the guilt of their former crimes; and if they fall again into the hands of the inquisitors, they are delivered over as impenitents to the secular court, unless they humbly ask pardon, and profess that they will obey the commands of the inquisitors.

However, if persons remain impenitent till after sentence is pronounced, there is no farther place for pardon. And yet there is one instance of Stephana de Proaudio, extant in the book of the sentences of the Thoulouse inquisition, who, being judged an heretic the day before, and left as an heretic to the secular court (from whence it appears that it was not then usual for those who were left to the secular court to be burnt the same day on which the sentence is pronounced, as is now practised in Spain and Portugal) seeing on the following day, viz. Monday, that the fire in which she was to be burnt was made ready, said on that very day, that she was willing to be converted to the Catholic faith, and to return to the ecclesiastical unity. And when it was doubted whether she spoke this feignedly or sincerely, or through fear of death, and was answered, that the time of mercy was elapsed, and that she should think of the salvation of her soul, and fully discover whatsoever she knew of herself or others concerning the fact of heresy, which she promised to say and do, and that she would die in the faith of the holy church of Rome; upon this the inquisitor and vicars of the bishop of Tholouse called a council on the following Tuesday, and at length it was concluded, that on the following Sunday she should confess the faith of the church of Rome, recant her

errors, and be carried back to prison, where it would be proved whether her conversion was real or pretended; and so strictly kept, that she might not be able to infect others with her errors. Emerick^[271] also gives us an instance at Barcelona, in Catalonia, of three heretics, impenitent, but not relapsed, who were delivered over to the secular arm. And when one of them, who was a priest, was put in the fire, and one of his sides somewhat burnt, he cried to be taken out of it, because he would abjure and repent. And he was taken out accordingly. But he was afterwards found always to have continued in his heresy, and to have infected many, and would not be converted; and was therefore turned over again, as impenitent and relapsed, to the secular arm, and burnt.

The author of the History of the Inquisition at Goa,^[272] gives us another instance of a very rich new Christian, whose name was Lewis Pezoa, who, with his whole family, had been accused of secret Judaism, by some of his enemies; and who, with his wife, two sons and one daughter, and some other relations that lived with him, were all thrown into the jail of the inquisition. He denied the crime of which he was accused, and well refuted it; and demanded that the witnesses who had deposed against him might be discovered to him, that he might convict them of falsehood. But he could obtain nothing, and was condemned as a negative, to be delivered over to the arm of the secular court; which sentence was made known to him fifteen days before it was pronounced. The Duke of Cadaval, an intimate friend of the Duke d'Aveira, inquisitor general, had made strict inquiry how his affair was like to turn. And understanding by the inquisitor general, that unless he confessed before his going out of prison he could not escape the fire, because he had been legally convicted, he continued to entreat the inquisitor general, till he had obtained a promise from him, that if he could persuade Pezoa to confess, even after sentence pronounced, and his procession in the act of faith, he should not die, though it was contrary to the laws and customs of an act of faith. Upon that solemn day therefore, on which the act of faith was to be held, he went with some of his own friends, and some that were Pezoa's, to the gate of the inquisition, to prevail with him, if possible, to confess. He came out in the procession, wearing the infamous Samarre, and on his head the Caroch, or infamous mitre. His friends, with many tears, besought him in the name of the Duke de Cadoval, and by all that was dear to him, that he would preserve his life; and intimated to him, that if he would confess and repent, the said duke had obtained his life from the

inquisitor general, and would give him more than he had lost. But all in vain; Pezoa continually protesting himself innocent, and that the crime itself was falsely invented by his enemies, who sought his destruction. When the procession was ended, and the act of faith almost finished, the sentences of those who were condemned to certain penances having been read, and on the approach of evening the sentences of those who were to be delivered over to the secular court being begun to be read, his friends repeated their intreaties, by which at last they overcame his constancy, so that desiring an audience, and rising up that he might be heard, he said, "Come then, let us go and confess the crimes I am falsely accused of, and thereby gratify the desires of my friends." And having confessed his crime, he was remanded to jail. Two years after he was sent to Evora, and in the act of faith walked in procession, wearing the Samarre, on which was painted the fire inverted, according to the usual custom of the Portuguese inquisition; and after five years more that he was detained in the jail of the inquisition, he was condemned to the gallies for five years.

If the person accused is found a relapse by his own confession, he cannot escape death, even though he is penitent. If he be in holy orders, he is first degraded. After sentence is pronounced against him, he is delivered to the secular arm, with this clause added to his sentence by the inquisitors: "Nevertheless, we earnestly beseech the said secular arm, that he will moderate his sentence against you, so as to prevent the effusion of blood, or danger of death:" Thus adding hypocrisy and insult to their devilish barbarity.

If the person accused be an impenitent heretick, but not relapsed, he is kept in chains in close imprisonment, that he may not escape, or infect others; and in the mean while all methods must be used for his conversion. They send clergymen to instruct him, and to put him in mind of the pains of hell-fire. If this will not do, they keep him in chains for a year or more, in a close, hard jail, that his constancy may be overcome by the misery of his imprisonment. If this doth not move him, they use him in a little kinder manner, and promise him mercy, if he will repent. If they cannot thus prevail with him, they suffer his wife and children, and little ones, and his other relations, to come to him, and break his constancy. But if after all he persists in his heresy, he is burnt alive.

If the person accused be found guilty of heresy by the evidence of the fact, or legal witnesses, and yet doth not confess, but persists in the

negative; after having been kept in jail for a year, he must be delivered over to the secular arm. So that if it should happen that he is accused by false witnesses, and is really innocent, the miserable wretch, though falsely condemned, is delivered to the power of the secular court, to be burnt alive; nor is it lawful for him, without the commission of mortal sin, as the Roman doctors think, to save his life, by falsely confessing a crime he hath not committed; and therefore it is the duty of the divines and confessors, who comfort such a negative, and attend on him to his punishment, to persuade him to discover the truth; but to caution him by all means not to acknowledge a crime he hath not committed, to avoid temporal death; and to put him in remembrance, that if he patiently endures this injury and punishment, he will be crowned as a martyr.

It is however evident, if the practice of the Portugal inquisition be considered, that the inquisitors are not so very solicitous about the eternal salvation of those they condemn, as they are to consult their own honour by the criminals confessions even of false crimes. Of this we have a remarkable instance, of a noble Portugeze, descended from the race of the new Christians, who was accused of Judaism. But as he did most firmly deny the crime objected to him, nothing was omitted that might persuade him to a confession of it; for he was not only promised his life, but the restitution of all his effects, if he would confess, and threatened with a cruel death if he persisted in the negative. But when all this was to no purpose, the inquisitor general, who had some respect for him, endeavoured to overcome his constancy by wheedling, and other arguments; but when he constantly refused to confess himself guilty of a crime he had not committed, the inquisitor general being at last provoked by his firmness, said, "What then do you mean? Do you think that we will suffer ourselves to be charged with a lie?" And having said this, he went off. When the act of faith drew near, the sentence of death was pronounced against him, and a confessor allowed him to prepare him for death. But at last he sunk under the fear of his approaching dreadful punishment, and by confessing on the very day of the act of faith the crime falsely fastened on him, he escaped death; but all his estate was confiscated, and he himself condemned for five years to the galleys.

If the person accused is a fugitive, after waiting for his appearance a competent time, he is cited to appear on such a day in the cathedral of such a diocese, and the citation fixed on the gates of the church. If he doth not

appear, he is complained of for contumacy, and accused in form. When this is done, and the crime appears, sentence is pronounced against the criminal; and if the information against him be for heresy, he is declared an obstinate heretic, and left as such to the secular arm. This sentence is pronounced before all the people, and the statue or image of the absent person publicly produced, and carried in procession; on which is a superscription, containing his name and surname; which statue is delivered to the secular power, and by him burnt. Thus Luther's statue was burnt, together with his books, at the command of Pope Leo X. by the Bishop of Ascoli.

The inquisitors also proceed against the dead. If there be full proof against him of having been an heretic, his memory is declared infamous, and his heirs, and other possessors, deprived of his effects; and finally, his bones dug out of their grave, and publicly burnt. Thus Wickliff's body and bones were ordered to be dug up and burnt, by the council of Constance: Bucer and Fagius, by Cardinal Pool, at Cambridge; and the wife of Peter Martyr, by Brookes, Bishop of Gloucester, at Oxford; whose body they buried in a dunghill. And thus Mark Antony de Dominis, Archbishop of Spalato, was condemned after his death for heresy; and the inquisitors agreed that the same punishments should be executed upon his dead body, as would have been on himself had he been alive.

Having taken this resolution, the twenty-first day of December, anno 1624, was appointed for the pronouncing sentence. Early in the morning of it, so vast a multitude had got together to St. Mary supra Minervam, where they generally give these religious shews, that they were forced not only to shut up, but to guard the gates with armed men; and the great area before the church was so prodigiously thronged, that there was scarce room for the cardinals themselves to pass. The middle aisle of the church, from the first to the fourth pillar, was boarded in, with boards above the height of a tall man. At the upper and lower end of it there were gates, guarded by Switzers. On each side there were scaffolds, running the whole length of the inclosure; in which were seats for the cardinals and other prelates, and other conveniences, to receive the courtiers and other noblemen standing or sitting. On the right hand, coming in, the sacred council presided; on the left hand were placed the inferior officers of the holy inquisition, the governor of the city, and his officials. Before the pulpit was to be seen the picture of Mark Anthony, drawn in colours, covered with a black common garment, holding a clergyman's cap in his hand, with his name, surname, and

archiepiscopal dignity, which formerly he had borne, inscribed upon it, together with a wooden chest bedaubed with pitch, in which the dead body was inclosed. The rest of the church was filled with citizens, and a great many foreigners; the number of whom was at that time larger, because the jubilee that was at hand had brought them from all parts to the city, that they might be present at the opening of the sacred gates.

Things being thus disposed, a certain parson mounted the pulpit, and with a shrill voice, which rung through all the parts of the spacious church, and in the vulgar language, that the common people might understand him, read over a summary of the process, and the sentence by which the cardinals inquisitors general, specially deputed for the affair by the pope, pronounced Mark Anthony, as a relapse into heresy, to have incurred all the censures and penalties appointed to relapsed heretics by the sacred canons, and papal constitutions; and declared him to be deprived of all honours, prerogatives, and ecclesiastical dignities, condemned his memory, and cast him out of the ecclesiastical court, delivered over his dead body and effigies into the power of the governor of the city, that he might inflict on it the punishment due, according to the rule and practice of the church. And finally, they commanded his impious and heretical writings to be publicly burnt, and declared all his effects to be forfeited to the exchequer of the holy inquisition. After this sentence was read, the governor of the city and his officers threw the corpse, effigies, and aforesaid writings into a cart, and carried them into the Campo Fiore, a great multitude of people following after. When they came there, the dead body, which as yet in all its members was whole and entire, was raised out of the chest as far as the bottom of the breast, and shewn from on high to the vast concourse of people that stood round about; and was afterwards, with the effigies and bundle of his books, thrown into the pile prepared for the purpose, and there burnt.

And finally, in order to beget in the common people a greater abhorrence of the crime of heresy, they usually pull down and level with the ground the houses or dwellings in which heretics hold their conventicles, the ground on which they stood being sprinkled over with salt, and certain curses and imprecations uttered over it. And that there may be a perpetual monument of its infamy, a pillar or stone, four or five feet high, is erected in the said ground, with large characters on it, containing the name and owner of the house, shewing the reason of its demolition, and the reign of what pope, emperor or king, the matter was transacted.

The whole of this horrid affair is concluded by what they call “An Act of Faith;” which is performed after this manner. When the inquisitor is determined to pronounce the sentences of certain criminals, he fixes on some Lord’s-day or festival to perform this solemnity. But they take care that it be not Advent Sunday, or in Lent, or a very solemn day, such as the Nativity of our Lord, Easter, and the like; because it is not decent that the sermons on those days should be suspended, but that every one should go to his own parish church. A certain Sunday or festival therefore being appointed, the parsons of all the churches of that city or place, in which this solemnity is to be performed, do, by command of the bishop and inquisitor, when they have done preaching, publicly intimate to the clergy and people, that the inquisitor will, in such a church, hold a general sermon concerning the faith; and they promise, in the name of the pope, the usual indulgence of forty days, to all who will come and see, and hear the things which are there to be transacted. They take care to give the same notice in the houses of those religious, who commonly preach the word of God; and that their superiors should be told, that because the inquisitor will in such a church make a general sermon concerning the faith, therefore he suspends all other sermons, that every superior may send four or two friars, as he thinks fit, to be present at the sermon, and the pronouncing the sentences. This solemnity was formerly called “A general Sermon concerning the Faith;” but it is now called, “An Act of Faith.” And in this, great numbers of persons, sometimes one or two hundred, are brought forth in public procession to various kinds of penances and punishments, all wearing the most horrible habits. They choose festivals for this solemnity, because then there is a greater confluence of people gathered together to see the torments and punishments of the criminals, that from hence they may learn to fear, and be kept from the commission of evil. And indeed, as this act of faith is now celebrated in Spain and Portugal, the solemnity is truly an horrible and tremendous spectacle, in which every thing is designedly made use of that may strike terror; for this reason, as they say, that they may hereby give some representation and image of the future judgment.

If any one, whether an impenitent or relapsed heretic is to be delivered to the secular court, the bishop and inquisitor give notice to the principal magistrate of the secular court, that he must come such a day and hour with his attendants to such a street or place, to receive a certain heretic or relapsed person out of their court, whom they will deliver to him: and that

he must give public notice the same day, or the day before in the morning, by the crier, throughout the city, in all the usual places and streets, that on such a day and hour, and in such a place, the inquisitor will make a sermon for the faith; and that the bishop and inquisitor will condemn a certain heretic or relapse, by delivering him to the secular court.

In most of the tribunals of the inquisition, especially in Spain, it is a remarkable custom they use, viz. on the day before the acts of faith, solemnly to carry a bush to the place of the fire, with the flames of which they are consumed, who deserve the punishment of being burnt. This is not without its mysteries; for the burning, and not consuming bush, signifies the indefectible splendour of the church, which burns, and is not consumed; and besides this, it signifies mercy towards the penitent, and severity towards the froward and obstinate. And farther, it represents how the inquisitors defend the vineyard of the church, wounding with the thorns of the bush, and burning up with flames all who endeavour to bring heresies into the harvest of the Lord's field. And finally, it points out the obstinacy and frowardness of heretics, which must rather be broken and bent, like a rugged and stubborn bush; and that as the thorns and prickles of the bush tear the garments of those who pass by, so also do the heretics rend the seamless coat of Christ.

Besides, the day before the criminals are brought out of jail to the public act of faith, they part with their hair and their beard; by which the inquisitors represent, that heretics return to that condition in which they were born, viz. becoming the children of wrath.

All things being thus prepared to celebrate this act of faith, all the prisoners, on that very day which is appointed for the celebration of it are clothed with that habit which they must wear in the public procession. But the custom in this matter is not altogether the same in all the inquisitions. In that of Goa, the jail-keepers, about midnight, go into the cells of the prisoners, bringing a burning lamp to each of them, and a black garment striped with white lines; and also a pair of breeches, which reach down to their ankles; both which they order them to put on. The black habit is given them in token of grief and repentance. About two o'clock the keepers return, and carry the prisoners into a long gallery, where they are all placed in a certain order against the wall, no one of them being permitted to speak a word, or mutter, or move; so that they stand immovable, like statues, nor is there the least motion of any one of their members to be seen, except of

their eyes. All these are such as have confessed their fault, and have declared themselves willing to return by penance to the bosom of the church of Rome. To every one of these is given a habit to put over their black garment. Penitent heretics, or such as are vehemently suspected, receive the blessed sackcloth, commonly called the Sambenito; which, as we have before related, is of a saffron colour, and on which there is put the cross of St. Andrew, of a red colour, on the back and on the breast. Vile and abject persons are made to wear the infamous mitre for more outrageous blasphemies, which carries in it a representation of infamy, denoting that they are as it were bankrupts of heavenly riches. The same mitre also is put on Polygamists, who are hereby shewn to have joined themselves to two churches; and finally, such as are convicted of magic; but what is signified hereby as to them, I have not been able to discover. The others, whose offences are slighter, have no other garment besides the black one. Every one hath given him an extinguished taper, and a rope about their neck; which rope and extinguished taper have their signification, as we shall afterwards shew. The women are placed in a separate gallery from the men, and are there cloathed with the black habit, and kept till they are brought forth in public procession.

As to those who are designed for the fire, viz. such as have confessed their heresy, and are impenitent, and negatives, viz. such who are convicted by a sufficient number of witnesses, and yet deny their crime, and finally such as are relapsed, they are all carried into a room separate from the others. Their dress is different from that of the others. They are however, clothed with the sackcloth, or kind of mantle, which some call the Sambenito, others the Samarra or Samaretta. And though it be of the same make as the Sambenito is, yet it hath different marks, is of a black colour, hath flames painted on it, and sometimes the condemned heretic himself, painted to the life, in the midst of the flames. Sometimes also they paint on it devils thrusting the poor heretic into hell. Other things may also be put on it; and all this is done, that persons may be deterred from heresy by this horrible spectacle.

As to those, who after sentence pronounced, do at length confess their crime, and convert themselves, before they go out of jail, they are, if not relapses, clothed with the Samarra, on which the fire is painted, sending the flames downward, which the Portugueze call Fogo revolto; as though you should say, the fire inverted. Besides this, they have paper mitres put on

them, made in the shape of a cone; on which also devils and flames are painted, which the Spaniards and Portugeze call in their language Carocha. All of them being thus clothed, according to the nature of their crime, are allowed to sit down on the ground, waiting for fresh orders. Those of them who are to be burnt, are carried into a neighbouring apartment, where they have confessors always with them, to prepare them for death, and convert them to the faith of the church of Rome.

About four o'clock the officers give bread and figs to all of them, that they may somewhat satisfy their hunger during the celebration of the act of faith. About sun-rising, the great bell of the cathedral church tolls; by which, as the usual signal of an act of faith, all persons are gathered together to this miserable spectacle. The more reputable and principal men of the city meet at the house of the inquisition, and are as it were the sureties of the criminals, one of them walking by the side of each criminal in the procession, which they think is no small honour to them. Matters being thus prepared, the inquisitor places himself near the gate of the house of the inquisition, attended by the notary of the holy office. Here he reads over in order the names of all the criminals; beginning with those whose offences are least, and ending with those whose crimes are greatest. The criminals march out each in their order, with naked feet, and wearing the habit that was put on them in jail. As every one goes out, the notary reads the name of his surety, who walks by his side in the procession. The Dominican monks march first; who have this honour granted them, because Dominick, the founder of their order, was also the inventor of the inquisition. The banner of the holy office is carried before them; in which the image of Dominick is curiously wrought in needle-work, holding a sword in one hand, and in the other a branch of olive, with these words "justice and mercy." Then follow the criminals with their sureties. When all those whose crimes are too slight to be punished with death, are gone out into procession, then comes the crucifix; after which follow those who are led out to the punishment of death. The crucifix being in the midst of these, hath its face turned to those who walk before, to denote the mercy of the holy office to those who are saved from the death they had deserved; and the back part of it to those who come after, to denote that they have no grace or mercy to expect: for all things in this office are mysterious. Finally, they carry out the statues of those who have died in heresy, habited in the Samarra; and also the bones dug out of the graves, shut up in black chests,

upon which devils and flames are painted all over, that they may be burnt to ashes.

^[273]When they have thus marched round the principal streets of the city, that all may behold them, they at length enter the church, where the sermon concerning the faith is to be preached. At Goa this is usually the church of the Dominicans, and sometimes that of the Franciscans. The great altar is covered over with cloth, upon which are placed six silver candlesticks, with burning tapers. On each side of it is erected something like a throne; that on the right hand for the inquisitor and his counsellors; that on the left for the viceroy and his officers. Over against the great altar there is another lesser one, on which several missals are placed; and from thence even to the gate of the church is made a long gallery, three feet wide, full of seats, in which the criminals are placed, with their sureties, in the order in which they enter the church; so that those who enter first, and have offended least, are nearest the altar.

After this comes in the inquisitor, surrounded with his colleagues, and places himself on the right hand throne; and then the viceroy, with his attendants, seats himself on the throne on the left hand. The crucifix is put on the altar in the midst of the six candlesticks. Then the sermon is preached concerning the faith, and the office of the inquisition. This honour is generally given to the Dominicans. The author of the History of the Inquisition at Goa tells us, that in the act of faith, in which he walked in procession, cloathed with the Sambenito, the provincial of the Augustines preached the sermon, which lasted half an hour, and treated of the inquisition, which he compared to Noah's ark; but said it was preferable to Noah's ark in this, because that the animals which entered it came out of it after the flood with the same brutal nature they carried in; whereas the inquisition so far changes the persons who are detained in it, that though they enter cruel as wolves, and fierce as lions, they come out of it meek as lambs.

When the sermon is ended, two readers, one after another, mount the same pulpit, and with a loud voice publicly read over the sentences of all the criminals, and the punishment to which they are condemned. He whose sentence is to be read over, is brought by an officer into the middle of the gallery, holding an extinguished taper in his hand, and there stands till his sentence is read through; and because all the criminals are supposed to have incurred the greater excommunication, when any one's sentence is read

over, he is brought to the foot of the altar, where, upon his knees, and his hands placed on the missale, he waits till so many are brought there, as there are missals upon the altar. Then the reader for some time defers the reading of the sentences; and after he hath admonished those who are kneeling at the altar, that they should recite with him with their heart and mouth the confession of faith he is to read over to them, he reads it with a loud voice; and when it is ended, they all take their former places. Then the reader reads over the sentences of the rest, and the same order is observed till all the sentences are gone through.

When the sentences of all those, who are freed from the punishment of death by the mercy of the office, are read through, the inquisitor rises from his throne, puts on his sacred vestments, and being attended with about twenty priests, comes down into the middle of the church, and there saying over some solemn prayers,^[274] which may be seen^[275] in the Book of the Sentences of the Thoulouse Inquisition, he absolves them all from the excommunication they were under, giving each of them a blow by the hands of those priests who attend him.

Farther, when the inquisitors absolve and reconcile penitents at an act of faith, they make use of rods, to admonish them, that by heresy they have fallen from the favour of God into his anger and fury. Hence Paramus^[276] advises such penitents to consider, with how great indulgence they are treated, because they are only whipped on the shoulders; that they may go away, and being mindful of the divine fury, may take heed not to relapse for the future. The rod also points out the judiciary power which the inquisitors exercise over impious heretics, and those who are suspected of heresy; because a rod is the measure by which any one's deserts are measured, and therefore penitents are whipped with rods according to the nature of their offence, whereby their faults are weighed and measured. Farther, the inquisitors use rods, because, as a rod at the beginning is in its nature flexible, tender and soft, but at last hard, blunt and stiff, so the inquisitors are soft and tender, whilst penitents offending through frailty and ignorance, reconcile themselves; but if heretics do afterwards suffer themselves to be overcome by wickedness, and fall again into the crimes they have committed, then they whip them, and strike them severely, even to the burning of the fire. And, finally, they use rods to establish and support the weak in the faith; because rods are a very apt instrument to support and confirm the lame and weak.

The penitents carry in their hands extinguished wax tapers, whilst the inquisitors reconcile them; to intimate, that the light of the faith hath been altogether extinguished in their minds by the sin of heresy and infidelity. These tapers are made of wax, whereby heretics profess (*Risum teneatis*) that their hearts have been so melted, through the heat of Concupiscence, as to receive various sects; and that as wax grows hard by moisture, but melts by dryness and warmth, so they being hardened by the moisture of carnal delights, have remained in infidelity, but are melted as wax, and converted by the dryness and heat of tribulation and penance enjoined them. And finally, the cotton of the taper, and the wax of which it is made, and the fire with which it is lighted after absolution, shadow forth that the heretics have denied faith, hope, and charity. But when the tapers are lighted after their reconciliation, this signifies that they profess they will demonstrate, by the light of good works, the faith which they have recovered.

Farther, those who are reconciled are sprinkled with holy water and hyssop, in token, that being brought out of the power of darkness, and having turned the eyes of their minds to the true light of the faith, they are to remain free from all the snares and calumnies of the devil, that they may serve God with greater freedom.

Farther, he who hath offended against the Catholic faith which he had professed, hath a rope tied round his neck, to signify, that the inward parts of such a person being possessed by the craftiness of the devil, have been given to such sins, of which his outward parts being tied with ropes, give a very evident sign and proof. And though they are reconciled after abjuration of their heresy, yet they walk with a rope tied about their necks; that they may come out as witnesses against themselves, and may be examples to others, that they may turn their eyes to the inward spots of the mind.

During this action, every one of the prisoners eats the bread and figs in the church, which were given them by the officers of the inquisition in jail.

When this ceremony is performed, the inquisitor goes back to his place; after which the sentences of those who are appointed to death are read over; the conclusion of which is, that the inquisition can shew them no favour, upon account of their being relapsed, or impenitent, and that therefore it delivers them over to the arm of the secular court, which they earnestly intreat so to moderate their punishment, as to prevent the effusion of blood, and danger of death. When those last words are read, one of the officers of the holy office gives each of them a blow on the breast, by which he

signifies that they are left by the inquisition; upon which one of the officers of secular justice comes to them and claims them. If any of them are in holy orders, they are degraded, and deprived of all their orders, before they are delivered to the secular arm. After this they read the sentences against the dead. At last these miserable wretches are brought to the secular judge, to hear the sentence of death; and when they come before him, they are severally asked in what religion they desire to die? Their crime is never inquired into; because it is not the office of the secular magistrate to ask, whether those, who are condemned by the inquisition, are criminal? He is to presuppose them guilty, and his duty is to inflict the punishment appointed by law upon those who commit such crimes, of which they are pronounced guilty by the inquisition. When they have answered this one single question, they are soon after tied to a stake, round about which there is placed a pile of wood. Those who answer that they will die Catholics, are first strangled; but those who say they will die Jews or heretics, are burnt alive.^[277] As these are leading out to punishment, the rest are carried back without any order, by their sureties, to the jail of the inquisition. This is the celebration of an act of faith in Portugal; or rather in that part of India which is subject to the Portugueze, as a Frenchman hath described it in his History of the Inquisition at Goa, who himself walked in procession at an act of faith, wearing the infamous Sambenito, and who accurately observed and described all the circumstances of it.

The method of celebrating an act of faith in Spain, is somewhat different. For whereas at Goa the banner, which they carry before the procession hath the picture of Dominick wrought in it, Paramus says, that in Spain the cross is the banner of the inquisition, which is carried before them; and tediously tells us of several mysteries signified by the cross, of which I will here give a short summary.

The cross is the beginning and end of all acts of the inquisition; and by it is represented, that the tribunal of the inquisition is a representation of that supreme and final tribunal, in which the sign of the cross shall appear before the Lord Christ, coming to the judgement of the world with great majesty and glory. Farther, it denotes the war which the inquisition wages against heretics, and the victory which they gain over the enemies of the orthodox faith; because the inquisitors are appointed the conquerors of heretical pravity, and captains for the defence of religion, who keep watch at the castle of the inquisition for the Christian faith, repair it when going to

ruin, restore it when tumbled down, and preserve it when restored in its ancient, flourishing and vigorous state.

The inquisition uses a green cross, that it may be more conveniently distinguished from those crosses of other colours, which are used by the Christian commonwealth; and especially that it may be shadowed out, that all things usually signified by greenness, belong to the inquisition. For instance, greenness denotes stability and eternity; it is a grateful, pleasant, and attractive colour to the eyes, and finally is a sign of victory and triumph. Hereby is shadowed forth, that the inquisitors of heretical pravity vigilantly preserve the stability of the church; and that heretics are attracted by the green cross, so that they cannot escape the judgment of this tribunal, and by beholding it are brought to the tender bosom of mother church, and drawn to repentance, and the sincerity of the faith.

The banner of the inquisition hath a green cross in a field sable, adorned on the right hand with a branch of green olive, and brandishing on the left a drawn sword, with this motto round about the scutcheon, "Exsurge, Domine, & judica causam tuam; Psal. lxxiv. 22. Arise, O Lord, and plead thy own cause." The branch of green olive denotes the same as the green cross. But the branch of olive is on the right hand of the cross, and the sword on the left, to shew that in the inquisition mercy is mixed with justice; and the meaning of this mixture they derive from the ark of the tabernacle, in which, together with the tables, there was the rod and the manna, the rod of severity, and the manna of sweetness; as though the rod of Aaron which blossomed, was the rod with which judges command criminals to be whipped. The branch of olive at the right hand, signifies that nothing ought to be so strictly regarded by the inquisitors as mercy and clemency, which the olive most wonderfully shadows forth, which hath branches always green, and which endures storms much longer than any other trees, and if buried under water, is not so soon destroyed, nor doth so easily lose its verdure. The drawn sword brandishing on the left, points out that the inquisitors, after having tried in vain all methods of mercy, do then as it were unwillingly come to the use and drawing of the sword, which was given by God for the punishment of offenders. The field of sable, in the midst of which the green cross is placed, intimates the repentance of the criminals, and the sorrow they conceive on account of their sins; which, however, the green mitigates with the hope of pardon.

The motto round the scutcheon, “Exsurge Domine,” &c. marks out that the inquisitors, in expectation of the coming of the Lord, do in the mean while punish the wicked, that they may deter others, and defend the good.

But besides these things, there are other differences between the celebration of an act of faith in India and Spain. Gonsalvius tells us,^[278] this solemn procession began in this manner at Seville. “In the first place went some school-boys, brought out of a certain college in which boys were taught, which they commonly call the house of teaching, who strike an awe upon others by their habit, singing, and order, in which they are kept by certain clergymen cloathed in surplices. They walk along singing the litanies of the saints, repeating them alternately, the chorus alternately answering,^[279] “Ora pro nobis.” After these follow the prisoners themselves, commonly called penitentials, disposed as it were into several classes in this order. Next after the children walk those who are convicted of lesser faults. The tokens of their guilt are usually unlighted candles, halters about their necks, wooden bits, and paper mitres. They walk with their heads uncovered, that the mitre may not be concealed; and after the manner of slaves, without their cloak. Those who excel others in birth, or riches, follow after those who are meaner. Next to these march those who are cloathed with the Sambenito’s, or military mantles, marked across with the red cross; the same order being observed as above, according to the distinction of the persons. Those who are defiled in holy orders, as they are superior in dignity, so also are they in their place or rank in the procession. After these comes the third and last class, viz. of those who are appointed for the fire. Every prisoner is attended by two armed familiars, for his safe custody, one on each side of him; besides which, those who are to die have two monks or theatins, as they call them, walking by them. The whole council of the city, consisting of the alguazils, jurors, the judges of twenty-four degrees, the great officers of the court, the regent and viceroy himself, or his deputy, who are followed by a great number of nobility on horseback, immediately follow the classes of the prisoners, who, according to the custom of a triumph, ought certainly to march first. After these comes the ecclesiastical order, the clergy, beneficed persons, and curates walking first. Next after them walk the whole chapter of the principal church, which they commonly call the cabild of the greater church. Then the abbots and priors of the monks orders, with their attendants. All these walk before the holy tribunal to do honour to it, because, on that day, it openly triumphs.

Between these and the next after there is a space left empty, in which the fiscal of the inquisition, who hath had no small share in gaining that victory to the holy tribunal, walks as standard-bearer in truly military pomp, displaying and opening the standard made of red damask silk. This standard is most curiously embroidered, having on one side of it the arms of that pope who granted the inquisition, with his name written at large; and on the other those of King Ferdinand, who first brought it into Spain. Every thing in it is wrought with silk, gold, and purple. Upon the very point of this banner is fastened a silver crucifix washed over with gold, of great value; to which the superstitious multitude pay a peculiar veneration, for this reason only, because it belongs to the inquisition. At length come the fathers of the faith themselves, with a slow pace, and profound gravity, truly triumphing, as becomes the principal generals of that victory. After them come all the familiars of the holy inquisition on horseback. Then an innumerable company of the common people and mob, without any order or character. In this pomp they march from the jail of the inquisition to the high and magnificent scaffold, which is built of wood, in the noblest and most capacious street of the city, for shewing the penitents to public view, and for hearing their sentences. On this scaffold they make them sit in the same order as they marched. There is also another scaffold almost as large as the former, over against it, in which is erected the tribunal of the lords inquisitors; where they sit in their inquisitorial, and almost divine majesty, attended with all that grandeur in which they came.”

The king (if present) the queen and the whole court, and also the legates, and all the nobility of Spain, generally honour this solemnity with their presence. The seat of the inquisitor general is like a tribunal, raised above the king's. When all are seated in their places, they begin with celebrating mass; but when the priest who officiates is come to about the middle of the service, he leaves the altar, and goes back to his proper place. Then the supreme inquisitor comes down from the scaffold, robed in all his ornaments; and making his reverences before the altar, ascends by several steps to the king, attended by some of the officers of the inquisition, who carry the crucifix and gospels, and the book in which is contained the oath, by which the king obliges himself to protect the Catholic faith, to the extirpation of heresies, and the defence of the inquisition. The king standing bare-headed, having on one side of him the constable of Castile, or one of the grandees of Spain, who holds up the sword of state, swears that he will

keep the oath, which is publicly read over to him, by one of the members of the royal council; and remains in the same posture, till the supreme inquisitor goes back to his place. After this one of the secretaries of the inquisition goes into a desk, reads over the like oath, and takes it from the council, and the whole assembly. Then all the several sentences are read over, and the solemnity sometimes lasts till nine o'clock in the evening.

Criminals penitent and reconciled, and brought out in public procession, are carried back to their former jails in the holy office the same day in which the sentences are pronounced against them, and the day following are brought to an audience of the inquisitors, and are admonished of those things which are enjoined them by their sentences, and how grievously they will be punished, unless they humbly do the penances assigned them. After this, they send every one to the place to which his sentence ordered him. Those who are condemned to the gallies, are sent to the jails of the secular judges. Some are whipped through the principal streets of the city, and sometimes receive two hundred lashes. Others wear the infamous Sambenito; some every day, others must appear in them only sundays and holy days. But in these things every one observes the custom of his own inquisition. In the inquisition at Goa this is the method. Before the prisoners are dismissed, they are carried from jail to some other house, where they are every day instructed in the doctrines and rites of the Church of Rome; and when they are dismissed, every one hath a writing given him, containing the penances enjoined them; to which is added a command, that every one shall exactly keep secret every thing he hath seen, said or heard, and all the transactions relating to him, whether at the table, or in other places of the holy office. And to this secrecy every prisoner binds himself by a solemn oath.

The day after this solemnity also, the effigies of those condemned to death, painted to the life, are carried to the dominican's church, and there hung up to be viewed by all. The custom in this matter is described by Ludovicus a Paramo.^[280] "There is another monument of infamy, which, though vulgarly called by the Spaniards Sambenito, yet is not a garment, but a cloth affixed to the walls of the churches for perpetual infamy in the parishes where they lived. On this cloth is written the name and surname of the criminal, and the business he carried on is also expressed. If he discovers any farther, they add another little piece to the cloth to prevent

doubt, describing his country, and oftentimes also the parents and grandfathers of the condemned person.

“In some of these cloths may be read who were the parents of the criminals, of what race they were; whether they were married, or if married women, whose wives they were; whether lately recovered to the Christian religion, from the Jewish law and Mahometan sect. Finally, the cause of their penance is declared according to the nature of their crime, viz. that he was an arch-heretic, a dogmatist, a declared heretic, an heretical apostate, a feigned penitent, negative and obstinate, an impenitent and relapsed heretic, a Lutheran, Anabaptist, Calvinist, Martianist heretic, even though they died before condemnation. Besides this inscription, there is also painted the mark which is usually put on living penitents, as is above explained. In the ancient cloths, which have not yet been repaired, one may see an upright cross. Besides these already mentioned, other things may be seen in them; for in some the person and crime is omitted, and this one word only written without the picture, ‘Combustus,’ burnt. On the clothes of such as are reconciled, this word only, without any cross or mark, ‘Reconciliatus,’ reconciled. Sometimes the date of the year is wanting. Sometimes the flames are painted without any inscription, so that the criminal cannot possibly be known. However, these monuments of infamy and disgrace are not to be fixed up to render those infamous, who are reconciled during the time of indulgence and grace. For as it was agreed with them, that they should not wear such infamous habits, nor be cloathed with them during the time of their reconciliation, it would be contrary to reason and justice to hang them up, because it would be wholly to destroy the favour granted them. This constitution is observed in all the kingdoms and dominions of the King of Spain, except in Sicily; where, in the year 1543, when the licentiate Cervera was inquisitor there, there was a very great commotion at Palermo, when the people rose against the holy inquisition, and tore off the infamous cloths from the walls of the church dedicated to St. Dominic, with so great a fury and rage, that they could never, to this day, fix them up again upon the walls either of that, or any other church.”

Thus far we have described the method of proceeding observed in the inquisition; and if we attentively consider it, and compare it with the usual method of proceeding in all other courts, we shall find it to be a series and connection of injustice and cruelties, and subversive of all laws, both divine and human.

The Papists usually recommend to their own people this tribunal as an holy one, and call the inquisition the holy office. But if we consider it thoroughly, we shall find it is all disguise, by which they endeavour to palliate and cover over the villany and injustice of this court. I will not now undertake to shew that the causes which are managed before this tribunal are not subject to human judgment, but belong to the tribunal of God, and his son Christ: for God only, the supreme Lord of all, who can save, and can destroy, can prescribe the laws of salvation and damnation: He only, as omniscient and searcher of hearts, can pronounce an infallible judgment of every one's faith, which lies concealed in his mind, and which he may dissemble by words or actions, and hath admitted no man as partner with himself in this power. From hence it evidently follows, that it is a sacrilegious violation of the divine majesty and laws, in that the pope of Rome arrogates to himself the judgment of the faith, prescribes laws of believing to the faithful, erects the tribunal of an inquisition, sends every where inquisitors as judges delegated by him, who, in his name, and by a power granted by him, are to inquire into the faith of all, and punish those who are not in all things obedient to the pope. Nor will I here examine that villainous doctrine, by which they teach that heretics are to be deprived of all power, so that faith is not to be kept with them; subjects are not bound by their oath of allegiance and fidelity: that the husband or wife, for the heresy of either, is freed from the laws of matrimony, and even children from obedience to their parents: for it is fully evident, that this doctrine subverts all laws, divine and human.

I will only, in a few words, represent the principal iniquities and instances of injustice of this tribunal; in which, as to the reason and method of proceeding in favour of the faith, it differs from the laws and customs of all other courts; whereby things evidently unjust in other tribunals, are in this accounted just. I shall not indeed mention all, but the chief only, and most remarkable instances, as specimens of the rest.

I. The first is, that the inquisitors, by publishing an edict of the faith, oblige all, under the penalty of excommunication, to inform before them of every one of whom they suspect of heresy, for the slightest cause; so that not only a relation is bound to accuse his relation, a brother his brother, and by this information to bring him into danger of being burnt, the most horrible of all punishments; but even a wife her husband: yea, what destroys

all the laws of nature, a son, according to the opinion of many doctors, is bound to inform against his father, if a secret heretic.

II. A second instance of injustice, is their condemning a person defamed only for heresy, to make canonical purgation, i. e. to purge himself with seven, more or less, compurgators; so that if he fails in one, two or three, he is accounted guilty, for thus the life and torture of any one depends on the will and pleasure of another.

III. A third is, that in this office every one, though excluded by other courts, is admitted for a witness, a mortal enemy only excepted.

IV. To this may be added a fourth, that the names of the witnesses are not shewn to the prisoner, nor is any circumstance discovered to him by which he can come to the knowledge of the witnesses.

V. A fifth instance of injustice is, that if two unexceptionable witnesses, who yet must ever be liable to exception, because unknown to the criminal, testify of different facts, yea, sometimes if there be one only, yea, if but a mere report, they think it enough to order to the torture.

VI. A sixth instance is, that they would have persons informed against become their own accusers: for as soon as ever any one is thrown into jail, he is bound by an oath to declare the truth.

VII. A seventh instance is, that the inquisitors use various arts to draw out a confession from the prisoners, by making them deceitful promises, which, when they have got the confession, they do not believe themselves obliged to fulfil; that so the prisoner being destitute of all human assistance and comfort, and seeing no end to his miseries, may, through the art and fraud of the inquisitor, have no possible way left to defend himself, and yet in the mean while these wretches affect the appearance of justice, and grant the criminals an advocate and proctor to manage their cause. But in this the prisoner is miserably deceived.

VIII. And this is an eighth specimen of their injustice, because the advocate granted to him is given him only to betray him. For he may not choose such an advocate as he himself approves of, nor is it lawful for the advocate to defend the prisoner, unless he would be accounted as a favourer of heresy; but the inquisition itself assigns him his advocate, bound to them by an oath, whose principal business is to persuade the criminal to confess the crime he is accused of, not to use any methods of defence not practised in the court of the inquisition, and immediately to quit his defence, if he cannot defend him according to the laws of the inquisition.

IX. A ninth is, that when the crimes cannot be proved against the prisoner, he is not absolved from the crime of which he is accused, but only from prosecution; and all the declaration that is made, is that the crime against him is not proved by proper witnesses; and this sentence is never taken for an adjudged case. So that he who is once informed against to the inquisition, although he be innocent, and his crime cannot be proved according to the received manner of the inquisition, though indeed, according to that manner, all crimes of which there is but the least suspicion may be easily proved; yet he is never blotted out of the inquisitors book or index, but his name is there preserved in perpetual remembrance of his being a suspected person, that if he should happen to be informed against for heresy at any other time, these latter informations added to the former may amount to a real proof; and that although he is dismissed from jail by the sentence of the judge, he may never be able to live in safety, but that being always suspected by the inquisitor, he may be arrested for the same crime which ought to have been forgotten, upon the fresh information of some vile and wicked fellow.

X. A tenth, and that not the least instance of injustice, is their readiness to put persons to the torture, and that to discover a secret crime, lying concealed in the mind; yea, that they will use the torture so much the sooner, because the crime is more concealed than other crimes.

XI. The eleventh is, their putting persons to the torture upon half full proof of the crime. This half full proof is faltering, defamation, and one witness of his own knowledge, or when the tokens are vehement and violent. All these things are subject to the pleasure of the judge. So that if any one falls into the hands of a cruel inquisitor, and falters in his answer, or is informed against by one witness, who declares he was present at the action or words he gives information of, he cannot possibly escape the torture, nor consequently the punishment of the crime he is accused of, considering the violence of the torments. Nor is this all; but as there may be some facts occasioned not so much by heresy concealed in the mind, as by carnal concupiscence or rashness, they will have such to be tortured for their intention, and force them by torments to confess they had an heretical intention in their mind.

XII. A twelfth is, that when they prepare themselves for the torture, they gravely and seriously admonish the criminal to speak nothing but the truth, and to confess nothing that is not agreeable to truth to avoid the tortures. By

this means they put on the appearance of sincerity, as though they sought nothing but the naked truth, that when the torture is finished they may be very secure that the tortured person hath confessed a real crime, because they have seriously and gravely admonished him to say nothing contrary to truth. In the mean while they suppose, that the crime objected against him is real, and endeavour to force from him a confession by torture, and threaten to double his torments unless he confesses; so that if he denies the crime, his torments are aggravated; if he confesses it, his torments are soon ended. Hence it appears, that their design is not honestly to find out the truth by torture, but that they suppose the crime is real, although according to the laws of the inquisition it be only half proved, and then extort a confession of it.

XIII. A thirteenth is, that whereas in other courts the number is certainly fixed how often the torture may be repeated, they have invented a method of torturing persons very often, without offending against the law, which provides that the tortures shall not be repeated above twice or thrice. If, for instance, they make use of the lesser tortures, and the prisoner confesses nothing, they afterwards make use of more grievous ones, then proceed to such as are more cruel, till at different intervals of time they have gone through all the several kinds of tortures. And this they do not call a repetition, but only a continuation of the torture; so that if any one hath been several times tortured, but with a different kind of torture each time, and hath thus at certain distances gone through all the kinds of torture, according to the opinion of these merciful casuists, he ought to be accounted as tortured only once.

XIV. A fourteenth is, that when they deliver condemned persons to the secular arm, they intercede for them, that their punishment may be so moderated as to prevent shedding of blood, or danger of death. And in the mean while, if the magistrate is not ready to burn the heretics, or delays the punishment, they oblige him, under penalty of excommunication, to execute the sentence. The superstitious wretches are afraid they should become irregular, by delivering a criminal to the secular magistrate without intercession, and yet are not afraid of becoming irregular, by compelling the magistrate under penalty of excommunication to murder those whom they have condemned. Can any thing be more evident, than that this is nothing more than acting a part, and an affectation to be thought by the people to have no hand in the murder of which they are really the authors?

XV. The last instance I shall mention, appears in their ridiculous process against the dead, whose relations and heirs they cite, to appear on such a day to defend, if they can and will, the memory of the dead. Whereas they themselves have made it a law, that if any one appears in defence of an heretic, he shall be accounted as a favourer of heretics himself, and condemned as such, and have no advocate or procurator to defend himself. So that they cite all persons to defend the memory of the dead, and yet deter all persons from such defence by a most grievous punishment, appointed against the favourers of heretics. So that all this is like their intercession for criminals, mere imposture and sham. Then they provide an advocate to manage the cause, bound to them under an oath, and he publicly declares he cannot defend the memory of the deceased. So that as no one undertakes his defence, the accusations against him are reckoned just, the proofs legal, and the deceased is condemned for heresy. But what greater instance of injustice can there be, than to condemn a person as convicted, whose defence no one dares undertake, without running the hazard of his fortune and life.

If any one considers these things, which I have mentioned as specimens only, he will find no sanctity in the court of the inquisition; but must acknowledge, that in the whole method of proceeding there is nothing but injustice, fraud, impostures, and the most accursed hypocrisy; by which the inquisitors, under the feigned pretence of sanctity, endeavour to disguise the villany of their proceedings, that so they may maintain their dominion over the miserable common people, and keep them all in subjection to themselves. And though they do every thing that is wicked and vile, yet they would have all adore them for the venerable character of sanctity.

It is needless to mention here more instances of their cruelty: I shall say all in a few words. The miseries of the jail, in which the prisoners are generally confined by themselves for several years, shut up in darkness, without being allowed any human converse, are so great, the cruelty of their torments so severe, and their punishments so exquisite, that they greatly exceed the cruelty of all other courts: for persons are not only burnt alive, but their mouths gagged, so that they have not the liberty to groan or cry out in those most horrible tortures; and by thus stopping up their mouths, they are in such an agony, as that they are almost strangled. But their cruelty towards the penitent and converted is most detestable: for whereas the church ought, with open arms, to embrace penitents, in imitation of the

shepherd who carried the lost sheep on his shoulders, and brought it home to the sheepfold, these wretches enjoin the most grievous punishments on those whose lives they spare, which with them are only wholesome penances. For they condemn them either to wear the infamous Sambenito, or to imprisonment, or the gallies, whereby their very life is oftentimes a punishment to them; whilst others are denied the very hopes of life, especially the relapsed, who are condemned to death without mercy, though they convert themselves. And yet the sacraments are given to those who are reconciled to the church when they desire it; and thus before they are put to death they become members of the church, put in a state of salvation, and by the priests themselves most certainly assured of an heavenly crown. Can there be any greater cruelty, and more abhorrent from the spirit of Christianity, than to punish with death an erroneous person who repents, detests his error, and is now reconciled to the church? But the ecclesiastical sanctions must be satisfied, and the authority of the church preserved entire, though the laws of Jesus Christ, and the commands of the gospel are trampled under foot.

All these iniquities are committed according to the very laws of the inquisition. Many things are indeed, in the execution of this office, left to the pleasure of the inquisitors, which power they often villainously abuse, as appears from their daily practice, and innumerable instances; for it was the common complaint of all nations against the inquisition, what Thuanus tells us^[281] was the complaint of the Neapolitans: “That the perverse and preposterous form of trials increased the horror, because it was contrary to natural equity, and to every legal method in carrying on that jurisdiction. Add to this the inhumanity of their tortures, by which they violently extorted from the miserable and innocent criminals, that they might deliver themselves from their torment, whatsoever the delegated judges would have them confess, though generally contrary to truth. And for this reason it was justly said, that it was invented not for the sake of defending religion, which the primitive church had provided for by a quite different method, but that by this means they might strip all men of their fortunes, and bring innocent persons into danger of being destroyed.”

The papists indeed glory, that the inquisition is the most certain remedy to extirpate heresies. And because the inquisition is so effectual a method to extirpate heresies, Ludovicus a Paramo^[282] gathers from thence that it was ordained for this purpose by the most wise providence of God. But what is

really unjust in itself, and carried on by unjust methods, cannot have God for its author; nor is success any argument that the inquisition is from God. The first inquiry is, whether it be suitable to the nature of the Christian doctrine? If it be not, it is then unjust and anti-christian. Many things are unrighteously undertaken, by men, and accomplished by violence and cruelty, by which innocence is oppressed; which, although God in his just and wise counsel permits, he is far from approving. Even in Japan, a cruel persecution hath extinguished the Christian religion, as preached by the Roman priests; so that the Roman Catholic religion is equally extinguished there by the violence of persecutions, as those doctrines are in Spain, which are contrary to the church of Rome, and which they render odious by the infamous name of heresy. And yet they will not allow that any just argument can be drawn from hence, to prove that that persecution was given by divine Providence, as a most effectual remedy for the extirpation of their religion. If other parties of Christians would use the same diligence and cruelty of inquisition against them, I may venture to affirm, that they themselves could not withstand it: but that within a few years the popish religion would be extinguished in all Protestant countries, and scarce a single person left who would dare to profess it. But God forbid that the Christian religion should ever be propagated this way, which doth not consist in a feigned and hypocritical profession, but in a sincere and undissembled faith. And therefore, as no one ought to assume to himself the power of judging concerning it, but God the searcher of hearts, to him only let us leave it to pass the true judgment concerning every man's belief. Let us in the mean while detest the tyranny of the papists; and strive to reduce those who, in our judgment, hold errors, into the way of truth, by the good offices of charity and benevolence, without arrogating to ourselves a judgment over the consciences of others. And out of a serious regard to the last great day of judgment, let us approve our consciences to God: and every one of us, expecting from his mercy an equitable and righteous judgment, pray without ceasing: "ARISE, O LORD, AND PLEAD THY OWN CAUSE."



OF THE PRESENT STATE OF THE INQUISITION AT GOA,

Taken from the Rev. Dr. BUCHANAN's "Christian Researches in Asia."



THE ROMISH CHRISTIANS IN INDIA.

In every age of the Church of Rome there have been individuals, of an enlightened piety, who derived their religion not from "the commandments of men," but from the doctrines of the Bible. There are at this day, in India and in England, members of that communion, who deserve the affection and respect of all good men; and whose cultivated minds will arraign the corruptions of their own religion, which the author is about to describe, more severely than he will permit himself to do. He is indeed prepared to speak of Roman Catholics with as much liberality as perhaps any Protestant has ever attempted on Christian principles: for he is acquainted with individuals, whose unaffected piety he considers a reproach to a great body of Protestants, even of the strictest sort. It is indeed painful to say any thing which may seem to feeling and noble minds ungenerous; but those enlightened persons, whose good opinion it is desirable to preserve, will themselves be pleased to see that truth is not sacrificed to personal respect, or to a spurious candour. Their own church sets an example of "plainness of speech" in the assertion of those tenets which it professes, some of which must be extremely painful to the feeling of Protestants, in their social intercourse with Catholics; such as, "That there is no salvation out of the pale of the Romish church."

This exclusive character prevents concord and intimacy between Protestant and Catholic families. On the principles of infidelity they can associate very easily; but on the principles of religion, the Protestant must ever be on the *defensive*; for the Romish church excommunicates him: and although he must hope that some individuals do not maintain the tenet, yet

his uncertainty as to the fact prevents that cordiality which he desires. Many excellent Catholics suffer unjustly in their intercourse with Protestants, from the ancient and exclusive articles of their own church, which they themselves neither profess nor believe. If they will only intimate to their Protestant friends, that they renounce the exclusive principle, and that they profess the religion of the Bible, no more seems requisite to form with such persons the sincerest friendship on Christian principles.

At the present time we see the Romish religion in Europe *without* dominion; and hence it is viewed by the mere philosopher with indifference or contempt. He is pleased to see, that the “seven heads and the ten horns” are taken away; and thinks nothing of the “names of blasphemy.” But in the following pages, the author will have occasion to shew what Rome is, as *having* dominion; and possessing it too within the boundaries of the British Empire.

In passing through the Romish provinces in the East, though the author had before heard much of the Papal corruptions, he certainly did not expect to see Christianity in the degraded state in which he found it. Of the priests it may truly be said, that they are, in general, better acquainted with the Veda of Brahma than with the Gospel of Christ. In some places the doctrines of both are blended. At Aughoor, situated between Tritchinopoly and Madura, he witnessed (in October 1806) the Tower of Juggernaut employed to solemnize a Christian festival. The old priest Josephus accompanied him, when he surveyed the idolatrous car and its painted figures, and gave him a particular account of the various ceremonies which are performed, seemingly unconscious himself of any impropriety in them. The author went with him afterwards into the church, and seeing a book lying on the altar, opened it; but the reader may judge of his surprize, when he found it was a Syriac volume, and was informed that the priest himself was a descendant of the Syrian Christians, and belonged to what is now called the Syro-Roman Church, the whole service of which is in Syriac.—Thus, by the intervention of the papal power, are the ceremonies of Moloch consecrated in a manner by the sacred Syriac language. What a heavy responsibility lies on Rome, for having thus corrupted and degraded that pure and ancient church!

While the author viewed these Christian corruptions in different places, and in different forms, he was always referred to the Inquisition at Goa, as

the fountain-head. He had long cherished the hope, that he should be able to visit Goa before he left India. His chief objects were the following:

1. To ascertain whether the inquisition actually refused to recognise the Bible, among the Romish churches in British India.
2. To inquire into the state and jurisdiction of the inquisition, particularly as it affected British subjects.
3. To learn what was the system of education for the priesthood; and
4. To examine the ancient church-libraries in Goa, which were said to contain all the books of the first printing.

He will select from his journal in this place, chiefly what relates to the inquisition. He had learnt from every quarter, that this tribunal, formerly so well known for its frequent burnings, was still in operation, though under some restriction as to the *publicity* of its proceedings; and that its power extended to the extreme boundary of Hindoostan. That, in the present civilized state of Christian nations in Europe, an inquisition should exist at all under their authority, appeared strange; but that a papal tribunal of this character should exist under the implied toleration and countenance of the British Government; that Christians, being subjects of the British Empire, and inhabiting the British territories, should be amenable to its power and jurisdiction, was a statement which seemed to be scarcely credible; but, if true, a fact which demanded the most public and solemn representation.

*Goa, Convent of the Augustinians,
Jan. 23, 1808.*

‘On my arrival at Goa, I was received into the house of Captain Schuyler, the British resident. The British force here is commanded by Colonel Adams, of His Majesty’s 78th regiment, with whom I was formerly well acquainted in Bengal.^[283] Next day I was introduced by these gentlemen to the vice-roy of Goa, the Count de Cabral. I intimated to his excellency my wish to sail up the river to Old Goa,^[284] (where the inquisition is,) to which he politely acceded. Major Pareira, of the Portuguese establishment, who was present, and to whom I had letters of introduction from Bengal, offered to accompany me to the city, and to introduce me to the archbishop of Goa, the primate of the Orient.

‘I had communicated to Colonel Adams, and to the British resident, my purpose of enquiring into the state of the inquisition. These gentlemen informed me, that I should not be able to accomplish my design without

difficulty; since every thing relating to the inquisition was conducted in a very secret manner, the most respectable of the lay Portuguese themselves being ignorant of its proceedings; and that, if the priests were to discover my object, their excessive jealousy and alarm would prevent their communicating with me, or satisfying my inquiries on any subject.

‘On receiving this intelligence, I perceived that it would be necessary to proceed with caution. I was, in fact, about to visit a republic of priests; whose dominion had existed for nearly three centuries; whose province it was to prosecute heretics, and particularly the teachers of heresy; and from whose authority and sentence there was no appeal in India.^[285]

‘It happened that Lieutenant Kempthorne, commander of His Majesty’s brig Diana, a distant connection of my own, was at this time in the harbour. On his learning that I meant to visit Old Goa, he offered to accompany me; as did Captain Stirling, of His Majesty’s 84th regiment, which is now stationed at the forts.

‘We proceeded up the river in the British resident’s barge, accompanied by Major Pareira, who was well qualified, by a thirty years’ residence, to give information concerning local circumstances. From him I learned that there were upwards of two hundred churches and chapels in the province of Goa, and upwards of two thousand priests.’

‘On our arrival at the city,^[286] it was past twelve o’clock: all the churches were shut, and we were told that they would not be opened again till two o’clock. I mentioned to Major Pareira, that I intended to stay at Old Goa some days; and that I should be obliged to him to find me a place to sleep in. He seemed surprised at this intimation, and observed that it would be difficult for me to obtain reception in any of the churches or convents, and that there were no private houses into which I could be admitted. I said I could sleep any where; I had two servants with me, and a travelling bed. When he perceived that I was serious in my purpose, he gave directions to a civil officer, in that place, to clear out a room in a building which had been long uninhabited, and which was then used as a warehouse for goods. Matters at this time presented a very gloomy appearance; and I had thoughts of returning with my companions from this inhospitable place. In the mean time we sat down in the room I have just mentioned, to take some refreshment, while Major Pareira went to call on some of his friends. During this interval I communicated to Lieutenant Kempthorne the object of my visit. I had in my pocket ‘Dellon’s Account of the Inquisition at

Goa;’^[287] and I mentioned some particulars. While we were conversing on the subject, the great bell began to toll; the same which Dellon observes always tolls, before day-light, on the morning of the Auto da Fè. I did not myself ask any questions of the people concerning the inquisition; but Mr. Kempthorne made inquiries for me: and he soon found out that the Santa Casa, or Holy Office, was close to the house where we were then sitting. The gentlemen went to the window to view the horrid mansion; and I could see the indignation of free and enlightened men arise in the countenance of the two British officers, while they contemplated a place where formerly their own countrymen were condemned to the flames, and into which they themselves might now suddenly be thrown, without the possibility of rescue.

‘At two o’clock we went out to view the churches, which were now open for the afternoon service; for there are regular daily masses; and the bells began to assail the ear in every quarter.

‘The magnificence of the churches of Goa, far exceeded any idea I had formed from the previous description. Goa is properly a city of churches; and the wealth of provinces seems to have been expended in their erection. The ancient specimens of architecture at this place far excel any thing that has been attempted in modern times in any other part of the East, both in grandeur and in taste. The chapel of the palace is built after the plan of St. Peter’s at Rome, and is said to be an accurate model of that paragon of architecture. The church of St. Dominic, the founder of the inquisition, is decorated with paintings of Italian masters. St. Francis Xavier lies enshrined in a monument of exquisite art, and his coffin is enchased with silver and precious stones. The cathedral of Goa is worthy of one of the principal cities of Europe; and the church and convent of the Augustinians (in which I now reside) is a noble pile of building, situated on an eminence, and has a magnificent appearance from afar.

‘But what a contrast to all this grandeur of the churches is the worship offered in them! I have been present at the service in one or other of the chapels every day since I arrived; and I seldom see a single worshipper, but the ecclesiastics. Two rows of native priests, kneeling in order before the altar, clothed in coarse black garments, of sickly appearance, and vacant countenance, perform here, from day to day, their laborious masses, seemingly unconscious of any other duty or obligation of life.

‘The day was now far spent, and my companions were about to leave me. While I was considering whether I should return with them, Major Pareira said he would first introduce me to a priest, high in office, and one of the most learned men in the place. We accordingly walked to the convent of the Augustinians, where I was presented to Joseph a Doloribus, a man well advanced in life, of pale visage and penetrating eye, rather of a reverend appearance, and possessing great fluency of speech and urbanity of manners. At first sight he presented the aspect of one of those acute and prudent men of the world, the learned and respectable Italian Jesuits, some of whom are yet found, since the demolition of their order, reposing, in tranquil obscurity, in different parts of the East. After half an hour’s conversation in the Latin language, during which he adverted rapidly to a variety of subjects, and enquired concerning some learned men of his own church, whom I had visited in my tour, he politely invited me to take up my residence with him, during my stay at Old Goa. I was highly gratified by this unexpected invitation; but Lieutenant Kempthorne did not approve of leaving me in the hands of the *Inquisitor*. For judge of our surprise, when we discovered that my learned host was one of the inquisitors of the holy office, the second member of that august tribunal in rank, but the first and most active agent in the business of the department. Apartments were assigned to me in the college adjoining the convent, next to the rooms of the inquisitor himself; and here I have been now four days at the very fountain head of information, in regard to those subjects which I wished to investigate. I breakfast and dine with the inquisitor almost every day, and he generally passes his evenings in my apartment. As he considers my enquiries to be chiefly of a literary nature, he is perfectly candid and communicative on all subjects.

‘Next day after my arrival, I was introduced by my learned conductor to the Archbishop of Goa. We found him reading the Latin letters of St. Francis Xavier. On my adverting to the long duration of the city of Goa, while other cities of Europeans in India had suffered from war or revolution, the archbishop observed, that the preservation of Goa, was owing to the prayers of St. Francis Xavier. The inquisitor looked at me to see what I thought of this sentiment. I acknowledged that Xavier was considered by the learned among the English to have been a great man: what he wrote himself, bespeaks him a man of learning, of original genius, and great fortitude of mind; but what others have written for him, and of

him, tarnished his fame, by making him the inventor of fables. The archbishop signified his assent. He afterwards conducted me into his private chapel, which is decorated with images of silver, and then into the Archiepiscopal library, which possesses a valuable collection of books. As I passed through our convent, in returning from the archbishop's, I observed among the paintings in the cloisters a portrait of the famous Alexis de Menezes, archbishop of Goa, who held the synod of Diamper near Cochin, in 1599, and burned the books of the Syrian Christians. From the inscription underneath I learned that he was the founder of the magnificent church and convent in which I am now residing.

‘On the same day I received an invitation to dine with the chief inquisitor, at his house in the country. The second inquisitor accompanied me, and we found a respectable company of priests, and a sumptuous entertainment. In the library of the chief inquisitor I saw a register, containing the present establishment of the inquisition at Goa, and the names of all the officers. On my asking the chief inquisitor whether the establishment was as extensive as formerly, he said it was nearly the same. I had hitherto said little to any person concerning the inquisition, but I had indirectly gleaned much information concerning it, not only from the inquisitors themselves, but from certain priests, whom I visited at their respective convents; particularly from a father in the Franciscan convent, who had himself repeatedly witnessed an Auto da Fè.

‘Goa, Augustinian Convent, 26th Jan. 1808.

‘On Sunday, after divine service, which I attended, we looked over together the prayers and portions of Scripture for the day, which led to a discussion concerning some of the doctrines of Christianity. We then read the third chapter of St. John's Gospel, in the Latin Vulgate. I asked the inquisitor whether he believed in the influence of the Spirit there spoken of. He distinctly admitted it; conjointly however he thought, in some obscure sense, with *water*. I observed that water was merely an emblem of the purifying effects of the Spirit, and could be *but* an emblem. We next adverted to the expression of St. John in his first Epistle; ‘This is he that came by water and blood: even Jesus Christ; not by water only, but by *water* and *blood*:—blood to atone for sin, and water to purify the heart; justification and sanctification: both of which were expressed at the same

moment on the cross. The inquisitor was pleased with the subject. By an easy transition we passed to the importance of the Bible itself, to illuminate the priests and people. I noticed to him that after looking through the colleges and schools, there appeared to me to be a *total eclipse* of Scriptural light. He acknowledged that religion and learning were truly in a degraded state.—I had visited the theological schools, and at every place I expressed my surprise to the tutors, in presence of the pupils, at the absence of the Bible, and almost total want of reference to it. They pleaded the custom of the place, and the scarcity of copies of the book itself. Some of the younger priests came to me afterwards, desiring to know by what means they might procure copies. This inquiry for Bibles was like a ray of hope beaming on the walls of the inquisition.

‘I pass an hour sometimes in the spacious library of the Augustinian convent. There are many rare volumes, but they are chiefly theological, and almost all of the sixteenth century. There are few classics; and I have not yet seen one copy of the original scriptures in Hebrew or Greek.’

‘Goa, Augustinian Convent, 27th Jan. 1808.

‘On the second morning after my arrival, I was surprised by my host, the Inquisitor, coming into my apartment clothed in *black robes* from head to foot: for the usual dress of his order is white. He said he was going to sit on the tribunal of the holy office. ‘I presume, father, your august office does not occupy much of your time?’ ‘Yes’ answered he ‘much. I sit on the tribunal three or four days every week.’

‘I had thought, for some days, of putting Dellon’s book into the Inquisitor’s hands; for if I could get him to advert to the facts stated in that book, I should be able to learn, by comparison, the exact state of the inquisition at the present time. In the evening he came in, as usual, to pass an hour in my apartment. After some conversation I took the pen in my hand to write a few notes in my journal; and, as if to amuse him, while I was writing, I took up Dellon’s book, which was lying with some others on the table, and handing it across to him, asked him whether he had ever seen it. It was in the French language, which he understood well. ‘Relation de l’ Inquisition de Goa,’ pronounced he, with a slow, articulate voice. He had never seen it before, and began to read with eagerness. He had not proceeded far, before he betrayed evident symptoms of uneasiness. He

turned hastily to the middle of the book, and then to the end, and then ran over the table of contents at the beginning, as if to ascertain the full extent of the evil. He then composed himself to read, while I continued to write. He turned over the pages with rapidity, and when he came to a certain place, he exclaimed in the broad Italian accent, 'Mendacium, Mendacium.' I requested he would mark those passages which were untrue, and we should discuss them afterwards, for that I had other books on the subject. 'Other books,' said he, and he looked with an inquiring eye on those on the table. He continued reading till it was time to retire to rest and then begged to take the book with him.

'It was on this night that a circumstance happened which caused my first alarm at Goa. My servants slept every night at my chamber door, in the long gallery which is common to all the apartments, and not far distant from the servants of the convent. About midnight I was waked by loud shrieks, and expressions of terror, from some person in the gallery. In the first moment of surprise I concluded it must be the *Alguazils* of the holy office, seizing my servants to carry them to the inquisition. But, on going out, I saw my own servants standing at the door, and the person who had caused the alarm (a boy of about fourteen) at a little distance, surrounded by some of the priests, who had come out of their cells on hearing the noise. The boy said he had seen a *spectre*, and it was a considerable time before the agitations of his body and voice subsided.—Next morning at breakfast the Inquisitor apologised for the disturbance, and said the boy's alarm proceeded from a 'phantasma animi,' a phantasm of the imagination.'

'After breakfast we resumed the subject of the inquisition. The inquisitor admitted that Dellon's descriptions of the dungeons, of the torture, of the mode of trial, and of the Auto da Fè, were in general just; but he said the writer judged untruly of the motives of the inquisitors, and very uncharitably of the character of the Holy Church; and I admitted that, under the pressure of his peculiar suffering, this might possibly be the case. The inquisitor was now anxious to know to what extent Dellon's book had been circulated in Europe. I told him that Picart had published to the world extracts from it, in his celebrated work called 'Religious Ceremonies,' together with plates of the system of torture and burnings at the Auto da Fè. I added that it was now generally believed in Europe that these enormities no longer existed, and that the inquisition itself had been totally suppressed; but that I was concerned to find that this was not the case. He now began a

grave narration to shew that the inquisition had undergone a change in some respects, and that its terrors were mitigated.^[288]

‘I had already discovered, from written or printed documents, that the Inquisition of Goa was suppressed by royal edict in the year 1775, and established again in 1779. The Franciscan father before mentioned witnessed the annual Auto da Fè, from 1770, to 1775. “It was the humanity, and tender mercy of a good king,” said the old father, “which abolished the inquisition.” But immediately on his death, the power of the priests acquired the ascendant, under the Queen Dowager, and the tribunal was re-established, after a bloodless interval of five years. It has continued in operation ever since. It was restored in 1779, subject to certain restrictions, the chief of which are the two following, ‘That a greater number of witnesses should be required to convict a criminal than were before necessary;’ and, ‘That the Auto da Fè should not be held publicly as before; but that the sentences of the tribunal should be executed privately, within the walls of the inquisition.’

‘In this particular, the constitution of the new inquisition is more reprehensible than that of the old one; for, as the old father expressed it, ‘Nunc sigillum non revelat Inquisitio.’—Formerly the friends of those unfortunate persons who were thrown into its prison, had the melancholy satisfaction of seeing them once a year walking in the procession of the Auto da Fè; or if they were condemned to die, they witnessed their death, and mourned for the dead. But now they have no means of learning for years whether they be dead or alive. The policy of this new mode of concealment appears to be this, to preserve the power of the inquisition, and at the same time to lessen the public odium of its proceedings, in the presence of British dominion and civilization. I asked the father his opinion concerning the nature and frequency of the punishments within the walls. He said he possessed no certain means of giving a satisfactory answer: that every thing transacted there was declared to be ‘sacrum et secretum.’ But this he knew to be true, that there were constantly captives in the dungeons; that some of them are liberated after long confinement, but that they never speak afterwards of what passed within the place. He added that, of all the persons he had known, who had been liberated, he never knew one who did not carry about with him what might be called, ‘the mark of the inquisition;’ that is to say, who did not shew in the solemnity of his

countenance, or in his peculiar demeanor, or his terror of the priests, that he had been in that dreadful place.

‘The chief argument of the Inquisitor to prove the melioration of the Inquisition was the superior *humanity* of the inquisitors. I remarked that I did not doubt the humanity of the existing officers; but what availed humanity in an inquisitor? he must pronounce sentence according to the laws of the tribunal, which are notorious enough; and a *relapsed heretic* must be burned in the flames, or confined for life in a dungeon, whether the inquisitor be humane or not. ‘But, if,’ said I, ‘you would satisfy my mind completely on this subject, shew me the inquisition.’ He said it was not permitted to any person to see the inquisition. I observed that mine might be considered as a peculiar case; that the character of the inquisition, and the expediency of its longer continuance had been called in question; that I had myself written on the civilization of India, and might possibly publish something more upon that subject, and that it could not be expected that I should pass over the inquisition without notice, knowing what I did of its proceedings; at the same time I should not wish to state a single fact without his authority, or at least his admission of its truth. I added that he himself had been pleased to communicate with me very fully on the subject, and that in all our discussions we had both been actuated, I hoped, by a good purpose. The countenance of the inquisitor evidently altered on receiving this intimation, nor did it ever after wholly regain its wonted frankness and placidity. After some hesitation, however, he said he would take me with him to the inquisition the next day.—I was a good deal surprised at this acquiescence of the inquisitor, but I did not know what was in his mind.

‘Next morning after breakfast my host went to dress for the holy office, and soon returned in his inquisitorial robes. He said he would go half an hour before the usual time for the purpose of shewing me the inquisition. The buildings are about a quarter of a mile distant from the convent, and we proceeded thither in our *manjeels*.^[289] On our arrival at the place, the inquisitor said to me, as we were ascending the steps of the outer stair, that he hoped I should be satisfied with a transient view of the inquisition, and that I would retire whenever he should desire it. I took this as a good omen, and followed my conductor with tolerable confidence.

‘He led me first to the great hall of the inquisition. We were met at the door by a number of well-dressed persons, who, I afterwards understood,

were the familiars, and attendants of the holy office. They bowed very low to the inquisitor, and looked with surprise at me. The great hall is the place in which the prisoners are marshalled for the procession of the Auto da Fè. At the procession described by Dellon, in which he himself walked barefoot, clothed with the painted garment, there were upwards of one hundred and fifty prisoners. I traversed this hall for some time, with a slow step, reflecting on its former scenes, the inquisitor walking by my side, in silence. I thought of the fate of the multitude of my fellow-creatures who had passed through this place, condemned by a tribunal of their fellow-sinners, their bodies devoted to the flames, and their souls to perdition. And I could not help saying to him, 'Would not the holy church wish, in her mercy, to have those souls back again, that she might allow them a little further probation?' The inquisitor answered nothing, but beckoned me to go with him to a door at one end of the hall. By this door he conducted me to some small rooms, and thence to the spacious apartments of the chief inquisitor. Having surveyed these he brought me back again to the great hall; and I thought he seemed now desirous that I should depart. 'Now, father,' said I, 'lead me to the dungeons below; I want to see the captives.'—'No,' said he, 'that cannot be.'—I now began to suspect that it had been in the mind of the inquisitor, from the beginning, to shew me only a certain part of the inquisition, in the hope of satisfying my enquiries in a general way. I urged him with earnestness, but he steadily resisted, and seemed to be offended, or rather agitated by my importunity. I intimated to him plainly, that the only way to do justice to his own assertions and arguments, regarding the present state of the inquisition, was to shew me the prisons and the captives. I should then describe only what I saw; but now the subject was left in awful obscurity.—'Lead me down,' said I, 'to the inner building and let me pass through the two hundred dungeons, ten feet square, described by your former captives. Let me count the number of your present captives, and converse with them. I want to see if there be any subjects of the British government, to whom we owe protection. I want to ask how long they have been here, how long it is since they beheld the light of the sun, and whether they ever expect to see it again. Shew me the chamber of torture; and declare what modes of execution, or of punishment, are now practised within the walls of the inquisition, in lieu of the public Auto da Fè. If, after all that has passed, father, you resist this reasonable request, I shall be justified in believing, that you are afraid of exposing the

real state of the inquisition in India.’ To these observations the inquisitor made no reply; but seemed impatient that I should withdraw. ‘My good father,’ said I, ‘I am about to take my leave of you, and to thank you for your hospitable attentions, (it had been before understood that I should take my final leave at the door of the inquisition, after having seen the interior,) and I wish always to preserve on my mind a favourable sentiment of your kindness and candour. You cannot, you say, shew me the captives and the dungeons; be pleased then merely to answer this question; for I shall believe your word:—How many prisoners are there now below, in the cells of the inquisition?’ The inquisitor replied, ‘That is a question which I cannot answer.’ On his pronouncing these words, I retired hastily towards the door, and wished him farewell. We shook hands with as much cordiality as we could at the moment assume; and both of us, I believe, were sorry that our parting took place with a clouded countenance.

‘From the inquisition I went to the place of burning in the *Camp Santo Lazaro*, on the river side, where the victims were brought to the stake at the Auto da Fè. It is close to the palace, that the vice-roy and his court may witness the execution; for it has ever been the policy of the inquisition to make these spiritual executions appear to be the executions of the state. An old priest accompanied me, who pointed out the place and described the scene. As I passed over this melancholy plain, I thought on the difference between the pure and benign doctrine, which was first preached to India in the apostolic age, and that bloody code, which, after a long night of darkness, was announced to it under the same name! And I pondered on the mysterious dispensation, which permitted the ministers of the inquisition, with their racks and flames, to visit these lands, before the heralds of the Gospel of Peace. But the most painful reflection was, that this tribunal should yet exist, unawed by the vicinity of British humanity and dominion. I was not satisfied with what I had seen or said at the inquisition, and I determined to go back again. The inquisitors were now sitting on the tribunal, and I had some excuse for returning; for I was to receive from the chief inquisitor a letter which he said he would give me, before I left the place, for the British resident in Travancore, being an answer to a letter from that officer.

‘When I arrived at the inquisition, and had ascended the outer stairs, the door-keepers surveyed me doubtingly, but suffered me to pass, supposing that I had returned by permission and appointment of the inquisitor. I

entered the great hall, and went up directly towards the tribunal of the inquisition, described by Dellon, in which is the lofty crucifix. I sat down on a form, and wrote some notes; and then desired one of the attendants to carry in my name to the inquisitor. As I walked up the hall, I saw a poor woman sitting by herself, on a bench by the wall, apparently in a disconsolate state of mind. She clasped her hands as I passed, and gave me a look expressive of her distress. This sight chilled my spirits. The familiars told me she was waiting there to be called up before the tribunal of the inquisition. While I was asking questions concerning her crime, the second inquisitor came out in evident trepidation, and was about to complain of the intrusion; when I informed him I had come back for the letter from the chief inquisitor. He said it should be sent after me to Goa; and he conducted me with a quick step towards the door. As we passed the poor woman I pointed to her, and said to him with some emphasis, ‘Behold, father, another victim of the holy inquisition!’ He answered nothing. When we arrived at the head of the great stair, he bowed, and I took my last leave of Josephus a Doloribus, without uttering a word.’

The foregoing particulars concerning the inquisition at Goa are detailed chiefly with this view; that the English nation may consider, whether there be sufficient ground for presenting a remonstrance to the Portuguese government, on the longer continuance of that tribunal in India; it being notorious, that a great part of the the Romish Christians are now under British protection. “The Romans,” says Montesquieu, “deserved well of human nature, for making it an article in their treaty with the Carthaginians, that they should abstain from SACRIFICING their CHILDREN to their gods.” It has been lately observed by respectable writers, that the English nation ought to imitate this example, and endeavour to induce her allies “to abolish the human sacrifices of the inquisition;” and a censure is passed on our government for their indifference to this subject.^[290] The indifference to the inquisition is attributable, we believe, to the same cause which has produced an indifference to the religious principles which first organized the inquisition. The mighty despot, who suppressed the inquisition in Spain, was not swayed probably by very powerful motives of humanity; but viewed with jealousy a tribunal, which usurped an independent dominion; and he put it down, on the same principle that he put down the popedom, that he might remain pontiff and grand inquisitor himself. And so he will

remain for a time, till the purposes of Providence shall have been accomplished by him. But are we to look on in silence, and to expect that further meliorations in human society are to be effected by despotism, or by great revolutions? “If,” say the same authors, “while the inquisition is destroyed in Europe by the power of despotism, we could entertain the hope, and it is not too much to entertain such a hope, that the power of liberty is about to destroy it in America; we might even, amid the gloom that surrounds us, congratulate our fellow-creatures on one of the most remarkable periods in the history of the progress of human society, the FINAL ERASURE of the inquisition from the face of the earth.”^[291] It will indeed be an important and happy day to the earth, when this final erasure shall take place; but the period of such an event is nearer, I apprehend, in Europe and America, than it is in Asia; and its termination in Asia depends as much on Great Britain as on Portugal. And shall not Great Britain do her part to hasten this desirable time? Do we wait, as if to see whether the power of infidelity will abolish the other inquisitions of the earth? Shall not we, in the mean while, attempt to do something, on Christian principles, for the honour of God and of humanity? Do we dread even to express a sentiment on the subject in our legislative assemblies, or to notice it in our treaties? It is surely our duty to declare our wishes, at least, for the abolition of these inhuman tribunals, (since we take an active part in promoting the welfare of other nations,) and to deliver our testimony against them in the presence of Europe.

This case is not unlike that of the immolation of females in Bengal, with this aggravation in regard to the latter, that the rite is perpetrated in our own territories. Our humanity revolts at the occasional description of the enormity; but the matter comes not to our own business and bosoms, and we fail even to insinuate our disapprobation of the deed. It may be concluded then, that while we remain silent and unmoved spectators of the flames of the widow’s pile, there is no hope that we shall be justly affected by the reported horrors of the inquisition.—(*Thus far Dr. Buchannan.*)

[W](#). See note [\[W\]](#) at the end of the volume.

246. Dr. Geddes tells us of one in the inquisition at Lisbon, who was allowed no more than three vintems a day; a vintem is about an English penny farthing.

247. P. 119.

248. P. 121.

249. P. 104.

250. Cap. 19, 20, 21.

251. Inquis. Goan. cap. 13.

252. Inquis. Goan. cap. 18.

253. Gonsalv. p. 125.

254. Inquis. Goan. c. 12.

255. P. 111, &c.

256. P. 114.

257. P. 108.

258. An officer that executes the orders of the inquisition.

259. P. 191.

260. P. 82, &c.

261. Gonsalv. p. 181.

262. Gonsalv. p. 65, 66.

263. C. 23.

264. P. 19.

265. These two methods of punishment seem to be taken from the two different forms of the antient Eculeus.

266. Gonsalv. p. 76, 77.

267. P. 73.

268. P. 192.

269. P. 195.

270. P. 196.

271. P. 204.

272. C. 38.

273. Dr. Geddes gives us the following account of this procession in Portugal, p. 442. "In the morning of the day the prisoners are all brought into a great hall, where they have the habits put on they are to wear in the procession, which begins to come out of the inquisition about nine o'clock in the morning.

"The first in the procession are the Dominicans, who carry the standard of the inquisition, which on the one side hath their founder, Dominick's picture, and on the other side the cross, betwixt an olive-tree and a sword, with this motto, "Justitia & Miserecordia." Next after the Dominicans come the penitents; some with Benitoes, and some without, according to the nature of their crimes. They are all in black coats without sleeves, and bare-footed, with a wax-candle in their hands. Next come the penitents who have narrowly escaped being burnt, who over their black coat have flames painted, with their points turned downwards, to signify their having been saved, but so as by fire. Next come the negative and relapsed, that are to be burnt, with flames upon their habit, pointing upward; and next come those who profess doctrines contrary to the faith of the Roman church, and who, besides flames on their habit pointing upward, have their picture, which is drawn two or three days before upon their breasts, with dogs, serpents, and devils, all with open mouths painted about it.

“Pegna, a famous Spanish inquisitor, calls this procession, ‘Horrendum ac tremendum Spectaculum,’ and so it is in truth, there being something in the looks of all the prisoners, besides those that are to be burnt, that is ghastly and disconsolate, beyond what can be imagined; and in the eyes and countenances of those that are to be burnt, there is something that looks fierce and eager.

“The prisoners that are to be burnt alive, besides a Familiar, which all the rest have, have a Jesuit on each hand of them, who are continually preaching to them to abjure their heresies; but if they offer to speak any thing, in defence of the doctrines they are going to suffer death for professing, they are immediately gagged, and not suffered to speak a word more.

“This I saw done to a prisoner, presently after he came out of the gates of the inquisition, upon his having looked up to the sun, which he had not seen before in several years, and cried out in a rapture, ‘How is it possible for people that behold that glorious body, to worship any Being but him that created it?’ After the prisoners comes a troop of familiars on horseback, and after them the inquisitors and other officers of the court upon mules; and last of all comes the inquisitor general upon a white horse, led by two men, with a black hat, and a green hatband, and attended by all the nobles, that are not employed as familiars in the procession.

“In the Terreiro de Paco, which may be as far from the inquisition as Whitehall is from Temple-bar, there is a scaffold erected, which may hold two or three thousand people; at the one end sit the inquisitors, and at the other end the prisoners, and in the same order as they walked in the procession; those that are to be burnt being seated on the highest benches behind the rest, which may be ten feet above the floor of the scaffold.”

274.

Verse. Lord save thy men servants, and thine handmaids.

Resp. Those, O my God, who trust in thee.

Verse. The Lord be with you.

Resp. And with thy spirit.

Let us pray.

Grant, we beseech thee, O Lord, to these thy men servants, and thine handmaids, the worthy fruit of penance; that they may be rendered innocent in the sight of thy holy church, from the integrity of which they have strayed through sin, by obtaining the pardon of their sins, through Christ our Lord. *Amen.*

275. Fol. 149.

276. L. 2. t. 3. c. 11.

277. I cannot here avoid giving my reader a more particular account of this execution from Dr. Geddes, who himself was once present at it. His words are these: “The prisoners are no sooner in the hands of the civil magistrate, than they are loaded with chains, before the eyes of the inquisitors; and being carried first to the secular jail, are, within an hour or two, brought from thence, before the lord chief justice, who without knowing any thing of their particular crimes, or of the evidence that was against them, asks them, one by one, in what religion they do intend to die? If they answer, that they will die in the communion of the Church of Rome, they are condemned by him, to be carried forthwith to the place of execution, and there to be first strangled, and afterwards burnt to ashes. But if they say, they will die in the Protestant, or in any other faith that is contrary to the Roman, they are then sentenced by him, to be carried forthwith to the place of execution, and there to be burnt alive.

“At the place of execution, which at Lisbon is the Ribera, there are so many stakes set up as there are prisoners to be burnt, with a good quantity of dry furze about them. The stakes of the professed, as the inquisitors call them, may be about four yards high, and have a small board, whereon the prisoner is to be seated, within half a yard of the top. The negative and relapsed being first strangled and burnt, the professed go up a ladder, betwixt the two jesuits, which have attended them all day; and when they are come even with the forementioned board, they turn about to the people, and the jesuits spend near a quarter of an hour in exhorting the professed to be reconciled to the Church of Rome; which, if they refuse to be, the jesuits come down, and the executioner ascends, and having turned the professed off the ladder upon the seat, and chained their bodies close to the stake, he leaves them; and the jesuits go up to them a second time, to renew their

exhortation to them, and at parting tell them, that they leave them to the devil, who is standing at their elbow to receive their souls, and carry them with him into the flames of hell-fire, so soon as they are out of their bodies. Upon this a great shout is raised, and as soon as the jesuits are off the ladders, the cry is, 'Let the dogs beards, let the dogs beards be made;' which is done by thrusting flaming furzes, fastened to a long pole, against their faces. And this inhumanity is commonly continued until their faces are burnt to a coal, and is always accompanied with such loud acclamations of joy, as are not to be heard upon any other occasion; a bull feast, or a farce, being dull entertainments, to the using a professed heretic thus inhumanly.

"The professed beards having been thus made, or trimmed, as they call it in jollity, fire is set to the furze, which are at the bottom of the stake, and above which the professed are chained so high, that the top of the flame seldom reaches higher than the seat they sit on; and if there happens to be a wind, to which that place is much exposed, it seldom reaches so high as their knees: so that though, if there be a calm, the professed are commonly dead in about half an hour after the furze is set on fire; yet, if the weather prove windy, they are not after that dead in an hour and a half, or two hours, and so are really roasted, and not burnt to death. But though, out of hell, there cannot possibly be a more lamentable spectacle than this, being joined with the sufferers (so long as they are able to speak) crying out, 'Miserecordia por amor de Dios, Mercy for the love of God;' yet it is beheld by people of both sexes, and all ages, with such transports of joy and satisfaction, as are not on any other occasion to be met with." Dr. Gedde's Tracts, vol. I. p. 447, &c. Thus far Dr. Geddes.

When Mr. Wilcox, afterwards the Right Reverend the Lord Bishop of Rochester, was minister to the English factory at Lisbon, he sent the following letter to the then Bishop of Salisbury, Dr. Gilbert Burnet, dated at Lisbon, Jan. 15, 1706, N. S. which I publish by his lordship's allowance and approbation, and which abundantly confirms the foregoing account.

"My Lord,

"In obedience to your lordship's commands, of the 10th ult. I have here sent all that was printed concerning the last Auto de Fe. I saw the whole process, which was agreeable to what is published by Limborch and others upon that subject. Of the five persons condemned, there were but four burnt; Antonio Tavanés, by an unusual reprieve, being saved after the procession. Heytor Dias, and Maria Pinteyra, were burnt alive, and the other

two first strangled. The execution was very cruel. The woman was alive in the flames half an hour, and the man above an hour. The present king and his brothers were seated at a window so near, as to be addressed to a considerable time, in very moving terms, by the man as he was burning. But though the favour he begged was only a few more faggots, yet he was not able to obtain it. Those which are burnt alive here, are seated on a bench twelve feet high, fastened to a pole, and above six feet higher than the faggots. The wind being a little fresh, the man's hinder parts were perfectly wasted; and as he turned himself, his ribs opened before he left speaking, the fire being recruited as it wasted, to keep him just in the same degree of heat. But all his entreaties could not procure him a larger allowance of wood to shorten his misery and dispatch him." Thus far the Letter.

How diabolical a religion must that be, which thus divests men of all the sentiments of humanity and compassion, and hardens them against all the miseries and sufferings of their fellow creatures! For as Dr. Geddes observes, *ibid.* p. 450, "That the reader may not think that this inhuman joy is the effect of a natural cruelty that is in these peoples disposition, and not of the spirit of their religion, he may rest assured, that all public malefactors besides heretics, have their violent deaths no where more tenderly lamented than amongst the same people, and even when there is nothing in the manner of their deaths that appears inhuman or cruel."

278. P. 135.

279. Pray for us.

280. L. 2. t. 2. c. 5. n. 9, 10, 11.

281. Hist. l. 3.

282. L. 2. t. 3. c. 4, 5.

283. The forts in the harbour of Goa were then occupied by British troops (two king's regiments, and two regiments of native infantry) to prevent its falling into the hands of the French.

284. There is Old and New Goa. The old city is about eight miles up the river. The vice-roy and the chief Portuguese inhabitants reside at New Goa,

which is at the mouth of the river, within the forts of the harbour. The old city, where the inquisition and the churches are, is now almost entirely deserted by the secular Portuguese, and is inhabited by the priests alone. The unhealthiness of the place, and the ascendancy of the priests, are the causes assigned for abandoning the ancient city.

285. I was informed that the vice-roy of Goa has no authority over the inquisition, and that he himself is liable to its censure. Were the British government, for instance, to prefer a complaint against the inquisition to the Portuguese government at Goa, it could obtain no redress. By the very constitution of the inquisition, there is no power in India which can invade its jurisdiction, or even put a question to it on any subject.

286. We entered the city by the palace gate, over which is the statue of Vasco de Gama, who first opened India to the view of Europe. I had seen at Calicut, a few weeks before, the ruins of the Samorin's Palace, in which Vasco de Gama was first received. The Samorin was the first native prince against whom the Europeans made war. The empire of the Samorin has passed away; and the empire of his conquerors has passed away: and now imperial Britain exercises dominion. May imperial Britain be prepared to give a good account of her stewardship, when it shall be said unto her, "Thou mayest be no longer steward!"

287. Monsieur Dellon, a physician, was imprisoned in the dungeon of the inquisition at Goa for two years, and witnessed an Auto da Fè, when some heretics were burned; at which he walked barefoot. After his release he wrote the history of his confinement. His descriptions are in general very accurate.

288. The following were the passages in Mr. Dellon's narrative, to which I wished particularly to draw the attention of the inquisitor.—Mr. D. had been thrown into the inquisition at Goa and confined in a dungeon, ten feet square, where he remained upwards of two years, without seeing any person, but the gaoler who brought him his victuals, except when he was brought to his trial, expecting daily to be brought to the stake. His alleged crime was, charging the inquisition with cruelty, in a conversation he had with a priest at Daman, a Portuguese town in another part of India.

“During the months of November and December, I heard every morning the shrieks of the unfortunate victims, who were undergoing the *Question*. I remembered to have heard, before I was cast into prison, that the Auto da Fè was generally celebrated on the first Sunday in Advent, because on that day is read in the churches that part of the Gospel in which mention is made of the LAST JUDGMENT; and the inquisitors pretend by this ceremony to exhibit a lively emblem of that awful event. I was likewise convinced that there were a great number of prisoners, besides myself; the profound silence, which reigned within the walls of the building, having enabled me to count the number of doors which were opened at the hours of meals.—However, the first and second Sundays of Advent passed by, without my hearing of any thing, and I prepared to undergo another year of melancholy captivity, when I was aroused from my despair on the 11th of January, by the noise of the guards removing the bars from the door of my prison. The Alcaide presented me with a habit, which he ordered me to put on, and to make myself ready to attend him when he should come again. Thus saying, he left a lighted lamp in my dungeon.—The guards returned about two o’clock in the morning, and led me out into a long gallery, where I found a number of the companions of my fate, drawn up in a rank against the wall: I placed myself among the rest, and several more soon joined the melancholy band. The profound silence and stillness caused them to resemble statues more than the animated bodies of human creatures. The women, who were clothed in a similar manner, were placed in a neighbouring gallery, where we could not see them; but I remarked that a number of persons stood by themselves at some distance, attended by others, who wore long black dresses, and who walked backwards and forwards occasionally. I did not then know who these were: but I was afterwards informed that the former were the victims who were condemned to be burned, and the others were their confessors.

“After we were all ranged against the wall of this gallery, we received each a large wax taper. They then brought us a number of dresses made of yellow cloth, with the cross of St. Andrew painted before and behind. This is called the *San Benito*. The relapsed heretics wear another species of robe, called the *Samarra*, the ground of which is grey. The portrait of the sufferer is painted upon it, placed upon burning torches with flames and demons all round.—Caps were then produced called *Carrochas*; made of pasteboard, pointed like sugar loaves, all covered over with devils, and flames of fire.

“The great bell of the Cathedral began to ring a little before sunrise, which served as a signal to warn the people of Goa to come and behold the august ceremony of the Auto da Fè; and then they made us proceed from the gallery one by one. I remarked as we passed into the great hall, that the inquisitor was sitting at the door with his secretary by him, and that he delivered every prisoner into the hands of a particular person, who is to be his guard to the place of burning. These persons are called Parrains, or *Godfathers*. My Godfather was the commander of a ship. I went forth with him, and as soon as we were in the street, I saw that the procession was commenced by the Dominican Friars; who have this honour, because St. Dominic founded the inquisition. These are followed by the prisoners who walked one after the other, each having his Godfather by his side, and a lighted taper in his hand. The least guilty go foremost; and as I did not pass for one of them, there were many who took precedence of me. The women were mixed promiscuously with the men. We all walked barefoot, and the sharp stones of the streets of Goa wounded my tender feet, and caused the blood to stream: for they made us march through the chief streets of the city: and we were regarded every where by an innumerable crowd of people, who had assembled from all parts of India to behold this spectacle; for the inquisition takes care to announce it long before, in the most remote parishes. At length we arrived at the church of St. Francis, which was, for this time, destined for the celebration of the act of faith. On one side of the altar was the grand inquisitor and his counsellors; and on the other the vice-roy of Goa and his court. All the prisoners were seated to hear a sermon. I observed that those prisoners who wore the *horrible Carrochas* came in last in the procession. One of the Augustin monks ascended the pulpit, and preached for a quarter of an hour. The sermon being concluded, two readers went up to the pulpit, one after the other, and read the sentences of the prisoners. My joy was extreme when I heard that my sentence was not to be burnt, but to be a galley-slave for five years.—After the sentences were read, they summoned forth those miserable victims who were destined to be immolated by the holy inquisition. The images of the heretics who had died in prison were brought up at the same time, their bones being contained in small chests, covered with flames and demons.—An officer of the secular tribunal now came forward, and seized these unhappy people, after they had each received a *slight blow upon the breast* from the Alcaide, to intimate that they were *abandoned*. They were then led away to the bank of the river,

where the vice-roy and his court were assembled, and where the faggots had been prepared the preceding day.—As soon as they arrive at this place, the condemned persons are asked in what religion they choose to die; and the moment they have replied to this question, the executioner seizes them, and binds them to a stake in the midst of the faggots. The day after the execution, the portraits of the dead are carried to the church of the Dominicans. The heads only are represented, (which are generally very accurately drawn; for the inquisition keeps excellent limners for the purpose,) surrounded by flames and demons; and underneath is the name and crime of the person who has been burned.” *Relation de l’Inquisition de Goa*, chap. XXIV.

289. The manjeel is a kind of palankeen common at Goa. It is merely a sea-cot suspended from a bamboo, which is borne on the *heads* of four men. Sometimes a footman runs before, having a staff in his hand, to which are attached little bells or rings, which he jingles as he runs, keeping time with the motion of the bearers.

290. Edin. Rev. No. XXXII. p. 449.

291. Edin. Rev. No. XXXII. p.429.

BOOK IV. OF PERSECUTIONS AMONGST PROTESTANTS.

After the world had groaned for many ages under the insupportable bondage of Popish superstition and cruelty, it pleased God, in his own good Providence, to take the remedy of these evils into his own hands; and after several ineffectual attempts by men, at last to bring about a reformation of religion by his own wisdom and power. The history of this great event hath been very particularly and faithfully given by many excellent writers, to which I must here refer my readers; and it must be owned, that the persons employed by Almighty God, to accomplish this great work, were, many of them, remarkable for their great learning and exemplary piety. I am sure I have no inclination to detract from their worth and merit. One would indeed have imagined, that the cruelties exercised by the papists upon all who opposed their superstitions in worship, and their corruptions in doctrine, should have given the first reformers an utter abhorrence of all methods of persecution for conscience-sake, and have kept them from ever entering into any such measures themselves. But it must be confessed, that however they differed from the church of Rome, as to doctrines and discipline, yet, that they too generally agreed with her, in the methods to support what they themselves apprehended to be truth and orthodoxy; and were angry with the papists, not for persecuting, but for persecuting themselves and their followers; being really of opinion that heretics might be persecuted, and, in some cases, persecuted to death. And that this was their avowed principle, they gave abundant demonstration by their practice.



SECT. I.

Luther's opinion concerning Persecution.

Luther, that great instrument, under God, of the reformation in Germany, was, as his followers allow, naturally of a warm and violent temper, but was however in his judgment against punishing heretics with death. Thus, in his account of the state of the Popish church, as related by Seckendorf, he says: ^[292] “the true church teaches the word of God, but forces no one to it. If any one will not believe it, she dismisses him, and separates herself from him, according to the command of Christ, and the example of Paul in the Acts, and leaves him to the judgment of God: whereas our executioners and most cruel tyrants teach not the word of God, but their own articles, acting as they please, and then adjudge those who refuse to believe their articles, and obey their decrees, to the fires.” The same author gives us many other strong passages to the same purpose. Particularly, in one of his letters to Lineus, who asked his opinion about the punishment of false teachers, Luther says: ^[293] “I am very averse to the shedding of blood, even in the case of such as deserve it: and I the more especially dread it in this case, because, as the Papists and Jews, under this pretence, have destroyed holy prophets and innocent men; so I am afraid the same would happen amongst ourselves, if in one single instance it should be allowed lawful for seducers to be put to death. I can therefore, by no means, allow that false teachers should be destroyed.” But as to all other punishments, Luther seems to have been of Austin's mind, and thought that they might be lawfully used. For, after the before-mentioned passage, he adds, “it is sufficient that they should be banished.” And in another place ^[294] he allows, that “heretics may be corrected, and forced at least to silence, if they publicly deny any one of the articles received by all Christians, and particularly that Christ is God; affirming him to be a mere man or prophet.” “This,” says he, “is not to force men to the faith, but to restrain from public blasphemy.” In another place he goes farther and says, ^[295] that “heretics are not indeed to be put to death, but may however be confined, and shut up in some certain place, and put under restraint as madmen.” As to the Jews, he was for treating them more severely; ^[296] and was of opinion, that “their synagogues should be

levelled with the ground, their houses destroyed, their books of prayer, and of the talmud, and even those of the old testament, be taken from them; their rabbies be forbid to teach, and forced, by hard labour, to get their bread; and if they would not submit to this, that they should be banished, as was formerly practised in France and Spain.”

^[297] This was the moderation of this otherwise great and good man, who was indeed against putting heretics to death, but for almost all other punishments that the civil magistrates could inflict: and agreeably to this opinion, he persuaded the Electors of Saxony not to tolerate in their dominions, the followers of Zuinglius, in the opinion of the sacrament, because he esteemed the real presence an essential or fundamental article of faith; nor to enter into any terms of union with them, for their common safety and defence, against the endeavours of the papists to destroy them. And accordingly, notwithstanding all the endeavours of the Landgrave of Hesse Cassel, to get them included in the common league against the papists, the Elector would never allow it, being vehemently dissuaded from it by Luther, Melancton, and others of their party, who alledged, “That they taught articles contrary to those received in Saxony; and that therefore there could be no agreement of heart with them.”

In one of his conferences with Bucer, he declared, that there could be no union, unless Zuinglius and his party should think and teach otherwise; cursing all phrases and interpretations that tended to assert the figurative presence only; affirming, that ^[298] “either those of his own opinion, or those of Zuinglius, must be the ministers of the devil.” On this account, though Luther was for treating Zuinglius and his followers with as much christian friendship as he could afford them, yet he would never own them for brethren, but looked on them as heretics, and pressed the Electors of Saxony not to allow them in their dominions. ^[299] He also wrote to Albert Duke of Prussia, to persuade him to banish them his territories. Seckendorf also tells us, that the Lutheran lawyers of Wirtemberg condemned to death one Peter Pestelius, for being a Zuinglian; though this was disapproved by the Elector of Saxony. Several also of the anabaptists were put to death by the Lutherans, for their obstinacy in propagating their errors, contrary to the judgment of the Landgrave of Hesse Cassel, who declared himself for more moderate measures, and for uniting all sorts of protestants amongst themselves. ^[300]

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SECT. II.

Calvin's Doctrine and Practice concerning Persecution.

John Calvin, another of the reformers, and to whom the christian world is, on many accounts, under very great obligations, was however well known to be in principle and practice a persecutor. So entirely was he in the persecuting measures, that he wrote a treatise in defence of them, maintaining the lawfulness of putting heretics to death. And that by heretics he meant such who differed from himself, is evident from his treatment of Castellio and Servetus.

The former, not inferior to Calvin himself in learning and piety, had the misfortune to differ from him in judgment, in the points of predestination, election, free-will and faith. This Calvin could not bear, and therefore treated Castellio in so rude and cruel a manner, as I believe his warmest friends will be ashamed to justify. In some of his writings he calls him "Blasphemer, reviler, malicious barking dog, full of ignorance, bestiality and impudence; impostor, a base corrupter of the sacred writings, a mocker of God, a contemner of all religion, an impudent fellow, a filthy dog, a knave, an impious, lewd, crooked-minded vagabond, beggarly rogue." At other times he calls him "a disciple and brother of Servetus, and an heretic." Castellio's reply to all these flowers, is worthy the patience and moderation of a Christian, and from his slanderer he appeals to the righteous judgment of God.

But not content with these invectives, Calvin farther accused him of three crimes; which Castellio particularly answers. The first was of theft, in taking away some wood, that belonged to another person, to make a fire to warm himself withal: this Calvin calls "Cursed gain, at another's expence and damage;" whereas, in truth, the fact was this. Castellio was thrown into such circumstances of poverty by the persecutions of Calvin and his friends, that he was scarce able to maintain himself. And as he dwelt near the banks of the Rhine, he used at leisure hours to draw out of the river with an hook, the wood that was brought down by the waters of it. This wood was no private property, but every man's that could catch it. Castellio took it in the middle of the day, and amongst a great number of fishermen, and several of his own acquaintance; and was sometimes paid money for it by the decree

of the senate. This the charitable Calvin magnifies into a theft, and publishes to the world to paint out the character of his Christian brother.

But his accusations ran farther yet; and he calls God to witness, that whilst he maintained Castellio in his house, “He never saw any one more proud or perfidious, or void of humanity; and it was well known he was an impostor, of a peculiar impudence, and one that took pleasure in scoffing at piety, and that he delighted himself in laughing at the principles of religion.” These charges Castellio answers in such a manner, as was enough to put even malice itself to silence. For, notwithstanding Calvin’s appeal to God for the truth of these things, yet he himself and two of his principal friends, who were eminent preachers in Savoy, pressed Castellio, even contrary to his inclination, to take the charge of a school at Stratsburg; and therefore, as he says to Calvin, “With what conscience could you make me master, if you knew me to be such a person when I dwelt in your house? What sort of men must they be, who would commit the education of children to such a wicked wretch, as you appeal to God you knew me to be.”

But what is yet more to the purpose, is, that after he had been master of that school three years, Calvin gave him a testimonial, written and signed with his own hand, as to the integrity of his past behaviour; affirming, amongst other things, “That he had behaved himself in such a manner, that he was, by the consent of all of them, appointed to the pastoral office.” And in the conclusion he adds, “Lest any one should suspect any other reason why Sebastian went from us, we testify to all wheresoever he may come, that he himself voluntarily left the school, and so behaved himself in it, as that we adjudged him worthy this sacred ministry.” And that he was not actually received into it, was “*non aliqua vitæ macula*,” not owing to any blemish of his life, nor to any impious tenets that he held in matters of faith, but to this only cause, the difference of our opinions about Solomon’s Songs, and the article of Christ’s descent into hell. But how is this testimonial, that Castellio had no “*macula vitæ*,” was unblameable as to his life, reconcileable with the appeal to God, that he was proud and perfidious, and void of humanity, and a professed scoffer at religion, whilst he dwelt at Calvin’s house? If this charge was true, how came Calvin and his friends to appoint him master of a school, and judge him worthy the sacred ministry? Or if he was of so bad a character once, and afterwards gave the evidence of a sincere repentance by an irreproachable behaviour, what equity or justice,

what humanity or honour was there in publishing to the world faults that had been repented of and forsaken? Castellio solemnly protests that he had never injured Calvin, and that the sole reason of his displeasure against him was because he differed from him in opinion. On this account he endeavoured to render him every where impious, prohibited the reading of his books; and, what is the last effort of enmity, endeavoured to excite the civil magistrate against him to put him to death. But God was pleased to protect this good man from the rage of his enemies. He died at Basil, in peace; and received an honourable burial, the just reward of his piety, learning, and merit.

I may add to this account, Calvin's treatment of one Jerom Bolsec,^[301] who from a Carmelite monk had embraced the reformed religion, but held the doctrine of free-will and predestination upon the foresight of good works. Calvin was present at a sermon preached by him at Geneva, upon these articles; and the sermon being ended, publicly opposed him in the congregation. When the assembly was dismissed, poor Bolsec was immediately apprehended, and sent to prison; and soon after, by Calvin's counsel, banished for sedition and Pelagianism from the city, and forbid ever to come into it, or the territories of it, under pain of being whipped, A. C. 1551.

But Calvin's treatment of the unfortunate Servetus was yet more severe. His book, entitled, "Restitutio Christianismi," which he sent in MS. to Calvin, enraged him to that degree, that he afterwards kept no temper or measures with him; so that as Bolsec and Uytenbogaert relate, in a letter written by him to his friends Viret and Farrel, he tells them,^[302] that "If this heretic (Servetus) should ever fall into his hands, he would take care that he should lose his life." Servetus's imprisonment at Vienne, soon gave him an opportunity to shew his zeal against him: for, in order to strengthen the evidence against him, Calvin sent to the magistrates of that city the letters and writings which Servetus had sent to him at Geneva. This is evident from the sentence itself against him; in which those writings, as well as his printed book, are expressly mentioned, as containing the proofs of his heresy. Whether Calvin sent them of his own accord, or at the desire of the magistrates of Vienne, I shall not presume to determine. If of his own accord, it was a base officiousness; and if at the request of those magistrates, it was a most unaccountable conduct in a Protestant to send evidence to a Popish court to put a Protestant to death; especially

considering that Servetus could not differ more from Calvin than Calvin did from the Papists, their common adversaries, and who certainly deserved as much to be burnt, in their judgment, as Servetus did in Calvin's.

Besides this, Servetus farther charges him with writing to one William Trie, at Lyons, to furnish the magistrates of that city with matter of accusation against him. The author of the *Bibliothèque* before-mentioned, says this is a mere romance, dressed up by Servetus. I confess it doth not appear to me in so very romantic a light; at least Calvin's vindication of himself, from this charge, doth not seem to be altogether sufficient. He says, "It is commonly reported that I occasioned Servetus to be apprehended at Vienne; on which account it is said, by many, that I have acted dishonourably, in thus exposing him to the mortal enemies of the faith, as though I had thrown him into the mouth of the wolves. But, I beseech you, how came I so suddenly into such an intimacy with the pope's officers? It is very likely, truly, that we should correspond together by letters; and that those who agree with me, just as Belial doth with Jesus Christ, should enter into a plot with their mortal enemy, as with their companion: This silly calumny will fall to the ground, when I shall say, in one word, that there is nothing in it." But how doth all this confute Servetus's charge? For whatever differences soever there might be between Calvin and the Papists in some things, yet, why might he not write to the Papists at Vienne to put Servetus to death for what was equally counted heresy by them both, and when they agreed as the most intimate friends and companions in the lawfulness of putting heretics to death? What Calvin says of the absurdity of their intimacy and conspiracy with him their mortal enemy, is no absurdity at all. Herod and Pontius Pilate, though enemies, agreed in the condemnation of the Son of God.

Besides, it is certain, that the magistrates at Vienne had Servetus's Manuscripts sent to them from Geneva, either by Calvin, or the magistrates of that city; and when Servetus was afterwards apprehended at Geneva, the magistrates there sent a messenger to Vienne, for a copy of the process that had been there carried on against him; which that messenger received, and actually brought back to Geneva. So that nothing is more evident, than that there was an intimacy and conspiracy between the Protestants of Geneva and the Papists at Vienne, to take away the life of poor Servetus; and that, though they were mortal enemies in other things, and as far different from one another as Christ and Belial, yet that they agreed harmoniously in the

doctrine and practice of persecution, and were one in the design and endeavour of murdering this unhappy physician. And though Calvin is pleased magisterially to deny his having any communication by letters with the Papists at Vienne, yet I think his denial far from sufficient to remove the suspicion. He himself expressly says that many persons blamed him for not acting honourably in that affair; and the accusation was supported by Servetus's complaint, and by what is a much stronger evidence, the original papers and letters which Servetus had sent to Calvin, which were actually produced by the judges at Vienne, and recited in the sentence as part of the foundation of his condemnation. And as Calvin himself never, as I can find, hath attempted to clear up these strong circumstances, though he owed it to himself and his friends, I think he cannot well be excused from practising the death of Servetus at Vienne, and lending his assistance to the bloody Papists of that place, the more effectually to procure his condemnation.

But he had the good fortune to make his escape from imprisonment, and was, June 17, 1553, condemned for contumacy, and burnt in effigy by the order of his judges; having himself got safe to Geneva, where he was re-condemned, and actually burnt in person, October 27, of the same year 1553. He had not been long in this city before Calvin spirited up one Nicholas de la Fountain, probably one of his pupils, to make information against him; wisely avoiding it himself, because, according to the laws of Geneva, the accuser must submit to imprisonment with the party he accuses, till the crime appears to have a solid foundation and proof. Upon this information Servetus was apprehended and imprisoned. Calvin ingenuously owns, that this whole affair was carried on at his instance and advice; and that, in order to bring Servetus to reason, he himself found out the party to accuse him, and begin the process against him. And therefore, though, as the fore-mentioned author of the *Bibliothèque*, for January, &c. 1729, observes, the action, after its commencement, was carried on according to the course of law; yet, as Calvin accused him for heresy, got him imprisoned, and began the criminal process against him, he is answerable for all the consequences of his trial, and was in reality the first and principal author of his death; especially as the penal laws against heretics seem at that time to have been in force at Geneva, so that Servetus could not escape the fire upon his conviction of heresy.

When he was in jail, he was treated with the same rigour as if he had been detained in one of the prisons of the inquisition. He was stripped of all

means of procuring himself the conveniences and supplies he needed in his confinement. They took from him ninety-seven pieces of gold, a gold chain worth twenty crowns, six gold rings, and at last put him into a deep dungeon, where he was almost eaten up with vermin. All this cruelty was practised upon a protestant in the protestant city of Geneva. Besides this, he could never get a proctor or advocate to assist him, or help him in pleading his cause, though he requested it, as being a stranger, and ignorant of the laws and customs of the country. Calvin, at the request of the judges, drew up certain propositions out of Servetus's books, representing them as blasphemous, full of errors and profane reveries, all repugnant to the word of God, and to the common consent of the whole church; and, indeed, appears to have been acquainted with, and consulted in the whole process, and to have used all his arts and endeavours to prevent his coming off with impunity.

It is but a poor and mean excuse that Calvin makes for himself in this respect, when he says; ^[303]“As to the fact, I will not deny, but that it was at my prosecution he was imprisoned:—But that after he was convicted of his heresies, I made no instances for his being put to death.” But what need of instances? He had already accused him, got him imprisoned, prosecuted in a criminal court for the capital crime of heresy, and actually drew up forty articles against him for heresy, blasphemy, and false doctrine. When he was convicted of these crimes, the law could not but take its course; and his being burnt to death was the necessary consequence of his conviction. What occasion was there then for Calvin to press his execution, when the laws themselves had adjudged him to the flames? But even this excuse, poor as it is, is not sincerely and honestly made: for Calvin was resolved to use all his interest to destroy him. In his letter to Farrel, he expressly says, “I hope, at least, they will condemn him to death, but not to the terrible one of being burnt.” And in another to Sultzer, “Since the papists, in order to vindicate their own superstitions, cruelly shed innocent blood, it is a shame that Christian magistrates should have no courage at all in the defence of certain truth.—However, I will certify you of one thing, that the city treasurer is rightly determined, that he shall not escape that end which we wish him.” And in another to the church at Franckfort, ^[304] “The author (Servetus) is put in jail by our magistrates, and I hope he will shortly suffer the punishment he deserves.” There was but one way possible for him to escape; and that was by bringing his cause from the criminal court, where he was

prosecuted, before the council of the two hundred. And this Calvin vigorously opposed and reflected on the syndic himself for endeavouring it. He says, “that he pretended illness for three days, and then came into court to save that wretch (Servetus) from punishment; and was not ashamed to demand, that the cognizance of the affair should be referred to the two hundred. However he was unanimously condemned.” Now, what great difference is there between a prosecutor’s endeavouring to prevent the only method by which a criminal can be saved, and his actually pressing for his being put to death? Calvin actually did the former, and yet would fain persuade us he had no hand in the latter.

It is much of a piece with this, his desiring that the rigour of Servetus’s death might be mitigated; for as the laws against heretics were in force at Geneva, the tribunal that judged Servetus could not, after his conviction of heresy, absolve him from death, nor change the manner of it, as Calvin says he would have had it; and therefore his desiring that the rigour of it might be abated, looks too much like the practice of the inquisitors, who when they deliver over an heretic to the secular arm, beseech it so to moderate the rigour of the sentence, as not to endanger life or limb.

This was the part that Calvin acted in the affair of Servetus, which I have represented in the most impartial manner, as it appears to me; and am sorry I am not able to wipe off so foul a stain from the memory of this otherwise excellent and learned reformer. But when his enemies charge him with acting merely from principles of malice and revenge in this matter, I think it an evident abuse and calumny. He was, in his own judgment, for persecuting and destroying heretics, as appears from the treatise he published in vindication of this practice, entitled, “A declaration for maintaining the true faith, held by all Christians concerning the Trinity of persons in one only God, by John Calvin, against the detestable errors of Michael Servetus, a Spaniard. In which it is also proved, that it is lawful to punish heretics; and that this wretch was justly executed in the city of Geneva.” Geneva, 1554.

This principle was maintained by almost all the fathers and bishops of the church since the three first centuries, who esteemed heresy as one of the worst of impieties, and thought it the duty of the civil magistrates to employ their power for the suppression of it, and for the support and establishment of the orthodox faith. And though the first reformers abhorred the cruelty of the papists towards the protestants, they had nevertheless the same

abhorrence of what they counted heresy that the papists had, and agreed with them in the lawfulness of suppressing it by the civil power. So that Calvin acted in this affair from a principle, though a mistaken principle of conscience, and had the encouragement and approbation of the most learned and pious reformers of the times he lived in.

Melancton, in a letter to Bullinger, says^[305] “I have read also what you have written concerning the blasphemies of Servetus, and I approve your piety and judgment. I think also, that the senate of Geneva have done right, that they have put to death that obstinate person, who would not cease to blaspheme; and I wonder that there are any who disapprove that severity.” He affirms the same also in another letter to Calvin himself. Bucer also said publicly in his sermon, that “He ought to have his bowels pulled out, and be torn in pieces,” as Calvin relates in his letter to Sultzer. Farrel in a letter to Calvin, says, that “He deserved to die ten thousand deaths; that it would be a piece of cruelty, and an injustice to Christ, and the doctrine of piety, for magistrates not to take notice of the horrible blasphemies of that wicked heretic. And he hoped God would so order it that as the magistrates of Geneva were very praise-worthy for punishing thieves and sacrilegious persons, so they would behave themselves well in the affair of Servetus, by putting him to death, who had so long obstinately persisted in his heresies, and destroyed so many persons by them.”

^[306]The pastors of the church at Basil, in their letter to the syndics and senate of Geneva, express their joy for the apprehension of Servetus, and advise them first to “Use all endeavours to recover him; but that if he persisted in his perverseness, they should punish him according to their office, and the power they had received from God, to prevent his giving any disturbance to the church, and lest the latter end should be worse than the first.” ^[307]The ministers of the church of Bern were of the same opinion; and in their letter to the magistrates of Geneva say, “We pray the Lord that he would give you the spirit of prudence, counsel and strength, to remove this plague from the churches, both your own and others,” and advise them “to neglect nothing that may be judged unworthy a Christian magistrate to omit.” ^[308]The ministers of Zurich give much the same advice, and thought that there was need of a great deal of diligence in the affair; “especially as the reformed churches were evil thought of, amongst other reasons for this, as being themselves heretical, and favourers of heretics. But that, as the Providence of God had given them an opportunity of wiping off so evil a

suspicion, and preventing the farther spreading of so contagious a poison, they did not doubt but their excellencies would be careful to improve it.”

^[309]Those of Scaffhusen subscribed to the judgment of those of Zurich, and declare, that they did not doubt, but that their prudence would put a stop to the attempts of Servetus, lest his blasphemies, as a canker, should eat up the members of Christ; adding these remarkable words, “That to endeavour to oppose his dreams by a train of reasoning, what would it be, but to grow mad with a madman?”

These extracts, which are taken out of the letters printed at the end of Calvin’s Institutions, clearly demonstrate that he acted seriously and deliberately in the affair of Servetus; and that he consulted the neighbouring churches, and had their opinion of the lawfulness and expediency of putting him to death for his heresies. And though it doth not wholly excuse his fault, yet it ought in justice to be allowed as an abatement and extenuation of it; and, I think, evidently proves, what his enemies are very unwilling to allow, that he was not transported by rage and fury, and did not act merely from the dictates of envy and malice, but from a mistaken zeal against what he accounted blasphemy and heresy, and with the concurrent advice of his brethren in the ministry, and fellow-labourers in the great work of the reformation. And I think his eminent services to the church of God, both by his preaching and writings, ought, notwithstanding all his failings, to secure to his memory the honour and respect that is due to it: for he deserved well of all the reformed churches, and was an eminent instrument in the hand of Providence, in promoting the great and glorious work of saving men from the gross errors, superstitions and idolatries of the Romish church. And as I thought myself obliged impartially to represent these things as they appeared to me, I hope all who love to distinguish themselves by Calvin’s name, will be careful not to imitate him in this great blemish of his life, which, in reality, hath tarnished a character, that would otherwise have appeared amongst the first and brightest of the age he lived in.

In the year 1632, after Calvin’s death, one Nicholas Anthoine was condemned also by the council of Geneva, to be first hanged, and afterwards burnt; because, that having forgotten the fear of God, he had committed the crime of apostacy and high treason against God, by having opposed the Holy Trinity, denied our Lord and Saviour Jesus Christ, blasphemed his holy name, renounced his baptism, and the like.

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SECT. III.

Persecutions at Bern, Basil, and Zurich.

Valentinus Gentilis,^[310] a native of Cosentia in Italy, had the misfortune also to fall into some heterodox opinions concerning the Trinity, and held that the Father alone was αὐτοθεός, God of himself, ἀγεννητός, unbegotten, Essentiator, the giver of essence to all other beings; but that the Son was Essentiatus, of a derived essence from the Father, and therefore not αὐτοθεός, or God of himself, though at the same time he allowed him to be truly God. He held much the same as to the Holy Ghost, making them three eternal Spirits, distinguished by a gradual and due subordination, reserving the monarchy to the Father, whom he stiled the one only God. Being forced to fly his native country, on account of his religion, he came to Geneva, where there was a church of Italian refugees, several of whom, such as G. Blandrata, a physician, Gribaldus, a lawyer, and Paulus Alciatus, differed from the commonly received notions of the Trinity. When their heterodoxes came to be known at Geneva, they were cited before the senators, ministers, and presbyters, and being heard in their own defence, were refuted by Calvin, and all subscribed to the orthodox faith.

But V. Gentilis having after this endeavoured to propagate his own opinions, he was again apprehended, and forced by Calvin and others to a public abjuration, and condemned anno 1558, to an exemplary penance, viz. “That he should be stripped close to his shirt, then barefoot and bare-headed should carry in his hand a lighted torch, and beg God and the court’s pardon on his knees, by confessing himself maliciously and wickedly to have spread abroad a false and heretical doctrine; but that he did now from his heart detest and abhor those abominable, lying, and blasphemous books, he had composed in its defence; in testimony of which he was to cast them, with his own hands, into the flames, there to be burnt, to ashes. And for more ample satisfaction, he was enjoined to be led through all the streets of Geneva, at the sound of trumpet, in his penitential habit, and strictly commanded not to depart the city without permission.” And this penance he actually underwent.

But having found means to make his escape, he came at last to Gaium, a prefecture, subject to the canton of Bern, where he was seized and

imprisoned by the governor, who immediately sent an account of his apprehension to the senate of Bern, who ordered him to be brought prisoner to that city, where they put him in jail. After they had seized all his books and papers, they collected several articles, with the heads of an indictment out of them to be preferred against him. Amongst others these were two, 1. “That he dissented from us, and all the orthodox, in the doctrine of the Trinity.” And 2. “That his writings contained many impious blasphemies concerning the Trinity.” And because he continued obstinate in his opinions, notwithstanding the endeavours of the divines to convert him, he was condemned by the senate, for his blasphemies against the Son of God, and the glorious mystery of the Trinity, to be beheaded; which sentence was executed on him in September, anno 1566.

^[311]At Basil, also, heresy was a crime punishable with death, since the reformation, as appears from the treatment of the dead body of David George, an enthusiastical anabaptist. Having left Holland he went to Basil, and settled there as one that was banished out of his country for the sake of his religion, propagating his own doctrines by letters, books, and messengers in Holland. But his errors being discovered after his death, he was taken out of his grave, and together with his books and pictures burnt to ashes, by order of the magistrates, at the place of execution, without the walls of Basil, May 13, 1559. His opinions were first extracted from the printed books and manuscript papers found in his house, and himself declared an arch heretic.

^[312]Zurich also furnishes us with an instance of great cruelty towards an anabaptist. A severe edict was published against them, in which there was a penalty of a silver mark, about four shillings English money, set upon all such as should suffer themselves to be-rebaptized, or should withhold baptism from their children. And it was farther declared, that those who openly opposed this order, should be yet more severely treated. Accordingly one Felix was drowned at Zurich, upon the sentence pronounced by Zuinglius, in these four Words, “Qui interum mergit, mergatur:” He that re-dips, let him be drowned. This happened in the year 1526. About the same time also, and since, there were some more of them put to death. ^[313]From the same place, also, Ochinus was banished, in his old age, in the depth of winter, together with his children, because he was an Arian, and defended polygamy, if Beza’s account of him be true.

Lubieniecius,^[314] a Polish Unitarian, was, through the practices of the Calvinists, banished with his brethren from Poland, his native country; and forced to leave several protestant cities of Germany, to which he had fled for refuge, particularly, Stetin, Frederickstadt, and Hamburg, through the practices of the Lutheran divines, who were against all toleration. At Hamburg he received the orders of the magistrates of the city to depart the place on his death-bed; and when his dead body was carried to Altenau to be interred, though the preachers could not, as they endeavoured, prevent his being buried in the church, yet they did actually prevent the usual funeral honours being paid him. John Sylvanus,^[315] superintendant of the church of Heidelberg, was put to death by order of Frederick Elector Palatine, anno 1571, being accused of Arianism.



SECT. IV.

Persecutions in Holland, and by the Synod of Dort.

If we pass over into Holland, we shall also find that the reformers there were most of them in the principles and measures of persecution, and managed their differences with that heat and fury, as gave great advantages to the Papists, their common enemies. In the very infancy of the reformation the Lutherans and Calvinists condemned each other for their supposed heterodoxy in the affair of the sacrament, and looked upon compliance and mutual toleration to be things intolerable. These differences were kept up principally by the clergy of each party. The Prince of Orange, and States of Holland, who were heartily inclined to the reformation, were not for confining their protection to any particular set of principles or opinions, but for granting an universal indulgence in all matters of religion, aiming at peace and mutual forbearance, and to open the church as wide as possible for all Christians of unblameable lives; whereas the clergy being biassed by their passions and inclinations for those masters, in whose writings they had been instructed, endeavoured with all their might to establish and conciliate authority to their respective opinions; aiming only at decisions and definitions, and shutting up the church by limitations in many doubtful and disputable articles; so that the disturbances which were raised, and the severities which were used upon the account of religion, proceeded from the bigotry of the clergy, contrary to the desire and intention of the civil magistrate.

Before the ministers of the reformed party were engaged in the controversy with Arminius,^[316] their zeal was continually exerting itself against the anabaptists, whom they declared to be excommunicated and cut off from the church, and endeavoured to convert by violence and force, prohibiting them from preaching under fines, and banishing them their country, upon account of their opinions. And the better to colour these proceedings, some of them wrote in defence of persecution; or, which is the same thing, against the toleration of any religion or opinions different from their own; and for the better support of orthodoxy, they would have had the synods ordain, that all church officers should renew their subscriptions to the confession and catechism every year, that hereby they might the better

know who had changed their sentiments, and differed from the received faith. This practice was perfectly agreeable to the Geneva discipline; Calvin himself, as hath been shewn, being in judgment for persecuting heretics; and Beza having wrote a treatise, anno 1600, to prove the lawfulness of punishing them. This book was translated from the Latin into the Low Dutch language by Bogerman, afterwards president of the synod of Dort, and published with a dedication, and recommendation of it to the magistrates. The consequence of this was, that very severe placarts were published against the anabaptists in Friesland and Groningen, whereby they were forbidden to preach; and all persons prohibited from letting their houses and grounds to them, under the penalty of a large fine, or confinement to bread and water for fourteen days. If they offended the third time, they were to be banished the city, and the jurisdiction thereof. Whosoever was discovered to re-baptize any person, should forfeit twenty dollars; and upon a second conviction to be put to bread and water, and then be banished. Unbaptized children were made incapable of inheriting; and if any one married out of the reformed church, he was declared incapable of inheriting any estate, and the children made illegitimate.

But the controversy that made the greatest noise, and produced the most remarkable effects, was that carried on between the Calvinists and Arminians. Jacobus Arminius, one of the professors of divinity at Leyden, disputing in his turn about the doctrine of predestination, advanced several things differing from the opinions of Calvin on this article, and was in a few months after warmly opposed by Gomarus his colleague, who held, that “It was appointed by an eternal decree of God, who amongst mankind shall be saved, and who shall be damned.” This was indeed the sentiment of most of the clergy of the United Provinces, who therefore endeavoured to run down Arminius and his doctrine with the greatest zeal, in their private conversations, public disputes, and in their very sermons to their congregations, charging him with innovations, and of being a follower of the ancient heretical monk Pelagius; whereas the government was more inclinable to Arminius’s scheme, as being less rigid in its nature, and more intelligible by the people, and endeavoured all they could to prevent these differences of the clergy from breaking out into an open quarrel, to the disturbance of the public peace. But the ministers of the predestinarian party would enter into no treaty for peace: the remonstrants were the objects of their furious zeal, whom they called *mamelukes*, devils, and plagues;

animating the magistrates to extirpate and destroy them, and crying out from the pulpits, “We must go through thick and thin, without fearing to stick in the mire: we know what Elijah did to Baal’s priests.” And when the time drew near for the election of new magistrates, they prayed to God for such men, “as would be zealous even to blood, though it were to cost the whole trade of their cities.” They also accused them of keeping up a correspondence with the Jesuits and Spaniards, and of a design to betray their country to them.

These proceedings gave great disturbance to the magistrates, especially as many of the clergy took great liberties with them, furiously inveighing against them in their sermons, as enemies to the church, and persecutors; as libertines and free-thinkers, who hated the sincere ministers of God, and endeavoured to turn them out of their office. This conduct, together with their obstinate refusal of all measures of accommodation, and peace with the remonstrants, so incensed the magistrates, that in several cities they suspended some of the warmest and most seditious of them, and prohibited them from the public exercises of their ministerial function; particularly Gezelius of Rotterdam, and afterwards Rosæus, minister at the Hague, for endeavouring to make a schism in the church, and exhorting the people to break off communion with their brethren. Being thus discarded, they assumed to themselves the name of the persecuted church, and met together in private houses, absolutely refusing all communion with the remonstrant ministers and party, in spite of all the attempts made use of to reconcile and unite them.

What the ministers of the contra-remonstrant party aimed at, was the holding a national council; which at length, after a long opposition, was agreed to in the assembly of the States-General, who appointed Dort for the place of the meeting. Prince Maurice of Orange, the Stadtholder, effectually prepared matters for holding the said assembly; and as he declared himself openly for the contra-remonstrant party, not for that he was of their opinions in religion, being rather inclined to those of Arminius, but because he thought them the best friends to his family, he took care that the council should consist of such persons as were well affected to them. In order to this his excellency changed the government of most of the towns of Holland, deposed those magistrates who were of the remonstrant persuasion, or that favoured them in the business of the toleration, and filled

up their places with contra-remonstrants, or such as promoted their interests; making use of the troops of the states, to obviate all opposition.

The consequence of this was the imprisonment of several great men of the remonstrant persuasion, such as the advocate Oldenbarnevelt, Grotius, and others; and the suspension, or total deprivation of a considerable number of the remonstrant clergy, such as Vitenbogart, of the Hague, Grovinckhovius, of Rotterdam, Grevius, and others, by particular synods met together for that purpose, and to prepare things, and appoint persons for the ensuing national one at Dort. The persons fixed on were generally the most violent of the contra-remonstrant party, and who had publicly declared, that they would not enter into communion with those who differed from them, nor agree to any terms of moderation and peace. There were also several foreign Divines summoned to this council, who were most of them in the Calvinistic scheme, and professed enemies to the Arminians.

The lay commissioners also, who were chosen by the States, were most of them very partial contra-remonstrants; and two or three of them, who seemed more impartial than the others, were hardly suffered to speak; and if they did, were presently suspected, and represented by letters sent to the states, and Prince Maurice, at the Hague, as persons that favoured the remonstrants; which was then considered as a crime against the government, insomuch, that by these insinuations, they were in danger of being stripped of all their employments.

The session and first opening of this venerable assembly,^[317] was Nov. 13, 1618. John Bogerman was chosen president of it; the same worthy and moderate Divine, who had before translated into Low Dutch Beza's Treatise, to prove the lawfulness of punishing heretics, with a preface recommendatory to the civil magistrate; chosen not by the whole synod, but by the Low Country divines only, the foreigners not being allowed any share in the election.

At the fifth session the remonstrants petitioned the synod, that a competent number of their friends might have leave to appear before them, and that the citation might be sent to the whole body, and not to any single person, to the end that they might be at liberty to send such as they should judge best qualified to defend their cause; and particularly insisted, that Grovinckhovius and Goulart might be of the number. One would have thought that so equitable a request should have been readily granted. But they were told, that it could not be allowed that the remonstrants should

pass for a distinct body, or make any deputation of persons in their common name to treat of their affairs; and agreeably to this declaration, the summons that were given out were not sent to the remonstrants as a body or part of the synod, but to such particular persons as the synod thought fit to choose out of them; which was little less than citing them as criminals before a body of men, which chiefly consisted of their professed adversaries.^[318] When they first appeared in the synod, and Episcopius in the name of the rest of them talked of entering into a regular conference about the points in difference, they were immediately given to understand, that no conference was intended; but that their only business was to deliver their sentiments, and humbly to wait for the judgment of the council concerning them.

Episcopius, in the name of his brethren, declared, that they did not own the synod for their lawful judges, because most of that body were their avowed enemies, and fomenters and promoters of the unhappy schism amongst them; upon which they were immediately reprimanded by the president, for impeaching and arraigning their authority, and presuming to prescribe laws to those whom the States-General had appointed for their judges. The Divines of Geneva added upon this head, “That if people obstinately refused to submit to the lawful determinations of the church, there then remained two methods to be used against them; the one, that the civil magistrate might stretch out his arm of compulsion; the other that the church might exert her power, in order to separate and cut off, by a public sentence, those who violated the laws of God.” After many debates on this head, between the synod and the remonstrants, who adhered to their resolution of not owning the synod for their judges, they were turned out of it, by Bogerman the president, with great insolence and fury; to the high dissatisfaction of many of the foreign Divines.

After the holy synod had thus rid themselves of the remonstrants, whose learning and good sense would have rendered them exceeding troublesome to this assembly, they proceeded to fix the faith; and as they had no opposition to fear, and were almost all of one side, at least in the main points, they agreed in their articles and canons, and in their sentence against the remonstrant clergy, who had been cited to appear before them; which was to this effect: “They beseeched and charged in the name of Christ, all and singular the ministers of the churches throughout the United Netherlands, &c. that they forsake and abandon the well-known five articles of the remonstrants, as being false, and no other than secret magazines of

errors.—And whereas some, who are gone out from amongst us, calling themselves remonstrants, have, out of private views and ends, unlawfully violated the discipline and government of the church—have not only trumped up old errors, but hammered out new ones too—have blackened and rendered odious the established doctrine of the church with impudent slanders and calumnies, without end or measure; have filled all places with scandal, discord, scruples, troubles of conscience—all which heinous offences ought to be restrained and punished in clergymen with the severest censures: therefore this national synod—being assured of its own authority—doth declare and determine, that those ministers, who have acted in the churches as heads of factions, and teachers of errors, are guilty, and convicted of having violated our holy religion, having made a rent in the unity of the church, and given very great scandal: and as for those who were cited before this synod, that they are besides guilty of intolerable disobedience—to the commands of the venerable synod: for all which reasons the synod doth, in the first place, discharge the aforesaid cited persons from all ecclesiastical administrations, and deprive them of their offices; judging them likewise unworthy of any academical employment.—And as for the rest of the remonstrant clergy, they are hereby recommended to the provincial synods, classes, and consistories—who are to take the utmost care—that the patrons of errors be prudently discovered; that all obstinate, clamorous, and factious disturbers of the church under their jurisdiction, be forthwith deprived of their ecclesiastical and academical offices.—And they the said provincial synods are therefore exhorted—to take a particular care, that they admit none into the ministry who shall refuse to subscribe, or promise to preach the doctrine, asserted in these synodical decrees; and that they suffer none to continue in the ministry, by whose public dissent the doctrine which hath been so unanimously approved by all the members of this synod, the harmony of the clergy, and the peace of the church may be again disturbed—And they most earnestly and humbly beseech their gracious God, that their High Mightinesses may suffer and ordain this wholesome doctrine, which the synod hath faithfully expressed—to be maintained alone, and in its purity within their provinces—and restrain turbulent and unruly spirits—and may likewise put in execution the sentence pronounced against the above mentioned persons—and ratify and confirm the decrees of the synod by their authority.”

The states readily obliged them in this christian and charitable request; for as soon as the synod was concluded, the old advocate Barnevelt was beheaded, who had been a zealous and hearty friend to the remonstrants and their principles, and Grotius condemned to perpetual imprisonment; and because the cited ministers would not promise wholly, and always to abstain from the exercise of their ministerial functions, the states passed a resolution for the banishing of them on pain, if they did not submit to it, of being treated as disturbers of the public peace. And though they only begged a respite of the sentence for a few days, to put their affairs in order, and to provide themselves with a little money to support themselves and families in their banishment, even this was unmercifully denied them, and they were hurried away next morning by four o'clock, as if they had been enemies to the religion and liberties of their country.

Such was the effect of this famous presbyterian synod, who behaved themselves as tyrannically towards their brethren, as any prelatial council whatsoever could do; and to the honour of the church of England it must be said, that they owned their synodical power, and concurred by their deputies, Carleton Bishop of Landaff, Hall, Davenant, and Ward, in condemning the remonstrants, in excommunicating and depriving them, and turning them out of their churches, and in establishing both the discipline and doctrines of Geneva in the Netherlands. For after the council was ended, the remonstrants were every where driven out of their churches, and prohibited from holding any private meetings, and many of them banished on this very account. The reader will find a very particular relation of these transactions, in the learned Gerard Brandt's History of the Reformation of the Low Countries, to which I must refer him.



SECT. V.
Persecutions in Great-Britain.

If we look into our own country, we shall find numerous proofs of the same antichristian spirit and practice. Even our first reformers, who had seen the flames which the papists had kindled against their brethren, yet lighted fires themselves to consume those who differed from them. Cranmer's hands were stained with the blood of several.^[319] He had a share in the prosecution and condemnation of that pious and excellent martyr John Lambert, and consented to the death of Ann Askew, who were burnt for denying the corporal presence; which, though Cranmer then believed, he saw afterwards reason to deny.

In the year 1549, Joan Bocher was condemned for some enthusiastical opinions about Christ, and delivered over to the secular power. The sentence being returned to the council, King Edward VI. was moved to sign a warrant for her being burnt, but could not be prevailed with to do it. Cranmer endeavoured to persuade him by such arguments, as rather silenced than satisfied the young king: so he set his hand to the warrant with tears in his eyes, saying to the archbishop, that if he did wrong, since it was in submission to his authority, he should answer for it to God. Though this struck Cranmer with horror, yet he at last put the sentence in execution against her.

About two years after one George Van Pare, a Dutchman, was accused, for saying, "That God the Father was only God, and that Christ was not very God." And though he was a person of a very holy life, yet because he would not abjure, he was condemned for heresy, and burnt in Smithfield. The Archbishop himself was afterwards burnt for heresy; which, as Fox observed, many looked on as a just retaliation from the providence of God, for the cruel severities he had used towards others.

The controversy about the Popish habits was one of the first that arose amongst the English reformers. Cranmer and Ridley were zealous for the use of them, whilst other very pious and learned Divines were for laying them aside, as the badges of idolatry and antichrist. Amongst these was Dr. Hooper, nominated to the bishoprick of Gloucester; but because he refused to be consecrated in the old vestments, he was by order of council first

silenced, and then confined to his own house; and afterwards, by Cranmer's means, committed to the Fleet prison, where he continued several months.

^[320]In the beginning of Queen Elizabeth's reign, A. C. 1559, an act passed for the uniformity of common prayer, and service in the church, and administration of the sacraments; by which the queen and bishops were empowered to ordain such ceremonies in worship, as they should think for the honour of God, and the edification of his church. This act was rigourously pressed, and great severities used to such as could not comply with it. Parker, Archbishop of Canterbury, made the clergy subscribe to use the prescribed rites and habits; and cited before him many of the most famous Divines who scrupled them, and would allow none to be presented to livings, or preferred in the church, without an intire conformity. He summoned the whole body of the London pastors and curates to appear before him at Lambeth, and immediately suspended 37, who refused to subscribe to the unity of apparel; and signified to them, that within three months they should be totally deprived, if they would not conform. So that many churches were shut up; and though the people were ready to mutiny for want of ministers, yet the archbishop was deaf to all their complaints, and in his great goodness and piety was resolved they should have no sacraments or sermons without the surplice and the cap. And in order to prevent all opposition to church tyranny, the Star Chamber published a decree for sealing up the press, and prohibiting any person to print or publish any book against the queen's injunctions, or against the meaning of them. This decree was signed by the bishops of Canterbury and London.

This rigid and fanatical zeal for habits and coremonies, caused the Puritans to separate from the established church, and to hold private assemblies for worship. But the queen and her prelates soon made them feel their vengeance. Their meetings were disturbed, and those who attended them apprehended, and sent in large numbers, men and women, to Bridewell, for conviction. Others were cited into the spiritual courts, and not discharged till after long attendance and great charges. Subscriptions to articles of faith were violently pressed upon the clergy, and about one hundred of them were deprived, anno 1572, for refusing to submit to them. Some were closely imprisoned, and died in jail, through poverty and want.

And that serious piety and christian knowledge might gain ground, as well as uniformity, the bishops, by order of the queen, put down the prophesyings of the clergy, anno 1574, who were forbid to assemble as they

had done for some years, to discourse with one another upon religious subjects and sermons; and as some serious persons of the laity were used to meet on holidays, or after they had done work, to read the scriptures, and to improve themselves in christian knowledge, the parsons of the parishes were sent for, and ordered to suppress them.

Eleven Dutchmen, who were anabaptists, were condemned in the consistory of St. Paul to the fire, for heresy; nine of whom were banished, and two of them burnt alive in Smithfield. In the year 1583, Copping and Thacker, two Puritan ministers, were hanged for non-conformity. It would be endless to go through all the severities that were used in this reign upon the account of religion. As the queen was of a very high and arbitrary temper, she pressed uniformity with great violence, and found bishops enough, Parker, Aylmer, Whitgift, and others, to justify and promote her measures; who either entered their sees with persecuting principles, or embraced them soon after their entrance, as best befitting the ends of their promotion. Silencings, deprivations, imprisonments, gibbets, and stakes, upon the account of religion, were some of the powerful reasonings of those times. The bishops rioted in power, and many of them abused it to the most cruel oppressions. The cries of innocent prisoners, widowed wives, and starving children, made no impression on their hearts. Piety and learning with them were void of merit. Refusal of subscriptions, and non-conformity, were crimes never to be forgiven. A particular account of these things may be seen in Mr. Neal's history of the Puritans, who hath done some justice to that subject.

I shall only add, that the court of high commission established in this reign, by the instigation of Whitgift, Archbishop of Canterbury, by which the commissioners were impowered to inquire into all misdemeanors, by all such ways and means as they could devise, and thought necessary; to examine persons upon oath, and to punish those who refused the oath by fine or imprisonment, according to their discretion, was an high stretch of the prerogative, and had a very near resemblance to the courts of inquisition; and the cruelties that were practised in it, and the exorbitant fines that were levied by it in the two following reigns, made it the universal abhorrence of the nation, so that it was dissolved by parliament, with a clause that no such court should be erected for the future.

^[321] King James I. was bred up in the kirk of Scotland, which professed the faith and discipline of those called Puritans in England; and though he

blessed God, “For honouring him to be king over such a kirk, the sincerest kirk in the world,” yet, upon his accession to the English throne, he soon shewed his aversion to the constitution of that kirk; and to their brethren, the puritans in England. These were solicitous for a farther reformation in the church, which the bishops opposed, instilling this maxim into the king, ^[322]“No Bishop, no King;” which, as stale and false a maxim as it is, hath been lately trumped up, and publicly recommended, in a sermon on the 30th of January. In the conference at Hampton Court, his Majesty not only sided with the bishops, but assured the puritan ministers, who were sent for to it, that “he had not called the assembly together for any innovations, for that he acknowledged the government ecclesiastical, as it then was, to have been approved by God himself;” giving them to understand, that “if they did not conform, he would either hurry them out of the kingdom, or else do worse.”^[323] And these reasonings of the king were so strong, that Whitgift, Archbishop of Canterbury, with an impious and sordid flattery said, “He was verily persuaded that the king spoke by the spirit of God.”

It was no wonder that the bishops, thus supported by an inspired king, should get an easy victory over the puritans; which possibly they would not have done, had his majesty been absent, and the aids of his inspiration withdrawn; since the archbishop did not pretend that himself or his brethren had any share of it. But having thus gotten the victory, they strove by many methods of violence to maintain it; and used such severities towards the non-conformists, that they were forced to seek refuge in foreign countries. The truth is, this conference at Hampton Court was never intended to satisfy the puritans, but as a blind to introduce episcopacy into Scotland, and to subvert the constitution and establishment of that church.

His majesty, in one of his speeches to his Parliament, tells them, that “he was never violent and unreasonable in his profession of religion.” I believe all mankind will now acquit him of any violent and unreasonable attachment to the protestant religion and liberties. He added in the same speech, it may be questioned whether by inspiration of the spirit, “I acknowledge the Roman church to be our mother church, although defiled with some infirmities and corruptions.” And he did behave as a very dutiful son of that mother church, by the many favours he shewed to the papists during his reign, by his proclamations for uniformity in religion, and encouraging and supporting his bishops in their persecutions of such as differed from, or could not submit to them.

Bancroft, promoted to the Archbishoprick of Canterbury, was, as the historian^[324] calls him, “A sturdy piece,” a cruel and inflexible persecutor, treating the non-conformists with the greatest rigour and severity; and who, as Heylin tells us, ^[325]“was resolved to break them, if they would not bow.” He put the canons and constitutions agreed on A. C. 1603, furiously into execution, and such as stood out against them, he either deprived or silenced. And indeed, as the aforementioned author says, ^[326]“Who could stand against a man of such a spirit, armed with authority, having the law on his side, and the king to his friend? During his being archbishop he deprived, silenced, suspended, and admonished, above three hundred ministers. The violencies he and his brethren used in the high-commission courts, rendered it a public grievance.” ^[327]“Every man must conform to the episcopal way, and quit his hold in opinion or safety. That court was the touchstone, to try whether men were metal for their stamp; and if they were not soft enough to take such impressions as were put upon them, they were made malleable there, or else they could not pass current. This was the beginning of that mischief, which, when it came to a full ripeness, made such a bloody tincture in both kingdoms, as never will be got out of the bishop’s lawn sleeves.”

But nothing displeased the sober part of the nation more, than the publication of the Book of Sports, which the bishops procured from the king, and which came out with a command, enjoining all ministers to read it to their parishioners, and to approve of it; and those who did not, were brought into the high commission, imprisoned, and suspended; this book being only a trap to catch some conscientious men, that they could not otherwise, with all their cunning, ensnare.

^[328]“These, and such like machinations of the bishops,” says my author, “to maintain their temporal greatness, ease, and plenty, made the stones in the walls of their palaces, and the beam in the timber, afterwards cry out, moulder away, and come to nothing; and caused their light to go out offensive to the nostrils of the rubbish of the people.”

Indeed many of the king’s bishops, such as Bancroft, Neal, and Laud, who was a reputed papist in Oxford, and a man of a dangerous turbulent spirit, were fit for any work; and as they do not appear to have had any principles of real piety themselves, they were the fittest tools that could be made use of to persecute those who had. Neal, when he was Bishop of Litchfield and Coventry, prosecuted one Edward Wightman, for broaching

erroneous doctrine, and having canonically condemned him, got the king's warrant for his execution; and he was accordingly burnt in Litchfield. One Legat also was prosecuted and condemned for heresy, by King Bishop of London, and expired in the flames of Smithfield. He denied the divinity of our Saviour, according to the Athanasian mode of explaining it; but as Fuller tells us, he was excellently skilled in scripture, and his conversation very unblameable. But as these sacrifices were unacceptable to the people, the king preferred, that heretics hereafter, though condemned, should silently and privately waste themselves away in prison, rather than to amuse others with the solemnity of a public execution.

In the reign of the Royal Martyr,^[329] the church grew to the height of her glory and power; though such is the fate of all human things, that she soon sickened, languished, and died. Laud, carried all before him, and ruled both church and kingdom with a rod of iron. His beginning and rise is thus described by Archbishop Abbot, his pious and worthy predecessor.

^[330]“His life in Oxford was to pick quarrels in the lectures of the public readers, and to advertise them to the then Bishop of Durham, that he might fill the ears of King James with discontents against the honest men that took pains in their places, and settled the truth, which he called puritanism, in their auditors.

“He made it his work to see what books were in the press, and to look over epistles dedicatory, and prefaces to the reader, to see what faults might be found.

“It was an observation what a sweet man this was like to be, that the first observable act he did, was the marrying the Earl of Devonshire to the Lady Rich, when it was notorious to the world that she had another husband, and the same a nobleman, who had divers children then living by her. King James did for many years take this so ill, that he would never hear of any great preferment of him: insomuch that the Bishop of Lincoln, Dr. Williams, who taketh upon him to be the first promoter of him, hath many times said, that when he made mention of Laud to the King, his Majesty was so averse from it, that he was constrained oftentimes to say, that he would never desire to serve that master, who could not remit one fault to his servant. Well, in the end he did conquer it, to get him to the Bishoprick of St. David's; which he had not long enjoyed, but he began to undermine his benefactor, as at this day it appeareth. The Countess of Buckingham told Lincoln, that St. David's was the man that undermined him with her son.

And verily, such is his aspiring nature, that he will underwork any man in the world, so that he may gain by it.”

^[331]He had a peculiar enmity to Archbishop Abbot, a man of an holy and unblameable life, because he had informed King James that Laud was a reputed papist in Oxford, and of a dangerous, turbulent spirit; and as James I. was wrought up into an incurable animosity against the puritans, “this was thought to be fomented by the papists, whose agent Bishop Laud was suspected to be: and though the king was pleased with asservations to protest his incentive spirit should be kept under, that the flame should not break out by any preferment from him; yet getting into Buckingham’s favour, he grew into such credit, that he was thought to be the bellows which blew those flames that were every where rising in the nation.

“For the papists used all the artifices they could to make a breach between the king and his people; and to accomplish this, amongst other methods, they sowed the seeds of division betwixt puritan and protestant; for all those were puritans, with this high grown Armenian popish party, that held in judgment the doctrine of the reformed churches, or in practice live according to the doctrine publicly taught in the church of England. And they attributed the name of protestant,

“1. To such papists, as either out of policy, or by popish indulgence, held outward communion with the church of England.

“2. To such protestants, as were either tainted with, or inclinable to their opinions.

“3. To indifferent men, who embrace always that religion, that shall be commanded by authority. Or,

“4. To such neutrals as care for no religion, but such as stands with their own liking; so that they allow the church of England the refuse both of their religion and ours.”

Thus far Wilson: and though Laud might be, as the same historian relates, of “a motley form of religion” by himself, yet the whole course of his tyrannical administration gave but too just reason for suspicion, that his strongest inclinations were towards Rome and Popery.^[332] The first parliament of Charles I. re-assembled at Oxford in 1625, complained that Popery and Arminianism were countenanced by a strong party in the kingdom; and Neal Bishop of Winchester, and Laud, then of St. David’s, were chiefly looked upon as the heads and protectors of the Arminians, nay, as favourers of Popery.

The reasons of this suspicion were many. He was drove on by a rigid, furious, and fanatical zeal for all the ceremonies of the church of England, even for such as seemed the least necessary. And not content with these, he promoted and procured the introduction of many others, which never had been enjoined by lawful authority.

January 16, 1630, he consecrated, as Bishop of London, St. Catharine Creed Church, with all the fopperies of a popish superstition. ^[333]“At the bishop’s approach to the west door, some that were prepared for it, cried with a loud voice, “Open, open, ye everlasting doors, that the king of glory may enter in.” Immediately enters Laud. Then falling down upon his knees, with his eyes lifted up, and his arms spread abroad, he cried out “This place is holy: the ground is holy: in the name of the Father, Son, and Holy Ghost, I pronounce it holy.” Then he took up some of the dust, and threw it up into the air several times, in his going up towards the chancel. When they approached near to the rail, and communion table, the bishop bowed towards it several times; and returning, they went round the church in procession, singing the 100th psalm; after that the 19th psalm; and then said a form of prayer, “Lord Jesus Christ, &c.” concluding, “We consecrate this church, and separate it unto thee as holy ground, not to be profaned any more to common use.”

“After this the bishop being near the communion table, and taking a written book in his hand, pronounced curses upon those that should afterwards profane that holy place, by musters of soldiers, or keeping profane law courts, or carrying burdens through it; and at the end of every curse he bowed towards the east, and said, “Let all the people say,” Amen. After this he pronounced a number of blessings upon all those who had any hand in framing and building of that sacred and beautiful church, and those that had given, or should hereafter give any chalices, plate, ornaments, or utensils; and at the end of every blessing he bowed towards the East, saying, “Let all the people say,” Amen.

“After this followed the sermon; which being ended, the bishop consecrated and administered the sacrament in manner following.

“As he approached the communion table, he made many lowly bowings, and coming up to the side of the table, where the bread and wine were covered, he bowed seven times; and then, after the reading of many prayers, he came near the bread, and gently lifted up the corner of the napkin wherein the bread was laid; and when he beheld the bread, he laid it down

again, flew back a step or two, bowed three several times towards it; then he drew near again, and opened the napkin, and bowed as before. Then he laid his hand on the cup, which was full of wine, with a cover upon it; which he let go, then went back, and bowed thrice towards it. Then he came near again; and lifting up the cover of the cup, looked into it, and seeing the wine, he let fall the cover again, retired back, and bowed as before. Then, he received the sacrament, and gave it to some principal men; after which many prayers being said, the solemnity of the consecration ended.”

In this manner have I seen high mass celebrated pontifically. And from whence did the pious Laud learn all these kneelings, bowings, throwings of dust, cursings, blessings, and adorations of the sacramental elements; from the sacred scriptures, or the writings of the primitive fathers? No: it was an exact copy of the Roman Pontifical, which was found in his study; and though he alledged in his defence that it was a form communicated by Bishop Andrews to him, it was ridiculous, since Andrews himself had it from the same pontifical.

^[334]The next year, 1632, Henry Sherfield, Esq. recorder of Sarum, was fined in the Star Chamber £500. on the following occasion. There was in the city of Salisbury a church called St. Edmund’s, whose windows were painted with the history of the creation; where God the Father was represented in the form of an old man, creating the world during the first six days, but painted sitting on the seventh, to denote the day of rest. In expressing the creation of the sun and moon, the painter had put in God’s hand a pair of compasses, as if he was going to measure them. The recorder was offended with this profaneness; and, by an order of vestry, took down those painted glasses, and broke some of the panes with his stick, and ordered others to be put up in their room. Upon this an information was exhibited against him in the Star Chamber, by the attorney-general; where Sherfield was for this reason charged with being ill-affected to the discipline of the Church of England, and the government thereof by bishops, because he had broken excellent pictures of the creation, and fined for his crime in the sum above mentioned, committed to the Fleet, removed from his recordership, and bound to his good behaviour. Nor was Laud ashamed, in justification of such pictures, to urge, as the papists continually do, that place in Dan. vii. 9, in which God is described as “the ancient of days;” shewing himself a worse divine, or a more popishly affected one, than the Earl of Dorset, who then sat with him in the court, and said, that by

that text was meant “the eternity of God, and not God to be pictured as an old man, creating the world with a pair of compasses. But I wish” added the Earl, “there were no image of the Father, neither in the church, nor out of the church; for, at the best, they are but vanities and teachers of lies.”

In 1633,^[335] Laud was made Archbishop of Canterbury; and having observed that the placing the communion table in the body of the church, or at the entrance of the chancel, was not only a prostitution of the table to ordinary and sordid uses, but the chancel looked like an useless building, fit only for a schooling and parish-meeting, though originally designed for the most solemn office of religion; to redeem these places, as he termed it, from profaneness, and restore them to the primitive use of the holy sacrament, the archbishop used his utmost diligence to remove the communion table from the body of the church, and fix it at the upper end of the chancel, and secure it from the approach of dogs, and all servile uses, by railing it in, and obliging the people to come up to those rails to receive the sacrament with more decency and order. This affair, says Lord Clarendon, he prosecuted more passionately than was fit for the season, and created disputes in numberless places;^[336] so that the high commission had frequent occasions to punish the ministers, who were suspected of too little zeal for the Church of England. And as since the reformation the altars were changed into communion tables, and placed in the middle of the chancel, to avoid superstition; many imagined, and that with too much reason, the tables were again turned into altars with intent to revive a superstitious worship.

In the year 1634,^[337] he set up and repaired Popish images in the glass windows of his chapel at Lambeth; particularly one of God the Father, in the form of a little old man. This Laud himself owned, that he repaired the windows at no small cost, by the help of the fragments that remained, and vindicated the thing. He introduced also copes, candlesticks, tapers, and such like trumperies. So that L’Estrange, whom no man will charge with partiality against the archbishop, says of him: ^[338]“The Archbishop of Canterbury stands aspersed, in common fame, as a great friend at least, and patron of the Romish Catholics, if he were not of the same belief. To which I answer by concession: true it is, he had too much and long favoured the Romish faction—though not the Romish faith. He tampered indeed to introduce some ceremonies, bordering upon superstition, disused by us, and abused by them. From whence the Romanists collected such a good

disposition in him to their tenets, as they began not only to hope, but in good earnest to cry him up for their proselyte.”

Under the year 1635,^[339] the author of the notes to the Complete History tells us, that one of the great offences taken by wise and good men against the archbishop, was the new attempt of reconciling the Church of England to the Church of Rome. The design was to accommodate the articles of the Church of England to the sense of the Church of Rome, for the reconciliation of the two churches. Davenport, an English Franciscan Friar, published a book to this purpose, under the name of Franciscus de Sancta Clara, which was dedicated to the king, and said to have been directed to Archbishop Laud. And it was an article objected against him, that for the advancement of popery and superstition in this realm, he had wittingly and willingly harboured and relieved divers popish priests and jesuits, and particularly Sancta Clara, who hath written a popish and seditious book, wherein the thirty-nine articles of the Church of England are much traduced and scandalized, the said archbishop having divers conferences with him, while he was writing the said book. The archbishop did not seem to deny his acquaintance with the man, nor with the design of the book; but was rather afraid the book would not answer the design.

The same author farther adds, that the best observations on this matter were made by Mr. Rous, in a speech against Dr. Cosin, March 16, 1640, “A second way by which this army of priests advanceth this popish design, is the way of treaty. This hath been acted both by writings and conference. Sancta Clara himself says, ‘*Doctissimi eorum, quibuscunque egi.*’ So it seems they have had conference together. And Sancta Clara, on his part, labours to bring the articles of our church to popery, and some of our side labour to meet him in the way. We have a testimony that the great arch-priest himself hath said: ‘It were no hard matter to make a reconciliation, if a wise man had the handling of it.’”

Such was the good opinion which the papists had of Laud, and of his inclinations to popery, that it is certain they offered him a cardinal’s cap. Eachard and others say he refused it.

^[340] But the Lord Wiquefort, as cited by Mr. Oldmixon, informs us, in his Treatise of the Ambassador and his Function, that Laud treated with Count Rosetti, the popish agent in England, for a pension of 48,000 livres a year; which if the Pope would have settled upon him, he would not only have

accepted the cardinal's cap, but have gone to Rome, and have dwelt with the Pope and his cardinals as long as he lived.

The bitter and relentless fury with which he treated the puritans, and others, who were friends to the Church of England, and some of the best protestants in the kingdom, is a demonstration that he was more papist than protestant. Of the puritans he used to say, as Heylin tells us, that "they were as bad as the papists;" and indeed he used them in a much worse manner.

In the Considerations he presented to the King, "Anno 1629, for the better securing the Church Government," he prayed his Majesty, amongst other things, that Emanuel and Sydney Colleges in Cambridge, which are the nurseries of puritanism, may from time to time be provided of grave and orthodox men for their governors. In the several accounts of his province, which he sent to the King, we read almost of nothing but conformity and non-conformity to the church, refractory people to the church, peevish and disorderly men, for preaching up the observation of the sabbath, breach of church canons, wild, turbulent preachers, for preaching against bowing at the name of Jesus, and in disgrace of the common prayer book; and in consequence of these things, presentments, citations in the high commission court, censures, suspensions from preaching, and other like pious methods, to reduce and reform them.^[341] And so grievous and numerous were the violencies he exercised on these and the like occasions, in the star chamber, high commission, and spiritual courts, that many excellent and learned men were forced to leave the kingdom, and retire to the West-Indies. And yet even this was unmercifully forbidden them. For in the year 1637, a proclamation was issued to stop eight ships going to New England; and another warrant from the council, of which Laud was one, to the Lord Admiral, to stop all ministers unconformable to the discipline and ceremonies of the church, who frequently transport themselves to the summer islands, and other plantations; and that no clergyman should be suffered to go over, without approbation of the Lord Archbishop of Canterbury, and Bishop of London. These prohibitions, as the Complete Historian observes, increased the murmurs and complaints of the people thus restrained, and raised the cries of a double persecution, to be vexed at home, and not suffered to seek peace or refuge abroad.

But how were the papists treated all this while? why with brotherly mildness and moderation. For whilst these severities were exercising

against protestants, there were many pardons and indulgencies granted to popish offenders. The papists were in reality his favourites and friends.

On July 7, 1626,^[342] Montague's books, intitled, "An Appeal to Cæsar," and "A Treatise of the Invocation of Saints," were called in question by the House of Commons, and reported to contain false, erroneous, papistical opinions. For instance: "That the Church of Rome hath ever remained firm, upon the same foundation of sacraments and doctrines instituted by God. That the controverted points (between the Church of England and that of Rome) are of a lesser and inferior nature, of which a man may be ignorant, without any danger of his soul at all. That images may be used for the instruction of the ignorant, and excitation of devotion."^[343] That there are tutelar saints as well as angels." The House of Commons voted his books to be contrary to the established articles; to tend to the King's dishonour, and to the disturbance of church and state. And yet this zealous protestant Bishop Laud was, as the Complete Historian assures us, "a zealous friend to the person and opinions of Mr. Montague;"^[344] and made this entry in his diary on this affair. "Jan. 29. Sunday. I understand what D. B. had collected concerning the Cause, Book, and Opinions of Richard Montague, and what R. C. had determined with himself therein. Methinks I see a cloud arising, and threatening the Church of England;" viz. because the popish opinions of this turbulent priest were censured as contrary to the established articles of the church of England. He was fit to be made one of Laud's brethren; and accordingly was preferred to the Bishoprick of Chichester, anno 1629.

^[345] The author of the Remarks on the Complete Historian farther tells us, under the year 1632, that great prejudice was taken against some of Bishop Laud's churchmen, by one of them protesting to die in the communion of the Church of Rome; Dr. Theodore Price, prebendary of Winchester, and sub-dean of Westminster. Mr. Prynne affirmed, that this man, very intimate with the archbishop, and recommended by him specially to the King to be a Welch Bishop, in opposition to the Earl of Pembroke, and his chaplain Griffith Williams, soon after died a reconciled papist, and received extreme unction from a priest. The remarker adds, "It is strange partiality in the Oxford Historian, to question this matter, when Laud himself, in his MS notes upon that relation given by Mr. Prynne, doth by no means deny the fact, but excuses the using his interest for him; and says, 'he was more inward with another bishop, and who laboured his preferment more than I.'".....

In the same year, 1632,^[346] Mr. Francis Windbank was made secretary of state by the interest of Bishop Laud, who hath entered it in his Diary. “1632. June 15. Mr. Francis Windbank, my old friend, was sworn Secretary of State; which place I obtained for him of my gracious master King Charles.” He proved so much a creature of the queen’s, and such an advocate and patron of all suffering papists and jesuits, that he had the character of a papist, and brought a very great odium upon Laud who preferred him. That which created him the more envy, was the turning out the old secretary, Sir John Coke, who was displaced by Laud “for his honest firmness against popery,” as the author of the remarks on the complete historian assures us, and for his hatred and opposition to the jesuits. This job was labouring for three years’ space and at last obtained by Laud’s influence on the King.

These instances, and many others which might be mentioned, are sufficient to discover what sort of a protestant Laud was, and how he stood affected to the church of Rome. I shall now consider his character for piety, which was exactly of a piece with his protestantism.

He was a creature of the Duke of Buckingham, who was one of the lewdest men in the kingdom. This man, as Archbishop Abbot said of him, was the only inward counsellor with Buckingham; “sitting with him sometimes privately whole hours, and feeding his humour with malice and spite.” His marrying the Earl of Devonshire to the Lady Rich, though she had another husband, is a glorious argument of his regard to the laws of God, and particularly of his reverence for the seventh commandment.

He gave, also, notable proofs of his zeal to maintain the honour of the fourth. The liberties taken at Wakes, or annual feasts of the dedication of churches, on Sundays, were grown to a very high excess, and occasioned great and numerous debaucheries. The lord chief justice Richardson,^[347] in his circuit, made an order to suppress them, Laud complained of this to the king, as an intrusion upon the ecclesiastical power; upon which Richardson was severely reprimanded, and forced to revoke the order. The justices of the peace upon this drew up a petition to the king, shewing the great inconveniences which would befall the country, if those revels, church-ales and clerk-ales, upon the Lord’s-day, were permitted. But before the petition could be delivered, Laud published by the king’s order, the declaration concerning recreations on the lord’s-day, “out of a pious care for the service of God,” as that declaration expresses it towards the conclusion of it. However, this “pious care” of Laud and the king was resented by the

soberest persons in the nation, as irreligious and profane, as those revels had been the occasion of an “infinite number of inconveniences;” and the declaration for publishing the lawfulness of them through all parish-churches, ^[348]“proved a snare to many ministers, very conformable to the church of England, because they refused to read the same publicly in the church, as was required: For upon this many were suspended, and others silenced from preaching.” An instance of great piety, unquestionably this; first to establish the profanation of the Lord’s-day by a public order, and then to persecute and punish those ministers who could not, in conscience, promote the ends of “so godly a zeal,” by reading the king’s order for wakes and revels on the Lord’s-day out of that very place, where perhaps they had been just before publishing the command of the most high God, not to profane but to keep it holy.

His treatment of Mr. Prynne may also be added, as another instance of this prelate’s exemplary love of virtue, and pious zeal for the service of God. ^[349]That gentleman published in the year 1632 his *Histrio-Mastix*, or book against stage-plays; in which, with very large collections, he exposed the liberties of the stage, and condemned the lawfulness of acting. Now, because the court became greatly addicted to these entertainments, and the queen was so fond of them, as meanly to submit to act a part herself in a pastoral; therefore this treatise against plays “was suspected” to be levelled against the court and the queen; and it “was supposed an innuendo,” that in the table of the book this reference was put, “women actors notorious whores.” Now mark the christian spirit, the burning zeal of the pious Laud. Prynne was prosecuted in the star chamber by Laud’s procurement, who shewed the book to the king, and pointed at the offensive parts of it; and employed Heylin to pick out all the virulent passages, and “N. B. to give the severest turn to them;” and carried these notes to the attorney general for matter of information, and urged him earnestly to proceed against the author.

Prynne was accordingly prosecuted; and being sufficiently convicted by suspicions, suppositions, and innuendoes, he was sentenced, Laud sitting as one of his judges, to have his book burnt in the most public manner; to be himself put from the bar, and made for ever incapable of his profession; to be excluded from the society of Lincoln’s Inn, and degraded in Oxford; to stand in the pillory in Westminster and Cheapside, and lose both his ears, one in each place; with a paper on his head, declaring his offence to be “an

infamous libel” against both their majesties, the state and the government; to pay a fine of five thousand pounds, and to suffer perpetual imprisonment. Good God! what cruelty and barbarity is here? what insolent sporting with men’s fortunes, liberties, and bodies? What was the occasion of this bloody severity? A gentleman’s writing against the abuses of plays. Who ordered the prosecution against him for writing against plays? Archbishop Laud. Who sat at the head of his judges, who pronounced this infamous sentence? Archbishop Laud. Excellent archbishop! how christian, how commendable his zeal! How gloriously must religion flourish under his archiepiscopal inspection, and by his becoming “the most reverend” abettor, encourager, and great patron of plays on week days, and revels on sundays?

^[350]’Tis true, he was for building colleges, repairing churches, settling statutes for cathedrals, annexing commendams to small bishoprics, settling of tithes, building hospitals, aggrandizing the power, and encreasing the riches of the clergy; and these things may be esteemed arguments of his piety, and of “the greatness of his soul above the ordinary extent of mankind:” This I do not take on me to deny; but it puts me in mind of the Carthusian monk, mentioned by Philip de Comines, in his “Commentaries of the Neapolitan war:” Comines was looking on the sepulchre of John Galeacius, first duke of Milan of that name, in the Carthusian church of Pavia, who had governed with great cruelty and pride, but had been very liberal in his donations to the church and clergy. As he was viewing it, one of the monks of the order commended the virtue, and extolled the piety of Galeacius. Why, says Comines, do you thus praise him as a saint? You see drawn on his sepulchre the ensigns of many people, whom he conquered without right. “Oh,” says the monk, “it is our custom to call them saints, that have been our benefactors.”

But let us pass on from his piety to his christian tenderness and compassion, of which there are many very remarkable instances on record.

^[351]The case of Mr. Prynne, I have already mentioned. Another instance is that of the Rev. Mr. Peter Smart, who, July 27, 1628, preached on the Lord’s Day against the innovations brought by Dr. Cosins into the cathedral church of Durham; such as fonts, candles, pictures, images, copes, singings, vestments, gestures, prayers, doctrines, and the like. Cosins demeaned himself during the sermon very turbulently, and immediately afterwards summoned him before the high commission; by whom he was censured by two acts of sequestration, and one of suspension. After this they unlawfully

transmitted him to London, to answer there in the high commission, for the same cause, before the inquisitors general for the kingdom; who sent him back again with proper instructions to the high commission at York, where they fined him £500. committed him to jail, detained him under great bonds, excommunicated him, sequestered all his ecclesiastical livings, degraded him, “ab omni gradu et dignitate clericali;” by virtue of which degradation, his prebendship and parsonage were both taken from him, and himself kept in jail. By these oppressions his life was several times endangered, and himself and children lost and spent above fourteen thousand pounds of real estate, whereby they were utterly undone. The hand of Laud was in all this evil, as appears by the book published by Mr. Smart himself, with the title of “Canterbury’s Cruelty.”

The truth is, many of the most worthy and learned protestant gentlemen and divines were treated by him with the utmost indignity and barbarity; some of them dying in jail, and others being made to undergo the most cruel bodily punishments, for daring to oppose his arbitrary and superstitious proceedings. No man of compassion can read his treatment of Dr. Leighton, without being shocked and moved in the same tender manner as the House of Commons were, who several times interrupted, by their tears, the reading of the Doctor’s petition, which I shall here present my reader with entire, and leave him to form what character he pleases of the man that could contrive and carry on such a scene of barbarous and execrable cruelty.

To the Honourable and High Court of Parliament.

The humble Petition of ALEXANDER LEIGHTON, Prisoner in the Fleet;

HUMBLY SHEWETH,

“How your much and long distressed petitioner, on the 17th of February gone ten years, was apprehended in Black-Fryers, coming from the sermon, by a high commission warrant (to which no subject’s body is liable), and thence, with a multitude of staves and bills, was dragged along (and all the way reproached by the name of jesuit and traitor) till they brought him to London-House, where he was shut up, and, by a strong guard, kept (without food) till seven of the clock, till Dr. Laud, then Prelate of London, and Dr. Corbet, then of Oxford, returned from Fulham-House, with a troop attending. The jailer of Newgate was sent for, who came with irons, and

with a strong power of halberts and staves; they carried your petitioner through a blind, hollow way, without pretence or examination; and opening up a gate into the street (which some say had not been opened since Queen Mary's days) they thrust him into a loathsome and ruinous dog-hole, full of rats and mice, which had no light but a little grate; and the roof being uncovered, the snow and rain beat in upon him, having no bedding, nor place to make a fire, but the ruins of an old smoky chimney; where he had neither meat nor drink, from the Tuesday at night, till the Thursday at noon. In this woeful place and doleful plight, they kept him close, with two doors shut upon him, for the space of fifteen weeks; suffering none to come at him, till at length his wife was only admitted.

"The fourth day after his commitment, the high commission pursuivants came (under the conduct of the sheriffs of London) to your petitioner's house, and a mighty multitude with them, giving out that they came to search for jesuit's books. There these violent fellows of prey laid violent hands upon your petitioner's distressed wife, with such barbarous inhumanity, as he is ashamed to express; and so rifled every soul in the house, holding a bent pistol to a child's breast of five years old, threatening to kill him, if he would not tell where the books were; through which the child was so affrighted, that he never cast it. They broke open presses, chests, boxes, the boards of the house, and every thing they found in the way, though they were willing to open all. They, and some of the sheriffs' men, spoiled, robbed, and carried away all the books and manuscripts they found, with household stuff, your petitioner's apparel, arms, and other things; so that they left nothing that liked them; notwithstanding your petitioner's wife told the sheriffs, they might come to reckon for it. They carried also a great number of divers of your petitioner's books, and other things, from one Mr. Archer's house, as he will testify.

"Farther, your petitioner being denied the copy of his commitment, by the jailor of Newgate, his wife, with some friends, repaired to the sheriff, offering him bail, according to the statute in that behalf; which being shewed by an attorney at law, the sheriff replied, that he wished the laws of the land, and privileges of the subject, had never been named in the parliament, &c. Your petitioner (having thus suffered in body, liberty, family, estate, and house) at the end of fifteen weeks was served with a subpoena, on information laid against him by Sir Robert Heath, then his Majesty's attorney general; whose dealing with your prisoner was full of

cruelty and deceit. In the mean time it did more than appear, to four physicians, that poison had been given him in Newgate; for his hair and skin came off in a sickness (deadly to the eye) in the height whereof, as he did lie, censure was passed against him in the star chamber, without hearing (which had not been heard of) notwithstanding of a certificate from four physicians, and affidavit made by an attorney, of the desperateness of the disease. But nothing would serve Dr. Laud, but the highest censure that ever was passed in that court to be put upon him; and so it was to be inflicted with knife, fire, and whip, at and upon the pillory, with ten thousand pounds fine; which some of the lords conceived should never be inflicted, only it was imposed (as on a dying man) to terrify others. But the said doctor and his combinants, caused the said censure to be executed the 26th day of November following (with a witness) for the hang-man was armed with strong drink all the night before in prison, and, with threatening words, to do it cruelly. Your petitioner's hands being tied to a stake (besides all other torments) he received thirty-six stripes with a treble cord; after which, he stood almost two hours on the pillory, in cold frost and snow, and suffered the rest; as cutting off the ear, firing the face, and slitting of the nose; so that he was made a theatre of misery to men and angels." [Here the compassion of the house of commons was so great, that they were generally in tears, and ordered the clerk to stop reading twice, till they had recovered themselves.] "And being so broken with his sufferings, that he was not able to go, the warden of the Fleet would not suffer him to be carried in a coach: but he was forced to go by water, to the farther endangering of his life; returning to the jail after much harsh and cruel usage, for the space of eight years, paying more for a chamber than the worth of it (having not a bit of bread, nor a drop of water allowed). The clerk of the Fleet, to top up your petitioner's sufferings, sent for him to his office, and without warrant, or cause given by your petitioner, set eight strong fellows upon him, who tore his clothes, bruised his body, so that he was never well, and carried him by head and heels to that loathsome and common gaol; where, besides the filthiness of the place, and vileness of the company, divers contrivances were laid for taking away the life of your petitioner, as shall manifestly appear, if your honours will be pleased to receive and peruse a schedule of that subject.

"Now the cause of all this harsh, cruel, and continued ill usage, unparalleled yet upon any one since Britain was blessed with christianity,

was nothing but a book written by your petitioner, called “Sion’s Plea against the Prelacy; and that, by the call of divers and many good Christians in the parliament time, after divers refusals given by your petitioner; who would not publish it being done, till it had the view and approbation of the best in the city, country, and university, and some of the parliament itself: In witness whereof he had about 500 hands; for revealing of whose names he was promised more favors by Sir Robert Heath than he will speak of: But denying to turn accuser of his brethren, he was threatened with a storm, which he felt to the full; wherein (through God’s mercy) he hath lived, though but lived; choosing rather to lay his neck to the yoke for others, than to release himself by others’ sufferings.

“Farther, the petitioner was robbed of divers goods, by one Lightborn, Graves, and others, officers and servants of the Fleet, amounting towards the value of thirty pounds, for which Lightborn offered composition (by a second hand) upon the hearing of the approach of parliament; but your petitioner (notwithstanding his necessity) refused to hearken to any such illegal and dangerous way. To innumerate the rest of your petitioner’s heavy pressures, would take up a volume; with which he will not burden your honours, till further opportunity.

“And therefore, he humbly and heartily entreateth, that you would be graciously pleased to take this his petition into your serious thoughts, and to command deliverance, that he may plead his own cause, or rather Christ’s, and the state’s. As also to afford such cost and damages as he has suffered in body, estate, and family; having been prisoner (and that many times) in the most nasty prisons, eleven years, not suffered to breathe in the open air: to which, give him leave to add his great sufferings in all those particulars, some sixteen years ago, for publishing a book, called, ‘The Looking-Glass of Holy War.’

“Farther, as the cause is Christ’s and the states, so your petitioner conceiveth (under correction) that the subject of the book will be the prime and main matter of your agitation, to whose wisdom he hopeth the book shall approve itself.

“Also your petitioner’s wearing age, going now in seventy-two years, together with the sicknesses and weakness of his long distressed wife, require a speedy deliverance.

“Lastly, the sons of death, the jesuits and jesuited, have so long insulted in their own licentious liberty, and over the miseries of your servant, and

others; who, forbearing more motives, craves pardon for his prolixity, being necessitated thereto from the depth and length of his miseries. In all which he ceaseth not to pray, &c. and,

“Kisseth your hands.”

PROV. xxiv. 11.

“Wilt thou not deliver them that are drawn unto death, and those that are ready to be slain?”

When this merciless sentence on Leighton was pronouncing, Laud stood up in public court, and “pulled off his cap, and gave God thanks for it;” and in his diary he makes this remark on the execution, without one word to discover that his bowels yearned, or his heart relented. “Friday, Nov. 16. He (Leighton) was severely whipped; and being set in the pillory, he had one of his ears cut off, one side of his nose slit, and branded on one cheek with a red-hot iron. And on that day sevensight his sores upon his back, ear, nose and face, not being cured, he was whipped again at the pillory in Cheapside, and there had the remainder of his sentence executed upon him, by cutting off the other ear, slitting the other side of his nose, and branding the other cheek.”

These, and the like instances are specimens of this most reverend prelate’s humanity, compassion, and christian moderation. I shall only consider him in one view more, viz. his constant regard to the laws and liberties of his country.

He justified, and did all he could to support Charles I. in all the illegal and arbitrary measures of his government. In 1626, after he had dissolved his Parliament, because they were too intent upon the redress of grievances, though they had voted four subsidies, and three fifteenths, he resolved to raise money by the illegal method of a loan. And to promote this, who so fit as Laud; who, with others of his brethren, were, as the complete historian expresses it, unhappily “engaged in the interest of Buckingham, and very forward in those measures which the king unfortunately took.” Accordingly Laud received a command from the king to draw up instructions to shew the urgency of the king’s affairs, and his occasions of supply. These instructions Laud soon got ready; and the king sent them as letters of precept to the two archbishops, to be communicated to their suffragans, to be published in all the parishes of the kingdom. This was justly looked upon as a stratagem of state to promote the raising of money without a parliament, and Laud was

employed as the fittest tool to promote these arbitrary measures of the king. The papists joined with the bishops, and were very forward in the loan: whilst the puritans were backward in it; and some of the best gentlemen in the kingdom, upon their refusal to lend money, were immediately committed to several jails.

Besides this, the court had their parsons to preach up absolute obedience to the king's commands. Sibthorp, in his sermon at Northampton, laid it down as gospel, that "It is the king's duty to direct and make laws; that he doth whatever pleaseth him; and that it is the subject's duty to yield a passive obedience." Manwaring, in a sermon, spoke more plainly, and affirmed, that "the king was not bound to observe the laws of the realm concerning the subject's rights and liberties; but that his royal will and command, in imposing loans and taxes, without common consent of Parliament, doth oblige the subject's conscience, upon pain of eternal damnation;" and that those who refused the loan, became guilty of impiety, disloyalty, and rebellion. And yet infamous as this doctrine was, and subversive of all the laws of the kingdom, Laud was their patron and advocate; and in contempt of the censure of the House of Lords on Manwaring, gave him first as his reward a good benefice, and afterwards advanced him to the Bishoprick of St. David. And because this parliament, which had censured Manwaring, had also complained of Laud himself, and passed a vote against innovations in religion, and against such as should counsel and advise the levying of tonnage and poundage without grant of parliament; Laud, out of his great love for the liberties of the kingdom, advised the king to dissolve it; which he accordingly did, to the great discontent of the nation in general.

Another illegal project for raising money, was by a tax to provide and maintain a certain number of ships to guard the seas; and writs were sent all over the kingdom, An. 1636, for this purpose. Laud was peculiarly active in this affair; and as several persons refused to pay the sums they were rated at, they were summoned before the council table, where they were brow-beaten, and sentenced to jail by Laud, and others of the council.^[352] Laud acknowledges he gave his vote with the rest, and he had an hand in these and almost all other illegal pressures for ship-money; and in his diary he tells us, that "Dec. 5, 1639. A resolution was voted at the council board," when he was present, "to assist the king in extraordinary ways, if the parliament should prove peevish, and refuse, &c."

^[353]The endeavouring arbitrarily to reduce the kirk of Scotland to the discipline of the church of England, was also by Laud's persuasion and advice; who was ordered by the king to hold continual correspondence with the bishops and council of Scotland, and to take with them the necessary measures to accomplish the design. ^[354]The Scots bishops were so lifted up, says Burnet, with the king's zeal, and so encouraged by Archbishop Laud, that they lost all temper. And when the violent measures that were used to impose the liturgy, &c. drove the Scots to an open rupture, he forwardly procured an order of council, directed to the two archbishops, to write their several letters to the bishops, that they might incite their clergy to assist the king to reduce the Scots. Laud accordingly wrote to his several suffragans, and raised by the clergy a very great sum on this occasion. The queen also wrote letters to promote contributions amongst the Roman catholics, to further the same good cause. So that Laud and his clergy, the queen and her papists, joined hand in hand to destroy or enslave the protestants of Scotland; who rose in their own defence, and to preserve themselves from the arbitrary measures of this tyrannical archpriest.

But it would be endless to reckon up all the instances of his illegal proceedings. He was a confederate with all the enemies of the liberties of these kingdoms, and pushed on the unhappy king to such fatal measures, as at last produced the civil wars and the subversion of the constitution. He was chief counsellor and minister after Buckingham's death; so that as Sir Edward Deering said of him, to the parliament, "Our manifold griefs do fill a mighty and vast circumference, yet so that from every part our lines of sorrow do lead unto him, and point at him the centre, from whence our miseries in this church, and many of them in the commonwealth, do flow." Sir Harbottle Grimstone was more severe, who called him, "The sty of all pestilential filth—The great and common enemy of all goodness, and good men—A viper near his majesty's person, to distill poison into his sacred ears."

These and the like violences of Laud and his creatures, drew down the just vengeance of the parliament on his head, and involved the church of England itself in his ruin. Bishops and common prayer were now no more. The church was formed after a quite different model, and the presbyterian discipline received and established, both the lords and commons taking the solemn league and covenant, which was intended for the utter abolishing prelatical government. The writers of the church party think this an

everlasting brand of infamy upon the presbyterians. But how doth this throw greater infamy upon them, than the subversion of presbytery in Scotland, and the imposing canons and common prayer on that nation, doth on Laud and his creatures? If the alteration of the established religion, in any nation, be a crime in itself, it is so in every nation; and I doubt not but the Scotch presbyterians, think that that archbishop, and the prelatical party, acted as unjustly, illegally, and tyrannically, in introducing the English form of church government and worship into Scotland, contrary to their former settlement, and the inclination of almost the whole nation, as the high-church party can do with respect to the presbyterians, for altering the form of the establishment in England; And, indeed, the same arguments that will vindicate the alterations made in Scotland by the king and the bishops, will vindicate those made in England by the parliament and the presbyterians.

^[355]It would have been highly honourable to the presbyterian party, had they used their power, when in possession of it, with moderation, and avoided all those methods of persecutions and suspensions they had themselves felt the effects of in former times. But to do them justice, they had no great inclination for moderate measures, or allowing any form of religion but their own; as appears from the larger catechism of the Westminster divines, approved by the general assembly of the kirk of Scotland; in which the “tolerating a false religion” is ranked amongst the sins forbidden in the second commandment. And accordingly as soon as they came into the church, all others must out who would not comply, and submit to sequestrations and imprisonments.

“The solemn league and covenant” was imposed, and rigorously exacted of all people, as they would escape their brand and penalty of malignants. Many of the episcopal clergy, both in the city and country, were expelled their livings; though by a generosity, not afterwards imitated by them, provision was made for the support of their wives and children. The lord-mayor, aldermen, and common-councilmen of London, presented a remonstrance to the parliament, desiring a strict course for suppressing all private and separate congregations; that all anabaptists, heretics, &c. as conformed not to the public discipline, may be declared and proceeded against; that all be required to obey the government settled, or to be settled; and that none disaffected to the presbyterian government, be employed in any place of public trust.

An ordinance of parliament was also made; by which every minister that should use the common prayer, in church or family, was to forfeit five pounds for the first time, ten pounds for the second, and to suffer a year's imprisonment for the third. Also every minister, for every neglect of the directory, was to pay forty shillings; and for every contempt of it, by writing or preaching, to forfeit, at the discretion of those before whom he was convicted, any sum not under five pounds, nor above fifty pounds. The parliament also appointed elderships to suspend, at their discretion, such whom they should judge to be scandalous, from the sacrament, with a liberty of appeal to the classical eldership, &c. They set up, also, arbitrary rules about the examination and ordination of ministers by Triers, who were to be sound in faith, and such as usually received the sacrament. And in these things they were quickened by the Scots, who complained that reformation moved so slowly, and that sects and errors encreased, and endeavours were used for their toleration. Great restraints also were put upon the liberty of the press, by several ordinances made for that purpose. And, to say the truth, when they once got presbytery established, they used the same methods of suspensions, sequestrations and fines, that the prelatical party had done before, though not with equal severity; and were as zealous for uniformity in their own covenant and discipline, as the bishops were for hierarchy, liturgy, and ceremonies.

^[356] But the triumphs of the presbytery and covenant were but short. Upon the restoration of the “royal wanderer,” Charles II. prelacy immediately revived, and exerted itself in its primitive vigor and severity. In his majesty's first declaration to his loving subjects, he was pleased to promise “a liberty to tender consciences, and that no man should be disquieted or called in question for differences of opinion in matters of religion; and that he would consent to an act of parliament for the full granting that indulgence.” But other measures soon prevailed. In the second year after his restoration, the act of uniformity was passed; by which all ministers were to read, and “publicly declare unfeigned assent and consent to all and every thing contained in, and prescribed by the book of common prayer,” before the feast of St. Bartholomew then ensuing, under the penalty of immediate and absolute deprivation. The consequence of this act was, that between two and three thousand excellent divines were turned out of their churches; many of them, to say the least, as eminent for learning and piety as the bishops, who were the great promoters of this barbarous act; and

themselves and families, many of them, exposed to the greatest distress and poverty.

This cruel injustice obliged the ejected ministers, and their friends, to set up separate congregations; and occasioned such a division from the established church, as will, I hope, ever remain, to witness against the tyranny of those times, and the reverend authors and promoters of that act, to maintain the spirit and practice of serious religion, and as a public protestation for the civil and religious liberties of mankind, till time shall be no more; or till the church shall do herself the justice and honour to open wide her gates, for the reception of all into her communion and ministry, who are not rendered incapable of either, by Jesus Christ the great shepherd and bishop of souls. But however, measures were then soon taken to disturb their meetings. In 1664, the bill against frequenting conventicles passed, the first offence made punishable with five pounds, or three months imprisonment; the second offence with ten pounds, or six months imprisonment; and the third with banishment to some of the foreign plantations; sham plots being fathered on the dissenters, to prepare the way for these severities.

But some of the bishops, such as Sheldon, Ward, Wrenn, &c. did not think these hardships enough; and therefore, notwithstanding the devastations of the plague, and though several of the ejected ministers shewed their piety and courage, in staying and preaching in the city during the fury of it, the five mile act was passed against them the next year at Oxford; by which all the silenced ministers were obliged to take an oath, that it was not lawful, on any pretence whatsoever, to take arms against the king, or any commissioned by him; and that they would not, at any time, endeavour an alteration in the government of church and state. Such who scrupled the oath were forbid to come within five miles of any city or parliament borough, or of the church where they had been ministers, under penalty of forty pounds, or six months imprisonment, for every offence.

After these things, several attempts were set on foot for a comprehension, but rendered ineffectual by the practices of the bishops; and particularly by Ward, bishop of Salisbury, who had himself taken the solemn league and covenant: But having forsaken his first principles, it is no wonder he became a bitter persecutor. In the year 1670, another severe act was passed against them: by which it was provided, that if any person, upwards of sixteen, should be present at any conventicle, under colour of exercising

religion in any other manner than according to the practice of the church of England, where there were five persons or more, besides those of the said household, the offenders were to pay five shillings for the first offence, and ten shillings for the second; and the preacher to forfeit twenty pounds for the first, and forty pounds for the second offence, and those who knowingly suffered any such conventicles in their houses, barns, yards, &c. were to forfeit twenty pounds. The effect of these acts was, that great numbers of ministers and their people were laid in jails amongst thieves and common malefactors, where they suffered the greatest hardships and indignities; their effects were seized on, and themselves and families reduced to almost beggary and famine.

But at length this very parliament, which had passed these severe bills against protestant dissenters, began themselves to be awakened, and justly grew jealous of their religion and liberties, from the increase of popery: and therefore, to prevent all dangers which might happen from popish recusants, they passed, in 1673, the test act; which hath since been, contrary to the original design of the law, turned against the protestant dissenters, and made use of to exclude them from the enjoyment of those rights and privileges which they have a natural claim to. In the year 1680, a bill passed both houses of parliament, for exempting his majesty's protestant dissenting subjects from certain penalties; but when the king came to the house to pass the bills, this bill was taken from the table, and never heard of more; And though this parliament voted, that the prosecution of protestant dissenters, upon the penal laws, was grievous to the subject, a weakening the protestant interest, an encouragement to popery, and dangerous to the peace of the kingdom; yet they underwent a fresh prosecution, their meetings were broken up, many ministers imprisoned, and most exorbitant fines levied on them and their hearers.

In the beginning of King James's (II.) reign, these rigorous proceedings were continued, but as the design of that unhappy bigotted prince was to subvert the religion and laws of these kingdoms, he published in the year 1687, a declaration for a general liberty of conscience to all persons, of what persuasion soever; not out of any regard or affection to the protestant dissenters, but for the promoting the popish religion and interest. He also caused an order of council to be passed, that his declaration of indulgence should be read, in all churches and chapels, in the time of divine service, all over England and Wales. But though the dissenters used the liberty which

was thus granted them, and had several opportunities to have been revenged on their former persecutors; yet they had too much honour, and regard to the protestant religion and liberties, ever to fall in with the measures of the court, or lend their assistance to introduce arbitrary power and popery. And as the divines of the church of England, when they saw King James's furious measures to subvert the whole constitution, threw off their stiff and haughty carriage towards the dissenters, owned them for brethren, put on the appearance of the spirit of peace and charity, and assured them that no such rigorous methods should be used towards them for the future; things that never entered into their hearts whilst they were triumphant in power, and which nothing but a sense of their own extreme danger seems then to have extorted from them; the dissenters, far from following their resentments, readily entered into all measures with them for the common safety, and were amongst the first and heartiest friends of the revolution, under King William III. of glorious and immortal memory.

Soon after the settlement of this prince upon the throne, an act was passed for exempting their majesty's protestant subjects, dissenting from the church of England, from the penal laws; and though the king, in a speech to the two houses of parliament, told them, "That he hoped they would leave room for the admission of all protestants that were willing and able to serve him;" agreeable to which, a clause was ordered to be brought into the house of lords, to take away the necessity of receiving the sacrament to make persons capable of offices; yet his majesty's gracious intentions were frustrated, and the clause rejected by a great majority. Another clause also that was afterwards added, that the receiving the sacrament in the church of England, or in any other protestant congregation, should be a sufficient qualification, met with the same fate as the former: so that though the dissenters were freed from the penal laws, they were left under a brand of infamy, and rendered incapable of serving their king and country. And the Lord's Supper laid open to be prostituted by law to the most abandoned and profligate sinners; and an institution designed for the union of all christians, made the test of a party, and the means of their separation from each other; a scandal that remains upon the church of England to this day. It is indeed but too plain, that when the established church saw itself out of danger, she forgot her promises of moderation and condescension towards the dissenters, who readily and openly declared their willingness to yield to a coalition. But as the clergy had formed a

resolution of consenting to no alterations, in order to such an union; all the attempts made to this purpose became wholly ineffectual. Indeed, their very exemption from the penal laws was envied them by many; and several attempts were made to disturb and prosecute them in this reign, but were prevented from taking effect by royal injunctions.

Upon the death of King William, and the succession of Queen Anne, the hatred of the clergy towards the dissenters, that had lurked in their breasts, during the former reign, immediately broke out. Several sermons were preached to render them odious, and expose them to the fury of the mob. A bill was brought in and passed by the house of commons, for preventing occasional conformity, imposing an hundred pounds penalty upon every person resorting to a conventicle or meeting, after his admission into offices, and five pounds for every day's continuance in such offices, after having been present at such conventicle: but upon some disagreement between the Lords and Commons, the bill dropped for that time. The same bill, with some few alterations, passed the house of commons the two next sessions, but was rejected by the lords. During this reign several pamphlets were published, containing bitter invectives against the dissenters, and exciting the government to extirpate and destroy them. Several prosecutions were also carried on against them for teaching schools, &c. with great eagerness and malice. In 1709, an open rebellion broke out, when the mob pulled down the meeting-houses, and publicly burnt the pews and pulpits. Sacheverell was trumpet to the rebellion, by preaching treason and persecution; and the parliament that censured him, was hastily dissolved. The parliament that succeeded, 1711, was of a true tory spirit and complexion; and, in its second session, passed the bill against occasional conformity. The next parliament, which met in 1714, was of the same disposition, and passed a bill to prevent the growth of schism; by which the dissenters were restrained from teaching schools, or from being tutors to instruct pupils in any family, without the license of the archbishop or bishop of the diocese where they resided; and the justices of the peace had power given them finally to determine in all cases relating thereto. Another bill was also intended to be brought in against them, to incapacitate them from voting in elections for parliament men, or being chosen members of parliament themselves.

But before these unjust proceedings had their intended effect, the protestant succession, in his late majesty king George I. took place; Queen

Anne dying on the first of August, the very day on which the schism bill was to have commenced; which, together with that to prevent occasional conformity, were both repealed by the first parliament called together by that excellent prince. And I cannot help thinking that if the church of England had then consented to have set the dissenters intirely free, by repealing the test and corporation acts; it would have been much to its own honour and reputation, as well as a great strength and security to the national interest. But the time was not then come. We still labour under the oppression of those two acts; and notwithstanding our zeal for his majesty's person and family, must sit down as easy as we can, with the inclination to serve him, whilst by law we are denied the opportunity and power.

The sentiments of his late majesty, of glorious memory, with respect to moderation, and the tolerating of dissenters, were so fully understood by the whole nation, as kept the clergy in tolerable good order, and from breaking out into many outrages against them. But a controversy that began amongst themselves, soon discovered what spirit many of them were of. The then bishop of Bangor, the now^[357] worthy and reverend bishop of Winchester, happened in a sermon before his majesty, to assert the supreme authority of Christ as king in his own kingdom; and that he had not delegated his power, like temporal lawgivers, during their absence from their kingdoms, to any persons, as his deputies and vicegerents. Anno 1717. He also published his preservative; in which he advanced some positions contrary to temporal and spiritual tyranny, and in behalf of the civil and religious liberties of mankind. The goodness of his lordship's intentions to serve the family of his present majesty, the interest of his country, and the honour of the church of God, might methinks have screened him from all scurrilous abuses. But how numerous were his adversaries, and how hard the weapons with which they attacked him! Not only the dregs of the people and clergy opened against him; but mighty men, and men of great renown, from whom better things might have been expected, entered the lists with him, and became the avowed champions for spiritual power, and the division of the kingdom between Christ Jesus and themselves. His lordship of Bangor had this manifest advantage upon the face of the argument. He pleaded for Christ's being king in his own kingdom: his adversaries pleaded for the translation of his kingdom to certain spiritual viceroys. He for liberty of private judgment, in matters of religion and conscience: they for dominion over the faith and consciences of others. He against all the methods of persecution:

they for penal laws; for corporation and test acts, and the powerful motives of positive and negative discouragements. He with the spirit of meekness and of a friend to truth: they with bitterness and rancour, and an evident regard to interest and party.

However, the lower house of convocation accused and prosecuted him, for attempting the subversion of all government and discipline in the church of Christ, with a view undoubtedly of bringing him under a spiritual censure, and with impeaching the regal supremacy in causes ecclesiastical, to subject him to the weight of a civil one. Of the bishop it must be said, to his everlasting honour, that the temper he discovered, under the opposition he met with, and the slanders that were thrown on him, was as much more amiable than that of his adversaries, as his cause was better, his writings and principles more consistent, and his arguments more conclusive and convincing. But notwithstanding these advantages, his lordship had great reason to be thankful to God that the civil power supported and protected him; otherwise his enemies would not, in all probability, have been content with throwing scandal upon his character, but forced him to have parted with SOMETHING, and then delivered him unto Satan for the punishment of his flesh, and made him have felt the weight of that authority, which God made him the happy and honourable instrument of opposing; especially if they were all of them of a certain good archdeacon's mind, who thought he deserved to have his tongue cut out.

The dissenters also have had their quarrels and controversies amongst themselves, and managed them with great warmth and eagerness of temper. During their persecution under King Charles II. and the common danger of the nation under his brother James, they kept tolerably quiet; the designs of the common enemy to ruin them all, uniting them the more firmly amongst themselves. But after the revolution, when they were secure from oppression by the civil power, they soon fell into eager disputes about justification, and other points of like nature. The high-flown orthodox party would scarce own for their brethren those who were for moderation in these principles, or who differed in the least from their doctrine concerning them.

^[358] And when they could no longer produce reason and scripture in their defence, they, some of them, made use of infamous methods of scandal, and endeavoured to blast the character of a reverend and worthy divine, Dr. Williams, in the most desperate manner; because they could no otherwise answer and refute his arguments. But his virtue stood the shock of all their

attempts to defame it; for after about eight weeks spent in an enquiry into his life, by a committee of the united ministers, which received all manner of complaints and accusations against him; it was declared at a general meeting, as their unanimous opinion, and repeated and agreed to in three several meetings successively, that he was intirely clear and innocent of all that was laid to his charge.

Thus was he vindicated in the amplest form, after the strictest examination that could be made; and his adversaries, who dealt in defamation and scandal, if not brought to repentance, were yet put to silence. It was almost incredible how much he was a sufferer for his opposition to Antinomianism, by a strong party, who left nothing unattempted to crush him, if it had been possible. But as his innocence appeared the brighter, after his character had been thoroughly sifted, he was, under God, greatly instrumental in putting a stop to those pernicious opinions which his opposers propagated; which struck at the very essentials of all natural and revealed religion. His Gospel Truth remains a monument of his honour; a monument his enemies were never able to destroy. However, nothing would serve, but his exclusion from the merchant's Lecture at Pinners-Hall. Three other worthy divines, who had been his partners in that service, bore him company; and their places were supplied with four others, of unquestionable rigidness and sterling orthodoxy. Many papers were drawn up on each side, in order to an accommodation; so that it looked as Dr. Calamy tells us, as if the creed-making age was again revived. It was insisted, that Arminianism should be renounced on one side, and Antinomianism on the other. But all was in vain; and the papers that were drawn up to compose matters, created new heats, instead of extinguishing the old ones. These contentions were kept up for several years, till at last the disputants grew weary, and the controversy thread-bare, when it dropped of itself.

The next thing that divided them was the Trinitarian controversy, and the affair of subscription to human creeds and articles of faith, as a test of orthodoxy. In the year 1695, a great contest arose about the trinity, amongst the divines of the church of England, who charged each other with Tritheism and Sabellianism; and according to the ecclesiastical manner of managing disputes, bestowed invectives and scurrilous language very plentifully upon each other. The dissenters, in the reign of his late majesty,

not only unfortunately fell into the same debate, but carried it on, some of them at least, with equal want of prudence and temper.

In the west of England, where the fire first broke out, moderation, christian forbearance, and charity, seemed to have been wholly extinguished. The reverend and learned Mr. James Peirce, minister in the city of Exeter, was dismissed from his congregation, upon a charge of heresy; and treated by his opposers, with shameful rudeness and insolence. Other congregations were also practised with, to discard their pastors upon the same suspicion, who were accused of impiously “denying the Lord that bought them;” to render them odious to their congregations, merely because they could not come up to the unscriptural tests of human orthodoxy. And when several of the ministers of London thought proper to interpose, and try, if by advices for peace, they could not compose the differences of their brethren in the west; this christian design was as furiously opposed as if it had been a combination to extirpate christianity itself; and a proposal made in the room of it, that the article of the church of England, and the answer in the assembly’s catechism, relating to the trinity, should be subscribed by all the ministers, as a declaration of their faith, and a test of their orthodoxy.

This proposal was considered by many of the ministers, not only as a thing unreasonable in itself, thus to make inquisition into the faith of others, but highly inconsistent with the character of protestants, dissenting from the national establishment; and dissenting from it for this reason amongst others, because the established church expressly claims “an authority in controversies of faith.” And, therefore, after the affair had been debated for a considerable while, the question was solemnly put, and the proposal rejected by a majority of voices. This the zealots were highly displeased with, and accordingly publicly proclaimed their resentments from the pulpits. Fasts were appointed solemnly to deplore, confess, and pray against the aboundings of heresy; and their sermons directly levelled against the two great evils of the church, Nonsubscription and Arianism. Through the goodness of God they had no power to proceed farther; and when praying and preaching in this manner began to grow tedious, and were, by experience, found to prove ineffectual, to put a stop to the progress of the cause of liberty, their zeal immediately abated, the cry of heresy was seldomer heard, and the alarm of the church’s being endangered by pernicious errors, gradually ceased; it being very observable, that though heresy be ever in its nature the same thing, yet that the cry against it is

either more or less, according as the political managers of it, can find more or fewer passions to work on, or a greater or lesser interest to subserve by it.

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SECT. VI.
Of Persecutions in New England.

It hath been already remarked, in the foregoing section, that the rigours with which Laud, and his persecuting brethren treated the puritans, occasioned many of them to transport themselves to New England, for the sake of enjoying that liberty of conscience, which they were cruelly denied in their native country. And who could have imagined, but that their own sufferings for conscience sake must have excited in them an utter abhorrence of these antichristian principles, by which they themselves had so deeply smarted? But though they carried over with them incurable prejudices against persecuting prelates, yet they seem many of them to have thought that they had the right of persecution in themselves; and accordingly practised many grievous cruelties towards those who did not fall in with their doctrine and discipline, and church order.

I shall not here mention the severities practised on great numbers of persons for supposed witchcraft, to the great blemish and dishonour of the government there, those prosecutions being carried on not properly upon a religious account; but I am obliged, in justice, not to pass by the cruel laws they made against the persons called Quakers, who felt the weight of their “independent discipline,” and were treated with the utmost rigour by their magistrates and ministers.

^[359]In the year 1656, a law was made at Boston, prohibiting all masters of ships to bring any quakers into that jurisdiction, and themselves from coming in, “on penalty of the house of correction.” When this law was published, one Nicholas Upshal, who was himself an independent, argued against the unreasonableness of such a law; and warned them to take heed “not to fight against God,” and so draw down a judgment upon the land. For this they fined him twenty-three pounds, imprisoned him for not coming to church, and banished him out of their jurisdiction.

^[360]But though this law was executed upon many persons with unrelenting and extreme rigour; yet, as it did not entirely prevent the quakers from coming into New England, a more cruel law was made against them in the year 1658. “That whosoever of the inhabitants should, directly or indirectly, cause any of the quakers to come into that

jurisdiction, he ‘should forfeit one hundred pounds to the country, and be committed to prison,’ there to remain till the penalty should be satisfied: and whosoever should entertain them, knowing them to be so, ‘should forfeit forty shillings to the country for every hour’s entertainment’ or concealment, and be committed to prison till the forfeiture should be fully paid and satisfied. And farther, that all and every of those people, that should arise amongst them there, should be dealt withal, and suffer the like punishment as the laws provided for those that came in: viz. That for the first offence, if a male, ‘one of his ears should be cut off, and he kept at work in the house of correction,’ till he should be sent away at his own charge. For the second, ‘the other ear, and be kept in the house of correction,’ as aforesaid. If a woman, then ‘to be severely whipped,’ and kept as aforesaid, as the male for the first; and for the second offence, to be dealt withal as the first. And for the third, ‘he or she should have their tongues bored through with an hot iron,’ and be kept in the house of correction close at work, till they be sent away at their own charge.”

Could it be imagined that the authors of these bloody laws had been forced from their own native country by the terrors of persecution? or that after all their complaints, about the violences and oppressions of the prelates against themselves, they should yet think persecution for conscience-sake a lawful thing; and that they had a right, as soon as ever they could get power, to persecute others? The making such laws, and the execution of them, was certainly more detestable in them than others; who should have learnt forbearance and compassion towards others, by the things which they themselves had suffered. And yet they seem to have been as devoid of these virtues, as Laud or any of his brethren, against whom they had so bitterly and justly exclaimed.

^[370]In pursuance of the before-mentioned law, one William Brend, and William Leddra, were committed to the house of correction at Boston; where they were kept five days without food, and after that received twenty blows each with a three-corded whip. The next day Brend, who was an elderly man, was put in irons, and tied neck and heels close together for sixteen hours. The next morning the jailer took a pitched rope, about an inch thick, and gave him twenty blows over the back and arms with as much force as he could, so that the rope untwisted. But he fetched another thicker and stronger, and gave him fourscore and seventeen more blows, and threatened to give him as many more the next morning. Brend had

nothing on but a serge cassock upon his shirt, so that his back and arms were grievously bruised, and the blood hung as in bags under his arms; and so cruelly was his body mangled, that it was reduced almost to a perfect jelly.

The same year J. Copeland, Christ. Helder, and J. Rous, were apprehended and imprisoned, and condemned to have each of them their right ear cut off by the hangman; which was accordingly executed; after which they were whipped.

But things did not stop here. Norton and others of his brethren the ministers, petitioned the magistrates to cause the court to make some law to banish the quakers, upon pain of death. The court consisted of twenty-five persons; and the law being proposed, it was carried in the affirmative, thirteen to twelve. As the law is very peculiar, and contains the reasons given by these “Independent Persecutors,” and shews the severity of their discipline, I shall give the substance of it; which is as follows:

^[371]“Whereas there is a pernicious sect, commonly called quakers, lately risen, who by word and writing have published and maintained many dangerous and horrid tenets, and do take on them to change and alter the received laudable customs of our nation, in giving civil respect to equals, or reverence to superiors, whose actions tend to undermine the civil government, and also to destroy the order of the churches, by denying all established forms of worship, and by withdrawing from orderly church fellowship, allowed and approved by all orthodox professors of the truth—whereby divers of our inhabitants have been infected;—for prevention thereof, this court doth order and enact, that every person or persons of “the cursed sect” of the ‘Quakers,’ who is not an inhabitant of, but is found within this jurisdiction, shall be apprehended without warrant, where no magistrate is at hand, by any constable, commissioner, or select man—who shall commit the said person to close prison, there to remain without bail until the next court of assistance, where they shall have a legal trial: and ‘being convicted to be of the sect of the quakers, shall be sentenced to be banished, upon pain of death.’ And that every inhabitant of this jurisdiction, being convicted to be of the aforesaid sect, either by taking up, publishing, or defending the horrid opinions of the quakers, or the stirring up mutiny, sedition, and rebellion against the government, or by taking up their absurd and destructive practices, viz. denying civil respect to equals and superiors, and withdrawing from our church assemblies, and instead thereof frequent

meetings of their own, in opposition to our church order, or by adhering to, or approving of any known quaker, and the tenets and practices of the quakers, that are opposite to “the orthodox received opinions of the godly, and endeavouring to disaffect others to civil government, and church orders, or condemning the practice and proceedings of this court against the quakers, manifesting hereby their complying with those, whose design is to overthrow the order established in church and state; every such person, upon conviction before the said court of assistants, in manner as aforesaid, ‘shall be committed to close prison for one month;’ and then, unless they choose voluntarily to depart this jurisdiction, shall give bond for their good behaviour, and appear at the next court; where continuing obstinate, and ‘refusing to retract or reform the aforesaid opinions,’ they shall ‘be sentenced to banishment, upon pain of death.’ And any one magistrate, upon information given him of any such person, shall cause him to be apprehended; and shall commit any such person to prison, according to his discretion, until he come to trial, as aforesaid.”

“Here endeth,” says my author, “this sanguinary act, being more like to the decrees of the Spanish inquisition, than the laws of a reformed christian magistracy; consisting of such who themselves, to shun persecution (which was but a small fine for not frequenting the public worship) had left Old England.” And what was it occasioned this bloody law? Why, because the poor quakers refused to pull off their hats, and withdrew from the church assemblies of these independent persecutors, and frequented their own meetings, in opposition to their church order; and because the quakers held tenets opposite to the orthodox received opinions of the godly, i. e. opposite to their own opinions, who by flying from England seem to have imagined that they carried away with them all the orthodoxy and godliness out of the kingdom.

And to shew the rigidness of their discipline, and that they did not intend this law merely “in terrorem,” they wickedly murdered several innocent persons under the cover of it, several of their priests standing with pleasure to see them executed. Thus William Robinson, merchant, Marmaduke Stephenson, Mary Dyer, and William Leddra, were hanged at Boston for being quakers; and they would have proceeded to more executions, had it not been for the Mandamus of Charles II. who, though a papist, yet was of a more merciful disposition than these New England disciplinarians, and ordered all proceedings against the quakers immediately to stop.

It would be endless to recount all the cruelties they used to these poor people, whom they imprisoned, unmercifully whipped, oppressed with fines, and then condemned them to be sold to the plantations, to answer the fines they had laid upon them. But enough hath been said to shew the inhumanity of their spirit and practice, and to raise in the reader an abhorrence and detestation of such a conduct in men, who, though they had been persecuted themselves, carried the principles of persecution with them into the place of their banishment, and used worse severities towards others for conscience-sake, than what they themselves had experienced from the bitterness of their enemies; and thereby made it appear, that they complained against the persecutions of the prelatical party, not because they were for moderation and christian charity in their own conduct, but because they thought the right of persecution only in themselves, and that violence ought not to be made use of to support any but the orthodox opinions of such as they themselves esteemed to be godly, and to maintain what they called the order and fellowship of their own churches.

^[372]I have only to add, that I find also from the same author, that the quakers were much persecuted in Scotland; but as he hath given no particular account of that affair, I have nothing farther to enlarge upon that subject.

And thus have I brought the History of Persecution down to our own times, and nation; and shewn how all parties have, in their turns of power, been sharers in this guilt. If church history would have afforded me a better account, I assure my reader he should have had it told with pleasure. The story, as it is, I have told with grief. But it is time to dismiss him from so ungrateful an entertainment, and see what useful reflections we can make on the whole.

CONCLUSION.



SECT. I.

The Clergy the great promoters of persecution.

It is a truth too evident to be denied, that the clergy in general, throughout almost all the several ages of the christian church; have been deep and warm in the measures of persecution; as though it had been a doctrine expressly inculcated in the sacred writings, and recommended by the practice of our Saviour and his apostles. Indeed, could such a charge as this have been justly fixed on the great author of our religion, or the messengers he sent into the world to propagate it; I think it would have been such an evidence of its having been dictated by weak or wicked, or worldly-minded men, as nothing could possibly have disproved.

But that christianity might be free from every imputation of this kind, God was pleased to send his son into the world, without any of the advantages of worldly riches and grandeur, and absolutely to disclaim all the prerogatives of an earthly kingdom. His distinguishing character was that of “meek and lowly;” and the methods by which he conquered and triumphed over his enemies, and drew all men to him, was “patience and constancy, even to the death.” And when he sent out his own apostles, he sent them out but poorly furnished, to all human appearance, for their journey;^[373] “without staves, or scrip, or bread, or money,” to let them know that he had but little of this world to give them; and that their whole dependence was on Providence.

One thing however he assured them of, that they should be “^[374]delivered up to the councils, and scourged in the synagogues, and be hated of all men for his sake.” So far was he from giving them a power to persecute, that he foretold them they must suffer persecution for his name. This the event abundantly justified: And how amiable was their behaviour under it? How greatly did they recommend the religion they taught, by the methods they took to propagate it? “The arms of their warfare were not carnal, but spiritual.” The argument they used to convince those they preached to, was the “demonstration of the spirit, and of power.” They “approved themselves as the ministers of God, by much patience, by afflictions, necessities, distresses, stripes, imprisonments, tumults, labours, watchings, fastings, pureness, knowledge, long-suffering, kindness; by the Holy Ghost, by love

unfeigned, by the word of truth, by the power of God, and by the armour of righteousness on the right hand and on the left.” Oh how unlike were their pretended successors to them in these respects! How different their methods to convince gainsayers! Excommunications, suspensions, fines, banishments, imprisonments, bonds, scourges, tortures and death, were the powerful arguments introduced into the church; and recommended, practised, and sanctified by many of the pretended fathers of it.

Even those whom superstition hath dignified by the name of saints, Athanasius, Chrysostom, Gregory, Cyril, and others, grew wanton with power, cruelly oppressed those who differed from them, and stained most of their characters with the guilt of rapine and murder. Their religious quarrels were managed with such an unrelenting, furious zeal, as disturbed the imperial government, threw kingdoms and nations into confusion, and turned the church itself into an aceldama, or field of blood. Some few there have been who were of a different spirit; who not only abstained from persecuting counsels and measures themselves, but with great justice and freedom censured them in others. But as to your saints and fathers, your patriarchs and bishops, your councils and synods, together with the rabble of monks, they were most of them the advisers, abettors, and practisers of persecution. They knew not how to brook opposition to their own opinions and power, branded all doctrines different from their own with the odious name of heresy, and used all their arts and influence to oppress and destroy those who presumed to maintain them. And this they did with such unanimity and constancy, through a long succession of many ages, as would tempt a stander-by to think that a bishop or clergyman, and a persecutor, were the same thing, or meant the self-same individual character and office in the christian church.

I am far from writing these things with any design to depreciate and blacken the episcopal order in general. It is an office of great dignity and use, according to the original design of its institution. But when that design is forgotten, or wholly perverted; when, instead of becoming “Overseers” of the flock of Christ, the bishops “tear and devour” it, and proudly usurp “Dominion over the Consciences of” Christians, when they ought to be content with being “helpers of their joy.” I know no reason why the name should be complimented, or the character held sacred, when it is abused to insolence, oppression and tyranny; or why the venerable names of fathers and saints should screen the vices of the bishops of former ages, who,

notwithstanding their writing in behalf of christianity and orthodoxy, brought some of them the greatest disgrace on the christian religion, by their wicked practices, and exposed it to the severest satire of its professed enemies: and for the truth of this, I appeal to the foregoing history.

If any observations on their conduct should affect the temper and principles of any now living, they themselves only are answerable for it, and welcome to make what use and application of them they please. Sure I am that the representing them in their true light, reflects an honour upon those reverend and worthy prelates, who maintain that moderation and humility which is essential to the true dignity of the episcopal character, and who use no other methods of conviction and persuasion but those truly apostolical ones, of sound reasoning and exemplary piety. May God grant a great increase, and a continual succession of them in the christian church!



SECT. II.

The Things for which Christians have persecuted one another generally of small importance.

But as the truth of history is not to be concealed; and as it can do no service to the christian cause to palliate the faults of any set of christians whatsoever, especially when all parties have been more or less involved in the same guilt; I must observe farther, as an aggravation of this guilt, that the things for which christians have persecuted each other, have been generally “matters of no importance in religion,” and oftentimes such as have been “directly contrary” to the nature of it. If my reader would know upon what accounts the church hath been filled with divisions and schisms; why excommunications and anathemas have been so dreadfully tossed about; what hath given occasion to such a multitude of suspensions, depositions and expulsions; what hath excited the clergy to such numberless violencies, rapines, cruelties, and murders, he will probably be surprised to be informed that it is nothing of any consequence or real importance, nothing relating to the substance and life of pure and undefiled religion; little besides hard words, technical terms, and inexplicable phrases, points of mere speculation, abstruse questions, and metaphysical notions; rites and ceremonies, forms of human invention, and certain institutions, that have had their rise and foundation only in superstition: these have been the great engines of division; these the sad occasions of persecution.

Would it not excite sometimes laughter, and sometimes indignation, to read of a proud and imperious prelate excommunicating the whole christian church, and sending, by wholesale, to the devil, all who did not agree with him in the precise day of observing Easter? Especially when there is so far from being any direction given by Christ or his apostles about the day, that there is not a single word about the festival itself. And is it not an amazing instance of stupidity and superstition, that such a paltry and whimsical controversy should actually engage, for many years, the whole christian world, and be debated with as much warmth and eagerness, as if all the interests of the present and future state had been at stake; as if Christ himself had been to be crucified afresh, and his whole gospel to be subverted and destroyed.

The Arian controversy, that made such havoc in the christian church, was, if I may be allowed to speak it without offence, in the beginning only about words; though probably some of Arius' party went farther afterwards, than Arius himself did at first. Arius, as hath been shewn, expressly allowed the son to be "before all times and ages, perfect God, unchangeable," and begotten after the most perfect likeness of the unbegotten father.

This, to me, appears to bid very fair for orthodoxy; and was, I think, enough to have reconciled the bishop and his presbyter, if there had not been some other reasons of the animosity between them. But when other terms were invented, that were hard to be understood, and difficult to be explained, the original controversy ceased; and the dispute then was about the meaning of those terms, and the fitness of their use in explaining the divinity of the Son of God.

Arius knew not how to reconcile the bishop's words, "ever begotten," with the assertion, that the Son, co-exists "unbegottenly with God;" and thought it little less than a contradiction to affirm, that he was "unbegottenly begotten." And as to the word "consubstantial," Arius seems to have thought that it destroyed the personal subsistence of the Son, and brought in the doctrine of Sabellius; or else that it implied that the Son was "a part of the Father;" and for this reason declined the use of it. And, indeed, it doth not appear to me that the council of Nice had themselves any determinate and fixed meaning to the word, as I think may be fairly inferred from the debates of that council with Eusebius, bishop of Cæsarea, about that term; which, though put into their creed, in opposition to the Arians, was yet explained by them in such a sense, as almost any Arian could have, bona fide, subscribed.

On the other hand, the bishop of Alexandria seems to have thought, that when Arius asserted that the son existed "by the will and counsel of the Father;" it implied the mutability of his nature; and that, when he taught concerning the Son, "that there was a time when he was not," it inferred his being a temporary, and not an eternal being; though Arius expressly denied both these consequences. In short, it was a controversy upon this metaphysical question, "[375] whether or no God could generate or produce a being, in strictness of speech, as eternal as himself? Or, whether God's generating the Son doth not necessarily imply the pre-existence of the Father, either in conception, or some small imaginable point of time;" as Arius imagined, and the bishop denied.

This was, in fact, the state of this controversy. And did not the emperor Constantine give a just character of this debate, when he declared the occasion of the difference to be very trifling; and that their quarrels arose from an idle itch of disputation, since they did not contend about any essential doctrine of the gospel? could these hard words and inexplicable points justify the clergy in their intemperate zeal, and in their treating each other with the rancour and bitterness of the most implacable enemies? What hath the doctrine of real godliness, what hath the church of God to do with these debates? Hath the salvation of men's souls, and the practice of virtue, any dependance upon men's receiving unscriptural words, in which they cannot believe, because they cannot understand them; and which, those who first introduced them, were not able to explain?

If I know my own heart, I would be far from giving up any plain and important doctrine of the gospel. But will any man coolly and soberly affirm, that nice and intricate questions, that depend upon metaphysical distinctions, and run so high as the most minute supposeable atom or point of time, can be either plain or important doctrines of the gospel? Oh Jesus! if thou be "the Son of the everlasting God, the brightness of thy Father's glory, and the express image of his person;" if thou art the most perfect resemblance of his all-perfect goodness, that kind benefactor, that God-like friend to the human race, which the faithful records of thy life declare thee to be; how can I believe the essential doctrines of thy gospel to be thus wrapped up in darkness? or, that the salvation of that church, "which thou hast purchased with thy blood," depends on such mysterious and inexplicable conditions? If thy gospel represents thee right, surely thou must be better pleased with the humble, peaceable christian, who when honestly searching into the glories of thy nature, and willing to give thee all the adoration thy great Father hath ordered him to pay thee, falls into some errors, as the consequence of human weakness; than with that imperious and tyrannical disciple, who divides thy members, tears the bowels of thy church, and spreads confusion and strife throughout thy followers and friends, even for the sake of truths that lie remote from men's understanding, and in which thou hast not thought proper to make the full, the plain decision. If truth is not to be given up for the sake of peace, I am sure peace is not to be sacrificed for the sake of such truths; and if the gospel is a rule worthy our regard, the clergy of those times can never be

excused for the contentions they raised, and the miseries they occasioned in the christian world, upon account of them.

The third and fourth general councils seem to have met upon an occasion of much the like importance. The first council of Nice determined the Son to be a distinct hypostasis, or person from, but of the same nature with the Father. The second at Constantinople, added the Holy Ghost to the same substance of the Father, and made the same individual nature to belong equally and wholly to the Father, Son, and Holy Ghost; thus making them three distinct persons in one undivided essence. But as they determined the Son to be truly man, as well as truly God, the bishops brought a new controversy into the church, and fell into furious debates and quarrels about his personality.

Nestorius, Bishop of Constantinople, with his followers, maintained two distinct persons in Christ, agreeable to his two distinct natures. But St. Cyril, the implacable enemy of Nestorius, got a council to decree, that the two natures of God and man being united together in our Lord, made one person or Christ; and to curse all who should affirm that there were two distinct persons or subsistencies in him.

It is evident, that either Cyril and his council must have been in the wrong in this decree, or the two former councils of Nice and Constantinople wrong in theirs; because it is certain, that they decreed the word PERSON to be used in two infinitely different senses. According to those of Nice and Constantinople, one individual nature or essence contained three distinct persons; according to Cyril's council, two natures or essences infinitely different, and as distinct as those of God and man, constituted but one person. Now how "one nature should be three persons, and yet two natures one person," will require the skill even of infallibility itself to explain; and as these decrees are evidently contradictory to one another, I am afraid we must allow that the Holy Ghost had no hand in one or other of them.

This some of the clergy very easily observed; and therefore, to maintain the unity of the person of Christ, Eutyches and Dioscorus maintained, that though Christ consisted of two natures before his incarnation, yet after that he had but one nature only. But this was condemned by the council of Chalcedon, and the contradictions of the former councils declared all to be true, and rendered sacred with the stamp of orthodoxy. This was also ratified by the fifth council under Justinian, who also piously and charitably raked into the dust of poor Origen, and damned him for an heretic.

But still there was a difficulty yet remaining, about the person of Christ: for as Christ's being one person did not destroy the distinction of his two natures, it became a very important and warm controversy, whether Christ had any more than one will, as he was but one person in two natures? or, whether he had not two wills, agreeable to his two distinct natures, united in one person? This occasioned the calling the sixth general council, who determined it for the two wills; in which, according to my poor judgment, they were very wrong. And had I had the honour to have been of this venerable assembly, I would have completed the mystery, by decreeing, that as Christ had but one person, he could have but one personal will; but however, that as he had two natures, he must also have two natural wills.

I beg my reader's pardon for thus presuming to offer my own judgment, in opposition to the decree of the holy fathers; but at the same time I cannot help smiling at the thought of two or three hundred venerable bishops and fathers thus trifling in council, and solemnly playing at questions and commands, to puzzle others, and divert themselves. Were it not for the fatal consequences that attended their decisions, I should look on them as "Bishops in masquerade," met together only to ridicule the order, or to set the people a laughing at so awkward a mixture of gravity and folly. Surely the reverend clergy of those days had but little to do amongst their flocks, or but little regard to the nature and end of their office. Had they been faithful to their character instead of "doting about questions and strifes of words, whereof came envy, strife, railings, evil surmisings, perverse disputings of men of corrupt minds, and destitute of the truth, supposing that gain is godliness, "they would have" consented to, and taught wholesome words, even the words of our Lord Jesus Christ, and the doctrine which is according to godliness.

But this was not the temper of the times. It would have been indeed more tolerable, had the clergy confined their quarrels to themselves, and quarrelled only about speculative doctrines and harmless contradictions. But to interest the whole christian world in these contentions, and to excite furious persecutions for the support of doctrines and practices, even opposite to the nature, and destructive of the very end of christianity, is equally monstrous and astonishing. And yet this is the case of the seventh general council, who decreed the adoration of the Virgin Mary, of angels and of saints, of relicts, of images and pictures, and who thereby obscured the dignity, and corrupted the simplicity of the christian worship and

doctrine. This the venerable fathers of that council did, and pronounced anathemas against all who would not come into their idolatrous practices, and excited the civil power to oppress and destroy them.



SECT. III.

Pride, ambition, and covetousness, the grand sources of persecution.

Surely it could not be zeal for God and Christ, and the truth and honour of christianity; no real love to piety and virtue, that prompted and led the bishops and their clergy on to these acts of injustice and cruelty. Without any breach of charity, it may be asserted of most, if not all of them, that it was their pride, and their immoderate love of dominion, grandeur and riches, that influenced them to these unworthy and wicked measures. The interest of religion and truth, the honour of God and the church, is I know the stale pretence; but a pretence, I am afraid, that hath but little probability or truth to support it.

For what hath religion to do with the observation of days? or, what could excite Victor to excommunicate so many churches about Easter, but the pride of his heart, and to let the world see how large a power he had to send souls to the devil? How is the honour of God promoted, by speculations that have no tendency to godliness? Will any man seriously affirm, that the ancient disputes about “Hypostasis, Consubstantial, &c.” and the rest of the hard words that were invented, did any honour to the name of Christ, or were of any advantage to the religion of his gospel? Or, can he believe that Alexander, Arius, Athanasius, Macedonius, and others, were influenced in all their contentions and quarrels, in all the confusions they were the authors of, and the murders they occasioned, purely by religious motives? Surely the honour of religion must be promoted by other means; and genuine christianity may flourish, and, indeed, would have flourished much better, had these disputes never been introduced into the church; or had they been managed with moderation and forbearance. But such was the haughtiness of the clergy, such their thirst of dominion over the consciences of others, such their impatience of contradiction, that nothing would content them but implicit faith to their creeds, absolute subjection to their decrees, and subscription to their articles without examination or conviction of their truth; or for want of these, anathemas, depositions, banishments, and death.

The history of all the councils, and of almost all the bishops, that is left us, is a demonstration of this sad truth. What council can be named, that did

not assume a power to explain, amend, settle, and determine the faith? That did not anathematize and depose those who could not agree to their decisions, and that did not excite the emperors to oppress and destroy them? Was this the humility and condescension of servants and ministers? Was not this lording it over the heritage of God, seating themselves in the throne of the Son of God, and making themselves owned as “fathers and masters,” in opposition to the express command of Christ to the contrary?

^[376] Clemens Romanus, in his first epistle to the Corinthians, cap. 44. tells us, That “the apostles knew, by the Lord Jesus Christ, that the episcopal name and office would be the occasion of contention in the christian church; a noble instance,” says the learned Fell, in his remarks on the place, “of the prophetic spirit of the apostolic age. Formerly,” he adds, that, “men’s ambition and evil practices to obtain this dignity, produced schisms and heresies.” And it was indeed no wonder that such disorders and confusions should be occasioned, when the bishoprics were certain steps, not only to power and dominion, but to the emoluments and advantages of riches and honours.

Even long before the time of Constantine, the clergy had got a very great ascendant over the laity, and grew, many of them, rich, by the voluntary oblations of the people: But the grants of that emperor confirmed them in a worldly spirit, and the dignities and vast revenues that were annexed to many of the sees, gave rise to infinite evils and disturbances. So they could but get possession of them, they cared not by what means; whether by clandestine ordinations, scandalous symony, the expulsion of the possessors, or through the blood of their enemies. How many lives were lost at Rome, Constantinople, Alexandria, and Antioch, by the furious contentions of the bishops of those sees; deposing one another, and forcibly entering upon possession? Would Athanasius, and Macedonius, Damasus, and others, have given occasion to such tumults and murders, merely for words and creeds, had there not been somewhat more substantial to have been got by their bishoprics? Would Cyril have persecuted the Novations, had it not been for the sake of their riches, of which he plundered them, soon after his advancement to the see of Alexandria? No. The character given by the historian of Theodocius, bishop of Synada, may be too truly applied to almost all the rest of them; who persecuted the followers of Macedonius, not from a principle of zeal for the faith, but through a covetous temper, and the love of money. This St. Jerome observed with

grief, in the passage cited page 86, of this history; Ammianus Marcellinus, an heathen writer, reproached them with, in the passage cited page 102.



SECT. IV.

The decrees of councils and synods of no authority in matters of faith.

I think it will evidently follow from this account, that the determinations of councils, and the decrees of synods, as to matters of faith, are of no manner of authority, and can carry no obligation upon any christian whatsoever. I will not mention here one reason, which would be itself sufficient, if all others were wanting, viz. That they have no power given them, in any part of the gospel revelation, to make these decisions in controverted points, and to oblige others to subscribe them; and that therefore the pretence to it is an usurpation of what belongs to the great God, who only hath, and can have a right to prescribe to the consciences of men.

But to let this pass; what one council can be fixed upon, that will appear to be composed of such persons, as, upon an impartial examination, can be allowed to be fit for the work of settling the faith, and determining all controversies relating to it? I mean, in which the majority of the members may, in charity, be supposed to be disinterested, wise, learned, peaceable and pious men? Will any man undertake to affirm this of the council of Nice? Can any thing be more evident, than that the members of that venerable assembly came, many of them, full of passion and resentment; that others of them were crafty and wicked, and others ignorant and weak? Did their meeting together in a synod immediately cure them of their desire of revenge, make the wicked virtuous, or the ignorant wise? If not, their joint decree, as a synod, could really be of no more weight than their private opinions; nor perhaps of so much; because, it is well known, that the great transactions of such assemblies are generally managed and conducted by a few; and that authority, persuasion, prospect of interest, and other temporal motives, are commonly made use of to secure a majority. The orthodox have taken care to destroy all the accounts given of this council by those of the opposite party; and Eusebius, bishop of Cæsarea, hath passed it over in silence; and only dropped two or three hints, that are very far from being favourable to those reverend fathers. In a word, nothing can be collected from friends or enemies, to induce one to believe that they had any of those

qualifications which were necessary to fit them for the province they had undertaken, of settling the peace of the church by a fair, candid and impartial determination of the controversy that divided it: So that the emperor Constantine, and Socrates the historian, took the most effectual method to vindicate their honour, by pronouncing them inspired by the Holy Ghost; which they had great need of, to make up the want of all other qualifications.

The second general council were plainly the creatures of the emperor Theodosius, all of his own party, and convened to do as he bid them; which they did, by confirming the Nicene faith, and condemning all heresies: ^[377] A council of “geese and cranes, and chattering jackdaws;” noisy and tumultuous, endlessly contending for episcopal sees and thrones. The third general council were the creatures of Cyril, who was their president, and the inveterate enemy of Nestorius, whom he condemned for heresy, and was himself condemned for his rashness in this affair, and excommunicated by the bishop of Antioch. The fourth met under the awes of the emperor Marcian; managed their debates with noise and tumult, were formed into a majority by the intrigues of the legates of Rome, and settled the faith by the opinions of Athanasius, Cyril, and and others. I need not mention more; the farther we go, the worse they will appear.

Now may it not be asked, how came the few bishops, who met by command of Theodosius, this council of wasps, to be stiled an oecumenical or general council? As they came to decree, as he decreed they should, what authority, with any wise man, can their decisions have? As they were all of one side, except thirty-six of the Macedonian party who were afterwards added, what less could be expected, but that they would decree themselves orthodox, establish their own creed, and anathematize all others for heretics? And as to the next council, I confess I can pay no respect or reverence to a set of clergy met under the direction and influence of a man of Cyril’s principles and morals; especially as the main transaction of that council was hurried on by a desire of revenge, and done before the arrival of the bishop of Antioch, with his suffragan brethren, and condemned by him as soon as he was informed of it; till at length the power and influence of the emperor reconciled the two haughty prelates, made them reverse their mutual excommunications, decree the same doctrine, and join in pronouncing the same Anathemas. Cannot any one discern more of resentment and pride in their first quarrel, than of a regard to truth and

peace; and more of complaisance to the emperor, than of concern for the honour of Christ, in their after reconciliation? And as to the next council, let any one but read over the account given of it by Evagrius; what horrible confusions there were amongst them; how they threw about anathemas and curses; how they fathered their violences on Christ; how they settled the faith by the doctrines of Athanasius, Cyril, and other fathers; and if he can bring himself to pay any reverence to their decrees, I envy him not the submission he pays them, nor the rule by which he guides and determines his belief.

I confess I cannot read the account of these transactions, their ascribing their anathemas and curses to Christ and the Holy Trinity, and their decisions as to the faith, to the Holy Ghost, without indignation at the horrid abuse of those sacred names. Their very meeting to pronounce damnation on their adversaries, and to form creeds for the consciences of others, is no less than a demonstration that they had no concurrence of the Son of God, no influence of the Holy Spirit of God. The faith was already settled for them, and for all other christians, in the sacred writings, and needed no decision of councils to explain and amend it. The very attempt was insolence and usurpation. Infallibility is a necessary qualification for an office of such importance. But what promise is there made to councils of this divine gift? or, if there should be any such promise made to them; yet the method of their debates, their scandalous arts to defame their adversaries, and the contradictions they decreed for truth and gospel, prove, to the fullest conviction, that they forfeited the grace of it. And indeed, if the fruits of the spirit are love, peace, long-suffering, gentleness, goodness and meekness, there appeared few or no signs of them in any of the councils. The soil was too rank and hot to produce them.

I wish, for the honour of the former times, I could give a better account of these assemblies of the clergy, and see reason to believe myself that they were, generally speaking, men of integrity, wisdom, candour, moderation and virtue. The debates of such men would have deserved regard, and their opinions would have challenged a proper reverence. But even had this been the case, their opinions, could have been no rule to others; and how great a veneration soever we might have had for their characters, we ought, as men and christians, to have examined their principles. There is one rule superior to them and us, by which christians are to try all doctrines and spirits; the decision of which is more sacred than that of all human wisdom and

authority, and every where, and in all ages, obligatory. But as the ancient councils consisted of men of quite other dispositions; and as their decisions in matters of faith were arbitrary and unwarranted; and as those decisions themselves were generally owing to court practices, intriguing statesmen, the thirst of revenge the management of a few crafty interested bishops to noise and tumult, the prospects and hopes of promotions and translations, and other the like causes, the reverence paid them by many christians is truly surprising; and I cannot account for it any way but one, viz. that those who thus cry up their authority, are in hopes of succeeding them in their power; and therefore would fain persuade others that their decrees are sacred and binding, to make way for the imposing of their own.

It would be well worth the while of some of these council-mongers to lay down some proper rules and distinctions, by which we may judge what councils are to be received, and which to be rejected; and particularly why the four first general councils should be submitted to, in preference to all others. Councils have often decreed contrary to councils, and the same bishops have decreed different things in different councils; and even the third and fourth general councils determined the use of the word PERSON in an infinitely different sense from what the two first did. Heretical councils, as they are called, have been more in number than some orthodox general ones, called by the same imperial authority, have claimed the same powers, pretended to the same influence of the Holy Ghost, and pronounced the same anathemas against principles and persons. By what criteria or certain marks then must we judge, which of these councils are thieving, general, particular, orthodox, heretical, and which not? The councils themselves must not be judges in their own cause; for then we must receive, or reject them all. The characters of the bishops that composed them will not do, for their characters seem equally amiable and christian on each side. The nature of the doctrine, “as decreed by them,” is far from being a safe rule; because, if human authority, or church power makes truth in any case, it makes it in every case; and therefore, upon this foot, the decrees at Tyre and Ephesus are as truly binding, as those at Nice and Chalcedon. Or, if we must judge of the councils by the nature of the doctrine, abstracted from all human authority, those councils can have no authority at all. Every man must sit in judgment over them, and try them by reason and scripture, and reject and receive them, just as he would do the opinions of any other persons

whatsoever. And, I humbly conceive, they should have no better treatment,
because they deserve none.



SECT. V.

The imposing Subscriptions to Human Creeds unreasonable and pernicious.

If then the decrees of fathers and councils, if the decisions of human authority in matters of religion are of no avail, and carry with them no obligation; it follows, that the imposing subscriptions to creeds and articles of faith, as tests of orthodoxy, is a thing unreasonable in itself, as it hath proved of infinite ill consequence in the church of God.

I call it an “unreasonable custom,” not only because where there is no power to make creeds for others, there can be no right to impose them; but because no one good reason can be assigned for the use and continuance of this practice. For, as my Lord Bishop of London admirably well explains this matter^[378], “As long as men are men, and have different degrees of understanding, and every one a partiality to his own conceptions, it is not to be expected that they should agree in any one entire scheme, and every part of it, in the circumstances as well as the substance, in the manner of things, as well as in the things themselves. The question therefore is not in general about a difference in opinion, which, in our present state, is unavoidable; but about the weight and importance of the things wherein christians differ, and the things wherein they agree. And it will appear, that the several denominations of christians agree both in the substance of religion, and in the necessary inforcements of the practice of it. That the world and all things in it, were created by God, and are under the direction and government of his all-powerful hand, and all-seeing eye; that there is an essential difference between good and evil, virtue and vice; that there will be a state of future rewards and punishments, according to our behaviour in this life; that Christ was a teacher sent from God, and that his apostles were divinely inspired; that all christians are bound to declare and profess themselves to be his disciples; that not only the exercise of the several virtues, but also a belief in Christ is necessary, in order to their obtaining the pardon of sin, the favour of God, and eternal life; that the worship of God is to be performed chiefly by the heart, in prayers, praises, and thanksgivings; and, as to all other points, that they are bound to live by the rules which Christ and his apostles have left them in the holy scriptures.”

Here then, adds the learned bishop, “is a fixed, certain, and uniform rule of faith and practice, containing all the most necessary points of religion, established by a divine sanction, embraced as such by all denominations of christians, and in itself abundantly sufficient to preserve the knowledge and practice of religion in the world. As to points of greater intricacy, and which require uncommon degrees of penetration and knowledge; such indeed have been subjects of dispute, amongst persons of study and learning, in the several ages of the christian church; but the people are not obliged to enter into them, so long as they do not touch the foundations of christianity, nor have an influence upon practice. In other points it is sufficient that they believe the doctrines, so far as they find, upon due enquiry and examination, according to their several abilities and opportunities, that God hath revealed them.”

This incomparable passage of this reverend and truly charitable prelate, I have transcribed intire; because it will undoubtedly give a sanction to my own principles of universal benevolence and charity. His lordship affirms, that “all denominations of christians agree in the substance of religion, and in the necessary enforcement of the practice of it;” inasmuch as they do all believe firmly and sincerely those principles which his lordship calls, with great reason and truth, “a fixed, certain, and uniform rule of faith and practice, as containing all the most necessary points of religion, and in itself abundantly sufficient to preserve the knowledge and practice of religion in the world.”

My inference from this noble concession, for which all the friends to liberty, in church and state, throughout Great Britain, will thank his lordship, is this; that since all denominations of christians do, in his lordship’s judgment, receive his fixed, certain, and uniform rule of faith, and embrace all the most necessary points of religion; to impose subscriptions to articles of faith and human creeds, must be a very unreasonable and needless thing: for either such articles and creeds contain nothing more than this same rule of faith and practice, and then all subscription to them is impertinent, because this is already received by all denominations of christians, and is abundantly sufficient, by the bishop’s own allowance, to preserve the knowledge and practice of religion in the world; or such articles and creeds contain something more than his lordship’s fixed rule of faith and practice, something more than all the most necessary points of religion, something more than is sufficient to preserve

the knowledge and practice of religion in the world, *h. e.* some very unnecessary points of religion, something on which the preservation of religion doth not depend; and of consequence, subscriptions to unnecessary articles of faith, on which religion doth not depend, can never be necessary to qualify any person for a minister of the church of Christ, and therefore not for the church of England, if that be part of the church of Christ. And this is the more unnecessary, because, as his lordship farther well observes, “the people are not obliged to enter into them, so long as they do not touch the foundations of christianity,” *i. e.* so far as his lordship’s certain, fixed and uniform rule, which contains all necessary points of religion, is not affected by them. And if the people are not obliged to enter into points of great intricacy and dispute, I humbly conceive the clergy cannot be obliged to preach them; and that of consequence it is as absurd to impose upon them subscriptions to such things, as to oblige them to subscribe what they need not preach, nor any of their people believe.

Upon his lordship’s principles, the imposing subscriptions to the hard, unscriptural expressions of the Athanasians and Arians, by each party in their turns, and to the thirty-nine articles of the church of England, must be a very unreasonable and unchristian thing; because, the peculiarities to be subscribed, do not one of them enter into his specified points of religion, and of consequence are not necessary to preserve religion in the world; and after so public a declaration of charity towards all denominations of christians, and the safety of religion and the church, upon the general principles he hath laid down, there is no reason to doubt but his lordship will use that power and influence which God hath entrusted him with, to remove the wall of separation in the established church, in order to the uniting all differing sects, all denominations of christians, in one visible communion; and that he will join in that most christian and catholic prayer and benediction of one of his own brethren; though disapproved of by another of narrower principles, “[379] blessed be they who have contributed to so good a work.”

Subscriptions have ever been a grievance in the church of God; and the first introduction of them was owing to pride, and the claim of an unrighteous and ungodly power. Neither the warrant of scripture, nor the interest of truth, made them necessary. It is, I think, but by few, if any, pretended that the sacred writings countenance this practice. They do indeed abound with directions and exhortations to “adhere stedfastly to the

faith, not to be moved from the faith, nor tossed about with every wind of doctrine.” But what is the faith which we are to adhere to? What the faith established and stamped for orthodox by the bishops and councils? Ridiculous! If this was the case, our faith must be as various as their creeds, and as absurd and contradictory as their decisions. No: The Faith we are to be grounded and settled in, is that “which was at once delivered to the saints,” that which was preached by the apostles to Gentiles as well as Jews; “the wholesome words we are to consent to are the words of our Lord Jesus Christ, and the doctrine which is according to godliness.” This all genuine christians receive, out of regard to a much higher authority than belongs to any set of men in the world; and therefore the sanction of fathers and councils in this case, is as impertinent as a man’s pretending to give a sanction to the constitutions of the great God. And as to all other articles of faith, neither they, nor any others, have any commission to impose them on the consciences of men; and the moment they attempt to do it, they cease to be servants in the house of God, and act as the true and proper lords of the heritage.

But it may be said, that “the church hath power to determine in controversies of faith; so as not to decree any thing against scripture, nor to enforce any thing to be believed as necessary to salvation besides it;” *i. e.* I suppose the church hath power to guard the truths of scripture; and in any controversies about doctrines, to determine what is or is not agreeable to scripture, and to enforce the reception of what they thus decree, by obliging others to subscribe to their decisions. If this be the case, then it necessarily follows, that their determinations must be ever right, and constantly agreeable to the doctrine of holy writ; and that they ought never to determine but when they are in the right; and are sure they are in the right; because, if the matter be difficult in its nature, or the clergy have any doubts and scruples concerning it, or are liable to make false decisions, they cannot, with any reason, make a final decision; because it is possible they may decide on the wrong side of the question, and thus decree falsehood instead of truth.

I presume there are but few who will claim, in words so extraordinary a power as that of establishing falsehood in the room of truth and scripture. But even supposing their decisions to be right, how will it follow that they have a power to oblige others to submit to and subscribe them? If by sound reason and argument they can convince the consciences of others, they are

sure of the agreement of all such with them in principle; and, upon this foot, subscriptions are wholly useless: If they cannot convince them, it is a very unrighteous thing to impose subscriptions on them; and a shameful prevarication with God and man for any to submit to them without it.

Decisions made in controversies of faith, by the clergy, carry in them no force nor evidence of truth. Let their office be ever so sacred, it doth not exempt them from human frailties and imperfections. They are as liable to error and mistake, to prejudice and passion, as any of the laity whatsoever can be. How then can the clergy have any authority in controversies of faith, which the laity have not? That they have erred in their decisions, and decreed light to be darkness, and darkness light; that they have perplexed the consciences of men, and corrupted the simplicity of the faith in Christ, all their councils and synods are a notorious proof. With what justice or modesty then can they pretend to a power of obliging others to believe their articles, or subscribe them? If I was to speak the real truth, it will be found that those numerous opinions which have been anathematized as heretical, and which have broken the christian world into parties, have been generally invented, and broached, and propagated by the clergy. Witness Arius, Macedonius, Nestorius, Eutyches, Dioscorus, and others; and therefore if we may judge, by any observations made on the rise of heresy, what is a proper method to put a stop to the progress of it, it cannot be the clergy's forming articles of faith, and forcing others to subscribe them; because this is the very method by which they have established and propagated it.

The truth is, this method of preventing error will suit all religions, and all sorts of principles whatsoever; and is that by which error maintains its ground, and is indeed rendered impregnable. All the different sorts of christians, papists, and protestants, Greeks, Lutherans, Calvinists, and Arminians, cannot certainly be right in their discriminating principles. And yet where shall we find any clergy that do not pretend a right to impose subscriptions, and who do not maintain the truth of the articles to which they make such subscription necessary? Upon this foot the doctrines of the council of Trent, the thirty-nine articles of the church of England, and the assemblies confession of faith, are all of them equally true, christian and sacred; for they are in different places embraced as standards of orthodoxy, and their sacredness and authority secured and maintained by the subscriptions of the clergy to them: and therefore I think it as little agreeable to prudence, as it is to justice, for christians to keep up a practice

that may be so easily, and hath been so often turned into a security for heresy, superstition and idolatry; and especially for protestants to wear any longer these marks of slavery, which their enemies, whenever they have power, will not fail to make use of, either to fetter their consciences, or distinguish them for the burning.

But it may be said, that the abuse of subscriptions is no argument against the use of them; and that as they are proper to discover what men's sentiments are, they may be so far sometimes a guard and security to the truth. But as all parties, who use them, will urge this reason for them, that they are in possession of the truth, and therefore willing to do all they can to secure and promote it; of consequence, subscriptions to articles of faith can never be looked on properly as guards to real truth, but as guards to certain prevailing principles, whether true or false. And even in this case they are wholly ineffectual.

The clergy of the church of England are bound to subscribe the thirty-nine articles, i. e. to the truth of Athanasian and Calvinistic principles. But hath this subscription answered its end? Do not the clergy, who are all subscribers, and who often repeat their subscriptions, differ about these heads as much as if they had never subscribed at all? Men that have no principles of religion and virtue, but enter the church only with a view to the benefices and preferments of it, will subscribe ten thousand times over, and to any articles that can be given them, whether true or false. Thus the Asiatic bishops subscribed to the condemnation of the decrees of the council of Chalcedon, and inform Basiliscus the emperor that their subscriptions were voluntary. And yet when Basiliscus was deposed, they immediately subscribed to the truth of those decrees, and swore their first subscription was involuntary. So that subscriptions cannot keep out any atheists, infidels, or profligate persons. And as to others, daily experience teaches us, that they either disbelieve the articles they subscribe, subscribing them only as articles of peace: or else, that after they have subscribed them, they see reason, upon a more mature deliberation, to alter their minds, and change their original opinions. So that till men can be brought always to act upon conscience, never to subscribe what they do not believe, nor ever to alter their judgment, as to the articles they have subscribed; subscriptions are as impertinent and useless as they are unreasonable, and can never answer the purposes of those who impose them.

But I apprehend farther, that this imposing of subscriptions is “not only an unreasonable custom,” but attended with many very pernicious consequences. It is a great hindrance to that freedom and impartiality of inquiry which is the unalterable duty of every man, and necessary to render his religion reasonable and acceptable. For why should any person make any inquiries for his own information, when his betters have drawn up a religion for him, and thus kindly saved him the labour and pains? And as his worldly interest may greatly depend on his doing as he is bid, and subscribing as he is ordered; is it not reasonable to think that the generality will contentedly take every thing upon trust, and prudently refrain from creating to themselves scruples and doubts, by nicely examining what they are to set their hands to, lest they should miss of promotion for not being able to comply with the condition of it, or enjoy their promotions with a dissatisfied and uneasy conscience?

Subscriptions will, I own, sometimes prove marks of distinction, and as walls of separation: For though men of integrity and conscience may, and oftentimes undoubtedly do submit to them; yet men of no principles, or very loose ones, worldly and ambitious men, the thoughtless and ignorant, will most certainly do it, when they find it for their interest. The church that encloses herself with these fences, leaves abundant room for the entrance of all persons of such characters. To whom then doth she refuse admittance? Why, if to any, it must be to men who cannot bend their consciences to their interest; who cannot believe without examination, nor subscribe any articles of faith as true, without understanding and believing them. It is in the very nature of subscriptions to exclude none but these, and to distinguish such only for shame and punishment. Now how is this consistent with any thing that is called reason or religion?

If there could be found out any wise and reasonable methods to throw out of the christian church and ministry, men who are in their hearts unbelievers, who abide in the church only for the revenues she yields to them, who shift their religious and political principles according to their interest, who propagate doctrines inconsistent with the liberties of mankind, and are scandalous and immoral in their lives; if subscriptions could be made to answer these ends, and these only, and to throw infamy upon such men, and upon such men only, no one would have any thing to alledge against the use of them. Whereas, in truth, subscriptions are the great securities of such profligate wretches, who by complying with them, enter

into the church, and thereby share in all the temporal advantages of it; whilst the scrupulous, conscientious christian, is the only one she excludes; who thinks the word of God a more sure rule of faith than the dictates of men; and that subscriptions are things much too sacred to be trifled with, or lightly submitted to.

They are indeed very great snares to many persons, and temptations to them too often to trespass upon the rules of strict honesty and virtue. For when men's subsistence and advantages in the world depend on their subscribing to certain articles of faith, it is one of the most powerful arguments that can be, to engage them to comply with it. It is possible indeed they may have their objections against the reasonableness and truth of what they are to subscribe: But will not interest often lead them to overlook their difficulties, to explain away the natural meaning of words, to put a different sense upon the articles than what they will fairly bear, to take them in any sense, and to subscribe them in no sense, only as articles of peace?

It must be by some such evasions that Arians subscribe to Athanasian creeds, and Arminians to principles of rigid Calvinism. This the clergy have been again and again reproached with, even by the enemies of christianity: and I am sorry to say it, they have not been able to wipe off the scandal from themselves. I am far from saying or believing that all the clergy make these evasive subscriptions: those only that do so give this offence; and if they are, in other cases, men of integrity and conscience, they are objects of great compassion.

As far as my own judgment is concerned, I think this manner of subscribing to creeds and articles of faith, is infamous in its nature, and vindicable upon no principles of conscience and honour. It tends to render the clergy contemptible in the eyes of the people, who will be apt to think that they have but little reason to regard the sermons of men, who have prevaricated in their subscriptions, and that they preach for the same reason only that they subscribed, viz. their worldly interest. It is of very pernicious influence and example, and in its consequences leads to the breach of all faith amongst mankind, and tends to the subversion of civil society. For if the clergy are known to prevaricate in subscribing to religious tests of orthodoxy, is it not to be feared that others may learn from them to prevaricate in their subscriptions to civil tests of loyalty? and, indeed, there is a great deal of reason to imagine, that if men can tutor and twist their

consciences so as to subscribe articles of faith, contrary to their own persuasion, and only as articles of peace, or a qualification for a living, they would subscribe for the same reason to Popery or Mahometanism: For if this be a good reason for subscribing any articles which I do not believe, it is a reason for subscribing all; and therefore I humbly apprehend that a practice, which gives so much occasion to such scandalous prevarications with God and man, should be cast off as an insufferable grievance, and as a yoke upon the necks of the clergy, too heavy for them to bear.

Let me add farther, that this practice of imposing subscriptions, hath been the occasion of innumerable mischiefs in the church of God. It was the common cry of the orthodox and Arians, and all other heretics, in their turns of power, “either subscribe, or depart from your churches.” This enflamed the clergy against each other, and filled them with hatred, malice and revenge. For as by imposing these subscriptions, inquisition was made into the consciences of others; the refusal to submit to them was a certain mark of heresy and reprobation; and the consequence of this was the infliction of all spiritual and temporal punishments. It was impossible but that such procedures should perpetuate the schisms and divisions of the church, since the wrath of man cannot work the righteousness of God; and since civil punishments have no tendency to convince the conscience, but only to enflame the passions against the advisers and inflictors of them. And as ecclesiastical history gives us so dreadful an account of the melancholy and tragical effects of this practice, one would think that no nation who knew the worth of liberty, no christian, protestant, church, that hath any regard for the peace of the flock of Christ, should ever be found to authorize and continue it.



SECT. VI.

Adherence to the Sacred Scriptures the best Security of Truth and Orthodoxy.

What security then shall we have left us for truth and orthodox, when our subscriptions are gone? Why, the sacred scriptures, those oracles of the great God, and freedom and liberty to interpret and understand them as we can; the consequence of this would be great integrity and peace of conscience, in the enjoyment of our religious principles, union and friendship amongst christians, notwithstanding all their differences in judgment, and great respect and honour to those faithful pastors, that carefully feed the flock of God, and lead them into pastures of righteousness and peace. We shall lose only the incumbrances of religion, our bones of contention, the shackles of our consciences, and the snares to honesty and virtue; whilst all that is substantially good and valuable, all that is truly divine and heavenly, would remain to enrich and bless us.

The clergy would indeed lose their power to do mischief; but would they not be happy in that loss, especially as they would be infinitely more likely to do good? They would be no longer looked on as fathers and dictators in the faith; but still they might remain “ambassadors for Christ, beseeching men in Christ’s stead, to become reconciled to God.” And was all human authority, in matters of faith, thus wholly laid aside, would not the word of God have a freer course, and be much more abundantly glorified? All christians would look upon scripture as the only rule of their faith and practice, and therefore search it with greater diligence and care, and be much more likely to understand the mind of God therein. The main things of christianity would, unquestionably, be generally agreed to by all; and as to other things, points of speculation and difficult questions, if christians differed about them, their differences would be of no great importance, and might be maintained consistent with charity and peace.

Indeed, a strict and constant adherence to scripture, as the only judge in controversies of the christian faith, would be the most likely method to introduce into the church a real uniformity of opinion, as well as practice. For if this was the case, many disputes would be wholly at an end, as having nothing to give occasion to them in the sacred writings; and all

others would be greatly shortened, as hereby all foreign terms, and human phrases of speech, by which the questions that have been controverted amongst christians have been darkened and perplexed, would be immediately laid aside, and the only inquiry would be, what is the sense of scripture? What the doctrine of Christ and his apostles? This is a much more short and effectual way of determining controversies, than sending men to Nice and Chalcedon, to councils and synods, to Athanasius, or Arius, to Calvin or Arminius, or any other persons whatsoever that can be mentioned, who at best deliver but their own sense of scripture, and are not to be regarded any farther than they agree with it.

It was the departure from this, as the great standard of faith, and corrupting the simplicity of the gospel-doctrine by hard, unscriptural words, that gave occasion to the innumerable controversies that formerly troubled the christian church. Human creeds were substituted in the room of scripture; and according as circumstances differed, or new opinions were broached, so were the creeds corrected, amended and enlarged, till they became so full of subtleties, contradictions, and nonsense, as must make every thoughtful man read many of them with contempt. The controversy was not about scripture expressions, but about the words of men; not about the sense of scripture, but the decrees of councils, and the opinions of Athanasius, Leo, Cyril, and the venerable fathers. And upon this foot it was no wonder their disputes should be endless; since the writings of all fallible men must certainly be more obscure and intricate than the writings of the infallible spirit of truth, who could be at no loss about the doctrines he dictated, nor for proper words suitably to express them.

It is infinite, it is endless labour, to consult all that the fathers have written; and when we have consulted them, what one controversy have they rationally decided? What one christian doctrine have they clearly and solidly explained? How few texts of scripture have they critically settled the sense and meaning of? How often do they differ from one another, and in how many instances from themselves? Those who read them, greatly differ in their interpretation of them; and men of the most contrary sentiments, all claim them for their own. Athanasians and Arians appeal to the fathers, and support their principles by quotations from them. And are these the venerable gentlemen, whose writings are to be set up in opposition to the scripture, or set up as authoritative judges of the sense of scripture? Are creeds of their dictating to be submitted to as the only criterion of

orthodoxy, or esteemed as standards to distinguish between truth and error? Away with this folly and superstition! The creeds of the fathers and councils are but human creeds, that have all the marks in them of human frailty and ignorance. The creeds which are to be found in the gospel are the infallible dictates of the spirit of the God of truth, and as such claim our reverence and submission; and as the forming our principles according to them, as far as we are able to understand them, makes us christians in the sight of God, it should be sufficient to every one's being owned as a christian by others, without their using any inquisitory forms of trial, till they can produce their commission from heaven for the use of them. This, as it is highly reasonable in itself, would do the highest honour to the christian clergy; who, instead of being reproached for haughtiness and pride, as the incendiaries and plagues of mankind, as the sowers of contention and strife, and disturbers of the peace of the church of God, would be honoured for their work's sake, esteemed for their characters, loved as blessings to the world, heard with pleasure, and become succesful in their endeavours to recommend the knowledge and practice of christianity.



SECT. VII.

The Christian Religion absolutely condemns Persecution for conscience sake.

Were the doctrines of the gospel regarded as they should be, and the precepts of the christian religion submitted to by all who profess to believe it, universal benevolence would be the certain effect, and eternal peace and union would reign amongst the members of the christian church. For if there are any commands of certain clearness, any precepts of evident obligation in the gospel, they are such as refer to the exercise of love, and the maintaining universal charity. In our Saviour's admirable discourse on the mount, this was the excellent doctrine he taught: ^[380]“Blessed are the meek, for they shall inherit the earth. Blessed are the merciful, for they shall obtain mercy. Blessed are the peace-makers, for they shall be called the children of God.” And in another place, describing the nature of religion in general, he tells us, that ^[381]“the love of God is the first commandment; and that the second is like unto it—thou shalt love thy neighbour as thyself.” This he enjoins upon his disciples as his peculiar command: ^[382]“This is my commandment, that ye love one another, as I have loved you;” and recommends it to them as that whereby they were to be distinguished from all other persons. ^[383]“A new commandment I give unto you, that ye love one another; as I have loved you, that ye also love one another. ^[384]By this shall all men know that ye are my disciples, if ye have love one to another.”

This was the more needful for them, considering that our Lord foreknew the grievous persecutions that would befall them for his sake; to encourage them under which, he pronounces them blessed: ^[385]“Blessed are they which are persecuted for righteousness-sake, for theirs is the kingdom of heaven;” whilst, at the same time, he leaves a brand of infamy on persecutors, and marks them out for the vengeance of God: ^[386]“Rejoice and be exceeding glad, for great is your reward in heaven; for so persecuted they the prophets that were before you. ^[387]Woe unto you, for ye build the sepulchres of the prophets, and your fathers killed them; therefore, saith the wisdom of God, I will send you prophets and apostles, and they will slay and persecute them, that the blood of all the prophets—may be required of this generation.”

And indeed, so far was our Lord from encouraging any persecuting methods, that he rebuked and put a stop to all the appearances of them. Thus when his disciples would have called down fire from heaven to consume the Samaritans, who refused to receive him, he rebuked them, and said, ^[388]“Ye know not what manner of spirit ye are of; the Son of Man is not come to destroy men’s lives, but to save them;” and when one of those who were with Christ cut off the ear of one of the high priest’s servants, upon his laying hands on him, he severely reprov’d him: ^[389]“Put up again thy sword into its place; for all they that take the sword shall perish with the sword.” And, in order to cure his apostles of their ambition and pride, and to prevent their claiming an undue power, he gave them an example of great humility and condescension, in washing and wiping their feet, and forbid them imitating the ^[390]“gentiles, by exercising dominion and authority; but whoever will be great amongst you, let him be your minister; and whosoever will be chief amongst you, let him be your servant; even as the Son of Man came not to be ministered unto, but to minister, and to give his life a ransom for many.” And as the Jewish teachers took on them the name of Rabbi, to denote their power over the consciences of those they instructed, he commanded his disciples, ^[391]“Be ye not called Rabbi, for one is your master, even Christ, and all ye are brethren; and call no man father upon earth, for one is your father, which is in heaven. But he that is greatest amongst you, shall be your servant.” From these, and other passages of like nature, it is very evident, that there is nothing in the life of Jesus Christ that gives any countenance to these wicked methods of propagating and supporting religion, that some of his pretended followers have made use of, but the strongest directions to the contrary.

^[392]It is indeed objected, that Christ says, “compel them to come in, that my house may be full:” but that this compulsion means nothing more than invitation and persuasion, is evident from the parallel place of scripture, where what St. Luke calls, ^[393]“compel them to come in,” is expressed by, “bid them to the marriage,” *i. e.* endeavour, not by force of arms, but by argument and reason, by importunity and earnestness, and by setting before men the promises and threatnings of the gospel, and thus addressing yourselves to their hopes and fears, to persuade and compel them to embrace my religion, and become the subjects of my kingdom; and in this moral sense of compulsion, the original word is often used.

^[394]But farther, it is, by a late writer, reckoned very surprising, that Christ should say, ^[395]“Think not I am come to send peace, I came not to send peace, but a sword; for I am come to set a man at variance with his father, and the daughter against her mother, &c.” But how is this so very surprising? or what man of common sense can mistake the meaning of the words, who reads the whole discourse? In the former part of it, it is expressly declared, that the most grievous persecutions should befall his disciples for his sake; that “brother should deliver up brother to death, and the father the child; and the children shall rise up against their parents, and cause them to be put to death.” Can any man understand this of an intention in Christ to set people at variance? when it is a prediction only of what should be the consequence of publishing his gospel, through the malice and cruelty of its opposers; a prediction of what his disciples were to suffer, and not of what they were to make others suffer.

And as to that passage in Luke, ^[396]“I am come to send fire on the earth: and what will I, if it be already kindled? Suppose ye that I am come to give peace on earth? I tell you nay, but rather division.” How is it explained by Christ himself? Why, in the very next words: “For from henceforth,” *i. e.* upon the publication of my religion and gospel, “there shall be five in one house divided, three against two, and two against three, &c.” Can any man need paraphrase and criticism to explain these passages of any thing, but of that persecution which should befall the preachers and believers of the gospel? or imagine it to be a prophetic description of a fire to be blown up by Christ to consume others, when the whole connection evidently refers it to a fire, that the opposers of his religion should blow up, to consume himself and followers? Jesus knew it was such a fire as would first consume himself. “I am come to send fire on the earth; and what will I, if it be already kindled?” or, as the words should be translated, “How do I wish it was already kindled? How do I wish it to break out on my own person, that I might glorify God by my sufferings and death?” For as it follows, “I have a baptism to be baptised with,” a baptism with my own blood: “and how am I straitened till it be accomplished!” After this account of his own sufferings, he foretels the same should befall his followers: “Suppose ye that I am come to give peace on earth? I tell you nay, but rather division;” *i. e.* as I myself must suffer to bear witness to the truth, so after my decease, such shall be the unreasonable and furious opposition to my gospel, as shall occasion divisions amongst the nearest relations, some of whom shall hate

and persecute the other for their embracing my religion. And of consequence ^[397]“Christ did not declare, in the most express terms,” as the fore-mentioned writer asserts, “that he came to do that which we must suppose he came to hinder.” He did only declare, that he came to do what he was resolved not to hinder, *i. e.* to publish such a religion as his enemies would put him to death for, and as would occasion divisions amongst the nearest relations, through the unreasonable hatred and opposition that some would shew to others upon account of it. This matter is elsewhere clearly expressed by Christ: ^[398]“These things have I spoken to you, that ye should not be offended. They shall put you out of the synagogues; yea, the time cometh, that whosoever killeth you, will think that he doth God service. And these things will they do unto you, because they have not known the father nor me,” *i. e.* have not understood either natural religion, or the religion of my gospel.

There is therefore nothing in the conduct or doctrines of Jesus Christ to countenance or encourage persecution. His temper was benevolent, his conduct merciful; and one governing design of all he said, was to promote meekness and condescension, universal charity and love. And in this all his apostles were careful imitators of his example: ^[399]“Let love,” saith St. Paul, “be without dissimulation; be kindly affectioned one to another with brotherly love, in honour preferring one another. ^[400]If it be possible, as much as lieth in you, live peaceably with all men.” And the love he recommended was such, ^[401]“as worketh no ill to his neighbour;” and which therefore he declares “to be the fulfilling of the law.”

And, lest different sentiments in lesser matters should cause divisions amongst christians, he commands, ^[402]“to receive him that is weak in the faith, not to doubtful disputations,” not to debates, or contentions about disputations, or disputable things. Upon account of such matters, he orders that none should ^[403]“despise or judge others, because God had received them;” ^[403]and because every man ought to be “fully persuaded in his own mind,” and because ^[404]“the kingdom of God was not meat and drink, but righteousness and peace, and joy in the holy ghost;” and because every one was to ^[405]“give an account of himself to God,” to whom alone, as his only master, he was to stand or fall. From these substantial reasons he infers, ^[406]“We then that are strong,” who have the most perfect understanding of the nature of christianity, and our christian liberty, ^[407]“ought to bear the infirmities of the weak, and not to please ourselves;” and having prayed for

them, that the God of patience and consolation would grant them to “be like-minded one towards another,” according to, or after the example of Christ, that, notwithstanding the strength of some, and the weakness of others, they might, ^[408]“with one mind, and with one mouth, glorify God, even the Father of our Lord Jesus Christ;” he adds, as the conclusion of his argument, ^[409]“Wherefore receive ye one another, as Christ also received us to the glory of God.”

In his letters to the ^[410]Corinthians, he discovers the same divine and amiable spirit. In his first epistle he beseeches them, “by the name of the Lord Jesus Christ, that they would all speak the same thing, and that there should be no schism amongst them, but that they should be perfectly joined together in the same mind, and in the same judgment;” *i. e.* that they should all own and submit to Christ, as their only lord and head, and not rank themselves under different leaders, as he had been informed they had done; for that they were ^[411]“the body of Christ,” and all of them his members, and ought therefore to maintain that charity to one another, “which suffereth long, and is kind; which envieth not, vaunteth not itself, is not puffed up, doth not behave itself unseemly, seeketh not her own, is not easily provoked, thinketh no evil, rejoiceth not in iniquity, but rejoiceth in the truth; beareth all things, believeth all things, hopeth all things, endureth all things; which is greater and more excellent than faith and hope, which fails not in heaven itself,” where faith and hope shall be at an end; and without which, though we could ^[412]“speak with the tongue of men and angels, should have the gift of prophesy, and understand all mysteries, and all knowledge, and could remove mountains; yea, though we should bestow all our goods to feed the poor, and give our bodies to be burned, we should be only as sounding brass, and as a tinkling cymbal;” nothing in the account of God, nothing as to any real profit and advantage that will accrue to us. And, in his second epistle, he takes his leave of them, with this divine exhortation, and glorious encouragement: ^[413]“Finally brethren, farewell; be perfect, be of good comfort, be of one mind,” be affectionate, and kindly disposed to one another, as though you were influenced by one common mind: “Live in peace, and the God of love and peace shall be with you.”

In his epistle to the Galatians, ^[414] he gives us a catalogue of those works of the flesh which exclude men from the kingdom of God; such as “adultery, fornication,—hatred, variance, emulation, wrath, strife, seditions, heresies, envyings,” and the like; and then assures us, that “the fruits of the

spirit are love, joy, peace, long-suffering, gentleness, goodness, faith, meekness, and temperance, against which there is no law:” and, after having laid down this as an essential principle of christianity, that ^[415]“neither circumcision availeth any thing, nor uncircumcision, but a new creature;” as it is expressed in another place, “Faith which worketh by love;” he pronounces this truly apostolic benediction, ^[416]“As many as walk according to this rule, peace be on them, and mercy, and upon the Israel of God.”

The same divine and excellent strain runs through his letter to the Ephesians: ^[417]“I therefore, the prisoner of the Lord, beseech you that ye walk worthy of the vocation wherewith ye are called, with all lowliness and meekness, with long-suffering, forbearing one another in love, endeavouring to keep the unity of the spirit in the bond of peace;” and the term of this union, which he lays down, is the acknowledgment of one catholic church, one spirit, one Lord and Mediator, and “One God, even the Father of all, who is above all, through all, and in all.” The contrary vices, of ^[418]“bitterness and wrath, and anger and clamour, and evil-speaking and malice, are to be put away,” as things that “grieve the Holy Spirit of God?” ^[419] and we must “be kind one to another, forgiving one another even as God, for Christ’s sake, hath forgiven us;” ^[420] and be followers of God, by walking in love, even as Christ hath also loved us, and hath given himself for us.”

His exhortation to the Philippians, ^[421] is in the most moving terms: “If there be any consolation in Christ, if any comfort of love, if any fellowship of the spirit, if any bowels and mercies, fulfil ye my joy; that ye be like-minded, having the same love, being of one accord, of one mind. Let nothing be done through strife or vain glory, but in lowliness of mind let each esteem other better than themselves.”

In his exhortation to the Colossians, he warmly presses our cultivating the same disposition, and abounding in the same practice: ^[422]“Put off all these, anger, wrath, malice;—put on as the elect of God, holy and beloved, bowels of mercies, kindness, humbleness of mind, meekness, long-suffering, forbearing one another, and forgiving one another, even as Christ forgave us. And above all these things, put on charity, which is the bond of perfectness: and let the peace of God rule in your hearts, to which also ye are called in one body.”

In his directions to Timothy, he gives him this summary of all practical religion: ^[423]“The end of the commandment is charity out of a pure heart, and a good conscience, and faith unfeigned;” and he ascribes men’s turning aside to vain jangling, to their having swerved from this great principle.

And, to mention no more passages on this head, I shall conclude this whole account with that amiable description of the wisdom that is from above, given by St. James: ^[424]“The wisdom that is from above is pure, and peaceable, and gentle, and easy to be intreated, full of good fruits, without partiality, and without hypocrisy. But if we have bitter envying and strife in our hearts, we have nothing to glory in, but we lye against the truth,” *i. e.* belie our christian profession; for whatever false judgment we may pass upon ourselves, this “wisdom descendeth not from above, but is earthly, sensual, devilish; for where envying and strife is, there is confusion and every evil work.”

I have thrown all these excellent passages of the sacred writings together, that it may appear, in the most convincing light, that the scriptures have nothing in them to countenance the spirit, or any of the methods of persecution; and to confront the melancholy account I have given before of the progress and ravages caused by this accursed evil. Good God, how have the practices of christians differed from the precepts of christianity! Would one imagine that the authors of those dreadful mischiefs and confusions were the bishops and ministers of the christian church? That they had ever read the records of the christian religion? Or if they had, that they ever believed them?

But it may be objected, that whatever may be the precepts of the christian religion, yet the conduct even of the apostles themselves gives some countenance to the spirit and practice of persecution, and particularly the conduct of St. Paul; and that such powers are given to the guides and bishops of the christian church, as do either expressly or virtually include in them a right to persecute. Let us briefly examine each of these pretensions.

As to the practice of the apostles, ^[425] Beza mentions two instances to vindicate the punishment of heretics. The first is that of Ananias and Sapphira, struck dead by Peter; and the other that of Elymas the sorcerer, struck blind by Paul. But how impertinently are both these instances alledged? Heresy was not the thing punished in either of them. Ananias and Sapphira were struck dead for hypocrisy and lying; and for conspiring, if it were possible, to deceive God. Elymas was a jewish sorcerer, and false

prophet; a subtle, mischievous fellow, an enemy to righteousness and virtue, who withstood the apostolic authority, and endeavoured, by his frauds, to prevent the conversion of the deputy to the christian faith. The two first of these persons were punished with death. By whom? What, by Peter? No: by the immediate hand of God. Peter gave them a reproof suitable to their wickedness; but as to the punishment, he was only the mouth of God in declaring it, even of that God who knew the hypocrisy of their hearts, and gave this signal instance of his abhorrence of it in the infancy of the christian church, greatly to discourage, and, if possible, for the future to prevent men thus dealing fraudulently and insincerely with him. And, I presume, if God hath a right to punish frauds and cheats in another world, he hath a right to do so in this; especially in the instance before us, which seems to have something very peculiar in it.

Peter expressly says to Sapphira, ^[426]“How is it that ye have agreed together to tempt the spirit of the Lord?” What can this tempting of the spirit of the Lord be, but an agreement between Ananias and his wife, to put this fraud on the apostle, to see whether or no he could discover it by the spirit he pretended to? This was a proper challenge to the spirit of God, which the apostles were endued with, and a combination to put the apostolic character to the trial. Had not the cheat been discovered, the apostle’s inspiration and mission would have been deservedly questioned; and as the state of christianity required that this divine mission should be abundantly established, Peter lets them know that their hypocrisy was discovered; and, to create the greater regard and attention to their persons and message, God saw fit to punish that hypocrisy with death.

As to Elymas the sorcerer, ^[427] this instance is as foreign and impertinent as the other. Sergius Paulus, proconsul of Cyprus, had entertained at Paphos one Barjesus, a jew, a sorcerer; and hearing also that Paul and Barnabas were in the city, he sent for them to hear the doctrine they preached. Accordingly they endeavoured to instruct the deputy in the christian faith, but were withstood by Elymas, who by his subtleties and tricks, endeavoured to hinder his conversion. St. Paul therefore, in order to confirm his own divine mission, and to prevent the deputy’s being deceived by the frauds and sorceries of Elymas, after severely rebuking him for his sin, and opposition to christianity, tells him, not that the Proconsul ought to put him in jail, and punish him with the civil sword, but that God himself would decide the controversy, by striking the sorcerer himself immediately

blind; which accordingly came to pass, to the full conviction of the Proconsul.

Now what is there in all this to vindicate persecution? God punishes wicked men for fraud and sorcery, who knew their hearts, and had a right to punish the iniquity of them. Therefore men may punish others for opinions they think to be true, and are conscientious in embracing, without knowing the heart, or being capable of discovering any insincerity in it. Or God may vindicate the character and mission of his own messengers, when wickedly opposed and denied, by immediate judgments inflicted by himself on their opposers. Therefore the magistrate may punish and put to death, without any warrant from God, such who believe their mission, and are ready to submit to it, as far as they understand the nature and design of it. Are these consequences just and rational? or would any man have brought these instances as precedents for persecution, that was not resolved, at all hazards, to defend and practise it?

But doth not St. Paul command to ^[428]“deliver persons to satan for the destruction of the flesh?” Doth he not ^[429]“wish that they were even cut off who trouble christians, and enjoin us to mark them which cause divisions and offences, contrary to his doctrine, and to avoid them, and not to eat with them?” Undoubtedly he doth. But what can be reasonably inferred from hence in favour of persecution, merely for the sake of opinions and principles? In all these instances, the things censured are immoralities and vices. The person who was delivered by St. Paul to satan, was guilty of a crime not so much as named by the gentiles themselves, the incestuous marriage of his father’s wife; and the persons we are, as christians, commanded not to keep company and eat with, are men of scandalous lives; such as fornicators, or covetous, or idolaters, or railers, or drunkards, or extortioners, making a profession of the christian religion, or, in St. Paul’s phrase, “called brethren;” a wise and prudent exhortation in those days especially, to prevent others from being corrupted by such examples, and any infamy thrown on the christian name and character. As to those whom the apostle “wishes cut off,” they were the persecuting Jews, who spread contention amongst christians, and taught them to bite and devour one another, upon account of circumcision, and such like trifles; men that were the plagues and corrupters of the society they belonged to. Men who caused such divisions, and who caused them out of a love to their own belly,

deserved to have a mark set upon them, and to be avoided by all who regarded their own interest, or the peace of others.

What the apostle means by delivering to satan, I am not able certainly to determine. It was not, I am sure, the putting the person in jail, or torturing his body by an executioner, nor sending him to the devil by the sword or the faggot. One thing included in it, undoubtedly was his separation from the christian church; ^[430]“put away from amongst yourselves that wicked person:” which probably was attended with some bodily distemper, which, as it came from God, had a tendency to bring the person to consideration and reflection. The immediate design of it was the destruction of the flesh, to cure him of his incest, that, by repentance and reformation, his “spirit might be saved in the day of Christ;” and the power by which the apostle inflicted this punishment, was peculiar to himself, which God gave him ^[431]“for edification, and not for destruction:” So that whatever is precisely meant by delivering to satan, it was the punishment of a notorious sin: a punishment that carried the marks of God’s hand, and was designed for the person’s good, and was actually instrumental to recover and save him. *2 Cor. ii.*

But what resemblance is there in all this to persecution, in which there is no appearance of the hand of God, nor any marks but those of the cruelty and vengeance of men; no immorality punished, and generally speaking, nothing that in its nature deserves punishment, or but what deserves encouragement and applause. And it is very probable that this is what St. Paul means by his “wishing those cut off” who disturbed the peace of the Galatian christians, by spreading divisions amongst them, and exciting persecutions against them; though I confess, if St. Paul meant more, and prayed to God that those obstinate and incorrigible enemies to christianity, who, for private views of worldly interest, raised perpetual disturbances and persecutions wherever they came, might receive the just punishment of their sins, and be hereby prevented from doing farther mischief, I do not see how this would have been inconsistent with charity, or his own character as an inspired apostle.

It may possibly be urged, that though the things censured in these places are immoralities, yet that there are other passages which refer only to principles; and that the apostle Paul speaks against them with great severity: as particularly, ^[432]“If any man preach any other gospel unto you than that ye have received, let him be accursed.” And again, ^[433]“A man that is an

heretic, after the first and second admonition, reject.” As to the first of these, nothing can be more evident, than that the apostle pronounces an anathema only against those who subverted the christian religion; such who taught that it was insufficient to salvation, without circumcision, and submission to the Jewish law. As the gospel he taught was what he had received from Christ, he had, as an apostle, a right to warn the churches he wrote to against corrupting the simplicity of it: and to pronounce an anathema, *i. e.* to declare in the name of his great Master, that all such false teachers should be condemned who continued to do so: And this is the utmost that can be made of the expression; and therefore this place is as impertinently alledged in favour of persecution, as it would be to alledge those words of Christ, “He that believeth not shall be condemned.” The anathema pronounced was the divine vengeance; it was Anathema Maranatha, to take place only when the Lord should come to judgment, and not to be executed by human vengeance.

As to heresy, against which such dreadful outcries have been raised, it is taken indifferently in a good or a bad sense in the scripture. In the bad sense, it signifies, not an involuntary error, or mistake of judgment, into which serious and honest minds may fall, after a careful inquiry into the will of God; but a wilful, criminal, corruption of the truth for worldly ends and purposes. Thus it is reckoned by ^[434]St. Paul himself amongst the works of the flesh, such as adultery, fornication, variance, strifes, and the like; because heresy is embraced for the sake of fleshly lusts, and always ministers to the serving them. Thus St. Peter: ^[435]“There were false prophets also amongst the people, even as there shall be false teachers amongst you, who privily shall bring in damnable heresies, even denying the Lord that bought them, and bring upon themselves swift destruction; and many shall follow their pernicious ways, by reason of whom the way of truth shall be evil spoken of; and through covetousness shall they, with feigned words, make merchandize of you; whom he farther describes as walking after the flesh in the lust of uncleanness,” and as given to almost all manner of vices. This is heresy, and “denying the Lord that bought us,” and the only meaning of the expression, as used by the apostle; though it hath been applied by weak or designing men to denote all such as do not believe their metaphysical notion of the Trinity, or the Athanasian creed. Hence it is that St. Paul gives it, as the general character of an heretic, that ^[436]“he is subverted,” viz. from the christian faith; “sinneth,” viz. by voluntarily

embracing errors, subversive of the gospel, in favour of his lusts, on which account he is “self-condemned,” viz. by his own conscience, both in the principles he teaches, and the vile uses to which he makes them serve. So that though sincere and honest inquirers after truth, persons who fear God, and practise righteousness, may be heretics in the esteem of men, for not understanding and believing their peculiarities in religion; yet they are not and cannot be heretics, according to the scripture description of heresy, in the notion of which there is always supposed a wicked heart, causing men wilfully to embrace and propagate such principles as are subversive of the gospel, in order to serve the purposes of their avarice, ambition, and lust.

Such heresy as this is unquestionably one of the worst of crimes, and heretics of this kind are worthy to be rejected. It must be confessed, that heresy hath been generally taken in another sense, and to mean opinions that differ from the established orthodoxy, or from the creeds of the clergy, that are uppermost in power: who have not only taken on them to reject such as have differed from them, from their communion and church, but to deprive them of fortune, liberty, and life. But as St. Paul’s notion of heresy entirely differs from what the clergy have generally taught about it, theirs may be allowed to be a very irrational and absurd doctrine, and the apostle’s remain a very wise and good one; and though they have gone into all the lengths of wickedness to punish what they have stigmatized with the name of heresy, they have had no apostolic example or precept to countenance them; scripture heretics being only to be rejected from the church, according to St. Paul; and, as to any farther punishment, it is deferred till the Lord shall come.

As to the powers given to the guides, or overseers, or bishops of the church, I allow their claims have been exceeding great. They have assumed to themselves the name of the church and clergy, hereby to distinguish themselves from the flock of Christ. They have taken on them, as we have seen, to determine, mend, and alter the faith; to make creeds for others, and oblige them to subscribe them; and to act as though our Savior had divested himself of his own rights, and given unto them “all power in heaven and earth.” But these claims have as little foundation in the gospel as in reason.

The words clergy and church, are never once used in scripture to denote the bishops, or other officers, but the christian people. St. Peter advises the presbyterers ^[437]“to feed the flock of God, and to exercise the episcopal office willingly, not as lording it over the heritages,” or clergy of God. And

St. Paul, writing to his Ephesians, and speaking of their privileges as christians, says, that “by Christ they were made God’s peculiar lot,” or heritage, or clergy. In like manner the body of christians in general, and particular congregations in particular places, are called the church, but the ministers of the gospel never in contra-distinction to them. It is of all believers that St. Peter gives that noble description, that they are “a spiritual house, an holy priesthood, to offer up spiritual sacrifices; a chosen generation, a royal priesthood, an holy nation, and a peculiar people,” or a people for his peculiar heritage, or “purchased possession,” as the word is rendered. Eph. i. 14. So that to be the church, the clergy, and the sacred priests of God, is an honour common to all christians in general by the gospel charter. These are not the titles of a few only, who love to exalt themselves above others.

Undoubtedly, the order of the christian worship requires that there should be proper persons to guide and regulate the affairs of it. And accordingly St. Paul tells us, ^[438]“that Christ gave some apostles, some prophets, some evangelists, and some pastors and teachers;” different officers, according to the different state and condition of his church. To the apostles extraordinary powers were given, to fit them for the service to which they were called; and, to enable them to manage these powers in a right manner, they were under the peculiar conduct of the spirit of God, Thus our Saviour, after his resurrection, breathed on his disciples the Holy Ghost, and said, ^[439]“Whose soever sins ye remit, they are remitted to them; and whose soever sins ye retain, they are retained;” a commission of the same import with that which he gave them before, Matt. xviii. 18. “Whatsoever ye shall bind on earth, shall be bound in heaven; and whatsoever ye shall loose on earth, shall be loosed in heaven.” To “bind, is to retain men’s sins; and to loose, is to remit their sins.” And this power the apostles had; and it was absolutely necessary they should have it, or they could never have spread his religion in the world.

But wherein did this binding and loosing, this retaining and remitting sins, consist? What, in their saying to this man, I absolve you from your sins; and, to the other, I put you under the sentence of damnation? would any considerate man in the world have ever credited their pretensions to such an extravagant power? or can one single instance be produced of the apostles pretending to exercise it? No: their power of binding and loosing, of retaining and remitting sins, consisted in this, and in this principally, viz.

their fixing the great conditions of men's future salvation, and denouncing the wrath of Almighty God against all, who, through wilful obstinacy, would not believe and obey the gospel. And the commission was given them in the most general terms, "whose soever sins ye retain, &c." not because they were to go to particular persons, and peremptorily say, "you shall be saved, and you shall be damned;" but because they were to preach the gospel to gentiles as well as jews, and to fix those conditions of future happiness and misery that should include all the nations of the earth, to whom the gospel should be preached.

This was their proper office and work, as apostles; and, in order to this, they had the spirit given them, to bring all things that Christ had said to their remembrance, and to instruct them fully in the nature and doctrines of the gospel. And as they have declared the whole counsel of God to the world, they have loosed and bound all mankind, "even the very bishops and pastors of the church, as well as others," as they have fixed those conditions of pardon and mercy, of future happiness and misery for all men, from which God will not recede, to the end of time. This was a power fit to be entrusted with men under the conduct of an unerring spirit, and with them only; whereas the common notion of sacerdotal or priestly absolution, as it hath no foundation in this commission to the apostles, nor in any passage of the sacred writings, is irrational and absurd, and which the priests have no more power to give, than any other common christian whatsoever; no, nor than they have to make a new gospel.

I would add, that as the apostles received this commission from Christ, they were bound to confine themselves wholly to it and not to exceed the limits of it. They were his servants who sent them; and the message they received from him, that, and that only, were they to deliver to the world. Thus St. Paul says of himself, that ^[440]"God had committed to him the world of reconciliation," and that he was "an ambassador for Christ;" that he ^[441]"preached not himself, but Christ Jesus the Lord, and himself the servant of others for Jesus' sake;" that he had ^[442]"no dominion over others faith," no power to impose upon them arbitrary things, or articles of faith, which he had not received from Christ; and that accordingly he ^[443]"determined to know nothing but Christ, and him crucified," i. e. to preach nothing but the pure and uncorrupted doctrines of his gospel; and that this was his great comfort, that he had "not shunned to declare the counsel of God."

If then the inspired apostles were to confine themselves to what they received from God, and had no power to make articles of faith, and fix terms of communion and salvation, other than what they were immediately ordered to do by Christ, it is absolutely impossible that the clergy can have that power now; who have, as I apprehend, no immediate commission from Christ, nor any direct inspiration from his Holy Spirit. Nor is there any thing in the circumstances of the world to render such a power desirable; because the apostles have shewn us all things that we need believe or practise as christians, and commanded the preachers of the gospel to teach no other doctrines but what they received from them. Hence St. Peter's advice to the elders, that they, ^[444]“should feed the flock of God, not as lording it over the heritage.” And St. Paul, in his epistles to Timothy, instructing him in the nature of the gospel doctrines and duties, tells him, that ^[445]“by putting the brethren in remembrance of these things, he would approve himself a good minister of Jesus Christ;” and commands him to ^[446]“take heed to himself, and to the doctrines” he had taught him, “and to continue in them;” charging him, ^[447]“in the sight of God, and before Christ Jesus, to keep the commandment given him, that which was committed to his trust, without spot, unrebukeable, till the appearance of Christ Jesus.” These were the things to which Timothy was to confine himself, and to commit to others, that they might be continually preached in the christian church; and, of consequence, it is the same apostolic doctrine that the bishops, or elders, or ministers of the church, are to instruct their hearers in now, as far as they understand it, without mixing any thing of their own with it, or of any other persons whatsoever.

The great end and design of the ministerial office, is for the ^[448]“perfecting of the saints, and the edifying of the body of Christ.” Hence the elders are commanded “to take heed to themselves, and to the flock, over which the Holy Ghost had made them bishops, to feed the church of God.” They are likewise exhorted to “hold fast the faithful word, as they had been taught, that by sound doctrine they may be able to exhort and convince others.” They are to “give attendance to reading, exhortation, and doctrine,” and to put others in remembrance of the great truths of the gospel: charging them, before the Lord, not to strive about unprofitable words, but to “be gentle to all men,” and “in meekness to instruct even those who oppose.” They are to “contend earnestly for the faith,” as well as other christians, but then it is for “that faith which was once delivered to the

saints,” and, even for this, ^[449]“the servant of the Lord is not to fight.” He is not to use carnal but spiritual weapons; nor to put on any armour but that of righteousness on the right hand, and on the left. They are to ^[450]“speak the truth,” but it must be ^[451]“in love.” They should be “zealously affected,” but it should be always “in a good thing.” They must “stop the mouths of unruly and vain talkers,” but it must be by “uncorruptness of doctrine, gravity, sincerity, and sound speech, that cannot be condemned.”

Upon these, and the like accounts, they are said to be “over us in the Lord”, “to rule us,” and to be “our guides;” words that do not imply any dominion that they have over the consciences of others, nor any right in them to prescribe articles of faith and terms of communion for others. This they are expressly forbidden, and commanded to preach the word of God only, and pronounced accursed if they preach any other gospel than that which they have received from the apostles. And, of consequence, when we are bid “to obey” and “submit ourselves” to them, it is meant then, and then only, when they “rule us in the Lord;” when they speak to us the word of God, and “labour in the word and doctrine.” In all other cases, they have no power, nor is there any obedience due to them. They are to be respected, and to “be had in double honour for their work sake,” *i. e.* when they “preach not themselves, but Christ Jesus the Lord,” and when their faith and conversation is such, as to become worthy our imitation. But if “they teach otherwise, and consent not to the words of our Lord Jesus; if they doat about words whereof come envy, strife, and railing, supposing that gain is godliness, from such we are commanded to withdraw ourselves.” The episcopal character, however otherwise greatly venerable, then forfeits the reverence due to it, and becomes contemptible.

So that there are no powers or privileges annexed to the episcopal or ministerial character, in the sacred writings, that are in the least favourable to the cause of persecution, or that countenance so vile and detestable a practice. As to the affair of excommunication, by which the clergy have set the world so often in a flame, there is nothing in the sacred records that confines the right of exercising it to them, nor any command ever to exercise it, but towards notorious and scandalous offenders. The incestuous Corinthian was delivered over to satan by the church in full assembly, on which account his punishment or censure is said to be ^[452]“by many.” And though St. Paul bids Titus to “reject an heretic,” he also bids the Corinthians to ^[453]“put away that wicked person from amongst them,” which had

brought such a scandal upon their church; and the “Thessalonians, to withdraw themselves from every brother that should walk disorderly.” So that as the clergy have no right, from the new testament, to determine in controversies of faith, nor to create any new species of heresy, so neither have they any exclusive right to cut off any persons from the body of the church, much less to cut them off from it for not submitting to their creeds and canons; and, of consequence, no power to mark them out by this act to the civil magistrate, as objects of his indignation and vengeance.

I have been the longer on this head, that I might fully vindicate the christian revelation from every suspicion of being favourable to persecution. Notwithstanding some late insinuations of this kind that have been thrown out against it, by its professed adversaries, let but the expressions of scripture be interpreted with the same candour as any other writings are, and there will not be found a single sentence to countenance this doctrine and practice. And therefore though men of corrupt minds, or weak judgments, have, for the sake of worldly advantages, or through strong prejudices, entered into the measures of persecution under pretence of vindicating the christian religion; yet, as they have no support and foundation in the gospel of Christ, the gospel ought not to be reproached for this, or any other faults of those who profess to believe it. Let persecution be represented as a most detestable and impious practice, and let persecutors of every denomination and degree bear all the reproaches they deserve, and be esteemed, as they ought to be, the disturbers, plagues, and curses of mankind, and the church of God; but let not the religion of Jesus Christ suffer for their crimes, nor share any part of that scandal, which is due only to those who have dishonoured their character and profession, and abused the most beneficent and kind institution that ever appeared in the world.

It is in order to expose this shameful practice, and render it the abhorrence of all mankind, that I have drawn up the foregoing sheets; and, I presume, that no one who hath not put off humanity itself, can read them without becoming sentiments of indignation. The true use to be made of that history, is, not to think dishonourably of Christ and his religion; not to condemn and despise his faithful ministers, who, by preaching and practice, by reason and argument, endeavour to propagate knowledge, piety, righteousness, charity, and all the virtues of private and social life. The blessing of the Almighty God be with them. The grace of our Lord Jesus

Christ succeed and prosper them. I say therefore, the use of the foregoing history is to teach men to adhere closely to the doctrines and words of Christ and his apostles, to argue for the doctrines of the gospel with meekness and charity, to introduce no new terms of salvation and christian communion; not to trouble the christian church with metaphysical subtleties and abstruse questions, that minister to quarrelling and strife; not to pronounce censures, judgments, and anathemas, upon such as may differ from us in speculative truths; not to exclude men from the rights of civil society, nor lay them under any negative or positive discouragements for conscience-sake, or for their different usages and rites in the externals of christian worship; but to remove those which are already laid, and which are as much a scandal to the authors and continuers of them, as they are a burden to those who labour under them. These were the sole views that influenced me to lay before my reader the foregoing melancholy account; not any design to reflect on the clergy in general, whose office and character I greatly reverence; and who, by acting according to the original design of their institution, would prove the most useful set of men in every nation and kingdom, and thereby secure to themselves all the esteem they could reasonably desire in the present world; and, what is infinitely more valuable, the approbation of their great Lord and Master in another.

Finis.

The following APPENDIX by the Editor, contains hints on the recent persecutions in this country; a brief statement of the circumstances relating to LORD SIDMOUTH'S BILL; a circumstantial detail of the steps taken to obtain the new TOLERATION ACT, with the Act itself, and other important matter.



APPENDIX, BY THE EDITOR.



Since the accession of King William and Queen Mary, to the throne of Great Britain, and the Act of Toleration, made in the first year of their reign, a degree of religious liberty, unknown to former ages, has been enjoyed by the inhabitants of this highly-favoured country.

In the latter part of the reign of Queen Anne, the religious privileges of Protestant Dissenters were threatened, but by the happy accession of the illustrious house of Brunswick to the throne, their fears were soon dissipated, and their privileges secured.

In the commencement of the late revival of pure and undefiled religion, in this land, about the year 1739, lawless mobs arose, in different parts of the kingdom, and grievously maltreated and persecuted the Rev. John Wesley, the founder of Methodism, the Rev. George Whitefield and others. But as my limits will not permit me to enlarge on the persecutions which these illustrious men endured for a season, I must beg leave to refer the reader, who wishes for further information on the subject, to “Mr. Wesley’s Journals,” the “case, or journal, of John Nelson,” one of the first Methodist preachers, and to a pamphlet entitled, “Modern Christianity exemplified, at Wednesbury, and other adjacent places in Staffordshire.”^[Aa]

I might here also record the persecutions endured by Robert Carr Brackenbury Esq. and Mr. (now Dr.) Adam Clarke, in the Norman Isles, about the year 1786;^[A1] of Mr. Matthew Lumb, in the island of St. Vincent;^[A2] Mr. John Brownell, in the island of Nevis, and of Mr. Daniel Campbell, and others, in the island of Jamaica, in the West Indies;^[A3] also, the recent persecutions at Wye, in Kent;^[A4] at Pershore, in Worcestershire;^[A5] at Childrey, near Wantage, in Berkshire;^[A6] at Wickham Market,^[A7] in Suffolk, and at Drayton, in Shropshire.^[A8] These, with others that might be adduced,

were they particular, would fill a volume; but I forbear, I wish I might for the honour of my country, and of the nineteenth century, to cast a veil over them, and to bury them in everlasting oblivion.

His late Majesty King George the Second, was a firm friend to religious toleration, and was often heard to say, “no man should be persecuted for conscience-sake in his dominions.” His present Majesty King George the Third, has walked in the steps of his royal grandfather. He declared in his first speech from the throne, “that it was his invariable resolution to preserve the toleration inviolate;” a declaration, I am happy to say, which he has religiously fulfilled, through a long and beneficent reign.

When any disturbances, or persecutions, have arisen in any of the British colonies, or extreme parts of the empire, his Majesty has invariably asserted his royal prerogative in redressing the grievances of his subjects; and has always peremptorily refused to recognise any colonial law, which infringed on religious liberty. This will appear from the following authentic documents. In the island of St. Vincent, in the year 1792, the Legislature passed an act “that no person, (the regular clergy excepted) should preach without a licence from them, and that this licence should not be granted to any who had not previously resided for twelve months on the island.” For the first offence the punishment was to pay a fine of ten Johannes, or imprisonment, for at least, thirty days. For the second, such corporal punishment as the court should think proper to inflict, and banishment; and lastly, on return from banishment, death!! were the edicts of the Heathen Emperors more cruel or severe than this! But in the month of October, 1793, his Majesty, in council, was graciously pleased to disannul the act of the Assembly, of St. Vincent, and thus restored liberty of conscience to his persecuted subjects.

An act having passed the House of Assembly, in the island of Jamaica, in December 1802, “prohibiting preaching by persons not duly qualified by law;” after the passing of which act, one minister, though duly qualified at home, by the Act of Toleration, was, for preaching at Morant Bay, cast into prison! This occurred in May 1803, but his Majesty in council, disallowed of that act also, and on the 12th of December, 1804, the following message appeared in the Royal Gazette, Kingstown, Jamaica:—

House of Assembly, December 12, 1804.

A Message from his Honour, the Lieut.-Governor, by his Secretary, as follows:

“Mr. SPEAKER,—I am directed by the Lieut.-Governor, to lay before the House, an extract of a letter from Earl Camden, dated Downing-Street, 7th of June, 1804, together with the draught of a bill, which his Honor has been instructed to be proposed to the house to be passed into a law.”

Extract of a letter from the Rt. Hon. Earl Camden, to Lieut. General Nugent, dated Downing-Street, June 7, 1804,—

“SIR,—I herewith transmit to you an order of his Majesty in council, dated April 23d last, disallowing an act passed by the Legislature of the Island of Jamaica, in December 1802,” entitled, “An act to prevent preaching by persons not duly qualified by Law;” and a further order of his Majesty in council of the same date, to which is annexed, the draught of a bill upon the same subject, which, in compliance with the direction contained in the said order, I am desired you will take an early opportunity of proposing to the Assembly to be passed into a law.”

“Ordered, that the above message and the papers sent down therewith, do lie on the table, for the perusal of the members.”

In December 1807, the Legislative Assembly of the island of Jamaica, passed another law, of a similar nature to the above; but his Majesty in council, on the 26th of April, 1809, was graciously pleased to disallow that law also; thereby fully evincing to the world, his fixed determination to prevent persecution in every part of his dominions, and to shew himself a “nursing father” to the church and people of God. Notwithstanding, however, his Majesty’s most gracious interference in the above instances, such is the persecuting spirit of the government of Jamaica, that they have recently passed an Act plainly intended to prevent, if possible, the instruction of the Negroes, by those who alone will take the pains to bestow it.

This Act was passed November 14th, 1810, entitled, “An act to prevent preaching and teaching by persons not duly qualified, and to restrain meetings of a dangerous nature, on pretence of attending such preaching and teaching.” But as his Royal Highness the Prince Regent, is treading in the steps of his Royal Father, and manifesting the same regard for the religious liberties of the people in this vast empire, we feel confident this persecuting law will meet with the same fate as the former, and will never receive the royal sanction.

We are emboldened to expect this from the recent conduct of his Royal Highness, in the case of Demerary, where a Proclamation had been issued subversive of religious liberty, under the administration of Governor Bentinck, but which his Royal Highness was graciously pleased to discountenance.

The following Proclamation was issued by Major-General Carmichael, who succeeded Governor Bentinck in the government of Demarary, and is copied from the Essequibo and Demarary Royal Gazette, of Tuesday March 7, 1812.

‘Whereas, I have received instructions from his Royal Highness the Prince Regent, to recall the Proclamation issued on the 25th of May, 1811, and to give every aid to Missionaries in the instruction of religion, the Proclamation of the above date is hereby recalled; and the following regulations will take place from this date:—

‘First,—It is to be understood, that no limitation or restraint can be enforced upon the right of instruction, on particular estates, provided the meetings for this purpose take place upon the estate, and with the consent and approbation of the proprietor and overseer of the estate.

‘Secondly,—As it has been represented, that on Sundays inconvenience might arise from confining the hours of meeting in chapels, or places of general resort, between sun-rise and sun-set, the hours of assembling on that day shall be between five in the morning and nine at night. And on the other days the slaves shall be allowed to assemble for the purpose of instruction, or divine worship, between the hours of seven and nine at night, on any neighbouring estate to that to which they belong; provided that such assembly takes place with the permission of the overseer, attorney, or manager of the slaves, and of the overseer, attorney, or manager of the estate on which such assembly takes place.

‘Thirdly,—All chapels and places destined for divine worship, or public resort, shall be registered in the colonial Secretary’s office; and the names of persons officiating in them shall be made known to the Governor; and the doors of the places shall remain open during the time of public worship or instruction.

‘Given under my Hand and Seal-at-Arms, at the Camp-House, this 7th Day of April, 1812, and in the 52d Year of His Majesty’s Reign.

H. L. CARMICHAEL.

In the year 1789, some of the preachers and people connected with the Rev. John Wesley, were harrassed by some Justices of the peace on a pretence entirely new. They were told, “You profess yourselves members of the Church of England, therefore your licences are good for nothing; nor can you, as members of the church, receive any benefit from the Act of Toleration.” Mr. Wesley saw, that if the proceedings on this subtle distinction were extended over the nation, the Methodists must either profess themselves dissenters, or suffer infinite trouble. He certainly did not wish his societies to alter their relative situation to the national church without absolute necessity; and yet he wished them to be relieved from this embarrassment. He therefore stated the case to a member of parliament, (I believe to Mr. Wilberforce,) a real friend to liberty of conscience; hoping that the Legislature might be prevailed upon to interpose, and free the Methodists from the penalties of the Conventicle Act.

The following is an extract from Mr. Wesley’s letter:—

“Dear Sir,—Last month a few poor people met together in Somersetshire, to pray, and to praise God, in a friend’s house: there was no preaching at all. Two neighbouring Justices fined the man of the house twenty pounds. I suppose he was not worth twenty shillings.—Upon this, his household goods were distrained and sold to pay the fine. He appealed to the Quarter Sessions: but all the Justices averred, ‘The Methodists could have no relief from the Act of Toleration, because they went to Church; and that, so long as they did so, the Conventicle Act should be executed upon them.’

“Last Sunday, when one of our Preachers was beginning to speak to a quiet congregation, a neighbouring Justice sent a Constable to seize him, though he was licenced; and would not release him till he had paid twenty pounds—telling him, his licence was good for nothing, ‘because he was a Churchman.’

“Now Sir, what can the Methodists do? They are liable to be ruined by the Conventicle Act, and they have no relief from the Act of Toleration! If this is not oppression, what is? Where then is English liberty? The liberty of christians, yea of every rational creature? who as such, has a right to worship God according to his own conscience. But waving the question of right and wrong, what prudence is there in oppressing such a body of loyal subjects? If these good Magistrates could drive them, not only out of Somersetshire, but out of England, who would be gainers thereby? Not his

Majesty, whom we honour and love: not his Ministers, whom we love and serve for his sake. Do they wish to throw away so many thousand friends? who are now bound to them by stronger ties than that of interest.—If you will speak a word to Mr. Pitt on that head, you will oblige, &c.”

Mr. Wesley also addressed the following letter to the Bishop of _____, on the same subject:—

“My Lord,—I am a dying man, having already one foot in the grave. Humanly speaking, I cannot long creep upon the earth, being now nearer ninety than eighty years of age. But I cannot die in peace, before I have discharged this office of christian love to your Lordship. I write without ceremony, as neither hoping nor fearing any thing from your Lordship, or any man living. And I ask, in the name and in the presence of him, to whom both you and I are shortly to give an account, why do you trouble those that are quiet in the land? Those that fear God and work righteousness? Does your Lordship know what the Methodists are? That many thousands of them are zealous members of the church of England? and strongly attached, not only to his Majesty, but to his present Ministry? Why should your Lordship, setting religion out of the question, throw away such a body of respectable friends? Is it for their religious sentiments? Alas my Lord, is this a time to persecute any man for conscience-sake? I beseech you, my Lord, do as you would be done to. You are a man of sense: you are a man of learning: nay, I verily believe (what is of infinitely more value) you are a man of piety. Then think, and let think—I pray God to bless you with the choicest of his blessings.

I am, my Lord, &c.”

To another Bishop, who, I suppose, had forbidden his Clergy to let Mr. Wesley preach in their Churches, he wrote in his own laconic way as follows:

“My Lord,—Several years ago, the church-wardens of St. Bartholomew’s informed Dr. Gibson, then Lord Bishop of London, ‘My Lord, Mr. Batemen, our rector, invites Mr. Wesley very frequently to preach in his Church.’ The Bishop replied, ‘And what would you have me do? I have no right to hinder him. Mr. Wesley is a clergyman regularly ordained, and under no ecclesiastical censure.’

I am, my Lord,
Your Lordship's obedient Servant,
JOHN WESLEY."

Though the horrible and persecuting laws, known by the names of the Conventicle and Five Mile Acts, had never been repeated, yet, for upwards of a century, they lay nearly dormant, and were generally considered as virtually dead. But, I am sorry to have it to record, that those Acts have been recently roused from their long slumber, to life and action.

In the spring of the year 1811, a bill was introduced into the House of Lords, (which had long been in contemplation) by the Rt. Hon. Lord Viscount Sidmouth, the object of which was said to be the "amending and explaining the Toleration Acts, as far as they applied to Protestant Dissenting Ministers;" but which in fact, had it passed into a law, would have been a violation of the laws of religious liberty, and subversive of the most valuable rights and privileges of the Methodists and Dissenters.

I give the Right Hon. mover of this bill full credit for the purity of its motives, nor do I think he was at all aware that it would eventually operate against the people whom he professed to serve; however, much real good to the cause of religious toleration, whether intended or not, has ultimately ensued from the introduction of this bill into the House of Lords. It excited considerable interest in the nation at large, especially among the dissenters of all denominations. Committees were formed, and various meetings were held by them, and also by the "Committee of Privileges" belonging to the societies founded by the late Rev. John Wesley; a detail of which I shall here beg leave to lay before the reader, by inserting an extract from a narrative of their proceedings respecting Lord Sidmouth's bill, and the speeches delivered by several noble Lords when the second reading of that bill was moved.

"Lord Viscount Sidmouth, it is well known, had long had the present measure in contemplation, and as a foundation for the proceeding, he had made several motions in the House of Lords within the last two or three years, which had for their object the procuring of information relative to the number of licenced teachers, and places of worship, and the state of the Established Church. Returns of the Archbishops and Bishops on these subjects having been laid before the House of Lords; on the 9th of May, 1811, his Lordship rose to call the attention of the House to certain abuses

of the act of William and Mary, and that of the 19th of the present reign, and to move for leave to bring in a bill for amending and explaining the same, as far as they applied to Protestant Dissenting Ministers.

“After what he had to say, their Lordships would see whether the correction of these abuses should not be a matter of anxious solicitude to all persons of all persuasions, and to every one who felt what was due to the dignity, the honour, and the sanctity of religion itself. It was to be regretted, that, up to the period of the Revolution, the history of religion was, in this country, a history of intolerance and persecution. Whatever party was uppermost, whether Catholic, Protestant, or Puritan, the same want of Toleration for diversity of opinion was displayed. The Revolution was the æra of religious liberty in this country, and William III. accomplished that which would ever remain a monument of his wisdom: he meant the Toleration Act. That act, while it removed the penalties to which Dissenters were subject, declared that all the Ministers in holy orders, or pretended holy orders, upon subscribing twenty-six of the thirty-nine articles, upon taking the oaths, and signing a declaration, may officiate in any chapel or meeting-house. By an act of the nineteenth of the King, their signing any of the thirty-nine articles was dispensed with, and they were only to express their belief in the Holy Scriptures. Within the last thirty or forty years, these acts had received a novel interpretation. At most of the Quarter-Sessions, where the oaths were taken and the declaration made, it was now understood, that any person whatever, however ignorant or profligate, whether he descended from the chimney or the pillory, was at liberty to put in his claim to take the oaths before the Justices, to make the declaration, and also at liberty to demand a certificate which authorised him to preach any doctrine he pleased; which exempted him besides from serving in the militia, and from many civil burdens to which his fellow-subjects were liable.

“Now, if religion be the best foundation of all the virtues, was it not a matter of the last importance that it should not be tainted at its very source, and that men who did not choose to follow the regular pursuits of honest industry, should not have it in their power to poison the minds of the people by their fanaticism and folly? He would appeal to any man who had officiated at the Quarter Sessions, whether he had not seen men totally illiterate, without education, without one qualification of fitness, demanding to take the oaths, and obtaining a licence to preach? He did not wish to state

particular instances of gross deficiency as to intellectual qualification, and of gross abuses in other respects, which it was in his power to do. He did not mean to lay much stress on illiteracy; but it was the self-assumption of the office, without bringing any testimony of fitness, to which he particularly meant to object, as inconsistent with the Act of Toleration.

“He had seen the returns of Dissenting Preachers from two Archdeaconries; and many of them, he must say, ought not to have been allowed to constitute themselves the ministers of religion. Amongst the list there were men who had been blacksmiths, cobblers, tailors, pedlars, chimney-sweepers, and what not. These men were totally out of their place: they were not, in fact, at liberty, by law, to take upon themselves the functions of teachers. There were counties in this kingdom where a different interpretation was put on the Toleration Act. In the county of Devon, and in Buckinghamshire, the Magistrates admitted no person to qualify, unless he shewed that he was in holy orders, or pretended holy orders, and the preacher and teacher of a congregation. This he conceived to be according to the real meaning of the Toleration Act; and it was in this way that the Bill he proposed to introduce would explain that Act. He should propose, that, in order to entitle any man to obtain a qualification as a Preacher, he should have the recommendation of at least six reputable householders of the congregation to which he belonged, and that he should actually have a congregation that was willing to listen to his instructions. With regard to preachers who were not stationary, but itinerant, he proposed that they should be required to bring a testimonial from six householders, stating them to be of sober life and character, together with their belief, that they were qualified to perform the functions of preachers.

“The noble Lord then noticed the great increase of dissenting preachers of late years. Those who would be affected by his Bill did not belong to any sect of dissenters; they were of the worst class of the Independants, and distinguished by their fanaticism and a certain mischievous volubility of tongue. In the first fourteen years of the present reign, the average annual increase of dissenting teachers was limited to eight, but now it amounted to twenty-four. The causes of this increase, he considered to be partly the increase of population, and the greater prevalence of religious feelings among the people; but there were other and powerful causes, in the numerous pluralities and non-residence of the clergy. Another great cause was the want of churches to accommodate a numerous population, and,

therefore, his Lordship seriously called the attention of the House to consider how this deficiency could be remedied, and recommended the example of parliament in the reign of Queen Anne, who had ordered the erection of fifty-two new churches in London. He regarded the Church of England as the great preservative of the principles and the morals of the people. Unfortunately, at present, we were in danger of having an established church, and a sectarian people.

“On the question being put, LORD HOLLAND said, that even what had fallen from his noble friend, impressed more strongly on his mind, that no necessity existed for the desired interference. The whole seemed to go upon a fundamental error, that it was only by the permission of government that individuals were to instruct others in their religious duties. He, on the contrary, held to be the right of every man who thinks he can instruct his fellow-creatures, so to instruct them. He was sorry that something slipped from his noble friend, as if he held it improper that persons of low origin, or particular trades, should attempt to teach the doctrines of Christianity. On this point he held a different opinion. Might not even they be inspired with the same conscientious feelings of duty which were required to be felt by those of the higher orders of clergy, to whom the state had given such large emoluments? It was his strong feeling, that it was neither wise nor prudent to meddle with the Act of Toleration. For the measure itself, he did not think a sufficient case was made out, as to the existence of any real practical evils or inconveniences, to require such an interposition on the part of the Legislature. His Lordship then referred to some calculations as to the increase of dissenting teachers of late years, which he did not seem to regard as a misfortune, or an alarming consideration. With respect to what was said of the established church, he agreed in the opinion, that a want of sufficient number of places of religious worship was injurious. This was a point in which the established religion was essentially concerned; it should take care that no insufficiency in this respect should exist. He had no objection that the public purse should, to a certain extent, contribute to the expences of the necessary erections; but he thought the immediate funds of the Church should also contribute. Such was the uniform custom of the Church of Rome, and the established Church in this country should shew itself no less mindful of its duty in so essential a point. With respect to his noble friend’s Bill, he repeated his opinion, there was not a sufficient ground laid for its adoption.

“EARL STANHOPE acquiesced in every thing that had fallen from his noble Friend (Lord Holland.) That noble Lord, on whatever question he spoke, whether wright or wrong, wise or unwise, always spoke from principle. But on the present occasion, he did not think that his noble friend, or the noble viscount had gone far enough. They did not, or would not, touch the real state of the question. They must know, or if they did not, he would tell them, that in most parts of England, where the parishes did not consist of more than a thousand souls, the places of worship, exclusive of private houses, barns, &c. were as three to four of those of the established church; and that if Scotland and Ireland were to be included, the proportion between the Dissenters and the established Church would be found as two to one. Lord Sidmouth had told the House, that hardly more than one half of the clergy were resident on their livings. It would be much better for his noble friend to bring in a Bill to correct this evil, than be dabbling with the Dissenters. The noble Lord had expressed his fears, lest there should be an established Church and a sectarian people—the truth was, that this was the case already, and he would advise his noble friend not to be meddling with that class of men, who had, according to him, the mischievous gift of the tongue, and who might be canvassing among the farmers at elections, and hinting to them that they had tithes to pay. It was better to let these people alone, and for the noble Lord to exert his magnificent abilities in correcting the abuses which existed in the Church. It was well known, that the tide of opinion was running strong a certain way, and it was as vain to think of stopping the current of opinion, as to stop the stars in their course.”

The Bill was then presented, and read a first time, a Copy of which which
I here here insert.

A BILL,

Intituled, an Act to explain and render more effectual certain Acts of the first Year of the Reign of King William and Queen Mary, and of the 19th Year of the Reign of His present Majesty, so far as the same relate to Protestant Dissenting Ministers.

Whereas, by an Act made in the first year of the reign of King William and Queen Mary, intituled, An Act for exempting their Majesties’ protestant subjects dissenting from the church of England from the penalties of certain laws, persons dissenting from the church of England in holy orders, or pretended holy orders, and preachers or teachers of any congregation of

dissenting Protestants, in order to their being entitled to certain exemptions, benefits, privileges, and advantages, by the said Act granted, are required to declare their approbation of and to subscribe to certain articles of religion: and whereas, by another Act, made in the nineteenth year of the reign of his present Majesty, intituled, An Act for the further relief of Protestant Dissenting ministers and schoolmasters, it is enacted, that every person dissenting from the church of England in holy orders, or pretended holy orders, or pretending to holy orders, being a preacher or teacher of any congregation of dissenting Protestants, if he shall scruple to declare and subscribe, as required by the said first recited Act, may make and subscribe the declaration in the said last recited Act set forth, in order to his being entitled to the exemptions, benefits, privileges, and advantages, granted by the said first recited Act, and to certain other exemptions, benefits, privileges, and advantages, granted by the said last recited Act: and whereas doubts have arisen as to the description of persons, to whom the said recited provisions were intended to apply, and it is expedient to remove the said doubts; may it therefore please your Majesty that it may be declared and enacted, and be it declared and enacted by the King's most excellent Majesty, by and with the advice and consent of the Lords spiritual and temporal, and Commons, in this present parliament assembled, and by the authority of the same, that every person being a Protestant, dissenting from the church of England in holy orders, or pretended holy orders, or pretending to holy orders, who shall be appointed or admitted to be the minister of any separate congregation of dissenting Protestants, duly certified and recorded or registered according to law, shall be, and is hereby declared to be, a person entitled to qualify himself to be a dissenting minister, within the intent and meaning of the said recited provisions of the said Acts; and that no other than such person, is so entitled, within the intent and meaning of the same.

And be it further enacted, that from and after the passing of this Act, upon the appointment of any person, being a Protestant, dissenting from the church of England, and being in holy orders, or pretended holy orders, or pretending to holy orders, to be the minister of any separate congregation of dissenting Protestants, duly certified and recorded or registered according to law, and upon his admission to the peaceable possession and enjoyment of the place of minister of the said congregation, it shall be lawful for any _____ or more substantial and reputable householders belonging to

the said congregation, in order that the said minister may duly qualify himself according to this Act, to certify the said appointment and his admission to the peaceable possession and enjoyment of the said place, by writing under their hands and proper names, in a certain form to be directed to the Justices of the Peace at the General Session of the Peace, to be holden for the county, riding, or place where such congregation shall be established; and every such minister, who shall cause the certificate to him granted as aforesaid, to be recorded at any General Session of the Peace to be holden as aforesaid, within _____ after the date of the said certificate, in the manner directed by this Act, (proof being first made on the oath of _____ or more credible witness or witnesses of the hand-writing of the several persons of the said congregation whose names are subscribed to the said certificate,) shall be and is hereby allowed, without further proof, to take the oaths, and to make and subscribe the declaration against Popery, required to be taken and made by the said Act passed in the first year of the reign of King William and Queen Mary, and also the declaration set forth in the said Act, passed in the nineteenth year of the reign of his present Majesty; and, after taking the said oaths, and making and subscribing the said declarations, in manner and upon proof aforesaid, every such minister, shall be, and is hereby declared to be entitled to all the exemptions, benefits, privileges, and advantages granted to Protestant dissenting ministers by the said recited Acts or either of them, or by any Act in the said recited Acts or either of them mentioned or referred to.

Provided always, and be it further enacted, that, nothing hereinbefore contained shall affect or impeach, or be construed to affect or impeach, any provision or exemption, or any qualification or modification thereof, contained in any statute made since the said recited Acts, and now in force, relating to the militia, or the local militia, of this kingdom.

Provided also, and be it further enacted, that nothing hereinbefore contained, shall affect or impeach, or be construed to affect or impeach, the title or claim of any dissenting minister, who before the passing of this Act, shall have taken the oaths, and subscribed the declarations mentioned or set forth in the said recited Acts, or either of them, to have and enjoy the exemptions, benefits, privileges, and advantages, granted by the said Acts, or either of them.

And whereas it is expedient to exempt from certain penalties, other persons hereinafter described, who shall make and subscribe the declaration set forth in the said act of the nineteenth year of the reign of his present Majesty; be it further enacted, that in case any person being a Protestant, dissenting from the Church of England, and in holy orders, or pretended holy orders, or pretending to holy orders, but who shall not have been appointed or admitted the minister of any separate congregation of dissenting Protestants, shall be desirous of qualifying himself according to this act, to preach and officiate as a dissenting minister, it shall be lawful for any _____ or more substantial and reputable householders being respectively dissenting Protestants of one and the same sect of persuasion with the person applying, to certify, on their consciences and belief, by writing under their hands and proper names in a certain form, to be directed to the justices of the peace at the general sessions of the peace to be holden for the county, riding, or place, where the said householders or the major part of them shall reside, that such person is a Protestant dissenting minister of their sect or persuasion, and has been known to them and every of them for the space of _____ at the least before the date of the said certificate, and that such person is of sober life and conversation, and of sufficient ability and fitness to preach or teach and officiate as such dissenting minister; and every person to whom such last mentioned certificate shall be granted, who shall cause the same to be recorded at any general session of the peace to be holden as aforesaid, within _____ after the date of the said certificate, in the manner directed by this act, proof being first made on the oath of _____ or more credible witness or witnesses of the hand writing of the several persons whose names are subscribed to the said certificate, shall be, and is hereby allowed without further proof to take the said oaths, and make and subscribe the said declarations in the said recited Acts mentioned or set forth; and every such person, after taking the said oaths and making and subscribing the said declarations in manner and upon the proof aforesaid, may from thenceforth preach and officiate as a dissenting minister in any congregation of dissenting Protestants duly certified and registered or recorded according to law; and every person so qualifying himself as last aforesaid, shall be wholly exempted from all and every the pains, penalties, punishments, or disabilities inflicted by any statute mentioned in the said recited Acts or either of them, for preaching or officiating in any

congregation of Protestant dissenters for the exercise of religion permitted and allowed by law.

And be it further enacted, that upon the appointment or admission of any person of sober life and conversation to be a probationer for the exercise during a time to be limited of the functions of a protestant dissenting minister, it shall be lawful for any _____ or more dissenting ministers who shall have taken the said oaths, and made and subscribed the said declarations pursuant to the said recited Acts or either of them, or this Act, to certify the said appointment or admission by writing under their hands, in a certain form, to be directed to the justices of the peace, at the general session of the peace to be holden for the county, riding, or place where the said ministers, or the major part of them, shall reside, and that the person so appointed or admitted is of sober life and conversation, and has been known to them for the space of _____ before the date of the said certificate; and every person to whom such last-mentioned certificate shall be granted, who shall cause the same to be recorded at any general session of the peace to be holden as aforesaid, wherein _____ after the date of the said last-mentioned certificate in the manner directed by this Act, (proof being first made on the oath of _____ or more credible witness or witnesses of the hand writing of the said ministers whose names are subscribed to the said certificate,) shall be and is hereby allowed without further proofs to take the said oaths, and to make and subscribe the said several declarations, in the said recited Acts mentioned or set forth; and every such person after taking the said oaths, and making and subscribing the said declarations, may from thenceforth during the period specified in such certificate, and not exceeding _____ next ensuing, preach and officiate as such probationer in any congregation of dissenting Protestants duly certified and registered or recorded according to law; and every person so qualifying himself as last aforesaid shall be and is hereby declared to be during the space of _____ exempted from all and every the penalties, punishments, and disabilities inflicted by any statute mentioned in the said recited Acts, or either of them, for preaching or officiating in any congregation of dissenting Protestants, for the exercise of religion permitted and allowed by law.

Provided always, and be it enacted, that nothing herein contained shall be construed to authorize or enable any person to qualify more than _____ as such probationer.

And be it further enacted, that the Justices of the Peace, to whom any such certificate as aforesaid shall within the time herein limited, be tendered at their general session, shall, and they are hereby required, after such proof in verification thereof as is herein directed, to administer the said oaths and declarations to the person producing such certificate, upon his offering to take and make and subscribe the same respectively, and thereupon to record the said certificate at the said session, and therefore to keep a register; provided always, that any declaration required to be subscribed by the said recited Acts, or either of them, shall be subscribed in open court, with the proper christian and surname, and names of the person making such declaration in his own hand writing, and in the usual manner of his writing, the same in words at length, and not otherwise: provided always, that in the body of every certificate granted by the said officer or officers of the said court to any person as such probationer and not as minister, there shall be expressed the limitation of time for which such certificate shall be in force by virtue of this Act.

And be it further enacted, that every certificate of appointment or admission of any such minister, or of any person to officiate as such minister, or of any such probationer pursuant to this Act, shall be subscribed with the respective proper names of the several persons granting the same in their own hand writing, and in the usual manner of their writing and subscribing the same, and in the presence of the person or persons who is or are to be the witness or witnesses to verify the same before the Court of General Session of the Peace in the manner herein directed.

And be it further enacted, that this Act shall be deemed and taken to be a public Act, and shall be judicially taken notice of as such by all Judges, Justices, and others, without being specially pleaded.”

The reader will immediately see, that this Bill would have had a strong operation upon the economy of the Methodists, but the extent of that operation it was impossible to foresee. However, no sooner was the Bill read, than its effects were sufficiently understood to fill them with great alarm and apprehension for their societies, upon which it would have had the most destructive influence. The members of their “Committee of Privileges” were immediately summoned to meet, which they did, May 14, 1811, when they formed, and afterwards published the following resolutions:

AT A MEETING OF THE GENERAL COMMITTEE OF THE
SOCIETIES OF THE LATE Rev. JOHN WESLEY.

Convened for the purpose of taking into consideration a Bill, brought into the House of Lords by the Right Honourable Lord Viscount Sidmouth, intituled, “An Act to explain and render more effectual certain Acts of the first year of the Reign of King William and Queen Mary, and of the nineteenth year of the Reign of his present Majesty, so far as the same relate to Protestant dissenting ministers,”

*Held at the New-Chapel, City-Road, London,
The 14th of May, 1811;*

IT WAS RESOLVED,

I. THAT the said Bill, if carried into a law, will be a great infringement of the laws of religious toleration, and will be subversive of the most valuable rights and privileges which we as a religious society enjoy.

II. That the said Act will, in future, curtail the privileges and exemptions of our regular preachers, who are wholly devoted to the functions of their office, and to which they are legally entitled under the letter and spirit of the Act of Toleration.

III. That the said Act will render it very difficult, if not impracticable, to obtain certificates for the great body of local preachers and exhorters, and who are not only an useful part of our society, but whose aid is essentially necessary in the very numerous chapels and meeting-houses, in which our congregations assemble.

IV. That with great grief of heart we have observed of late a growing disposition, in different parts of the country, to disturb our meetings, even those which are held only for prayer to Almighty God, and to enforce the penalties of the Conventicle Act upon those who officiate in them: the great inconvenience and heavy expences of which we have already felt. If this system of persecution should be persevered in, the subordinate teachers of our body, to the amount of many thousands of persons in the united kingdom, will be driven to apply for certificates to protect them from the penalties of the Conventicle Act, which indeed they can obtain under the existing laws without obstruction; but if the present Bill should be passed into a law, it will be utterly impossible to consider such persons as dissenting ministers, and to certify them under the said Act: therefore, either an end will be put to the functions of a most valuable and useful part of our

community, or they will be exposed to all the penalties of the Conventicle Act; the consequence of which will be, that as the people cannot, and ought not, to refrain from Acts of social worship, and meetings for religious instruction, the penalties cannot be paid, and the prisons will be peopled with some of the most peaceable and pious characters in the country.

V. That a great number of the persons mentioned in the last resolution (as well as a large proportion of our societies) considering themselves as members of the established Church, to which they are conscientiously attached, will feel it quite incompatible with their sentiments to apply for certificates under the terms of the said Act, which requires them to be certified and to declare themselves as dissenting ministers.

VI. That the offices alluded to in the fourth resolution, are an essential part of the economy of our societies, which has for its object the instruction of the ignorant, and the relief of the miserable, rather than the creation or extention of a distinct sect of religion; and without whose aid, the various chapels of our societies in the united kingdom, which have cost an immense sum of money in their erection, cannot be supported.

VII. That our chapels have been built, and large sums of money, due upon the same, for which the respective trustees are now responsible, have been lent and advanced under the most perfect confidence that our system so necessary for their support, would remain undisturbed; and that those rights of conscience, which our most gracious Sovereign on his accession to the throne declared should be maintained inviolable, would, in this happy and enlightened country, ever be held sacred, and preserved unfringed.

VIII. That it does not appear to us, that the present toleration laws are either so ineffectual, or the interpretation of them so uncertain, as to render any Bill necessary to explain them, much less to curtail the benefits intended to be conveyed by them; but on the other hand we are satisfied, that if the present Bill should pass, the whole law of religious toleration will become more obscure, and its meaning more uncertain; and thus a fruitful source of litigation and oppression will be opened.

IX. That the returns of the archbishops and bishops, of the number of places for divine worship, &c. in their respective dioceses, upon which the present measure appears to be founded, are far from furnishing evidence of the necessity of restricting the operations of religious societies; but on the contrary, they contain the most decisive proofs (from the inadequacy of the parish churches to contain the inhabitants of the kingdom) that the

increasing population calls for all the means of religious instruction, which well-disposed persons of all denominations of christians, have in their power to afford.

X. That from the manifest effect which the diffusion of religion has had for the last fifty years, in raising the standard of public morals, and in promoting loyalty in the middle ranks, as well as subordination and industry in the lower orders of society, which so powerfully operate upon the national prosperity and public spirit, we dread the adoption of any measure which can in the least weaken these great sinews of the nation, or restrain the patriotic efforts of any of the religious communities of the country.

XI. That as we deprecate the consequences of the Bill as it now stands, so we cannot see that any modification of it can meet the views of its Right Honourable and noble proposer, (whose character we highly respect) without essentially deteriorating, the indefeasible rights and privileges of those who are the objects of the toleration laws.

XII. That inasmuch as this Act will most deeply affect our societies, whose moral character and loyalty are unimpeachable, we feel it our duty to declare, that we do not believe there exists among them any practice or disposition, to warrant a legislative measure, which would abridge our rights and privileges.

XIII. That the introduction of the present measure is as unseasonable, as it is needless and oppressive. At any time, religious rights form a most delicate subject for legislative interference, but at such a time as this, when not only unanimity, but affection for the government and laws of our country are more than ever essential, for the patient endurance of the pressure of the times, and the repulsion of the bitterest enemy with which this country had to contend, the discussion of these rights is most feelingly to be deprecated. Much irritation,—even worse than political irritation, would be produced, and the ardent affection of many a conscientious and loyal subject would be involuntarily diminished. We are impressed with these sentiments the more deeply, as not a shadow of a charge is brought against our very numerous body, and we can challenge the most rigid enquiry into the moral and political character of our preachers and our people.

XIV. That, abstaining from all observations on the abstract rights of conscience, but with the views and feelings thus expressed, we are most decidedly of opinion that the present measure is radically objectionable, and

does not admit of any modification; and we cannot but feel it our duty to oppose the Bill in all its stages by every constitutional means.

XV. That we reflect with high satisfaction on the liberal, enlightened, and religious declaration of our most gracious Sovereign, on the commencement of his Reign. “Born,” said his Majesty, in his first speech from the throne, “and educated in this country, I glory in the name of Briton, and the peculiar happiness of my life will ever consist in promoting the welfare of a people, whose loyalty and warm affection to me I consider as the greatest and most permanent security of my throne; and I doubt not, but their steadiness in those principles will equal the firmness of my invariable resolution to adhere to, and strengthen this excellent constitution in church and state; AND TO MAINTAIN THE TOLERATION INVIOLENT. The civil and RELIGIOUS RIGHTS OF MY LOVING SUBJECTS ARE EQUALLY DEAR TO ME WITH THE MOST VALUABLE PREROGATIVES OF MY CROWN; and as the surest foundation of the whole, and the best means to draw down the divine favour on my reign, IT IS MY FIXED PURPOSE TO COUNTENANCE AND ENCOURAGE THE PRACTICE OF TRUE RELIGION AND VIRTUE.” This declaration of our beloved Sovereign has been religiously fulfilled during a long and beneficent reign, and has been humbly met by our societies with the affection it was calculated to inspire. We have built with confidence upon this gracious declaration, and our confidence has not been misplaced. His Majesty has been a shield to the religious of all persuasions, and he has respected the rights of conscience in all. And we cannot doubt that His Royal Highness the Prince Regent, with those just sentiments of truth and sincerity, which he has graciously declared shall be the guide of his character and every action of his life, will feel it is happiness to recognize the high natural rights of conscience; and should it please the wise disposer of all events to restore his afflicted Father to the personal exercise of his royal functions, His Royal Highness will feel it amongst the many blessings of his benevolent and liberal administration, that he has, agreeably to the ardent wishes of a great portion of His Majesty’s loyal subjects, preserved those sacred rights entire, and returned to his beloved Father the Toleration inviolate. We have too much confidence in the wisdom and justice of Parliament, to imagine that a measure will be adopted so obnoxious to such a large proportion of the nation, as our societies and congregations constitute: but if unhappily we should be disappointed, and in the dernier resort, we should be driven to submit our case to His Royal Highness, we have already the gratification of

his royal assurance, that he will “be ready to listen to the complaints of those who may think themselves aggrieved, and regulate his conduct upon the established principles of that ancient and excellent constitution, under which the people of this country have hitherto enjoyed a state of unrivalled prosperity and happiness.”

The following were some of the reasons which induced the committee to adopt the foregoing resolutions:—

I. At present every man may choose his own mode of religious instruction, and every man who is impressed with the belief that it is his duty to preach or teach, has the liberty to do so, on making oath and subscribing certain declarations. These are points fully recognized by the Toleration Laws, and if they were not, religious toleration would, indeed, be confined within narrow bounds. But the proposed Bill is quite a measure of condition and restraint, and would so operate to a very extensive decree.

II. The magistrate now acts ministerially; he will then, we contend, act judicially. This is a point of the very highest consequence to all ranks of christians. At present, the magistrate has no discretion as to the administering the oaths &c.: he is required to administer them to those that offer, &c. But, if the present Bill should pass, he will, of course become the judge of the qualities of the householder who certifies, *i. e.* how far he is substantial and reputable. It appears to us also, that he might probably be the judge of the truth of the certificate: and, therefore, how far the persons certifying were dissenting Protestants, and were of the same sect or persuasion. This would be a most fruitful source of difference of opinion, and, consequently, the hardship would fall upon the applicant for a qualification, who would be exposed to infinite vexation. The very terms are open to difference of opinion in magistrates, as must every other subject upon which they are to decide judicially. This would be the subversion of a principle which has been acknowledged since the first statute on the subject of toleration. Would the power thus given to the magistrate, be any thing less than that which he has in licensing public houses? and can we suppose this to be fitting in religious matters?

III. At present, the Court of King’s Bench will grant a mandamus to admit a dissenting teacher where the chapel is endowed, as in the case of *Rex, v. Barker*, 3 Burr. 1264.... But if this Bill passes, it will, it is presumed, deprive the first class of persons, named in the Bill, of the benefit of this

writ. At present, a person must shew that he is legally qualified, according to law, to act as a dissenting teacher, before he can have the benefit of the mandamus; but under the present Bill, a person must first be admitted to the peaceable possession and enjoyment of the place of minister of a congregation before he can qualify. Now, if there be a contest between two persons, as was the case above-mentioned, and one of them, who, according to the terms of the deed of endowment, is entitled to the possession of the chapel, has occasion to apply to the court for a mandamus to be admitted, how is it possible that the court can grant it, unless he can shew that he is a legal minister, qualified according to the existing laws? This he could not do for want of a qualification under the Act, and this qualification he could not get, for want of the peaceable possession of the very situation which formed the subject of contest. It is obvious, then, what a situation the congregations of endowed chapels would be placed in. The trustees being in possession of the property, might, in most cases, appoint whom they might think proper, and the congregation, and their chosen minister, would have no redress.

IV. There is a phraseology used in the second section, which we have never yet seen adopted, and the mode of wording adds another trait of character before unknown in the law of toleration. It speaks of the appointment of a person, not only being a Protestant, dissenting from the Church of England, and being in holy orders, or pretended holy orders, or pretending to holy orders; but the applicant must have an additional character to be entitled to the immunities of William and Mary, and of 19th Geo. III, that is, he must be the minister of a separate congregation. This word separate, whatever be its meaning, as applied to this subject, was never used till the 43d of Geo. III.

V. With respect to the exemptions, the first class are entitled to all the existing immunities contained in the exemption from militia services and offices. The second class, who are intended, it is presumed, to comprise the itinerant preachers of the Methodist societies, are only exempted by the proposed Bill from pains and penalties, whereas, at present, they are, we contend, entitled to all the privileges of the most regular dissenting minister, presiding over one congregation only. The third class are intended, we presume, to comprise the young student, who is preparing for his office, and preaching to a congregation on trial. These are also only exempted from

pains and penalties, whereas, at present, they also are entitled to the privileges of the most regular minister.

VI. At present, the cost of the certificate is but sixpence, besides the journey to the sessions to take the oaths; but by the proposed law, the applicant must be at the expence of taking a witness with him to verify the certificate. This, when the sessions are at a distance, will sometimes be of importance to a poor candidate for the ministry; but when it is coupled with the circumstance, that this Bill proposes to give the magistrate a judicial power, which will leave him at liberty, more or less, to reject the certificate, on account of the want, as he may suppose, of substance or reputation in the certifier, the disappointment, vexation, and expence may be endless. If the Magistrate have power thus to determine and to reject on the first application, so he may on the second, and ultimately, the applicant may never be considered as properly qualified; and he at length may be obliged to make an application to the superior courts, the determination of which, as it would be a question of fact, might be very expensive. The consequence of this clause, we apprehend, will be very serious.

These being their conclusions, they looked at the proposed Bill with dread and dismay, as being calculated to make the most alarming inroads upon the rights and privileges they had enjoyed since the foundation of their societies in the year 1739.



I shall here also record some of the very judicious and laudable proceedings of the committees of Protestant dissenters on this business.

The Ministers of the three denominations of Protestant dissenters (Presbyterians, Independents, and Baptists,) resident in and about London, have, for nearly a century, regularly associated, and have assembled, at least, annually, for the management of their affairs. A committee was appointed by them, about two years ago, to attend to the progress of the Bill which the noble lord had signified his intention to introduce. As soon as the provisions of this Bill were made known, the committee called a general meeting of the whole body, on Thursday, May 16. The meeting was uncommonly numerous; and the discussions which took place were conducted with candour and harmony.

Library, Red-Cross-Street, May 16, 1811.—At a numerous meeting of the general body of Protestant dissenting ministers, of the three denominations, residing in and about the cities of London and Westminster, regularly

summoned to deliberate on the means of opposing the Bill introduced into the House of Lords by Viscount Sidmouth, which has a tendency to narrow the provisions of the Toleration Act, the following resolutions were unanimously adopted:—

1. That the right of peaceably assembling, for the purposes of religious worship and public instruction, according to the dictates of our own consciences, belongs to us as men, as christians, and as members of civil society; that this right ought not to be abridged or controled, by any secular authority; and that we cannot consent to the alienation or surrender of it, without criminality on our own parts, disrespect to the memory of those from whom we have, under providence, received it, and injury to the best interests of our descendants and successors; to whom it is our duty, as far as we are able, to transmit it inviolable.

2. That this right has been recognized and maintained, from the Revolution to the present day, partly by a liberal construction of the Toleration Act, and partly by the protection of the illustrious Princes of the House of Brunswick; and that it would betray a want of confidence in the favour of our Sovereign, in the justice of the legislature, and in the spirit of the times, to submit to any proposed restrictions of this right, in passive silence.

3. That as faithful and loyal subjects, attached to the civil constitution of our country, and desirous of contributing to that tranquility and union on which its permanence and prosperity very much depend, we cannot forbear expressing our regret that any measures should be proposed which have a tendency, by abridging our liberty as Protestant dissenters, and restraining the exercise of social worship among those with whom we have connected, to excite dissatisfaction and discontent at the present interesting crisis; and, more especially at a time when we had reason to hope that our liberty would have been enlarged instead of being restrained; though we are peaceably waiting for that period in which this happy event shall take place, and penal laws no longer have any operation in the province of religion.

4. That the Bill now introduced into the House of Lords appears to us inconsistent with the unmolested liberty which we have long thankfully enjoyed; repugnant to our principles and profession as Protestant dissenters, who disavow the authority of the civil magistrate in the province of religion, and imposing restrictions which will be in various respects, injurious and oppressive.

5. That it is our duty, on our own behalf, and on behalf of our brethren, as well as with a view to the cause of religions liberty in general, to make every constitutional effort in our power for preventing this Bill from passing into a law; and that for this purpose a petition be presented by this body to the House of Peers.

DAN. TAYLOR, Chairman.

At a Meeting of the Deputies appointed for supporting the Civil Rights of Protestant dissenters, held at the King's Head Tavern, in the Poultry, London, May 15, 1811, WILLIAM SMITH, Esq. M. P. in the Chair:

Resolved, That liberty of conscience, comprehending the freedom of public assemblies for religious worship and instruction, in such forms and under such teachers as men shall for themselves approve, is the unalienable right of all; in the peaceable exercise of which they are not justly controlable by the civil magistrate.

Resolved, That this liberty has been generally recognized in the practice of the British Government since the æra of the Revolution, under the construction of the statute commonly called the Toleration Act; whatever may have been the letter of the law, the spirit of toleration has been extended, and a large portion of religious liberty actually enjoyed.

Resolved, That we have beheld, with great concern, a Bill lately brought into Parliament, designed, as appears to us, to abridge such religious liberty, and having a tendency to deprive the lower classes of the community of those opportunities which they have so long enjoyed, to attend public worship and religious instruction under teachers of their own choice.

Resolved, That, as deputies appointed by large and respectable bodies of Protestant dissenters to attend to their civil rights, it becomes our bounden duty immediately to protest against the principle of such measure, and to point out the unjust and vexatious operation of the aforesaid Bill, as now brought into Parliament.

Resolved, That a Petition against the said Bill, grounded on the principles of the foregoing resolutions, be signed by the members of this meeting, and presented to the legislature.

Resolved, That the foregoing resolutions be signed by the chairman, and inserted in all the public papers.

W. SMITH, Chairman.

At a Numerous and Respectable Meeting of Protestant Dissenters of various Denominations, and other Friends to Religious Liberty, residing in different parts of the United Empire, held at the London Tavern, Bishopsgate Street, May the 15th, 1811, SAMUEL MILLS, Esq. in the Chair.

IT WAS UNANIMOUSLY AGREED,

I. THAT this meeting believe that there are at least two millions of Protestant dissenters in the kingdom of England and Wales, including persons of opulent fortunes, high literary attainments, and active benevolence: that their exertions have contributed to promote industry, knowledge, good morals, social order, and public prosperity. That they are not inferior to any of their fellow-subjects in fervent love to their country, nor in ardent loyalty to their venerable sovereign, whose early promise, ‘TO PRESERVE THE TOLERATION INVIOLEATE,’ has made an indelible impression on their hearts;—and that any measures which might excite their discontent and enfeeble their attachment, would, therefore, at any time, and especially at this period, be inconsistent with the national interest, and with wise and liberal policy.

II. That although this meeting consider the right to worship God according to individual judgment as an inalienable right superior to all social regulations; and, although they have long anticipated a period when all penal laws for worshipping God according to their consciences would be abolished, they have been unwilling to agitate the public mind for the attainment of their hopes; and presuming that no persons would, in this age, venture to assail the Act of Toleration, after the ever-memorable declaration of the King, they have been content to regard it with grateful emotions, and to esteem it as an effectual protection against the recurrence of former persecutions.

III. That the persons assembled at this meeting have received, with great anxiety, the communications frequently made by the Right Hon. Viscount Sidmouth, of his intention to propose legislative enactments, interfering with the laws relating to Protestant dissenters; that they did hope the applications he has received, and the information communicated, would have prevented his perseverance. But they have learned the disappointment of their hopes, and have ascertained the provisions of the Bill which he has at length introduced into parliament with extreme regret, and with painful apprehension.

IV. That this Bill declares that all the provisions relating to dissenting ministers, contained in the Toleration Act, and in the subsequent Act for their further relief, were intended to be limited only to ministers of separate congregations; and enacts, 1. That such ministers upon being admitted to the peaceable possession and enjoyment of the place of minister of a separate congregation, may, on a certificate in writing, under the hands of substantial and reputable householders belonging to such congregation, signed in the presence of some credible witness, who is to make proof of their signatures upon oath at a general Sessions of the Peace, be permitted to take the oaths, and to sign the declaration previously required; and shall then, and then only, during their continuance to be ministers of such separate congregation, be intitled to all the privileges and exemptions which the former acts had conferred. 2. That any other person who may desire to qualify himself to preach as a dissenting minister, must procure several substantial and reputable householders, being dissenters of the same sect, and of the same congregation, to certify on their consciences, in writing, to his being a Protestant dissenting minister of their sect, and of the same congregation, and to their individual and long knowledge of his sobriety of conversation, and of his ability and fitness to preach; and that such certificate must be proved, as before stated, before he be exempt from the pains, penalties, and punishments to which he would otherwise be liable as a dissenting minister. And, 3. That any person of a sober life and conversation, admitted to preach on probation to any separate congregation, must produce a certificate from several dissenting ministers (who have taken the oaths, to be also proved on oath at a general Session) of his life and conversation, and to their long previous knowledge, before he can be permitted to take the oaths and subscribe the declaration; and that he may then, during a limited period, to be specified in the certificate, officiate as a probationer to any dissenting congregation, and be during a limited period, exempt from prosecution and punishment. But neither of the two last mentioned classes of persons, will be entitled to any privileges, or to the exemptions from offices conferred on dissenting ministers by the Toleration Act.

V. That the principle assumed as the foundation of the Bill is incorrect:— That the Toleration Act authorised any persons to become dissenting ministers who conceived themselves to be called and qualified to preach, upon giving security to the State for their loyalty and christian principles,

by taking certain oaths and subscribing certain declarations; and not only prevented their persecution under laws made in times less favourable to civil and religious liberty, but conceiving their labours to be of public utility, granted to them exemptions from all parochial offices and other duties which might interfere with their more important exertions:—That such construction of the Act of Toleration has been sanctioned by the general practice of a century, and has never been impugned by any decision in a superior court of law; and that even if such construction be incorrect, and legislative exposition be required, such declaratory Bill ought to follow the intention of the Act which has subsequently passed; and should extend and not contract,—protect and not impair, the relief afforded by the former ancient and venerable statute.

VI. That the Bill introduced into parliament is not justified by any necessity, and will be highly injurious; that it is unnecessary, because the evils presumed to result from the abuses of the existing laws, by a few persons who may have improperly taken the oaths required from dissenting preachers and teachers, do not exist but to a most inconsiderable extent; and because the extension of all such abuses has been anxiously, and would be effectually discountenanced by every class of Protestant dissenters—and that it must be injurious, because it will introduce forms unprecedented, inconvenient, or impracticable; will render itinerant preachers, students of divinity, ministers on probation, and many persons to whose ardent piety and disinterested labours multitudes are indebted for religious instruction, liable to serve all civil offices, ... and will expose all ministers, or the witnesses to their certificates, to be harrassed by repeated attendances at different sessions, and to capricious examinations, and unlimited expence,—because, by limiting the right of persons to become dissenting ministers, it will impose new restrictions on toleration; and because it will create a precedent for future attempts at even more dangerous or fatal experiments against religious liberty.

VII. That, although most reluctant to interference with political affairs, they cannot but regard the present attempt with peculiar sensations of alarm; and that veneration for their ancestors, regard to their posterity, respect for rights which they can never abandon, and the sacred obligations which they feel, will therefore compel them to disregard all doctrinal and ritual distinctions, and to unite by every legitimate effort to prevent the

pending Bill from passing into a law, and to oppose the smallest diminution of the privileges secured by the Act of Toleration.

VIII. That from the noble declaration of the liberal-minded and illustrious Prince Regent of the Empire, that he will deliver up the constitution unaltered to his Royal Father, this meeting are encouraged to indulge confident hope that a measure so innovating and injurious can never obtain the sanction of his high authority; and they also rejoice that it has not been introduced by his Majesty's government; that respectful application be therefore made to them for their wise and continued protection; that a petition to the House of Lords against the Bill be signed by all the persons present at this meeting, and that all congregations of Protestant dissenters, and other friends of religious liberty throughout the empire, be recommended to present similar petitions, and that a committee consisting of persons resident in London, be appointed to effectuate these proceedings, and to adopt any measures they may deem expedient to prevent the successful prosecution of this Bill; and that dissenting ministers of every denomination resident in the country, be also members of this committee: and that such committee may increase their number, and that any three members be competent to act.

S. MILLS, Chairman.

I now return to the proceedings of the general committee of the societies of the late Rev. John Wesley.

On Thursday they were closely engaged all day in carrying the aforesaid measure into effect, and sending a copy of the resolutions into every circuit throughout the kingdom, that their friends might know the opinion of the committee on the subject, and be prepared to co-operate with it, in every future measure which might be deemed necessary to the preservation of our religious rights.

As Lord Sidmouth had fixed on Friday the 17th for the second reading of the Bill, there was but little time for obtaining signatures to a petition; however, this little time was improved, and on Friday morning, before eleven o'clock, upwards of two thousand signatures were obtained to petitions from their different societies and congregations in the two London circuits.

Application was made to Lord Erskine, who paid the utmost attention to their case; at the same time he most readily engaged to present their

petitions to the House, and to oppose the Bill; as did also Lords Grey and Holland.

In the evening, Lord Stanhope moved, that the second reading of the Bill should be deferred till some future day, which motion was seconded by Earl Grey, and acceded to by Lord Sidmouth; who in a short speech informed the House, that on Tuesday the 21st he should bring the subject forwards for discussion.

This delay was considered a favourable interposition of Providence, as it afforded the Committee opportunity for procuring parchments, and preparing a copy of a petition, to be sent into those circuits from whence they could be returned before Tuesday noon. Special messengers were sent to Bristol, Birmingham, and into some parts of Kent and Sussex; and these were provided with directions and parcels, to be left in every circuit through which they passed, that the urgency of the business might be understood, and every energy exerted to accomplish their purpose.

To evince the zeal and activity which prevailed on this occasion, I here give an extract from a letter written by a gentleman of high respectability, who was actively engaged in this business.

“*May 23, 1811.*”

“Since last Thursday I have been fully occupied, by the “Committee of Privileges,” on the business of Lord Sidmouth’s Bill. On Saturday night at eight o’clock two post chaises and four, set off on this important business, one to Birmingham, and the other to Bristol. At half past eleven the same night, I was sent to seek another, but after going all over the city, was obliged to return to the committee room without one. At half past twelve o’clock, I procured a coach in Aldersgate-street, and, with a friend, drove all over the town in search of a conveyance. A little before three o’clock in the morning while we were knocking up the people at the *fifteenth* Inn, a respectable looking man came up with a lanthorn and enquired, “what was the matter?” we answered ‘we wanted a post chaise and four, and must have it, it being on parliamentary business.’ He replied “he could have supplied us had we come at a more seasonable hour, but now he had only one post boy in the house, and he was gone to bed.” We begged of him to do what he could for us, and at length persuaded him to drive us *himself*. The horses were put to in a trice, and we set off full speed for Bromley, which we reached in an hour and a quarter. Here we again knocked up the people at

the Inn, but lost half an hour before they were ready. Having left our petitions, with solemn orders to deliver them as soon as it was light, we set off for Sevenoaks, which we reached before seven o'clock. Here, while we were explaining the nature of the business we came on, to Mr. _____ we partook of a hasty breakfast. We then jumped into the chaise and started for Tunbridge; having delivered our parcels and given suitable directions, we drove on to the Wells; after delivering our message there, with steady course we pursued our way to Rye, and drove up to the chapel. The morning service was concluded and the people were just coming out; we instantly desired them to stop, telling them, we had come express from London on very important business. Having ascended the pulpit stairs, with every eye fixed upon us, we laid before them the purport of our mission, by informing them of the Bill, and explaining its nature. We then informed them of the Committee appointed for guarding their privileges, and read their resolutions: we told them also of whom the Committee consisted, and that we had travelled the whole night to reach them at that time. We then requested those to stay who wished to sign the petition; not a dozen went away till they had signed. One man indeed, when he heard none was permitted to sign who was under sixteen, whispered to another, and said, "he should not sign, for he thought it was a scheme to take them by surprise to get them drawn for the Militia."

"We dispatched messengers to the places adjacent, to be ready for the evening service: one went out thirteen miles, and did not return until midnight. I left my friend Mr. _____ at Rye, while I went to Winchelsea, about three miles off. The minister had just concluded his sermon when I arrived; having informed him of my design, he requested the whole congregation to stop when the service was ended. I then stated the case, and most of the people signed the petition: one man came and said, "pray Sir, let somebody sign for me." "My good man," said I, "it will not be allowed, you must assist us by your prayers." "Really Sir," said another, "I could wish to sign, but I never wrote my name in my life, but do give me the pen and I will try!"

"At twelve o'clock on Monday we bent our course homeward, and on Tuesday about the same hour, we reached town. We sat close till five o'clock in the afternoon, sending off petitions, in alphabetical order, by coaches, till a message came down express from the House of Lords to inform us, that the business was about to begin. Every one therefore took

his arms full and conveyed them to the coach, which instantly drove off with all speed to the House. I and two other friends had three good loads of those remaining ones which were taken from us at the door of the anti-chamber of the House.

“We had at that time above a thousand petitions on the road. The operations of the Bill were not known beyond the environs of the Metropolis, and yet a mighty flood of petitions poured in. Lord Erskine undertook the cause of our societies.

“After bringing into the House many bags full, the petitions were still so numerous, that his Lordship was obliged to fetch the rest from the anti-chamber in his arms, and he came down to the House several times in this manner loaded like a porter.”

I was myself at Leeds at the time when this Bill was pending in the House: the petitions for that Town and neighbourhood arrived on Wednesday morning May 22nd. The Committee which had been previously formed was sitting at the time, and they immediately dispatched messengers into different parts of the town, and the adjacent villages, to obtain signatures. In the course of that afternoon and the forenoon of the following day some thousands had signed the petitions, and had not the business been stopped on the Thursday afternoon by the arrival of the pleasing tidings that the Bill was lost, many thousands more signatures would have been obtained in a few days.

The different denominations of Dissenters in that large and populous Town, formed a Committee of respectable gentlemen, who also manifested great zeal and activity in this noble cause; they deputed several persons to go to their respective congregations in the country, to obtain signatures to their petitions, which they likewise obtained in abundance. Indeed, such unity of sentiment I never witnessed on any subject before; the pious and candid members of the established Church, cordially united with the Methodists and Dissenters to shew their decided disapprobation of the obnoxious Bill, and all, as with one heart and voice, avowed their determination to oppose, to the uttermost, all restrictions on Religious Liberty.

The same activity was manifested, and similar exertions made, in every part of the kingdom where the nature of the Bill was thoroughly understood, its effects were deeply deplored and deprecated by all classes of people in the land.

“In every place the Messengers met with the most zealous co-operation of the people, who dreading the loss of their religious privileges, came forwards to sign the petitions with an eagerness which was highly honourable to their feelings. At Bristol, the Mayor granted the use of the Town-Hall, and although the notice was so short, yet between twelve and five o’clock on Monday, the petition received upwards of 1900 signatures, and this was in addition to separate petitions from all the dissenting congregations in the city, which were numerous signed. By these means the committee had procured before Tuesday noon upwards of 250 petitions, bearing 30,000 Signatures. The Committee was incessantly employed in examining and taking an account of them. And that every thing might be conducted with the utmost regularity, almost every petition was separately rolled up, tied with red tape, and the place from whence it came, together with the number of signatures it contained, legibly written on one end of the roll, so that when it was presented, the noble Lord had no difficulty in announcing these particulars to the House. It required the utmost exertions of the committee to prepare all things in readiness before the House met; however, this was accomplished, and the petitions were delivered to Lord Erskine in one of the anti-chambers. His Lordship was pleased to express his satisfaction with what had been done, and whilst he was carrying his burthens into the House, appeared to feel a noble pride in the office he had undertaken to perform.”

EARL STANHOPE said, he held in his hand a petition against the Bill, signed by upwards of 2000 persons; and he had no doubt that if the Bill was persisted in, the petitioners against it, instead of thousands, must be counted by millions.

The petition having been received, and ordered to lie on the table,

The Earl of LIVERPOOL rose, and after bearing his testimony to the good intentions of his noble friend who had introduced the Bill, and who, he was confident, had nothing in view dangerous to the wholesome and wise system of toleration in this country, expressed his doubts respecting the prudence of his farther pressing the measure. If it were pressed, the good that would result, would be comparatively much less than was expected in any view of the subject. But if it were pressed under the present misconceptions of its object, and the alarm and apprehension thereby created, the evils produced by it might far preponderate. The Toleration Laws, he was ready to say, were matters on which he thought the

Legislature should not touch, unless it were from causes of great paramount necessity. Under all these circumstances, he trusted that his noble friend would see the propriety of not farther pressing his Bill.

Lord Viscount SIDMOUTH said he was placed in a situation of considerable difficulty, as he must consider the sentiments expressed by the noble Earl as the sentiments of the Government of which he was a principal part. Yet, if his noble friend confessed that misconceptions had gone abroad on the object of his measure, that could not be a reason sufficient for him to withdraw his Bill in the present stage of it. The greatest misconceptions, misapprehensions, and he might add, misrepresentations of the Bill had been made without doors; so that although it was not regular in that stage to enter into particulars, he should for convenience, if not regular, take that opportunity of stating what the Bill was and what it was not.

Earl GREY spoke to order. He would be the last person to interrupt the noble Viscount, but it was certainly quite out of order to enter into the details of the question on the presentation of the petitions, when the opportunity of addressing the House would so soon occur on the second reading. He was convinced of the purity of intention by which his noble friend was actuated, and that he entertained no design of infringing on the just and liberal toleration of every man's opinion and worship; but he thought that the present was not the time for discussing the question when they were receiving petitions, unless the reception of them was to be objected to.

Lord Viscount SIDMOUTH said he should not farther trouble the House at that time. It had not been his intention to take up their time long; but he should reserve himself till the second reading, then more fully to explain himself.

Earl STANHOPE presented fifteen other petitions from different dissenting congregations in various parts of England, (Castlecary, Market Harborough, &c.) which were severally ordered to lie on the table.

Lord HOLLAND rose, and said he had numerous petitions to present to the House against the present Bill, the first of which he should move to be read. It was the joint petition of the three denominations of the dissenters in, and in the vicinity of, the metropolis, namely, the Presbyterian, the Baptist, and the Independent. He should say little by way of preface, except that he believed that that, as well other petitions, would shew that the people of this country were not so ignorant of the nature and character of a Bill brought

into Parliament as not to see and appreciate its consequences on their civil or their religious liberty. He was happy to hear from the noble Secretary of State what he had heard from him that night on the impolicy of such a measure. But, he must say, that the noble Viscount had very fairly shaped his course in the proceedings both last session and this. He (Lord Holland) had last June stated his intention to look with much care and great jealousy at any attempt to meddle with or impair the provisions of the Toleration Act, and he thanked the noble Viscount for having so fully explained his views this session. He could not, however, avoid expressing his surprise and regret that the noble Secretary of State had not taken an opportunity, either last session or this, of stating his prudential objection to the adoption of this measure, instead of leaving that to the present occasion, when the petitions against it were crowding in from all parts of England. He then presented the petition, which was received, and ordered to lie on the table.

Lord HOLLAND then stated that he had a great number of other petitions.

The Earl of MORTON said it was desirable to know whether any of those petitions contained matter which reflected upon, or was irregular to be presented to that House.

Lord HOLLAND said he had been unable to read them all. Several he had read, which contained no such matter. But he should feel pleasure in having them all read to the House, if it would not be too inconvenient in respect of time.

The Earl of LAUDERDALE said that he also had many petitions to present. Such was, however, the opinion he entertained of the respectability of character of the persons who had framed them, that, if there was any intention shown of casting doubt or reflections on them, he certainly should move that every one of those which he should present should be read.

The Earl of MORTON was satisfied with the explanation of the noble Baron (Lord Holland.)

The petitions presented by Lord Holland, 65 in number, were then received, the preambles read, and ordered to lie on the table. They were from congregations in a number of places in Wiltshire, Essex, Dorset, Berks, Middlesex, &c.; one petition we believe, was signed by above 4000 persons.

The EARL of MOIRA rose, and after some observations on the respectability of the petitioners, declared his readiness to stake his responsibility for the propriety of the sentiments they contained. His

Lordship then presented a great number of petitions from different places in London, Westminster, Surrey, Middlesex, Kent, Cambridgeshire, Essex, Berks, Sussex, Bucks, Wilts, Leicestershire, Norfolk, Hants, Herts, Derbyshire, Warwickshire, Northamptonshire, Oxfordshire, &c. amounting to about seventy, all which were ordered to lie on the table.

The EARL of LAUDERDALE then rose, and presented twenty petitions from Bath, the Isle of Wight, Kent, and various other places, with signatures to the amount of more than 10,000 names, all which were taken as read, and ordered to lie on the table.

EARL GREY presented a petition from a Meeting at Bristol, which his Lordship said was intended to have been presented by the High Steward of that city (Lord Grenville.) His noble friend could not attend in the House that night, but he was confident, from what he knew of his opinions respecting the important subject of Toleration, that he was favourable to the prayer of the petition. Ordered to lie on the table.

The Duke of NORFOLK observed, that persons not dissenters, but friends to the principle of Toleration, had signed the petition.

Earl GREY then presented seventy-seven other petitions from Lewes, Portsmouth, Daventry, Colnbrook, Gloucester, and other places, which were also ordered to lie on the table.

The Earl of ROSSLYN presented twenty-five similar petitions from different places. Ordered to lie on the table.

Lord ERSKINE stated, that he had two hundred and fifty-five petitions to present on the same important subject. He should make no other prefatory remark, but to say, that they contained the same opinions on that question which he himself maintained on the subject of the Toleration Act. After having read one of the petitions, his Lordship proceeded to present them to the House, when it was a little amusing to see him engaged for more than half an hour, in lifting up his bags full of rolls one after another, and laying them on the table, then drawing them out and announcing the place from whence each came, and the number of signatures affixed. They were from many parts of the south of England, and some of them had an immense number of signatures.

The Marquis of LANSDOWNE then stated, that he had above 100 different petitions to present to their Lordships on the same subject, and of the same tenor. The first petition he presented, his Lordship stated, was signed by many persons not Protestant dissenters; several of them benefited

clergymen of the established church, who, equally with the Protestant dissenters, deprecated any interference with the Toleration Laws; and was signed by 896 persons. All these petitions were also received, and ordered to lie on the table.

The number of all the petitions received was about 629.

The order of the day was then called for by several Lords, when

Lord Viscount SIDMOUTH rose, and said, that in moving the second reading of this Bill, he should make no remarks on the number of the petitions which had been presented against it, as he readily supposed that the petitioners sincerely believed what they had expressed with respect to the operation of it. His noble friend (Lord Liverpool) had truly stated, that great misconception and misapprehension had gone forth respecting the Bill, and he must add, great misrepresentation. The various public resolutions were, for the greater part, inapplicable to the real objects of his Bill. When the intelligent mind of his noble friend was not quite free from misconception, he could not wonder at seeing the misapprehensions of others. It seemed to be thought that some change was intended in our Toleration Laws. What was it? The object of the Bill, the clauses of which might be amended in the Committee, was merely to give uniformity to the two Acts on which our system of toleration was founded; its object was not to exclude any class of dissenters, but to comprehend all, according to the spirit and meaning of those Acts. This was the sole purpose of the Bill. He was led to propose it, from information, he had a considerable time since received, of what was and is the prevalent mode of executing those Acts. He lamented to think that the effect of those Bills was, that any persons of depraved morals should be able by taking the oath of allegiance, by making the declaration against popery, and subscribing to certain articles of the church, or declaring himself, under the 19th of the present King, a christian and protestant, and a believer that the Old and New Testaments contained the revealed will of God, to claim his licence, and that his certificate should enable him to preach any where any doctrines he pleased; and that this did, in fact, till 1802, exempt him from many civil and from all military services. At first he could hardly credit that interpretation of the laws. He could state, but that he feared fatiguing their Lordships, informations from many magistrates, of numerous applications at Quarter Sessions, evidently to obtain these exemptions. He had heard of what he confessed was creditable to a sect of Dissenters, wherein they acknowledged these abuses,

and expressed their desire to correct them by the expulsion from among them of such unworthy persons; (the Wesleyan connexion was here alluded to.) He had learned with satisfaction, that though the prevalent interpretation of the law was as he had stated, yet with many well-informed and respectable persons it was not so. In Devon, Norfolk, Bucks, and in Suffolk too, he learned that that interpretation was not admitted. Feeling the abuses that were committed, learning the opinions of enlightened men, and the practice of many respectable magistrates on this subject, he had felt it necessary to bring the consideration of it before parliament. He had been encouraged to do so by the opinions of respectable persons, of magistrates, and judges; and he had stated, in June, 1809, that he intended to do nothing but what was with a view to secure the toleration of Protestant dissenters, as well as the support of the church of England, of which he gloried in being a member. By this fair standard he had proceeded, and in his Bill there was nothing to be found inconsistent with it.—He had not contented himself with the authorities he had mentioned, but had sought further information, and even communications with various dissenters. From some of them he had received voluntary communications, and with others he had had conversation; and though many wished he should take no steps in the business, few objected to the measure he proposed. They thought merely, though the measure was innocent, yet that it might excite in other quarters a disposition to introduce into it objectionable clauses. They did not seem, on the whole, to think there was any thing in it materially objectionable. Every class of dissenting preachers, in fact, who had separate congregations, were left by this Bill in the same state as before, with the removal of all sorts of impediments, and the magistrate would know better what was his duty on such subjects. What better mode of attestation could there be than that of several persons of the congregation for those who sought for licences? As to the question of substantial and reputable householders, or householders merely, that was a consideration for the Committee. There was no other regulation but to relieve them from different practices at different Quarter Sessions.

The second point applied to such as had not separate congregations. He did not expect to meet with any difficulty on this subject from the quarter whence it rose. It would be a farce to talk of toleration, he confessed, and at the same time to exclude this class of persons from the rights allowed to other Protestant dissenters, though he must say, that he knew they had often

given great pain and vexation to many most excellent and meritorious beneficial clergymen. Yet he must in candour admit, that hundreds and thousands of people would, through our own unpardonable and abominable neglect, be deprived of all moral and religious instructions, were it not for the services of these persons. Millions in this country were indebted to them for their religious instruction. (*Hear!*) We are not at liberty to withhold the only means of moral and religious knowledge. He had not, therefore, excluded such persons, which would have been contrary to indispensable and eternal justice. The third point of his Bill related to probationers. He had on that point, proposed that six persons should sign their belief of the sober and exemplary life, of the capacity, &c.; of the individual. What test could be more moderate? His object was to follow up the principles of the toleration laws, which never meant that any person should assume to himself the privilege of a preacher and teacher, and exercise such important functions, without some attestations.—(*Hear!*) Any person under the Bill might then be chosen, nay, he might be said even to choose himself, if he procured such attestations. He confessed he did, confidently, but, as he had found, vainly, expect, that he should have had the consent of all the sects and descriptions, who felt what was due to the purity, sanctity, and dignity of religion. All he was apprehensive of was, that some friends to the established church might think the Bill would be inefficient for what was requisite; but he never thought that any Protestant dissenter would consider it inconsistent with the wise and just enactments of the toleration laws. He learned that in the customs of dissenters, probation was requisite for the proof of the gifts necessary for the ministerial office; therefore, he had merely proposed that three dissenting preachers should sign a testimony in the probationer's favour. In our own church, by our ecclesiastical laws, there were certain probations and attestations to be made. A Deacon must have the testimonials of three clergymen to his life, gifts, &c. His name must also be read three times in church. He did not mean to say that this always prevented improper introductions, but that such were the precautions that were observed by law. Though he had received much information on the subject, no man should be placed by him in an unpleasant situation by his stating his name, though there were noble Lords present who knew what information he had received. From the itinerant Methodists, of whom he did not wish to speak disrespectfully, he had grounds on which he expected their approbation. He had formed his

opinions from those of magistrates and respectable gentlemen of various descriptions. Objections had been started at first by his noble friend, for whom he had much respect, (Lord Holland) who seemed to think that any man had a right to take on himself the office of teacher, on making the declarations, &c. and that it was not a question for the Legislature to take up. He would say, that this opinion was utterly inconsistent with the meaning of the Toleration Act. That Act, right or wrong, was a measure of condition. (*Hear, hear!* from the opposition side.) He never could agree to those broad principles. But in some respects, he thought these laws intolerant; where, for instance, they limited religious doctrines. (*Hear, hear!*) His noble friend had called the Toleration Act the palladium of religious liberty. What did he admire in it? Its beneficent effects, he had said, in its providing freedom of worship. Could he deny, that it was differently acted upon in different counties? In proportion to his admiration of it, his wish should be to render its operation universal. It was not so at present. There was no case, wherein when the licence had been refused, the party had, at least for many years, resorted to the Court of King's Bench. He went to another county. Thus, there was a different interpretation in counties bordering upon each other. Let the benefit, therefore, be made universal. If this measure were improper, come at once to the assertion of the broad principle, and try to alter the laws in that way. That broad principle had never existed in any age or in any country.

History, both sacred and profane, shewed the importance that had been always attached to the priesthood, which had never been assumed, but conferred. He was not so read in the sacred writings as he ought to be, and he could touch on them only with great deference. But he had read, "Lay hands suddenly on no man;" and also that persons chosen for such situations should be "of good report." He could not think of the argument taken from the low condition of those who, in earlier days, received their divine missions, as applicable to present times, and as giving authority to the persons he had alluded to, to lay their claims to divine influence, without any attestation to their character and qualifications. The early ages of the church shewed that purity of character was held indispensable to him who attempted to enter into the solemn offices of the priesthood. His noble friend had said, that no case had been made out. He appealed to their Lordships on that point. He then stated a circumstance that recently happened at Stafford, when the magistrate, certainly not regularly, required

the applicant to write his name, but who answered, that he came there not to write, but to make the declaration. He was convinced he had now made out sufficient grounds for the second reading, and for going into a committee. The noble Lord proceeded to state, from a paper he held in his hand, in which the writer mentioned as an instance of the laxity with which licenses to preach were granted, that he had heard a person in the neighbourhood of London, who seemed well versed in all the atheistical and deistical arguments on the subject of religion, lecturing to a crowded audience for two hours and an half, and broaching the most irreligious and even blasphemous doctrines. The Bill which he had introduced would naturally check the existence or spreading of such abuses, which could not fail to be lamented by every man who was a friend to the morals or the happiness of all classes of society; and he feared that the broad principle stated on a former night by his noble friend, (Lord Holland) tended to let loose this class of men, whose labours must be so destructive of civilized society. Their Lordships did not do their duty if they thought themselves absolved from attending to the prevention of such abuses. It was their duty to protect the ignorant and unwary from being led astray, and to put them on their guard against such mischievous practices. The noble Lord then alluded to various resolutions that had been published in the newspapers. It had surprised him much to observe one set of these resolutions subscribed by a very respectable gentleman, who was a member of the other House of Parliament, (Mr. W. Smith,) in which the Bill was represented as being designed to abridge religious liberty. He saw with astonishment that such an object was ascribed to the measure, than which nothing could be farther from his thoughts. Upon the whole, he could not help expressing an ardent wish that the Bill should be read a second time, in order that it might go into a committee, were it might undergo a variety of amendments. He himself should propose several alterations in the committee; but if he perceived a strong unwillingness on the part of their Lordships to entertain the Bill, however much he should regret it, he should respectfully acquiesce in their decision. He concluded with moving, that the Bill be now read a second time.

The Archbishop of CANTERBURY declared his utter abhorrence of every species of religious persecution. Whilst he lamented the errors, as he thought them, of the Protestant dissenters from the church of England, he admitted that they had a full right to the sober and conscientious profession

of their own religious opinions. The sacred writings were allowed by all Protestants to be the great standard of religious doctrine, but the interpretation of them was liable to error. Uniformity of religious belief was not to be expected, so variously constituted were the minds of men, and consequently religious coercion was not only absurd and impolitic, but for all good purposes impracticable. As to the present Bill, he should deliver his opinion very shortly. It appeared to him that there were only two objects which it had in view; the first was, to produce uniformity in explaining the Act of Toleration, and the second was to render the class of dissenting ministers more respectable, by the exclusion of those who were unfit for the office. These objects seemed laudable in themselves, and calculated to increase the respectability of the dissenting interest. At the same time the dissenters themselves were the best judges of their own concerns: and as it appeared, from the great number of petitions which loaded the table of the House, that they were hostile to the measure, he thought it would be both unwise and impolitic to press this Bill against their consent. He therefore wished that the noble Lord would withdraw it, and put an end to the alarm which had been excited, even though it might be groundless.

Lord ERSKINE said, that the evidence which they had had in the multiplicity of petitions which he had the honour to present to them against the present Bill, left no doubt as to the opinion entertained by the Dissenters and Methodists on the subject. But it was to be observed that a small part of the petitions had yet arrived, and that if longer time had been allowed, ten times the present number, which already encumbered their Lordships' table, and loaded the floor of the House, would have been presented; such was the opinion which the dissenters at large entertained of the measure, and such the anxiety they felt at the appearance of encroachment on any of the privileges which they enjoyed.

The Bill professed to be of a declaratory nature, and only explanatory of the Act of Toleration; but he would contend, that it was repugnant both to the letter and the spirit of the Toleration Act. As to the case of a man teaching blasphemous doctrines, a circumstance to which the noble Lord had adverted as having actually taken place, was not such a person, he would ask, liable to be indicted for a misdemeanour? If a man inculcated sedition or blasphemy from the pulpit, was he not liable to be punished for it? and was not this the case with Winterbotham? There was no occasion for any new law against blasphemy; and therefore, so far there was no occasion

for the noble Lord to refer to such an abuse as a ground for the present Bill. His Lordship here made a distinction which is not commonly attended to, and indeed seldom noticed, between the Methodists and other classes of dissenters, by observing that it had ever been their wish to continue members of the established Church, had they not been driven by the Conventicle Act to qualify as dissenters, to avoid the penalties which would have otherwise been levied upon them. That some of them, to this day, have chosen to run the risk of such penalties, rather than qualify as dissenters in opposition to their principles, for they do not dissent from the established Church. And was it wise or just policy to subject this people to the vexatious, and to them, ruinous, operation of a Bill, the principle of which was subversive of the Toleration Act? The noble Lord then spoke in terms of high commendation of the zeal and usefulness of this people, and thought them worthy of encouragement and support, rather than restriction and opposition. He knew that some descriptions of preachers among them asked no exemption from serving in civil offices. If they refused to serve, their certificate would not protect them. The law on this subject was quite clear, and required no explanation. If a man was a religious teacher, and had no other avocation, in that case he had “a local habitation and a name,” he was a pastor and had a flock, from which it was not the meaning of the Toleration Act that he should be abstracted, in order to serve in civil or military offices. But if all this was not the case, then he could claim no such exemption. If the pressure of the times, and the demand for military service, required that such exemption should be narrowed, then do it by a special Act to that effect, and not by narrowing the Act of Toleration. He had formed this opinion after he had been asked by his noble friend to examine these statutes, before he knew that this Bill was to be opposed by the dissenters, and that he should have to present 250 petitions against it, from the societies in and near London, and the neighbouring counties, of the late Rev. John Wesley. But in a few days there would be an immense number from distant parts of the kingdom. He stated that the person just named, the founder of the sect, or numerous body of christians, whose petitions he with pleasure presented to that House, was a man who he had had the honour to be acquainted with; and had heard expound the word of God; whose labours had not been equalled since the days of the Apostles, for general usefulness to his fellow subjects. A man more pious and devoted, more loyal to his King, or more sincerely attached to his country, had never lived. He also

spoke in feeling terms of the eminent character of his own sister (the late Lady Ann Erskine.) The Act was a direct repeal of the most important parts of the Toleration Acts, as they had been uniformly explained for one hundred and twenty years; and he believed that no court and no judges in the country would agree in the construction put on them by the noble Lord. Would they suffer a Bill to pass declaring that to be a law which was not law? It was not only necessary to look into the Toleration Act, but into the intolerant Acts that preceded it, and beat down religious liberty. The noble Lord then went into some of these Acts, and concluded with wishing to God that all of them could be buried in oblivion.

After a variety of other arguments against the Bill, he concluded a long but most eloquent and impressive speech, with moving that the second reading should be postponed to that day six months.

Lord HOLLAND, in allusion to the assertion, that the majority of the petitioners probably did not understand the measure against which they petitioned, observed, that the holding such language was singularly unbecoming and offensive. Looking at the immense number who signed the petitions on the table, it was no light libel to stigmatize them with want of understanding on a question that so closely touched their immediate interests. A Right Rev. Prelate (the Archbishop of Canterbury) had said, that the deluge of petitions which overflowed their table, was produced by misapprehension. To follow up the metaphor, it might be said that this deluge was brought down by the flagrant sin of the Bill. Two charges had been casually thrown out against him (Lord Holland:) one, that he pushed the idea of religious liberty to an extent which struck at the Christian religion itself: this he must utterly deny. The other was, that he gave absurd and extravagant praise to the Toleration Act, an Act which had been characterised as abominably intolerant. He would not go into those considerations, but come directly to the Bill. He had before declared his principles, and he saw now no reason to shrink from them. He was an enemy, a most decided, principled, and resolved enemy, to restraints on religious freedom. He was convinced that every man had a natural right to choose his mode of religious teaching, and that no authority had a right to interfere with the choice. A man had as good a right to preach a peculiar doctrine as he had to print it.

In the language of the Right Reverend Prelate, (the Archbishop of Canterbury) the scriptures were a great largess to the world, a mighty and

free gift to all mankind; not restrained to the disciples or the discipline of a peculiar church, but given for the benefit of the world. (*Hear!*) he considered the Toleration Act as the great religious charter; and religious liberty could not subsist unless it was perfect and secure, in the language of Locke, it was equal and impartial, and entire liberty, of which religion and religious men stood in need. The Toleration Act had two parts. One of them was a most generous and liberal concession to the people, and the other was nothing beyond a base and scanty admission of an undoubted right. In one of those parts a crowd of laws were merely done away, which were a shame to the statute book; laws that ought never to have existed. In the other, it was enacted, that on signing certain articles, an immunity from specified inconveniences should be given to dissenting ministers. He was always unwilling that questions of this nature should be stirred. He would not go into the question, but if it pleased the House that the Toleration Act, which had slept for a hundred and fifty years, should be roused once more, he was ready to meet the whole discussion. When the noble Lord (Sidmouth) had given notice of his measures, the House could scarcely have the aspect in which it was afterwards to look upon them. But at every repetition of the notice, something was added. The evil complained of by the noble Lord was more and more seen to be visionary, but the remedy was seen to be more and more violent. One diminished as the other increased. As to the evils which the Bill was to remedy, there was no document before the House to prove that there was any loss of militia service by the privileges of the dissenters. The noble Lord (Sidmouth) had established his opinion on some private letters, on which probably that noble Lord placed much reliance. But were those things to be documents, authorising the House to heap disabilities on the whole immense body of dissenters? The part of the Bill which went to force the dissenting ministers to be moral, after the fashion of the noble Lord, was new, and offensive, and tyrannical. This was the distinct meaning of the noble Lord. He would manufacture the dissenting ministers into precisely such men as he would wish to have preaching to himself; but this was not the species of preacher that the dissenters chose. This attempt of measuring the morality of the dissenting minister by the noble Lord's private conceptions, was totally opposed to the principles of the Toleration Act, and was calculated to be eminently offensive and vexatious. What was the mode of qualification? They must find six substantial and reputable housekeepers to vouch for their morality. And who

were those that were to have the power of bringing forward six such housekeepers to speak to character; or who was to deny the dissenters the right of having humble men for their teachers? Suppose five hundred paupers choose to hear religion from a man of their own choosing and of their own class; was it to be said, that the desire was beyond what might be permitted? and yet where was this teacher to find his six substantial and reputable housekeeping vouchers? Or was the argument to be persisted in by those men who were ready to boast of their attachment to religion, and to acknowledge, as one of its glories, that it had risen by the labours of humble men, not merely without dependence on, but in opposition to the wealth, and influence, and power, of the great of this world? Yet it was not enough for the Bill that the dissenting minister should be devout and learned, but that he should be proved so to his congregation. How? by the signature of six substantial and reputable housekeepers? Was his ordeal to end here? No; the judgment of the six housekeepers was to be revised by a country justice, before the dissenting congregation could be secure of the teacher whom they had originally chosen for his fitness. The article on probationers was unjust and absurd. When a vacancy occurred in the dissenting pulpit, a number of candidates usually appeared, who were to give evidence of their qualities, by preaching, before they had or could have obtained an appointment. By the operation of the article now alluded to, those young men would be subjected to the horrid penalties of the Conventicle Act. If this Bill were to pass, they would find 50,000 Methodist teachers applying immediately for licences, for fear of persecution. But though the regular Methodist teachers might not have any thing to fear from a prosecution of that nature, since the wise statute of Anne, yet if this Bill passed, the whole important body of the itinerants would be exposed to peculiar hazards. The noble Lord (Sidmouth) had spoken of having had the approbation of many respectable dissenters on the Bill; but he (Lord Holland) had conversed with many on the subject, and he had not found one who did not decidedly disapprove of it entire. The Bill was completely at variance with the original idea thrown out to the House, as he understood it; and he could not doubt that it was at variance with all that he had ever learned to revere as the genuine principles of religious liberty. (*Hear! Hear!*)

Lord STANHOPE said, he did not now rise to oppose the Bill, because it had already got its death blow. He hoped, however, it would be followed up by a measure of a very different nature, (alluding to the repeal of the Conventicle

Act). He had never felt more pleasure in his whole parliamentary life, than he had done on this very day; and if any one asked him the reason, he would tell them, it was at the immense heap of petitions that was then strewn upon their floor, and piled upon their table, and all against this most wretched Bill. He liked this, because a kind of silly talk had been going abroad that there was no public. He had always thought otherwise. He had heard it said, that such was the public feeling, that they would not, at the present moment, be affected by any thing which could possibly happen. The petitions now on their Lordship's table, however, completely gave the lie to this allegation. The event had shewn that there was still a public opinion in this country, and that, when called into action, it could manifest itself speedily, and with effect. He was happy this had occurred. He had never doubted that there was still such a thing as public opinion; and hoped those noble Lords who had hitherto doubted the fact, would now be convinced of their error. And he saw to-day that there was a public, and a public opinion, and a public spirit. He saw it in the multitude of petitions sent up on so short a notice; and he was rejoiced to find it alive, active, and energetic. He would not talk of the Bill; that was dead and gone; and it would be beneath a man of sense to quarrel with the carcase. (*A laugh!*) The Bill was declaratory as well as active, and it was illegal as well as either. He defied all the Lawyers in the House, and out of the House to prove that this wretched and unfortunate Bill was not illegal. (*Hear!*) He would not condescend to argue every point. It was unnecessary to argue upon what was beyond human help. It was all over with the Bill; its hour was come; the Bill was dead and gone, but he must say something on the subject, however. The noble Lord (Sidmouth) had declared the Conventicle Act to be abominable. He (Lord Stanhope) was one of those who detested that Act which they called the Toleration Act, and for this reason, because it did not go far enough. He hated the name of the Toleration Act. He hated the word Toleration. It was a beggarly, narrow, worthless word; it did not go far enough. He hated toleration, because he loved liberty. (*Hear!*) There was not a man in that House—not one among the law Lords—not one, perhaps, among the Bishops themselves, that had read so many of our religious statutes as he had; and disgusting, and foolish, and wicked, the most of them were. He had gone through them with a professional man by his side, and with his pen had abstracted and marked off 300 laws about religion from the Statute Book; and he ventured to assert, that they were of such a

nature as would make their Lordships disgusted with the Statute Book, and ashamed of their ancestors, who could have enacted them. There was but one good statute that he saw, and that was a model for statutes: it was the wisest on religion that he had ever seen. It was a statute of Edward VI. who might fairly be said to be the first protestant Prince who had ever reigned in this country, for King Henry the eighth, that defender of the faith, could hardly be said to be a real protestant. This statute of Edward VI. abolished the whole set of religious statutes before it. Yes, shoveled them away all at once; it was the best of statutes. (*laughing!*) For what need had religion of Acts of Parliament? Was not religion capable of standing by itself? (*Hear! hear!* from Lord Sidmouth.) The noble Lord might say, *hear! hear!* but was it not true? If the noble Lord did not believe it, he (Lord Stanhope) at least did. Was not America religious? Yet there, there was no established religion—there, there were no tythes. In one particular state, that of Connecticut, he was informed there was a law, that if any man voluntarily gave a bond to a clergyman, no suit upon it could be entertained in a court of justice. And for a good reason, because it being the duty of the clergyman to instruct his flock, and to make them good and honest men, if he succeeded in doing so, no such suit would have been necessary: on the other hand, having failed to perform his duty, he could have no right to be rewarded. Oh! if the establishment in this country were never to be paid till they made the people honest, many of them, he was afraid, would go without any reward whatever. All, then, must have a right to choose for themselves in matters of religion and this was not the first time he thought so.

To toleration, as it now existed in this country, he was, as he already said, a decided enemy; but to religious liberty he was a most decided friend, convinced that no restraint should be put on religion, unless in so far as it might seem to endanger the state.

Earl GREY said, though he perceived that his noble friend (Sidmouth) did not mean to press this Bill farther, yet, he could not allow the question to be put without declaring his unchangeable objection both to the details and to the principle of the Bill, to which no modifications could ever reconcile him. The principle of the Bill was restraint—restraint vexatious and uncalled for. That it was a Bill of restraint, even his noble friend (Sidmouth) himself had not denied, or attempted to disguise. He (Earl Grey) was against all restraint. He went along with his noble friend (Lord Holland) in thinking that every man who was impressed with a belief that he had a call

to preach, ought to have every liberty allowed him to do so. One inconvenience stated to result from this unlimited liberty had been said to be of a purely civil nature, inasmuch as it afforded facilities to men not actually preachers, but who pretended to be so, to avail themselves of that character, to escape certain obligations imposed on the other subjects of the country, such as serving in the militia, &c. Judging from the papers on the table, he could not see the force or justice of this observation. For the last forty years the number of persons licensed appeared to have been about 11,000. He should take, however, the last twelve years. Dividing them into two equal parts, it appeared that, in the six former years, the number licensed was 1,100, and, in the latter six years, 900, so that the number had diminished, instead of increasing, and the present measure, instead of being thereby more peculiarly called for, had become so much the less necessary.

Lord SIDMOUTH briefly replied. He took some objection to the legal reasoning on his Bill, and professed himself not dismayed, by the opposition which it met, from bringing forward any future measures on the subject, which he thought suggested by his duty.

The question was then put by the Lord Chancellor, “that the Bill be read a second time this day six months,” and carried without a division: it was therefore entirely lost.

Lord SIDMOUTH’S Bill being thus lost, and the subject of Toleration having been so fully discussed, and so ably defended in the House of Lords, it was rational to hope that the cause of religious liberty would now be triumphant; that persecutors would be ashamed and hide their heads; that the pious people of the land would enjoy their privileges unmolested; that every man would be permitted to worship God according to the dictates of his conscience, and “sit under his vine and fig-tree, none daring to make him afraid.” But alas! this hope was fallacious; the spirit of persecution revived, a new construction was put upon the Toleration Act, and “the enemies of religious liberty exerted themselves to effect that without law, which they failed to accomplish by it.” Several magistrates in different parts of the kingdom, at the Quarter Sessions of the peace, refused to administer the oaths as formerly, to the ministers who applied, and in some cases they were treated with rudeness and contempt!

The Conventicle Act was again brought into use, and several persons were fined, or imprisoned, for preaching without licences, or in unlicensed

houses, and in one instance, for *praying* with a few poor people: this religious exercise, by a certain Nobleman, who was chairman of the Quarter Sessions, was construed in *teaching*, and the man was fined accordingly! This extraordinary decision, however, was overruled by an application to the Court of King's Bench, and the fine returned.

Dreadful outrages were committed in various parts of the country, and the lives and liberties of his Majesty's peaceable and loyal subjects were threatened and endangered.

These circumstances greatly alarmed the nation, and more especially as several cases had been brought before the Court of King's Bench, and the decisions of the Judges appeared to be contrary to former interpretations of the Toleration Act. Matters now began to wear a very alarming aspect, and it was apprehended that the persecuting spirit of former ages was about to be revived. The Toleration Act, under which the Methodists and Dissenters had been so long protected, it was now discovered, could no longer afford them protection. This state of things excited universal interest; the minds of the pious people in the land, both in and out of the established Church, were greatly agitated; and it was deemed highly expedient, yea absolutely necessary, that some decisive steps should be immediately taken, for the better security of the invaluable rights of Conscience and Religion.

The Committees of the different denominations of Dissenters, of the friends of Religious Liberty, and of Mr. Wesley's Societies, as mentioned before, were again convened; and after the most mature deliberation, it was unanimously determined respectfully to submit their grievances to his Majesty's Ministers, and to pray for redress. This they did, first to the late Right Honourable Spencer Perceval, Chancellor of the Exchequer, who approved of the plan proposed for their relief, and promised them support; as will appear from the following authentic copy of a letter, dated Downing-street, April 10th, 1812, and addressed to Joseph Butterworth, Esq. Fleet-street.

Downing-street, April 10, 1812.

SIR,—Having had an opportunity, in the course of the late recess, to consider, with my colleagues, the subject of your communication, on the part of the dissenters, I proceed to acquaint you as I promised, with our opinion upon it.

It appears to us, that the interpretations recently given, at different Quarter Sessions, to those statutes under which magistrates are authorized

to grant certificates to persons wishing to act as Dissenting Ministers, (and which interpretations, as far as they have hitherto undergone judicial decision, appear to be more correct constructions of these laws, than those which heretofore prevailed in practice,) place the persons, who wish to obtain certificates as Dissenting Ministers, in a situation so different from that in which the previous practice had placed them, as to require parliamentary interference and relief, to the extent, at least, of rendering legal the former practice; and I shall, therefore, be willing, either to bring forward, or to support, an application to parliament for the purpose of affording such relief.

Understanding, however, that a case is now pending in judgment, before the King's Bench, upon the construction of some part of these Acts, it appears to me, that it will be desirable to postpone any direct application to the Legislature till that decision shall explain the exact state of the law upon the point in dispute in that case. By postponing the application to parliament till after the decision in that case, no such delay will be incurred as will prevent the application to parliament in this session, since the decision will, I believe, be pronounced upon it in the ensuing term.

The precise mode of giving this relief, whether by the repeal of any existing laws, or by making the Act of the magistrate purely ministerial, in administering the oaths, and granting the certificates, to such persons as may apply, is a matter which I wish to be understood as reserved for future consideration; but I think it material to state, distinctly, that I understand the desire of the persons, whom you represent, to be this—that the exemptions to be conferred by such certificates, from the penalties, to which such persons might otherwise be exposed for preaching, &c. should be universal to all who so qualify themselves; while the exemption from civil and military burdens or duties should be confined to those only who are ministers of congregations, and who make the ministry so completely their profession, as to carry on no other business, excepting that of a schoolmaster.

As to the question respecting the liability of dissenting chapels to the poor rates, I am convinced that the dissenters must consider it as a subject of very inferior importance, both in effect and in principle.—On principle, I conceive, all that could be required would be, that the chapels of dissenters should be put precisely on the same footing as chapels belonging to the establishment; if they stand on any other footing, in point of legal liability

at the present moment, (which, however, I do not understand to be the case,) I should be very ready to propose, that the law in that respect should be altered.

If you wish for any further communication with me on this subject, I shall be happy to appoint a time for seeing you.

I have the honour to be,

Sir,

Your most obedient humble Servant,

(Signed) SP. PERCEVAL.

This letter reflects great honour upon Mr. Perceval, but his lamented death which happened on the 11th of May following, put a stop to the proceedings of the Committees for some time.

In the month of June they made application to the Right Hon. the Earl of Liverpool, who very politely received the deputation from the committees, and engaged to bring forward and support a Bill which would effectually relieve them, and secure to them all their religious privileges. A Bill was accordingly, in the month of July, introduced into the House, which speedily passed through both the Lords and Commons, almost without opposition, and received the Royal Assent on the 23d of July. This auspicious Act is entitled “an Act to repeal certain Acts, and amend other Acts, relating to religious worships and assemblies, and persons teaching and preaching therein.”[Ab]

[Footnote Ab: 52 George the Third, Chap. 155.]

I consider the obtaining the new Toleration Act as a glorious epoch in the annals of British history: it reflects great honour upon the nation, upon his Majesty’s government, upon the Legislative authorities of the land, and upon *all* who used their exertions to obtain it; I could not therefore deny myself the high gratification, at the close of this work, to record the most interesting circumstances which have come to my knowledge, of this important event.

It has excited sentiments of gratitude and joy in the hearts of every liberal-minded person in the country, and will more than ever endear to them our happy constitution and the lenient Government under which, Divine Providence hath placed us.

I record these circumstances the more willingly, because they form a happy contrast between the present enlightened and meliorated state of

society and that recorded, by Dr. Chandler, in the preceding pages.

The following document may be deemed authentic, and though containing but a small part of the interesting account which might be given, will nevertheless gratify thousands of the present generation, and will be read with grateful emotions by those who are yet to be born. Our children, who may rise up after us, when we are “gathered to our fathers,” will pronounce the framers and promoters of this Act blessed; and our children’s children will joy fully exclaim, O GOD WE HAVE HEARD WITH OUR EARS, AND OUR FATHERS HAVE DECLARED UNTO US THE NOBLE WORKS THAT THOU DIDST IN THEIR DAYS, AND IN THE OLD TIME BEFORE THEM.



The following is a detail of the steps taken by the Committee of Privileges, belonging to the Societies founded by the late Rev. John Wesley. The letter was addressed, by the Committee, to the Superintendants of Circuits in the Methodist connection.

London, July 31st, 1812.

In May last the General Committee of Privileges addressed a circular letter to the Superintendants of Circuits, with a view to allay the apprehensions of the people, under the circumstances in which they were then placed from the new construction of the Toleration Act; and to assure them, that no time would be lost in taking such measures as were likely to promote the success of an application to the Legislature for relief; and they, at the same time, inclosed the copy of a letter from the late Mr. Perceval (published with his permission) in which he promised to bring forward or to support such an application to Parliament:—but the melancholy death of that lamented statesman, put an end for some time, to the correspondence with Government upon the subject.

The Committee, being of opinion that a measure of this nature and magnitude, ought to *originate* with his Majesty's Government, (whoever might be in office for the time being) solicited no individual member of the Legislature on the subject, but waited till an administration was appointed; when this was done the Committee lost no time in addressing the Right Honourable the *Earl of Liverpool*: and after the necessary communications, a Bill was introduced into Parliament under his Lordship's auspices, which, to our inexpressible satisfaction has now passed into a law.

In order to understand the bearings and effect of this important and salutary Act of Parliament, and before we make any general remarks, it may be necessary to advert to the situation in which our Societies were placed, and to some of the proceedings of the Committee for the purpose of accomplishing the object they had in view.

By the CONVENTICLE ACT, (22 Charles II. c. 1) it was enacted, that if any person of sixteen years of age and upwards, should be *present* at any Conventicle or meeting for religion, other than according to the Liturgy, and practice of the Church of England, at which should be present above five persons besides those of the same household, he *should pay a fine of five shillings* for the first offence, and *ten shillings for every subsequent offence*; which penalties might, in case of the *poverty* of an offender, be levied on the goods and chattles of *any person present*. *Every person* who should *teach* or *preach* at such Conventicle or meeting, should forfeit *twenty pounds* for the *first offence*; and *forty pounds, for every subsequent offence*. Every person who should suffer any such Conventicle or meeting in his house or premises, should *forfeit twenty pounds*, which, in case of his

poverty, might be levied upon the goods of *any person present*. The *justices* and the *military* were impowered to enter Conventicles, and disperse religious meetings. And the Act declares the principle (most severe and intolerant) upon which it is to be interpreted, namely:—“*That it shall be construed most largely and beneficially for the suppressing of Conventicles, and for the justification and encouragement of all persons to be employed in the execution thereof;*” and that no *record*, *warrant*, or *mittimus* to be made by virtue of that Act, or any proceedings thereupon should be *reversed*, *avoided*, or *any way impeached*, by reason of any *default in form*! It was also declared, that the goods and chattles of the *husband* should be liable for the penalties incurred by the *wife* for *attending a meeting for religious worship*.

As to the FIVE MILE ACT, (17 Charles II. c. 2) it is thereby declared, that persons therein mentioned who should *preach in any Conventicle, should not come within five miles of any corporate town sending burgesses to Parliament*, unless in passing upon the road, before such person shall have taken the oath therein-mentioned at the Quarter Sessions, under a penalty of *forty pounds*.

Besides these two Acts of Parliament, there were several other Acts which rendered nonconformity, or a deviation from the established religion of the country, unlawful, and highly penal.

Thus stood the law relative to religious assemblies on the accession of King WILLIAM and Queen MARY, when, or soon afterwards, an Act of Parliament was passed for the relief of conscientious persons, suffering under or exposed to those intolerant and oppressive laws. By that Act (1 William and Mary, c. 18) usually called the TOLERATION ACT, it was in substance declared, that with regard to *private individuals*, the former Acts should not extend to *any person dissenting from the Church of England*, who should at the Sessions take the Oaths, and subscribe the Declaration therein mentioned; and with regard to the *ministers of religion*, it was enacted that no *person dissenting from the Church of England*, in Holy Orders, or pretended Holy Orders, or pretending to Holy Orders, nor any preacher or teacher of any congregation of *dissenting* Protestants, who should at the Sessions make the *Declaration* and take the Oaths therein expressed, should be liable to the penalties of the Acts of Parliament therein mentioned. Provided that such person should not at any time preach in any place *with the doors locked, barred, or bolted*. By this Act also, a justice

was empowered at any time to require *any person* that went to any meeting for the exercise of religious worship, to subscribe the *Declaration* and take the *Oaths* therein mentioned; and in case of refusal, to *commit such person to prison*. And the ministers of religion having taken the Oaths under the Act, were exempt from certain offices. It was declared, that no assembly for religious worship should be allowed till *registered*. And disturbers of religious worship coming *into* a registered place, were subjected to the penalty of twenty pounds. There are other provisions in the Act, which it may be unnecessary to mention; nor need we particularize the STATUTE of the 10th of *Queen ANNE*, c. 2, which extends the liberty of a person having taken the Oaths in one county, to preach in another county; nor the STATUTE of the 19th of *George III.* which regulates the *Oaths* and *Declaration* to be made, and extends the exemptions.

You will perceive, that it was only by the operation of these last Acts, that any *Protestant* not resorting to the established church, could be protected from the antecedent penal statutes; and in proportion as the construction of these Tolerating Acts was limited, would be the destructive operation of those penal statutes. However, these Acts of Toleration were considered by the various classes of Dissenters as the Palladium of their religious liberty; and their efficacy for the protection of the various classes of *Dissenters* was never questioned till very lately; and all who believed it their duty to preach the religious doctrines which they held, and were inclined to protect themselves from the penalties of former Acts, found little difficulty in getting the magistrates at the Sessions to administer the oaths; &c. as it was the generally received doctrine, that the magistrates acted merely *ministerially*—that they had no authority to enquire into the *fitness* or *character* of the applicant—and could not refuse the oaths, &c. to any man who represented himself in *Holy Orders*, or *pretended Holy Orders*, or as *pretending to Holy Orders*; or as being a *teacher* or *preacher* of a congregation *dissenting* from the church of England; and it was thought, that there could scarcely be any *dissenting* teacher of religion who could not properly consider himself as falling within one of the above descriptions. But latterly there has been a manifest alteration in the conduct of many magistrates, who, by narrowing the construction of the Toleration Act, have, on many alleged reasons, refused the oaths, &c. to several applicants. The *new construction* of the magistrates, has in some points of very great importance to the religious nonconformists, or occasional conformists, been

sanctioned by the Court of King's Bench, which held, that a man to entitle himself to take the oaths, &c. as required by the Act of Toleration, ought to shew himself to be the acknowledged teacher or preacher of some *particular congregation*, and that it was not enough for a man to state himself a Protestant Dissenter, who preaches to several congregations of Protestant Dissenters. And with regard to persons pretending to Holy Orders, the decision of the Court left us in great uncertainty.

In this state of perplexity, with regard to what was to be the construction of the Toleration Act, or rather of probability that it would afford but a very insufficient protection for the *Methodists, even if they could denominate themselves Dissenters*, the Committee were under the necessity of deeply considering the situation of the whole body. But when they were constantly receiving intelligence from various parts of the country, of the appearance of a new spirit of hostility to the *preachers*, and of persecution against the *harmless members* of their Societies, by enforcing the penalties of the most odious of obsolete laws upon the persons of the poor and defenceless, the Committee were exceedingly alarmed. For although they admired, and have experienced the benefit of the pure and impartial administration of justice, for which this country is so celebrated, yet they could not but consider the state of the Societies with apprehension, when they saw the press teeming with the grossest slander and falsehood against them; their religious practices traduced and vilified; and they themselves represented as "*vermin fit only to be destroyed*," had such representations been casual, they would have been disregarded; but when they were reiterated in certain popular *Publications month after month*, and one *quarter* of a year after another—when the legislature were loudly and repeatedly called upon to adopt measures of coercion against them, under the pretence that evangelical religion was inimical to public security and morals; and, as they saw, that in unison with this spirit, there seemed a growing disposition in many to enforce the penalties of the *Conventicle Act* upon those who either *had not* taken the oaths, or *could not* take them, or *were not permitted* to take them, &c. under the Toleration Act, the Committee were under the greatest apprehension that the Societies were about to be deprived of that liberty to worship God, which, either under the law, or by the courtesy of the country, they had enjoyed from their first rise nearly a century ago. And their fears were far from being allayed by the intelligence which thickened upon them, and they became furnished with a mass of incontrovertible evidence from

different parts of the country, which shewed that, even if the members of our Societies were to be considered as *Dissenters*, it would be utterly impossible to get protection under the Toleration Acts for our Preachers and Teachers, especially for the Local Preachers, Class Leaders, &c. &c.

These various Teachers were absolutely necessary for our economy, and without them we knew that our Societies and religious customs could not be carried on. They had, it is true, been *tolerated* by the general *consent* of the country, rather than *protected* by the *law*; but this had with almost equal efficacy secured the free exercise of their religious privileges.

However, as a bitter spirit of intolerance was thus manifesting itself, the Committee thought it in vain to contend for protection under acts of parliament which were of *uncertain interpretation as to Dissenters*, but of no value to those who *considered themselves as belonging to the Church of England*, of which the great bulk of our Societies is composed, the Committee therefore determined to submit their case to the Government, and to Parliament; and to solicit the adoption of such a measure as would secure to the *Methodist Societies*, and to *other denominations of Christians suffering with them*, the free exercise of their religious rights and privileges.

It now became necessary for the Committee deeply and critically to consider the situation and principles of the Societies, in order to adopt a measure for their relief, which they might submit to his Majesty's ministers for their support in parliament. In doing this, the Committee could not forget that the Societies are mere associations of christians, united for general improvement and edification; and as the great majority of them were, from religious principle, attached to the Church of England, they could not conscientiously take the oaths as *Dissenters*,—to whom, alone, the *Act of Toleration* applied. Therefore no amendment of that Act appeared likely to answer the purpose. But as Dissenters of various denominations were also to be contemplated by the projected measure, it became necessary to proceed upon some principle common to all. A principle which should recognize *the rights of conscience*, and at the same time afford that security for peaceable and loyal conduct, which the government of any State has a right to expect. It appeared also material to avoid all phraseology which would be exclusively applicable to *any one sect* of religious people.

As to the principle, the Committee, at an early stage of their deliberations, came to the resolution, that although all well-regulated societies, and denominations of Christians, will exercise their own rules for

the admission of public or private teachers among themselves, yet *it is the unalienable right of every man to worship God agreeably to the dictates of his own conscience*; and that he has a right to HEAR and to TEACH those Christian truths which he conscientiously believes, without any *restraint* or *judicial* interference from the *civil magistrate*, provided he do not thereby disturb the peace of the community, and that on no account whatever would the Committee concede this fundamental principle.

You will see at once, that it is only on this legitimate principle, that the various members of our Societies, and indeed mankind in general, *have any right to teach and instruct one another*. It was on this leading principle, that we drew up and submitted a Bill to the late Mr. Perceval, qualified however with those provisions which made our religious worship known, and laid it open for the inspection of all; and left our teachers subject to be called upon to take the usual obligations of allegiance &c. which no good man could object to; and which by the Constitution, no subject can lawfully refuse; but at the same time provision was made, that those oaths were not to be taken as an *antecedent* qualification, but when required, they were to be taken with the least possible inconvenience, by going before one neighbouring magistrate, instead of the Quarter Sessions. A Bill founded on such principles, and with such views, the Committee trusted would at once secure the *rights of conscience*, and give every needful *pledge* to the *State*, for the fulfilment of our duties as good subjects. And although they did not attempt to amend the Act of Toleration, which had now become so uncertain in its construction, but only suggested a new Act, adapted to the present state of religious Society, yet they did not wish to remove the Old Toleration Act, or lessen any of the benefits to be derived from it, by any class of Christians.

On these principles, and with a view to establish them in practice, the correspondence with the *Earl of Liverpool* was conducted, and we have the great satisfaction to say, that from a just sense of the high importance of those principles, which have been so powerful in the establishment and support of the *Protestant Church*, and the preservation of civil order in this country; and which are so congenial with every dictate of sound policy, and pure religion, his Lordship and his Majesty's Ministers prepared a Bill, which having now passed into a law, will be found to carry into effect what the Committee deemed so essential, in any measure designed to meet the situation of the *Methodist Societies*, and *other denominations of Christians*.

To a short sketch of this Act, we have now to request your attention; but for full information we must refer you to the Act itself.

The new Act *absolutely repeals* the *Five Mile* and the *Conventicle Acts*, and another Act of a most offensive kind, which affected a highly respectable body, the *Quakers*. It then proceeds to relieve from the Penalties of the several Acts mentioned in the Toleration Act, or any amendment of the same, all Protestants who resort to a congregation allowed by the Acts there referred to: and you will not fail to observe, that while it meets the situation of the *Dissenters*, how liberally it treats the condition of *our Societies*. It is not now necessary that a person should be obliged to relinquish his attachment to the established Church, in order to bring himself under the protection afforded by this Act; and on the other hand *if he be a Dissenter* he is protected by this Act. The simple condition of protection is, that a Protestant do resort to *some place of worship*, which if not the only way, is at least the usual and overt manner of shewing our belief in the existence of the Deity, and in a future state of retribution; without which, there is no security for the peace and happiness of Society. To *our Societies*, this feature of the Act is of great importance, because it allows our members to continue their attachment to the established Church, without relinquishing the privileges which the christian communion of our Societies, so largely affords. As under the Toleration Act, so under this Act, all places of worship must be *certified* to the proper Court; but under this Act, a Preacher need not wait till the place be *registered* before he preaches. By the former Acts only *five persons* could meet together, besides a man's own family, without having the place registered; by this Act, the number is extended to *twenty persons* who may meet without certifying the place of meeting. By the *former Act*, no person could preach till he had taken the Oaths; by this Act, any person may preach without having taken the Oaths; and is merely liable to be called on *once* to take them afterwards, *if required in writing by one Justice*. By the *Toleration Acts*, persons were obliged to go to the Quarter Sessions to take the Oaths; by this Act any person may take them before one Justice only; and in no case, is such person compellable to *travel above five miles for that purpose*: so that it will be perfectly unnecessary for any of our Preachers or Teachers to take the Oaths until they are required by a Justice, unless our travelling Preachers, who carry on no business, and intend to claim exemption from civil and military duties. By the *new construction* of the Toleration Act, it appeared that only

particular persons could insist upon taking the Oaths, &c. by this Act *any Protestant*, whether preacher or otherwise, whether a Dissenter or a Member of the Church of England, may require a Justice to administer the Oaths, &c. and grant a Certificate.

As to the exemption from civil and military duties, they are about the same, as to Preachers carrying on no business, except that the Toleration Act extended only to Dissenters, and this Act exempts all Preachers as they were by the Toleration and new Militia Acts, whether Dissenters or not. By the Toleration Act, so by this, the doors of all places of worship are to be unlocked. In this Act you will observe a great and most beneficial alteration for the protection of religious assemblies. The Toleration Act did not provide for the punishment of riotous persons who did not come into the house, by which means many of our congregations were greatly disturbed by noises made on the outside: but by this Act, any person who shall wilfully and maliciously disturb a Congregation, (whether by coming into or being on the outside of the house) shall incur a penalty of £40. which penalty is double the amount of that imposed for the same offence by the Toleration Act. There is also another important advantage in this Act, which is, that the writ of *Certiorari* is not taken away, by which means, Proceedings may be removed into the Court of King's Bench.

Thus have we endeavoured to give you an outline of this important Act of the Legislature: an Act which, we trust, you and our friends will consider as clearly recognizing in practice, those great principles which are the basis of religious freedom, and that its operation will not only enable our Societies to exercise under the protection of the law, those privileges which they have ever considered the most sacred and invaluable, and which, under the Divine blessing, have contributed to the consolation of thousands; but it will serve for the extension of piety and virtue amongst all denominations, by promoting christian fellowship, the dissemination of Divine truth, and the interchange of religious instruction. And whilst it amply extends the circle of religious liberty to those who dissent from, or who only partially or occasionally conform to the established Church, as well as to strict members of her communion, who wish to enjoy religious meetings, it will excite attachment to, and encrease the security of that church, which has produced so many champions for the verities of our holy religion, and in which indeed, our Societies have been founded.

Nor should it be forgotten, (especially in times like the present) that this Act is of peculiar excellency, from the effect it will have upon the happiness of the *religious poor*. They value exceedingly the liberty of associating for mutual religious instruction and consolation. It is the exercise of that privilege which soothes them under poverty and distress, and, by the grace of God, makes them content under the apparently adverse dispensations of Divine providence; and teaches them to wait with patience for the "*inheritance which is incorruptible*." This Act by removing all restraint from the performance of the great duty of "*exhorting one another*," may be considered as having the well-disposed and pious poor for its object, and great will be their gratitude and gladness, that they can, under the protection of this Law, worship God in their own way, and instruct each other, as well as hear those Ministers whose labours they esteem. And while it has this effect upon their individual happiness, it will make them value the Constitution of the Country, through which they derive such benefits. In short, the Committee cannot but contemplate this important extension of Religious Freedom, with the highest satisfaction and delight; and they cannot doubt, that in proportion to the apparent excellency of this Act of Parliament, will be the magnitude of the benefits which the nation at large will derive from it.

In the accomplishment of this salutary measure, the Committee have necessarily had much correspondence with the Prime Minister, THE RIGHT HONORABLE THE EARL OF LIVERPOOL; and it is a duty they owe to his Majesty's Government, and to that noble Lord in particular, to express with pleasure and gratitude the high sense of the obligations they feel themselves under, for the patient attention which his Lordship has given to the many and necessary representations of the Committee, as well as the readiness manifested to meet fully, the situation of our Societies, and of other religious denominations; and for the cordiality with which his Lordship matured and supported the Bill in Parliament, which appears to be commensurate to the present necessities and wishes of our Societies.

The Committee are also under considerable obligations to HIS GRACE THE ARCHBISHOP OF CANTERBURY, for his polite attention to the subject, and for the liberal sentiments expressed by his Grace, on various occasions: And we cannot but feel great gratitude to all the right Reverend Prelates who concurred in the Bill, without whose concurrence, it must have met with considerable difficulties in its progress through Parliament.

It is also the duty of the Committee, to express their humble thanks to the rest of the Cabinet Ministers, for the support which this measure has received from them, and particularly to THE RIGHT HONOURABLE, THE LORD HIGH CHANCELLOR, for his Lordship's candid and liberal attention to the Bill, in the House of Lords; and also to THE RIGHT HONOURABLE VISCOUNT CASTLEREAH, for the labour of conducting it in the House of Commons. In these sentiments of respect and gratitude, we are sure we shall be joined by you, and our Societies universally.

The Committee are happy to inform you, to whom they are under particular obligations, on this important occasion, that you may have the pleasure of participating with them, in those sentiments which the sense of benefits received naturally inspire. They will therefore mention, that they are greatly indebted to the RIGHT HONOURABLE EARL STANHOPE, to the RIGHT HONOURABLE LORD HOLLAND, and to the RIGHT HONOURABLE LORD ERSKINE, for their attention and support in the House of Peers; and to WILLIAM WILBERFORCE, ESQ. JAMES STEPHEN, ESQ. SAMUEL WHITBREAD, ESQ. and THOMAS BABINGTON, ESQ. Members of the House of Commons, from each of whom, the Committee have derived important services relative to this valuable Act.

While endeavouring to express our gratitude upon this occasion, rather than pretending to discharge the debt which we owe to the distinguished characters we have mentioned, it is with great satisfaction that we acknowledge the co-operation which we have experienced from "THE PROTESTANT SOCIETY FOR THE PROTECTION OF RELIGIOUS LIBERTY," who represent the great body of Dissenters in this country, and from our affectionate friends the QUAKERS, with whom, as well as with other denominations of Christians we are happy to be associated in receiving benefit in the same friendly Act of the legislature: we are sure this co-operation will encrease your esteem for those respectable members of civil and religious society.

In considering the many circumstances relative to the progress and completion of this excellent measure, we cannot but adore the providence and goodness of God, without whose direction and aid the work could not have been accomplished. And we would ascribe the glory, honour, and power to Him, from whom alone all good councils and all just works do proceed. Our joy is great upon this interesting occasion; but how greatly would our pleasure have been enhanced, had this event witnessed the return

of health to our gracious Sovereign, whose name must ever be associated with Religious Toleration: for his Majesty, in his first speech from the throne, declared it his invariable resolution to MAINTAIN THE TOLERATION INVIOLEATE. A declaration which has been religiously fulfilled during a long and beneficent reign; and should it please Divine Providence to restore his Majesty in health to his affectionate people, it would, we doubt not, afford him the highest gratification that a measure so full of regard to the sacred rights of conscience, and so amply extending the bounds of Toleration, had been carried into effect under the liberal administration of His Royal Highness the Prince Regent. May it please God to smooth the bed of the Sovereign in his affliction, and endue the Prince plenteously with heavenly gifts, and prosper him with all happiness.

To conclude; while on this memorable occasion, we express unfeigned gratitude to those who have rendered us assistance, let us not forget to give the sole glory to that God “by whom, Kings reign, and Princes decree justice,” let us continue to cultivate the most affectionate regard for our KING and our COUNTRY: let us pray for more grace, that we may use our extended religious privileges to the greatest advantage, not only *by provoking one another to love and to good works*, but by labouring incessantly to diffuse those sacred truths of our most holy Religion, which we have long proved to be the *power of God unto Salvation, to them who believe*; and thus promote GLORY to GOD in the HIGHEST, and on *Earth PEACE*, and GOOD WILL among MEN,—the great END for which our Societies have been established.

(Signed by Order and on behalf of the Committee,)

ADAM CLARKE, *Chairman*,
JOSEPH BUTTERWORTH, *Secretary*.

An Act to repeal certain Acts, and amend other Acts relating to Religious Worship and Assemblies, and persons teaching or preaching therein.—
(29th July, 1812.)

52 GEO. III. c. 155.

Whereas it is expedient that certain Acts of Parliament made in the reign of his late Majesty King Charles the Second, relating to Nonconformists and Conventicles, and refusing to take Oaths, should be repealed; and that

the laws relating to certain Congregations and Assemblies for religious Worship, and persons teaching, preaching, or officiating therein, and resorting thereto should be amended; be it therefore enacted, by the King's most excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, that from and after the passing of this Act, an Act of Parliament made in the Session of Parliament held in the thirteenth and fourteenth years of his late Majesty King Charles the Second, intituled, ^[Ac] "An Act for preventing the mischiefs and dangers that may arise by certain persons called Quakers, and others, refusing to take lawful Oaths," and another Act of Parliament made in the seventeenth year of the reign of his late Majesty King Charles the second, intituled, ^[Adj] An Act for restraining Nonconformists from inhabiting in "Corporations;" and another Act of Parliament made in the twenty-second year of the reign of the late King Charles the second, intituled, ^[Ae] "An Act to prevent and suppress seditious Conventicles," shall be and the same are hereby repealed.

II. And be it further enacted, That from and after the passing of this Act, no Congregation or Assembly for Religious Worship of Protestants (at which there shall be present more than twenty persons besides the immediate family and servants of the person in whose house or upon whose premises such Meeting, Congregation or Assembly shall be had) shall be permitted or allowed, unless and until the place of such Meeting, if the same shall not have been duly certified and registered under any former Act or Acts of Parliament relating to registering places of Religious Worship, shall have been or shall be certified to the Bishop of the Diocese, or to the Archdeacon of the Archdeaconry, or to the Justices of the Peace at the General or Quarter Sessions of the Peace for the county, riding, division, city, town or place, in which such Meeting shall be held; and all places of Meeting which shall be so certified to the Bishop's or Archdeacon's Court shall be returned by such Court once in each year to the Quarter Sessions of the county, riding, division, city town or place; and all places of Meeting which shall be so certified to the Quarter Sessions of the peace shall be also returned once in each year to the Bishop or Archdeacon; and all such places shall be registered in the said Bishop's or Archdeacon's Court respectively, and recorded at the said General or Quarter Sessions; the Registrar or Clerk of the Peace whereof respectively is hereby required to register and record

the same; and the Bishop or Registrar or Clerk of the Peace to whom any such place of Meeting shall be certified under this Act, shall give a Certificate thereof to such person or persons as shall request or demand the same, for which there shall be no greater fee nor reward taken than Two Shillings and Sixpence; and every Person who shall knowingly permit or suffer any such Congregation or Assembly as aforesaid, to meet in any place occupied by him, until the same shall have been so certified as aforesaid, shall forfeit, for every time any such Congregation or Assembly shall meet contrary to the provisions of this Act, a sum not exceeding Twenty Pounds nor less than Twenty Shillings, at the discretion of the Justices who shall convict for such offence.

III. Provided always, and be it further enacted, That every person who shall teach or preach in any congregation or assembly as aforesaid, in any place without the consent of the occupier thereof, shall forfeit for every such offence any sum not exceeding Thirty Pounds, nor less than Forty Shillings, at the discretion of the Justices who shall convict for such offence.

IV. And be it further enacted, That from and after the passing of this Act, every person who shall teach or preach at, or officiate in, or shall resort to any congregation or congregations, assembly or assemblies for religious worship of Protestants, whose place of meeting shall be duly certified according to the provisions of this Act, or any other Act or Acts of Parliament relating to the certifying and registering of places of religious worship, shall be exempt from all such pains and penalties under any Act or Acts of Parliament relating to religious worship, as any person who shall have taken the Oaths and made the Declaration prescribed by or mentioned in an Act, made in the first year of the reign of King William and Queen Mary, intituled, “An Act for exempting their Majesties’ Protestant Subjects dissenting from the Church of England, from the penalties of certain Laws,” or any Act amending the said Act, is by law exempt, as fully and effectually as if all such pains and penalties, and the several Acts enforcing the same, were recited in this Act, and such exemptions as aforesaid were severally and separately enacted in relation thereto.

V. Provided always, and be it further enacted, That every person not having taken the Oaths, and subscribed the Declaration herein specified, who shall preach or teach at any place of religious worship certified in pursuance of the directions of this Act, shall, when thereto required by any

one Justice of the Peace, by any writing under his hand, or signed by him, take and make and subscribe, in the presence of such Justice of the Peace, the Oaths and Declarations specified and contained in an Act, passed in the nineteenth year of the reign of His Majesty King George the Third, intituled,^[Af] “An Act for the further Relief of Protestant Dissenting Ministers and Schoolmasters;” and no such person who, upon being so required to take such Oaths and make such Declaration as aforesaid, shall refuse to attend the Justice requiring the same, or to take and make and subscribe such Oaths and Declarations as aforesaid, shall be thereafter permitted or allowed to teach or preach in any such congregation or assembly for religious worship, until he shall have taken such Oaths, and made such Declaration as aforesaid, on pain of forfeiting for every time he shall so teach or preach, any sum not exceeding ten pounds, nor less than ten shillings, at the discretion of the Justice convicting for such offence.

VI. Provided always, and be it further enacted, That no person shall be required by any Justice of the Peace to go to any greater distance than five miles from his own home, or from the place where he shall be residing at the time of such requisition, for the purpose of taking such Oaths as aforesaid.

VII. And be it further enacted, That it shall be lawful for any of His Majesty’s Protestant subjects to appear before any one Justice of the Peace, and to produce to such Justice of the Peace a printed or written copy of the said Oaths and Declaration, and to require such Justice to administer such Oaths, and to tender such Declaration to be made taken and subscribed by such person; and thereupon it shall be lawful for such Justice, and he is hereby authorized and required to administer such Oaths, and to tender such Declaration to the person requiring to take and make and subscribe the same; and such person shall take and make and subscribe such Oaths and Declaration in the presence of such Justice accordingly; and such Justice shall attest the same to be sworn before him, and shall transmit or deliver the same to the Clerk of the Peace for the county, riding, division, city, town or place for which he shall act as such Justice of the Peace, before or at the next General Quarter Sessions of the Peace for such county, riding, division, city, town or place.

VIII. And be it further enacted, That every Justice of the Peace before whom any person shall make and take and subscribe such Oaths and Declaration as aforesaid, shall forthwith give to the Person having taken

made and subscribed such oaths and declaration, a Certificate thereof under the hand of such Justice, in the form following: (that is to say)

“I A. B. one of His Majesty’s Justices of the Peace for the county (riding, division, city, or town, or place, *as the case may be*) of _____ Do hereby certify, that C. D. of, &c. [*describing the Christian and Surname, and place of abode of the party*] did this day appear before me, and did make and take and subscribe the several oaths and declaration, specified in an Act, made in the fifty-second year of the reign of King George the Third, intituled [*set forth the title of this Act.*] Witness my hand this _____ day of _____ one thousand eight hundred and _____.”

And for the making and signing of which Certificate, where the said oaths and declaration are taken and made on the requisition of the party taking and making the same, such Justice shall be entitled to demand and have a fee of two shillings and sixpence, and no more: And such Certificate shall be conclusive evidence that the party named therein has made and taken the oaths and subscribed the declaration in manner required by this Act.

IX. And be it further enacted, that every person who shall teach or preach in any such congregation or assembly, or congregations or assemblies as aforesaid, who shall employ himself solely in the duties of a teacher or preacher, and not follow or engage in any trade or business, or other profession, occupation, or employment, for his livelihood, except that of a Schoolmaster, and who shall produce a Certificate of some Justice of the Peace, of his having taken and made and subscribed the oaths and declaration aforesaid, shall be exempt from the civil servises and offices specified in the said recited Act passed in the first year of King William and Queen Mary, and from being ballotted to serve and from serving in the Militia or Local Militia of any county, town, parish or place, in any part of the United Kingdom.

X. And be it further enacted, that every person who shall produce any false or untrue certificate or paper, as and for a true certificate of his having made and taken the oaths and subscribed the declaration by this Act required, for the purpose of claiming any exemption from civil or military duties as aforesaid, under the provisions of this or any other Act or Acts of Parliament, shall forfeit for every such offence the sum of fifty pounds; which penalty may be recovered by and to the use of any person who will sue for the same, by any Action of Debt, Bill, Complaint, or Information, in any

of His Majesty's Courts of Record at Westminster, or the Courts of Great Sessions in Wales, or the Courts of the counties palatine of Chester, Lancaster, and Durham (as the case shall require;) wherein no Essoign, Privilege, Protection, or wager of Law, or more than one Imparlance, shall be allowed.

XI. And be it further enacted, That no meeting, assembly, or congregation of persons for religious worship, shall be had in any place with the door locked, bolted, or barred, or otherwise fastened, so as to prevent any persons entering therein during the time of any such meeting, assembly, or congregation; and the person teaching or preaching at such meeting, assembly, or congregation, shall forfeit, for every time any such meeting, assembly, or congregation shall be held with the door locked, bolted, barred, or otherwise fastened as aforesaid, any sum not exceeding twenty pounds, nor less than forty shillings, at the discretion of the Justices convicting for such offence.

XII. And be it further enacted, That if any person or persons, at any time after the passing of this Act, do and shall wilfully and maliciously or contemptuously disquiet, or disturb any meeting, assembly, or congregation of persons assembled for religious worship permitted or authorized by this Act, or any former Act or Acts of Parliament, or shall in any way disturb, molest, or misuse any preacher, teacher, or person officiating at such meeting, assembly, or congregation, or any person or persons there assembled, such person or persons so offending, upon proof thereof before any Justice of the Peace by two or more credible witnesses, shall find two sureties to be bound by recognizances in the penal sum of fifty pounds to answer for such offence, and in default of such sureties shall be committed to prison, there to remain till the next General or Quarter Sessions; and upon conviction of the said offence at the said General or Quarter Sessions, shall suffer the pain and penalty of forty pounds.

XIII. Provided always, and be it further enacted, that nothing in this act contained shall affect, or be construed to affect, the celebration of divine service, according to the rites and ceremonies of the united Church of England and Ireland, by ministers of the said Church, in any place hitherto used for such purpose, or being now or hereafter duly consecrated or licensed by any Archbishop or Bishop, or other person lawfully authorized to consecrate or license the same, or to affect the Jurisdiction of the Archbishops or Bishops, or other persons exercising lawful authority in the

Church, of the United Kingdom, over the said Church, according to the Rules and discipline of the same, and to the Laws and Statutes of the Realm; but such jurisdiction shall remain and continue as if this Act had not passed.

XIV. Provided also, and be it farther enacted, that nothing in this Act contained shall extend or be construed to extend to the people usually called Quakers, nor to any Meetings or Assemblies for Religious Worship, held or convened by such persons; or in any manner to alter or repeal or affect any Act other than and except the Acts passed in the reign of King Charles the second herein-before repealed, relating to the people called Quakers, or relating to any Assemblies or Meetings for Religious Worship held by them.

XV. And be it further enacted, that every person guilty of any offence, for which any pecuniary penalty or forfeiture is imposed by this Act, in respect of which no special provision is made, shall and may be convicted thereof by information upon the oath of any one or more credible witness or witnesses before any two or more Justices of the Peace acting in and for the county, riding, city or place wherein such offence shall be committed; and that all and every the pecuniary penalties or forfeitures which shall be incurred or become payable for any offence or offences against this Act, shall and may be levied by distress under the hand and seal or hands and seals of two Justices of the Peace for the county, riding, city, or place, in which any such offence or offences was or were committed, or where the forfeiture or forfeitures was or were incurred, and shall when levied be paid one moiety to the informer, and the other moiety to the poor of the parish in which the offence was committed; and in case of no sufficient distress whereby to levy the penalties, or any or either of them imposed by this Act, it shall and may be lawful for any such Justices respectively before whom the offender or offenders shall be convicted, to commit such offender to prison, for such time not exceeding three months, as the said Justices in their discretion shall think fit.

XVI. And be it further enacted, that in case any person or persons who shall hereafter be convicted of any of the offences punishable by this Act, shall conceive him her or themselves to be aggrieved by such conviction, then and in every such case it shall and may be lawful for such person or persons respectively, and he she or they shall or may appeal to the General or Quarter Sessions of the Peace holden next after such conviction in and for the county, riding, city, or place, giving unto the Justices before whom

such conviction shall be made, notice in writing within eight days after any such conviction, of his her or their intention to prefer such Appeal; and the said Justices in their said Generator Quarter Sessions shall and may, and they are hereby authorised and empowered to proceed to the hearing and determination of the matter of such Appeal, and to make such order therein, and to award such costs to be paid by and to either party, not exceeding forty shillings, as they in their discretion shall think fit.

XVII. And be it further enacted, that no penalty or forfeiture shall be recoverable under this Act, unless the same shall be used for, or the offence in respect of which the same is imposed, is prosecuted before the Justices of the Peace or Quarter Sessions within six months after the offence shall have been committed; and no person who shall suffer any Imprisonment for non-payment of any penalty, shall thereafter be liable to the payment of such penalty or forfeiture.

XVIII. And be it further enacted, That if any Action or Suit shall be brought or commenced against any person or persons for any thing done in pursuance of this Act, that every such Action or Suit shall be commenced within three months next after the fact committed, and not afterwards, and shall be laid and brought in the county wherein the cause or alledged cause of Action shall have occurred, and not elsewhere, and the defendant or defendants in such Action or Suit may plead the general Issue, and give this Act and the special matter in evidence on any Trial to be had thereupon, and that the same was done in pursuance and by authority of this Act; and if it shall appear so to be done, or if any such Action or Suit shall be brought after the time so limited for bringing the same, or shall be brought in any other county, city or place, that then and in such case, the Jury shall find for such defendant or defendants; and upon such verdict, or if the plaintiff or plaintiffs, shall become nonsuited, or discontinue his, her, or their Action or Actions, or if a verdict shall pass against the plaintiff or plaintiffs, or if upon demurrer, judgment shall be given against the plaintiff or plaintiffs, the defendant or defendants shall have and may recover treble costs, and have the like remedy for the same, as any defendant or defendants hath or have for costs of Suit in other Cases by Law.

XIX. And be it further enacted, That this Act shall be deemed and taken to be a Public Act, and shall be judicially taken notice of as such by all Judges, Justices and others, without specially pleading the same.

Observations upon the Act of Parliament, (52d Geo. III. cap. 155.) passed 29th July, 1812, relating to Religious Worship, with some practical Directions.

SECTION II.

1. All religious Assemblies of Protestants, not exceeding Twenty Persons, besides the family of the person in whose premises such Assembly shall be held, are lawful without registering the place of Meeting, so that there will be no absolute necessity to register the houses where Prayer, and other Social Meetings are held. However, as it is attended with scarcely any inconvenience, it is recommended that ALL PLACES where, in probability, more than Twenty Persons may assemble for Religious Instruction, including Sunday Schools, be certified and registered.

2. It is not necessary to register any place, which has been registered previous to the passing of this Act.

3. It is not necessary to wait till the place is actually registered, but a Religious Assembly may lawfully be held after a certificate that the place is intended to be used for Religious Worship is lodged with the person or any one of the persons mentioned in the Section.

4. The following form of Certificate to be sent to the Bishop, or Archdeacon, or Justices of the General or Quarter Sessions, is recommended, to sign which only one person is necessary, that is to say,

“To the Right Reverend the Lord Bishop of _____ (as the case may be) or the Reverend (A. B.) Archdeacon of _____ (as the case may be) and to his Registrar, or to the Justices of the Peace (of the County, Riding, Division, City, Town, or Place, as the case may be) and to the Clerk of the Peace thereof.”

“I, A. B. of (describing the christian and surname, and place of abode, and trade or profession of the party certifying) do hereby certify, that a certain Building, (Messuage, or Tenement, Barn, School, Meeting House, or part of a Messuage, Tenement, or other Building, as the case may be) situated in the Parish of _____ and County of _____ (as the case may be, and specifying also the number of the Messuage, &c. if numbered, and the Street, Lane, &c. wherein it is situate, and the name of the present or last Occupier or Owner) is intended forthwith to be used as a place of Religious Worship by an Assembly or Congregation of Protestants, and I do hereby require you to register and record the

same according to the provisions of an Act passed in the 52d year of the Reign of His Majesty King George the Third, intituled An Act to repeal certain Acts, and amend other Acts, relating to Religious Worship, and Assemblies, and Persons teaching or preaching therein, and I hereby request a Certificate thereof. Witness my hand this __ day of _____ 181__

A. B.”

The address to be used must depend upon the person or persons with whom the Certificate is to be deposited. Between the different Sessions, the Bishop and Archdeacon’s Registry is generally open.

It is not necessary that this Certificate should express that the place is to be registered for protestant Dissenters, the Act mentions only Protestants, and it is recommended that no Certificate be accepted from the Registrar of the Bishop, or Archdeacon, or from the Clerk of the Peace, which narrows the term, or which states the place to be for any specific denomination of Protestants. The Certificate should mention Protestants only.

Two copies of the above Certificate should be prepared, and signed in the presence of a respectable witness. One to be delivered to the Bishop, Archdeacon, or Clerk of the Peace, and the other to be kept by the party, signing the same, who is to require from the Registrar or Clerk of the Peace, to sign a Certificate on the part to be kept, that such Certificate as above has been delivered to him. Such Certificate to be written beneath the name of the party or parties signing the original Certificate, in the following form:

“I, *C. D.* (Registrar of the Court of the Bishop of _____ or Archdeacon of _____ or Clerk of the Peace for the County of _____ as the case may be) do hereby certify that a Certificate, of which the above is a true copy, was this day delivered to me, to be registered and recorded pursuant to the Act of Parliament therein mentioned. Dated this __ day of _____ 181__

C. D. Registrar, or Clerk of the Peace.”

Thus in case any accidental delay in the Registration should take place, and it be needful to use the place, as a place of religious Assembly, proof will exist that the Certificate was duly delivered and consequently the parties be free from penalty, if they use the place for Religious Worship after it is certified, but before it is registered.

5. At the time the Certificate of the parties is presented to the Bishop, or Archdeacon, or to the Sessions, the Fee of 2s. 6d. should be paid to the

Registrar, or Clerk of the Peace, for registering and certifying the same, and his Certificate should be required accordingly.

SECTION III.

Before, it was made penal by this Section to preach in a house, without the consent of the Occupier, a person doing so was liable to an Action by the Common Law.

SECTION IV.

The first Section having repealed altogether the Five Mile and Conventicle Acts, and an Act relating to the Quakers, by this Section all Protestants, whether Teachers or Hearers, whether Dissenters or Churchmen, attending a Place of Worship, certified under this Act, are exempted, even before actual and formal registration, from the penalties of all the Acts recited in the Toleration Act, or in any Act amending the same.

SECTION V.

A Preacher may be required (if he has not already qualified) to take the Oaths, &c. after he has actually preached, but it is not necessary that any person should take the Oaths and subscribe the Declarations required, as an antecedent qualification to preach. The requisition must be made by a Justice of the Peace in writing.

The following are copies of the Oaths, &c. referred to in the Section.

OATH OF ALLEGIANCE.

“I, A. B. do sincerely promise and swear, that I will be faithful and bear true allegiance to his Majesty King George.

“So help me God,

“A. B.”

OF SUPREMACY.

“I, A. B. do swear, that I do from my heart, abhor, detest, and abjure, as impious and heretical, that damnable doctrine and position, that Princes, excommunicated, or deprived by the Pope, or any authority of the See of Rome, may be deposed or murdered by their subjects, or any other whatsoever. And I do declare, that no foreign Prince, Person,

Prelate, State, or Potentate, hath, or ought to have, any jurisdiction, power, superiority, pre-eminence, or authority, Ecclesiastical or Spiritual, within this Realm.

“So help me God,

“A. B.”

DECLARATION AGAINST POPERY.

“I, A. B. do solemnly and sincerely, in the presence of God, profess, testify, and declare, that I do believe, that in the Sacrament of the Lord’s Supper, there is not any transubstantiation of the elements of bread and wine into the body and blood of Christ, at or after the consecration thereof, by any person whatsoever, and that the invocation or adoration of the Virgin Mary, or any other saint, and the sacrifice of the Mass, as they are now used in the Church of Rome, are superstitious and idolatrous; and I do solemnly, in the presence of God, profess, testify, and declare, that I do make this declaration, and every part thereof, in the plain and ordinary sense of the words read unto me, as they are commonly understood by Protestants, without any evasion, equivocation, or mental reservation whatsoever; and without any dispensation already granted me for this purpose by the Pope, or any other authority or person whatsoever, or without any hope of dispensation from any person or authority whatsoever, or without believing that I am or can be acquitted before God or man, or absolved of this declaration, or any part thereof, although the Pope, or any other person or persons whatsoever, shall dispense with or annul the same, or declare that it was null and void from the beginning.

“A. B.”

DECLARATION OF CHRISTIAN FAITH.

“I, A. B. do solemnly declare in the presence of Almighty God, that I am a Christian and a Protestant, and as such that I believe that the Scriptures of the Old and New Testament, as commonly received among Protestant Churches, do contain the revealed will of God; and that I do receive the same as the rule of my doctrine and practice.

“A. B.”

SECTION VI.

The Preacher is not now required to go to the Quarter Sessions for the purpose of making the Oaths, &c. but is to go before a neighbouring Magistrate for the purpose.

SECTION VII.

1. Any person, being a Protestant, whether Preacher or not, may require a Justice to administer the Oaths, &c.

2. The person requiring a Justice to administer the Oaths, &c. must take a fair copy of them. The forms of the Oaths, &c. are given in the Notes on Section V, which, after substituting his name for *A. B.*, are to be signed by the person who desires to take them.

3. No person need be at the trouble of applying to take the Oaths, &c. unless he be a regular Preacher, wholly devoted to the Ministry, who intends to claim exemption from civil and military services agreeably to the 9th Section.

SECTION VIII.

This Section supplies the form of the Certificate of taking the Oaths, and subscribing the Declaration, which the Justice is to give in all cases, and for which he may demand 2s. 6d. when the Oaths, &c. are taken on the requisition of the party taking them; but this Fee is not payable if the Justices require a person to take the Oaths, &c.

SECTION IX.

To entitle a person to exemption from civil or military services, he must be altogether employed in the duties of a Teacher or Preacher, and not engaged in any secular employment for his livelihood, with the exception of that of a Schoolmaster.

SECTION XII.

This Clause subjects to a penalty of £40, any person or persons who shall (whether *on the outside* of within a place of religious Assembly) wilfully and maliciously, or contemptuously, by any means disturb a Congregation, or disturb, molest, or misuse any Preacher, or other person there assembled.

This clause, of extensive operation, will be found most ample for the protection of all persons meeting for the worship of God, and is a great and beneficial addition to the law on that subject.

In order to excite sentiments of gratitude in our hearts for the invaluable religious privileges secured to us, as subjects of the British Empire, by the above recited Act, and to evince that these privileges ought to be very highly estimated by us, I shall here insert, as a striking contrast, a copy of a most intolerant and horrid Edict recently issued by the Emperor of China, against the introduction of Christianity into his vast Empire. An Empire that is said to contain about a third part of the population of the world! The inhabitants of which are immersed in the grossest superstition and idolatry, and are sitting in the “region of the shadow of death, without light and without vision.”

The Roman Catholics indeed, have for many years had Missionaries in China, but they have degraded the doctrine of the Cross, by blending it with Pagan rites, and by withholding from their own converts, the grand means of correcting their errors, and illuminating their darkness, even the WORD OF ETERNAL LIFE.

The means of obtaining a version of the scriptures in the Chinese language, have for several years past occupied the minds of the Provost and Vice Provost, of the College of Fort William, in India; and they considered it an object of the utmost importance to introduce the Gospel, into that immense empire.

After much enquiry they succeeded in procuring Mr. Johannes Lassar, an Armenian christian, a native of China, and a proficient in the Chinese language. He relinquished his secular employments, and entered immediately on the translation of the Scriptures into that language; and in this work he is still engaged. Several young men also, who are under the tuition of Mr. Lassar, are now studying the Chinese language, have already made considerable proficiency, and are assisting in the translation of the holy Scriptures. A printing press has been procured, and a considerable part of the New Testament has been printed off, from blocks, after the Chinese manner. While Mr. Lassar and Mr. Joshua Marshman, (his elder pupil,) are thus translating the Scriptures at Calcutta, Mr. Morrison is prosecuting a similar work at Canton, in China, with the aid of able, native scholars. Thus have the founders and supporters of the College, at Fort William, admitted a

dawn of day through that thick impenetrable cloud, which for many ages has insulated that vast empire from the rest of mankind.^[Ag]

These efforts to introduce the WORD OF LIFE into China, seem to have excited the jealousies of the Emperor and his Court, and to form the basis of the following Edict.

EDICT AGAINST CHRISTIANITY.

Canton, April 4, 1812.

The following Edict was translated from the Chinese into Spanish, by a Roman Missionary, at Macao: and translated out of Spanish into English. I have not seen the original Chinese paper. I have seen several papers in the Pekin Gazette, of which the following is indeed the substance. In those papers, however, the magistrates also are threatened with degradation, dismissal from the service of government, &c. if they connive at the promulgation of what they denominate TEENCHU KEAOU (*The Religion of the Lord of Heaven*)—the name which the Roman Missionaries have adopted.

R. M.

The Criminal Tribunal, by order of the Emperor, conformably to a Representation made by HAN, the Imperial Secretary (in which he desired that the Promulgation of the Christian Religion might be obviated) decrees as follows:

The Europeans worship God, because, in their own country, they are used to do so; and it is quite unnecessary to enquire into the motive: but then, why do they disturb the common people of the interior?—appointing unauthorised priests and other functionaries, who spread this through all the provinces, in obvious infraction of the law; and the common people, deceived by them, they succeed each other from generation to generation, unwilling to part from their delusion. This may approach very near to being a rebellion. Reflecting that the said religion neither holds spirits in veneration nor ancestors in reverence;—clearly, this is to walk contrary to sound doctrine; and the common people who follow and familiarize themselves with such delusions, in what respect do they differ from a rebel mob? if there is not decreed some punishment, how shall the evil be eradicated?—and how shall the human heart be rectified.

From this time forward, such Europeans as shall privately print books and establish preachers, in order to pervert the multitude,—and the Tartars and Chinese, who, deputed by Europeans, shall propagate their religion, bestowing names, and disquieting numbers, shall have this to look to:—The chief or principal one shall be executed:—whoever shall spread their religion, not making much disturbance, nor to many men, and without giving names, shall be imprisoned, waiting the time of execution;—and those who shall content themselves with following such religion, without wishing to reform themselves, they shall be exiled to He-lau-keang, &c. As for Tartars, they shall be deprived of their pay. With respect to Europeans at present in Peking, if they are Mathematicians, without having other office or occupation, this suffices to their being kept in their employments; but those who do not understand Mathematics, what motive is there for acquiescing in their idleness, whilst they are exciting irregularities? Let the Mandarins, in charge of the Europeans, enquire and act. Excepting the Mathematicians, who are to be retained in their employment, the other Europeans shall be sent to the Viceroy of Canton, to wait there, that when there come ships from the respective countries, they may be sent back. The Europeans, in actual service at the capital, are forbidden to intermeddle with the Tartars and Chinese, in order to strike at the root of the absurdities which have been propagated. In Peking, where there are no more Europeans than those employed in the Mathematics, they will not be able clandestinely to spread false religion. The Viceroys and other magistrates of the other provinces shall be careful and diligent. If they find Europeans within their territories, they shall seize them, and act according to justice, in order, by such means, to exterminate root and trunk.—You shall conform to this decision of the Criminal Tribunal.

It is an awful reflection that at this age of the world, in the nineteenth century, there should be found any of the potentates of the earth who should dare thus to oppose the introduction of that gospel, which the Lord Jesus Christ, who is KING OF KINGS AND LORD OF LORDS, has commanded to be preached to ALL NATIONS, and to EVERY CREATURE IN ALL THE WORLD. But we remember it is said in the sure word of prophecy “The Lord bringeth the counsel of the heathen to nought, he maketh the devices of the people of none effect. Why do the heathen rage, and the people imagine a vain thing? The kings of the earth set themselves, and the rulers take counsel against

the Lord and against his annointed, saying, let us break their bands asunder, and cast away their cords from us. He that sitteth in the heavens shall laugh. The Lord shall have them in derision: He hath placed his King upon his holy hill of Zion: And the kingdom, and dominion, and the greatness of the kingdom under the whole heaven shall be given to the saints of the Most High; whose kingdom is an everlasting kingdom, and all dominions shall serve and obey him. And the nation and kingdom that will not serve him shall perish, yea, those nations shall be utterly wasted. Let the potsherds strive with the potsherds of the earth, but woe unto him who striveth with his Maker.”

He which testifieth these things saith, Lo I come quickly. AMEN.—Even so, come Lord Jesus!

FINIS.

[292.](#) L. 2. Sect. 36. § 83.

[293.](#) Ibid. Sect. 13. § 43.

[294.](#) Ibid. Sect. 36. § 83.

[295.](#) L. 3. Sect. 8. § 28.

[296.](#) L. 3. Sect. 27. § 3.

[297.](#) L. 3. Sect. 32. § 125.

[298.](#) L. 2. Sect. 6. § 11.

[299.](#) Sect. 17. § 47.

[300.](#) L. 3. Sect. 6. § 15. Sect. 13. § 41. Ibid.

[301.](#) Bez. in vit. Calvin.

[302.](#) Biblioth. Raison. Pour d’ Octobre, &c. 1728. Art. VIII.

- 303. Epist. ad Farrel.
- 304. Epist. ad Farrel.
- 305. Calv. Op. Vol. ult.
- 306. Ibid.
- 307. Ibid.
- 308. Ibid.
- 309. Ibid.
- 310. Bez. in vit. Calv. B. Aret. Hist. Val. Gent.
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- 370. Id. p. 195.
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372. p. 567.

373. Luke ix. 3.

374. Matt. x. 17.

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378. Bishop of London's 2d Pastoral Letter, p. 24, 25.

379. Bishop of Bangor's answer to the Dean of Worcester, postscript, p. 207.

380. Matt. v. 5, 7, 9.

381. Matt. xxii. 35.

382. John xv. 12.

383. xiii. 84.

384. 35.

385. Matt. v. 10.

386. 12.

387. Luke xi. 47, &c.

388. Luke ix. 55, 56.

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391. Matt. xxiii. 8, &c.

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398. John xvi. 1, 2, 3.

399. Rom. xii. 9, 10.

400. 18.

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402. Rom. xiv. 1.

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405. 4.

406. xv. 1.

407. 5.

408. 6.

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410. 1 Cor. i. 10, &c.

411. xii. 27.

412. xiii. 1, &c.

413. 2 Cor. xiii. 11.

414. Gal. v. 19, &c.

415. Chap. vi. 15.

416. 16.

417. Eph. iv. 1, &c.

418. 31.

419. Eph. iv. 32.

420. Chap. v. 1, 2.

421. Phil. ii. 1, &c.

422. Col. iii. 8, &c.

423. 1 Tim. i. 5, &c.

424. James iii. 14, &c.

425. De Hæret. a Magist. pun. p. 161, &c.

426. Acts v. 9.

427. Acts xiii. 6, &c.

428. 1 Cor. v. 5.

429. Gal. i. 9. v. 12. Rom. xvi. 17. 1 Cor. v. 9.

430. 1 Cor. v. 13.

431. 2 Cor. x. 8.

432. Gal. i. 9.

433. Tit. iii. 10.

434. Gal. v. 20.

435. 2 Pet. ii. 1, &c. v. 10.

436. Tit. iii. 11.

437. 1 Pet. v. 3.

438. Eph. iv. 11.

439. John xx. 23.

440. 2 Cor. v. 20.

441. iv. 5.

442. i. 24.

443. 1 Cor. ii. 2.

444. 1 Pet. v. 3.

445. 1 Tim. iv. 6.

446. vi. 13, 14, 20.

447. 2 Tim. ii. 2.

448. Acts xx. 28.

449. 2 Tim. ii. 24.

450. Eph. iv. 15.

451. Tit. i. 11. ii. 8.

452. 1 Cor. v. 4.

453. 2 Cor. ii. 6.

Aa. These publications may be had at No. 14, City Road, London.

A1. Wesley's Life by Coke &c. page 429.

A2. Meth. Mag. vol. 16, page 441.

A3. Ibid ... vol. 27, page 95.

A4. Evan. Mag. for May, 1811.

A5. Meth. Mag. vol. 35, 396.

A6. Evan. Mag. for March, 1811.

A7. Ibid.... Ibid.

A8. Ibid.... Nov. 1811.

Ac. 13 and 14 Car. II. c. 1.

Ad. 17 Car. II. c. 2.

Ae. 22 Car. II. c. 1. repealed.

Af. 19 G. III. c. 44.

Ag. See Dr. Buchanan's Christian Researches in Asia.

NOTES.

(A.)—SOCRATES, the greatest, the wisest, and the best of the ancient philosophers, was born at Alopece, a village near Athens, in the 4th year of 77th Olympiad. His distinguishing character was that of a moral philosopher; and his doctrine concerning God and religion was rather practical than speculative. But he did not neglect to build the structure of religious faith upon the firm foundation of an appeal to natural appearances. He taught that the Supreme Being, though invisible, is clearly seen in his works; which at once demonstrate his existence and his wise and benevolent providence. He admitted, besides the one Supreme Deity, the existence of beings who possessed a middle station between God and man, to whose agency he ascribed the ordinary phenomena of nature, and whom he supposed to be particularly concerned about human affairs. Hence he declared it to be the duty of every one, in the performance of religious rites, to follow the customs of his country. At the same time he taught that the merit of all religious offerings depends upon the character of the worshiper and that the gods take pleasure in the sacrifices of none but the truly pious. Concerning the human soul, the opinion of Socrates, according to Xenophon, was that it is allied to the Divine Being, not by a participation of essence, but by a similarity of nature; that man excels all other animals in the faculty of reason; and that the existence of good men will be continued after death in a state in which they will receive the reward of their virtue. Although it appears that on this latter topic he was not wholly free from uncertainty, the consolation which he professed to derive from this source in the immediate prospect of death, leaves little room to doubt that he entertained a real expectation of immortality: and there is reason to believe that he was the only philosopher of ancient Greece, whose principles admitted of such an expectation.

His death, by the hands of the common executioner, took place in the first year of the 96th Olympiad, and in the 70th year of his age. Just before he

drank the fatal hemlock, he said to a friend, “Is it not strange, after all I have said to convince you that I am going to the society of the happy, that Crito still thinks that this body, which will soon be a lifeless corpse, is Socrates? Let him dispose of my body as he pleases, but let him not at its interment mourn over it as if it were Socrates!”

(B.)—TERTULLIAN, a celebrated priest of Carthage, was the son of a centurion in the Militia, who served as a proconsul of Africa. He was educated in the Pagan religion; but being convinced of its errors, embraced christianity, and became a zealous defender of the faith. He married it is said after his baptism. Afterwards he entered into holy orders and went to Rome, where, during the persecution under the Emperor Severus, he published his “Apology for the Christians,” and in the beginning of the third century he embraced the sect of the Montanists, who maintained that the Holy Spirit made Montanus, their leader, his organ for delivering a more perfect form of discipline than what was delivered by the Apostles. the 96th Tertullian lived to a very great age, and died about the year 216.

(C.)—TACITUS, CAIUS CORNELIUS, a celebrated Roman historian, and one of the greatest men in his time. He applied himself to the bar, in which he gained high reputation. Having married the daughter of Agricola, who was the Roman Consul, and Governor of Britain, the road to public honours was open to him under Vespasian and Titus, but during the sanguinary reign of Domitian, he and his friend Pliny retired from public affairs. The reign of Nerva restored those luminaries of literature to Rome, and Tacitus was engaged to pronounce the funeral oration of the venerable Virginius Rufus, the colleague of the Emperor in the consulship, and afterwards succeeded him as Consul in the year 97.—It is supposed he died in the end of the reign of Trajan. There have been five translations of his works into English.

(D.)—HERODOTUS an ancient Greek historian, born at Halicarnassus in Caria, about the year before Christ, 484. He travelled over Egypt, Greece, Italy, &c. and thus acquired the knowledge of the history and origin of many nations. He then began to digest the materials he had collected, and composed that history which has preserved his name ever since. He wrote it in the Isle of Samos. Lucian informs us, that when Herodotus left Caria to go into Greece, he began to consider with himself what he should do to be

for ever known and make the ages all to come his own. His history he presumed would easily procure him fame, and raise his name among the Grecians, in whose favour it was written, but then he saw that it would be tedious to go through all the cities of Greece, and recite it to the inhabitants of each city. He thought it best therefore, to take the opportunity of their assembling all together; and accordingly recited his work at the Olympic games, which rendered him more famous than those who had obtained the prizes. None were ignorant of his name, nor was there a single person in Greece who had not either seen him at the Olympic games, or heard those speak of him who had seen him there. There have been several editions of his works; two by Henry Stephens in 1570 and 1592; one by Gale at London, in 1679, and one by Gronovius at Leyden, in 1715.

(*E.*)—JUSTIN MARTYR, one of the earliest and most learned writers of the eastern church, was born at Neapolis. the ancient Sychem of Palestine. His father, Priscus, a Gentile Greek, brought him up in his own religion, and had him educated in all the Grecian learning. To complete his studies he travelled into Egypt, and followed the sect of Plato, with whose intellectual notions he was much pleased. But one day walking by the sea side, wrapt in contemplation, he was met by a grave old man of venerable aspect; who falling into discourse with him, turned the conversation by degrees from the excellence of Platonism to the superior perfection of Christianity; and reasoned so well, as to raise in him an ardent curiosity to enquire into the merits of that religion; in consequence of which enquiry, he was converted about A. D. 132. On his embracing Christianity, he quitted neither the profession nor habit of a philosopher; but a persecution breaking out under Antoninus, he composed *an Apology for the Christians*; and afterwards presented another to Marcus Aurelius, in which he vindicated the innocence and holiness of the Christian religion against Crescens a Cynic philosopher, and other calumniators. He did honour to Christianity by his learning and the purity of his manners; and suffered martyrdom in 167.

(*F.*)—POLYCARP, one of the most ancient fathers of the Christian church, was born towards the end of the reign of Nero, probably at Smyrna, where he was educated at the expence of Calista, a noble matron distinguished by her piety and charity. He was a disciple of St. John the Evangelist, and conversed with some of the other Apostles. Bucolus ordained him a deacon

and catechist of his church, and upon his death he succeeded him in his bishopric, to which he is said to have been consecrated by St. John. Polycarp governed the church of Smyrna with apostolical purity till he suffered martyrdom in the 7th year of Marcus Aurelius. He was burnt at a stake on the 23d of April, A. D. 167, and many miraculous circumstances are said to have happened at his martyrdom, which Dr. Jortin gives full credit to, though some other great men treat them as fabulous, such as, that the flames divided and for some time formed an arch over his head without hurting him &c. He wrote some homilies and epistles, which are now lost, except that to the Phillippians, which contains short precepts and rules of life. St. Jerome informs us that in his time it was read in the public assemblies of the Asiatic churches.

(G.)—CYPRIAN, a principal father of the Christian church, born at Carthage, about the end of the second or beginning of the third century. His parents were Heathens, and he himself continued such till the last twelve years of his life. He applied himself early to the study of oratory, and some of the ancients, particularly Lactantius, inform us that he taught rhetoric at Carthage with considerable applause. Cyprian's conversion is fixed by Pearson to the year 246. He was at Carthage, where he had often employed his rhetoric in the defence of Paganism. It was brought about by one Cecilius, a priest of the church of Carthage, whose name Cyprian afterwards took; and between whom there ever after subsisted so close a friendship, that Cecilius at his death committed to Cyprian the care of his family. Cyprian was himself also a married man. As a proof of the sincerity of his conversion, he wrote in defence of Christianity, and composed his piece *De Gratia Dei*, which he addressed to Donatus. He next composed a piece *De Idolorum Vanitate*, upon the vanity of idols. Cyprian's behaviour, both before and after his baptism, was so highly pleasing to the bishop of Carthage, that he ordained him a priest a few months after, though it was rather irregular to ordain a man thus in his very noviciate. But Cyprian was so extraordinary a person, and thought capable of doing such singular service to the church, that the usual period of probation was dispensed with. He consigned over all his goods to the poor, and gave himself up intirely to divine things. When, therefore, the bishop of Carthage died the year after, viz. A. D. 248, none was judged so proper to succeed him as Cyprian. The repose which the Christians had enjoyed during the last 40 years had greatly

corrupted their manners; and therefore Cyprian's first care, after his advancement to the bishopric, was to remove abuses. Luxury was prevalent among them; and many of their women were not strict in the article of dress. This led him to draw up his piece *De Habitu Virginum*, concerning the dress of young women, in which, besides what he says on that particular, he inculcates many lessons of modesty and sobriety. In 249, Decius issued very severe edicts against the Christians; and in 250, the Heathens in the circus and amphitheatre of Carthage, insisted upon Cyprian being thrown to the lions. Cyprian upon this withdrew from Carthage to avoid the fury of his persecutors. He wrote in the place of his retreat, pious and instructive letters to those who had been his hearers; and also to those pusillanimous Christians who procured certificates of the heathen magistrates, to shew that they had complied with the emperor's orders in sacrificing to idols. At his return to Carthage he held several councils, on the repentance of those who had fallen off during the persecution, and other points of discipline; he opposed the schemes of Novatus and Novatianus; and contended for the re-baptizing of those who had been baptized by heretics. At last he died a Martyr in the persecution under Valerian and Gallienus, in 258. His works have been translated into English by Dr. Marshall.

([H.](#))—HOTTINGER, JOHN HENRY, a native of Zurich, in Switzerland. He was born in 1620, professed the oriental languages and was greatly esteemed. He was drowned, with part of his family, in the river Lemit, in 1667.

([I.](#))—IRENEUS, bishop of Lyons, was born in Greece about A. D. 120. He was a disciple of Polycarp, by whom, it is said, he was sent into Gaul in 157. He stopped at Lyons, where he performed the office of a priest; and in 178 was sent to Rome, where he disputed with Valentinus, and his two disciples Florinus and Blastus. At his return to Lyons, he succeeded Photinus, bishop of that city; and suffered martyrdom in 202 under Severus. He wrote many works in Greek, of which there remains only a barbarous Latin version of his five books against heretics, some Greek fragments in different authors, and Pope Victor's letter mentioned by Eusebius. The best editions of his works are those of Erasmus in 1526; of Grabe in 1702, and of Massuet, in 1710.

([J.](#))—EUSEBIUS, one of the most learned men in his time, born in Palestine about the end of the reign of Gallienus. He was the intimate friend of Pamphilus the martyr, and after his death took his name. He was ordained bishop of Cesarea in 613. He had a considerable share in the contest relating to Arius, whose cause he and several other bishops defended, being persuaded that Arius had been unjustly persecuted by Alexander bishop of Alexandria. He assisted at the council of Nice in 325; when he made a speech to the Emperor Constantine on his coming to the council, and was placed next him on his right hand. He was present at the council of Antioch, in which Eustathius bishop of that city was deposed; but though he was chosen by the bishop and the people of Antioch to succeed him, he refused it.

In 335, he assisted in the council of Tyre held against Athanasius: and at the assembly of bishops at Jerusalem, at the dedication of the church there. By these bishops he was sent to the Emperor Constantine to defend what they had done against Athanasius; when he pronounced the panegyric on that Emperor, during the public rejoicings in the 30th year of his reign. Eusebius died in the year 338.

([K.>](#))—SABELLIUS, who gave rise to the sect of the Sabellians. He was a native of Lybia, and a philosopher of Egypt. He taught that the word and the Holy Spirit are only virtues, emanations, or functions of the Deity; and maintained that he who is in heaven is the father of all things; that he descended into the virgin, became a child, and was born of her as a son: and that having accomplished the mystery of our salvation, he diffused himself on the Apostles in tongues of fire, and was then denominated the Holy Ghost. He lived and died in the third century.

([L.](#))—ARIUS, who lived in the fourth century, the head and founder of the Arians, a sect who denied the eternal divinity and substantiality of the word. At the council of Nice, in 325, the doctrines of Arius were condemned, and he was banished by the Emperor, all his books were ordered to be burnt, and capital punishment denounced against all who dared to keep them.—After five years banishment he was recalled to Constantinople, where he presented the Emperor with a confession of his faith, drawn up so artfully that it fully satisfied him. Notwithstanding this, Athanasius now bishop of Alexandria, refused to admit him and his followers to communion. This so

enraged them, that, by their interest at court, they procured that prelate to be deposed and banished. But the church of Alexandria still refusing to admit Arius into their communion, the Emperor sent for him to Constantinople; where upon delivering in a fresh confession of his faith, in terms less offensive, the Emperor commanded Alexander the bishop of that church to receive him the next day into his communion, but that very evening Arius died. The manner of his death was rather extraordinary: as his friends were conducting him in triumph to the great church of Constantinople, Arius stepped aside and immediately expired; his bowels gushing out, owing, as was suspected, to poison.

(M.)—CONSTANTINE the great, the first Emperor of the Romans who embraced Christianity. Dr. Anderson in his *Royal Genealogies*, makes him not only a native of Britain, but the son of a British princess. It is certain that his father Constantius was at York, when, upon the abdication of Dioclesian, he shared the Roman empire with Galerius Maximus in 305, and that he died in York in 306, having first caused his son Constantine to be proclaimed Emperor by his army and by the Britons. Galerius at first refused to admit Constantine to his father's share in the imperial dignity; but after having several battles, he consented in 308. Maxentius who succeeded Galerius, opposed him; but was defeated and drowned himself in the Tiber. The Senate then declared Constantine *first* Augustus, and Licinius his associate in the empire in 313. These Princes published an edict, in their joint names in favour of the Christians; but soon after Licinius, jealous of Constantine's renown, conceived an implacable hatred against him, and renewed the persecutions against the Christians. This brought on a rupture between the Emperors; and a battle, in which Constantine was victorious. A short peace ensued; but Licinius having shamefully violated the treaty, the war was renewed; when Constantine totally defeating him, he fled to Nicomedia, where he was taken prisoner and strangled in 323. Constantine now become sole master of the whole empire, immediately formed the plan of establishing Christianity as the religion of the state; for which purpose, he convoked several ecclesiastical councils; but finding he was likely to meet with great opposition from the Pagan interest at Rome, he conceived the design of founding a new city, to be the capital of his Christian empire. He died in the year 337, in the 66th year of his age, and 31st of his reign.

([N.](#))—SOCRATES, an ecclesiastical historian, born at Constantinople, in the beginning of the reign of Theodosius; he professed the law, and pleaded at the bar; whence he obtained the name of *Scholasticus*. He wrote an ecclesiastical history from the year 309, where Eusebius ended, down to 440, and wrote with great exactness and judgment. An edition of Eusebius and Socrates, in Greek and Latin, with notes by Reading, was published in London, in 1720.

([O.](#))—ATHANASIUS, a bishop of Alexandria, and the great opposer of the Arians, was born in Egypt. He followed Alexander in the council of Nice, in 325, where he disputed against Arius, and the following year was made bishop of Alexandria; but in 335 was deposed by the council of Tyre: and by the Emperor Constantine was banished to Treves. The Emperor, two years after, ordered him to be restored to his bishopric: but on his return to Alexandria, his enemies brought fresh accusations against him, and chose Gregory of Cappadocia to his see; which obliged Athanasius to go to Rome to reclaim it of Pope Julius. He was there declared innocent in a council held in 342, and in that of Sardica in 347, and two years after was restored to his see by order of the Emperor Constance; but after the death of that prince, he was again banished by Constantius, on which he retired into the deserts. The Arians then elected one George in his room; who being killed in a popular faction under Julian, in 360, Athanasius returned to Alexandria, but was banished under Julian, and restored to his see under Jovian. He was also banished by Valens in 367 and afterwards recalled. He ended this troublesome life on the 2d of May, 373.

([P.](#))—THEODORET, bishop of St. Cyricus, in Syria, in the fourth century, and one of the most learned fathers in the church. He was born A. D. 386, and was the disciple of Theodorus of Mopsuestes, and Chrysostom. Having received holy orders, he was with difficulty persuaded to accept of the bishopric of Cyricus, about A. D. 420. He displayed great frugality in the expences of his table, dress, and furniture, but spent considerable sums in improving and adorning the city of Cyricus. Yet his zeal was not confined to his own church: he went to preach at Antioch, and the neighbouring towns; where he became admired for his eloquence and learning, and had the happiness to convert multitudes of people. It is supposed he died about the

year 457. There are still extant Theodoret's excellent *Commentary on St. Paul's Epistles*, and on several other books of the Holy Scriptures.

(Q.)—GREGORY NAZIANZEN, from Nazianzum, a town of Cappadocia, of which his father was bishop. He was born in 324, at Azianzum, a village near it, and was one of the brightest ornaments of the Greek church, in the fourth century. He was made bishop of Constantinople, in 379, but finding his election contested by Timotheus, bishop of Alexandria, he voluntarily relinquished his dignity about 382, in the general council of Constantinople. His works are extant, in two volumes, printed at Paris in 1609. His style is said to be equal to that of the most celebrated orators of ancient Greece.

(R.)—PORPHYRIUS, a famous platonic philosopher, born at Tyre in 233, in the reign of Alexander Severus. He was the disciple of Longinus, and became the ornament of his school at Athens; from whence he went to Rome, and attended Plotinus, with whom he lived six years. After Plotinus' death he taught philosophy at Rome with great applause; and became well skilled in polite literature, geography, astronomy, and music. He lived till the end of the third century, and died in the reign of Dioclesian. He was an enemy to Christianity, and wrote a large treatise against it, which is lost. The Emperor Theodosius the Great caused it to be burnt.

(S.)—SAINT JEROME, a famous doctor of the church, and the most learned of all the Latin fathers, was the son of Eusebius; and was born at Stridon, a city of ancient Pannonia, about A. D. 340. He studied at Rome under Donatus the learned grammarian. After embracing the Christian religion, and being baptized, he went into Gaul. In 372, he retired into a desert in Syria, where he was persecuted for being a Sabellian, because he made use of the word *Hypostasis*, as used by the council of Rome in 369. This obliged him to go to Jerusalem, where he studied the Hebrew language, to acquire a more perfect knowledge of the Holy Scriptures; and consented to be ordained, provided he should not be confined to any particular church. In 381, he went to Constantinople to hear Gregory of Nazianzen; and in 382 returned to Rome, where he was made secretary to Pope Damasus. He then instructed many Roman ladies in piety and the sciences, which exposed him to the calumnies of those whom he zealously reproved for their irregularities; and Pope Siricius, not having all the esteem for him, which

his learning and virtue justly entitled him to, he returned to Bethlehem, where he wrote against heretics. He had a contest with John of Jerusalem and Rufinius about the Origenists; and was the first who wrote against Pelagius. He died on the 30th of September, 420, about 80 years of age. His works are voluminous, in eleven volumes folio. His style is lively and animated, and sometimes sublime.

([T.](#))—JULIAN, a famous Roman Emperor, styled *The Apostate*, because he professed the Christian religion before he ascended the throne, but afterwards openly embraced Paganism, and endeavoured to abolish Christianity. He made no use of violence, however, for this purpose; but behaved with a politic mildness to the Christians; recalled all who had been banished on account of religion under Constantius; and endeavoured to pervert them by caresses, and by temporal advantages, covered over by artful pretences: but he prohibited Christians to plead before courts of justice, or to enjoy any public employments. He even prohibited their teaching polite literature, well knowing the great advantages they drew from profane authors, in their attacks upon Paganism and irreligion. Though he on all occasions shewed a sovereign contempt for the Christians whom he stiled *Galileans*, yet he was sensible of the advantage they obtained by their virtue and the purity of their manners; and therefore incessantly proposed their example to the Pagan priests. At last, however, when he found that all other methods failed, he gave public employments to the most cruel enemies of the Christians, when the cities in most of the provinces were filled with tumults and seditions, and many of them were put to death. Historians mention that Julian attempted to prove the falsehood of our Lord's prediction with respect to the temple at Jerusalem, by rebuilding it; but that all his endeavours served only the more perfectly to verify it. Julian being mortally wounded in a battle with the Persians, is said, to have caught in his hand some of the blood which flowed from his wound, and throwing it towards heaven, cried, *Oh Galilean thou hast conquered*. Theodoret relates, that Julian discovered a different disposition, and employed his last moments in conversing with Maximus the philosopher, on the dignity of the soul. He died, however, the following night in the 32d year of his age.

([U.](#))—SOZOMEN, an ecclesiastical historian of the 5th century. He was born in Bethulia, a town of Palestine; he was educated for the law, and became a pleader at Constantinople. He wrote an abridgement of ecclesiastical history, in two books, from the ascension of our Saviour to the year 323. This compendium is lost, but a continuation in nine books is still extant. He seems to have copied Socrates, who wrote a history of the same period. The style of Sozomen is more elegant; but in other respects he falls short of that writer, displaying through the whole book an amazing credulity, and a superstitious attachment to monks and a monastic life. The best edition of Sozomen is that of Robert Stephens in 1544. He has been translated and published by Valesius, and republished with additional notes by Reading, at London, 1720, in 3 volumes folio.

([V.](#))—CHRYSTOM ST. JOHN, a celebrated patriarch of Constantinople, and one of the most admired fathers of the Christian Church, was born of a noble family at Antioch about A. D. 347. He studied rhetoric under Libavius, and philosophy under Andragathus: after which he spent some time in solitude in the mountains near Antioch, but the austerities he endured having impaired his health he returned to Antioch where he was ordained deacon by Meletius. Flavian Meletius' successor, raised him to the office of presbyter five years after; when he distinguished himself so greatly by his eloquence, that he obtained the surname of *Chrysostom* or *Golden mouth*. Nectarius, patriarch of Constantinople, dying in 397, St. Chrysostom, whose fame was spread throughout the whole empire, was unanimously elected by both clergy and laity. The Emperor Arcadius confirmed his election, and caused him to leave Antioch privately, where the people were very unwilling to part with him. He was ordained bishop on the 26th of February, 398. He differed with Theophilus of Alexandria, who got him deposed and banished; but he was soon recalled. After this, declaiming against the dedication of a statue erected to the empress, she banished him to Cucusus in Armenia, a most barren and inhospitable place; afterwards as they were removing him from Petyus, the Soldiers treated him so roughly that he died by the way, A. D. 407. The best edition of his works, is that published at Paris in 1718, by Montfaucon.

([W.](#))—DOMINIC DE GUZMAN, the founder of the religious order called Dominicans. He was born at Calaroga in old Castile, in 1170. He preached

with great fury against the Albigenses, when Pope Innocent 3d made a croisade against that unhappy people, and was inquisitor at Languedoc, where he founded his order in 1215. He died in 1221, at Bologna and was canonized.

J. PERKINS, Printer, Bowlalley-Lane, Hull.

Transcriber's Note

The system of footnotes is sometimes complicated. Several longer footnotes are themselves supplied with footnotes. On occasion, the traditional placement *after* the annotated text is reversed, and the note *precedes*.

Finally, the endnotes are themselves somewhat disorganized. Each is referred to in the text by an unnumbered (asterisk or dagger) footnote referring to an endnote, e.g.:

* See note [B] at the end of the volume.

However, there are a number of errors. The endnotes for Tertullian (B), Tactitus (C), and Herodotus (D) are referred to incorrectly as C, D B in the text. Notes U and V (for Julian and Sozomen) are reversed in the endnotes. Note U (Sozomen) is referred to as [X] but Note X describes Dominic de Guzman. However, the footnote in the text for de Guzman refers to [Z], which does not exist. The endnote for Chrysostom (W) is referred to the the footnotes as Y, which does not exist. J also does not exist, either in the endnotes or in footnotes.

To avoid the many confusions, these footnote references to the endnotes as well as the endnotes themselves, have been resequenced from A to W, in the order of their appearance in the endnotes and the footnote references have been corrected to direct the reader to the correct place. This means that the corresponding footnotes may not occur in sequence.

This table summarizes the various errors regarding the endnotes.

Name	Endnote	Footnote
Tertullian	B	C
Tactitus	C	D
Herodotus	D	B
Julian	V	U
Sozomen	U	V

Chrysostom	W	Y
Dominic de Guzman	X	Z

The endnotes have been resequenced as follows:

A	Socrates
B	Tertullian
C	Tacitus
D	Herodotus
E	Justin Martyr
F	Polycarp
G	Cyprian
H	Hottinger
I	Irenus
J	Eusebius
K	Sabellius
L	Arius
M	Constantine
N	Socrates (of Constantinople)
O	Athanasius
P	Theodoret
Q	Gregory Nazianzen
R	Porphyrius
S	Saint Jerome
T	Julian
U	Sozomen
V	Chrysostom St. John,
W	Dominic de Guzman

On p. 149, a footnote (note 245 here), referring to the Buckley edition of Jacques de Thou's *Historia du temporis* had no reference in the text. One has been placed at the beginning of the extended quotation beginning on that page, which seems the most likely referent.

On p. 288, the third footnote (note 300 here) had no reference in the text. It most likely refers to the final sentence

in the section, regarding the Langrave of Hesse Cassel, and has been placed there.

On p. 317, the fifth footnote (note 325 here) had no reference in the text. It most likely introduced the final paragraph of the page, and has been placed there.

On p. 395, the fifth footnote (note 403 here) contains two separate references to verses in Romans 14, and for some reason is referred to twice in the text, each to one of those verses.

On p. 396, the fifth footnote anchor (412 here) was not present in the text, but matches correctly the reference to 1 Corinthians, 13.1, and has been added at the beginning of the quotation.

Footnotes have been moved to the end of each “Book”, with hyperlinked references for ease of reference.

Lapses in punctuation of the editorial apparatus have been corrected without notice here.

There are copious quotations, some of which were not properly opened or closed. Where it was possible to determine their scope by consulting the sources, punctuation has been added and noted below.

Given the publication date, latitude in spelling was given except where it seemed obvious that the errors were most likely to be the printer’s. These have been corrected, and are noted below. The references are to the page and line in the original. Where a third number is found, the reference is to the line within the nth footnote on the page (e.g. 116.3.2 refers to the 2nd line of the 3rd footnote on p. 116.).

iii.14	the grand [sources] of persecution	<i>sic</i>
iv.15	the names of those noblem[a/e]n and others	Replaced.
8.8	“in favour of church power and authority,[”]	Added.
15.1	the Earl of Fin[d]later	Inserted.

40.22	Persecutions by Antiochus Ep[h]iphanes	Removed.
45.17	He tell[s] us	Added.
78.2.1	Theod. E. H. l. 1. c. [3].	Unclear.
104.1	subject to other punishments. [”]	Added.
130.17	[“]Hunnerick, ^[227] the Arian king of the Vandals	Removed.
134.25	the blood of the martyrs of Jesus[./,]	Replaced.
223.29	w[h]ere, according to the custom	Inserted.
226.3	Some penances are hon[a/o]rary	Replaced.
226.27	the[y/y]are avoided by all	Corrected.
231.35	to be charged with a lie?[”]	Added.
233.33	pronou[u/n]ced Mark Anthony	Inverted.
235.20	the most horrible [b/h]abits	Replaced.
250.29	[re/ac]cording to the custom of a triumph	Replaced.
251.36	they begin with c[e]lebrating	Inserted.
258.21	seriou[s]ly and gravely admonished	Inserted.
259.16	they should be[c]ome irregular	Inserted.
264.13	Pro[s/t]estant and Catholic families	Replaced.
264.33	the boundaries of the British Empire[./,]	Replaced.
268.1.5	again[s]t whom the Europeans made war.	Inserted.
268.2.1	Monsie[u]r Dellon	Inserted.
268.2.3	at which he walked barefoot[./,]	Replaced.

275.1.70	who had ass[s]embled	Removed.
275.1.82	summo[u/n]ed forth those miserable victims	Inverted.
276.1	[‘]I had already discovered	Added.
278.3	[“/‘]That a greater number	Replaced.
278.5	were before necessary;[”]	Added.
278.8	within the walls of the inquisition[,/.]	Replaced.
279.8	it was not permitted to any pe[s/r] to see	Replaced.
281.28	in the cells of the inquisition? [’]	Added.
290.1	and he calls God to witnes[s]	Added.
293.35	was sup[p]orted by Servetus’s complaint	Inserted.
296.8	the punishment he deserves.[”]	Added.
301.13	in his pen[e/i]tentia habit	Replaced.
306.1	as would be zealo[n/u]s even to blood	Inverted.
309.9	who violated the laws of God. [”]	Added.
328.4	opinions of Mr. Montague;[”]	Added.
339.14	upon pain of eternal damnation;[”]	Added.
317.13	rendered it a public grievance. [”]	Added.
318.2	the rubbish of the people.[”]	Added.
319.23	so that he may gain by it[.]”	Inserted.
321.6	“[a/A]t the bishop’s approach	Capitalized.
322.18	he received the [s]acrament	Added.
324.34	to cry him up for their proselyte.[”]	Added.

325.27	[“/’]Doctissimi eorum, quibuscunque egi.[”/’]	Replaced.
325.32	[“/’]It were no hard matter to make a reconciliation, if a wise man had the handling of it.[”/’]	Replaced.
328.30	more than I.’[”]	Added.
329.19	the lewdest men in the kingdom[,/.]	Replaced.
332.1.1	Com. Hist. p.[?]	Page missing.
332.9	[“]Comines was looking on the sepulchre	Removed.
338.13	and branding the other cheek. [”]	Added.
338.19	the illegal and arbitrary mea[]ures	Restored.
341.26	cont[r]ary to their former settlement	Inserted.
343.15	Upon the restoration of the “royal wanderer,[”]	Added.
349.9	the tolerating of d[s/i]ssenters	Replaced.
354.28	“on penalty of the house of correction.[”]	Added.
354.32	a judgment upon the land[.]	Added.
368.7	there was a difficul[t]y yet remaining	Inserted.
368.34	[“]doting about questions	<i>sic</i> : spurious?
370.25	or for want of [?/t]hese, anathemas	Replaced.
377.2	of any other persons whatso[e]ver.	Inserted.
379.31	And this is the more un[n]ecessary	Inserted.
384.7	they immedia[i/t]ely subscribed	Replaced.

390.7	Away with this folly and [super-]superstition	Removed.
390.10	of human frailty and ignorance[,/.]	Replaced.
391.13	love thy neighbo[n/u]r as thyself.	Inverted.
394.15	by my sufferings and death?["]	Added.
396.6	["]Wherefore receive ye one another	Added.
397.11	against which there is no law: ["]	Added.
398.10	["]Put off all these	Added.
398.24	["]The wisdom that is from above is pure	Added.
400.7	God hath a[]right to punish frauds	Spaced added.
400.12	to tempt the spirit of the Lord? ["]	Added.
408.27	and him crucified,["]	Added.
410.32	"be had in double honour for their work sake,["]	Added.
448.33	two tho[n/u]sand signatures	Inverted.
407.27	and perem[p]torily say	Inserted.
407.28	b[n/u]t because they were to preach	Inverted.
410.19	"over us in the Lord["]	Added.
416.3.1	Ibi[b/d] ... vol. 27, page 95.	Replaced.
416.5	other adjacent places in Staffordshire.["]	Added.
417.1	and has always perem[p]torily refused	Inserted.
418.4	An act to pr[e]vent preaching	Inserted.
420.28	should be executed upon them. [']	Added.

427.31	of which which [I] here insert.	Restored.
431.32	at the general session o[t/f] the peace	Replaced.
446.34	has never been impu[ng/gn]ed	Transposed.
448.18	three members be competent to act.[’’]	Removed.
449.10	bring the subject forwards for d[i]scussion	Inserted.
452.20	w[h]ere the nature of the Bill	Inserted.
453.28	might far prepond[e]rate	Inserted.
459.30	We are not at liberty to with[h]old	Inserted.
464.24	members of the establish[ed] Church	Added.
469.37	<i>[(]Hear!)</i>	Added.
471.1	gave a bond to a clergym[e/a]n	Replaced.
477.3	[“]In May last the General Committee	Removed. No closing quote.
486.17	the dissem[m]ination of Divine truth	Removed.
494.12	one thousand eight hundred and _____.[’’]	Added.
503.23	I am a Christian and a Pro[s]testant	Removed.
505.9	horrid Edic[t/t]recently issued	Space moved.
508.4	If they find Europeans within their territor[it]ies	Removed.
508.27	whose kingdom is an everlasting kin[g]dom	Inserted.
510.7	the 96th Ol[my/ym]piad	Transposed.
510.25	T[u/e]rtullian lived to a very great age	Replaced.
511.6	He then b[e]gan	Inserted.

512.1	On his embracing Chri[s]tianity	Inserted.
514.1	a native of [T/Z]urich, in Switzerland.	Replaced.
515.35	that his father Co[u/n]stantius	Inverted.
520.5	a celebrated pa[r]triarch	Removed.

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